

INTERCONTINENTALEXCHANGE INC

FORM 10-Q (Quarterly Report)

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**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION**
Washington, D.C. 20549

FORM 10-Q

(Mark one)

☒ **Quarterly Report Pursuant to Section 13 or 15(d) of the Securities Exchange Act of 1934**

For the quarterly period ended June 30, 2010

or

☐ **Transition Report Pursuant to Section 13 or 15(d) of the Securities Exchange Act of 1934**

For the transition period from _____ to _____

Commission File Number 001-32671

INTERCONTINENTALEXCHANGE, INC.

(Exact name of registrant as specified in its charter)

Delaware
*(State or other jurisdiction of
incorporation or organization)*

58-2555670
*(IRS Employer
Identification Number)*

2100 RiverEdge Parkway, Suite 500, Atlanta, Georgia 30328
(Address of principal executive offices) (Zip Code)

(770) 857-4700
(Registrant's telephone number, including area code)

Indicate by check mark whether the registrant (1) has filed all reports required to be filed by Section 13 or 15(d) of the Securities Exchange Act of 1934 during the preceding 12 months (or for such shorter period that the registrant was required to file such reports), and (2) has been subject to such filing requirements for the past 90 days. Yes ☒ No ☐

Indicate by check mark whether the registrant has submitted electronically and posted on its corporate Web site, if any, every Interactive Data File required to be submitted and posted pursuant to Rule 405 of Regulation S-T during the preceding 12 months (or for such shorter period that the registrant was required to submit and post such files). Yes ☒ No ☐

Indicate by check mark whether the registrant is a large accelerated filer, an accelerated filer, a non-accelerated filer or a smaller reporting company. See the definitions of "large accelerated filer", "accelerated filer" and "smaller reporting company" in Rule 12b-2 of the Exchange Act. (Check one):

Large accelerated filer ☒

Accelerated filer ☐

Non-accelerated filer ☐ (Do not check if a smaller reporting company)

Smaller reporting company ☐

Indicate by check mark whether the registrant is a shell company (as defined in Rule 12b-2 of the Exchange Act). Yes ☐ No ☒

As of July 30, 2010, the number of shares of the registrant's Common Stock outstanding was 74,043,648 shares.

Table of Contents

IntercontinentalExchange, Inc.
Form 10-Q
Quarterly Period Ended June 30, 2010

Table of Contents

	<u>Page</u>
Part I. Financial Information	
Item 1. Consolidated Financial Statements (Unaudited):	
Consolidated Balance Sheets as of June 30, 2010 and December 31, 2009	2
Consolidated Statements of Income for the six months and three months ended June 30, 2010 and 2009	3
Consolidated Statements of Changes in Equity for the six months ended June 30, 2010 and for the year ended December 31, 2009	4
Consolidated Statements of Comprehensive Income for the six months and three months ended June 30, 2010 and 2009	5
Consolidated Statements of Cash Flows for the six months ended June 30, 2010 and 2009	6
Notes to Consolidated Financial Statements	7
Item 2. Management’s Discussion and Analysis of Financial Condition and Results of Operations	18
Item 3. Quantitative and Qualitative Disclosures About Market Risk	38
Item 4. Controls and Procedures	40
Part II. Other Information	
Item 1. Legal Proceedings	40
Item 1A. Risk Factors	40
Item 2. Unregistered Sales of Equity Securities and Use of Proceeds	41
Item 3. Defaults Upon Senior Securities	41
Item 4. [Removed and Reserved]	41
Item 5. Other Information	41
Item 6. Exhibits	41
Signature	42

Table of Contents

Part I. Financial Information

Item 1. Consolidated Financial Statements (Unaudited)

IntercontinentalExchange, Inc. and Subsidiaries

Consolidated Balance Sheets (In thousands, except per share amounts) (Unaudited)

	June 30, 2010	December 31, 2009
ASSETS		
Current assets:		
Cash and cash equivalents	\$ 307,108	\$ 552,465
Short-term restricted cash	710,839	81,970
Short-term investments	2,005	2,005
Customer accounts receivable, net of allowance for doubtful accounts of \$1,472 and \$1,710 at June 30, 2010 and December 31, 2009, respectively	135,942	109,068
Margin deposits and guaranty funds	23,879,030	18,690,238
Prepaid expenses and other current assets	26,992	24,105
Total current assets	<u>25,061,916</u>	<u>19,459,851</u>
Property and equipment, net	93,549	91,735
Other noncurrent assets:		
Goodwill	1,452,004	1,465,831
Other intangible assets, net	670,998	702,460
Long-term restricted cash	123,823	123,823
Long-term investments	25,499	23,492
Cost method investments	7,501	7,501
Other noncurrent assets	14,591	10,182
Total other noncurrent assets	<u>2,294,416</u>	<u>2,333,289</u>
Total assets	<u>\$27,449,881</u>	<u>\$21,884,875</u>
LIABILITIES AND EQUITY		
Current liabilities:		
Accounts payable and accrued liabilities	\$ 63,068	\$ 57,288
Accrued salaries and benefits	31,099	52,185
Current portion of licensing agreement	16,631	15,223
Current portion of long-term debt	112,250	99,000
Income taxes payable	12,009	23,327
Margin deposits and guaranty funds	23,879,030	18,690,238
Other current liabilities	44,657	30,571
Total current liabilities	<u>24,158,744</u>	<u>18,967,832</u>
Noncurrent liabilities:		
Noncurrent deferred tax liability, net	161,476	181,102
Long-term debt	367,250	208,500
Noncurrent portion of licensing agreement	67,436	73,441
Other noncurrent liabilities	20,788	20,353
Total noncurrent liabilities	<u>616,950</u>	<u>483,396</u>
Total liabilities	<u>24,775,694</u>	<u>19,451,228</u>
Commitments and contingencies		
EQUITY		
IntercontinentalExchange, Inc. shareholders' equity:		
Preferred stock, \$0.01 par value; 25,000 shares authorized; no shares issued or outstanding at June 30, 2010 and December 31, 2009	—	—
Common stock, \$0.01 par value; 194,275 shares authorized; 78,186 and 77,573 shares issued at June 30, 2010 and December 31, 2009, respectively; 74,028 and 73,489 shares outstanding at June 30, 2010 and December 31, 2009, respectively	782	776
Treasury stock, at cost; 4,158 and 4,084 shares at June 30, 2010 and December 31, 2009, respectively	(357,612)	(349,646)
Additional paid-in capital	1,717,848	1,674,919
Retained earnings	1,251,976	1,049,125
Accumulated other comprehensive income	24,978	24,558
Total IntercontinentalExchange, Inc. shareholders' equity	<u>2,637,972</u>	<u>2,399,732</u>
Noncontrolling interest in consolidated subsidiaries	<u>36,215</u>	<u>33,915</u>

Total equity	<u>2,674,187</u>	<u>2,433,647</u>
Total liabilities and equity	<u><u>\$27,449,881</u></u>	<u><u>\$21,884,875</u></u>

See accompanying notes.

IntercontinentalExchange, Inc. and Subsidiaries

Consolidated Statements of Income
(In thousands, except per share amounts)
(Unaudited)

	Six Months Ended June 30,		Three Months Ended June 30,	
	2010	2009	2010	2009
Revenues:				
Transaction and clearing fees, net	\$515,922	\$426,433	\$264,860	\$222,955
Market data fees	54,039	51,599	27,186	25,485
Other	7,814	3,938	4,109	1,977
Total revenues	<u>577,775</u>	<u>481,970</u>	<u>296,155</u>	<u>250,417</u>
Operating expenses:				
Compensation and benefits	117,110	110,303	58,870	55,597
Professional services	16,578	16,042	8,029	8,813
Acquisition-related transaction costs	2,043	6,139	1,498	529
Selling, general and administrative	43,806	45,844	21,549	22,938
Depreciation and amortization	56,128	54,882	27,914	27,579
Total operating expenses	<u>235,665</u>	<u>233,210</u>	<u>117,860</u>	<u>115,456</u>
Operating income	<u>342,110</u>	<u>248,760</u>	<u>178,295</u>	<u>134,961</u>
Other income (expense):				
Interest and investment income	1,066	954	340	344
Interest expense	(14,612)	(12,160)	(7,502)	(6,906)
Other expense, net	<u>(16,013)</u>	<u>(10,656)</u>	<u>(15,317)</u>	<u>(10,577)</u>
Total other expense, net	<u>(29,559)</u>	<u>(21,862)</u>	<u>(22,479)</u>	<u>(17,139)</u>
Income before income taxes	312,551	226,898	155,816	117,822
Income tax expense	106,506	82,618	53,289	45,764
Net income	<u>\$206,045</u>	<u>\$144,280</u>	<u>\$102,527</u>	<u>\$ 72,058</u>
Net income attributable to noncontrolling interest	(3,194)	—	(839)	—
Net income attributable to IntercontinentalExchange, Inc.	<u>\$202,851</u>	<u>\$144,280</u>	<u>\$101,688</u>	<u>\$ 72,058</u>
Earnings per share attributable to IntercontinentalExchange, Inc. common shareholders:				
Basic	<u>\$ 2.75</u>	<u>\$ 1.98</u>	<u>\$ 1.37</u>	<u>\$ 0.99</u>
Diluted	<u>\$ 2.72</u>	<u>\$ 1.95</u>	<u>\$ 1.36</u>	<u>\$ 0.97</u>
Weighted average common shares outstanding:				
Basic	<u>73,818</u>	<u>72,759</u>	<u>73,960</u>	<u>72,892</u>
Diluted	<u>74,645</u>	<u>73,818</u>	<u>74,763</u>	<u>74,074</u>

See accompanying notes.

IntercontinentalExchange, Inc. and Subsidiaries

Consolidated Statements of Changes in Equity
(In thousands)
(Unaudited)

	IntercontinentalExchange Inc. Shareholders' Equity										
	Common Stock		Treasury Stock		Additional Paid-in Capital	Retained Earnings	Accumulated Other Comprehensive Income (Loss) from			Noncontrolling Interest in Consolidated Subsidiaries	Total Equity
	Shares	Value	Shares	Value			Foreign Currency Translation	Available- For-Sale Securities	Cash Flow Hedges		
Balance, January 1, 2009	76,502	\$ 765	(4,138)	\$(355,520)	\$1,608,344	\$ 732,752	\$ 22,389	\$ (49)	\$ (2,450)	\$ 5,949	\$2,012,180
Other comprehensive income (loss)	—	—	—	—	—	—	6,869	(435)	(1,766)	—	4,668
Exercise of common stock options	653	6	—	—	12,698	—	—	—	—	—	12,704
Issuance of shares for acquisitions	50	1	—	—	5,894	—	—	—	—	—	5,895
Change in fair value of redeemable stock put	—	—	—	—	—	385	—	—	—	—	385
Treasury shares received for restricted stock and stock option tax payments	—	—	(157)	(12,220)	—	—	—	—	—	—	(12,220)
Stock-based compensation	—	—	—	—	57,477	—	—	—	—	—	57,477
Issuance of restricted stock	368	4	211	18,094	(18,098)	—	—	—	—	—	—
Tax benefits from stock option plans	—	—	—	—	8,604	—	—	—	—	—	8,604
Noncontrolling interest issued in connection with an acquisition	—	—	—	—	—	—	—	—	—	29,800	29,800
Net loss attributable to noncontrolling interest	—	—	—	—	—	1,834	—	—	—	(1,834)	—
Net income	—	—	—	—	—	314,154	—	—	—	—	314,154
Balance, December 31, 2009	77,573	776	(4,084)	\$(349,646)	1,674,919	1,049,125	29,258	(484)	(4,216)	33,915	2,433,647
Other comprehensive income (loss)	—	—	—	—	—	—	(823)	1,494	(251)	—	420
Exercise of common stock options	385	4	—	—	9,816	—	—	—	—	—	9,820
Treasury shares received for restricted stock and stock option tax payments	—	—	(75)	(7,980)	—	—	—	—	—	—	(7,980)
Stock-based compensation	—	—	—	—	27,275	—	—	—	—	—	27,275
Issuance of restricted stock	228	2	1	14	343	—	—	—	—	—	359
Tax benefits from stock option plans	—	—	—	—	5,495	—	—	—	—	—	5,495
Noncontrolling interest issued in connection with an acquisition	—	—	—	—	—	—	—	—	—	(894)	(894)
Net income attributable to noncontrolling interest	—	—	—	—	—	(3,194)	—	—	—	3,194	—
Net income	—	—	—	—	—	206,045	—	—	—	—	206,045
Balance, June 30, 2010	78,186	\$ 782	(4,158)	\$(357,612)	\$1,717,848	\$1,251,976	\$ 28,435	\$ 1,010	\$ (4,467)	\$ 36,215	\$2,674,187

See accompanying notes.

Table of Contents

IntercontinentalExchange, Inc. and Subsidiaries
Consolidated Statements of Comprehensive Income
(In thousands)
(Unaudited)

	Six Months Ended June 30,		Three Months Ended June 30,	
	2010	2009	2010	2009
Net income	\$206,045	\$144,280	\$102,527	\$72,058
Other comprehensive income (loss):				
Change in foreign currency translation adjustments, net of tax	(823)	2,276	(1,557)	4,166
Change in fair value of cash flow hedges, net of tax	(251)	587	208	587
Change in available-for-sale securities, net of tax	1,494	5,952	7,859	5,922
Comprehensive income	<u>\$206,465</u>	<u>\$153,095</u>	<u>\$109,037</u>	<u>\$82,733</u>
Comprehensive income attributable to noncontrolling interest	<u>(3,194)</u>	<u>—</u>	<u>(839)</u>	<u>—</u>
Comprehensive income attributable to IntercontinentalExchange, Inc.	<u>\$203,271</u>	<u>\$153,095</u>	<u>\$108,198</u>	<u>\$82,733</u>

See accompanying notes.

Table of Contents

IntercontinentalExchange, Inc. and Subsidiaries

Consolidated Statements of Cash Flows (In thousands) (Unaudited)

	Six Months Ended June 30,	
	2010	2009
Operating activities		
Net income	\$ 206,045	\$ 144,280
Adjustments to reconcile net income to net cash provided by operating activities:		
Depreciation and amortization	56,128	54,882
Amortization of debt issuance costs	2,867	2,314
Provision for doubtful accounts	(238)	970
Net realized gains on sales of available-for-sale investments	(2)	(6)
Stock-based compensation	26,313	21,793
Loss on foreign currency option hedge relating to CLE acquisition	14,278	—
Loss on impairment of NCDEX	—	9,276
Gain on sale of business	—	(719)
Deferred taxes	(12,163)	(15,140)
Excess tax benefits from stock-based compensation	(5,115)	(4,676)
Changes in assets and liabilities:		
Customer accounts receivable	(26,628)	(38,736)
Prepaid expenses and other current assets	(2,628)	3,918
Noncurrent assets	247	2,147
Income taxes payable	(3,396)	14,606
Accounts payable, accrued salaries and benefits, and other liabilities	3,611	(11,770)
Total adjustments	53,274	38,859
Net cash provided by operating activities	259,319	183,139
Investing activities		
Capital expenditures	(12,085)	(9,079)
Capitalized software development costs	(12,189)	(9,342)
Purchase of foreign currency option hedge relating to CLE acquisition	(15,080)	—
Cash paid for acquisitions, net of cash acquired	—	(39,419)
Proceeds from sales of cost method investments	—	2,389
Proceeds from sale of business	—	1,578
Proceeds from sales of available-for-sale investments	2,000	3,747
Purchases of available-for-sale investments	(1,999)	(26,092)
Increase in restricted cash	(634,421)	(55,474)
Net cash used in investing activities	(673,774)	(131,692)
Financing activities		
Proceeds from credit facilities	220,000	5,000
Repayments of credit facilities	(48,000)	(31,875)
Issuance costs for credit facilities	(7,485)	(10,306)
Excess tax benefits from stock-based compensation	5,115	4,676
Payments relating to treasury shares received for restricted stock and stock option tax payments	(7,980)	(7,777)
Payments on capital lease obligations	(1,484)	(1,719)
Proceeds from exercise of common stock options	9,820	7,975
Net cash provided by (used in) financing activities	169,986	(34,026)
Effect of exchange rate changes on cash and cash equivalents	(888)	(484)
Net increase (decrease) in cash and cash equivalents	(245,357)	16,937
Cash and cash equivalents, beginning of period	552,465	283,522
Cash and cash equivalents, end of period	\$ 307,108	\$ 300,459
Supplemental cash flow disclosure		
Cash paid for income taxes	\$ 119,475	\$ 90,480
Cash paid for interest	\$ 5,170	\$ 7,198
Supplemental noncash investment activities		
Common stock issued for acquisitions	\$ —	\$ 5,894
Equity of subsidiary issued for acquisition	\$ —	\$ 29,800

See accompanying notes.

IntercontinentalExchange, Inc. and Subsidiaries**Notes to Consolidated Financial Statements
(Unaudited)****1. Nature of Business and Organization**

IntercontinentalExchange, Inc. (the “Company”) is a leading operator of global regulated futures exchanges and over-the-counter (“OTC”) markets for commodities and derivative financial products. The Company owns ICE Futures Europe, which operates as a United Kingdom (“U.K.”) Recognized Investment Exchange for the purpose of price discovery, trading and risk management within the energy commodity futures and options markets. The Company owns ICE Futures U.S., Inc. (“ICE Futures U.S.”), which operates as a United States (“U.S.”) Designated Contract Market for the purpose of price discovery, trading and risk management within the agricultural commodity, equity index and currency futures and options markets. The Company owns ICE Futures Canada, Inc. (“ICE Futures Canada”), which operates as a Canadian derivatives exchange for the purpose of price discovery, trading and risk management within the agricultural futures and options markets. In addition to operating an OTC exempt commercial market for trading energy commodities and derivatives, the Company owns Creditex Group Inc. (“Creditex”), which operates in the OTC credit default swap (“CDS”) trade execution markets. The Company also owns and operates five central counterparty clearing houses, including ICE Clear U.S., Inc. (“ICE Clear U.S.”), ICE Clear Europe Limited (“ICE Clear Europe”), ICE Clear Canada, Inc. (“ICE Clear Canada”), The Clearing Corporation (“TCC”) and ICE Trust U.S. LLC (“ICE Trust”). Headquartered in Atlanta, Georgia, the Company also has offices in London, New York, Chicago, Houston, Calgary, Winnipeg, Washington, D.C. and Singapore.

2. Basis of Presentation

The accompanying unaudited consolidated financial statements have been prepared by the Company in accordance with U.S. generally accepted accounting principles pursuant to the rules and regulations of the Securities and Exchange Commission (“SEC”) regarding interim financial reporting. Accordingly, the unaudited consolidated financial statements do not include all of the information and footnotes required by U.S. generally accepted accounting principles for complete financial statements and should be read in conjunction with the Company’s audited consolidated financial statements and related notes thereto for the year ended December 31, 2009. The accompanying unaudited consolidated financial statements reflect all adjustments that are, in the opinion of the Company’s management, necessary for a fair presentation of results for the interim periods presented. These adjustments are of a normal recurring nature.

Preparing financial statements requires management to make estimates and assumptions that affect the amounts that are reported in the consolidated financial statements and accompanying disclosures. Although these estimates are based on management’s best knowledge of current events and actions that the Company may undertake in the future, actual results may be different from the estimates. The results of operations for the six months and three months ended June 30, 2010 are not necessarily indicative of the results to be expected for any future period or the full fiscal year.

The accompanying unaudited consolidated financial statements include the accounts of the Company and its wholly-owned and majority-owned subsidiaries. All intercompany balances and transactions between the Company and its wholly-owned and majority-owned subsidiaries have been eliminated in consolidation.

Certain prior period amounts have been reclassified to conform to the current period’s financial statement presentation. Acquisition-related transaction costs of \$6.1 million and \$529,000 were reclassified from professional services expenses in the accompanying consolidated statements of income for the six months and three months ended June 30, 2009, respectively.

In January 2010, the Financial Accounting Standards Board (“FASB”) issued Accounting Standards Update No. 2010-06, *Improving Disclosures about Fair Value Measurements (Topic 820) — Fair Value Measurements and Disclosures*, to add additional disclosures about the different classes of assets and liabilities measured at fair value, the valuation techniques and inputs used, the activity in Level 3 fair value measurements, and the transfers between Levels 1, 2, and 3. The Company adopted this guidance in January 2010, and adoption did not have a material impact on the Company’s consolidated financial statements. The portion of guidance relating to disclosures about purchases, sales, issuances and settlements in the Level 3 reconciliation are not effective until fiscal years beginning after December 15, 2010. The Company does not expect that the portion of this guidance not yet adopted will have a material impact on the Company’s consolidated financial statements.

Table of Contents

In February 2010, the FASB issued Accounting Standards Update No. 2010-09, *Subsequent Events (Topic 855) – Amendments to Certain Recognition and Disclosure Requirements*. This update defines an SEC filer and eliminates the requirement for an SEC filer to disclose the date through which subsequent events have been evaluated. This guidance became effective and was adopted by the Company in February 2010. The adoption did not have a material impact on the Company's consolidated financial statements.

3. Goodwill and Other Intangible Assets

The following is a summary of the activity in the goodwill balance for the six months ended June 30, 2010 (in thousands):

Goodwill balance at December 31, 2009	\$1,465,831
Other activity	(13,827)
Goodwill balance at June 30, 2010	<u>\$1,452,004</u>

The following is a summary of the activity in the other intangible assets balance for the six months ended June 30, 2010 (in thousands):

Other intangible assets balance at December 31, 2009	\$702,460
Amortization of other intangible assets	(31,462)
Other intangible assets balance at June 30, 2010	<u>\$670,998</u>

The other activity in the goodwill balance relates to adjustments to the purchase price and related goodwill for previous acquisitions, primarily relating to \$5.9 million in adjustments for excess tax benefits on share based payments and \$7.9 million in tax adjustments due to rate changes. The Company did not recognize any impairment losses on goodwill or other intangible assets during the six months or three months ended June 30, 2010 and 2009.

4. Credit Facilities

On March 31, 2010, the Company entered into new aggregate \$725.0 million three-year senior unsecured revolving credit facilities (the "New Revolving Credit Facilities") with Wells Fargo Bank, National Association ("Wells Fargo"), as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the lenders named therein.

The New Revolving Credit Facilities consist of (i) an aggregate \$575.0 million unsecured revolving U.S. dollar credit facility (the "Dollar Facility"), pursuant to which the Company may borrow, repay and reborrow up to \$575.0 million in U.S. dollars, and (ii) an aggregate \$150.0 million unsecured revolving multicurrency credit facility, pursuant to which the Company may borrow, repay and reborrow up to the equivalent of \$150.0 million in U.S. dollars, euros or pounds sterling, at the option of the Company (the "Multicurrency Facility"). The New Revolving Credit Facilities mature on March 31, 2013.

In connection with entering into the New Revolving Credit Facilities, on March 31, 2010, the Company terminated its then existing revolving credit facilities which provided for a \$300.0 million 364-day senior unsecured revolving credit facility that was scheduled to expire on April 9, 2010, and a \$100.0 million senior unsecured revolving credit facility that was scheduled to expire on April 9, 2012. Two existing term loan facilities, under which \$259.5 million in aggregate is outstanding as of June 30, 2010, are still outstanding.

Loans under the Dollar Facility and U.S. dollar only loans under the Multicurrency Facility would bear interest on the principal amount outstanding, at the option of the Company, at either (i) LIBOR plus an applicable margin rate or (ii) a "base rate" plus an applicable margin rate. Loans under the Multicurrency Facility that are not in U.S. dollars would bear interest on the principal amount outstanding at LIBOR plus an applicable margin rate. The "base rate" will be equal to the higher of (i) Wells Fargo's prime rate, (ii) the federal funds rate plus 0.50%, or (iii) the one month LIBOR rate plus 1.50%. The applicable margin rate ranges from 2.00% to 3.00% on the LIBOR loans and from 1.00% to 2.00% for the base rate loans, in each case based on the Company's total leverage ratio calculated on a trailing twelve month period.

Table of Contents

On April 29, 2010, the Company borrowed \$220.0 million under the New Revolving Credit Facilities, including \$174.0 million borrowed under the Dollar Facility and \$46.0 million borrowed under the Multicurrency Facility. The cash from the borrowings was used together with excess cash on hand for the Company's acquisition of Climate Exchange plc ("CLE") (Note 12). As of June 30, 2010, the Company has LIBOR-rate loans with a stated interest rate of 2.03% per annum, which includes the applicable margin rate, related to the \$220.0 million borrowed under the New Revolving Credit Facilities.

The closing of the New Revolving Credit Facilities increased the Company's deferred debt issuance costs to \$11.4 million as of June 30, 2010. The debt issuance costs are being amortized over the remaining life of the credit facilities, including \$2.9 million and \$1.3 million that was amortized during the six months and three months ended June 30, 2010, respectively. The Company will amortize \$2.6 million over the remaining six months in 2010 and \$4.7 million, \$3.4 million and \$757,000 in 2011, 2012 and 2013, respectively.

The New Revolving Credit Facilities include an unutilized revolving credit commitment fee that is equal to the unused maximum revolver amount multiplied by an applicable margin rate and is payable in arrears on a quarterly basis. The applicable margin rate ranges from 0.35% to 0.50% based on the Company's total leverage ratio calculated on a trailing twelve month period. Based on this calculation, the applicable margin rate was 0.35% as of June 30, 2010.

Of the amounts available under the New Revolving Credit Facilities, (i) up to \$150.0 million of such amounts has been reserved to provide liquidity for the clearing operations of ICE Clear Europe, (ii) up to \$100.0 million of such amounts has been reserved to provide liquidity for the clearing operations of ICE Trust, (iii) up to \$50.0 million of such amounts has been reserved to provide liquidity for the clearing operations of ICE Clear U.S., and (iv) up to \$3.0 million of such amounts has been reserved to provide liquidity for certain of the clearing operations of ICE Clear Canada. The remaining outstanding balances may be used by the Company for working capital and general corporate purposes.

With limited exceptions, the Company may prepay any outstanding loans under the New Revolving Credit Facilities and the two term loans outstanding, in whole or in part, without premium or penalty. The credit facilities contain affirmative and negative covenants, including, but not limited to, leverage and interest coverage ratios, as well as limitations or required notices or approvals for acquisitions, dispositions of assets and certain investments in subsidiaries, the incurrence of additional debt or the creation of liens and other fundamental changes to the Company's business. The Company has been and is currently in compliance with all applicable covenants.

The Company has entered into interest rate swap contracts to reduce its exposure to interest rate volatility on the two outstanding term loan facilities. The interest rate swaps are effective from December 31, 2009 through the maturity dates of the term loan facilities. The unrealized gain or loss is recognized in earnings when the designated interest expense under the term loans is recognized in earnings. The amounts received under the variable component of the swaps will fully offset the variable interest payments under the term loan facilities. With the two variable components offsetting, the net interest expense will equal the fixed interest component. The fair value of the interest rate swaps as of June 30, 2010 is (\$3.2 million), or (\$2.0 million) net of taxes, and is included in the accompanying balance sheet in non-current liabilities with the unrealized loss included under the equity section as accumulated other comprehensive loss from cash flow hedges. The Company realized \$2.2 million and \$1.1 million in additional interest expense as a result of the interest rate swap contracts during the six months and three months ended June 30, 2010, respectively. The portion of the unrealized loss expected to be reclassified into earnings within the next 12 months is not expected to be significant.

5. Stock-Based Compensation

The Company currently sponsors employee stock option and restricted stock plans. All stock options are granted at an exercise price equal to the fair value of the common stock on the date of grant. The grant date fair value is based on the closing stock price on the date of grant. The fair value of the stock options and restricted stock on the date of the grant is recognized as expense over the vesting period, net of estimated forfeitures. The non-cash compensation expenses recognized in the Company's consolidated statements of income for the stock options and restricted stock were \$26.3 million and \$21.8 million for the six months ended June 30, 2010 and 2009, respectively, and \$14.4 million and \$12.0 million for the three months ended June 30, 2010 and 2009, respectively.

Table of Contents

The following is a summary of stock options for the six months ended June 30, 2010:

		Weighted Average
	Number of Options	Exercise Price Per Option
Outstanding at December 31, 2009	1,871,028	\$ 47.68
Exercised	(385,300)	25.44
Forfeited or expired	(79,578)	49.05
Outstanding at June 30, 2010	1,406,150	53.69

Details of stock options outstanding as of June 30, 2010 are as follows:

	Number of Options	Weighted Average Exercise Price	Weighted Average Remaining Contractual Life (years)	Aggregate Intrinsic Value (In thousands)
Vested or expected to vest	1,402,674	\$ 53.65	6.21	\$ 90,168
Exercisable	1,098,811	\$ 44.96	5.57	\$ 80,600

The total intrinsic value of stock options exercised during the six months ended June 30, 2010 and 2009 was \$32.7 million and \$34.0 million, respectively, and was \$8.6 million and \$31.3 million during the three months ended June 30, 2010 and 2009, respectively. As of June 30, 2010, there were \$15.7 million in total unrecognized compensation costs related to stock options. These costs are expected to be recognized over a weighted average period of 1.8 years as the stock options vest.

In December 2009, the Company reserved a maximum of 381,110 restricted shares for potential issuance as performance-based restricted shares for certain Company employees. The number of shares granted under the performance awards will be based on the Company's performance targets set by the Company's compensation committee for the year ending December 31, 2010. These restricted shares are subject to a market condition that may reduce the number of shares that are granted above the target performance level if the 2010 Company total shareholder return falls below that of the S&P 500 Index. These shares vest over a three-year period. The compensation expenses to be recognized under these performance-based restricted shares are expected to be \$7.8 million if the Threshold Performance Target is met and 76,222 shares vest, \$15.6 million if the Target Performance Target is met and 152,444 shares vest, \$27.3 million if the Above Target Performance Target is met and 266,777 shares vest, and \$38.9 million if the Maximum Performance Target is met and 381,110 shares vest. Shares to be granted will be prorated on a straight-line basis between performance level targets. The Company will recognize expense on an accelerated basis over the three-year vesting period based on the Company's quarterly assessment of the probable 2010 actual performance as compared to the 2010 financial performance targets. If the market condition is not achieved, compensation cost will not be affected since the grant date fair value of the award gave consideration to the probability of market condition achievement. As of June 30, 2010, the Company determined that it is probable that a performance level between Target and Above Target will be met for 2010. The Company has recorded non-cash compensation expense of \$7.4 million and \$5.0 million for the six months and three months ended June 30, 2010, respectively, related to these shares. The remaining \$16.9 million in estimated non-cash compensation expense will be recorded on an accelerated basis over the remaining vesting period.

The following is a summary of the nonvested restricted shares for the six months ended June 30, 2010:

	Number of Restricted Stock Shares	Weighted Average Grant-Date Fair Value per Share
Nonvested at December 31, 2009	1,108,452	\$ 97.96
Granted	154,234	105.82
Vested	(234,245)	95.11
Forfeited	(48,324)	84.68
Nonvested at June 30, 2010	980,117	100.54

Restricted stock shares granted in the table above include both time-based and performance-based grants. Performance-based shares awarded in prior years have been adjusted to reflect the actual shares to be issued based on the achievement of past performance targets. Unvested performance-based restricted shares granted are presented in the table above at the maximum number of restricted shares that would vest if the maximum performance targets

Table of Contents

are met. As of June 30, 2010, there were \$54.5 million in total unrecognized compensation costs related to the time-based restricted stock and the performance-based restricted stock. These costs are expected to be recognized over a weighted average period of 2.1 years as the restricted stock vests. These unrecognized compensation costs assume that a performance level between Target and Above Target, as discussed above, will be met on the performance-based restricted shares granted in December 2009. During the six months ended June 30, 2010 and 2009, the total fair value of restricted stock vested under all restricted stock plans was \$24.8 million and \$15.7 million, respectively.

6. Income Taxes

The Company's effective tax rate decreased to 34% for the six months ended June 30, 2010 from 36% for the six months ended June 30, 2009 and to 34% for the three months ended June 30, 2010 from 39% for the three months ended June 30, 2009. The effective tax rate for the six months and three months ended June 30, 2010 is lower than the federal statutory rate primarily due to favorable foreign income tax rate differentials and tax credits, which are partially offset by state taxes and non-deductible expenses. The effective tax rate for the six months and three months ended June 30, 2009 is higher than the federal statutory rate primarily due to the tax impact of the \$9.3 million impairment loss related to the Company's investment in National Commodity and Derivatives Exchange, Ltd. ("NCDEX"), state taxes and non-deductible expenses, which are partially offset by favorable foreign income tax rate differentials and tax credits.

We have not recorded U.S. deferred taxes on the undistributed earnings of foreign subsidiaries that are deemed to be indefinitely reinvested in foreign jurisdictions. The undistributed earnings of the Company's foreign subsidiaries indefinitely reinvested totaled \$701.2 million and \$614.7 million as of June 30, 2010 and December 31, 2009, respectively. These earnings are not subject to U.S. income tax until they are distributed to the United States.

7. Clearing Organizations

ICE Clear U.S. performs the clearing and settlement of every futures and options contract traded through ICE Futures U.S., ICE Clear Canada performs the same function for every futures and options contract traded through ICE Futures Canada, ICE Trust performs the same function for North American CDS contracts and ICE Clear Europe performs the same function for every futures and options contract traded through ICE Futures Europe, as well as for all of the Company's cleared OTC energy contracts and cleared European CDS contracts. TCC performs clearing and settlement services to its participants for trades in futures contracts, options contracts and OTC transactions executed on various exchanges and marketplaces. ICE Clear U.S., ICE Clear Europe, ICE Clear Canada, ICE Trust and TCC are referred to herein collectively as the "ICE Clearing Houses".

Each of the ICE Clearing Houses requires all clearing members to maintain on deposit or pledge certain assets, which may include cash, government obligations, money market mutual fund shares, certificates of deposit, letters of credit, or emissions allowances to secure payment of risk-based margin as may become due and such amounts in total are known as original margin. The daily payment of profits and losses from and to the ICE Clearing Houses in respect of relevant contracts is known as variation margin. The ICE Clearing Houses mark all outstanding contracts to market, and therefore pays and collects variation margin, at least once daily, and in some cases throughout the day. Our Clearing Houses may make multiple intraday original margin calls in circumstances where market conditions require they take additional protection.

Each of the ICE Clearing Houses requires that each clearing member make deposits into a fund known as a guaranty or clearing fund ("Guaranty Fund"), which is maintained by the relevant ICE Clearing House. These amounts serve to secure the obligations of a clearing member to the ICE Clearing House to which it has made the Guaranty Fund deposits and may be used to cover losses sustained by the respective ICE Clearing House in the event of a default of a clearing member. For ICE Clear Canada, all income earned from investing clearing members' cash deposits in the Guaranty Fund and from the cash margin deposits, and for ICE Clear U.S., all income earned from investing clearing members' cash deposits in the Guaranty Fund and from the cash variation margin deposits, belongs to the respective ICE Clearing House and is included in interest income in the accompanying consolidated statements of income. All other interest earned on the cash margin deposits, less costs incurred by the ICE Clearing Houses, belongs to the clearing members. Pursuant to agreements, ICE Clear Europe currently pays energy clearing members all interest earned on their cash margin deposits plus an additional 115 basis points on cash deposits made to the Guaranty Fund and an additional 10 basis points for cash deposits made for original margin requirements. These additional basis point amounts paid to the energy clearing members are recorded net against other revenues in the accompanying consolidated statements of income.

Table of Contents

Each of the ICE Clearing Houses has equal and offsetting claims to and from their respective clearing members on opposite sides of each contract, standing as the central financial counterparty on every contract cleared. To the extent that funds are not otherwise available to satisfy an obligation under an applicable contract, each ICE Clearing House bears financial counterparty credit risk in the event that market movements create conditions that could lead to its clearing members failing to meet their obligations to that ICE Clearing House. Accordingly, the ICE Clearing Houses account for this central counterparty guarantee as a performance guarantee. Given that each contract is margined and settled on at least a daily basis for each clearing member, the ICE Clearing Houses' maximum exposure for this guarantee, excluding the risk management program discussed below, is \$27.8 billion as of June 30, 2010, which represents the maximum estimated value by the ICE Clearing Houses of a hypothetical one to five day movement in pricing of the underlying unsettled contracts. This amount is based on calculations determined using proprietary risk management software that simulates gains and losses based on historical market prices, volatility and other factors present at that point in time for those particular unsettled contracts. Future actual market price volatility could result in the exposure being significantly different than the amount estimated by the ICE Clearing Houses. The net notional value of the unsettled contracts was \$938.1 billion as of June 30, 2010.

The ICE Clearing Houses seek to reduce their exposure through a risk management program that includes initial and ongoing financial standards for clearing firm admission and ongoing membership, original and variation margin requirements, and mandatory deposits to the Guaranty Fund. As of June 30, 2010 and December 31, 2009, the ICE Clearing Houses have received or have been pledged \$38.6 billion and \$31.3 billion, respectively, in cash and non-cash collateral in original margin, variation margin, performance collateral for delivery and Guaranty Fund deposits to cover movements in the pricing of the underlying contracts. The ICE Clearing Houses also have powers of assessment that provide the ability to collect additional funds from their clearing members to cover a defaulting member's remaining obligations up to the limits established under the terms of each ICE Clearing House's rules.

Should a particular clearing member fail to deposit original margin, or to make a variation margin payment, when and as required, the relevant ICE Clearing House may liquidate or hedge the clearing member's open positions and use the clearing member's original margin and Guaranty Fund deposits to make up the amount owed. In the event that those deposits are not sufficient to pay that owed amount in full, the ICE Clearing Houses may utilize the respective Guaranty Fund deposits of all clearing members pro rata for that purpose. In addition, ICE Clear Europe and ICE Trust have contributed \$110.0 million and \$10.0 million, respectively, to their respective Guaranty Funds as of June 30, 2010.

As of June 30, 2010, original margin, unsettled variation margin, Guaranty Fund and performance collateral for delivery cash deposits are as follows for the ICE Clearing Houses (in thousands):

	ICE Clear					
	ICE Clear U.S.	ICE Clear Europe	Canada	ICE Trust	TCC	Total
Original margin	\$ 644,419	\$11,207,684	\$10,242	\$5,914,339	\$23,436	\$17,800,120
Variation margin	2,555	—	—	—	1,607	4,162
Guaranty Fund	11,872	2,368,504	5,559	3,665,212	9,578	6,060,725
Performance collateral for delivery	—	13,281	742	—	—	14,023
Total	\$ 658,846	\$13,589,469	\$16,543	\$9,579,551	\$34,621	\$23,879,030

The Company has recorded these cash deposits in the accompanying consolidated balance sheets as current assets with corresponding current liabilities to the clearing members of the relevant ICE Clearing House. All cash, securities and letters of credit are only available to meet the financial obligations of that clearing firm to the relevant ICE Clearing House. ICE Clear U.S., ICE Clear Europe, ICE Clear Canada, ICE Trust and TCC are separate legal entities and are not subject to the liabilities of the other ICE Clearing Houses or the obligations of the members of the other ICE Clearing Houses. The amount of these cash deposits may fluctuate due to the types of margin collateral choices available to clearing members and the change in the amount of deposits required. As a result, these assets and corresponding liabilities may vary significantly over time.

ICE Trust holds all of its cash deposits in the ICE Trust Federal Reserve account. As of June 30, 2010, this amount totaled \$9.6 billion. Of the ICE Clear Europe cash deposits above, \$12.7 billion represent funds invested under reverse repurchase agreements with several different counterparty banks, through a third party custodian

Table of Contents

bank. Under these arrangements, ICE Clear Europe primarily purchases U.S. Treasury securities and certain sovereign debt obligations (from the seven largest industrialized nations), and the various counterparties agree to purchase back the instruments on the set repurchase date at the set repurchase price, plus interest. In accordance with the ICE Clear Europe investment policy, maturities of these securities may not exceed one month and at least 50% of the investments must have a maturity of one business day. The remaining cash deposits are held in demand deposit accounts at various financial institutions.

In addition to the cash deposits for original margin, variation margin, and the Guaranty Fund made to the relevant ICE Clearing House, clearing members also pledge assets, including government obligations, money market mutual funds, certificates of deposit, letters of credit or emission allowances to the relevant ICE Clearing House to mitigate its credit risk. These assets are not reflected in the accompanying consolidated balance sheets as the ICE Clearing Houses do not take legal ownership of the assets as the risks and rewards remain with the clearing members. The ICE Clearing Houses have the ability to access the accounts where these assets are held at the financial institutions and depositories in the event of a clearing member default. These assets are held in safekeeping and any interest and gain or loss accrues to the clearing member. ICE Clear Europe pays energy clearing members all interest earned on their non-cash margin deposits plus an additional 50 basis points on non-cash deposits made to the Guaranty Fund and ICE Clear Europe charges energy clearing members 5 basis points for non-cash deposits made for original margin requirements. ICE Clear Europe pays CDS clearing members all interest earned on their non-cash margin deposits and charges CDS clearing members 5 basis points for all non-cash deposits, including original margin and Guaranty Fund requirements. The amounts paid to the clearing members are recorded net against revenue in the accompanying consolidated statements of income.

As of June 30, 2010, the non-cash assets pledged by the clearing members for ICE Clear U.S., ICE Clear Europe, ICE Clear Canada and TCC were \$8.9 billion, \$5.7 billion, \$37.2 million and \$75.1 million, respectively. As of June 30, 2010, there were only cash deposits and no assets were pledged for ICE Trust.

8. Russell Licensing Agreement

The Company has an exclusive licensing agreement (the “Licensing Agreement”) with the Russell Investment Group (“Russell”) to offer futures and options on futures contracts based on the full range of Russell’s benchmark U.S. equity indexes. These rights became exclusive on September 19, 2008, and subject to achieving specified trading volume for the various indexes, will remain exclusive throughout the remainder of the Licensing Agreement through June 2014.

In exchange for the license rights, the Company paid Russell \$50.0 million in 2007 and will also make annual cash payments based on the annual contract trade volumes, subject to certain minimum annual royalty payments. The Company has recorded the license rights as intangible assets, which were valued based on the net present value of all minimum annual royalty payments that the Company is required to make to Russell throughout the term of the agreement. As of June 30, 2010 and December 31, 2009, the net assets related to the Licensing Agreement are \$103.6 million and \$116.6 million, respectively, and are included in other intangible assets in the accompanying consolidated balance sheets. The intangible assets are being amortized over their contractual life. For both the six months ended June 30, 2010 and 2009, amortization expense related to the Licensing Agreement was \$13.0 million, and for both the three months ended June 30, 2010 and 2009, amortization expense was \$6.5 million.

The Company currently believes that the projected cash flows from the Russell contracts will be greater than the current carrying value of the intangible assets and no impairment has occurred. The Company will continue to monitor the intangible assets if events or changes in circumstances indicate that the carrying amount may not be fully recoverable.

9. Fair Value Measurements

The Company’s financial instruments consist primarily of cash and cash equivalents, short-term and long-term restricted cash, short-term and long-term investments, customer accounts receivable, margin deposits and guaranty funds, cost method investments, short-term and long-term debt and other short-term assets and liabilities. The fair value of our financial instruments are measured based on a three-level hierarchy:

- Level 1 inputs — quoted prices for identical assets or liabilities in active markets.

Table of Contents

- Level 2 inputs — observable inputs other than Level 1 inputs such as quoted prices for similar assets and liabilities in active markets or inputs other than quoted prices that are directly observable.
- Level 3 inputs — unobservable inputs supported by little or no market activity and that are significant to the fair value of the assets or liabilities.

In general, the Company uses Level 1 and 2 inputs to determine the fair value of investments. The Level 1 investments include U.S. Treasury securities and equity securities. If quoted prices are not available to determine fair value, the Company uses other inputs that are observable either directly or indirectly. The Company determined the fair value of the interest rate swap contracts using Level 2 inputs, consisting of standard valuation models that are based on market-based observable inputs including interest rate curves. The fair value of interest rate swap contracts is included in other noncurrent liabilities in the accompanying consolidated balance sheet as of June 30, 2010. All other financial instruments are determined to approximate carrying value due to the short period of time to their maturities.

Financial assets and liabilities recorded in the accompanying consolidated balance sheet as of June 30, 2010 are classified in their entirety based on the lowest level of input that is significant to the asset or liability's fair value measurement. Financial instruments measured at fair value on a recurring basis as of June 30, 2010 are as follows (in thousands):

	Level 1	Level 2	Level 3	Total
Assets at fair value:				
Short-term investments:				
U.S. Treasury securities	\$ 2,000	\$ —	\$ —	\$ 2,000
Equity securities	5	—	—	5
Total short-term investments	2,005	—	—	2,005
Foreign currency option contract	—	802	—	802
Long-term investments in equity securities	25,499	—	—	25,499
Total assets at fair value	<u>\$27,504</u>	<u>\$ 802</u>	<u>\$ —</u>	<u>\$28,306</u>
Liabilities at fair value:				
Interest rate swap contracts	<u>\$ —</u>	<u>\$3,152</u>	<u>\$ —</u>	<u>\$ 3,152</u>

The Company entered into a foreign currency option hedge on May 3, 2010 related to the cash consideration that was paid to acquire CLE, in order to mitigate the risk of currency fluctuations between the announcement and closing of the acquisition as the cash consideration was being held in U.S. dollars and it was required to be paid in pounds sterling. The foreign currency option hedge was not designated and does not qualify as a hedging instrument. The foreign currency hedge included an upfront \$15.1 million option premium. The fair value of the option as of June 30, 2010 is \$802,000, which is included in other current assets, resulting in a loss of \$14.3 million recorded through other expense in the accompanying consolidated statements of income for the six months and three months ended June 30, 2010. The \$802,000 value was recognized as a loss in the July 2010 consolidated statement of income upon the termination of the hedge. The Company used a Level 2 input to determine the fair value of the foreign currency option hedge.

The Company did not use Level 3 inputs to determine the fair value of assets or liabilities measured at fair value on a recurring basis during the six months and three months ended June 30, 2010. The Company measures certain assets, such as intangible assets, at fair value on a non-recurring basis. These assets are recognized at fair value if they are deemed to be impaired. During the six months and three months ended June 30, 2010, there were no assets that were required to be recorded at fair value since no impairment indicators were present.

10. Segment Reporting

The Company's principal business segments consist of its global OTC segment, its futures segment and its market data segment. The operations of ICE Futures Europe, ICE Futures U.S. and ICE Futures Canada, and the respective clearing of the futures contracts that trade at each of these exchanges, make up the futures segment and the operations of ICE Data make up the market data segment. The remaining companies and operations have been

Table of Contents

included in the global OTC segment as they primarily support the Company's OTC business operations. Intersegment revenues and transactions attributable to the performance of services are recorded at cost plus an agreed market percentage intercompany profit. Intersegment revenues attributable to licensing transactions have been priced in accordance with comparable third party agreements. Financial data for the Company's business segments are as follows:

	<u>Global OTC Segment</u>	<u>Futures Segment</u>	<u>Market Data Segment</u>	<u>Total</u>
	<u>(In thousands)</u>			
Six Months Ended June 30, 2010:				
Revenues from external customers	\$ 291,623	\$ 255,477	\$30,675	\$ 577,775
Intersegment revenues	33,549	15,363	16,519	65,431
Depreciation and amortization	39,745	16,304	79	56,128
Interest and investment income	551	394	121	1,066
Interest expense	11,271	3,341	—	14,612
Income tax expense	41,494	53,931	11,081	106,506
Net income attributable to IntercontinentalExchange, Inc.	62,909	119,270	20,672	202,851
Total assets	12,461,924	14,958,216	29,741	27,449,881

Revenues from three clearing members of the futures segment comprised 18%, 12% and 11% of the Company's futures revenues for the six months ended June 30, 2010. The primary function of these clearing members is as intermediaries representing a broad range of principal trading firms. If a clearing member ceased its operations, the Company believes that the trading firms would continue to conduct transactions and would clear those transactions through another clearing member firm. No additional members or customers accounted for more than 10% of the Company's segment revenues or consolidated revenues for the six months ended June 30, 2010.

	<u>Global OTC Segment</u>	<u>Futures Segment</u>	<u>Market Data Segment</u>	<u>Total</u>
	<u>(In thousands)</u>			
Six Months Ended June 30, 2009:				
Revenues from external customers	\$251,303	\$203,017	\$27,650	\$481,970
Intersegment revenues	24,592	14,979	16,758	56,329
Depreciation and amortization	37,270	17,541	71	54,882
Interest and investment income	182	742	30	954
Interest expense	8,095	4,065	—	12,160
Income tax expense	25,789	48,682	8,147	82,618
Net income attributable to IntercontinentalExchange, Inc.	43,672	81,730	18,878	144,280

Revenues from four clearing members of the futures segment comprised 16%, 16%, 14% and 12% of the Company's futures revenues for the six months ended June 30, 2009. No additional members or customers accounted for more than 10% of the Company's segment revenues or consolidated revenues for the six months ended June 30, 2009.

	<u>Global OTC Segment</u>	<u>Futures Segment</u>	<u>Market Data Segment</u>	<u>Total</u>
	<u>(In thousands)</u>			
Three Months Ended June 30, 2010:				
Revenues from external customers	\$149,743	\$130,808	\$15,604	\$296,155
Intersegment revenues	18,775	7,679	8,188	34,642
Depreciation and amortization	19,742	8,133	39	27,914
Interest and investment income	113	164	63	340
Interest expense	5,943	1,559	—	7,502
Income tax expense	19,220	28,047	6,022	53,289
Net income attributable to IntercontinentalExchange, Inc.	37,826	54,109	9,753	101,688

Table of Contents

Revenues from three clearing members of the futures segment comprised 18%, 12% and 11% of the Company's futures revenues for the three months ended June 30, 2010. No additional members or customers accounted for more than 10% of the Company's segment revenues or consolidated revenues for the three months ended June 30, 2010.

	<u>Global OTC Segment</u>	<u>Futures Segment</u>	<u>Market Data Segment</u>	<u>Total</u>
	(In thousands)			
Three Months Ended June 30, 2009:				
Revenues from external customers	\$131,722	\$105,039	\$13,656	\$250,417
Intersegment revenues	12,939	7,327	8,320	28,586
Depreciation and amortization	19,111	8,432	36	27,579
Interest and investment income	104	223	17	344
Interest expense	4,719	2,187	—	6,906
Income tax expense	13,604	28,563	3,597	45,764
Net income attributable to IntercontinentalExchange, Inc.	23,367	38,808	9,883	72,058

Revenues from two clearing members of the futures segment comprised 18% and 15% of the Company's futures revenues for the three months ended June 30, 2009. No additional members or customers accounted for more than 10% of the Company's segment revenues or consolidated revenues for the three months ended June 30, 2009.

11. Earnings Per Common Share

The following is a reconciliation of the numerators and denominators of the basic and diluted earnings per common share computations for the six months and three months ended June 30, 2010 and 2009:

	<u>Six Months Ended June 30,</u>		<u>Three Months Ended June 30,</u>	
	<u>2010</u>	<u>2009</u>	<u>2010</u>	<u>2009</u>
	(In thousands, except per share amounts)			
Basic:				
Net income attributable to IntercontinentalExchange, Inc.	<u>\$202,851</u>	<u>\$144,280</u>	<u>\$101,688</u>	<u>\$72,058</u>
Weighted average common shares outstanding	<u>73,818</u>	<u>72,759</u>	<u>73,960</u>	<u>72,892</u>
Basic earnings per common share	<u>\$ 2.75</u>	<u>\$ 1.98</u>	<u>\$ 1.37</u>	<u>\$ 0.99</u>
Diluted:				
Weighted average common shares outstanding	<u>73,818</u>	<u>72,759</u>	<u>73,960</u>	<u>72,892</u>
Effect of dilutive securities:				
Stock options and restricted shares	<u>827</u>	<u>1,059</u>	<u>803</u>	<u>1,182</u>
Diluted weighted average common shares outstanding	<u>74,645</u>	<u>73,818</u>	<u>74,763</u>	<u>74,074</u>
Diluted earnings per common share	<u>\$ 2.72</u>	<u>\$ 1.95</u>	<u>\$ 1.36</u>	<u>\$ 0.97</u>

Basic earnings per common share is calculated using the weighted average common shares outstanding during the period. Common equivalent shares from stock options and restricted stock awards, using the treasury stock method, are also included in the diluted per share calculations unless their effect of inclusion would be antidilutive. During the six months ended June 30, 2010 and 2009, 227,000 and 151,000 outstanding stock options, respectively, were not included in the computation of diluted earnings per common share, because to do so would have had an antidilutive effect because the outstanding stock option exercise prices were greater than the average market price of the common shares during the relevant periods.

12. Subsequent Events

On April 30, 2010, the Company announced that it had agreed to acquire Climate Exchange plc ("CLE"), a leader in the development of traded emissions markets. CLE operates the European Climate Exchange ("ECX"), the Chicago Climate Exchange ("CCX") and the Chicago Climate Futures Exchange ("CCFE"). On July 8, 2010, the Company completed the acquisition of CLE. The Company previously owned a 4.8% stake in CLE that it purchased in June 2009 for £6.45 (pounds sterling) per share.

Table of Contents

Under the terms of the acquisition, CLE shareholders received £7.50 in cash for each share in CLE, valuing the issued and to be issued share capital of CLE at £393.4 million, or \$597.2 million, including £17.1 million, or \$25.9 million, in shares that were held by the Company at the date of the acquisition. The Company recognized a gain of \$1.8 million at the date of the acquisition based upon its existing 4.8% stake in CLE, which was recorded as other income in the July 2010 consolidated statement of income.

The transaction consideration included \$220.0 million that was drawn from the New Revolving Credit Facilities for these purposes (Note 4) and the remainder came from existing cash resources of the Company. During the second quarter of 2010 and prior to the closing of the acquisition on July 8, 2010, the Company was required by U.K. law to put \$632.1 million into escrow accounts relating to the CLE acquisition and this cash is reflected as restricted cash in the accompanying consolidated balance sheet as of June 30, 2010. The \$34.9 million in excess cash in the escrow accounts were reclassified to cash and cash equivalents after the closing of the acquisition on July 8, 2010.

The Company and its affiliates have multiple contracts in place with CLE and its affiliates to provide technology and clearing services, which were put in place beginning in 2003. These contracts include a cooperation and licensing agreement to provide an electronic trading platform and clearing to ECX for European emissions trading, a licensing technology agreement to provide an electronic trading platform to CCX and CCFE for U.S. emissions trading and a clearing services agreement to provide clearing for CCX and CCFE's U.S. emissions markets. Pursuant to these contracts, the Company previously charged fees to CLE for the services provided and shared in the revenues with respect to the trading and clearing of emissions contracts.

The Company will record the acquisition using the acquisition method of accounting and, accordingly, will allocate the purchase price to the assets acquired and liabilities assumed based on their estimated fair market value at the date of acquisition. The Company has not yet obtained all the information related to the fair value of acquired assets and acquisition liabilities related to the acquisition to finalize the purchase price allocation.

The Company has evaluated subsequent events and determined that other than the item discussed above, no events or transactions met the definition of a subsequent event for purposes of recognition or disclosure in the accompanying consolidated financial statements.

Item 2. Management's Discussion and Analysis of Financial Condition and Results of Operations

This Quarterly Report on Form 10-Q, including the sections entitled "Notes to Consolidated Financial Statements", "Legal Proceedings" and "Management's Discussion and Analysis of Financial Condition and Results of Operations", contains "forward-looking statements" as defined in the Private Securities Litigation Reform Act of 1995 that are based on our present beliefs and assumptions and on information currently available to us. You can identify forward-looking statements by terminology such as "may," "will," "should," "could," "would," "targets," "goal," "expect," "intend," "plan," "anticipate," "believe," "estimate," "predict," "potential," "continue," or the negative of these terms or other comparable terminology. These statements relate to future events or our future financial performance and involve risks, uncertainties and other factors that may cause our actual results, levels of activity, performance or achievements to differ materially from those expressed or implied by these forward-looking statements. These risks and other factors include those set forth under the heading "Risk Factors" in our Annual Report on Form 10-K for the year ended December 31, 2009.

Forward-looking statements and other risks and factors that may affect our performance include, but are not limited to: our business environment and trends in our industry; general economic conditions and conditions in global financial markets; increasing competition and consolidation in our industry; volatility in commodity prices; our ability to identify and effectively pursue acquisitions and strategic alliances and successfully integrate the companies we acquire; minimizing the risks associated with operating multiple clearing houses in multiple jurisdictions; changes in domestic and foreign regulations or government policy; the success of our clearing initiative for the credit default swap market; the success of our global clearing strategy; technological developments, including clearing developments; the accuracy of our cost estimates and expectations; our belief that cash flows will be sufficient to fund our working capital needs and capital expenditures at least through the end of 2011; our ability to increase the connectivity to our marketplace; our ability to develop new products and services and pursue strategic acquisitions and alliances on a timely, cost-effective basis; maintaining existing market participants and attracting new ones; protecting our intellectual property rights; not violating the intellectual property rights of others; threatened or pending litigation and adverse litigation results; our belief in our electronic platform and disaster recovery system technologies; and our ability to gain access to comparable products and services if our key technology contracts were terminated. We caution you not to place undue reliance on these forward-looking statements as they speak only as of the date on which such statements were made, and we undertake no obligation to update any forward-looking statement or to reflect the occurrence of an unanticipated event. New factors emerge from time to time, and it is not possible for management to predict all factors that may affect our business and prospects. Further, management cannot assess the impact of each factor on the business or the extent to which any factor, or combination of factors, may cause actual results to differ materially from those contained in any forward-looking statements.

In this Quarterly Report on Form 10-Q, unless otherwise indicated, the terms "IntercontinentalExchange", "ICE", "we", "us", "our", "our company" and "our business" refer to IntercontinentalExchange, Inc., together with its consolidated subsidiaries. Due to rounding, figures may not sum exactly.

Overview and Our Business Environment

We are a leading operator of regulated global futures exchanges, over-the-counter, or OTC, markets and derivatives clearing houses. We operate the leading electronic futures and OTC marketplace for trading and clearing a broad array of energy and agricultural commodities, credit default swaps, or CDS, equity indexes and foreign exchange contracts. Currently, we are the only marketplace to offer an integrated electronic platform for side-by-side trading of products in both futures and OTC markets, together with post-trade processing and clearing services. Through our widely-distributed electronic markets, we bring together buyers and sellers of derivative and physical commodities and financial contracts and offer a range of services to support our participants' risk management and trading activities.

We conduct our regulated U.K.-based energy futures exchange through our wholly-owned subsidiary, ICE Futures Europe. We conduct our regulated U.S.-based futures exchange through our wholly-owned subsidiary, ICE Futures U.S. We conduct our regulated Canadian futures exchange through our wholly-owned subsidiary, ICE Futures Canada. We conduct our OTC energy markets primarily through our OTC exempt commercial market. ICE Futures Europe, as well as our OTC energy and European CDS markets, clears contracts through ICE Clear Europe,

Table of Contents

ICE Futures U.S. clears its contracts through ICE Clear U.S. and ICE Futures Canada clears its contracts through ICE Clear Canada. We conduct our OTC CDS trade execution markets through Creditex and clear our OTC North American CDS markets through ICE Trust.

Our business is primarily transaction-based, and our revenues and profitability relate directly to the level of trading activity in our markets. Trading volume is driven by a number of factors, including the degree of price volatility of commodities and financial instruments such as equity indexes and foreign exchange, as well as economic conditions, new product introductions, fees, regulation of our markets and market participants, and competition. Price volatility increases the need to hedge price risk and creates opportunities for the exchange of risk between market participants. Changes in our futures trading volume and OTC average daily commissions are also driven by varying levels of volatility and liquidity in our markets and in the broader commodities markets, which influence trading volume across all of the markets we operate.

Since our business is primarily transaction-based, declines in trading volumes and market liquidity could adversely affect our business and profitability. Market liquidity is one of the primary keys to attracting and maintaining customers and is an important indicator of a market's strength.

We operate our futures and OTC markets primarily on our electronic platform and we offer ICE Futures U.S.'s options markets on both our electronic platform and our New York-based trading floor. We also operate certain of our OTC markets through voice brokering.

Financial Highlights

- Our consolidated revenues increased 20% to \$577.8 million for the six months ended June 30, 2010, compared to the same period in 2009, and increased 18% or \$296.2 million for the three months ended June 30, 2010, compared to the same period in 2009. Revenue growth was primarily due to higher trading volume in the ICE Brent Crude and ICE Gas Oil futures contracts, OTC North American natural gas, power and global oil contracts, and an increase in CDS clearing revenues.
- Our consolidated operating expenses increased 1% to \$235.7 million for the six months ended June 30, 2010, compared to the same period in 2009, and increased 2% to \$117.9 million for the three months ended June 30, 2010, compared to the same period in 2009. Our compensation and benefits expenses increased \$6.8 million for the six months ended June 30, 2010 from the comparable period in 2009 and increased \$3.3 million for the three months ended June 30, 2010 from the comparable period in 2009 primarily due to employee headcount increases and an increase in non-cash compensation expenses. We incurred \$2.0 million and \$1.5 million in transaction costs primarily relating to our acquisition of the Climate Exchange plc, or CLE, during the six months and three months ended June 30, 2010, respectively, compared to \$5.6 million and \$529,000 in transaction costs incurred related to our acquisition of The Clearing Corporation, or TCC, during the six months and three months ended June 30, 2009, respectively.
- Our consolidated operating margin increased to 59% for the six months ended June 30, 2010, compared to 52% for the same period in 2009, and increased to 60% for the three months ended June 30, 2010, compared to 54% for the same period in 2009.
- Our consolidated net income attributable to ICE increased 41% to \$202.9 million for the six months ended June 30, 2010, compared to the same period in 2009, and increased 41% to \$101.7 million for the three months ended June 30, 2010, compared to the same period in 2009. We recorded a pre-tax loss of \$14.3 million during the six months and three months ended June 30, 2010 on our foreign currency option hedge relating to the pounds sterling cash consideration paid to acquire CLE, or \$10.3 million net of taxes. We recorded a pre-tax impairment loss of \$9.3 million during the six months and three months ended June 30, 2009 relating to our investment in the National Commodity and Derivatives Exchange, Ltd, or NCDEX, or \$11.0 million net of taxes. The foreign currency option loss and the impairment loss were classified as other expenses in our consolidated statements of income.
- Our consolidated cash flows from operations increased 42% to \$259.3 million for the six months ended June 30, 2010, compared to the same period in 2009.
- During the six months ended June 30, 2010, 166.4 million contracts were traded in our futures markets, up 31% from 127.3 million contracts traded during the six months ended June 30, 2009. During the six months

Table of Contents

ended June 30, 2010, 166.7 million contract equivalents were traded in our OTC energy markets, up 60% from 104.2 million contract equivalents traded during the six months ended June 30, 2009. During the three months ended June 30, 2010, 87.7 million contracts were traded in our futures markets, up 36% from 64.7 million contracts traded during the three months ended June 30, 2009. During the three months ended June 30, 2010, 87.7 million contract equivalents were traded in our OTC energy markets, up 58% from 55.7 million contract equivalents traded during the three months ended June 30, 2009.

Regulatory Update

On July 21, 2010, President Obama signed into law the Dodd/Frank Wall Street Reform and Consumer Protection Act, or the Financial Reform Act. The Financial Reform Act is intended to reduce the risk of future financial crises and will make major changes to the U.S. financial regulatory system. The Financial Reform Act gives the Commodity Futures Trading Commission, or CFTC, together with the Securities and Exchange Commission, or SEC, expansive authority over the OTC derivatives market and market participants, and provides the Federal Reserve Bank with authority over systemically important financial entities. Through extensive rulemaking authority under the Financial Reform Act, the CFTC and SEC will create a comprehensive new regulatory regime for OTC derivative markets and market participants that is intended to provide more transparency and stability to the OTC derivatives market. Key changes to the derivatives market include: (i) requiring clearing and centralized trading of most types of derivatives (with limited exceptions) and imposing aggregate position limits across markets on traded derivatives, (ii) imposing additional margin and capital requirements on cleared and uncleared derivatives, (iii) prohibiting proprietary trading in certain derivative instruments by some regulated financial institutions (known as the “Volcker Rule”), (iv) prohibiting certain swap market participants from receiving federal assistance, a change that may force energy, agricultural, high yield credit default swaps and other contracts to be “pushed out” of insured banks into separately capitalized affiliates, (v) establishing a comprehensive framework for the registration and regulation of dealers and “major” non-dealer market participants, and (vi) giving the CFTC broad power to draft rules setting specific requirements under the core principles applicable to designated contract markets and derivatives clearing organizations, thus altering the flexibility these entities currently have to determine how to operate their business in compliance with the core principles.

Our markets operated transparently and efficiently during the financial crisis and the new requirements to centrally execute and clear OTC swaps is consistent with our existing OTC business model, thereby providing us with potential new business opportunities. However, our OTC energy platform will have to register with the CFTC as a swap execution facility, or SEF, and will be regulated similarly to a designated contract market that is regulated by the CFTC. Our OTC energy platform already meets many of the SEF obligations through our compliance with the significant price discovery contract provisions of the 2008 Farm Bill with respect to certain of our contract markets. However, other contracts traded on our energy trading platform will have to be operated differently as a SEF, and other sectors of our business, including Creditex, our CDS platform; Chatham Energy, our OTC energy options brokerage; and YellowJacket, our electronic energy options platform, may have to be registered as SEFs. As a result of this additional regulation, registering as a SEF for these business sectors could increase the cost of regulation to which these markets are subject, which could cause them to be less attractive to market participants.

In addition, the Financial Reform Act has an open access provision that would require a clearing house to accept swaps that originate from any SEF if the clearing house already accepts the swap for clearing. We currently have a vertically integrated model in which we only clear swaps that are executed on our OTC platform and have the power to determine who clears OTC swaps at our clearing houses. Depending on implementation of the Financial Reform Act by regulators, the open access provisions could diminish the value of our OTC swaps execution platform.

The Financial Reform Act also will make changes to the regulatory requirements of our market participants, including large market participants such as investment banks and hedge funds. For example, some of our participants will have to register as swaps dealers or major swaps participants, and certain clearing members of our ICE Trust clearing house may have to register as futures commission merchants, or FCM's. Registration as a swaps dealer or major swaps participant will result in much more regulation of these entities, including higher capital and margin requirements and greater business conduct standards. They will also be required to segregate clients' or counterparties' margin in a manner similar to the segregation of futures margin. In addition, the Volcker Rule and swaps push out provisions may cause our market participants to make major changes to their businesses, including,

Table of Contents

in some cases, the potential termination of some trading activities. Given the higher regulatory requirements, participants could migrate away from transacting in swaps to other derivatives, such as futures, that will not subject them to the more stringent regulatory requirements. The Financial Reform Act will also make changes to the current anti-manipulation provisions of the Commodity Exchange Act. Currently, the CFTC must prove “specific intent” to prove manipulation, but the Financial Reform Act allows the CFTC to prove manipulation under a lower “reckless” standard. This could create uncertainty for our market participants. Any of the above actions could adversely impact our OTC swaps business.

The Financial Reform Act also imposes changes on portions of our business operated outside the United States. With respect to the ICE Futures Europe and ICE Futures Canada products, we have permission to allow screen-based access to the United States pursuant to a no action letter from the CFTC. Pursuant to the Financial Reform Act, the CFTC will be able to require foreign exchanges, such as ICE Futures Europe and ICE Futures Canada, to register with the CFTC and be subject to direct regulation in the United States. While we expect that the registration process will impose obligations similar to the obligations currently imposed under the informal “no-action” process, direct regulation of our non-U.S. exchanges by U.S. regulators may prove to be unattractive for certain of our market participants due to the additional costs, and greater oversight, associated with such regulation.

The Financial Reform Act requires the CFTC to set position limits on energy commodities within 180 days of enactment to prevent “excessive speculation.” Traditionally, for energy commodity contracts, exchanges have set position limits (“hard” limits that apply in the final days of trading of the expiration month) and position accountability levels (“soft” limits that apply at all other times in all other months) for the purpose of preventing market manipulation such as corners (securing control of a commodity to manipulate the price of the commodity) and delivery squeezes (a situation where the lack of physical commodity supply tends to force a person holding a short position to cover their position at higher prices). In addition, the Financial Reform Act changes the definition of “bona fide hedging” that is required to obtain a “hedge exemption” from these position limits, which may curtail the ability of certain of our participants to hold larger positions in our markets. While position limits currently apply to our U.S.-linked contracts traded on ICE Futures Europe and to our OTC contracts deemed to be significant price discovery contracts, should the CFTC set the position limits and limit hedge exemptions in a manner that unduly limits the hedging or trading ability of our participants, trading volume may shift away from our markets to areas outside the present jurisdictional reach of the CFTC and trading volumes in our markets may be adversely impacted.

The Financial Reform Act also contains provisions for public reporting of swaps transaction data. We currently sell our OTC energy data to market participants. Depending on how the CFTC implements this provision of the Financial Reform Act, public reporting of OTC transaction data, such as pricing information, could negatively impact our market data revenue.

With the exception of the position limit rules, most provisions of the Financial Reform Act do not become effective for one year, and the Financial Reform Act leaves significant discretion on implementation to regulators such as the CFTC and the SEC. In most cases, the regulators will have up to one year to draft rules and regulations implementing the Financial Reform Act, but given the volume of new regulations that will need to be promulgated, it may take longer to finalize all rules and regulations. In connection with implementation of new rules, market participants will likely then have additional time to conform to the new rules and regulations depending on the requirement of individual provisions. We expect to incur additional costs to make the necessary changes to our business to comply with the Financial Reform Act.

Acquisition of CLE

On April 30, 2010, we announced that we had agreed to acquire CLE, a leader in the development of traded emissions markets. CLE operates the European Climate Exchange, the Chicago Climate Exchange and the Chicago Climate Futures Exchange. On July 8, 2010, we completed our acquisition of CLE.

Under the terms of the acquisition, CLE shareholders received £7.50 (pounds sterling) in cash for each share in CLE, valuing the entire existing issued and to be issued share capital of CLE at £393.4 million, or \$597.2 million. The transaction consideration included \$220.0 million that was drawn from our revolving credit facilities for these purposes and the remainder came from our existing cash resources. We previously owned a 4.8% stake in CLE that we purchased in June 2009 for £6.45 per share.

Table of Contents

Variability in Quarterly Comparisons

In addition to general economic conditions and conditions in the financial markets, particularly the commodities markets, trading volume is subject to variability due to a number of key factors. These factors include geopolitical events, weather, real and perceived supply and demand imbalances, regulatory considerations, availability of capital, the number of trading days in a period and seasonality. These and other factors could cause our revenues to fluctuate from quarter to quarter. These fluctuations may affect the reliability of quarter to quarter comparisons of our revenues and operating results.

Segment Reporting

Our business is currently divided into three segments: our futures segment, our global OTC segment and our market data segment. In our futures markets, we offer trading in standardized derivative contracts on our regulated exchanges. In our OTC markets, which include energy markets and credit derivatives, we offer both electronic trading and voice brokering services. Through our market data segment, we offer a variety of market data services and products for both futures and OTC market participants and observers. For a discussion of these segments and related financial disclosure, refer to Note 10 to our consolidated financial statements and related notes included elsewhere in this Quarterly Report on Form 10-Q.

Intersegment Fees

Intersegment fees include charges for developing, operating, managing and supporting the platform for electronic trading and clearing in our futures segment. Our global OTC segment provides and supports the platform for electronic trading and clearing in our futures segment. Our futures segment and our global OTC segment provide access to trading data to our market data segment. Our market data segment provides marketing and other promotional services to our global OTC segment. These internal charges are reflected as intersegment revenues and expenses. We determine the intercompany or intersegment fees to be paid by the business segments based on transfer pricing standards and independent documentation. These intersegment fees have no impact on our consolidated operating results. We expect the structure of these intersegment fees to remain unchanged and expect that they will continue to have no impact on our consolidated operating results.

Our Futures Segment

The following table presents selected statement of income data in dollars and as a percentage of revenues for our futures segment:

	Six Months Ended June 30,			
	2010	%	2009	%
(Dollar amounts in thousands)				
Revenues:				
Transaction and clearing fees, net:				
ICE Brent Crude futures(1)	\$ 73,142	27%	\$ 53,726	24%
ICE WTI Crude futures	25,544	10	24,112	11
ICE Gas Oil futures(1)	38,600	14	25,943	12
Sugar futures and options	39,599	15	38,797	18
Cotton futures and options(2)	9,452	3	6,730	3
Russell Index futures and options	16,457	6	15,604	7
Other futures products and options(3)	49,597	18	38,790	18
Intersegment fees	15,363	6	14,979	7
Other(4)	3,086	1	(684)	—
Total revenues	270,840	100	217,997	100
Operating expenses:				
Selling, general and administrative expenses(5)(6)	36,677	14	42,353	19
Intersegment expenses	27,108	10	23,579	11
Depreciation and amortization	16,304	6	17,541	8
Total operating expenses	80,089	30	83,473	38
Operating income	190,751	70	134,524	62
Other expense, net(7)	17,550	6	4,112	2
Income tax expense	53,931	20	48,682	22
Net income	\$119,270	44%	\$ 81,730	38%

- (1) Revenues in our ICE Brent Crude and ICE Gas Oil futures markets increased due to several factors, including relatively higher economic growth outside of the United States that benefited trading in our global oil markets and storage issues in the competing West Texas Intermediate, or WTI, crude contract which drove more demand for the Brent crude contract. Our gas oil contract gained liquidity due to its increasing role as a key refined products benchmark in Europe and Asia, as well as increased liquidity in the related Brent market.

Table of Contents

- (2) The cotton market has steadily improved since early 2009, during which time cotton volumes were down dramatically from prior periods due to a significant reduction in global exports and in the U.S. production of cotton. Improved credit conditions, as well as increased production and market liquidity, have also helped many traditional hedgers to return to the agricultural markets.
- (3) The increase in other futures and options is primarily due to increased trading volumes in our emissions, coal and U.S. Dollar Index futures and options contracts.
- (4) The increase in other revenues is primarily due to less interest income being paid to ICE Clear Europe clearing members during the current period as a result of fluctuations in the amounts and types of margin collateral made by the clearing members to ICE Clear Europe and an increase in cotton certification fees associated with our increased cotton volume during the current period. Interest paid to the clearing members for margin deposits at ICE Clear Europe are recorded as a reduction to other revenues.
- (5) Includes compensation and benefits expenses and professional services expenses.
- (6) The financial results for the six months ended June 30, 2009 include \$4.1 million in employee termination costs, asset write offs and costs to vacate office space in New York City.
- (7) The financial results for the six months ended June 30, 2010 include a loss on our foreign currency option hedge relating to the pounds sterling cash consideration paid to acquire CLE of \$14.3 million, or \$10.3 million net of taxes.

Transaction and clearing fees are presented net of rebates. We recorded rebates in our futures segment of \$82.0 million and \$51.1 million for the six months ended June 30, 2010 and 2009, respectively. The increase in rebates is due primarily to an increase in the number of participants in the rebate programs offered on various futures and option contracts and from higher contract volume traded under these programs during the period. We offer rebates in certain of our markets primarily to support market liquidity and trading volume by providing qualified participants in those markets a discount to the applicable commission rate. These rebates reduce revenue that would have been generated had full commissions been charged, assuming that the same volume had been generated without the rebate program.

A futures contract is a standardized contract for a fixed quantity of the commodity underlying each contract. The following table presents trading activity in our futures markets by commodity type based on the total number of contracts traded:

	Six Months Ended June 30,		Change	Three Months Ended June 30,		Change
	2010	2009		2010	2009	
	(In thousands)			(In thousands)		
Number of futures and option contracts traded:						
ICE Brent Crude futures	50,674	35,147	44%	26,223	16,859	56%
ICE WTI Crude futures	26,897	21,954	23	15,350	10,430	47
ICE Gas Oil futures	25,356	16,716	52	12,364	8,556	45
Sugar futures and options	19,633	17,426	13	8,956	10,472	(14)
Cotton futures and options	3,781	2,734	38	1,964	1,499	31
Russell Index futures and options	21,032	20,337	3	12,255	10,155	21
Other futures and options	19,001	12,948	47	10,609	6,724	58
Total	166,374	127,262	31%	87,721	64,695	36%

Table of Contents

The following table presents our quarter-end open interest for our futures contracts. Open interest is the aggregate number of contracts (long or short) that clearing members hold either for their own account or on behalf of their clients.

	As of June 30,		
	2010	2009	Change
	(In thousands)		
Open interest – futures and option contracts:			
ICE Brent Crude futures	747	689	8%
ICE WTI Crude futures	483	477	1
ICE Gas Oil futures	630	501	26
Sugar futures and options	1,134	1,557	(27)
Cotton futures and options	309	256	21
Coffee futures and options	387	238	63
Cocoa futures and options	158	143	11
Russell index futures and options	415	385	8
Other futures and options	1,560	1,188	31
Total	5,823	5,434	7%

Our Global OTC Segment

The following table presents selected statement of income data in dollars and as a percentage of revenues for our global OTC segment:

	Six Months Ended June 30,			
	2010	%	2009	%
	(Dollar amounts in thousands)			
Revenues:				
Transaction and clearing fees, net:				
North American natural gas(1)	\$109,541	34%	\$ 88,502	32%
North American power(1)	49,397	15	41,346	15
Credit default swaps(2)	85,746	27	82,517	30
Global oil and other(3)	14,820	5	7,258	2
Electronic trade confirmation	4,027	1	3,108	1
Intersegment fees	33,549	10	24,592	9
Market data fees	23,394	7	23,960	9
Other	4,698	1	4,611	2
Total revenues	325,172	100	275,894	100
Operating expenses:				
Selling, general and administrative expenses(4)	142,267	44	134,296	49
Intersegment expenses	22,971	7	16,935	6
Depreciation and amortization	39,745	12	37,270	13
Total operating expenses	204,983	63	188,501	68
Operating income	120,189	37	87,393	32
Other expense, net(5)	12,592	4	17,932	7
Income tax expense	41,494	13	25,789	9
Net income	\$ 66,103	20%	\$ 43,672	16%

- (1) Revenues in our North American natural gas and power markets increased due to several factors, including increased credit availability and increased demand for hedging and risk management as market participants became less risk averse as the global financial markets stabilized.
- (2) CDS revenues increased primarily due to higher CDS clearing fee revenues of \$27.3 million during the six months ended June 30, 2010 compared to \$7.6 million during the six months ended June 30, 2009 following the formation and launch of North American CDS clearing at ICE Trust in March 2009 and the launch of European CDS clearing at ICE Clear Europe in July 2009. This increase was partially offset by a \$16.5 million reduction in CDS trading fee revenues at Creditex primarily due to regulatory uncertainty, reduced market liquidity and reduced demand for portfolio hedging combined with fewer credit default events.
- (3) The increase in global oil and other revenues is primarily due to increased trading volumes in our global oil markets, which increased to 32.2 million contracts from 8.4 million contracts during the comparable period in 2009, primarily due to the successful launch of new cleared global oil contracts throughout 2009 and into 2010.

Table of Contents

- (4) Includes compensation and benefits expenses, professional services expenses and acquisition-related transaction costs.
- (5) Other expense decreased \$5.3 million from the prior period primarily due to an impairment loss on the NCDEX cost method investment of \$9.3 million, or \$11.0 million net of taxes, recognized during the six months ended June 30, 2009, partially offset by an increase in interest expense during the current period compared to the prior period primarily due to an increase in our outstanding debt and an increase in the interest rates between periods.

Transaction and clearing fees are presented net of rebates. We recorded rebates in our global OTC segment of \$23.4 million and \$10.1 million for the six months ended June 30, 2010 and 2009, respectively. The increase in rebates is due primarily to an increase in the number of participants in the rebate programs offered on various OTC contracts and from higher contract volume traded under these programs during the period. Revenues in our global OTC segment are generated primarily through transaction and clearing fees earned from trades. While we charge a monthly data access fee for access to our electronic platform, we derive a substantial portion of our OTC revenues from transaction fees paid by participants for each trade that they execute or clear based on the underlying commodity volume.

Through ICE Trust, we began clearing North American CDS index contracts in March 2009 and certain North American single-name CDS contracts in December 2009. Through ICE Clear Europe, we began clearing European CDS index contracts in July 2009 and certain European single-name CDS contracts in December 2009. We launched our North American buy-side solution for CDS clearing in December 2009 through ICE Trust and we are currently working closely with European CDS market participants toward the launch of our European buy-side solution, as well as clearing for single name and sovereign CDS contracts. During the six months ended June 30, 2010 and 2009, ICE Trust cleared \$2.9 trillion and \$1.3 trillion, respectively, of CDS notional value. During the six months ended June 30, 2010, ICE Clear Europe cleared \$2.4 trillion of CDS notional value. In aggregate since launch, we have cleared \$9.9 trillion in CDS through June 30, 2010.

The following table presents the total volume of the underlying commodity or the total notional value of the underlying CDS traded in our OTC markets:

	Six Months Ended June 30,			Three Months Ended June 30,		
	2010	2009	Change	2010	2009	Change
Total Volume/Notional Value — OTC:						
North American natural gas (in million British thermal units, or MMBtu)	306,303	226,839	35%	162,391	118,513	37%
North American power (in million megawatt hours)	3,532	2,993	18	1,742	1,574	11
Global oil (in equivalent million barrels of oil)	5,557	1,440	286	3,011	947	218
Credit default swaps (notional value in billions of dollars)	\$ 1,257	\$ 1,427	(12)	\$ 593	\$ 699	(15)

The following table presents the number of contracts traded in our OTC energy markets:

	Six Months Ended June 30,			Three Months Ended June 30,		
	2010	2009	Change	2010	2009	Change
Number of OTC energy contracts traded:						
North American natural gas	122,528	90,740	35%	64,963	47,405	37%
North American power	11,928	5,014	138	5,394	2,633	105
Global oil and other	32,243	8,428	283	17,327	5,628	208
Total	<u>166,699</u>	<u>104,182</u>	60%	<u>87,684</u>	<u>55,666</u>	58%

Table of Contents

As of June 30, 2010, open interest of \$874.3 billion in notional value of CDS were held at ICE Trust and ICE Clear Europe, compared to \$168.5 billion as of June 30, 2009. The following table presents quarter-end open interest for our cleared OTC energy contracts:

	As of June 30,		
	2010	2009	Change
	(In thousands)		
Open interest – cleared OTC energy contracts:			
North American natural gas	11,633	8,708	34%
North American power	9,141	2,022	352
Global oil and other	1,111	337	230
Total	21,885	11,067	98%

Our Market Data Segment

The following table presents selected statement of income data in dollars and as a percentage of revenues for our market data segment:

	Six Months Ended June 30,			
	2010	%	2009	%
	(Dollar amounts in thousands)			
Revenues:				
Market data fees	\$30,645	65%	\$27,639	62%
Intersegment fees	16,519	35	16,758	38
Other	30	—	11	—
Total revenues	47,194	100	44,408	100
Operating expenses:				
Selling, general and administrative expenses(1)	593	1	1,679	4
Intersegment expenses	15,352	33	15,815	35
Depreciation and amortization	79	—	71	—
Total operating expenses	16,024	34	17,565	39
Operating income	31,170	66	26,843	61
Other income, net	583	1	182	—
Income tax expense	11,081	23	8,147	18
Net income	\$20,672	44%	\$18,878	43%

(1) Includes compensation and benefits expenses and professional services expenses.

We earn terminal and license fee revenues that we receive from data vendors through the distribution of real-time and historical futures prices and other futures market data derived from trading in our futures markets. We also earn subscription fee revenues from OTC daily indexes, view only access to the OTC markets and OTC and futures end of day reports. In addition, we provide a service to independently establish market price validation curves whereby participant companies subscribe to receive consensus market valuations.

Table of Contents

Key Statistical Information

The following table presents key transaction volume information, as well as other selected operating information:

	Six Months Ended June 30,		Three Months Ended June 30,	
	2010	2009	2010	2009
(In thousands, except for percentages and rates per contract)				
Operating Data:				
Our Average Daily Trading and Clearing Revenues:				
U.K. futures business average daily exchange and clearing revenues	\$ 1,334	\$ 996	\$ 1,369	\$ 981
U.S. and Canadian futures business average daily exchange and clearing revenues	702	631	691	696
Global credit default swaps OTC business average daily commission and clearing revenues	691	665	683	707
Bilateral OTC energy average daily commission revenues	100	70	102	71
Cleared OTC energy average daily commission and clearing revenues	1,301	1,036	1,327	1,059
Total OTC energy OTC average daily commission and clearing revenues	1,401	1,106	1,429	1,130
Our total average daily exchange, OTC commission and clearing revenues	\$ 4,128	\$ 3,398	\$ 4,172	\$ 3,514
Our Trading Volume (in contracts):				
Futures volume	166,374	127,262	87,721	64,695
Futures average daily volume	1,342	1,016	1,392	1,027
OTC energy volume	166,699	104,182	87,684	55,666
OTC energy average daily volume	1,344	840	1,392	884
Energy futures rate per contract	\$ 1.51	\$ 1.59	\$ 1.49	\$ 1.61
Agricultural commodity futures and options rate per contract	\$ 2.16	\$ 2.24	\$ 2.19	\$ 2.16
Financial futures and options rate per contract	\$ 0.80	\$ 0.81	\$ 0.71	\$ 0.84
OTC Participants Trading Commission Percentages:				
Commercial companies (including merchant energy)	52%	51%	53%	52%
Banks and financial institutions	23%	23%	21%	22%
Liquidity providers	25%	26%	26%	26%
Cleared OTC energy volume compared to total OTC energy volume	97%	96%	97%	96%

Six Months Ended June 30, 2010 Compared to Six Months Ended June 30, 2009

Overview

Consolidated net income attributable to ICE increased \$58.6 million, or 41%, to \$202.9 million for the six months ended June 30, 2010 from \$144.3 million for the comparable period in 2009. Net income from our futures segment increased \$37.5 million, or 46%, to \$119.3 million for the six months ended June 30, 2010 from \$81.7 million for the comparable period in 2009. Net income from our global OTC segment increased \$19.2 million, or 44%, to \$62.9 million for the six months ended June 30, 2010 from \$43.7 million for the comparable period in 2009. Net income from our market data segment increased \$1.8 million, or 10%, to \$20.7 million for the six months ended June 30, 2010 from \$18.9 million for the comparable period in 2009. Consolidated operating income, as a percentage of consolidated revenues, increased to 59% for the six months ended June 30, 2010 from 52% for the comparable period in 2009. Consolidated net income attributable to ICE, as a percentage of consolidated revenues, increased to 35% for the six months ended June 30, 2010 from 30% for the comparable period in 2009.

Consolidated revenues increased \$95.8 million, or 20%, to \$577.8 million for the six months ended June 30, 2010 from \$482.0 million for the comparable period in 2009. As discussed below, this increase is primarily due to an increase in the trading volume in the ICE Brent Crude and ICE Gas Oil futures contracts, the OTC North American natural gas and power contracts and the OTC global oil contracts, as well as an increase in the CDS clearing revenues.

Consolidated operating expenses increased \$2.5 million, or 1%, to \$235.7 million for the six months ended June 30, 2010 from \$233.2 million for the comparable period in 2009. Compensation and benefits expenses increased \$6.8 million from the comparable period in 2009 primarily due to a 7% increase in our employee headcount from June 30, 2009 to June 30, 2010 and an increase in our non-cash compensation expenses, partially offset by \$2.9 million in employee termination costs incurred during the six months ended June 30, 2009. Acquisition-related transaction costs decreased \$4.1 million from the comparable period in 2009 primarily due to the \$6.1 million in transaction costs incurred related to our acquisition of TCC during the comparable period in 2009.

Table of Contents

Selling, general and administrative expenses decreased \$2.0 million from the comparable period in 2009 primarily due to \$2.3 million in costs incurred to vacate office space in New York City during the six months ended June 30, 2009. Depreciation and amortization expenses increased \$1.2 million from the comparable period in 2009 primarily due to depreciation expenses recorded on fixed asset additions.

Revenues

Transaction and Clearing Fees

Consolidated transaction and clearing fees increased \$89.5 million, or 21%, to \$515.9 million for the six months ended June 30, 2010 from \$426.4 million for the comparable period in 2009. Transaction and clearing fees, as a percentage of consolidated revenues, increased to 89% for the six months ended June 30, 2010 from 88% for the comparable period in 2009.

Transaction and clearing fees generated in our futures segment increased \$48.7 million, or 24%, to \$252.4 million for the six months ended June 30, 2010 from \$203.7 million for the comparable period in 2009, while increasing as a percentage of consolidated revenues to 44% for the six months ended June 30, 2010 from 42% for the comparable period in 2009. The increase in transaction and clearing fees was primarily due to the increase in the trading volumes in the ICE Brent Crude and ICE Gas Oil futures contracts. Volume in the Brent crude and gas oil markets increased due to several factors, including relatively higher economic growth outside of the United States that benefited trading in our global oil markets and storage issues in the competing WTI crude contract which drove more demand for the Brent crude contract. Our gas oil contract gained liquidity due to its increasing role as a key refined products benchmark in Europe and Asia, as well as increased liquidity in the related Brent market. Improved credit conditions, and increased production and market liquidity have also caused many traditional hedgers to return to the agricultural markets, particularly our coffee and cotton markets. For the six months ended June 30, 2010, volume in our futures segment was 166.4 million contracts, an increase of 31% from 127.3 million contracts during the comparable period in 2009. Average transaction and clearing fees per trading day increased 25% to \$2.0 million per trading day for the six months ended June 30, 2010 from \$1.6 million per trading day for the comparable period in 2009.

Transaction and clearing fees generated in our global OTC segment increased \$40.8 million, or 18%, to \$263.5 million for the six months ended June 30, 2010 from \$222.7 million for the comparable period in 2009 primarily due to an increase in the trading volume of the North American natural gas and power contracts and the global oil contracts, as well as an increase in the CDS clearing revenues. Contract volume in our North American natural gas markets increased 35% to 122.5 million contracts traded during the six months ended June 30, 2010 from 90.7 million contracts traded during the comparable period in 2009 and contract volume in our North American power markets increased 138% to 11.9 million contracts from 5.0 million contracts traded during the comparable period in 2009. Volume in our North American natural gas and power markets increased due to several factors, including increased credit availability and increased demand for hedging and risk management as market participants became less risk averse as the global financial markets recovered. Volume in our global oil markets increased to 32.2 million contracts during the six months ended June 30, 2010 from 8.4 million contracts during the comparable period in 2009, primarily due to the successful launch of new cleared global oil contracts throughout 2009 and 2010 following the launch of ICE Clear Europe in November 2008. CDS clearing revenues increased from \$7.6 million during the six months ended June 30, 2009 to \$27.3 million during the six months ended June 30, 2010, following the formation and launch of North American CDS clearing at ICE Trust in March 2009 and the launch of CDS clearing at ICE Clear Europe in July 2009. CDS execution revenues at Creditex decreased from \$74.9 million during the six months ended June 30, 2009 to \$58.4 million during the six months ended June 30, 2010 primarily due to regulatory uncertainty, reduced market liquidity and reduced demand for portfolio hedging combined with fewer credit default events. Transaction and clearing fees in this segment, as a percentage of consolidated revenues, was 46% for both the six months ended June 30, 2010 and 2009. Average transaction and clearing fees per trading day increased 18% to \$2.1 million per trading day for the six months ended June 30, 2010 from \$1.8 million per trading day for the comparable period in 2009.

Table of Contents

Market Data Fees

Consolidated market data fees increased \$2.4 million, or 5%, to \$54.0 million for the six months ended June 30, 2010 from \$51.6 million for the comparable period in 2009. During the six months ended June 30, 2010 and 2009, we recognized \$25.0 million and \$25.1 million, respectively, in data access fees and terminal fees in our global OTC and futures segments. During the six months ended June 30, 2010 and 2009, we recognized \$23.6 million and \$21.6 million, respectively, in terminal and license fees from data vendors in our market data segment. Consolidated market data fees, as a percentage of consolidated revenues, decreased to 9% for the six months ended June 30, 2010 from 11% for the comparable period in 2009.

Other Revenues

Consolidated other revenues increased \$3.9 million, or 98%, to \$7.8 million for the six months ended June 30, 2010 from \$3.9 million for the comparable period in 2009. The increase in other revenues is primarily due to less interest income being paid to ICE Clear Europe clearing members during the current period and an increase in cotton certification fees associated with our increased cotton volume during the current period. Interest paid to the clearing members for margin deposits at ICE Clear Europe are recorded as a reduction to other revenues. For the six months ended June 30, 2010, less interest income was paid to the clearing members, as compared to the same period in 2009, primarily due to fluctuations in the amounts and types of margin collateral made by the clearing members to ICE Clear Europe. Consolidated other revenues, as a percentage of consolidated revenues, was 1% for both the six months ended June 30, 2010 and 2009.

Expenses

Compensation and Benefits

Consolidated compensation and benefits expenses increased \$6.8 million, or 6%, to \$117.1 million for the six months ended June 30, 2010 from \$110.3 million for the comparable period in 2009. This increase was primarily due to an increase in employee headcount, a \$4.5 million increase in non-cash compensation expenses and an increase in our bonus accruals that is tied to our financial performance, partially offset by \$2.9 million in employee termination costs recognized during the same period in 2009. Our employee headcount increased from 806 employees as of June 30, 2009 to 866 employees as of June 30, 2010, an increase of 7%, primarily due to the hiring of additional clearing, technology and compliance employees. Non-cash compensation expenses recognized in our consolidated financial statements for employee stock options and restricted stock were \$26.3 million and \$21.8 million for the six months ended June 30, 2010 and 2009, respectively. The increase was primarily due to a greater number of employees receiving non-cash awards, the probable achievement of above-target performance on the performance-based restricted stock that was granted in December 2009 and due to true-up accruals relating to our estimate of the forfeiture rates on the non-cash awards. Consolidated compensation and benefits expenses, as a percentage of consolidated revenues, decreased to 20% for the six months ended June 30, 2010 from 23% for the comparable period in 2009.

Professional Services

Consolidated professional services expenses increased \$537,000, or 3%, to \$16.6 million for the six months ended June 30, 2010 from \$16.0 million for the comparable period in 2009. We incurred \$5.7 million in professional services expenses during the six months ended June 30, 2010 relating to the continued development of CDS clearing at ICE Trust and ICE Clear Europe, compared to \$6.0 million in professional services expenses incurred during the same period in 2009 relating to the establishment of ICE Trust. Consolidated professional services expenses, as a percentage of consolidated revenues, was 3% for both the six months ended June 30, 2010 and 2009.

Acquisition-Related Transaction Costs

Acquisition-related transaction costs were \$2.0 million for the six months ended June 30, 2010 compared to \$6.1 million for the six months ended June 30, 2009. During the six months ended June 30, 2010, we incurred legal and accounting fee transaction costs as we continue to explore and pursue acquisitions and other strategic opportunities to strengthen our competitive position and support our growth, including our acquisition of CLE that

Table of Contents

closed on July 8, 2010. During the six months ended June 30, 2009, these transaction costs related to our acquisition of TCC. Consolidated acquisition-related transaction costs, as a percentage of consolidated revenues, was negligible for the six months ended June 30, 2010 and 1% for the six months ended June 30, 2009.

Selling, General and Administrative

Consolidated selling, general and administrative expenses decreased \$2.0 million, or 4%, to \$43.8 million for the six months ended June 30, 2010 from \$45.8 million for the comparable period in 2009. This decrease was primarily due to \$2.4 million in costs incurred to vacate office space in New York City during the six months ended June 30, 2009, partially offset by increases in technology hosting expenses compared to the prior period that resulted from the growth of our trade execution and clearing businesses. Consolidated selling, general and administrative expenses, as a percentage of consolidated revenues, decreased to 8% for the six months ended June 30, 2010 from 10% for the comparable period in 2009.

Depreciation and Amortization

Consolidated depreciation and amortization expenses increased \$1.2 million, or 2%, to \$56.1 million for the six months ended June 30, 2010 from \$54.9 million for the comparable period in 2009. This increase was primarily due to depreciation expenses recorded on fixed asset additions incurred during 2009 and during the six months ended June 30, 2010. We recorded depreciation expenses on our fixed assets of \$24.7 million and \$22.2 million for the six months ended June 30, 2010 and 2009, respectively. Consolidated depreciation and amortization expenses, as a percentage of consolidated revenues, decreased to 10% for the six months ended June 30, 2010 from 11% for the comparable period in 2009.

Other Income (Expense)

Consolidated other expense increased from \$21.9 million for the six months ended June 30, 2009 to \$29.6 million for the six months ended June 30, 2010. This increase primarily related to a \$14.3 million loss incurred during the six months ended June 30, 2010 on our foreign currency option hedge relating to the pounds sterling cash consideration paid to acquire CLE and an increase in interest expense from \$12.2 million for the six months ended June 30, 2009 to \$14.6 million for the six months ended June 30, 2010. These increases were partially offset by a \$9.3 million impairment loss on our investment in NCDEX that was recorded during the six months ended June 30, 2009. Interest expense increased primarily due to an increase in the weighted average interest rates on the outstanding term loans from 3.08% for the six months ended June 30, 2009 to 4.34% for the six months ended June 30, 2010, primarily due to the impact of the interest rate hedges, and a \$553,000 increase in the amortization of the debt issuance costs in connection with the new credit facilities, partially offset by a reduction in the outstanding principal amounts of the term loans during the current period due to scheduled repayments over the last year.

Income Taxes

Consolidated income tax expense increased \$23.9 million to \$106.5 million for the six months ended June 30, 2010 from \$82.6 million for the comparable period in 2009, primarily due to the increase in our pre-tax income. Our effective tax rate decreased to 34% for the six months ended June 30, 2010 from 36% for the comparable period in 2009, primarily due to the tax impact of an impairment loss related to our investment in NCDEX during the six months ended June 30, 2009. The tax impact of the NCDEX impairment loss was additional tax expense of \$1.8 million due to the recording of a valuation allowance, related to the deferred tax benefit recorded during 2008, which was in excess of the tax benefit recorded in the six months ended June 30, 2009.

Net Income Attributable to Noncontrolling Interest

For those consolidated subsidiaries in which our ownership is less than 100%, and for which we have control over the assets, liabilities and management of the entity, the outside stockholders' interests are shown as noncontrolling interests. Noncontrolling interest relates to the operating results of our CDS clearing subsidiaries in

Table of Contents

which non-ICE limited partners hold a 48.5% net profit sharing interest, and our QW Holdings subsidiary in which we own 50.1%. Net income attributable to noncontrolling interest was \$3.2 million for the six months ended June 30, 2010. There was no net income attributable to noncontrolling interest for the six months ended June 30, 2009 as the amount attributable to our CDS clearing subsidiaries and QW Holdings was not material for separate disclosure.

Three Months Ended June 30, 2010 Compared to Three Months Ended June 30, 2009

Overview

Consolidated net income attributable to ICE increased \$29.6 million, or 41%, to \$101.7 million for the three months ended June 30, 2010 from \$72.1 million for the comparable period in 2009. Net income from our futures segment increased \$15.3 million, or 39%, to \$54.1 million for the three months ended June 30, 2010 from \$38.8 million for the comparable period in 2009. Net income from our global OTC segment increased \$14.5 million, or 62%, to \$37.8 million for the three months ended June 30, 2010 from \$23.4 million for the comparable period in 2009. Net income from our market data segment decreased \$130,000, or 1%, to \$9.8 million for the three months ended June 30, 2010 from \$9.9 million for the comparable period in 2009. Consolidated operating income, as a percentage of consolidated revenues, increased to 60% for the three months ended June 30, 2010 from 54% for the comparable period in 2009. Consolidated net income attributable to ICE, as a percentage of consolidated revenues, increased to 34% for the three months ended June 30, 2010 from 29% for the comparable period in 2009.

Consolidated revenues increased \$45.7 million, or 18%, to \$296.2 million for the three months ended June 30, 2010 from \$250.4 million for the comparable period in 2009. As discussed below, this increase is primarily due to an increase in the trading volume in the ICE Brent Crude and ICE Gas Oil futures contracts, the OTC North American natural gas and power contracts and the OTC global oil contracts, as well as an increase in the CDS clearing revenues.

Consolidated operating expenses increased \$2.4 million, or 2%, to \$117.9 million for the three months ended June 30, 2010 from \$115.5 million for the comparable period in 2009. Compensation and benefits expenses increased \$3.3 million from the comparable period in 2009 primarily due to a 7% increase in our employee headcount from June 30, 2009 to June 30, 2010 and an increase in our non-cash compensation expenses.

Revenues

Transaction and Clearing Fees

Consolidated transaction and clearing fees increased \$41.9 million, or 19%, to \$264.9 million for the three months ended June 30, 2010 from \$223.0 million for the comparable period in 2009. Transaction and clearing fees, as a percentage of consolidated revenues, were 89% for both the three months ended June 30, 2010 and 2009.

Transaction and clearing fees generated in our futures segment increased \$24.2 million, or 23%, to \$129.8 million for the three months ended June 30, 2010 from \$105.6 million for the comparable period in 2009, while increasing as a percentage of consolidated revenues to 44% for the three months ended June 30, 2010 from 42% for the comparable period in 2009. The increase in transaction and clearing fees was primarily due to the increase in the trading volumes in the ICE Brent Crude and ICE Gas Oil futures contracts. Volume in the Brent crude and gas oil markets increased due to several factors, including relatively higher economic growth outside of the United States that benefited trading in our global oil markets and storage issues in the competing WTI crude contract which drove more demand for the Brent crude contract. Our gas oil contract gained liquidity due to its increasing role as a key refined products benchmark in Europe and Asia, as well as increased liquidity in the related Brent market. Improved credit conditions, and increased production and market liquidity have also caused many traditional hedgers to return to the agricultural markets, particularly the cotton futures and options market. For the three months ended June 30, 2010, volume in our futures segment was 87.7 million contracts, an increase of 36% from 64.7 million contracts during the comparable period in 2009. Average transaction and clearing fees per trading day increased 23% to \$2.1 million per trading day for the three months ended June 30, 2010 from \$1.7 million per trading day for the comparable period in 2009.

Table of Contents

Transaction and clearing fees generated in our global OTC segment increased \$17.7 million, or 15%, to \$135.1 million for the three months ended June 30, 2010 from \$117.3 million for the comparable period in 2009 primarily due to an increase in the trading volume of the North American natural gas and power contracts and the global oil contracts, as well as an increase in the CDS clearing revenues. Contract volume in our North American natural gas markets increased 37% to 65.0 million contracts traded during the three months ended June 30, 2010 from 47.4 million contracts traded during the comparable period in 2009 and contract volume in our North American power markets increased 105% to 5.4 million contracts from 2.6 million contracts traded during the comparable period in 2009. Volume in our North American natural gas and power markets increased due to several factors, including increased credit availability and increased demand for hedging and risk management as market participants became less risk averse as the global financial markets stabilized. Volume in our global oil markets increased to 6.3 million contracts during the three months ended June 30, 2010 from 3.5 million contracts during the comparable period in 2009, primarily due to the successful launch of new cleared global oil contracts throughout 2009 and 2010 following the launch of ICE Clear Europe in November 2008. CDS clearing revenues increased from \$6.0 million during the three months ended June 30, 2009 to \$15.8 million during the three months ended June 30, 2010, following the formation and launch of North American CDS clearing at ICE Trust in March 2009 and the launch of CDS clearing at ICE Clear Europe in July 2009. CDS execution revenues at Creditex decreased from \$38.5 million during the three months ended June 30, 2009 to \$27.2 million during the three months ended June 30, 2010 primarily due to regulatory uncertainty, reduced market liquidity and reduced demand for portfolio hedging combined with fewer credit default events. Transaction and clearing fees in this segment, as a percentage of consolidated revenues, decreased to 46% for the three months ended June 30, 2010 from 47% for the comparable period in 2009. Average transaction and clearing fees per trading day increased 14% to \$2.1 million per trading day for the three months ended June 30, 2010 from \$1.8 million per trading day for the comparable period in 2009.

Market Data Fees

Consolidated market data fees increased \$1.7 million, or 7%, to \$27.2 million for the three months ended June 30, 2010 from \$25.5 million for the comparable period in 2009. During the three months ended June 30, 2010 and 2009, we recognized \$12.4 million and \$12.5 million, respectively, in data access fees and terminal fees in our global OTC and futures segments. During the three months ended June 30, 2010 and 2009, we recognized \$12.0 million and \$10.6 million, respectively, in terminal and license fees from data vendors in our market data segment. Consolidated market data fees, as a percentage of consolidated revenues, decreased to 9% for the three months ended June 30, 2010 from 10% for the comparable period in 2009.

Other Revenues

Consolidated other revenues increased \$2.1 million, or 108%, to \$4.1 million for the three months ended June 30, 2010 from \$2.0 million for the comparable period in 2009. The increase in other revenues is primarily due to less interest income being paid to ICE Clear Europe clearing members during the current period and an increase in cotton certification fees associated with our increased cotton volume during the current period. Interest paid to the clearing members for margin deposits at ICE Clear Europe are recorded as a reduction to other revenues. For the six months ended June 30, 2010, less interest income was paid to the clearing members, as compared to the same period in 2009, primarily due to fluctuations in the amounts and types of margin collateral made by the clearing members to ICE Clear Europe. Consolidated other revenues, as a percentage of consolidated revenues, was 1% for both the three months ended June 30, 2010 and 2009.

Expenses

Compensation and Benefits

Consolidated compensation and benefits expenses increased \$3.3 million, or 6%, to \$58.9 million for the three months ended June 30, 2010 from \$55.6 million for the comparable period in 2009. This increase was primarily due to an increase in employee headcount, a \$2.4 million increase in non-cash compensation expenses and an increase in our bonus accrual that is tied to our financial performance. Our employee headcount increased from 806 employees as of June 30, 2009 to 866 employees as of June 30, 2010, an increase of 7%, primarily due to the hiring of additional clearing, technology and compliance employees. Non-cash compensation expenses recognized in our consolidated financial statements for employee stock options and restricted stock were \$14.4 million and \$12.0

Table of Contents

million for the three months ended June 30, 2010 and 2009, respectively. The increase was primarily due to a greater number of employees receiving non-cash awards, the probable achievement of above-target performance on the performance-based restricted stock that was granted in December 2009 and due to true-up accruals relating to our estimate of the forfeiture rates on the non-cash awards. Consolidated compensation and benefits expenses, as a percentage of consolidated revenues, decreased to 20% for the three months ended June 30, 2010 from 22% for the comparable period in 2009.

Professional Services

Consolidated professional services expenses decreased \$782,000, or 9%, to \$8.0 million for the three months ended June 30, 2010 from \$8.8 million for the comparable period in 2009. This decrease was primarily due to \$2.6 million in professional services expenses incurred during the three months ended June 30, 2010 relating to the continued development of CDS clearing at ICE Trust and ICE Clear Europe, compared to \$4.1 million in professional services expenses incurred during the same period in 2009 relating to the establishment of ICE Trust. Consolidated professional services expenses, as a percentage of consolidated revenues, decreased to 3% for the three months ended June 30, 2010 from 4% for the comparable period in 2009.

Acquisition-Related Transaction Costs

Acquisition-related transaction costs were \$1.5 million for the three months ended June 30, 2010 compared to \$529,000 for the three months ended June 30, 2009. During the three months ended June 30, 2010, we incurred legal and accounting fee transaction costs as we continue to explore and pursue acquisitions and other strategic opportunities to strengthen our competitive position and support our growth, including our acquisition of CLE that closed on July 8, 2010. During the three months ended June 30, 2009, these transactions costs related to our acquisition of TCC. Consolidated acquisition-related transaction costs, as a percentage of consolidated revenues, were negligible for both the three months ended June 30, 2010 and 2009.

Selling, General and Administrative

Consolidated selling, general and administrative expenses decreased \$1.4 million, or 6%, to \$21.5 million for the three months ended June 30, 2010 from \$22.9 million for the comparable period in 2009. Consolidated selling, general and administrative expenses, as a percentage of consolidated revenues, decreased to 7% for the three months ended June 30, 2010 from 9% for the comparable period in 2009.

Depreciation and Amortization

Consolidated depreciation and amortization expenses increased \$335,000, or 1%, to \$27.9 million for the three months ended June 30, 2010 from \$27.6 million for the comparable period in 2009. This increase was primarily due to depreciation expenses recorded on fixed asset additions incurred during the twelve months ended June 30, 2010. We recorded depreciation expenses on our fixed assets of \$12.4 million and \$11.0 million for the three months ended June 30, 2010 and 2009, respectively. Consolidated depreciation and amortization expenses, as a percentage of consolidated revenues, decreased to 9% for the three months ended June 30, 2010 from 11% for the comparable period in 2009.

Other Income (Expense)

Consolidated other expense increased from \$17.1 million for the three months ended June 30, 2009 to \$22.5 million for the three months ended June 30, 2010. This increase primarily related to a \$14.3 million loss on our foreign currency option hedge relating to the pounds sterling cash consideration paid to acquire CLE that was incurred during the three months ended June 30, 2010. This increase was partially offset by a \$9.3 million impairment loss on our investment in NCDEX that was recorded during the three months ended June 30, 2009.

Table of Contents

Income Taxes

Consolidated income tax expense increased \$7.5 million to \$53.3 million for the three months ended June 30, 2010 from \$45.8 million for the comparable period in 2009, primarily due to the increase in our pre-tax income. Our effective tax rate decreased to 34% for the three months ended June 30, 2010 from 39% for the comparable period in 2009, primarily due to the tax impact of an impairment loss related to our investment in NCDEX during the three months ended June 30, 2009. The tax impact of the NCDEX impairment loss was additional tax expense of \$1.8 million due to the recording of a valuation allowance, related to the deferred tax benefit recorded during 2008, which was in excess of the tax benefit recorded in the three months ended June 30, 2009.

Net Income Attributable to Noncontrolling Interest

Net income attributable to noncontrolling interest was \$839,000 for the three months ended June 30, 2010. There was no net income attributable to noncontrolling interest for the three months ended June 30, 2009 as the amount attributable to our CDS clearing subsidiaries and QW Holdings was not material for separate disclosure.

Quarterly Results of Operations

The following table sets forth quarterly unaudited consolidated statements of income data. We believe that this data has been prepared on substantially the same basis as our audited consolidated financial statements and includes all adjustments, consisting only of normal recurring adjustments, necessary for the fair presentation of our consolidated results of operations for the quarters presented. The historical results for any quarter do not necessarily indicate the results expected for any future period.

	Three Months Ended,				
	June 30, 2010	March 31, 2010	December 31, 2009 (In thousands)	September 30, 2009	June 30, 2009
Revenues:					
Transaction and clearing fees, net:					
Futures:					
ICE Brent Crude futures	\$ 37,998	\$ 35,144	\$ 28,813	\$ 28,265	\$ 25,717
ICE WTI Crude futures	14,014	11,530	12,524	12,654	11,251
ICE Gas Oil futures	18,540	20,060	15,047	14,657	13,213
Sugar futures and options	18,258	21,341	13,594	19,581	22,974
Cotton futures and options	5,058	4,394	3,882	2,312	3,763
Russell Index futures and options	8,623	7,834	7,508	8,141	8,043
Other futures products and options	27,281	22,316	21,009	18,232	20,648
OTC:					
North American natural gas	58,110	51,431	49,706	48,602	44,551
North American power	24,353	25,044	28,326	25,605	21,760
Credit default swaps	43,024	42,722	39,408	43,220	44,548
Global oil and other	7,553	7,267	7,575	5,896	4,853
Electronic trade confirmation services	2,048	1,979	1,780	1,703	1,634
Market data fees	27,186	26,853	25,194	24,891	25,485
Other	4,109	3,705	2,188	2,505	1,977
Total revenues	296,155	281,620	256,554	256,264	250,417
Operating expenses:					
Compensation and benefits(1)	58,870	58,240	69,446	55,928	55,597
Professional services	8,029	8,549	9,649	9,866	8,813
Acquisition-related transaction costs	1,498	545	—	—	529
Selling, general and administrative	21,549	22,257	24,982	22,613	22,938
Depreciation and amortization	27,914	28,214	28,607	27,868	27,579

Table of Contents

	Three Months Ended,				
	June 30, 2010	March 31, 2010	December 31, 2009 (In thousands)	September 30, 2009	June 30, 2009
Total operating expenses	117,860	117,805	132,684	116,275	115,456
Operating income	178,295	163,815	123,870	139,989	134,961
Other income (expense), net(2)	(22,479)	(7,080)	5,531	(2,583)	(17,139)
Income tax expense	53,289	53,217	46,409	50,524	45,764
Net income	<u>\$102,527</u>	<u>\$103,518</u>	<u>\$ 82,992</u>	<u>\$ 86,882</u>	<u>\$ 72,058</u>
Net (income) loss attributable to noncontrolling interest	(839)	(2,355)	1,262	572	—
Net income attributable to ICE	<u>\$101,688</u>	<u>\$101,163</u>	<u>\$ 84,254</u>	<u>\$ 87,454</u>	<u>\$ 72,058</u>

- (1) The financial results for the three months ended December 31, 2009 include \$3.9 million in employee termination costs and other increases in compensation and benefits expenses based on our performance during the fourth quarter of 2009. Our performance during the historically seasonally weak fourth quarter of 2009 was much stronger than anticipated, resulting in increased bonus accruals and non-cash compensation expenses to reflect a true-up for our outperformance in 2009 versus our financial targets.
- (2) The financial results for the three months ended June 30, 2010 include a loss of \$14.3 million on our foreign currency option hedge relating to the pounds sterling cash consideration paid to acquire CLE. The financial results for the three months ended December 31, 2009 include a net gain of \$11.1 million relating to the sale of our LCH.Clearnet shares, partially offset by adjustments to various cost method investments. The financial results for the three months ended June 30, 2009 include an impairment loss on our investment in NCDEX of \$9.3 million.

Liquidity and Capital Resources

Since our inception, we have financed our operations, growth and cash needs primarily through income from operations and borrowings under our credit facilities. Our principal capital requirements have been to fund capital expenditures, working capital, strategic acquisitions and investments, stock repurchases and the development of our electronic trading and clearing platforms. We believe that our cash on hand and cash flows from operations will be sufficient to repay our outstanding indebtedness as it matures. In the future, we may need to incur additional debt or issue additional equity in connection with strategic acquisitions or investments. See also “— Future Capital Requirements” below.

We had consolidated cash and cash equivalents of \$307.1 million and \$552.5 million as of June 30, 2010 and December 31, 2009, respectively. We had \$27.5 million and \$25.5 million in short-term and long-term investments as of June 30, 2010 and December 31, 2009, respectively, and \$834.7 million and \$205.8 million in short-term and long-term restricted cash as of June 30, 2010 and December 31, 2009, respectively. The increase in the restricted cash balance as of June 30, 2010 was primarily due to the CLE acquisition described above. During the second quarter of 2010 and prior to the closing of the acquisition on July 8, 2010, we were required by U.K. law to put \$632.1 million into escrow accounts relating to the CLE acquisition and this cash was reflected as restricted cash as of June 30, 2010. The \$34.9 million in excess cash in the escrow accounts over the acquisition amount was reclassified to cash and cash equivalents after the closing of the acquisition on July 8, 2010.

We consider all short-term, highly liquid investments with remaining maturity dates of three months or less at the time of purchase to be cash equivalents. We classify all investments with original maturity dates in excess of three months and with maturities of less than one year as short-term investments and all investments that we intend to hold for more than one year as long-term investments. Cash that is not available for general use, either due to regulatory requirements or through restrictions in specific agreements, is classified as restricted cash.

In February 2010, our board of directors authorized us to repurchase up to \$300.0 million in our common stock. To date, we have not made any repurchases under the current authorization. We expect to fund any share repurchases with a combination of cash on hand, future cash flows and borrowing under our credit facilities. The timing and extent of the repurchases, if any, will depend upon market conditions, our stock price and our strategic plans at that time.

Table of Contents

Cash Flow

The following tables present, for the periods indicated, the major components of net increases (decreases) in cash and cash equivalents:

	Six Months Ended	
	June 30,	
	2010	2009
	(In thousands)	
Net cash provided by (used in):		
Operating activities	\$ 259,319	\$ 183,139
Investing activities	(673,774)	(131,692)
Financing activities	169,986	(34,026)
Effect of exchange rate changes	(888)	(484)
Net (decrease) increase in cash and cash equivalents	<u>\$ (245,357)</u>	<u>\$ 16,937</u>

Operating Activities

Consolidated net cash provided by operating activities was \$259.3 million and \$183.1 million for the six months ended June 30, 2010 and 2009, respectively. Net cash provided by operating activities primarily consists of net income adjusted for certain non-cash items, including depreciation and amortization and the effects of changes in working capital. Fluctuations in net cash provided by operating activities are primarily attributable to increases and decreases in our net income between periods and, to a lesser extent, due to fluctuations in working capital. The \$76.2 million increase in net cash provided by operating activities for the six months ended June 30, 2010 from the comparable period in 2009 is primarily due to the \$37.5 million increase in the futures segment's net income for the six months ended June 30, 2010 from the comparable period in 2009 and the \$19.2 million increase in the global OTC segment's net income for the six months ended June 30, 2010 from the comparable period in 2009.

Investing Activities

Consolidated net cash used in investing activities was \$673.8 million and \$131.7 million for the six months ended June 30, 2010 and 2009, respectively. Consolidated net cash used in investing activities for the six months ended June 30, 2010 and 2009 primarily relates to changes in the restricted cash balances, cash paid for acquisitions, sales and purchases of available-for-sale investments, cash paid for a foreign currency option hedge, capital expenditures in each period for software, including internally developed software, and for computer and network equipment. We had net increases in restricted cash of \$634.4 million and \$55.5 million for the six months ended June 30, 2010 and 2009, respectively, with the 2010 increase primarily relating to the restricted cash for the CLE acquisition and the 2009 increase primarily relating to the acquisition of TCC and the formation of ICE Trust and their associated regulatory requirements. We paid out cash for acquisitions, net of cash acquired, of \$39.4 million for the six months ended June 30, 2009. We had a net increase in investments classified as available-for-sale of \$22.3 million for the six months ended June 30, 2009 primarily due to our acquisition of 4.8% of the common stock of CLE for \$24.1 million in cash in June 2009. We purchased a foreign currency option hedge relating to our acquisition of CLE of \$15.1 million during the six months ended June 30, 2010. We incurred capitalized software development costs of \$12.2 million and \$9.3 million for the six months ended June 30, 2010 and 2009, respectively, and we had additional capital expenditures of \$12.1 million and \$9.1 million for the six months ended June 30, 2010 and 2009, respectively. The additional capital expenditures primarily relate to hardware purchases to continue the development and expansion of our electronic platforms and clearing houses.

Financing Activities

Consolidated net cash provided by (used in) financing activities was \$170.0 million and (\$34.0 million) for the six months ended June 30, 2010 and 2009, respectively. Consolidated net cash provided by financing activities for the six months ended June 30, 2010 primarily relates to \$220.0 million in proceeds from the credit facilities and \$9.8

Table of Contents

million in proceeds from the exercise of common stock options, partially offset by \$48.0 million in repayments under the credit facilities, \$7.5 million in debt issuance costs for the new revolving credit facilities and \$8.0 million in cash payments related to treasury shares received for restricted stock and stock option tax payments. Consolidated net cash used in financing activities for the six months ended June 30, 2009 primarily related to \$31.9 million in repayments under the credit facilities and \$10.3 million in debt issuance costs for the credit facilities.

Loan Agreements

On March 31, 2010, we entered into new aggregate \$725.0 million three-year senior unsecured revolving credit facilities, or the New Revolving Credit Facilities. The New Revolving Credit Facilities consist of (i) an aggregate \$575.0 million unsecured revolving dollar credit facility, pursuant to which we may borrow, repay and reborrow up to \$575.0 million in U.S. dollars, and (ii) an aggregate \$150.0 million unsecured revolving multicurrency credit facility, pursuant to which we may borrow, repay and reborrow up to the equivalent of \$150.0 million in either U.S. dollars, euros or pounds sterling, at our option. The New Revolving Credit Facilities mature on March 31, 2013.

In connection with entering into the New Revolving Credit Facilities, on March 31, 2010, we terminated our then existing revolving credit facilities that provided for a \$300.0 million 364-day senior unsecured revolving credit facility, which was scheduled to expire on April 9, 2010, and a \$100.0 million senior unsecured revolving credit facility, which was scheduled to expire on April 9, 2012. Two term loan facilities, under which \$259.5 million in aggregate is outstanding as of June 30, 2010, are still outstanding.

On April 29, 2010, we borrowed \$220.0 million under the New Revolving Credit Facilities, including \$174.0 million under the dollar credit facility and \$46.0 million under the multicurrency credit facility. These borrowings were used for part of our \$597.2 million cash acquisition of the CLE on July 8, 2010. As of June 30, 2010, we have LIBOR-rate loans with a stated interest rate of 2.03% per annum, including the applicable margin rate, related to the \$220.0 million borrowed under the New Revolving Credit Facilities.

Of the amounts available under the New Revolving Credit Facilities, (i) up to \$150.0 million of such amounts has been reserved to provide liquidity for the clearing operations of ICE Clear Europe, (ii) up to \$100.0 million of such amounts has been reserved to provide liquidity for the clearing operations of ICE Trust, (iii) up to \$50.0 million of such amounts has been reserved to provide liquidity for the clearing operations of ICE Clear U.S., and (iv) up to \$3.0 million of such amounts has been reserved to provide liquidity for certain of the clearing operations of ICE Clear Canada. The remaining balance may be used by us for working capital and general corporate purposes.

With limited exceptions, we may prepay any outstanding loans under the New Revolving Credit Facilities and the two term loans outstanding, in whole or in part, without premium or penalty. The credit facilities contain affirmative and negative covenants, including, but not limited to, leverage and interest coverage ratios, as well as limitations or required notices or approvals for acquisitions, dispositions of assets and certain investments in subsidiaries, the incurrence of additional debt or the creation of liens and other fundamental changes to the our business. We have been and are currently in compliance with all applicable covenants.

We have entered into interest rate swap contracts to reduce our exposure to interest rate volatility related to the \$259.5 million in outstanding debt under our two term loan facilities as of June 30, 2010, which are effective through the maturity dates of our term loan facilities.

Future Capital Requirements

Our future capital requirements will depend on many factors, including the rate of our trading and clearing volume growth, strategic plans and acquisitions, required technology initiatives, regulatory requirements, the timing and introduction of new products and enhancements to existing products, and the continuing market acceptance of our electronic platform. We currently expect to make aggregate capital expenditures ranging between \$25 million and \$30 million for the year ended December 31, 2010, which we believe will support the enhancement of our technology and the continued expansion of our futures, OTC and market data businesses. We are obligated to contribute \$100.0 million in the aggregate to the ICE Trust guaranty fund and the ICE Clear Europe CDS guaranty fund over a two-year period and have already contributed \$10.0 million to the ICE Trust guaranty fund and \$10.0

Table of Contents

million to the ICE Clear Europe CDS guaranty fund as of June 30, 2010. We must use the profits from the CDS clearing business that are distributed to us to fund the remaining \$80.0 million, and if such profits are not sufficient to fund the remaining \$80.0 million obligation, we are obligated to make up any shortfall and expect to use our cash on hand or borrow funds under our credit facilities to do so. We believe that our cash flows from operations will be sufficient to fund our working capital needs and capital expenditure requirements at least through the end of 2011. We expect our capitalized software development costs to remain relatively consistent with our 2009 capitalized software development costs.

After factoring in the \$303.0 million reserved for ICE Clear Europe, ICE Trust, ICE Clear U.S. and ICE Clear Canada and the \$220.0 million borrowed in April 2010, we currently have \$202.0 million under the New Revolving Credit Facilities available for general corporate purposes. The New Revolving Credit Facilities are currently the only significant agreements or arrangements that we have with third parties to provide us with sources of liquidity and capital resources. In the event of any strategic acquisitions or investments, or if we are required to raise capital for any reason, we may need to incur additional debt or issue additional equity to raise the necessary funds. We are currently in discussions with our bank group to convert the \$220.0 million that is currently outstanding under the revolving credit facilities into a term loan, which would then provide us with an additional \$220.0 million of liquidity. This would increase the amount available to us under the New Revolving Credit Facilities after deducting the amounts dedicated to our clearing houses back up to \$422.0 million. We expect this conversion to a term loan to be completed during the third quarter of 2010. However, we cannot provide assurance that such financing, including financing for the \$220.0 million term loan, will be available or that the terms of such financing will be favorable to us, particularly given prevailing economic conditions and uncertainty in the credit markets.

Contractual Obligations and Commercial Commitments

As discussed above, we entered into the New Revolving Credit Facilities during the six months ended June 30, 2010 and \$220.0 million has been borrowed as of June 30, 2010. During the six months ended June 30, 2010, there were no other significant changes to our contractual obligations and commercial commitments from those disclosed in the section “Management’s Discussion and Analysis of Financial Condition and Results of Operations” in our Annual Report on Form 10-K for the year ended December 31, 2009, or our 2009 Form 10-K.

Off-Balance Sheet Arrangements

We currently do not have any relationships to unconsolidated entities or financial partnerships that have been established for the sole purpose of facilitating off-balance sheet arrangements or other contractually limited purpose.

New and Recently Adopted Accounting Pronouncements

Refer to Note 2 to our consolidated financial statements and related notes included elsewhere in this Quarterly Report on Form 10-Q for information on the new and recently adopted accounting pronouncements that are applicable to us.

Critical Accounting Policies and Estimates

In the second quarter of 2010, there were no significant changes to our critical accounting policies and estimates from those disclosed in the section “Management’s Discussion and Analysis of Financial Condition and Results of Operations” in our 2009 Form 10-K.

Item 3. Quantitative and Qualitative Disclosures About Market Risk

We are exposed to market risk in the ordinary course of business. This market risk consists primarily of interest rate risk associated with our cash and cash equivalents, short-term and long-term investments, short-term and long-term restricted cash, current and long-term indebtedness and foreign currency exchange rate risk.

Table of Contents

Interest Rate Risk

We have exposure to market risk for changes in interest rates relating to our cash and cash equivalents, short-term and long-term investments, short-term and long-term restricted cash and indebtedness. As of June 30, 2010 and December 31, 2009, our cash and cash equivalents, short-term and long-term investments and short-term and long-term restricted cash were \$1.2 billion and \$783.8 million, respectively, of which \$104.2 million and \$80.4 million, respectively, were denominated in pounds sterling, euros or Canadian dollars. The remaining investments are denominated in U.S. dollars. We do not use our investment portfolio for trading or other speculative purposes. A hypothetical 100 basis point decrease in long-term interest rates would decrease annual pre-tax earnings by \$1.0 million, assuming no change in the amount or composition of our cash and cash equivalents, short-term and long-term investments and short-term and long-term restricted cash.

As of June 30, 2010, we had \$479.5 million in outstanding indebtedness, which bears interest at fluctuating rates based on LIBOR and, therefore, subjects us to interest rate risk. A hypothetical 100 basis point increase in long-term interest rates would decrease annual pre-tax earnings by \$4.8 million, assuming no change in the volume or composition of our outstanding indebtedness. The interest rates on our outstanding debt are currently reset on a monthly basis. We entered into interest rate swap contracts to reduce our exposure to interest rate volatility related to portions of our outstanding debt, which are effective through the maturity dates of our term loan facilities. These contracts fix the interest rate at 4.26% on the \$112.5 million term loan facility that is outstanding as of June 30, 2010, and at 4.36% on the \$147.0 million term loan facility that is outstanding as of June 30, 2010.

Foreign Currency Exchange Rate Risk

Revenues in our businesses are denominated in U.S. dollars, except with respect to a portion of the sales through Creditex and ICE Clear Europe, all sales through ICE Futures Canada and a small number of futures contracts at ICE Futures Europe. We may experience gains or losses from foreign currency transactions in the future given that there are still net assets or net liabilities and revenues and expenses of our U.S., U.K. and Canadian subsidiaries that are denominated in pounds sterling, euros or Canadian dollars. Our U.K. operations in some instances function as a natural hedge because we generally hold an equal amount of monetary assets and liabilities that are denominated in pounds sterling. Of our consolidated revenues, 8% and 13% were denominated in pounds sterling, euros or Canadian dollars for the six months ended June 30, 2010 and 2009, respectively. Of our consolidated operating expenses, 22% and 28% were denominated in pounds sterling or Canadian dollars for the six months ended June 30, 2010 and 2009, respectively. As the pound sterling, euro or Canadian dollar exchange rate changes, the U.S. equivalent of revenues and expenses denominated in foreign currencies changes accordingly. A 10% adverse change in the underlying foreign currency exchange rates would decrease annual pre-tax earnings by \$3.4 million, assuming no change in the composition of the foreign currency denominated assets, liabilities and payables.

We have foreign currency transaction risk related to the settlement of foreign currency denominated assets, liabilities and payables that occur through our operations, which are received in or paid in pounds sterling or euros, due to the increase or decrease in the foreign currency exchange rates between periods. We had foreign currency transaction losses of \$1.7 million and \$2.1 million for the six months ended June 30, 2010 and 2009, respectively, and foreign currency transaction losses of \$986,000 and \$2.0 million for the three months ended June 30, 2010 and 2009, respectively, primarily attributable to the fluctuations of the pound sterling and euro relative to the U.S. dollar. The average exchange rate of the pound sterling to the U.S. dollar increased from 1.4937 for the six months ended June 30, 2009 to 1.5262 for the six months ended June 30, 2010. The average exchange rate of the euro to the U.S. dollar decreased from 1.3340 for the six months ended June 30, 2009 to 1.3285 for the six months ended June 30, 2010.

We entered into foreign currency hedging transactions during the three months ended June 30, 2010 to hedge a portion of our foreign currency transaction exposure and may enter into additional hedging transactions in the future to help mitigate our foreign exchange risk exposure. For the portion of our foreign currency exposure hedged, we had foreign currency losses of \$1.6 million offset by foreign currency gains on hedges of \$1.0 million, for hedge effectiveness of 66%.

Table of Contents

We have foreign currency translation risk equal to our net investment in certain Canadian and U.K. subsidiaries. The revenues, expenses and financial results of these Canadian and U.K. subsidiaries are denominated in Canadian dollars or pounds sterling, which are the functional currencies of these subsidiaries. The financial statements of these subsidiaries are translated into U.S. dollars using a current rate of exchange, with gains or losses included in the cumulative translation adjustment account, a component of equity. As of June 30, 2010, the portion of our equity attributable to accumulated other comprehensive income from foreign currency translation was \$28.4 million. The period-end foreign currency exchange rate for the Canadian dollar to the U.S. dollar decreased from 0.9559 as of December 31, 2009 to 0.9429 as of June 30, 2010. The period-end foreign currency exchange rate for the pound sterling to the U.S. dollar decreased from 1.6167 as of December 31, 2009 to 1.5011 as of June 30, 2010. The period-end foreign currency exchange rate for the euro to the U.S. dollar decreased from 1.4332 as of December 31, 2009 to 1.2271 as of June 30, 2010.

We entered into a foreign currency option hedge on May 3, 2010 related to the cash consideration to be paid to acquire CLE, in order to mitigate the risk of currency fluctuations between the announcement and closing of the acquisition as the cash consideration was being held in U.S. dollars and it was required to be paid in pounds sterling. The foreign currency hedge included an upfront \$15.1 million option premium and the fair value of the option as of June 30, 2010 was \$802,000, resulting in a loss of \$14.3 million recorded through other expense in the consolidated statements of income for the six months and three months ended June 30, 2010.

Impact of Inflation

We have not been adversely affected by inflation as technological advances and competition have generally caused prices for the hardware and software that we use for our electronic platforms to remain constant or to decline. In the event of inflation, we believe that we will be able to pass on any price increases to our participants, as the prices that we charge are not governed by long-term contracts.

Item 4. Controls and Procedures

(a) *Evaluation of disclosure controls and procedures.* As of the end of the period covered by this report, an evaluation was carried out by our management, with the participation of our Chief Executive Officer and Chief Financial Officer, of the effectiveness of our disclosure controls and procedures (as defined in Rule 13a-15(e) under the Securities Exchange Act of 1934). Based upon that evaluation, our Chief Executive Officer and Chief Financial Officer concluded that these disclosure controls and procedures are effective as of the end of the period covered by this report.

(b) *Changes in internal controls.* There were no changes in our internal controls over financial reporting that occurred during our most recent fiscal quarter that have materially affected, or are reasonably likely to materially affect, our internal controls over financial reporting. As a result, no corrective actions were taken.

Part II. Other Information

Item 1. Legal Proceedings

We are involved in certain legal proceedings in connection with the operation of our business. We believe, based on currently available information, that the results of such proceedings, individually or in the aggregate, will not have a material adverse effect on our financial condition.

Item 1A. Risk Factors

In the second quarter of 2010, there were no significant changes to our risk factors from those disclosed in Part I, Item 1A, “Risk Factors” in our 2009 Form 10-K.

Table of Contents

Item 2. Unregistered Sales of Equity Securities and Use of Proceeds

None.

Item 3. Defaults Upon Senior Securities

None.

Item 4. [Removed and Reserved]

Item 5. Other Information

None.

Item 6. Exhibits

Exhibit Number	Description of Document
10.1	— Credit Agreement dated as of March 31, 2010 among IntercontinentalExchange, Inc., Wells Fargo Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the lenders named therein for senior unsecured revolving credit facilities in the aggregate principal amount of \$725.0 million (this exhibit is being re-filed to include the exhibits and schedules to the exhibit, which were omitted from the original filing).*
10.2	— Amendment and Restatement Agreement, dated as of April 9, 2009, among IntercontinentalExchange, Inc., Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the lenders party thereto (this exhibit is being re-filed to include the exhibits and schedules to the exhibit, which were omitted from the original filing).*
10.3	— Credit Agreement, dated as of April 9, 2009, among IntercontinentalExchange, Inc., Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the lenders party thereto (this exhibit is being re-filed to include the exhibits and schedules to the exhibit, which were omitted from the original filing).*
10.4	— Scheme of Arrangement between IntercontinentalExchange, Inc., Climate Exchange plc (“CLE”) and holders of CLE shares under Section 152 of the Isle of Man Companies Act 1931 (as amended).
10.5	— Amended and Restated Employment Agreement dated May 26, 2010 between IntercontinentalExchange, Inc. and Scott A. Hill (incorporated by reference to IntercontinentalExchange, Inc.’s Current Report on Form 8-K filed with the SEC on May 26, 2010, File No. 001-32671).
31.1	— Rule 13a-14(a)/15d-14(a) Certification of Chief Executive Officer
31.2	— Rule 13a-14(a)/15d-14(a) Certification of Chief Financial Officer
32.1	— Section 1350 Certification of Chief Executive Officer
32.2	— Section 1350 Certification of Chief Financial Officer
101	— The following materials from IntercontinentalExchange, Inc.’s Quarterly Report on Form 10-Q for the quarter ended June 30, 2010, formatted in XBRL (Extensible Business Reporting Language): (i) the Consolidated Balance Sheets, (ii) the Consolidated Statements of Income, (iii) the Consolidated Statements of Changes in Equity, (iv) the Consolidated Statements of Comprehensive Income, (v) Consolidated Statements of Cash Flows and (vi) Notes to Consolidated Financial Statements, tagged in detail.**

* Confidential treatment has been requested from the SEC for a portion of this exhibit.

** As provided in Rule 406T of Regulation S-T, this information is “furnished” and not “filed” for purposes of Sections 11 and 12 of the Securities Act of 1933 and Section 18 of the Securities Exchange Act of 1934. Such exhibit will not be deemed to be incorporated by reference into any filing under the Securities Act of 1933 or the Securities Exchange Act of 1934 unless IntercontinentalExchange, Inc. specifically incorporates it by reference.

SIGNATURE

Pursuant to the requirements of the Securities Exchange Act of 1934, the registrant has duly caused this report to be signed on its behalf by the undersigned thereunto duly authorized.

INTERCONTINENTALEXCHANGE, INC.
(Registrant)

Date: August 4, 2010

By: /s/ Scott A. Hill
Scott A. Hill
Senior Vice President, Chief Financial Officer
(Principal Financial Officer and
Principal Accounting Officer)

CREDIT AGREEMENT

among

INTERCONTINENTALEXCHANGE, INC.,
as Borrower,

THE LENDERS NAMED HEREIN,

WELLS FARGO BANK, NATIONAL ASSOCIATION
(successor by merger to Wachovia Bank, National Association),
as Administrative Agent, Issuing Lender and Swingline Lender

BANK OF AMERICA, N.A.,
as Syndication Agent,

and

THE BANK OF TOKYO-MITSUBISHI UFJ, LTD.,
SOCIETE GENERALE, and
BANK OF MONTREAL
as Documentation Agents

\$725,000,000 Senior Revolving Credit Facilities

WELLS FARGO SECURITIES, LLC
and
BANC OF AMERICA SECURITIES LLC
Joint Lead Arrangers and Joint Book Runners

Dated as of March 31, 2010

*** Certain information in this agreement has been omitted and filed separately with the Commission. Confidential treatment has been requested with respect to the omitted portions.

TABLE OF CONTENTS

	<u>Page</u>
ARTICLE I	
DEFINITIONS	
1.1 Defined Terms	1
1.2 Accounting Terms	26
1.3 Other Terms; Construction	26
1.4 Currency Equivalents Generally	28
1.5 Redenomination of Certain Foreign Currencies	28
ARTICLE II	
AMOUNT AND TERMS OF THE LOANS	
2.1 Commitments	29
2.2 Borrowings	30
2.3 Disbursements; Funding Reliance; Domicile of Loans	33
2.4 Evidence of Debt; Notes	34
2.5 Termination and Reduction of Commitments and Swingline Commitment	35
2.6 Mandatory Payments and Prepayments	36
2.7 Voluntary Prepayments	37
2.8 Interest	38
2.9 Fees	39
2.10 Interest Periods	40
2.11 Conversions and Continuations	41
2.12 Method of Payments; Computations; Apportionment of Payments	42
2.13 Recovery of Payments	44
2.14 Pro Rata Treatment	45
2.15 Increased Costs; Change in Circumstances; Illegality	45
2.16 Taxes	48
2.17 Compensation	50
2.18 Replacement of Lenders; Mitigation of Costs	50
2.19 Letters of Credit	51
2.20 Increase in Commitments	58
2.21 Defaulting Lenders	59
2.22 Additional Reserve Costs	61
ARTICLE III	
CONDITIONS OF BORROWING	
3.1 Conditions of Initial Borrowing	62
3.2 Conditions of All Borrowings	65
ARTICLE IV	
REPRESENTATIONS AND WARRANTIES	
4.1 Corporate Organization and Power	65
4.2 Authorization; Enforceability	66

4.3	No Violation	66
4.4	Governmental and Third-Party Authorization; Permits	66
4.5	Litigation	67
4.6	Taxes	67
4.7	Subsidiaries	67
4.8	Full Disclosure	67
4.9	Margin Regulations	68
4.10	No Material Adverse Effect	68
4.11	Financial Matters	68
4.12	Ownership of Properties	69
4.13	ERISA	69
4.14	Environmental Matters	69
4.15	Compliance with Laws	70
4.16	Intellectual Property	70
4.17	Regulated Industries	70
4.18	Insurance	70
4.19	Material Contracts	70
4.20	No Burdensome Restrictions	71
4.21	OFAC; Anti-Terrorism Laws	71

ARTICLE V

AFFIRMATIVE COVENANTS

5.1	Financial Statements	71
5.2	Other Business and Financial Information	73
5.3	Compliance with All Material Contracts	75
5.4	Existence; Franchises; Maintenance of Properties	75
5.5	Use of Proceeds	75
5.6	Compliance with Laws	75
5.7	Payment of Obligations	76
5.8	Insurance	76
5.9	Maintenance of Books and Records; Inspection	76
5.10	Permitted Acquisitions	76
5.11	Creation or Acquisition of Subsidiaries	77
5.12	OFAC, PATRIOT Act Compliance	78
5.13	Further Assurances	78

ARTICLE VI

FINANCIAL COVENANTS

6.1	Maximum Total Leverage Ratio	78
6.2	Minimum Interest Coverage Ratio	78

ARTICLE VII

NEGATIVE COVENANTS

7.1	Merger; Consolidation	79
7.2	Indebtedness	79
7.3	Liens	81

7.4	Asset Dispositions	82
7.5	Acquisitions	83
7.6	Restricted Payments	83
7.7	Transactions with Affiliates	84
7.8	Lines of Business	84
7.9	Limitation on Certain Restrictions	84
7.10	No Other Negative Pledges	85
7.11	Investments in Subsidiaries	85
7.12	Fiscal Year	86
7.13	Accounting Changes	86

ARTICLE VIII

EVENTS OF DEFAULT

8.1	Events of Default	86
8.2	Remedies: Termination of Commitments, Acceleration, etc	88
8.3	Remedies: Set-Off	89

ARTICLE IX

THE ADMINISTRATIVE AGENT

9.1	Appointment and Authority	89
9.2	Rights as a Lender	89
9.3	Exculpatory Provisions	90
9.4	Reliance by Administrative Agent	90
9.5	Delegation of Duties	91
9.6	Resignation of Administrative Agent	91
9.7	Non-Reliance on Administrative Agent and Other Lenders	92
9.8	No Other Duties, Etc	92
9.9	Guaranty Matters	92
9.10	Swingline Lender	92

ARTICLE X

MISCELLANEOUS

10.1	Expenses; Indemnity; Damage Waiver	92
10.2	Governing Law; Submission to Jurisdiction; Waiver of Venue; Service of Process	94
10.3	Waiver of Jury Trial	95
10.4	Notices; Effectiveness; Electronic Communication	95
10.5	Amendments, Waivers, etc	96
10.6	Successors and Assigns	98
10.7	No Waiver	101
10.8	Survival	102
10.9	Severability	102
10.10	Construction	102
10.11	Confidentiality	102
10.12	Counterparts; Integration; Effectiveness	103
10.13	Disclosure of Information	103
10.14	USA Patriot Act Notice	103

EXHIBITS

Exhibit A-1	Form of Dollar Note
Exhibit A-2	Form of Multicurrency Note
Exhibit A-3	Form of Swingline Note
Exhibit B-1	Form of Notice of Borrowing
Exhibit B-2	Form of Notice of Swingline Borrowing
Exhibit B-3	Form of Notice of Conversion/Continuation
Exhibit B-4	Form of Letter of Credit Notice
Exhibit C	Form of Compliance Certificate
Exhibit D	Form of Assignment and Assumption
Exhibit E	Form of Guaranty
Exhibit F	Form of Financial Condition Certificate

SCHEDULES

Schedule 1.1(a)	Commitments and Notice Addresses
Schedule 1.1(b)	Existing Letters of Credit
Schedule 1.1(c)	Mandatory Costs Rate
Schedule 4.1	Jurisdictions of Organization
Schedule 4.4	Consents and Approvals
Schedule 4.5	Litigation Matters
Schedule 4.7	Subsidiaries
Schedule 4.19	Material Contracts
Schedule 7.2	Indebtedness
Schedule 7.3	Liens
Schedule 7.7	Transactions with Affiliates

CREDIT AGREEMENT

THIS CREDIT AGREEMENT , dated as of the 31st day of March, 2010, is made among **INTERCONTINENTALEXCHANGE, INC.** , a Delaware corporation (the “ **Borrower** ”), the Lenders (as hereinafter defined), **WELLS FARGO BANK, NATIONAL ASSOCIATION** (successor by merger to Wachovia Bank, National Association), as Administrative Agent (as hereinafter defined) for the Lenders, and **BANK OF AMERICA, N.A.** , as Syndication Agent (as hereinafter defined) for the Lenders (“ **BofA** ”).

BACKGROUND STATEMENT

The Borrower has requested that the Lenders make available to the Borrower revolving credit facilities in the aggregate principal amount of \$725,000,000. The Borrower will use the proceeds of these facilities as provided in **Section 5.5** . The Lenders are willing to make available to the Borrower the credit facilities described herein subject to and on the terms and conditions set forth in this Agreement.

AGREEMENT

NOW, THEREFORE , in consideration of the mutual provisions, covenants and agreements herein contained, the parties hereto hereby agree as follows:

ARTICLE I

DEFINITIONS

1.1 Defined Terms . For purposes of this Agreement, in addition to the terms defined elsewhere herein, the following terms have the meanings set forth below (such meanings to be equally applicable to the singular and plural forms thereof):

“ Account Designation Letter ” means a letter from the Borrower to the Administrative Agent, duly completed and signed by an Authorized Officer of the Borrower and in form and substance reasonably satisfactory to the Administrative Agent, listing any one or more accounts to which the Borrower may from time to time request the Administrative Agent to forward the proceeds of any Loans made hereunder.

“ Acquisition ” means any transaction or series of related transactions, consummated on or after the date hereof, by which the Borrower directly, or indirectly through one or more Subsidiaries, (i) acquires any going business, division thereof or line of business, or all or substantially all of the assets, of any Person, whether through purchase of assets, merger or otherwise, or (ii) acquires Capital Stock of any Person having at least a majority of Total Voting Power of the then outstanding Capital Stock of such Person.

“ Acquisition Amount ” means, with respect to any Acquisition, the sum (without duplication) of (i) the amount of cash paid as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition, (ii) the value of all Capital Stock issued or given as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition (as determined by the parties thereto under the definitive acquisition agreement), (iii) the amount (determined by using the face amount or the amount payable at maturity, whichever is greater) of all Indebtedness incurred, assumed or acquired by the Borrower and its Subsidiaries in connection with such Acquisition, (iv) all amounts paid in respect of noncompetition agreements, consulting agreements and similar arrangements entered into in connection with such Acquisition, (v) all amounts paid in respect of any earnout obligations or similar deferred or contingent purchase price obligations of the Borrower or any of its Subsidiaries incurred or created in connection with such Acquisition and (vi) the aggregate fair market value of all other real, mixed or personal property paid as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition.

“ Additional Commitment ” has the meaning set forth in **Section 2.20(c)**.

“ Additional Lender ” has the meaning set forth in **Section 2.20(a)**.

“ Adjusted Base Rate ” means, at any time with respect to any Base Rate Loan, a rate per annum equal to the Base Rate as in effect at such time plus the Applicable Percentage for Base Rate Loans as in effect at such time.

“ Adjusted LIBOR Market Index Rate ” means, for any date, with respect to any LIBOR Market Index Rate Loan, a rate per annum equal to the LIBOR Market Index Rate as in effect at such time plus the Applicable Percentage for LIBOR Loans as in effect at such time.

“ Adjusted LIBOR Rate ” means, at any time with respect to any LIBOR Loan, a rate per annum equal to the LIBOR Rate as in effect at such time plus the Applicable Percentage for LIBOR Loans as in effect at such time.

“ Administrative Agent ” means Wells Fargo, in its capacity as Administrative Agent appointed under **Section 9.1** , and its successors and permitted assigns in such capacity, provided that it is understood that matters concerning the funding of Multicurrency Loans denominated in a Foreign Currency and the disbursement of the proceeds thereof will be administered by the Multicurrency Agent, and references herein to the “Administrative Agent” in such a context shall be deemed to refer to the “Multicurrency Agent”.

“ Administrative Questionnaire ” means, with respect to each Lender, the administrative questionnaire in the form submitted to such Lender by the Administrative Agent and returned to the Administrative Agent duly completed by such Lender.

“ Affiliate ” means, with respect to a specified Person, another Person that directly, or indirectly through one or more intermediaries, Controls or is Controlled by or is under common Control with the Person specified. Notwithstanding the foregoing, neither the Administrative Agent nor any Lender shall be deemed an “Affiliate” of any Credit Party.

“ Agents ” means, collectively, the Multicurrency Agent and the Administrative Agent.

“ Aggregate Revolving Dollar Credit Exposure ” means, at any time, the sum of (i) the aggregate principal amount of Dollar Loans outstanding at such time, (ii) the aggregate principal amount of Swingline Loans outstanding at such time and (iii) the aggregate Letter of Credit Exposure of all Dollar Lenders at such time.

“ Agreement ” means this Credit Agreement, as amended, modified, restated or supplemented from time to time in accordance with its terms.

“ Applicable Commitment Percentage ” means, at any time with respect to either the Dollar Commitments or the Multicurrency Commitments, the percentage that the aggregate Dollar Commitments or the aggregate Multicurrency Commitments, as the case may be, bear to the Commitments at such time.

“ Applicable Percentage ” means, at any time from and after the Closing Date, the applicable percentage (i) to be added to the Base Rate for purposes of determining the Adjusted Base Rate, (ii) to be added to the LIBOR Rate and the LIBOR Market Index Rate for purposes of, respectively, determining the Adjusted LIBOR Rate and Adjusted LIBOR Market Index Rate and (iii) to be used in calculating the commitment fee payable pursuant to **Section 2.9(b)** , in each case as determined under the following matrix with reference to the Total Leverage Ratio, but subject to **Section 5.1(c)** :

Tier	Total Leverage Ratio	Applicable	Applicable	Applicable
		LIBOR Margin	Base Rate	Commitment
			Margin	Fee Rate
I	Less than 1.0 to 1.0	2.00%	1.00%	0.35%
II	Less than 1.50 to 1.0 but greater than or equal to 1.0 to 1.0	2.25%	1.25%	0.40%
III	Less than 2.0 to 1.0 but greater than or equal to 1.50 to 1.0	2.50%	1.50%	0.45%
IV	Greater than or equal to 2.0 to 1.0	3.00%	2.00%	0.50%

On each Adjustment Date (as hereinafter defined), the Applicable Percentage for all Loans and the fees payable pursuant to **Section 2.9** shall be adjusted effective as of such Adjustment Date (based upon the calculation of the Total Leverage Ratio as of the last day of the Reference Period to which such Adjustment Date relates) in accordance with the above matrix; provided, however , that, notwithstanding the foregoing or anything else herein to the contrary, if at any time the Borrower shall have failed to deliver any of the financial statements as required by **Sections 5.1(a)** or **5.1(b)**, as the case may be, or the Compliance Certificate as required by **Section 5.2(a)** , then at all times from and including the date on which such statements and Compliance Certificate are required to have been delivered until the date on which the same shall have been delivered, each Applicable Percentage shall be determined based on Tier IV above (notwithstanding the actual Total Leverage Ratio). For purposes of this definition, “ Adjustment Date ” means, with respect to any Reference Period of the Borrower beginning with the

Reference Period ending as of the last day of the first fiscal quarter of fiscal year 2010, the day (or, if such day is not a Business Day, the next succeeding Business Day) of delivery by the Borrower in accordance with **Section 5.1(a)** or **Section 5.1(b)**, as the case may be, of (i) financial statements as of the end of and for such Reference Period and (ii) a duly completed Compliance Certificate with respect to such Reference Period. From the Closing Date until the first Adjustment Date requiring a change in any Applicable Percentage as provided herein, each Applicable Percentage shall be based on Tier I above.

“ Applicable Period ” has the meaning set forth in **Section 5.1(c)** .

“ Approved Fund ” means any Fund that is administered or managed by (i) a Lender, (ii) an Affiliate of a Lender, or (iii) a Person (or an Affiliate of a Person) that administers or manages a Lender.

“ Arrangers ” mean Wells Fargo Securities, LLC, Banc of America Securities LLC and their respective successors.

“ Asset Disposition ” means any sale, assignment, lease, conveyance, transfer or other disposition by the Borrower or any of its Subsidiaries (whether in one or a series of transactions) of all or any of its assets, business or other properties (including Capital Stock of Subsidiaries).

“ Assignment and Assumption ” means an Assignment and Assumption entered into by a Lender and an assignee (with the consent of any party whose consent is required by **Section 10.6(b)**), and accepted by the Administrative Agent, in substantially the form of **Exhibit D** or any other form approved by the Administrative Agent.

“ Authorized Officer ” means, with respect to any action specified herein to be taken by or on behalf of a Credit Party, any officer of such Credit Party duly authorized by resolution of its board of directors or other governing body to take such action on its behalf, and whose signature and incumbency shall have been certified to the Administrative Agent by the secretary or an assistant secretary of such Credit Party.

“ Bankruptcy Code ” means 11 U.S.C. §§ 101 et seq., as amended from time to time, and any successor statute.

“ Bankruptcy Event ” means the occurrence of an event specified in **Section 8.1(f)** or **Section 8.1(g)** .

“ Base Rate ” means the highest of (i) the per annum interest rate publicly announced from time to time by Wells Fargo in Charlotte, North Carolina, to be its prime rate (which may not necessarily be its lowest or best lending rate), as adjusted to conform to changes as of the opening of business on the date of any such change in such prime rate, (ii) the Federal Funds Rate plus 0.5% per annum, as adjusted to conform to changes as of the opening of business on the date of any such change in the Federal Funds Rate, and (iii) the LIBOR Rate for an Interest Period of 1 month plus 1.50%, as adjusted to conform to changes as of the opening of business on the date of any such change of such LIBOR Rate.

“ Base Rate Loan ” means, at any time, any Revolving Loan that bears interest at such time at the applicable Adjusted Base Rate.

“ BofA ” means Bank of America, N.A.

“ Borrower ” has the meaning given to such term in the introductory paragraph hereof.

“ Borrowing ” means the incurrence by the Borrower (including as a result of conversions and continuations of outstanding Loans pursuant to **Section 2.11**) on a single date of a group of Loans of a single Class, Currency and Type (including a Swingline Loan made by the Swingline Lender) and, in the case of LIBOR Loans, as to which a single Interest Period is in effect.

“ Borrowing Date ” means, with respect to any Borrowing, the date upon which such Borrowing is made.

“ Business Day ” means (i) any day other than a Saturday or Sunday, a legal holiday or a day on which commercial banks in Charlotte, North Carolina or New York, New York are authorized or required by law to be closed, (ii) in respect of any notice or determination relevant to a LIBOR Loan or a LIBOR Market Index Rate Loan, any such day that is also a day on which trading in Dollar deposits is conducted by banks in London, England in the London interbank Eurodollar market and (iii) in respect of any notice or determination in connection with, and payments of principal and interest on, Loans denominated in Euros, such day is also a day on which the Trans-European Automated Real-Time Gross Settlement Express Transfer System (TARGET) (or, if such clearing system ceases to be operative, such other clearing system (if any) reasonably determined by the Administrative Agent to be a suitable replacement) is open for settlement of payment in Euros.

“ Capital Expenditures ” means, for any period, the aggregate amount (whether paid in cash or accrued as a liability) that would, in accordance with GAAP, be included on the consolidated statement of cash flows of the Borrower and its Subsidiaries for such period as additions to equipment, fixed assets, real property or improvements or other capital assets (including, without limitation, Capital Lease Obligations); provided, however, that Capital Expenditures shall not include any such expenditures (i) for replacements and substitutions for capital assets, to the extent made with the proceeds of insurance, (ii) for replacements and substitutions for capital assets, to the extent made with proceeds from the sale, exchange or other disposition of assets as permitted under **Sections 7.4(i) or 7.4(iii)**, or (iii) included within the Acquisition Amount of any Permitted Acquisition.

“ Capital Lease ” means, with respect to any Person, any lease of property (whether real, personal or mixed) by such Person as lessee that is or is required to be, in accordance with GAAP, recorded as a capital lease on such Person’s balance sheet.

“ Capital Lease Obligations ” means, with respect to any Person, the obligations of such Person to pay rent or other amounts under any Capital Lease of such Person, and the amount of such obligations shall be the capitalized amount thereof determined in accordance with GAAP.

“ Capital Stock ” means (i) with respect to any Person that is a corporation, any and all shares, interests or equivalents in capital stock (whether voting or nonvoting, and whether

common or preferred) of such corporation, and (ii) with respect to any Person that is not a corporation, any and all partnership, membership, limited liability company or other equity interests of such Person; and in each case under clauses (i) and (ii), any and all warrants, rights or options to purchase any of the foregoing or any securities convertible into or exchangeable for any of the foregoing.

“ Capitalized Software Development Costs ” means those capitalized costs both internal and external, direct and incremental incurred related to software developed or obtained for internal use in accordance with AICPA Statement of Position 98-1 “Accounting for Costs of Computer Software Developed or Obtained for Internal Use.”

“ Cash Collateral Account ” has the meaning given to such term in **Section 2.19(i)** .

“ Cash Equivalents ” means (i) securities issued or unconditionally guaranteed or insured by the United States of America or any agency or instrumentality thereof, backed by the full faith and credit of the United States of America and maturing within one year from the date of acquisition, (ii) commercial paper issued by any Person organized under the laws of the United States of America, maturing within 180 days from the date of acquisition and, at the time of acquisition, having a rating of at least A-1 or the equivalent thereof by Standard & Poor’s Ratings Services or at least P-1 or the equivalent thereof by Moody’s Investors Service, Inc., (iii) time deposits and certificates of deposit maturing within 180 days from the date of issuance and issued by a bank or trust company organized under the laws of the United States of America or any state thereof (y) that has combined capital and surplus of at least \$500,000,000 or (z) that has (or is a subsidiary of a bank holding company that has) a long-term unsecured debt rating of at least A or the equivalent thereof by Standard & Poor’s Ratings Services or at least A2 or the equivalent thereof by Moody’s Investors Service, Inc., (iv) repurchase obligations with a term not exceeding thirty (30) days with respect to underlying securities of the types described in clause (i) above entered into with any bank or trust company meeting the qualifications specified in clause (iii) above, and (v) money market funds at least ninety-five percent (95%) of the assets of which are continuously invested in securities of the foregoing types.

“ Change in Law ” means the occurrence, after the date of this Agreement, of any of the following: (i) the adoption or taking effect of any law, rule, regulation or treaty, (ii) any change in any law, rule, regulation or treaty or in the administration, interpretation or application thereof by any Governmental Authority or (iii) the making or issuance of any request, guideline or directive (whether or not having the force of law) by any Governmental Authority.

“ Change of Control ” means an event or series of events by which:

(a) any “person” or “group” (as such terms are used in Sections 13(d) and 14(d) of the Securities Exchange Act of 1934, but excluding any employee benefit plan of such person or its subsidiaries, and any person or entity acting in its capacity as trustee, agent or other fiduciary or administrator of any such plan) becomes the “beneficial owner” (as defined in Rules 13d-3 and 13d-5 under the Securities Exchange Act of 1934, except that a person or group shall be deemed to have “beneficial ownership” of all securities that such person or group has the right to acquire, whether such right is exercisable immediately or only after the passage of time or the occurrence of any other event or condition (such right, an “option right”)), directly or indirectly,

of 35% or more of the equity securities of the Borrower entitled to vote for members of the board of directors or equivalent governing body of the Borrower on a fully-diluted basis (and taking into account all such securities that such person or group has the right to acquire pursuant to any option right); or

(b) during any period of 24 consecutive months, a majority of the members of the board of directors or other equivalent governing body of the Borrower ceases to be composed of individuals that are Continuing Directors.

“Class” when used in reference to any Loan or Borrowing, refers to whether such Loan, or the Loans constituting such Borrowing, are Dollar Loans, Multicurrency Loans or Swingline Loans; when used in reference to any Lender, refers to whether such Lender is a Dollar Lender or a Multicurrency Lender; and, when used in reference to any Commitment, refers to whether such Commitment is a Dollar Commitment or Multicurrency Commitment.

“Closing Date” means the date upon which the initial extensions of credit are made pursuant to this Agreement, which shall be the date upon which each of the conditions set forth in **Sections 3.1** and **3.2** shall have been satisfied or waived in accordance with the terms of this Agreement.

“Code” means the Internal Revenue Code of 1986, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“Commitments” means, collectively, the Dollar Commitments and the Multicurrency Commitments.

“Compliance Certificate” means a fully completed and duly executed certificate in the form of **Exhibit C**, together with a Covenant Compliance Worksheet.

“Consolidated EBITDA” means, for any Reference Period, the aggregate of (i) Consolidated Net Income for such period, plus (ii) the sum of (A) interest expense, (B) federal, state, local and other income taxes, (C) depreciation and amortization of intangible assets, and (D) extraordinary losses or charges, all to the extent taken into account in the calculation of Consolidated Net Income for such Reference Period and all calculated in accordance with GAAP, minus (iii) the sum of (A) extraordinary gains or income and (B) noncash credits increasing income for such period, all to the extent taken into account in the calculation of Consolidated Net Income for such period.

“Consolidated Interest Expense” means, for any Reference Period, the sum (without duplication) of (i) total interest expense of the Borrower and its Subsidiaries for such Reference Period in respect of Total Funded Debt (including, without limitation, all such interest expense accrued or capitalized during such Reference Period, whether or not actually paid during such Reference Period), determined on a consolidated basis in accordance with GAAP, and (ii) all recurring unused commitment fees and other ongoing fees in respect of Total Funded Debt (including the unused fees provided for under **Section 2.9**) paid, accrued or capitalized by the Borrower and its Subsidiaries during such Reference Period.

“ Consolidated Net Income ” means, for any Reference Period, net income (or loss) for the Borrower and its Subsidiaries for such Reference Period, determined on a consolidated basis in accordance with GAAP (after deduction for minority interests); provided that, in making such determination, there shall be excluded (i) the net income of any other Person that is not a Subsidiary of the Borrower (or is accounted for by the Borrower by the equity method of accounting) except to the extent of actual payment of cash dividends or distributions by such Person to the Borrower or any Subsidiary of the Borrower during such period, and (ii) the net income of any Subsidiary of the Borrower to the extent that the declaration or payment of dividends or similar distributions by such Subsidiary of such net income is not at the time permitted by operation of the terms of its charter, certificate of incorporation or formation or other constituent document or any agreement or instrument (other than a Credit Document) or Requirement of Law applicable to such Subsidiary.

“ Continuing Directors ” means, as of any date, members of the board of directors or other equivalent governing body of the Borrower (i) who were members of that board or equivalent governing body on the date 24 months prior to such date, (ii) whose election or nomination to that board or equivalent governing body was approved by individuals referred to in clause (i) above constituting at the time of such election or nomination at least a majority of that board or equivalent governing body or (iii) whose election or nomination to that board or other equivalent governing body was approved by individuals referred to in clauses (i) and (ii) above constituting at the time of such election or nomination at least a majority of that board or equivalent governing body (excluding, in the case of both clause (ii) and clause (iii), any individual whose initial nomination for, or assumption of office as, a member of that board or equivalent governing body occurs as a result of an actual or threatened solicitation of proxies or consents for the election or removal of one or more directors by any person or group other than a solicitation for the election of one or more directors by or on behalf of the board of directors).

“ Control ” means, with respect to any Person, (i) the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of such Person, whether through the ownership of voting securities, by contract or otherwise, or (ii) the beneficial ownership of securities or other ownership interests of such Person having 10% or more of the combined voting power of the then outstanding securities or other ownership interests of such Person ordinarily (and apart from rights accruing under special circumstances) having the right to vote in the election of directors or other governing body of such Person; and the terms “Controlled” and “Controlling” have correlative meanings.

“ Covenant Compliance Worksheet ” means a fully completed worksheet in the form of **Attachment A** to **Exhibit C** .

“ Credit Documents ” means this Agreement, the Notes, the Letters of Credit, the Fee Letters, the Guaranty, and all other agreements, instruments, documents and certificates now or hereafter executed and delivered to the Administrative Agent or any Lender by or on behalf of the Borrower or any other Credit Party with respect to this Agreement, in each case as amended, modified, supplemented or restated from time to time.

“ Credit Parties ” means the Borrower, each of the Subsidiary Guarantors and their respective successors.

“ Currency ” means Dollars or any Foreign Currency.

“ Debtor Relief Laws ” means the Bankruptcy Code, and all other liquidation, conservatorship, bankruptcy, assignment for the benefit of creditors, moratorium, rearrangement, receivership, insolvency, reorganization, or similar debtor relief laws of the United States or other applicable jurisdictions from time to time in effect and affecting the rights of creditors generally.

“ Default ” means any event or condition that, with the passage of time or giving of notice, or both, would constitute an Event of Default.

“ Defaulting Lender ” means any Lender, as determined in good faith by the Administrative Agent, that (i) has failed to fund any Loan, or any participation interest in Letters of Credit or Swingline Loans, in each case requested and permitted to be made hereunder in accordance with the terms hereof, which failure has not been cured within three Business Days after the date on which it is required to fund such Loan or participation interest hereunder, (ii) has notified the Borrower, the Administrative Agent, Swingline Lender or the Issuing Lender in writing that it does not intend to comply with any of its funding obligations under this Agreement or has made a public statement to the effect that it does not intend to comply with its funding obligations under this Agreement or generally under other agreements in which it commits to extend credit, (iii) has failed, within three Business Days after written request by the Administrative Agent, to confirm that it will comply with the terms of this Agreement relating to its obligations to fund prospective Loans or participations in Letters of Credit or Swingline Loans, (iv) has failed to pay to the Administrative Agent, the Swingline Lender, the Issuing Lender or any Lender when due an amount owed by such Lender pursuant to the terms of this Agreement, unless such amount is subject to a good faith dispute or such failure has been cured, or (v) (a) has become or is insolvent or has a parent company that has become or is insolvent, (b) has become the subject of a proceeding under any Debtor Relief Law, or has had a receiver, conservator, trustee or custodian appointed for it (including, without limitation, the appointment of the Federal Deposit Insurance Corporation as a receiver or conservator by a federal or state chartering authority or otherwise pursuant to the Federal Deposit Insurance Act), or has taken any action in furtherance of, or indicating its consent to, approval of or acquiescence in any such proceeding or appointment or (c) has a parent company that has become the subject of a proceeding under any Debtor Relief Law, or has had a receiver, conservator, trustee or custodian appointed for it (including, without limitation, the appointment of the Federal Deposit Insurance Corporation as a receiver or conservator by a federal or state chartering authority or otherwise pursuant to the Federal Deposit Insurance Act), or has taken any action in furtherance of, or indicating its consent to, approval of or acquiescence in any such proceeding or appointment.

“ Disqualified Capital Stock ” means, with respect to any Person, any Capital Stock of such Person that, by its terms (or by the terms of any security into which it is convertible or for which it is exchangeable), or upon the happening of any event or otherwise, (i) matures or is mandatorily redeemable or subject to any mandatory repurchase requirement, pursuant to a sinking fund obligation or otherwise, (ii) is redeemable or subject to any mandatory repurchase requirement at the sole option of the holder thereof, or (iii) is convertible into or exchangeable for (whether at the option of the issuer or the holder thereof) (y) debt securities or (z) any Capital Stock referred to in (i) or (ii) above, in each case under (i), (ii) or (iii) above at any time on or

prior to the first anniversary of the Maturity Date; provided, however, that only the portion of Capital Stock that so matures or is mandatorily redeemable, is so redeemable at the option of the holder thereof, or is so convertible or exchangeable on or prior to such date shall be deemed to be Disqualified Capital Stock.

“ Dollar Amount ” means, at any time: (a) with respect to an amount denominated in Dollars, such amount; and (b) with respect to an amount denominated in a Foreign Currency, an equivalent amount thereof in Dollars as determined by the Administrative Agent at such time on the basis of the Spot Rate for the purchase of Dollars with such Foreign Currency.

“ Dollar Commitment ” means, with respect to any Dollar Lender at any time, the commitment of such Lender to make Dollar Loans and participate in Letters of Credit and Swingline Loans in an aggregate principal amount at any time outstanding up to the amount set forth opposite such Lender’s name on **Schedule 1.1(a)** under the caption “Dollar Commitment” or, if such Lender has entered into one or more Assignment and Assumptions, the amount set forth for such Lender at such time in the Register maintained by the Administrative Agent pursuant to **Section 10.6(c)** as such Lender’s “Dollar Commitment,” in either case, as such amount may be reduced at or prior to such time pursuant to the terms hereof or increased from time to time pursuant to **Section 2.20** .

“ Dollar Equivalent ” means, on any date of determination, with respect to an amount denominated in any Foreign Currency, the amount of Dollars that would be required to purchase such amount of such Foreign Currency on such date of determination, based upon the Spot Rate.

“ Dollar Lender ” means each Person listed on **Schedule 1.1(a)** as having a Dollar Commitment and each other Person that becomes a “Dollar Lender” hereunder pursuant to **Section 2.18(a)** , **Section 2.20** or **Section 10.6** , and their respective successors and assigns.

“ Dollar Loan ” means any Revolving Loan made by a Dollar Lender pursuant to **Section 2.1(a)** denominated in Dollars.

“ Dollar Note ” means, with respect to any Dollar Lender requesting the same, the promissory note of the Borrower in favor of such Dollar Lender evidencing the Dollar Loans made by such Lender pursuant to **Section 2.1(a)** , in substantially the form of **Exhibit A-1** , together with any amendments, modifications and supplements thereto, substitutions therefor and restatements thereof.

“ Dollars ” or “ \$ ” means dollars of the United States of America.

“ Domestic Subsidiary ” means any Subsidiary of the Borrower organized under the laws of any jurisdiction within the United States.

“ EMU Legislation ” means the legislative measures of the European Union for the introduction of, changeover to or operation of the Euro that apply generally in the European Union.

“ Environmental Claims ” means any and all administrative, regulatory or judicial actions, suits, demands, demand letters, claims, liens, allegations, notices of noncompliance or violation,

investigations by a Governmental Authority, or proceedings (including, without limitation, administrative, regulatory and judicial proceedings) relating in any way to any Hazardous Substance, any actual or alleged violation of or liability under any Environmental Law or any permit issued, or any approval given, under any Environmental Law (collectively, “ Claims ”), including, without limitation, (i) any and all Claims by Governmental Authorities for enforcement, cleanup, removal, response, remedial or other actions or damages pursuant to any applicable Environmental Law and (ii) any and all Claims by any third party seeking damages, contribution, indemnification, cost recovery, compensation or injunctive relief resulting from any Hazardous Substance or arising from alleged injury or threat of injury to human health or the environment.

“ Environmental Laws ” means any and all federal, state and local laws, statutes, ordinances, rules, regulations, permits, licenses, approvals, rules of common law and orders of courts or Governmental Authorities, relating to the protection of human health, occupational safety with respect to exposure to Hazardous Substances, or the environment, now or hereafter in effect, and in each case as amended from time to time, including, without limitation, requirements pertaining to the manufacture, processing, distribution, use, treatment, storage, disposal, transportation, handling, reporting, licensing, permitting, investigation or remediation of Hazardous Substances.

“ ERISA ” means the Employee Retirement Income Security Act of 1974, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ ERISA Affiliate ” means any Person (including any trade or business, whether or not incorporated) deemed to be under “common control” with, or a member of the same “controlled group” as, the Borrower or any of its Subsidiaries, within the meaning of Sections 414(b), (c), (m) or (o) of the Code or Section 4001 of ERISA.

“ ERISA Event ” means any of the following with respect to a Plan or Multiemployer Plan, as applicable: (i) a Reportable Event, (ii) a complete or partial withdrawal by the Borrower or any ERISA Affiliate from a Multiemployer Plan that results in liability under Section 4201 or 4204 of ERISA, or the receipt by the Borrower or any ERISA Affiliate of notice from a Multiemployer Plan that it is in reorganization or insolvency pursuant to Section 4241 or 4245 of ERISA or that it intends to terminate or has terminated under Section 4041A of ERISA, (iii) the distribution by the Borrower or any ERISA Affiliate under Section 4041 or 4041A of ERISA of a notice of intent to terminate any Plan or the taking of any action to terminate any Plan, (iv) the commencement of proceedings by the PBGC under Section 4042 of ERISA for the termination of, or the appointment of a trustee to administer, any Plan, or the receipt by the Borrower or any ERISA Affiliate of a notice from any Multiemployer Plan that such action has been taken by the PBGC with respect to such Multiemployer Plan, (v) the institution of a proceeding by any fiduciary of any Multiemployer Plan against the Borrower or any ERISA Affiliate to enforce Section 515 of ERISA, which is not dismissed within thirty (30) days, (vi) the imposition upon the Borrower or any ERISA Affiliate of any liability under Title IV of ERISA, other than for PBGC premiums due but not delinquent under Section 4007 of ERISA, or the imposition or threatened imposition of any Lien upon any assets of the Borrower or any ERISA Affiliate as a result of any alleged failure to comply with the Code or ERISA in respect of any Plan, (vii) the

engaging in or otherwise becoming liable for a nonexempt Prohibited Transaction by the Borrower or any ERISA Affiliate, or a violation of the applicable requirements of Section 404 or 405 of ERISA or the exclusive benefit rule under Section 401(a) of the Code by any fiduciary of any Plan for which the Borrower or any of its ERISA Affiliates may be directly or indirectly liable, (viii) the occurrence with respect to any Plan of any “accumulated funding deficiency” (within the meaning of Section 302 of ERISA and Section 412 of the Code), whether or not waived, (ix) with respect to plan years beginning prior to January 1, 2008, the adoption of an amendment to any Plan that, pursuant to Section 307 of ERISA, would require the provision of security to such Plan by the Borrower or an ERISA Affiliate, or (x) with respect to plan years beginning on or after the PPA 2006 Effective Date, the incurrence of an obligation to provide a notice under Section 101(j) of ERISA, the adoption of an amendment which may not take effect due to the application of Section 436(c)(1) of the Code or Section 206(g)(2)(A) of ERISA, or the payment of a contribution in order to satisfy the requirements of Section 436(c)(2) of the Code or Section 206(g)(2)(B) of ERISA.

“Euro” or “€” means the single currency of the European Union as constituted by the Treaty on European Union and as referred to in the EMU Legislation.

“Event of Default” has the meaning given to such term in **Section 8.1** .

“Exchange Act” means the Securities Exchange Act of 1934, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“Excluded Taxes” means, with respect to the Administrative Agent, any Lender or any other recipient of any payment to be made by or on account of any obligation of the Borrower hereunder, (i) taxes imposed on or measured by its overall net income (however denominated), and franchise taxes imposed on it (in lieu of net income taxes), by the jurisdiction (or any political subdivision thereof) under the laws of which such recipient is organized or in which its principal office is located or, in the case of any Lender, in which its applicable Lending Office is located, (ii) any branch profits taxes imposed by the United States or any similar tax imposed by any other jurisdiction in which the Borrower is located and (iii) in the case of a Foreign Lender (other than an assignee pursuant to a request by the Borrower under **Section 2.18(a)**), any withholding tax that is imposed on amounts payable to such Foreign Lender at the time such Foreign Lender becomes a party hereto (or designates a new Lending Office) or is attributable to such Foreign Lender’s failure or inability (other than as a result of a Change in Law) to comply with **Section 2.16(e)** , except to the extent that such Foreign Lender (or its assignor, if any) was entitled, at the time of designation of a new Lending Office (or assignment), to receive additional amounts from the Borrower with respect to such withholding tax pursuant to **Section 2.16(a)** .

“Existing 2007 Credit Facility” has the meaning set forth in **Section 3.1(c)** .

“Existing 2009 Credit Facility” has the meaning set forth in **Section 3.1(d)** .

“Existing Letters of Credit” means those letters of credit set forth on **Schedule 1.1(b)** and continued under this Agreement as Letters of Credit issued by the Issuing Bank pursuant to **Section 2.19** .

“ Federal Funds Rate ” means, for any period, a fluctuating per annum interest rate (rounded upwards, if necessary, to the nearest 1/100 of one percentage point) equal for each day during such period to the weighted average of the rates on overnight federal funds transactions with members of the Federal Reserve System arranged by federal funds brokers, as published for such day (or, if such day is not a Business Day, for the next preceding Business Day) by the Federal Reserve Bank of New York, or if such rate is not so published for any day that is a Business Day, the average of the quotations for such day on such transactions received by the Administrative Agent from three federal funds brokers of recognized standing selected by the Administrative Agent.

“ Federal Reserve Board ” means the Board of Governors of the Federal Reserve System or any successor thereto.

“ Fee Letters ” means the Joint Fee Letter and the Wells Fargo Fee Letter.

“ Financial Condition Certificate ” means a fully completed and duly executed certificate, in substantially the form of **Exhibit F** , together with the attachments thereto.

“ Financial Officer ” means, with respect to the Borrower, the chief financial officer, vice president - finance, principal accounting officer or treasurer of the Borrower.

“ fiscal quarter ” or “ FQ ” means a fiscal quarter of the Borrower and its Subsidiaries.

“ fiscal year ” or “ FY ” means a fiscal year of the Borrower and its Subsidiaries.

“ Foreign Currency ” means Euro or Sterling.

“ Foreign Currency Equivalent ” means, on any date of determination, with respect to an amount denominated in Dollars, the equivalent amount thereof in the applicable Foreign Currency that would be required to purchase such amount of Dollars on such date of determination, based upon the Spot Rate.

“ Foreign Lender ” means any Lender that is organized under the laws of a jurisdiction outside of the United States.

“ Foreign Subsidiary ” means any Subsidiary of the Borrower that is not a Domestic Subsidiary.

“ Fund ” means any Person (other than a natural person) that is (or will be) engaged in making, purchasing, holding or otherwise investing in commercial loans and similar extensions of credit in the ordinary course of its business.

“ GAAP ” means generally accepted accounting principles in the United States of America, as set forth in the statements, opinions and pronouncements of the Accounting Principles Board, the American Institute of Certified Public Accountants and the Financial Accounting Standards Board, consistently applied and maintained, as in effect from time to time (subject to the provisions of **Section 1.2**).

“Governmental Authority” means the government of the United States of America or any other nation, or of any political subdivision thereof, whether state or local, and any agency, authority, instrumentality, regulatory body, court, central bank or other entity exercising executive, legislative, judicial, taxing, regulatory or administrative powers or functions of or pertaining to government (including any supra-national bodies such as the European Union or the European Central Bank).

“Guarantor” means any Wholly-Owned Subsidiary of the Borrower that is a guarantor of the Obligations under the Guaranty (or under another guaranty agreement in form and substance satisfactory to the Administrative Agent).

“Guaranty” means a guaranty agreement made by the Guarantors in favor of the Administrative Agent and the Lenders, in substantially the form of **Exhibit E**, as amended, modified, restated or supplemented from time to time.

“Guaranty Fund” means any fund set up by (i) ICE Clear US pursuant to Section 5.4 of its by-laws, (ii) ICE Clear Europe, (iii) The Clearing Corporation, (iv) ICE Trust, (v) ICE Clear Canada, and (vi) such other clearing houses owned and operated by the Borrower in the future, in each case in which its clearing members make deposits to secure the obligations of its clearing members and which is used to cover the losses sustained by such Person as a result of the default of any such clearing member.

“Guaranty Obligation” means, with respect to any Person, any direct or indirect liability of such Person with respect to any Indebtedness, liability or other obligation (the “primary obligation”) of another Person (the “primary obligor”), whether or not contingent, (i) to purchase, repurchase or otherwise acquire such primary obligation or any property constituting direct or indirect security therefor, (ii) to advance or provide funds (x) for the payment or discharge of any such primary obligation or (y) to maintain working capital or equity capital of the primary obligor or otherwise to maintain the net worth or solvency or any balance sheet item, level of income or financial condition of the primary obligor (including, without limitation, keep well agreements, maintenance agreements, comfort letters or similar agreements or arrangements), (iii) to lease or purchase property, securities or services primarily for the purpose of assuring the owner of any such primary obligation of the ability of the primary obligor in respect thereof to make payment of such primary obligation or (iv) otherwise to assure or hold harmless the owner of any such primary obligation against loss or failure or inability to perform in respect thereof; provided, however, that, with respect to the Borrower and its Subsidiaries, the term Guaranty Obligation shall not include endorsements for collection or deposit in the ordinary course of business. The amount of any Guaranty Obligation of any guaranteeing Person hereunder shall be deemed to be the lower of (a) an amount equal to the stated or determinable amount of the primary obligation in respect of which such Guaranty Obligation is made and (b) the maximum amount for which such guaranteeing Person may be liable pursuant to the terms of the instrument embodying such Guaranty Obligation, unless such primary obligation and the maximum amount for which such guaranteeing Person may be liable are not stated or determinable, in which case the amount of such Guaranty Obligation shall be such guaranteeing Person’s maximum reasonably anticipated liability in respect thereof as determined by such guaranteeing Person in good faith.

“Hazardous Substance” means any substance or material meeting any one or more of the following criteria: (i) it is or contains a substance designated as a hazardous waste, hazardous substance, hazardous material, pollutant, contaminant or toxic substance under any Environmental Law, (ii) it is toxic, explosive, corrosive, ignitable, infectious, radioactive, mutagenic or otherwise hazardous to human health or the environment and is or becomes regulated by any Governmental Authority, (iii) its presence may require investigation or response under any Environmental Law, (iv) it constitutes a nuisance, trespass or health or safety hazard to Persons or neighboring properties, or (v) it is or contains, without limiting the foregoing, asbestos, polychlorinated biphenyls, urea formaldehyde foam insulation, petroleum hydrocarbons, petroleum derived substances or wastes, crude oil, nuclear fuel, natural gas or synthetic gas.

“Hedge Agreement” means any interest or foreign currency rate swap, cap, collar, option, hedge, forward rate or other similar agreement or arrangement designed to protect against fluctuations in interest rates or currency exchange rates.

“Hedge Party” means any Lender or any Affiliate of any Lender in its capacity as a counterparty to any Hedge Agreement with the Borrower or any Subsidiary, which Hedge Agreement is required or permitted under this Agreement to be entered into by the Borrower, or any former Lender or any Affiliate of any former Lender in its capacity as a counterparty to any such Hedge Agreement entered into prior to the date such Person or its Affiliate ceased to be a Lender.

“ICE Clear Canada” means ICE Clear Canada, Inc., a Manitoba corporation and an indirect Wholly-Owned Subsidiary of the Borrower.

“ICE Clear Europe” means ICE Clear Europe Limited, a private limited company incorporated in England and Wales and an indirect Wholly-Owned Subsidiary of the Borrower.

“ICE Clear Europe Payment Services Agreement” shall mean the Payment Services Agreement between ICE Clear Europe and Citibank, N.A., London Branch, in a form reasonably acceptable to the Administrative Agent, for the purpose of providing an intraday liquidity line of credit to handle timing differences between receipts from and payments to clearing house members, and any renewal, replacement, refinancing or extension of such Indebtedness that does not increase the outstanding principal amount thereof.

“ICE Clear US” means ICE Clear U.S., Inc., a New York corporation and an indirect Wholly-Owned Subsidiary of the Borrower (formerly known as New York Clearing Corporation).

“ICE Futures Europe” means ICE Futures Europe, a United Kingdom corporation and an indirect Wholly-Owned Subsidiary of the Borrower.

“ICE Trust” means ICE Trust U.S. LLC, a New York limited liability trust company and a Subsidiary of the Borrower.

“Increasing Lender” has the meaning set forth in **Section 2.20(a)**.

“Indebtedness” means, with respect to any Person (without duplication), (i) all obligations of such Person for borrowed money, (ii) all obligations of such Person evidenced by notes, bonds, debentures or similar instruments, or upon which interest payments are customarily made, (iii) the maximum stated or face amount of all surety bonds, letters of credit and bankers’ acceptances issued or created for the account of such Person and, without duplication, all drafts drawn thereunder (to the extent unreimbursed), (iv) all obligations of such Person to pay the deferred purchase price of property or services (excluding trade payables incurred in the ordinary course of business and not more than 90 days past due), (v) all indebtedness created or arising under any conditional sale or other title retention agreement with respect to property acquired by such Person, (vi) all Capital Lease Obligations of such Person, (vii) all Disqualified Capital Stock issued by such Person, with the amount of Indebtedness represented by such Disqualified Capital Stock being equal to the greater of its voluntary or involuntary liquidation preference and its maximum fixed repurchase price, (viii) the principal balance outstanding and owing by such Person under any synthetic lease, tax retention operating lease or similar off-balance sheet financing product, (ix) all Guaranty Obligations of such Person with respect to Indebtedness of another Person, (x) the net termination obligations of such Person under any Hedge Agreements, calculated as of any date as if such agreement or arrangement were terminated as of such date, and (xi) all indebtedness of the types referred to in clauses (i) through (x) above (A) of any partnership or unincorporated joint venture in which such Person is a general partner or joint venturer to the extent such Person is liable therefor or (B) secured by any Lien on any property or asset owned or held by such Person regardless of whether or not the indebtedness secured thereby shall have been incurred or assumed by such Person or is nonrecourse to the credit of such Person, the amount thereof being equal to the value of the property or assets subject to such Lien.

“Indemnified Taxes” means Taxes other than Excluded Taxes.

“Intellectual Property” means (i) all inventions (whether or not patentable and whether or not reduced to practice), all improvements thereto, and all patents, patent applications, and patent disclosures, together with all reissues, continuations, continuations-in-part, divisions, revisions, extensions, and reexaminations thereof, (ii) all trademarks, service marks, trade dress, logos, trade names, and corporate names, together with all goodwill associated therewith, and all applications, registrations, and renewals in connection therewith, (iii) all copyrightable works and all copyrights (registered and unregistered), (iv) all trade secrets and confidential information (including, without limitation, financial, business and marketing plans and customer and supplier lists and related information), (v) all computer software and software systems (including, without limitation, data, databases and related documentation), (vi) all Internet web sites and domain names, (vii) all technology, know-how, processes and other proprietary rights, and (viii) all licenses or other agreements to or from third parties regarding any of the foregoing.

“Interest Coverage Ratio” means, as of the last day of any Reference Period ending on the last day of a fiscal quarter, the ratio of (i) Consolidated EBITDA for such Reference Period less Capital Expenditures and Capitalized Software Development Costs to (ii) Consolidated Interest Expense for such Reference Period.

“Interest Period” has the meaning given to such term in **Section 2.10** .

“ Investments ” has the meaning given to such term in **Section 7.11** .

“ Issuing Lender ” means Wells Fargo in its capacity as issuer of the Letters of Credit, and its successors in such capacity.

“ Joint Fee Letter ” means the letter from Wells Fargo, Wells Fargo Securities, LLC, BofA and Banc of America Securities LLC, to the Borrower, dated February 11, 2010, relating to certain fees payable by the Borrower in respect of the transactions contemplated by this Agreement, as amended, modified, restated or supplemented from time to time.

“ Lenders ” means, collectively, the Dollar Lenders and the Multicurrency Lenders. Unless the context otherwise requires, the term “Lenders” includes the Swingline Lender.

“ Lending Office ” means, with respect to any Lender, the office of such Lender designated as such in such Lender’s Administrative Questionnaire or in connection with an Assignment and Assumption, or such other office as may be otherwise designated in writing from time to time by such Lender to the Borrower and the Administrative Agent. A Lender may designate separate Lending Offices as provided in the foregoing sentence for the purposes of making or maintaining different Types and Classes of Loans, and, with respect to LIBOR Loans, such office may be a domestic or foreign branch or Affiliate of such Lender.

“ Letter of Credit Exposure ” means, with respect to any Dollar Lender at any time, such Lender’s ratable share (based on the proportion that its Dollar Commitment bears to the aggregate Dollar Commitments at such time, or if the Dollar Commitments have been terminated, based upon the proportion that its Revolving Dollar Credit Exposure bears to the Aggregate Revolving Dollar Credit Exposure) of the sum of (i) the aggregate Stated Amount of all Letters of Credit outstanding at such time and (ii) the aggregate amount of all Reimbursement Obligations outstanding at such time.

“ Letter of Credit Maturity Date ” means the fifth Business Day prior to the Maturity Date.

“ Letter of Credit Notice ” has the meaning given to such term in **Section 2.19(b)** .

“ Letters of Credit ” has the meaning given to such term in **Section 2.19(a)** .

“ LIBOR Loan ” means, at any time, any Revolving Loan that bears interest at such time at the applicable Adjusted LIBOR Rate.

“ LIBOR Market Index Rate ” means, for any date, the rate for one month Dollar deposits as reported on Reuters Screen LIBOR01 Page as of 11:00 a.m. London time, on such day, or if such day is not a London Banking Day, then the immediately preceding London Banking Day (or if not so reported, then as reasonably determined by the Administrative Agent from another recognized source or interbank quotation).

“ LIBOR Market Index Rate Loan ” means any Swingline Loan bearing interest at a rate determined by reference to the LIBOR Market Index Rate.

“ LIBOR Rate ” means, with respect to each LIBOR Loan denominated in any Currency comprising part of the same Borrowing for any Interest Period, an interest rate per annum obtained by dividing (i) (y) the rate of interest appearing on Reuters Screen LIBOR01 Page (or any successor page) that represents an average British Bankers Association Interest Settlement Rate for deposits denominated in such Currency or (z) if no such rate is available, the rate of interest determined by the Administrative Agent to be the rate or the arithmetic mean of rates at which deposits in such Currency in immediately available funds are offered to first-tier banks in the London interbank Eurodollar market, in each case under (y) and (z) above at approximately 11:00 a.m., London time, two (2) Business Days prior to the first day of such Interest Period for a period substantially equal to such Interest Period and in an amount substantially equal to the amount of Wells Fargo’s LIBOR Loan comprising part of such Borrowing, by (ii) the amount equal to 1.00 minus the Reserve Requirement (expressed as a decimal) for such Interest Period.

“ Lien ” means any mortgage, pledge, hypothecation, assignment, security interest, lien (statutory or otherwise), charge or other encumbrance of any nature, whether voluntary or involuntary, including, without limitation, the interest of any vendor or lessor under any conditional sale agreement, title retention agreement, Capital Lease or any other lease or arrangement having substantially the same effect as any of the foregoing.

“ Loans ” means any or all of the Revolving Loans and the Swingline Loans.

“ Local Time ” means (a) in the case of Multicurrency Loans denominated in Foreign Currency, London time, and (b) in all other cases, Charlotte, North Carolina time.

“ Margin Stock ” has the meaning given to such term in Regulation U.

“ Material Adverse Effect ” means a material adverse effect upon (i) the business, assets, properties, liabilities (actual or contingent), operations, condition (financial or otherwise) or prospects of the Borrower and its Subsidiaries, taken as a whole, (ii) the ability of the Credit Parties, taken as a whole, to perform their respective obligations under this Agreement or any of the other Credit Documents or (iii) the legality, validity or enforceability of this Agreement or any of the other Credit Documents or the rights and remedies of the Administrative Agent and the Lenders hereunder and thereunder.

“ Material Contract ” has the meaning given to such term in **Section 4.19** .

“ Maturity Date ” means the third anniversary of the Closing Date.

“ Multicurrency Agent ” means Wells Fargo Bank, National Association, London Branch, and any other financial institution designated by the Administrative Agent (and reasonably acceptable to the Borrower) to act as its sub-agent and correspondent hereunder in respect of the disbursement and payment of Multicurrency Loans.

“ Multicurrency Commitment ” means, with respect to any Multicurrency Lender at any time, the commitment of such Lender to make Multicurrency Loans in an aggregate principal amount at any time outstanding up to the amount set forth opposite such Lender’s name on **Schedule 1.1(a)** under the caption “Multicurrency Commitment” or, if such Lender has entered into one or more Assignment and Assumptions, the amount set forth for such Lender at such

time in the Register maintained by the Administrative Agent pursuant to **Section 10.6(c)** as such Lender's "Multicurrency Commitment," in either case, as such amount may be reduced at or prior to such time pursuant to the terms hereof or increased from time to time pursuant to **Section 2.20** .

" Multicurrency Lender " means each Person listed on **Schedule 1.1(a)** as having a Multicurrency Commitment and each other Person that becomes a "Multicurrency Lender" hereunder pursuant to **Section 2.18(a)** , **Section 2.20** or **Section 10.6** , and their respective successors and assigns.

" Multicurrency Loan " means any Revolving Loan made by a Multicurrency Lender pursuant to **Section 2.1(b)** denominated in Dollars or a Foreign Currency.

" Multicurrency Note " means, with respect to any Multicurrency Lender requesting the same, the promissory note of the Borrower in favor of such Multicurrency Lender evidencing the Multicurrency Loans made by such Lender pursuant to **Section 2.1(b)** , in substantially the form of **Exhibit A-2** , together with any amendments, modifications and supplements thereto, substitutions therefor and restatements thereof.

" Multiemployer Plan " means any "multiemployer plan" within the meaning of Section 4001(a)(3) of ERISA to which the Borrower or any ERISA Affiliate makes, is making or is obligated to make contributions or, during the immediately preceding five plan years, has made or been obligated to make contributions.

" Net Cash Proceeds " means, in the case of any Asset Disposition, the aggregate cash proceeds received by any Credit Party in respect thereof, less (i) reasonable fees and out-of-pocket expenses payable by the Borrower or any of its Subsidiaries in connection therewith, (ii) taxes paid or payable as a result thereof, and (iii) the amount required to retire Indebtedness to the extent such Indebtedness is secured by Liens on the subject property; it being understood that the term " Net Cash Proceeds " shall include, as and when received, any cash received upon the sale or other disposition of any non-cash consideration received by any Credit Party in respect of any of the foregoing events.

" Nonconsenting Lender " means any Lender that does not approve a consent, waiver or amendment to any Credit Document requested by the Borrower or the Administrative Agent and that requires the approval of all Lenders (or all Lenders directly affected thereby) under **Section 10.5** when the Required Lenders have agreed to such consent, waiver or amendment.

" Non-Wholly-Owned Subsidiary " has the meaning given to such term in **Section 7.11** .

" Notes " means any or all of the Dollar Notes, the Multicurrency Notes and the Swingline Note.

" Notice of Borrowing " has the meaning given to such term in **Section 2.2(b)** .

" Notice of Conversion/Continuation " has the meaning given to such term in **Section 2.11(b)** .

“ Notice of Swingline Borrowing ” has the meaning given to such term in **Section 2.2(d)** .

“ Obligations ” means all principal of and interest (including interest accruing after the filing of a petition or commencement of a case by or with respect to the Borrower seeking relief under any applicable federal and state laws pertaining to bankruptcy, reorganization, arrangement, moratorium, readjustment of debts, dissolution, liquidation or other debtor relief, specifically including, without limitation, the Bankruptcy Code and any fraudulent transfer and fraudulent conveyance laws, whether or not the claim for such interest is allowed in such proceeding) on the Loans and Reimbursement Obligations, and all fees, expenses, indemnities and other obligations owing, due or payable at any time by the Borrower or any Subsidiary Guarantor to the Administrative Agent, any Lender, the Swingline Lender, the Issuing Lender or any other Person entitled thereto, under this Agreement or any of the other Credit Documents, and all payment and other obligations owing or payable at any time by the Borrower to any Hedge Party under or in connection with any Hedge Agreement to fix or limit interest rates payable by the Borrower in respect of any Loans, in each case whether direct or indirect, joint or several, absolute or contingent, matured or unmatured, liquidated or unliquidated, secured or unsecured, and whether existing by contract, operation of law or otherwise.

“ OFAC ” means the U.S. Department of the Treasury’s Office of Foreign Assets Control, and any successor thereto.

“ Other Taxes ” means all present or future stamp or documentary taxes or any other excise or property taxes, charges or similar levies arising from any payment made hereunder or under any other Credit Document or from the execution, delivery or enforcement of, or otherwise with respect to, this Agreement or any other Credit Document.

“ Participant ” has the meaning given to such term in **Section 10.6(d)** .

“ PATRIOT Act ” means the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism (USA PATRIOT Act of 2001), as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ Payment Office ” means the office of the Administrative Agent or the Multicurrency Agent designated on **Schedule 1.1(a)** under the heading “Instructions for wire transfers to the Administrative Agent,” or such other office as the Administrative Agent or the Multicurrency Agent may designate to the Lenders and the Borrower for such purpose from time to time.

“ PBGC ” means the Pension Benefit Guaranty Corporation established pursuant to Subtitle A of Title IV of ERISA, and any successor thereto.

“ Permitted Acquisition ” means any Acquisition permitted to be consummated pursuant to the terms in **Section 7.5** .

“ Permitted Asset Disposition ” means any Asset Disposition permitted under **Section 7.4(iv)** .

“ Permitted Liens ” has the meaning given to such term in **Section 7.3** .

“ Person ” means any natural person, corporation, limited liability company, trust, joint venture, association, company, partnership, Governmental Authority, Self-Regulatory Organization or other entity.

“ Plan ” means any “employee pension benefit plan” within the meaning of Section 3(2) of ERISA that is subject to the provisions of Title IV of ERISA (other than a Multiemployer Plan) and to which the Borrower or any ERISA Affiliate may have any liability.

“ PPA 2006 Effective Date ” means, with respect to any Plan, except as hereinafter provided, the first day of the first plan year beginning on or after January 1, 2008. However, solely with respect to a Plan maintained pursuant to one or more collective bargaining agreements between employee representatives and one or more employers ratified before January 1, 2008, such term means the first day of the first plan year beginning on or after the earlier of (A) and (B), where: (A) is the later of (x) the date on which the last collective bargaining agreement relating to the Plan terminates (determined without regard to any extension thereof agreed to after August 17, 2006), or (y) the first day of the first plan year beginning on or after January 1, 2008; and (B) is January 1, 2010.

“ Pro Forma Basis ” has the meaning given to such term in **Section 1.3(c)** .

“ Prohibited Transaction ” means any transaction described in (i) Section 406 of ERISA that is not exempt by reason of Section 408 of ERISA or by reason of a Department of Labor prohibited transaction individual or class exemption or (ii) Section 4975(c) of the Code that is not exempt by reason of Section 4975(c)(2) or 4975(d) of the Code.

“ Projections ” has the meaning given to such term in **Section 4.11(b)** .

“ Realty ” means all real property and interests in real property now or hereafter acquired or leased by any Credit Party.

“ Reference Period ” with respect to any date of determination, means (except as may be otherwise expressly provided herein) the period of twelve consecutive fiscal months of the Borrower immediately preceding such date or, if such date is the last day of a fiscal quarter, the period of four consecutive fiscal quarters ending on such date.

“ Refunded Swingline Loans ” has the meaning given to such term in **Section 2.2(e)** .

“ Register ” has the meaning given to such term in **Section 10.6(c)** .

“ Regulations T, U and X ” means Regulations T, U and X, respectively, of the Federal Reserve Board, and any successor regulations.

“ Reimbursement Obligation ” has the meaning given to such term in **Section 2.19(d)** .

“ Related Parties ” means, with respect to any Person, such Person’s Affiliates and the partners, directors, officers, employees, agents and advisors of such Person and of such Person’s Affiliates.

“ Reportable Event ” means, with respect to any Plan, (i) any “reportable event” within the meaning of Section 4043(c) of ERISA for which the 30-day notice under Section 4043(a) of ERISA has not been waived by the PBGC (including, without limitation, any failure to meet the minimum funding standard of, or timely make any required installment under, Section 412 of the Code or Section 302 of ERISA, regardless of the issuance of any waivers in accordance with Section 412(d) of the Code), (ii) any such “reportable event” subject to advance notice to the PBGC under Section 4043(b)(3) of ERISA, (iii) any application for a funding waiver or an extension of any amortization period pursuant to Section 412 of the Code, and (iv) a cessation of operations described in Section 4062(e) of ERISA.

“ Required Lenders ” means, at any time, the Revolving Credit Lenders holding outstanding Revolving Loans and Unutilized Commitments (or, after the termination of the Commitments, outstanding Revolving Loans, Letter of Credit Exposure and Swingline Exposure) representing at least a majority of the aggregate, at such time, of all outstanding Revolving Loans and Unutilized Commitments (or, after the termination of the Commitments, the aggregate at such time of all outstanding Revolving Loans, Letter of Credit Exposure and Swingline Exposure), provided that the Commitment of, and the portion of the outstanding Revolving Loans and other Revolving Credit Exposure held or deemed held by, any Defaulting Lender shall be excluded for purposes of making a determination of Required Lenders. The Required Lenders of a Class (which shall include the terms “ Required Dollar Lenders ” and “ Required Multicurrency Lenders ”) means Lenders having Revolving Credit Exposures and unused Commitments of such Class representing more than 50% of the sum of the total Revolving Credit Exposures and unused Commitments of such Class at such time.

“ Requirement of Law ” means, with respect to any Person, the charter, articles or certificate of organization or incorporation and bylaws or other organizational or governing documents of such Person, and any statute, law, treaty, rule, regulation, order, decree, writ, injunction or determination of any arbitrator or court or other Governmental Authority or any Self-Regulatory Organization, in each case applicable to or binding upon such Person or any of its property or to which such Person or any of its property is subject or otherwise pertaining to any or all of the transactions contemplated by this Agreement and the other Credit Documents.

“ Reserve Requirement ” means, with respect to any Interest Period, the reserve percentage (expressed as a decimal and rounded upwards, if necessary, to the next higher 1/100th of 1%) in effect from time to time during such Interest Period, as provided by the Federal Reserve Board, applied for determining the maximum reserve requirements (including, without limitation, basic, supplemental, marginal and emergency reserves) applicable to Wells Fargo under Regulation D with respect to “Eurocurrency liabilities” within the meaning of Regulation D, or under any similar or successor regulation with respect to Eurocurrency liabilities or Eurocurrency funding.

“ Responsible Officer ” means, with respect to any Credit Party, the president, the chief executive officer, the chief financial officer, any executive officer, or any other Financial Officer of such Credit Party, and any other officer or similar official thereof responsible for the administration of the obligations of such Credit Party in respect of this Agreement or any other Credit Document.

“Revaluation Date” means with respect to any Multicurrency Loan, each of the following: (i) each date of a Borrowing of a LIBOR Loan denominated in a Foreign Currency, (ii) each date of a continuation of a LIBOR Loan denominated in a Foreign Currency, and (iii) such additional dates as the Administrative Agent shall reasonably determine or the Required Multicurrency Lenders shall reasonably require.

“Revolving Credit Exposure” means, with respect to any Revolving Credit Lender at any time, the sum of (i) the aggregate principal Dollar Amount of all Revolving Loans made by such Lender that are outstanding at such time, (ii) such Lender’s Swingline Exposure at such time and (iii) such Lender’s Letter of Credit Exposure at such time.

“Revolving Dollar Credit Exposure” means, with respect to any Dollar Lender at any time, the sum of (i) the aggregate principal amount of all Dollar Loans made by such Lender that are outstanding at such time, (ii) such Lender’s Swingline Exposure at such time and (iii) such Lender’s Letter of Credit Exposure at such time.

“Revolving Credit Lenders” means, collectively, the Dollar Lenders and the Multicurrency Lenders.

“Revolving Loans” means, collectively, the Dollar Loans and the Multicurrency Loans.

“Sanctioned Country” means a country subject to a sanctions program identified on the list maintained by OFAC and available at <http://www.treas.gov/offices/enforcement/ofac/-sanctions/index.html>, or as otherwise published from time to time.

“Sanctioned Person” means (i) a Person named on the list of Specially Designated Nationals or Blocked Persons maintained by OFAC available at <http://www.treas.gov/-offices/enforcement/ofac/sdn/index.html>, or as otherwise published from time to time, or (ii) (A) an agency of the government of a Sanctioned Country, (B) an organization controlled by a Sanctioned Country, or (C) a Person resident in a Sanctioned Country, to the extent subject to a sanctions program administered by OFAC.

“Self Regulatory Organization” means any U.S. or foreign commission, board, agency or body that is not a Governmental Authority, but is charged with the supervision or regulation of brokers, dealers, securities underwriting or trading, stock exchanges, commodities exchanges, electronic communication networks, insurance companies or agents, investment companies or investment advisors.

“Spot Rate” for a Currency means the rate determined by the Administrative Agent to be the rate quoted as the spot rate for the purchase of such Currency with another Currency through its principal foreign exchange trading office at approximately 11:00 a.m. on the date two Business Days prior to the date as of which the foreign exchange computation is made; provided that if such spot rate is not available, the “Spot Rate” shall be determined by reference to a publically available service for displaying exchange rates as may be agreed upon by the Administrative Agent and the Borrower, or, in the absence of such an agreement, the Administrative Agent may use any reasonable method it deems appropriate to determine such spot rate, and such determination shall be conclusive absent manifest error.

“ Stated Amount ” means, with respect to any Letter of Credit at any time, the aggregate amount available to be drawn thereunder at such time (regardless of whether any conditions for drawing could then be met).

“ Sterling ” or “ £ ” means the lawful money of the United Kingdom.

“ Subsidiary ” means, with respect to any Person, any corporation or other Person of which more than fifty percent (50%) of the outstanding Capital Stock having ordinary voting power to elect a majority of the board of directors, board of managers or other governing body of such Person, is at the time, directly or indirectly, owned or controlled by such Person and one or more of its other Subsidiaries or a combination thereof (irrespective of whether, at the time, securities of any other class or classes of any such corporation or other Person shall or might have voting power by reason of the happening of any contingency). When used without reference to a parent entity, the term “Subsidiary” shall be deemed to refer to a Subsidiary of the Borrower.

“ Subsidiary Guarantor ” means any Guarantor that is a Subsidiary of the Borrower.

“ Swingline Commitment ” means \$50,000,000, or, if less, the aggregate Dollar Commitments at the time of determination, as such amount may be reduced at or prior to such time pursuant to the terms hereof.

“ Swingline Exposure ” means, with respect to any Dollar Lender at any time, its maximum aggregate liability to make Refunded Swingline Loans pursuant to **Section 2.2(e)** to refund, or to purchase participations pursuant to **Section 2.2(f)** in, Swingline Loans that are outstanding at such time.

“ Swingline Lender ” means Wells Fargo in its capacity as maker of Swingline Loans, and its successors in such capacity.

“ Swingline Loans ” has the meaning given to such term in **Section 2.1(c)** .

“ Swingline Maturity Date ” means the day which is 30 days prior to the Maturity Date.

“ Swingline Note ” means, if requested by the Swingline Lender, the promissory note of the Borrower in favor of the Swingline Lender evidencing the Swingline Loans made by the Swingline Lender pursuant to **Section 2.1(c)** , in substantially the form of **Exhibit A-3** , together with any amendments, modifications and supplements thereto, substitutions therefor and restatements thereof.

“ Syndication Agent ” means Bank of America, N.A., and its successors in its capacity as syndication agent.

“ Taxes ” means all present or future taxes, levies, imposts, duties, deductions, withholdings, assessments, fees or other charges imposed by any Governmental Authority, including any interest, additions to tax or penalties applicable thereto.

“ Terminating Liquidity Facility ” has the meaning set forth in **Section 3.1(e)** .

“ Termination Date ” means the Maturity Date or such earlier date of termination of the Commitments pursuant to **Section 2.5** or **Section 8.2** .

“ The Clearing Corporation ” means The Clearing Corporation, a Delaware corporation and a Subsidiary of the Borrower.

“ Total Funded Debt ” means, as of any date of determination, the aggregate principal amount of all Indebtedness of the Borrower and its Subsidiaries as of such date, determined on a consolidated basis in accordance with GAAP.

“ Total Leverage Ratio ” means, as of the last day of any Reference Period ending on the last day of a fiscal quarter, the ratio of (i) Total Funded Debt as of such date to (ii) Consolidated EBITDA for such Reference Period.

“ Total Voting Power ” means, with respect to any Person, the total number of votes which may be cast in the election of directors of such Person at any meeting of stockholders of such Person if all securities entitled to vote in the election of directors of such Person (on a fully diluted basis, assuming the exercise, conversion or exchange of all rights, warrants, options and securities exercisable for, exchangeable for or convertible into, such voting securities) were present and voted at such meeting (other than votes that may be cast only upon the happening of a contingency).

“ Type ” has the meaning given to such term in **Section 2.2(a)** .

“ Unfunded Pension Liability ” means, with respect to any Plan, the excess of its benefit liabilities under Section 4001(a)(16) of ERISA over the current value of its assets, determined in accordance with the applicable assumptions used for funding under Section 412 of the Code for the applicable plan year.

“ Unutilized Commitment ” means, with respect to any Revolving Credit Lender at any time, such Lender’s Unutilized Dollar Commitment or Unutilized Multicurrency Commitment, as the context may require.

“ Unutilized Dollar Commitment ” means, with respect to any Dollar Lender at any time, such Lender’s Dollar Commitment at such time less the sum of (i) the aggregate principal amount of all Dollar Loans made by such Lender that are outstanding at such time, (ii) such Lender’s Swingline Exposure at such time and (iii) such Lender’s Letter of Credit Exposure at such time.

“ Unutilized Multicurrency Commitment ” means, with respect to any Multicurrency Lender at any time, such Lender’s Multicurrency Commitment at such time less the sum of the aggregate principal amount of all Multicurrency Loans made by such Lender that are outstanding at such time.

“ Unutilized Swingline Commitment ” means, with respect to the Swingline Lender at any time, the Swingline Commitment at such time less the aggregate principal amount of all Swingline Loans that are outstanding at such time.

“ Wells Fargo ” means Wells Fargo Bank, National Association (successor by merger to Wachovia Bank, National Association), and its successors and assigns.

“ Wells Fargo Fee Letter ” means the letter from Wells Fargo and Wells Fargo Securities, LLC, to the Borrower, dated February 11, 2010, relating to certain fees payable by the Borrower in respect of the transactions contemplated by this Agreement, as amended, modified, restated or supplemented from time to time.

“ Wholly-Owned ” means, with respect to any Subsidiary of any Person, that 100% of the outstanding Capital Stock of such Subsidiary (excluding any directors’ qualifying shares and shares required to be held by foreign nationals, in the case of a Foreign Subsidiary) is owned, directly or indirectly, by such Person.

1.2 Accounting Terms. Unless otherwise specified herein, all accounting terms used herein shall be interpreted, all accounting determinations hereunder shall be made, and all financial statements required to be delivered hereunder shall be prepared in accordance with, GAAP applied on a basis consistent with the most recent audited consolidated financial statements of the Borrower and its Subsidiaries delivered to the Lenders prior to the Closing Date; provided that if the Borrower notifies the Administrative Agent that it wishes to amend any financial covenant in **Article VI** to eliminate the effect of any change in GAAP on the operation of such covenant (or if the Administrative Agent notifies the Borrower that the Required Lenders wish to amend **Article VI** for such purpose), then the Borrower’s compliance with such covenant shall be determined on the basis of GAAP as in effect immediately before the relevant change in GAAP became effective, until either such notice is withdrawn or such covenant is amended in a manner satisfactory to the Borrower and the Required Lenders.

1.3 Other Terms; Construction.

(a) The definitions of terms herein shall apply equally to the singular and plural forms of the terms defined. Whenever the context may require, any pronoun shall include the corresponding masculine, feminine and neuter forms. The words “ include,” “ includes ” and “ including ” shall be deemed to be followed by the phrase “without limitation.” The word “ will ” shall be construed to have the same meaning and effect as the word “ shall.” Unless the context requires otherwise, (i) any definition of or reference to any agreement, instrument or other document shall be construed as referring to such agreement, instrument or other document as from time to time amended, supplemented, restated or otherwise modified (subject to any restrictions on such amendments, supplements, restatements or modifications set forth herein or in any other Credit Document), (ii) any reference herein to any Person shall be construed to include such Person’s successors and assigns permitted hereunder, (iii) the words “ herein,” “ hereof ” and “ hereunder,” and words of similar import when used in any Credit Document, shall be construed to refer to such Credit Document in its entirety and not to any particular provision thereof, (iv) all references in a Credit Document to Articles, Sections, Exhibits and Schedules shall be construed to refer to Articles and Sections of, and Exhibits and Schedules to, the Credit Document in which such references appear, (v) any reference to any law or regulation herein shall, unless otherwise specified, refer to such law or regulation as amended, modified or supplemented from time to time, and (vi) the words “ asset ” and “ property ” shall be construed to have the same meaning and effect and to refer to any and all tangible and intangible assets and properties, including cash, securities, accounts and contract rights.

(b) All references herein to the Lenders or any of them shall be deemed to include the Swingline Lender and the Issuing Lender unless specifically provided otherwise or unless the context otherwise requires.

(c) Notwithstanding the foregoing, calculations to determine compliance by the Borrower for any period with the Total Leverage Ratio covenant as set forth in **Article VI**, and calculations of the financial covenants contained in **Article VI** to determine whether a condition to a Permitted Acquisition, Permitted Asset Disposition, permitted incurrence of Indebtedness or other transaction has been met, shall be determined in each case on a pro forma basis (a “Pro Forma Basis”) after giving effect to any Acquisition, Asset Disposition, incurrence of Indebtedness or other transaction (each, a “transaction”) occurring during such period (or proposed to be consummated, as the case may be) as if such transaction had occurred as of the first day of such period, in accordance with the following:

(i) any Indebtedness incurred or assumed by any Credit Party in connection with any transaction (including any Indebtedness of a Person acquired in a Permitted Acquisition that is not retired or repaid in connection therewith) shall be deemed to have been incurred or assumed as of the first day of the applicable period (and if such Indebtedness has a floating or formula rate, such Indebtedness shall, for purposes of such determination, have an implied rate of interest during the applicable period determined by utilizing the rate of interest that is or would be in effect with respect to such Indebtedness as of the date of determination);

(ii) any Indebtedness retired or repaid in connection with any transaction (including any Indebtedness of a Person acquired in a Permitted Acquisition) shall be deemed to have been retired or repaid as of the first day of the applicable period;

(iii) with respect to any Permitted Acquisition, (A) income statement items (whether positive or negative), cash flow statements (as they relate to Capital Expenditures and Capitalized Software Development Costs) and balance sheet items attributable to the Person or assets acquired shall (to the extent not otherwise included in the consolidated financial statements of the Borrower and its Subsidiaries in accordance with GAAP or in accordance with other provisions of this Agreement) be included in such calculations to the extent relating to the applicable period, provided that such income statement, cash flow statement and balance sheet items are reflected in financial statements or other financial data reasonably acceptable to the Administrative Agent, and (B) operating expense reductions, cost savings and other pro forma adjustments attributable to such Permitted Acquisition may be included to the extent that such adjustments (y) would be permitted pursuant to Article XI of Regulation S-X under the Securities Act (irrespective of whether the Borrower is subject thereto) or (z) have been approved in writing by the Administrative Agent; and

(iv) with respect to any Permitted Asset Disposition, income statement items (whether positive or negative) and balance sheet items attributable to the assets disposed of shall be excluded from such calculations to the extent relating to the applicable period.

1.4 Currency Equivalents Generally .

(a) The Administrative Agent shall determine the Spot Rates as of each Revaluation Date to be used for calculating Dollar Amounts of amounts denominated in Foreign Currencies and shall deliver notice of such determination to the Borrower, provided that the failure of the Administrative Agent to provide the Borrower with any such notice shall neither affect any obligations of the Borrower hereunder or the applicability of the Spot Rate as so determined nor result in any liability on the part of the Administrative Agent to the Borrower. Such Spot Rates shall become effective as of such Revaluation Date and shall be the Spot Rates employed in converting any amounts between the applicable Currencies until the next Revaluation Date to occur. Except for purposes of financial statements delivered by the Borrower hereunder or calculating financial ratios hereunder or except as otherwise provided herein, the applicable amount of any Currency (other than Dollars) for purposes of the Credit Documents shall be such Dollar Amount as so determined by the Administrative Agent in accordance with this Agreement.

(b) Wherever in this Agreement in connection with a Borrowing, conversion, continuation or prepayment of a LIBOR Loan, an amount, such as a required minimum or multiple amount, is expressed in Dollars, but such Borrowing or LIBOR Loan is denominated in a Foreign Currency, such amount shall be the relevant Foreign Currency Equivalent of such Dollar Amount (rounded to the nearest unit of such Foreign Currency), as determined by the Administrative Agent.

1.5 Redenomination of Certain Foreign Currencies .

(a) Each obligation of any party to this Agreement to make a payment denominated in the national currency unit of any member state of the European Union that adopts the Euro as its lawful currency after the date hereof shall be redenominated into Euro at the time of such adoption (in accordance with the EMU Legislation). If, in relation to the currency of any such member state, the basis of accrual of interest expressed in this Agreement in respect of that currency shall be inconsistent with any convention or practice in the London interbank market for the basis of accrual of interest in respect of the Euro, such expressed basis shall be replaced by such convention or practice with effect from the date on which such member state adopts the Euro as its lawful currency; provided that if any Borrowing in the currency of such member state is outstanding immediately prior to such date, such replacement shall take effect, with respect to such Borrowing, at the end of the then current Interest Period.

(b) Without prejudice and in addition to any method of conversion or rounding prescribed by any EMU Legislation and (i) without limiting the liability of the Borrower for any amount due under this Agreement and (ii) without increasing any commitment of any Lender, all references in this Agreement to minimum amounts (or integral multiples thereof) denominated in the national currency unit of any member state of the European Union that adopts the Euro as its lawful currency after the date hereof shall, immediately upon such adoption, be replaced by references to such minimum amounts (or integral multiples thereof) as shall be specified herein with respect to Borrowings denominated in Euro.

(c) Each provision of this Agreement shall be subject to such reasonable changes of construction as the Administrative Agent may from time to time specify to be appropriate to reflect the adoption of the Euro by any member state of the European Union and any relevant market conventions or practices relating to the Euro.

ARTICLE II

AMOUNT AND TERMS OF THE LOANS

2.1 Commitments.

(a) Each Dollar Lender severally agrees, subject to and on the terms and conditions of this Agreement, to make Dollar Loans to the Borrower, from time to time on any Business Day during the period from and including the Closing Date to but excluding the Termination Date, in an aggregate principal amount at any time outstanding not exceeding its Dollar Commitment, provided that no Borrowing of Dollar Loans shall be made if, immediately after giving effect thereto (and to any concurrent repayment of Swingline Loans with proceeds of Dollar Loans made pursuant to such Borrowing), (y) the Revolving Dollar Credit Exposure of any Dollar Lender would exceed its Dollar Commitment at such time or (z) the Aggregate Revolving Dollar Credit Exposure would exceed the aggregate Dollar Commitments at such time. Subject to and on the terms and conditions of this Agreement, the Borrower may borrow, repay and reborrow Dollar Loans.

(b) Each Multicurrency Lender severally agrees, subject to and on the terms and conditions of this Agreement, to make Multicurrency Loans to the Borrower, from time to time on any Business Day during the period from and including the Closing Date to but excluding the Termination Date, in an aggregate principal amount at any time outstanding not exceeding its Multicurrency Commitment, provided that no Borrowing of Multicurrency Loans shall be made if, immediately after giving effect thereto, (y) the Dollar Amount of Multicurrency Loans of any Multicurrency Lender would exceed its Multicurrency Commitment at such time or (z) the Dollar Amount of the aggregate outstanding Multicurrency Loans would exceed the aggregate Multicurrency Commitments at such time. Subject to and on the terms and conditions of this Agreement, the Borrower may borrow, repay and reborrow Multicurrency Loans.

(c) The Swingline Lender agrees, subject to and on the terms and conditions of this Agreement, to make loans in Dollars (each, a “Swingline Loan,” and collectively, the “Swingline Loans”) to the Borrower under the Dollar Commitments, from time to time on any Business Day during the period from the Closing Date to but excluding the Swingline Maturity Date (or, if earlier, the Termination Date), in an aggregate principal amount at any time outstanding not exceeding the Swingline Commitment. Swingline Loans may be made even if the aggregate principal amount of Swingline Loans outstanding at any time, when added to the aggregate principal amount of the Dollar Loans made by the Swingline Lender in its capacity as a Dollar Lender outstanding at such time, would exceed the Swingline Lender’s own Dollar Commitment at such time, but provided that no Borrowing of Swingline Loans shall be made if, immediately

after giving effect thereto, (x) the Revolving Dollar Credit Exposure of any Dollar Lender would exceed its Dollar Commitment at such time, (y) the Aggregate Revolving Dollar Credit Exposure would exceed the aggregate Dollar Commitments at such time or (z) any Lender is at such time a Defaulting Lender hereunder, unless the aggregate Swingline Exposure of such Lender has been reallocated pursuant to **Section 2.21(c)(i)** and any amount not reallocated has been cash collateralized pursuant to **Section 2.21(c)(ii)** or the Swingline Lender has entered into other satisfactory arrangements with the Borrower or such Lender to eliminate the Swingline Lender's risk with respect to such Lender. Subject to and on the terms and conditions of this Agreement, the Borrower may borrow, repay (including by means of a Borrowing of Dollar Loans pursuant to **Section 2.2(e)**) and reborrow Swingline Loans.

2.2 Borrowings.

(a) The Dollar Loans and Multicurrency Loans denominated in Dollars shall, at the option of the Borrower and subject to the terms and conditions of this Agreement, be either Base Rate Loans or LIBOR Loans (each, a "Type" of Revolving Loan). The Multicurrency Loans denominated in a Foreign Currency shall be made and maintained as LIBOR Loans at all times. All Revolving Loans comprising the same Borrowing shall, unless otherwise specifically provided herein, be of the same Type and Currency. The Swingline Loans shall be made and maintained as LIBOR Market Index Rate Loans at all times.

(b) In order to make a Borrowing (other than (w) Borrowings of Swingline Loans, which shall be made pursuant to **Section 2.2(d)**, (x) Borrowings for the purpose of repaying Refunded Swingline Loans, which shall be made pursuant to **Section 2.2(e)**, (y) Borrowings for the purpose of satisfying a Reimbursement Obligation of the Borrower, which shall be made pursuant to **Section 2.19(e)**, and (z) Borrowings involving continuations or conversions of outstanding Revolving Loans, which shall be made pursuant to **Section 2.11**), (i) the Borrower will give the Administrative Agent written notice not later than 11:00 a.m., Charlotte, North Carolina time, three (3) Business Days prior to each Borrowing of Dollar Loans or Multicurrency Loans denominated in Dollars to be comprised of LIBOR Loans and not later than 10:00 a.m., Charlotte, North Carolina time, on the Business Day of any Borrowing of Dollar Loans or Multicurrency Loans denominated in Dollars to be comprised of Base Rate Loans, and (ii) the Borrower will give the Administrative Agent written notice not later than 10:00 a.m., Charlotte, North Carolina time, four (4) Business Days prior to each Borrowing of Multicurrency Loans denominated in a Foreign Currency; provided, however, that requests for the Borrowing of any Revolving Loans to be made on the Closing Date may, at the discretion of the Administrative Agent, be given with less advance notice than as specified hereinabove. Each such notice (each, a "Notice of Borrowing") shall be irrevocable, shall be given in the form of **Exhibit B-1** and shall specify (1) the aggregate principal amount, Currency, Class and initial Type of the Revolving Loans to be made pursuant to such Borrowing, (2) in the case of a Borrowing of LIBOR Loans, the initial Interest Period to be applicable thereto, and (3) the requested Borrowing Date, which shall be a Business Day. Upon its receipt of a Notice of Borrowing, the Administrative Agent will promptly notify each applicable Lender of the proposed Borrowing. Notwithstanding anything to the contrary contained herein:

(i) except for a Borrowing with respect to a Refunded Swingline Loan in accordance with **Section 2.2(e)** and Borrowings to satisfy a Reimbursement Obligation of

the Borrower in accordance with **Section 2.19(e)**, the aggregate principal amount of each Borrowing comprised of Base Rate Loans shall not be less than \$3,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof (or, if less, in the amount of the aggregate Unutilized Commitments with respect to the applicable Class), and the aggregate principal amount of each Borrowing comprised of LIBOR Loans shall not be less than \$5,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof (or, if less, in the amount of the aggregate Unutilized Commitments with respect to the applicable Class);

(ii) to the extent practicable and not in violation of the minimum borrowing requirements hereunder, all Borrowings of Revolving Loans denominated in Dollars shall be made such that, after giving effect to each Borrowing thereof, the percentage that the aggregate outstanding Dollar Loans and Multicurrency Loans denominated in Dollars bear to the aggregate outstanding Revolving Loans denominated in Dollars shall equal the Applicable Commitment Percentage for Dollar Commitments and Multicurrency Commitments, respectively, provided that, notwithstanding the foregoing, the Borrower may alter the balance of Revolving Loans denominated in Dollars between Dollar Loans and Multicurrency Loans as aforesaid described (through, by way of example, the use of the proceeds from a Borrowing of Dollar Loans to pay down outstanding Multicurrency Loans denominated in Dollars), in order to facilitate the borrowing of Multicurrency Loans denominated in a Foreign Currency, so that, for the avoidance of doubt, the Borrower may alter the balance of Revolving Loans denominated in Dollars between Dollar Loans and Multicurrency Loans as aforesaid described, to allow for Borrowings of Multicurrency Loans denominated in a Foreign Currency up to a Foreign Currency Equivalent of \$150,000,000 so long as all conditions to a Borrowing hereunder can be satisfied and such alteration does not have the effect of causing the Dollar Amount of all outstanding Revolving Loans to exceed the Aggregate Commitments or the Aggregate Revolving Dollar Credit Exposure to exceed the aggregate Dollar Commitments;

(iii) if the Borrower shall have failed to designate the Type of Dollar Loans or Multicurrency Loans denominated in Dollars comprising a Borrowing, the Borrower shall be deemed to have requested a Borrowing comprised of Base Rate Loans; and

(iv) if the Borrower shall have failed to select the duration of the Interest Period to be applicable to any Borrowing of LIBOR Loans, then the Borrower shall be deemed to have selected an Interest Period with a duration of one month.

(c) Not later than 1:00 p.m., Local Time, on the requested Borrowing Date, each applicable Lender will make available to the Administrative Agent at its Payment Office an amount, in the applicable Currency and in immediately available funds, equal to the amount of the Revolving Loan or Revolving Loans to be made by such Lender. To the extent such Lenders have made such amounts available to the Administrative Agent as provided hereinabove, the Administrative Agent will make the aggregate of such amounts available to the Borrower in accordance with **Section 2.3(a)** and in like funds as received by the Administrative Agent.

(d) In order to make a Borrowing of a Swingline Loan, the Borrower will give the Administrative Agent (and the Swingline Lender, if the Swingline Lender is not also the

Administrative Agent) written notice not later than 11:00 a.m., Charlotte, North Carolina time, on the date of such Borrowing. Each such notice (each, a “ Notice of Swingline Borrowing ”) shall be given in the form of **Exhibit B-2** , shall be irrevocable and shall specify (i) the principal amount of the Swingline Loan to be made pursuant to such Borrowing (which shall not be less than \$100,000 and, if greater, shall be in an integral multiple of \$100,000 in excess thereof (or, if less, in the amount of the Unutilized Swingline Commitment)) and (ii) the requested Borrowing Date, which shall be a Business Day. Not later than 1:00 p.m., Charlotte, North Carolina time, on the requested Borrowing Date, the Swingline Lender will make available to the Administrative Agent at its Payment Office an amount, in Dollars and in immediately available funds, equal to the amount of the requested Swingline Loan. To the extent the Swingline Lender has made such amount available to the Administrative Agent as provided hereinabove, the Administrative Agent will make such amount available to the Borrower in accordance with **Section 2.3(a)** and in like funds as received by the Administrative Agent.

(e) With respect to any outstanding Swingline Loans, the Swingline Lender may at any time (whether or not an Event of Default has occurred and is continuing) in its sole and absolute discretion, and is hereby authorized and empowered by the Borrower to, cause a Borrowing of Dollar Loans to be made for the purpose of repaying such Swingline Loans by delivering to the Administrative Agent (if the Administrative Agent is not also the Swingline Lender) and each other Dollar Lender (on behalf of, and with a copy to, the Borrower), not later than 10:00 a.m., Charlotte, North Carolina time on the Business Day of the proposed Borrowing Date therefor, a notice (which shall be deemed to be a Notice of Borrowing given by the Borrower) requesting the Dollar Lenders to make Dollar Loans (which shall be made initially as Base Rate Loans) on such Borrowing Date in an aggregate amount equal to the amount of such Swingline Loans (the “ Refunded Swingline Loans ”) outstanding on the date such notice is given that the Swingline Lender requests to be repaid. Not later than 1:00 p.m., Charlotte, North Carolina time, on the requested Borrowing Date, each Dollar Lender (other than the Swingline Lender) will make available to the Administrative Agent at its Payment Office an amount, in Dollars and in immediately available funds, equal to the amount of the Dollar Loan to be made by such Lender. To the extent the Dollar Lenders have made such amounts available to the Administrative Agent as provided hereinabove, the Administrative Agent will make the aggregate of such amounts available to the Swingline Lender in like funds as received by the Administrative Agent, which shall apply such amounts in repayment of the Refunded Swingline Loans. Notwithstanding any provision of this Agreement to the contrary, on the relevant Borrowing Date, the Refunded Swingline Loans (including the Swingline Lender’s ratable share thereof, in its capacity as a Dollar Lender) shall be deemed to be repaid with the proceeds of the Dollar Loans made as provided above (including a Dollar Loan deemed to have been made by the Swingline Lender), and such Refunded Swingline Loans deemed to be so repaid shall no longer be outstanding as Swingline Loans but shall be outstanding as Dollar Loans. If any portion of any such amount repaid (or deemed to be repaid) to the Swingline Lender shall be recovered by or on behalf of the Borrower from the Swingline Lender in any bankruptcy, insolvency or similar proceeding or otherwise, the loss of the amount so recovered shall be shared ratably among all the Dollar Lenders in the manner contemplated by **Section 2.14(b)** .

(f) If, as a result of any Bankruptcy Event with respect to the Borrower, Dollar Loans are not made pursuant to **Section 2.2(e)** in an amount sufficient to repay any amounts owed to the Swingline Lender in respect of any outstanding Swingline Loans, or if the Swingline Lender

is otherwise precluded for any reason from giving a notice on behalf of the Borrower as provided for hereinabove, the Swingline Lender shall be deemed to have sold without recourse, representation or warranty, and each Dollar Lender shall be deemed to have purchased and hereby agrees to purchase, a participation in such outstanding Swingline Loans in an amount equal to its ratable share (based on the proportion that its Dollar Commitment bears to the aggregate Dollar Commitments at such time, or if the Dollar Commitments have been terminated, based on the proportion that its Dollar Commitment bears to the aggregate Dollar Commitments, in each case immediately prior to the termination thereof) of the unpaid amount thereof together with accrued interest thereon. Upon one (1) Business Day's prior notice from the Swingline Lender, each Dollar Lender (other than the Swingline Lender) will make available to the Administrative Agent at its Payment Office an amount, in Dollars and in immediately available funds, equal to its respective participation. To the extent the Dollar Lenders have made such amounts available to the Administrative Agent as provided hereinabove, the Administrative Agent will make the aggregate of such amounts available to the Swingline Lender in like funds as received by the Administrative Agent. In the event any such Dollar Lender fails to make available to the Administrative Agent the amount of such Lender's participation as provided in this **Section 2.2(f)**, the Swingline Lender shall be entitled to recover such amount on demand from such Dollar Lender, together with interest thereon for each day from the date such amount is required to be made available for the account of the Swingline Lender until the date such amount is made available to the Swingline Lender at the Federal Funds Rate for the first three (3) Business Days and thereafter at the Adjusted Base Rate. Promptly following its receipt of any payment by or on behalf of the Borrower in respect of a Swingline Loan, the Swingline Lender will pay to each Dollar Lender that has acquired a participation therein such Lender's ratable share of such payment.

(g) Notwithstanding any provision of this Agreement to the contrary, the obligation of each Dollar Lender (other than the Swingline Lender) to make Dollar Loans for the purpose of repaying any Refunded Swingline Loans pursuant to **Section 2.2(e)** and each such Dollar Lender's obligation to purchase a participation in any unpaid Swingline Loans pursuant to **Section 2.2(f)** shall be absolute and unconditional and shall not be affected by any circumstance or event whatsoever, including, without limitation, (i) any set-off, counterclaim, recoupment, defense or other right that such Dollar Lender may have against the Swingline Lender, the Administrative Agent, the Borrower or any other Person for any reason whatsoever, (ii) the occurrence or continuance of any Default or Event of Default, (iii) the failure of the amount of such Borrowing of Dollar Loans to meet the minimum Borrowing amount specified in **Section 2.2(b)**, or (iv) the failure of any conditions set forth in **Section 3.2** or elsewhere herein to be satisfied.

2.3 Disbursements; Funding Reliance; Domicile of Loans .

(a) The Borrower hereby authorizes the Administrative Agent to disburse the proceeds of each Borrowing in accordance with the terms of any written instructions from any Authorized Officer of the Borrower, provided that the Administrative Agent shall not be obligated under any circumstances to forward amounts to any account not listed in an Account Designation Letter. The Borrower may at any time deliver to the Administrative Agent an Account Designation Letter listing any additional accounts or deleting any accounts listed in a previous Account Designation Letter.

(b) Unless the Administrative Agent shall have received notice from a Lender prior to the proposed date of any Borrowing that such Lender will not make available to the Administrative Agent such Lender's share of such Borrowing, the Administrative Agent may assume that such Lender has made such share available on such date in accordance with **Section 2.2** and may, in reliance upon such assumption, make available to the Borrower a corresponding amount. In such event, if a Lender has not in fact made its share of the applicable Borrowing available to the Administrative Agent, then the applicable Lender and the Borrower severally agree to pay to the Administrative Agent forthwith on demand such corresponding amount with interest thereon, for each day from and including the date such amount is made available to the Borrower to but excluding the date of payment to the Administrative Agent, at (i) in the case of a payment to be made by such Lender, the greater of the Federal Funds Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation and (ii) in the case of a payment to be made by the Borrower, the Adjusted Base Rate. If the Borrower and such Lender shall pay such interest to the Administrative Agent for the same or an overlapping period, the Administrative Agent shall promptly remit to the Borrower the amount of such interest paid by the Borrower for such period. If such Lender pays its share of the applicable Borrowing to the Administrative Agent, then the amount so paid shall constitute such Lender's Loan included in such Borrowing. Any payment by the Borrower shall be without prejudice to any claim the Borrower may have against a Lender that shall have failed to make such payment to the Administrative Agent.

(c) The obligations of the Lenders hereunder to make Loans, to fund participations in Swingline Loans and Letters of Credit and to make payments pursuant to **Section 10.1(c)** are several and not joint. The failure of any Lender to make any Loan, to fund any such participation or to make any such payment on any date shall not relieve any other Lender of its corresponding obligation, if any, hereunder to do so on such date, but no Lender shall be responsible for the failure of any other Lender to so make its Loan, purchase its participation or to make any such payment required hereunder.

(d) Each Lender may, at its option, make and maintain any Loan at, to or for the account of any of its Lending Offices, provided that any exercise of such option shall not affect the obligation of the Borrower to repay such Loan to or for the account of such Lender in accordance with the terms of this Agreement.

2.4 Evidence of Debt; Notes.

(a) Each Lender shall maintain in accordance with its usual practice an account or accounts evidencing the indebtedness of the Borrower to the applicable Lending Office of such Lender resulting from each Loan made by such Lending Office of such Lender from time to time, including the amounts of principal and interest payable and paid to such Lending Office of such Lender from time to time under this Agreement.

(b) The Administrative Agent shall maintain the Register pursuant to **Section 10.6(c)**, and a subaccount for each Lender, in which Register and subaccounts (taken together) shall be recorded (i) the amount of each Loan made by such Lender, the Class, Currency and Type of each such Loan and the Interest Period, if any, applicable thereto, (ii) the amount of any principal or interest due and payable or to become due and payable from the Borrower to each Lender

hereunder in respect of each such Loan and (iii) the amount of any sum received by the Administrative Agent hereunder from the Borrower in respect of each such Loan and each Lender's share thereof.

(c) The entries made in the Register and subaccounts maintained pursuant to **Section 2.4(b)** (and, if consistent with the entries of the Administrative Agent, the accounts maintained pursuant to **Section 2.4(a)**) shall, to the extent permitted by applicable law, be conclusive absent manifest error of the existence and amounts of the obligations of the Borrower therein recorded; provided, however, that the failure of any Lender or the Administrative Agent to maintain such account, such Register or such subaccount, as applicable, or any error therein, shall not in any manner affect the obligation of the Borrower to repay (with applicable interest) the Loans made to the Borrower by such Lender in accordance with the terms of this Agreement.

(d) The Loans of each Class made by each Lender shall, if requested by the applicable Lender (which request shall be made to the Administrative Agent), be evidenced (i) in the case of Dollar Loans, by a Dollar Note appropriately completed in substantially the form of **Exhibit A-1**, (ii) in the case of Multicurrency Loans, by a Multicurrency Note appropriately completed in substantially the form of **Exhibit A-2** and (iii) in the case of the Swingline Loans, by a Swingline Note appropriately completed in substantially the form of **Exhibit A-3**, in each case executed by the Borrower and payable to the order of such Lender. Each Note shall be entitled to all of the benefits of this Agreement and the other Credit Documents and shall be subject to the provisions hereof and thereof.

2.5 Termination and Reduction of Commitments and Swingline Commitment

(a) The Commitments shall be automatically and permanently terminated on the Termination Date. The Swingline Commitment shall be automatically and permanently terminated on the Swingline Maturity Date, unless sooner terminated pursuant to any other provision of this **Section 2.5** or **Section 8.2**.

(b) At any time and from time to time after the date hereof, upon not less than five (5) Business Days' prior written notice to the Administrative Agent (and in the case of a termination or reduction of the Unutilized Swingline Commitment, the Swingline Lender), the Borrower may terminate in whole or reduce in part the aggregate Unutilized Dollar Commitments, the aggregate Unutilized Multicurrency Commitments or the Unutilized Swingline Commitment, provided that any such partial reduction shall be in an aggregate amount of not less than \$5,000,000 (\$500,000 in the case of the Unutilized Swingline Commitment) or, if greater, an integral multiple of \$1,000,000 in excess thereof (\$100,000 in the case of the Unutilized Swingline Commitment). The amount of any termination or reduction made under this **Section 2.5(b)** may not thereafter be reinstated.

(c) Except as set forth in **Section 2.5(d)**, each reduction of the Commitments pursuant to this Section shall be applied ratably among the Lenders of such Class according to their respective Commitments of such Class. Notwithstanding any provision of this Agreement to the contrary, any reduction of the Commitments pursuant to this **Section 2.5** that has the effect of reducing the aggregate Dollar Commitments to an amount less than the amount of the Swingline Commitment at such time shall result in an automatic corresponding reduction of the

Swingline Commitment, as the case may be, to the amount of the aggregate Dollar Commitments (as so reduced), without any further action on the part of the Borrower, the Swingline Lender or any other Lender.

(d) The Borrower shall have the right, at any time, upon at least ten Business Days' notice to a Defaulting Lender (with a copy to the Administrative Agent), to terminate in whole such Lender's Commitment, without affecting the Commitments of any other Lender; provided that, (i) for so long as any Loans are outstanding, the consent of the Required Lenders shall be required prior to the termination of the Commitment of any Defaulting Lender and (ii) such Defaulting Lender has paid the Administrative Agent, the Swingline Lender, the Issuing Lender and any Lender all amounts owed by such Defaulting Lender pursuant to the terms of this Agreement. Such termination shall be effective, (x) with respect to such Lender's Unutilized Commitment, on the date set forth in such notice, provided, however, that such date shall be no earlier than ten Business Days after receipt of such notice and (y) with respect to each Revolving Loan outstanding to such Lender, in the case of Base Rate Loans, on the date set forth in such notice and, in the case of LIBOR Loans, on the last day of the then current Interest Period relating to such LIBOR Loan. Upon termination of a Lender's Commitments under this **Section 2.5(d)**, the Borrower will pay or cause to be paid all principal of, and interest accrued to the date of such payment on, Revolving Loans owing to such Lender and, subject to **Section 2.21**, pay any accrued commitment fees or letter of credit fees payable to such Lender pursuant to the provisions of **Section 2.9**, and all other amounts payable to such Lender hereunder (including, but not limited to, any amounts owing under **Sections 2.15** and **2.16**); and, if such Lender is an Issuing Lender, shall pay to such Issuing Lender for deposit in an escrow account an amount equal to the Letter of Credit Exposure issued by such Issuing Bank, whereupon all Letters of Credit issued by such Issuing Bank shall be deemed to have been issued outside of this Agreement on a bilateral basis and shall cease for all purposes to constitute a Letter of Credit issued under this Agreement, and upon such payments, except as otherwise provided below, the obligations of such Lender hereunder shall, by the provisions hereof, be released and discharged; provided, however, that (i) such Lender's rights under **Sections 2.15**, **2.16**, **2.19(j)** and **10.1**, in each case in accordance with the terms thereof, shall survive such release and discharge as to matters occurring prior to such date and (ii) such escrow agreement shall be in a form reasonably agreed to by the Borrower and such Issuing Lender. Subject to **Section 2.20**, the aggregate amount of the Commitments of the Lenders once reduced pursuant to this **Section 2.5(d)** may not be reinstated. The termination of the Commitments of a Defaulting Lender pursuant to this **Section 2.5(d)** will not be deemed to be a waiver of any right that the Borrower, the Administrative Agent, the Issuing Lender or any other Lender may have against such Defaulting Lender that arose prior to the date of such termination. Upon any such termination, the pro rata shares of the remaining Lenders will be revised.

2.6 Mandatory Payments and Prepayments.

(a) Except to the extent due or paid sooner pursuant to the provisions of this Agreement, (i) the aggregate outstanding principal of the Revolving Loans shall be due and payable in full on the Maturity Date, and (ii) the aggregate outstanding principal of the Swingline Loans shall be due and payable in full on the Swingline Maturity Date.

(b) In the event that, at any time, the Aggregate Revolving Dollar Credit Exposure (excluding the aggregate amount of any Swingline Loans to be repaid with proceeds of Dollar Loans made on the date of determination) shall exceed the aggregate Dollar Commitments at such time (after giving effect to any concurrent termination or reduction thereof), the Borrower will immediately prepay the outstanding principal amount of the Swingline Loans and, to the extent of any excess remaining after prepayment in full of outstanding Swingline Loans, the outstanding principal amount of the Dollar Loans in the amount of such excess; provided that, to the extent such excess amount is greater than the aggregate principal amount of Swingline Loans and Dollar Loans outstanding immediately prior to the application of such prepayment, the amount so prepaid shall be retained by the Administrative Agent and held in the Cash Collateral Account as cover for Letter of Credit Exposure, as more particularly described in **Section 2.19(i)**, and thereupon such cash shall be deemed to reduce the aggregate Letter of Credit Exposure by an equivalent amount. In the event that, on any Revaluation Date, the aggregate Dollar Amount of Multicurrency Loans exceeds 105% of the aggregate Multicurrency Commitments at such time (after giving effect to any concurrent termination or reduction thereof), the Borrower will prepay the outstanding principal amount of the Multicurrency Loans in the amount of such excess, (i) within 1 Business Day after receipt of notice thereof for any such prepayment of Multicurrency Loans denominated in Dollars and (ii) within 3 Business Days after receipt of notice thereof for any such prepayment of Multicurrency Loans denominated in a Foreign Currency.

2.7 Voluntary Prepayments.

(a) At any time and from time to time, the Borrower shall have the right to prepay the Loans of any Class, in whole or in part, without premium or penalty (except as provided in clause (iii) below), upon written notice given to the Administrative Agent not later than 11:00 a.m., Local Time, three (3) Business Days prior to each intended prepayment of LIBOR Loans and one (1) Business Day prior to each intended prepayment of Base Rate Loans (other than Swingline Loans, which may be prepaid on a same-day basis), provided that (i) each partial prepayment of LIBOR Loans shall be in an aggregate principal amount of not less than \$5,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof, and each partial prepayment of Base Rate Loans shall be in an aggregate principal amount of not less than \$3,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof (\$100,000 and \$100,000, respectively, in the case of Swingline Loans), (ii) no partial prepayment of LIBOR Loans made pursuant to any single Borrowing shall reduce the aggregate outstanding principal amount of the remaining LIBOR Loans under such Borrowing to less than \$5,000,000 or to any greater amount not an integral multiple of \$1,000,000 in excess thereof, and (iii) unless made together with all amounts required under **Section 2.17** to be paid as a consequence of such prepayment, a prepayment of a LIBOR Loan may be made only on the last day of the Interest Period applicable thereto. Each such notice shall specify the proposed date of such prepayment and the aggregate principal amount, Class and Type of the Loans to be prepaid (and, in the case of LIBOR Loans, the Interest Period of the Borrowing pursuant to which made), and shall be irrevocable and shall bind the Borrower to make such prepayment on the terms specified therein. Revolving Loans and Swingline Loans prepaid pursuant to this **Section 2.7(a)** may be reborrowed, subject to the terms and conditions of this Agreement. In the event the Administrative Agent receives a notice of prepayment under this Section, the Administrative Agent will give prompt notice thereof to the Lenders; provided that if such notice has also been furnished to the Lenders, the Administrative Agent shall have no obligation to notify the Lenders with respect thereto.

(b) Each prepayment of the Loans of any Class made pursuant to **Section 2.7(a)** shall be applied ratably among the Lenders of such Class holding the Loans being prepaid, in proportion to the principal amount held by each, provided that the proceeds thereof shall be applied so that after giving effect thereto the percentage that the aggregate outstanding Dollar Loans and Multicurrency Loans denominated in Dollars (after giving effect to each such Borrowing) bear to the aggregate outstanding Revolving Loans denominated in Dollars shall equal the Applicable Commitment Percentage for Dollar Commitments and Multicurrency Commitments, respectively.

2.8 Interest.

(a) Subject to **Section 2.8(b)**, the Borrower will pay interest in respect of the unpaid principal amount of each Loan, from the date of Borrowing thereof until such principal amount shall be paid in full, (i) at the Adjusted Base Rate, as in effect from time to time during such periods as such Loan is a Base Rate Loan, (ii) at the Adjusted LIBOR Rate, as in effect from time to time during such periods as such Loan is a LIBOR Loan, and (iii) at the Adjusted LIBOR Market Index Rate, as in effect from time to time for all Swingline Loans.

(b) Upon the occurrence and during the continuance of any Event of Default under **Sections 8.1(a)**, **8.1(f)**, or **8.1(g)** and (at the election of the Required Lenders) upon the occurrence and during the continuance of any other Event of Default, all outstanding principal amounts of the Loans and, to the greatest extent permitted by law, all interest accrued on the Loans and all other accrued and outstanding fees and other amounts hereunder, shall bear interest at a rate per annum equal to the interest rate applicable from time to time thereafter to such Loans plus 2% (or, in the case of interest, fees and other amounts for which no rate is provided hereunder, at the Adjusted Base Rate plus 2%), and, in each case, such default interest shall be payable on demand. To the greatest extent permitted by law, interest shall continue to accrue after the filing by or against the Borrower of any petition seeking any relief in bankruptcy or under any law pertaining to insolvency or debtor relief.

(c) Accrued (and theretofore unpaid) interest shall be payable as follows:

(i) in respect of each Base Rate Loan (including any Base Rate Loan or portion thereof paid or prepaid pursuant to the provisions of **Section 2.6**, except as provided hereinbelow) and each LIBOR Market Index Rate Loan, in arrears on the last Business Day of each calendar quarter, beginning with the first such day to occur after the Closing Date; provided, that in the event the Loans are repaid or prepaid in full and the Commitments have been terminated, then accrued interest in respect of all Base Rate Loans and LIBOR Market Index Rate Loans shall be payable together with such repayment or prepayment on the date thereof;

(ii) in respect of each LIBOR Loan (including any LIBOR Loan or portion thereof paid or prepaid pursuant to the provisions of **Section 2.6**, except as provided hereinbelow), in arrears (y) on the last Business Day of the Interest Period applicable

thereto (subject to the provisions of **Section 2.10(iv)**) and **(z)** in addition, in the case of a LIBOR Loan with an Interest Period having a duration of six months or longer, on each date on which interest would have been payable under clause (y) above had successive Interest Periods of three months' duration been applicable to such LIBOR Loan; provided, that in the event all LIBOR Loans made pursuant to a single Borrowing are repaid or prepaid in full, then accrued interest in respect of such LIBOR Loans shall be payable together with such repayment or prepayment on the date thereof; and

(iii) in respect of any Loan, at maturity (whether pursuant to acceleration or otherwise) and, after maturity, on demand.

(d) Nothing contained in this Agreement or in any other Credit Document shall be deemed to establish or require the payment of interest to any Lender at a rate in excess of the maximum rate permitted by applicable law. If the amount of interest payable for the account of any Lender on any interest payment date would exceed the maximum amount permitted by applicable law to be charged by such Lender, the amount of interest payable for its account on such interest payment date shall be automatically reduced to such maximum permissible amount. In the event of any such reduction affecting any Lender, if from time to time thereafter the amount of interest payable for the account of such Lender on any interest payment date would be less than the maximum amount permitted by applicable law to be charged by such Lender, then the amount of interest payable for its account on such subsequent interest payment date shall be automatically increased to such maximum permissible amount, provided that at no time shall the aggregate amount by which interest paid for the account of any Lender has been increased pursuant to this sentence exceed the aggregate amount by which interest paid for its account has theretofore been reduced pursuant to the previous sentence.

(e) The Administrative Agent shall promptly notify the Borrower and the Lenders upon determining the interest rate for each Borrowing of LIBOR Loans after its receipt of the relevant Notice of Borrowing or Notice of Conversion/Continuation, and upon each change in the Base Rate; provided, however, that the failure of the Administrative Agent to provide the Borrower or the Lenders with any such notice shall neither affect any obligations of the Borrower or the Lenders hereunder nor result in any liability on the part of the Administrative Agent to the Borrower or any Lender. Each such determination (including each determination of the Reserve Requirement) shall, absent manifest error, be conclusive and binding on all parties hereto.

2.9 Fees. The Borrower agrees to pay:

(a) To Wells Fargo, for its own account, the administrative fee required under the Wells Fargo Fee Letter to be paid to Wells Fargo, in the amounts due and at the times due as required by the terms thereof;

(b) To the Administrative Agent, for the account of each Lender, a commitment fee for each calendar quarter (or portion thereof) for the period from and including the Closing Date to but excluding the Termination Date, at a per annum rate equal to the Applicable Percentage in effect for such fee from time to time during such quarter on such Lender's ratable share (based on the proportion that its Commitment bears to the aggregate Commitments) of the average daily

aggregate Unutilized Commitments (excluding clause (ii) of the definition thereof for purposes of this **Section 2.9(b)** only), payable in arrears (i) on the last Business Day of each calendar quarter, beginning with the first such day to occur after the Closing Date, and (ii) on the Termination Date;

(c) To the Administrative Agent, for the account of each Dollar Lender, a letter of credit fee for each calendar quarter (or portion thereof) in respect of all Letters of Credit outstanding during such quarter, at a per annum rate equal to the Applicable Percentage in effect from time to time during such quarter for LIBOR Loans, on such Lender's ratable share (based on the proportion that its Dollar Commitment bears to the aggregate Dollar Commitments, or if the Dollar Commitments have been terminated, based upon the proportion that its Revolving Dollar Credit Exposure bears to the Aggregate Revolving Dollar Credit Exposure) of the daily average aggregate Stated Amount of such Letters of Credit, payable in arrears (i) on the last Business Day of each calendar quarter, beginning with the first such day to occur after the Closing Date, and (ii) on the later of the Termination Date and the date of termination of the last outstanding Letter of Credit;

(d) To Wells Fargo, for its own account in its capacity as the Issuing Lender, the fronting fee required under the Wells Fargo Fee Letter to be paid to Wells Fargo, in the amounts due and at the times due as required by the terms thereof; and

(e) To the Issuing Lender, for its own account, such commissions, transfer fees and other fees and charges incurred in connection with the issuance and administration of each Letter of Credit as are customarily charged from time to time by the Issuing Lender for the performance of such services in connection with similar letters of credit, or as may be otherwise agreed to by the Issuing Lender, but without duplication of amounts payable under **Section 2.9(d)** .

2.10 Interest Periods. Concurrently with the giving of a Notice of Borrowing or Notice of Conversion/Continuation in respect of any Borrowing comprised of Base Rate Loans to be converted into, or LIBOR Loans to be continued as, LIBOR Loans, the Borrower shall have the right to elect, pursuant to such notice, the interest period (each, an "Interest Period") to be applicable to such LIBOR Loans, which Interest Period shall, at the option of the Borrower, be a one, two, three or six-month period; provided, however, that:

(i) all LIBOR Loans comprising a single Borrowing shall at all times have the same Interest Period;

(ii) the initial Interest Period for any LIBOR Loan shall commence on the date of the Borrowing of such LIBOR Loan (including the date of any continuation of, or conversion into, such LIBOR Loan), and each successive Interest Period applicable to such LIBOR Loan shall commence on the day on which the next preceding Interest Period applicable thereto expires;

(iii) LIBOR Loans may not be outstanding under more than ten (10) separate Interest Periods at any one time (for which purpose Interest Periods shall be deemed to be separate even if they are coterminous);

(iv) if any Interest Period otherwise would expire on a day that is not a Business Day, such Interest Period shall expire on the next succeeding Business Day unless such next succeeding Business Day falls in another calendar month, in which case such Interest Period shall expire on the next preceding Business Day;

(v) the Borrower may not select any Interest Period that expires after the Maturity Date, with respect to Revolving Loans that are to be maintained as LIBOR Loans;

(vi) if any Interest Period begins on a day for which there is no numerically corresponding day in the calendar month during which such Interest Period would otherwise expire, such Interest Period shall expire on the last Business Day of such calendar month; and

(vii) the Borrower may not select any Interest Period (and consequently, no LIBOR Loans shall be made) if a Default or Event of Default shall have occurred and be continuing at the time of such Notice of Borrowing or Notice of Conversion/Continuation with respect to any Borrowing.

2.11 Conversions and Continuations .

(a) The Borrower shall have the right, on any Business Day occurring on or after the Closing Date, to elect (i) to convert all or a portion of the outstanding principal amount of any Base Rate Loans into LIBOR Loans, or to convert any LIBOR Loans the Interest Periods for which end on the same day into Base Rate Loans, or (ii) upon the expiration of any Interest Period, to continue all or a portion of the outstanding principal amount of any LIBOR Loans the Interest Periods for which end on the same day for an additional Interest Period, provided that (t) Borrowings of a Class may only be continued as or converted into a Borrowing of the same Class, (u) a Borrowing denominated in one Currency may not be continued as, or converted to, a Borrowing in a different Currency, (v) a Borrowing of LIBOR Loans denominated in a Foreign Currency may not be converted to a Borrowing of a different Type, (w) any such conversion of LIBOR Loans into Base Rate Loans shall involve an aggregate principal amount of not less than \$3,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof; any such conversion of Base Rate Loans into, or continuation of, LIBOR Loans shall involve an aggregate principal amount of not less than \$5,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof; and no partial conversion of LIBOR Loans made pursuant to a single Borrowing shall reduce the outstanding principal amount of such LIBOR Loans to less than \$5,000,000 or to any greater amount not an integral multiple of \$1,000,000 in excess thereof, (x) except as otherwise provided in **Section 2.15(f)** , LIBOR Loans may be converted into Base Rate Loans only on the last day of the Interest Period applicable thereto (and, in any event, if a LIBOR Loan is converted into a Base Rate Loan on any day other than the last day of the Interest Period applicable thereto, the Borrower will pay, upon such conversion, all amounts required under **Section 2.17** to be paid as a consequence thereof), (y) no such conversion or continuation shall be permitted with regard to any Swingline Loans, and (z) no conversion of Base Rate Loans into LIBOR Loans or continuation of LIBOR Loans shall be permitted during the continuance of a Default or Event of Default.

(b) The Borrower shall make each such election by giving the Administrative Agent written notice (i) not later than 11:00 a.m., Charlotte, North Carolina time, three (3) Business Days prior to the intended effective date of any conversion of Base Rate Loans into LIBOR Loans, or any continuation of LIBOR Loans denominated in Dollars, (ii) not later than 10:00 a.m., Charlotte, North Carolina time, four (4) Business Days prior to the intended effective date of any continuation of LIBOR Loans denominated in a Foreign Currency, and (iii) not later than 11:00 a.m., Charlotte, North Carolina time, one (1) Business Day prior to the intended effective date of any conversion of LIBOR Loans into Base Rate Loans. Each such notice (each, a “Notice of Conversion/Continuation”) shall be irrevocable, shall be given in the form of **Exhibit B-3** and shall specify (x) the date of such conversion or continuation (which shall be a Business Day), (y) in the case of a conversion into, or a continuation of, LIBOR Loans, the Interest Period to be applicable thereto, and (z) the aggregate amount, Class, Currency and Type of the Loans being converted or continued. Upon the receipt of a Notice of Conversion/Continuation, the Administrative Agent will promptly notify each applicable Lender of the proposed conversion or continuation. In the event that the Borrower shall fail to deliver a Notice of Conversion/Continuation as provided herein with respect to any of its outstanding LIBOR Loans, such LIBOR Loans denominated in Dollars shall automatically be converted to Base Rate Loans upon the expiration of the then current Interest Period applicable thereto (unless repaid pursuant to the terms hereof) and LIBOR Loans denominated in a Foreign Currency shall be repaid upon the expiration of the then current Interest Period applicable thereto pursuant to the terms hereof. In the event the Borrower shall have failed to select in a Notice of Conversion/Continuation the duration of the Interest Period to be applicable to any conversion into, or continuation of, its LIBOR Loans, then the Borrower shall be deemed to have selected an Interest Period with a duration of one month.

2.12 Method of Payments; Computations; Apportionment of Payments.

(a) All payments by the Borrower hereunder shall be made without setoff, counterclaim or other defense, in the applicable Currency and in immediately available funds to the Administrative Agent, for the account of the Lenders entitled to such payment or the Administrative Agent, the Multicurrency Agent, the Issuing Lender, or the Swingline Lender, as the case may be (except as otherwise expressly provided herein as to payments required to be made directly to the Lenders) at its Payment Office prior to 12:00 noon, Local Time, on the date payment is due. Any payment made as required hereinabove, but after 12:00 noon, Local Time, shall be deemed to have been made on the next succeeding Business Day. If any payment falls due on a day that is not a Business Day, then such due date shall be extended to the next succeeding Business Day (except that in the case of LIBOR Loans to which the provisions of **Section 2.10(iv)** are applicable, such due date shall be the next preceding Business Day), and such extension of time shall then be included in the computation of payment of interest, fees or other applicable amounts.

(b) The Administrative Agent will distribute to the Lenders like amounts relating to payments made to the Administrative Agent for the account of the Lenders as follows: (i) if the payment is received by 12:00 noon, Local Time, in immediately available funds, the Administrative Agent will make available to each relevant Lender on the same date, by wire transfer of immediately available funds, such Lender's ratable share of such payment (based on the percentage that the amount of the relevant payment owing to such Lender bears to the total

amount of such payment owing to all of the relevant Lenders), and (ii) if such payment is received after 12:00 noon, Local Time, or in other than immediately available funds, the Administrative Agent will make available to each such Lender its ratable share of such payment by wire transfer of immediately available funds on the next succeeding Business Day (or in the case of uncollected funds, as soon as practicable after collected). If the Administrative Agent shall not have made a required distribution to the appropriate Lenders as required hereinabove after receiving a payment for the account of such Lenders, the Administrative Agent will pay to each such Lender, on demand, its ratable share of such payment with interest thereon at the Federal Funds Rate for each day from the date such amount was required to be disbursed by the Administrative Agent until the date repaid to such Lender.

(c) Unless the Administrative Agent shall have received notice from the Borrower prior to the date on which any payment is due to the Administrative Agent for the account of the Lenders hereunder that the Borrower will not make such payment, the Administrative Agent may assume that the Borrower has made such payment on such date in accordance herewith and may, in reliance upon such assumption, distribute to the Lenders, as the case may be, the amount due. In such event, if the Borrower has not in fact made such payment, then each Lender, as the case may be, severally agrees to repay to the Administrative Agent forthwith on demand the amount so distributed to such Lender, with interest thereon, for each day from and including the date such amount is distributed to it to but excluding the date of payment to the Administrative Agent, at the greater of the Federal Funds Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation.

(d) All computations of interest and fees hereunder (including computations of the Reserve Requirement) shall be made on the basis of a year consisting of (i) in the case of interest on Base Rate Loans and Multicurrency Loans denominated in Sterling, 365/366 days, as the case may be, or (ii) in all other instances, 360 days; and in each case under (i) and (ii) above, with regard to the actual number of days (including the first day, but excluding the last day) elapsed.

(e) Notwithstanding any other provision of this Agreement or any other Credit Document to the contrary, all amounts collected or received by the Administrative Agent or any Lender after acceleration of the Loans pursuant to **Section 8.2** shall be applied as follows:

(i) first, to the payment of all reasonable out-of-pocket costs and expenses (including, without limitation, reasonable attorneys' and consultants' fees irrespective of whether such fees are allowed as a claim after the occurrence of a Bankruptcy Event) of the Administrative Agent in connection with enforcing the rights of the Lenders under the Credit Documents;

(ii) second, to the payment of any fees owed to the Administrative Agent hereunder or under any other Credit Document;

(iii) third, to the payment of all reasonable and documented out-of-pocket costs and expenses (including, without limitation, reasonable attorneys' and consultants' fees irrespective of whether such fees are allowed as a claim after the occurrence of a Bankruptcy Event) of each of the Lenders in connection with enforcing its rights under the Credit Documents or otherwise with respect to the Obligations owing to such Lender;

(iv) fourth, to the payment of all of the Obligations consisting of accrued fees and interest (including, without limitation, fees incurred and interest accruing at the then applicable rate after the occurrence of a Bankruptcy Event irrespective of whether a claim for such fees incurred and interest accruing is allowed in such proceeding);

(v) fifth, to the payment of the outstanding principal amount of the Obligations (including the payment of any outstanding Reimbursement Obligations and the obligation to cash collateralize Letter of Credit Exposure), and with respect to any Hedge Agreement between the Borrower or any of its Subsidiaries, on the one hand, and any Hedge Party, on the other hand (to the extent such Hedge Agreement is permitted hereunder), any breakage, termination or other payments due under such Hedge Agreement and any interest accrued thereon;

(vi) sixth, to the payment of all other Obligations and other obligations that shall have become due and payable under the Credit Documents and not repaid; and

(vii) seventh, to the payment of the surplus (if any) to whomever may be lawfully entitled to receive such surplus.

In carrying out the foregoing, (x) amounts received shall be applied in the numerical order provided until exhausted prior to application to the next succeeding category, and (y) all amounts shall be apportioned ratably among the Lenders in proportion to the amounts of such principal, interest, fees or other Obligations owed to them respectively pursuant to clauses (iii) through (vii) above.

2.13 Recovery of Payments.

(a) The Borrower agrees that to the extent the Borrower makes a payment or payments to or for the account of the Administrative Agent, the Swingline Lender, the Issuing Lender or any Lender, which payment or payments or any part thereof are subsequently invalidated, declared to be fraudulent or preferential, set aside or required to be repaid to a trustee, receiver or any other party under any bankruptcy, insolvency or similar state or federal law, common law or equitable cause (whether as a result of any demand, settlement, litigation or otherwise), then, to the extent of such payment or repayment, the Obligation intended to be satisfied shall be revived and continued in full force and effect as if such payment had not been received.

(b) If any amounts distributed by the Administrative Agent to any Lender are subsequently returned or repaid by the Administrative Agent to the Borrower, its representative or successor in interest, or any other Person, whether by court order, by settlement approved by the Lender in question, or pursuant to applicable Requirements of Law, such Lender will, promptly upon receipt of notice thereof from the Administrative Agent, pay the Administrative Agent such amount. If any such amounts are recovered by the Administrative Agent from the Borrower, its representative or successor in interest or such other Person, the Administrative Agent will redistribute such amounts to the Lenders on the same basis as such amounts were originally distributed.

2.14 Pro Rata Treatment.

(a) All fundings, continuations and conversions of Loans of any Class shall be made by the Lenders pro rata on the basis of their respective Commitments of such Class (in the case of the funding of Revolving Loans pursuant to **Section 2.2**) or on the basis of their respective outstanding Loans of such Class (in the case of continuations and conversions of Revolving Loans pursuant to **Section 2.11** , or in the event the Commitments have expired or have been terminated), as the case may be from time to time. All payments on account of principal of or interest on any Revolving Loans, fees or any other Obligations owing to or for the account of any one or more Lenders of a Class shall be apportioned ratably among such Lenders of such Class in proportion to the amounts of such principal, interest, fees or other Obligations of such Class owed to them respectively.

(b) If any Lender of any Class shall, by exercising any right of setoff or counterclaim or otherwise, obtain payment in respect of any principal of or interest on any of its Loans or other Obligations of such Class hereunder resulting in such Lender's receiving payment of a proportion of the aggregate amount of its Loans and accrued interest thereon or other such Obligations of such Class greater than its pro rata share thereof as provided herein, then the Lender receiving such greater proportion shall (a) notify the Administrative Agent of such fact, and (b) purchase (for cash at face value) participations in the Loans and such other Obligations of such Class of the other Lenders of such Class, or make such other adjustments as shall be equitable, so that the benefit of all such payments shall be shared by the Lenders of such Class ratably in accordance with the aggregate amount of principal of and accrued interest on their respective Loans and other amounts owing them of such Class, provided that (i) if any such participations are purchased and all or any portion of the payment giving rise thereto is recovered, such participations shall be rescinded and the purchase price restored to the extent of such recovery, without interest, and (ii) the provisions of this Section shall not be construed to apply to (x) any payment made by the Borrower pursuant to and in accordance with the express terms of this Agreement or (y) any payment obtained by a Lender as consideration for the assignment of or sale of a participation in any of its Loans, Swingline Loans or Letters of Credit to any assignee or participant, other than to the Borrower or any Subsidiary thereof (as to which the provisions of this **Section 2.14(b)** shall apply). The Borrower consents to the foregoing and agrees, to the extent it may effectively do so under applicable law, that any Lender acquiring a participation pursuant to the foregoing arrangements may exercise against the Borrower rights of setoff and counterclaim with respect to such participation as fully as if such Lender were a direct creditor of the Borrower in the amount of such participation. If under any applicable bankruptcy, insolvency or similar law, any Lender receives a secured claim in lieu of a setoff to which this **Section 2.14(b)** applies, such Lender shall, to the extent practicable, exercise its rights in respect of such secured claim in a manner consistent with the rights of the Lenders entitled under this **Section 2.14(b)** to share in the benefits of any recovery on such secured claim.

2.15 Increased Costs; Change in Circumstances; Illegality.

(a) If any Change in Law shall:

(i) impose, modify or deem applicable any reserve, special deposit, compulsory loan, insurance charge or similar requirement against assets of, deposits with or for the account of, or credit extended or participated in by, any Lender (except the Reserve Requirement reflected in the LIBOR Rate) or the Issuing Lender;

(ii) subject any Lender or the Issuing Lender to any tax of any kind whatsoever with respect to this Agreement, any Letter of Credit, any participation in a Letter of Credit or any LIBOR Loan made by it, or change the basis of taxation of payments to such Lender or the Issuing Lender in respect thereof (except for Indemnified Taxes or Other Taxes covered by **Section 2.16** and the imposition of, or any change in the rate of, any Excluded Tax payable by such Lender or the Issuing Lender); or

(iii) impose on any Lender or the Issuing Lender or the London interbank market any other condition, cost or expense affecting this Agreement or LIBOR Loans made by such Lender or any Letter of Credit or participation therein;

and the result of any of the foregoing shall be to increase the cost to such Lender of making or maintaining any LIBOR Loan (or of maintaining its obligation to make any such Loan), or to increase the cost to such Lender or the Issuing Lender of participating in, issuing or maintaining any Letter of Credit (or of maintaining its obligation to participate in or to issue any Letter of Credit), or to reduce the amount of any sum received or receivable by such Lender or the Issuing Lender hereunder (whether of principal, interest or any other amount), then, upon request of such Lender or the Issuing Lender, the Borrower will pay to such Lender or the Issuing Lender, as the case may be, such additional amount or amounts as will compensate such Lender or the Issuing Lender, as the case may be, for such additional costs incurred or reduction suffered.

(b) If any Lender or the Issuing Lender determines that any Change in Law affecting such Lender or the Issuing Lender or any Lending Office of such Lender or such Lender's or the Issuing Lender's holding company, if any, regarding capital requirements has or would have the effect of reducing the rate of return on such Lender's or the Issuing Lender's capital or on the capital of such Lender's or the Issuing Lender's holding company, if any, as a consequence of this Agreement, the Commitments of such Lender or the Loans made by, or participations in Letters of Credit held by, such Lender, or the Letters of Credit issued by such Issuing Lender, to a level below that which such Lender or such Issuing Lender or such Lender's or the Issuing Lender's holding company could have achieved but for such Change in Law (taking into consideration such Lender's or the Issuing Lender's policies and the policies of such Lender's or the Issuing Lender's holding company with respect to capital adequacy), then from time to time the Borrower will pay to such Lender or the Issuing Lender, as the case may be, such additional amount or amounts as will compensate such Lender or the Issuing Lender or such Lender's or the Issuing Lender's holding company for any such reduction suffered.

(c) A certificate of a Lender (which shall be in reasonable detail) setting forth the amount or amounts necessary to compensate such Lender or its holding company, as specified in **Section 2.15(a)** or **Section 2.15(b)**, and delivered to the Borrower shall be conclusive absent manifest error. The Borrower shall pay such Lender the amount shown as due on any such certificate within ten (10) Business Days after receipt thereof.

(d) Failure or delay on the part of any Lender to demand compensation pursuant to the foregoing provisions of this Section shall not constitute a waiver of such Lender's right to

demand such compensation, provided that the Borrower shall not be required to compensate a Lender pursuant to the foregoing provisions of this Section for any increased costs incurred or reductions suffered more than 180 days prior to the date that such Lender notifies the Borrower of the Change in Law giving rise to such increased costs or reductions and of such Lender's intention to claim compensation therefor (except that, if the Change in Law giving rise to such increased costs or reductions is retroactive, then the 180 day period referred to above shall be extended to include the period of retroactive effect thereof).

(e) If, on or prior to the first day of any Interest Period, (y) the Administrative Agent shall have determined in good faith that adequate and reasonable means do not exist for ascertaining the applicable LIBOR Rate for such Interest Period or (z) the Administrative Agent shall have received written notice from the Required Lenders of their determination in good faith that the rate of interest referred to in the definition of "LIBOR Rate" upon the basis of which the Adjusted LIBOR Rate for LIBOR Loans for such Interest Period is to be determined will not adequately and fairly reflect the cost to such Lenders of making or maintaining LIBOR Loans during such Interest Period, the Administrative Agent will forthwith so notify the Borrower and the Lenders. Upon such notice, (i) all then outstanding LIBOR Loans shall automatically, on the expiration date of the respective Interest Periods applicable thereto (unless then repaid in full), be converted into Base Rate Loans, (ii) the obligation of the Lenders to make, to convert Base Rate Loans into, or to continue, LIBOR Loans shall be suspended (including pursuant to the Borrowing to which such Interest Period applies), and (iii) any Notice of Borrowing or Notice of Conversion/Continuation given at any time thereafter with respect to LIBOR Loans shall be deemed to be a request for Base Rate Loans, in each case until the Administrative Agent or the Required Lenders, as the case may be, shall have determined that the circumstances giving rise to such suspension no longer exist (and the Required Lenders, if making such determination, shall have so notified the Administrative Agent), and the Administrative Agent shall have so notified the Borrower and the Lenders.

(f) Notwithstanding any other provision in this Agreement, if, at any time after the date hereof and from time to time, any Lender shall have determined in good faith that the introduction of or any change in any applicable law, rule or regulation or in the interpretation or administration thereof by any Governmental Authority charged with the interpretation or administration thereof, or compliance with any guideline or request from any such Governmental Authority (whether or not having the force of law), has or would have the effect of making it unlawful for such Lender to make or to continue to make or maintain LIBOR Loans, such Lender will forthwith so notify the Administrative Agent and the Borrower. Upon such notice, (i) each of such Lender's then outstanding LIBOR Loans shall automatically, on the expiration date of the respective Interest Period applicable thereto (or, to the extent any such LIBOR Loan may not lawfully be maintained as a LIBOR Loan until such expiration date, upon such notice) and to the extent not sooner prepaid, be converted into a Base Rate Loan, (ii) the obligation of such Lender to make, to convert Base Rate Loans into, or to continue, LIBOR Loans shall be suspended (including pursuant to any Borrowing for which the Administrative Agent has received a Notice of Borrowing but for which the Borrowing Date has not arrived), and (iii) any Notice of Borrowing or Notice of Conversion/Continuation given at any time thereafter with respect to LIBOR Loans shall, as to such Lender, be deemed to be a request for a Base Rate Loan, in each case until such Lender shall have determined that the circumstances giving rise to such suspension no longer exist and shall have so notified the Administrative Agent, and the Administrative Agent shall have so notified the Borrower.

2.16 Taxes.

(a) Any and all payments by or on account of any obligation of the Borrower hereunder or under any other Credit Document shall be made free and clear of and without reduction or withholding for any Indemnified Taxes or Other Taxes, provided that if the Borrower shall be required by applicable law to deduct any Indemnified Taxes (including any Other Taxes) from such payments, then (i) the sum payable shall be increased as necessary so that after making all required deductions (including deductions applicable to additional sums payable under this Section) the Administrative Agent or Lender, as the case may be, receives an amount equal to the sum it would have received had no such deductions been made, (ii) the Borrower shall make such deductions and (iii) the Borrower shall timely pay the full amount deducted to the relevant Governmental Authority in accordance with applicable law.

(b) Without limiting the provisions of **Section 2.16(a)**, the Borrower shall timely pay any Other Taxes to the relevant Governmental Authority in accordance with applicable law.

(c) The Borrower shall indemnify the Administrative Agent and each Lender, within ten (10) Business Days after demand therefor, for the full amount of any Indemnified Taxes or Other Taxes (including Indemnified Taxes or Other Taxes imposed or asserted on or attributable to amounts payable under this Section) paid by the Administrative Agent or such Lender, as the case may be, and any penalties, interest and reasonable expenses arising therefrom or with respect thereto, whether or not such Indemnified Taxes or Other Taxes were correctly or legally imposed or asserted by the relevant Governmental Authority. A certificate (which shall be in reasonable detail) as to the amount of such payment or liability delivered to the Borrower by a Lender (with a copy to the Administrative Agent), or by the Administrative Agent on its own behalf or on behalf of a Lender, shall be conclusive absent manifest error. The Administrative Agent and each Lender agrees to cooperate with any reasonable request made by the Borrower in respect of a claim of a refund in respect of Indemnified Taxes as to which it has been indemnified by the Borrower or with respect to which the Borrower has paid additional amounts pursuant to this **Section 2.16** if (i) the Borrower has agreed in writing to pay all of the Administrative Agent's or such Lender's reasonable out-of-pocket costs and expenses relating to such claim, (ii) the Administrative Agent or such Lender determines, in its good faith judgment, that it would not be disadvantaged, unduly burdened or prejudiced as a result of such claim and (iii) the Borrower furnishes, upon request of the Administrative Agent or such Lender, an opinion of tax counsel (such opinion and such counsel to be reasonably acceptable to the Administrative Agent or such Lender) to the effect that such Indemnified Taxes were wrongly or illegally imposed.

(d) As soon as practicable after any payment of Indemnified Taxes or Other Taxes by the Borrower to a Governmental Authority, the Borrower shall deliver to the Administrative Agent the original or a certified copy of a receipt issued by such Governmental Authority evidencing such payment, a copy of the return reporting such payment or other evidence of such payment reasonably satisfactory to the Administrative Agent.

(e) Any Foreign Lender that is entitled to an exemption from or reduction of withholding tax under the law of the jurisdiction in which the Borrower is resident for tax purposes, or any treaty to which such jurisdiction is a party, with respect to payments hereunder or under any other Credit Document shall deliver to the Borrower (with a copy to the Administrative Agent), at the time or times prescribed by applicable law or reasonably requested by the Borrower or the Administrative Agent, such properly completed and executed documentation prescribed by applicable law as will permit such payments to be made without withholding or at a reduced rate of withholding. In addition, any Lender, if requested by the Borrower or the Administrative Agent, shall deliver such other documentation prescribed by applicable law or reasonably requested by the Borrower or the Administrative Agent as will enable the Borrower or the Administrative Agent to determine whether or not such Lender is subject to backup withholding or information reporting requirements.

Without limiting the generality of the foregoing, in the event that the Borrower is resident for tax purposes in the United States, any Foreign Lender shall deliver to the Borrower and the Administrative Agent (in such number of copies as shall be requested by the recipient) on or prior to the date on which such Foreign Lender becomes a Lender under this Agreement (and from time to time thereafter upon the request of the Borrower or the Administrative Agent, but only if such Foreign Lender is legally entitled to do so), whichever of the following is applicable:

(i) duly completed copies of Internal Revenue Service Form W-8BEN claiming eligibility for benefits of an income tax treaty to which the United States is a party,

(ii) duly completed copies of Internal Revenue Service Form W-8ECI,

(iii) in the case of a Foreign Lender claiming the benefits of the exemption for portfolio interest under Section 881(c) of the Code,

(x) a certificate to the effect that such Foreign Lender is not (A) a “bank” within the meaning of Section 881(c)(3)(A) of the Code, (B) a “10 percent shareholder” of the Borrower within the meaning of Section 881(c)(3)(B) of the Code, or (C) a “controlled foreign corporation” described in Section 881(c)(3)(C) of the Code and (y) duly completed copies of Internal Revenue Service Form W-8BEN, or

(iv) any other form prescribed by applicable law as a basis for claiming exemption from or a reduction in United States Federal withholding tax duly completed together with such supplementary documentation as may be prescribed by applicable law to permit the Borrower to determine the withholding or deduction required to be made.

(f) If the Administrative Agent or any Lender determines that it has received a refund of any Taxes or Other Taxes as to which it has been indemnified by the Borrower or with respect to which the Borrower has paid additional amounts pursuant to this Section, it shall pay to the Borrower an amount equal to such refund (but only to the extent of indemnity payments made, or additional amounts paid, by the Borrower under this Section with respect to the Taxes or Other Taxes giving rise to such refund), net of all out-of-pocket expenses of the Administrative Agent or such Lender, as the case may be, and without interest (other than any interest paid by the relevant Governmental Authority with respect to such refund), provided that the Borrower, upon

the request of the Administrative Agent or such Lender, agrees to repay the amount paid over to the Borrower (plus any penalties, interest or other charges imposed by the relevant Governmental Authority) to the Administrative Agent or such Lender in the event the Administrative Agent or such Lender is required to repay such refund to such Governmental Authority. This **Section 2.16(f)** shall not be construed to require the Administrative Agent or any Lender to make available its tax returns (or any other information relating to its taxes that it deems confidential) to the Borrower or any other Person.

2.17 Compensation. The Borrower will compensate each Lender upon demand for all losses, expenses and liabilities (including, without limitation, any loss, expense or liability incurred by reason of the liquidation or reemployment of deposits or other funds required by such Lender to fund or maintain LIBOR Loans) that such Lender may incur or sustain (i) if for any reason (other than a default by such Lender) a Borrowing or continuation of, or conversion into, a LIBOR Loan does not occur on a date specified therefor in a Notice of Borrowing or Notice of Conversion/Continuation, (ii) if any repayment, prepayment or conversion of any LIBOR Loan occurs on a date other than the last day of an Interest Period applicable thereto (including as a consequence of any assignment made pursuant to **Section 2.18(a)** or any acceleration of the maturity of the Loans pursuant to **Section 8.2**), (iii) if any prepayment of any LIBOR Loan is not made on any date specified in a notice of prepayment given by the Borrower or (iv) as a consequence of any other failure by the Borrower to make any payments with respect to any LIBOR Loan when due hereunder. Calculation of all amounts payable to a Lender under this **Section 2.17** shall be made as though such Lender had actually funded its relevant LIBOR Loan through the purchase of a Eurodollar deposit bearing interest at the LIBOR Rate in an amount equal to the amount of such LIBOR Loan, having a maturity comparable to the relevant Interest Period; provided, however, that each Lender may fund its LIBOR Loans in any manner it sees fit and the foregoing assumption shall be utilized only for the calculation of amounts payable under this **Section 2.17** . A certificate (which shall be in reasonable detail) showing the bases for the determinations set forth in this **Section 2.17** by any Lender as to any additional amounts payable pursuant to this **Section 2.17** shall be submitted by such Lender to the Borrower either directly or through the Administrative Agent. Determinations set forth in any such certificate made in good faith for purposes of this **Section 2.17** of any such losses, expenses or liabilities shall be conclusive absent manifest error.

2.18 Replacement of Lenders; Mitigation of Costs.

(a) The Borrower may, at any time (other than after the occurrence and during the continuance of an Event of Default) at its sole expense and effort, require any Lender (i) that has requested compensation from the Borrower under **Sections 2.15(a)** or **2.15(b)** or payments from the Borrower under **Section 2.16** , or (ii) the obligation of which to make or maintain LIBOR Loans or any funded participations in Letters of Credit not refinanced through the Borrowing of Revolving Loans has been suspended under **Section 2.15(f)** or (iii) that is a Defaulting Lender or a Nonconsenting Lender, in any case upon notice to such Lender and the Administrative Agent, to assign and delegate, without recourse (in accordance with and subject to the restrictions contained in, and consents required by, **Section 10.6**), all of its interests, rights and obligations under this Agreement and the related Credit Documents to an assignee that shall assume such obligations (which assignee may be another Lender, if a Lender accepts such assignment); provided that:

(i) the Administrative Agent shall have received the assignment fee specified in **Section 10.6(b)(iv)** , which fee shall be payable by the Borrower or such assignee;

(ii) such Lender shall have received payment of an amount equal to the outstanding principal of its Loans, accrued interest thereon, accrued fees and all other amounts payable to it hereunder and under the other Credit Documents (including any amounts under **Section 2.17**) from the assignee (to the extent of such outstanding principal and accrued interest and fees) or the Borrower (in the case of all other amounts);

(iii) in the case of any such assignment resulting from a request for compensation under **Sections 2.15(a)** or **2.15(b)** or payments required to be made pursuant to **Section 2.16** , such assignment will result in a reduction in such compensation or payments thereafter;

(iv) in the case of an assignment of the interests, rights and obligations under this Agreement and the related Credit Documents of a Nonconsenting Lender, such assignee shall have approved (or shall approve) such consent, waiver or amendment that resulted in the Nonconsenting Lender becoming a Nonconsenting Lender; and

(v) such assignment does not conflict with applicable Requirements of Law.

A Lender shall not be required to make any such assignment or delegation if, prior thereto, as a result of a waiver by such Lender or otherwise, the circumstances entitling the Borrower to require such assignment and delegation cease to apply.

(b) If any Lender requests compensation under **Sections 2.15(a)** or **2.15(b)** , or the Borrower is required to pay any additional amount to any Lender or any Governmental Authority for the account of any Lender pursuant to **Section 2.16** , or if any Lender gives a notice pursuant to **Section 2.15(f)** , then such Lender shall use reasonable efforts to designate a different Lending Office for funding or booking its Loans hereunder or to assign its rights and obligations hereunder to another of its offices, branches or affiliates, if, in the judgment of such Lender, such designation or assignment (i) would eliminate or reduce amounts payable pursuant to **Sections 2.15(a)**, **2.15(b)** or **2.16** , as the case may be, in the future, or eliminate the need for the notice pursuant to **Section 2.15(f)** , as applicable, and (ii) in each case, would not subject such Lender to any unreimbursed cost or expense and would not otherwise be disadvantageous to such Lender. The Borrower hereby agrees to pay all reasonable costs and expenses incurred by any Lender in connection with any such designation or assignment.

2.19 Letters of Credit.

(a) Issuance. Subject to and upon the terms and conditions herein set forth, so long as no Default or Event of Default has occurred and is continuing, the Issuing Lender will, at any time and from time to time on and after the Closing Date and prior to the earlier of (i) the Letter of Credit Maturity Date and (ii) the Termination Date, and upon request by the Borrower in accordance with the provisions of **Section 3.2** , issue for the account of the Borrower or any of its Subsidiaries under the Dollar Commitments one or more irrevocable standby letters of credit denominated in Dollars and in a form customarily used or otherwise approved by the Issuing

Lender (collectively with the Existing Letters of Credit, and, in each case, with all amendments, modifications and supplements thereto, substitutions therefor and renewals and restatements thereof, the “Letters of Credit”). The Stated Amount of each Letter of Credit shall not be less than \$100,000.00 (other than with respect to an Existing Letter of Credit). Notwithstanding the foregoing:

(i) No Letter of Credit shall be issued if the Stated Amount upon issuance when added to the Aggregate Revolving Dollar Credit Exposure, would exceed the aggregate Dollar Commitments at such time;

(ii) Notwithstanding that a Letter of Credit issued or outstanding hereunder is in support of any obligations of, or is for the account of, or otherwise will benefit, a Subsidiary of the Borrower, the Borrower shall be obligated to reimburse the Issuing Lender hereunder for any and all drawings under such Letter of Credit (and the Borrower hereby acknowledges that the issuance of Letters of Credit for the benefit of its Subsidiaries inures to the benefit of the Borrower and that the Borrower’s business derives substantial benefits from the businesses of such Subsidiaries);

(iii) No Letter of Credit shall be issued that by its terms expires later than the Letter of Credit Maturity Date or, in any event, more than one year after its date of issuance; provided, however, that a Letter of Credit may, if requested by the Borrower, provide by its terms, and on terms acceptable to the Issuing Lender, for renewal for successive periods of one year or less (but not beyond the Letter of Credit Maturity Date), unless and until the Issuing Lender shall have delivered a notice of nonrenewal to the beneficiary of such Letter of Credit; and

(iv) The Issuing Lender shall be under no obligation to issue any Letter of Credit if, at the time of such proposed issuance, (A) any order, judgment or decree of any Governmental Authority or arbitrator shall purport by its terms to enjoin or restrain the Issuing Lender from issuing such Letter of Credit, or any Requirement of Law applicable to the Issuing Lender or any request or directive (whether or not having the force of law) from any Governmental Authority with jurisdiction over the Issuing Lender shall prohibit, or request that the Issuing Lender refrain from, the issuance of letters of credit generally or such Letter of Credit in particular or shall impose upon the Issuing Lender with respect to such Letter of Credit any restriction or reserve or capital requirement (for which the Issuing Lender is not otherwise compensated) not in effect on the Closing Date, or any unreimbursed loss, cost or expense that was not applicable, in effect or known to the Issuing Lender as of the Closing Date and that the Issuing Lender in good faith deems material to it, (B) the Issuing Lender shall have actual knowledge, or shall have received notice from any Lender, prior to the issuance of such Letter of Credit that one or more of the conditions specified in **Section 3.2** are not then satisfied (or have not been waived in writing as required herein) or that the issuance of such Letter of Credit would violate the provisions of **Section 2.19(a)** or (C) any Lender is at such time a Defaulting Lender hereunder, unless the aggregate Letter of Credit Exposure of such Lender has been reallocated pursuant to **Section 2.21(c)(i)** and any amount not reallocated has been cash collateralized pursuant to **Section 2.21(c)(ii)** or the Issuing Lender has entered into other satisfactory arrangements with the Borrower or such Lender to eliminate the Issuing Lender’s risk with respect to such Lender.

(b) Notices. Whenever the Borrower desires the issuance of a Letter of Credit, the Borrower will give the Issuing Lender written notice with a copy to the Administrative Agent not later than 11:00 a.m., Charlotte, North Carolina time, three Business Days (or such shorter period as is acceptable to the Issuing Lender in any given case) prior to the requested date of issuance thereof. Each such notice (each, a “Letter of Credit Notice”) shall be irrevocable, shall be given in the form of **Exhibit B-4** and shall specify (i) the requested date of issuance, which shall be a Business Day, (ii) the requested Stated Amount and expiry date of the Letter of Credit, and (iii) the name and address of the requested beneficiary or beneficiaries of the Letter of Credit. The Borrower will also complete any application procedures and documents reasonably required by the Issuing Lender in connection with the issuance of any Letter of Credit. Upon its issuance of any Letter of Credit, the Issuing Lender will promptly notify the Administrative Agent of such issuance, and the Administrative Agent will give prompt notice thereof to each Dollar Lender. The renewal or extension of any outstanding Letter of Credit shall, for purposes of this **Section 2.19**, be treated in all respects as the issuance of a new Letter of Credit.

(c) Participations. Immediately upon the issuance of any Letter of Credit, the Issuing Lender shall be deemed to have sold and transferred to each Dollar Lender, and each Dollar Lender shall be deemed irrevocably and unconditionally to have purchased and received from the Issuing Lender, without recourse or warranty (except for the absence of Liens thereon created, incurred or suffered to exist by, through or under the Issuing Lender), an undivided interest and participation, pro rata (based on the proportion that its Dollar Commitment bears to the aggregate Dollar Commitments at such time, or if the Dollar Commitments have been terminated, based on the proportion that its Dollar Commitment bears to the aggregate Dollar Commitments, in each case immediately prior to the termination thereof), in such Letter of Credit, each drawing made thereunder and the obligations of the Borrower under this Agreement with respect thereto and any guaranty pertaining thereto; provided, however, that the fee relating to Letters of Credit described in **Section 2.9(d)** shall be payable directly to the Issuing Lender as provided therein, and the other Dollar Lenders shall have no right to receive any portion thereof. In consideration and in furtherance of the foregoing, each Dollar Lender hereby absolutely and unconditionally agrees to pay to the Administrative Agent, for the account of the Issuing Lender, such Dollar Lender’s pro rata share (determined as provided above) of each Reimbursement Obligation not reimbursed by the Borrower on the date due as provided in **Section 2.19(d)** or through the Borrowing of Dollar Loans as provided in **Section 2.19(e)** (because the conditions set forth in **Section 3.2** cannot be satisfied, or for any other reason), or of any reimbursement payment required to be refunded to the Borrower for any reason. Upon any change in the Commitments of any of the Dollar Lenders, with respect to all outstanding Letters of Credit and Reimbursement Obligations there shall be an automatic adjustment to the participations pursuant to this **Section 2.19(c)** to reflect the new pro rata shares of the assigning Dollar Lender and the assignee. Each Dollar Lender’s obligation to make payment to the Issuing Lender pursuant to this **Section 2.19(c)** shall be absolute and unconditional and shall not be affected by any circumstance whatsoever, including the termination of the Dollar Commitments or the existence of any Default or Event of Default, and each such payment shall be made without any offset, abatement, reduction or withholding whatsoever.

(d) Reimbursement. The Borrower hereby agrees to reimburse the Issuing Lender by making payment to the Administrative Agent, for the account of the Issuing Lender, in immediately available funds, for any payment made by the Issuing Lender under any Letter of Credit (each such amount so paid until reimbursed, together with interest thereon payable as provided hereinbelow, a “Reimbursement Obligation”) immediately upon, and in any event on the same Business Day as, the making of such payment by the Issuing Lender (provided that any such Reimbursement Obligation shall be deemed timely satisfied (but nevertheless subject to the payment of interest thereon as provided hereinbelow) if satisfied pursuant to a Borrowing of Dollar Loans made on the date of such payment by the Issuing Lender, as set forth more completely in **Section 2.19(e)**), together with interest on the amount so paid by the Issuing Lender, to the extent not reimbursed prior to 2:00 p.m., Charlotte, North Carolina time, on the date of such payment or disbursement, for the period from the date of the respective payment to the date the Reimbursement Obligation created thereby is satisfied, at the Adjusted Base Rate applicable to Dollar Loans as in effect from time to time during such period, such interest also to be payable on demand. The Issuing Lender will provide the Administrative Agent and the Borrower with prompt notice of any payment or disbursement made or to be made under any Letter of Credit, although the failure to give, or any delay in giving, any such notice shall not release, diminish or otherwise affect the Borrower’s obligations under this **Section 2.19(d)** or any other provision of this Agreement. The Administrative Agent will promptly pay to the Issuing Lender any such amounts received by it under this **Section 2.19(d)**.

(e) Payment by Dollar Loans. In the event that the Issuing Lender makes any payment under any Letter of Credit and the Borrower shall not have timely satisfied in full its Reimbursement Obligation to the Issuing Lender pursuant to **Section 2.19(d)**, and to the extent that any amounts then held in the Cash Collateral Account established pursuant to **Section 2.19(i)** shall be insufficient to satisfy such Reimbursement Obligation in full, the Issuing Lender will promptly notify the Administrative Agent, and the Administrative Agent will promptly notify each Dollar Lender, of such failure. If the Administrative Agent gives such notice prior to 12:00 noon, Charlotte, North Carolina time, on any Business Day, each Dollar Lender will make available to the Administrative Agent, for the account of the Issuing Lender, its pro rata share (based on the percentage of the aggregate Dollar Commitments represented by such Lender’s Dollar Commitment) of the amount of such payment on such Business Day in immediately available funds. If the Administrative Agent gives such notice after 12:00 noon, Charlotte, North Carolina time, on any Business Day, each such Dollar Lender shall make its pro rata share of such amount available to the Administrative Agent on the next succeeding Business Day. If and to the extent any Dollar Lender shall not have so made its pro rata share of the amount of such payment available to the Administrative Agent, such Dollar Lender agrees to pay to the Administrative Agent, for the account of the Issuing Lender, forthwith on demand such amount, together with interest thereon at the Federal Funds Rate for each day from such date until the date such amount is paid to the Administrative Agent. The failure of any Dollar Lender to make available to the Administrative Agent its pro rata share of any payment under any Letter of Credit shall not relieve any other Dollar Lender of its obligation hereunder to make available to the Administrative Agent its pro rata share of any payment under any Letter of Credit on the date required, as specified above, but no Dollar Lender shall be responsible for the failure of any other Dollar Lender to make available to the Administrative Agent such other Dollar Lender’s pro rata share of any such payment. Each such payment by a Dollar Lender under this **Section 2.19(e)** of its pro rata share of an amount paid by the Issuing Lender shall constitute a Dollar

Loan by such Dollar Lender (the Borrower being deemed to have given a timely Notice of Borrowing therefor) and shall be treated as such for all purposes of this Agreement; provided that for purposes of determining the aggregate Unutilized Dollar Commitments immediately prior to giving effect to the application of the proceeds of such Dollar Loans, the Reimbursement Obligation being satisfied thereby shall be deemed not to be outstanding at such time. Each Dollar Lender's obligation to make Dollar Loans pursuant to this **Section 2.19(e)** shall be absolute and unconditional and shall not be affected by any circumstance whatsoever, including, without limitation, the failure of the amount of such Borrowing of Dollar Loans to meet the minimum Borrowing amount specified in **Section 2.2(b)** ; provided, however , that each Dollar Lender's obligation to make Dollar Loans pursuant to this **Section 2.19(e)** is subject to the conditions set forth in **Section 3.2** (other than delivery by the Borrower of a Notice of Borrowing).

(f) **Payment to Dollar Lenders** . Whenever the Issuing Lender receives a payment in respect of a Reimbursement Obligation as to which the Administrative Agent has received, for the account of the Issuing Lender, any payments from the Dollar Lenders pursuant to **Section 2.19 (e)** , the Issuing Lender will promptly pay to the Administrative Agent, and the Administrative Agent will promptly pay to each Dollar Lender that has paid its pro rata share thereof, in immediately available funds, an amount equal to such Dollar Lender's ratable share (based on the proportionate amount funded by such Dollar Lender to the aggregate amount funded by all Dollar Lenders) of such Reimbursement Obligation.

(g) **Existing Letters of Credit** . The Borrower and the Lenders agree that, on and as of the Closing Date, each Existing Letter of Credit issued for the account of the Borrower or any of its Subsidiaries will be deemed continued for the account of such Person under this Agreement as a Letter of Credit issued pursuant to this **Section 2.19** .

(h) **Obligations Absolute** . The Reimbursement Obligations of the Borrower shall be irrevocable, shall remain in effect until the Issuing Lender shall have no further obligations to make any payments or disbursements under any circumstances with respect to any Letter of Credit, and shall be absolute and unconditional, shall not be subject to counterclaim, setoff or other defense or any other qualification or exception whatsoever and shall be made in accordance with the terms and conditions of this Agreement under all circumstances, including, without limitation, any of the following circumstances:

(i) Any lack of validity or enforceability of this Agreement, any of the other Credit Documents or any documents or instruments relating to any Letter of Credit;

(ii) Any change in the time, manner or place of payment of, or in any other term of, all or any of the Obligations in respect of any Letter of Credit or any other amendment, modification or waiver of or any consent to departure from any Letter of Credit or any documents or instruments relating thereto, in each case whether or not the Borrower has notice or knowledge thereof;

(iii) The existence of any claim, setoff, defense or other right that the Borrower may have at any time against a beneficiary named in a Letter of Credit, any transferee of any Letter of Credit (or any Person for whom any such transferee may be acting), the

Administrative Agent, the Issuing Lender, any Lender or other Person, whether in connection with this Agreement, any Letter of Credit, the transactions contemplated hereby or any unrelated transactions (including any underlying transaction between the Borrower and the beneficiary named in any such Letter of Credit);

(iv) Any draft, certificate or any other document presented under the Letter of Credit proving to be forged, fraudulent, invalid or insufficient in any respect or any statement therein being untrue or inaccurate in any respect (provided that such draft, certificate or other document appears on its face to comply with the terms of such Letter of Credit), any errors, omissions, interruptions or delays in transmission or delivery of any messages, by mail, telecopier or otherwise, or any errors in translation or in interpretation of technical terms;

(v) Any defense based upon the failure of any drawing under a Letter of Credit to conform to the terms of the Letter of Credit (provided that any draft, certificate or other document presented pursuant to such Letter of Credit appears on its face to comply with the terms thereof), any nonapplication or misapplication by the beneficiary or any transferee of the proceeds of such drawing or any other act or omission of such beneficiary or transferee in connection with such Letter of Credit;

(vi) The exchange, release, surrender or impairment of any collateral or other security for the Obligations;

(vii) The occurrence of any Default or Event of Default; or

(viii) Any other circumstance or event whatsoever, including, without limitation, any other circumstance that might otherwise constitute a defense available to, or a discharge of, the Borrower or a Guarantor.

Any action taken or omitted to be taken by the Issuing Lender under or in connection with any Letter of Credit, if taken or omitted in the absence of gross negligence or willful misconduct, shall be binding upon the Borrower and each Lender and shall not create or result in any liability of the Issuing Lender to the Borrower or any Lender. It is expressly understood and agreed that, for purposes of determining whether a wrongful payment under a Letter of Credit resulted from the Issuing Lender's gross negligence or willful misconduct, (i) the Issuing Lender's acceptance of documents that appear on their face to comply with the terms of such Letter of Credit, without responsibility for further investigation, regardless of any notice or information to the contrary, (ii) the Issuing Lender's exclusive reliance on the documents presented to it under such Letter of Credit as to any and all matters set forth therein, including the amount of any draft presented under such Letter of Credit, whether or not the amount due to the beneficiary thereunder equals the amount of such draft and whether or not any document presented pursuant to such Letter of Credit proves to be insufficient in any respect (so long as such document appears on its face to comply with the terms of such Letter of Credit), and whether or not any other statement or any other document presented pursuant to such Letter of Credit proves to be forged or invalid or any statement therein proves to be inaccurate or untrue in any respect whatsoever, and (iii) any noncompliance in any immaterial respect of the documents presented under such Letter of Credit with the terms thereof shall, in each case, be deemed not to constitute gross negligence or willful misconduct of the Issuing Lender.

(i) Cash Collateral Account. At any time and from time to time (i) after the occurrence and during the continuance of an Event of Default, the Administrative Agent may, and at the direction or with the consent of the Required Dollar Lenders shall, require the Borrower to deliver to the Administrative Agent such additional amount of cash as is equal to 100% of the aggregate Stated Amount of all Letters of Credit at any time outstanding (whether or not any beneficiary under any Letter of Credit shall have drawn or be entitled at such time to draw thereunder) and (ii) in the event of a prepayment under **Section 2.6(b)**, the Administrative Agent will retain such amount as may then be required to be retained, such amounts to be held by the Administrative Agent in a cash collateral account (the “Cash Collateral Account”). The Borrower hereby grants to the Administrative Agent, for the benefit of the Issuing Lender and the Dollar Lenders, a Lien upon and security interest in the Cash Collateral Account and all amounts held therein from time to time as security for Letter of Credit Exposure, and for application to the Borrower’s Reimbursement Obligations as and when the same shall arise. The Administrative Agent shall have exclusive dominion and control, including the exclusive right of withdrawal, over such account. Other than any interest on the investment of such amounts in Cash Equivalents, which investments shall be made at the direction of the Borrower (unless a Default or Event of Default shall have occurred and be continuing, in which case the determination as to investments shall be made at the option and in the discretion of the Administrative Agent), amounts in the Cash Collateral Account shall not bear interest. Interest and profits, if any, on such investments shall accumulate in such account. In the event of a drawing, and subsequent payment by the Issuing Lender, under any Letter of Credit at any time during which any amounts are held in the Cash Collateral Account, the Administrative Agent will deliver to the Issuing Lender an amount equal to the Reimbursement Obligation created as a result of such payment (or, if the amounts so held are less than such Reimbursement Obligation, all of such amounts) to reimburse the Issuing Lender therefor. Any amounts remaining in the Cash Collateral Account (including interest) after the expiration of all Letters of Credit and reimbursement in full of the Issuing Lender for all of its obligations thereunder shall be held by the Administrative Agent, for the benefit of the Borrower, to be applied against the Obligations in such order and manner as the Administrative Agent may direct. If the Borrower is required to provide cash collateral pursuant to **Section 2.6(b)**, such amount (including interest), to the extent not applied as aforesaid, shall be returned to the Borrower on demand, provided that after giving effect to such return (i) the Aggregate Revolving Dollar Credit Exposure would not exceed the aggregate Dollar Commitments at such time and (ii) no Default or Event of Default shall have occurred and be continuing at such time. If the Borrower is required to provide cash collateral as a result of an Event of Default, such amount (to the extent not applied as aforesaid) shall be returned to the Borrower within three Business Days after all Events of Default have been cured or waived.

(j) The Issuing Lender. The Issuing Lender shall act on behalf of the Dollar Lenders with respect to any Letters of Credit issued by it and the documents associated therewith, and the Issuing Lender shall have all of the rights, benefits and immunities (a) provided to the Administrative Agent in **Article IX** with respect to any acts taken or omissions suffered by it in connection with Letters of Credit issued by it or proposed to be issued by it and any documents pertaining to such Letters of Credit as fully as if the term “Administrative Agent” as used in **Article IX** included the Issuing Lender with respect to such acts or omissions, and (b) as additionally provided herein with respect to the Issuing Lender.

(k) Effectiveness. Notwithstanding any termination of the Commitments or repayment of the Loans, or both, the obligations of the Borrower under this **Section 2.19** shall remain in full force and effect until the Issuing Lender and the Dollar Lenders shall have no further obligations to make any payments or disbursements under any circumstances with respect to any Letter of Credit.

2.20 Increase in Commitments

(a) From time to time on and after the Closing Date and prior to the Termination Date, the Borrower may, upon at least 30 days' notice to the Administrative Agent (which shall promptly provide a copy of such notice to the Lenders), propose to increase the aggregate amount of the Commitments of any Class by an amount which (i) is not less than \$10,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof, with respect to any such request and (ii) when aggregated with all prior and concurrent increases in the Commitments of all Classes pursuant to this **Section 2.20**, is not in excess of \$100,000,000. The Borrower may increase the aggregate amount of the Commitments by (x) having another lender or lenders (each, an "Additional Lender") become party to this Agreement, (y) agreeing with any Lender (with the consent of such Lender in its sole discretion) to increase its Commitment hereunder (each, an "Increasing Lender") or (z) a combination of the procedures described in clauses (x) and (y) of this sentence; provided that no Lender shall be obligated to increase its Commitment without its consent.

(b) Any increase in the Commitments pursuant to this **Section 2.20** shall be subject to satisfaction of the following conditions:

(i) The Borrower shall deliver to the Administrative Agent a certificate of the Borrower dated as of the applicable increase date signed by an Authorized Officer of the Borrower certifying and attaching the resolutions adopted by the Borrower approving or consenting to such increase;

(ii) Each of the representations and warranties contained in **Article IV** and in the other Credit Documents qualified as to materiality shall be true and correct and those not so qualified shall be true and correct in all material respects, in each case on and as of such date of increase with the same effect as if made on and as of such date, both immediately before and after giving effect to such increase (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case such representation or warranty shall be true and correct as of such date); and

(iii) At the time of such increase, no Default or Event of Default shall have occurred and be continuing or would result from such increase.

(c) Upon any increase in the amount of the Commitments pursuant to this **Section 2.20** (each, an "Additional Commitment"):

(i) Each Additional Lender or Increasing Lender shall enter into a Joinder Agreement pursuant to which such Additional Lender and/or Increasing Lender shall, as of the effective date of such increase, undertake an Additional Commitment (or, in the case of an Increasing Lender, pursuant to which such Increasing Lender's Commitment shall be increased in the agreed amount on such date) and such Additional Lender shall thereupon become (or, if an Increasing Lender, continue to be) a "Lender" for all purposes hereof.

(ii) The Borrower shall, as applicable, in coordination with the Administrative Agent, repay all outstanding Loans of the affected Class and incur additional Loans of the affected Class from other Lenders of such Class in each case so that the Lenders participate in each Borrowing of such Class pro rata on the basis of their respective Commitments of such Class (after giving effect to any increase in the Commitments pursuant to this **Section 2.20**) and amounts payable under **Section 2.17** as a result of the actions required to be taken under this **Section 2.20** shall be paid in full by the Borrower; and

(iii) If any such Additional Lender is a Foreign Lender, such Additional Lender shall deliver the forms required by **Section 2.16(e)** .

2.21 Defaulting Lenders . Notwithstanding anything contained in this Agreement to the contrary, in the event that any Lender becomes a Defaulting Lender, then the following provisions shall apply for so long as such Lender is a Defaulting Lender:

(a) fees shall cease to accrue on the Unutilized Commitment of such Defaulting Lender pursuant to **Section 2.9(b)** ;

(b) the Commitments and Revolving Credit Exposure of such Defaulting Lender shall not be included in determining whether the Required Lenders have taken or may take any action hereunder (including any consent to any amendment or waiver pursuant to **Section 10.5**), except that the Commitments of such Defaulting Lender may not be increased or extended without the consent of such Lender;

(c) if such Defaulting Lender is a Dollar Lender and if there shall be any outstanding Letter of Credit or Swingline Loan during any time such Lender is a Defaulting Lender, then:

(i) all or any part of such Defaulting Lender's Swingline Exposure and Letter of Credit Exposure shall be reallocated among the non-Defaulting Lenders that are Dollar Lenders in accordance with their respective pro rata shares (based on the proportion that its Dollar Commitment bears to the aggregate Dollar Commitments at such time, or if the Dollar Commitments have been terminated or expired, based on the Dollar Commitments most recently in effect, in each case disregarding any Defaulting Lender) but only to the extent that with respect to each such non-Defaulting Lender the Revolving Dollar Credit Exposure of such non-Defaulting Lender (in its capacity as a Dollar Lender) outstanding at such time (after giving effect to any such reallocation) does not exceed such non-Defaulting Lender's Dollar Commitment;

(ii) if the reallocation described in clause (i) above cannot, or can only partially, be effected, including after repayment of any Dollar Loans that the Borrower elects to repay to effect the reallocation, the Borrower shall, within one Business Day following written notice from the Administrative Agent demanding the deposit of cash collateral pursuant to this **Section 2.21**, pay to the Administrative Agent for the benefit of the Dollar Lenders, for deposit in an interest bearing cash deposit account to be established and maintained by the Administrative Agent, over which the Administrative Agent shall have sole dominion and control, upon such terms as may be satisfactory to the Administrative Agent (the “**Defaulting Lender Collateral Account**”), an amount in cash, which to the extent allowed by law shall be free and clear of all rights and claims of third parties, equal to such Defaulting Lender’s Swingline Exposure and Letter of Credit Exposure (the “**Defaulting Lender Share**”) (after giving effect to any partial reallocation pursuant to clause (i) above) for so long as such Defaulting Lender Share is outstanding, but only to the extent that the reallocation described in clause (i) above cannot be made from time to time; provided that (w) if at any time the Administrative Agent determines that the amount on deposit in the Defaulting Lender Collateral Account shall be less than such Defaulting Lender Share (after giving effect to any partial reallocation pursuant to clause (i) above), the Administrative Agent may make demand on the Borrower to pay, and the Borrower will, within one Business Day after written notice from the Administrative Agent making such demand, pay to the Administrative Agent an amount equal to such deficiency, which funds shall be deposited in the Defaulting Lender Collateral Account, (x) amounts held in the Defaulting Lender Collateral Account will be paid as necessary from time to time, (A) to the Issuing Lender, on account of amounts owing by such Defaulting Lender pursuant to **Section 2.19**, and (B) to the Swingline Lender, on account of amounts owing by such Defaulting Lender pursuant to **Sections 2.2(e)** and **2.2(f)**, and, in each case, such amounts will not become Dollar Loans of such Defaulting Lender under the terms of such provisions, (y) if the Borrower is required to provide an amount of cash collateral under this clause (ii), such amount (to the extent not applied as aforesaid) shall be returned to the Borrower within three Business Days after a Defaulting Lender has been determined in accordance with the terms of this **Section 2.21** to no longer be a Defaulting Lender or such Defaulting Lender has been replaced by another Lender pursuant to **Section 2.18**, and (z) amounts in such Defaulting Lender Collateral Account shall be repaid to the Borrower to the extent not required as collateral from time to time pursuant to the provisions of this clause (ii);

(iii) if the Borrower cash collateralizes any portion of such Defaulting Lender Share pursuant to **Section 2.21(c)**, the Borrower shall not be required to pay any fees to such Defaulting Lender pursuant to **Section 2.9(c)** with respect to such Defaulting Lender Share during the period such Defaulting Lender Share is cash collateralized;

(iv) if the pro rata share of the Stated Amount of outstanding Letters of Credit of the non-Defaulting Lenders is reallocated pursuant to **Section 2.21(c)**, then the fees payable to the Dollar Lenders pursuant to **Section 2.9(b)** and **Section 2.9(c)** shall be adjusted in accordance with such non-Defaulting Lenders’ pro rata shares thereof; and

(v) if any Defaulting Lender Share is neither cash collateralized nor reallocated pursuant to **Section 2.21(c)**, then, without prejudice to any rights or remedies

of the Issuing Lender or any Lender hereunder, the fee payable under **Section 2.9(c)** with respect to such Defaulting Lender Share shall be payable to the Issuing Lender until such Defaulting Lender Share is cash collateralized and/or reallocated;

(d) to the extent the Administrative Agent receives any payments or other amounts for the account of a Defaulting Lender, such Defaulting Lender shall be deemed to have requested that the Administrative Agent use such payment or other amount to fulfill such Defaulting Lender's previously unsatisfied payment obligations hereunder; and

(e) for the avoidance of doubt, each of the Borrower, the Issuing Lender, the Administrative Agent and each Lender shall retain and reserve its other rights and remedies respecting each Defaulting Lender.

In the event that the Administrative Agent, the Borrower and the Issuing Lender each agrees that a Defaulting Lender has adequately remedied all matters that caused such Lender to be a Defaulting Lender, then the pro rata shares of the Lenders shall be readjusted to reflect the inclusion of such Lender's Commitment and on such date such Lender shall purchase at par such of the Loans of the other Lenders as the Administrative Agent shall determine may be necessary in order for such Lender to hold such Loans in accordance with its pro rata share. In addition, at such time as the Defaulting Lender is replaced by another Lender pursuant to **Section 2.18**, the pro rata shares of the Lenders will be readjusted to reflect the inclusion of the replacing Lender's Commitment. In either such case, this **Section 2.21** will no longer apply.

2.22 Additional Reserve Costs.

(a) If and for so long as any Multicurrency Lender is required to make special deposits with the Bank of England, to maintain reserve asset ratios or to pay fees, in each case in respect of such Multicurrency Lender's LIBOR Loans in any Foreign Currency, such Multicurrency Lender may require the Borrower to pay, contemporaneously with each payment of interest on each of such LIBOR Loans, additional interest on such LIBOR Loan at a rate per annum equal to the Mandatory Costs Rate calculated in accordance with the formula and in the manner set forth in **Schedule 1.1(c)** hereto.

(b) If and for so long as any Multicurrency Lender is required to comply with reserve assets, liquidity, cash margin or other requirements of any monetary or other authority (including any such requirement imposed by the European Central Bank or the European System of Central Banks, but excluding requirements reflected in the Reserve Requirement or the Mandatory Costs Rate) in respect of any of such Multicurrency Lender's LIBOR Loans in any Foreign Currency, such Multicurrency Lender may require the Borrower to pay, contemporaneously with each payment of interest on each of such Multicurrency Lender's LIBOR Loans subject to such requirements, additional interest on such LIBOR Loan at a rate per annum specified by such Multicurrency Lender to be the cost to such Multicurrency Lender of complying with such requirements in relation to such LIBOR Loan.

(c) Any additional interest owed pursuant to paragraph (a) or (b) above shall be determined by the relevant Multicurrency Lender, which determination shall be conclusive absent manifest error, and notified to the Borrower (with a copy to the Administrative Agent) in

reasonable detail at least five Business Days before each date on which interest is payable for the relevant Multicurrency Loan, and such additional interest so notified to the Borrower by such Multicurrency Lender shall be payable to the Administrative Agent for the account of such Multicurrency Lender on each date on which interest is payable for such Multicurrency Loan.

ARTICLE III

CONDITIONS OF BORROWING

3.1 Conditions of Initial Borrowing. The Closing Date shall occur upon the satisfaction of the following conditions precedent:

(a) The Administrative Agent shall have received the following, each of which shall be originals or telecopies or in an electronic format acceptable to the Administrative Agent (followed promptly by originals) unless otherwise specified, each properly executed by a Responsible Officer of the applicable Credit Party, each dated as of the Closing Date (or, in the case of certificates of governmental officials, a recent date prior to the Closing Date) and each in a form and substance reasonably satisfactory to the Administrative Agent and each of the Lenders:

(i) executed counterparts of this Agreement in such number of copies as the Administrative Agent shall have required;

(ii) to the extent requested by any Lender in accordance with **Section 2.4(d)**, a Note or Notes for such Lender, in each case duly completed in accordance with the provisions of **Section 2.4(d)** and executed by the Borrower;

(iii) the Guaranty, duly completed and executed by the Subsidiary Guarantors, which shall include each Wholly-Owned Subsidiary of the Borrower, other than any Foreign Subsidiary to the extent doing so would cause adverse tax or regulatory consequences to the Borrower;

(iv) if any LIBOR Loans are to be borrowed prior to the 3rd Business Day after the Closing Date, the Administrative Agent shall have received, 3 Business Days prior to the date such LIBOR Loans are to be borrowed, a pre-funding LIBOR indemnity letter from the Borrower and a completed Notice of Borrowing;

(v) a certificate, signed by an Authorized Officer of the Borrower, certifying that (i) all representations and warranties of the Credit Parties contained in this Agreement and the other Credit Documents qualified as to materiality shall be true and correct and those not so qualified shall be true and correct in all material respects, in each case as of the Closing Date, both immediately before and after giving effect to the transactions contemplated hereby (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case such representation or warranty shall be true and correct as of such date), (ii) no Default or Event of Default has occurred and is continuing, both immediately before and after giving effect to the transactions contemplated hereby, (iii) both immediately before and

after giving effect to the transactions contemplated hereby, no Material Adverse Effect has occurred since December 31, 2009, and there exists no event, condition or state of facts that could reasonably be expected to result in a Material Adverse Effect, and (iv) all conditions to the initial extensions of credit hereunder set forth in this **Section 3.1** and in **Section 3.2** have been satisfied or waived as required hereunder;

(vi) a certificate of the secretary or an assistant secretary of each Credit Party executing any Credit Documents as of the Closing Date, certifying (i) that attached thereto is a true and complete copy of the articles or certificate of incorporation, certificate of formation or other organizational document and all amendments thereto of such Credit Party, certified as of a recent date by the Secretary of State (or comparable Governmental Authority) of its jurisdiction of organization, and that the same has not been amended since the date of such certification, (ii) that attached thereto is a true and complete copy of the bylaws, operating agreement or similar governing document of such Credit Party, as then in effect and as in effect at all times from the date on which the resolutions referred to in clause (iii) below were adopted to and including the date of such certificate, and (iii) that attached thereto is a true and complete copy of resolutions adopted by the board of directors (or similar governing body) of such Credit Party, authorizing the execution, delivery and performance of this Agreement and the other Credit Documents to which it is a party, and as to the incumbency and genuineness of the signature of each officer of such Credit Party executing this Agreement or any of such other Credit Documents, and attaching all such copies of the documents described above;

(vii) a certificate as of a recent date of the good standing of each Credit Party executing any Credit Documents as of the Closing Date, under the laws of its jurisdiction of organization, from the Secretary of State (or comparable Governmental Authority) of such jurisdiction; and

(viii) a Financial Conditions Certificate executed by the chief financial officer of the Borrower containing the copies of the financial statements referred to in **Section 4.11** and confirming that, as of the Closing Date, after giving effect to the consummation of the transactions contemplated hereby, the Borrower and its Subsidiaries on a consolidated basis are solvent.

(b) All approvals, permits and consents of any Governmental Authorities, any Self-Regulatory Organizations, or other Persons required in connection the consummation of any of the transactions contemplated hereby shall have been obtained, without the imposition of conditions that are materially adverse to the Administrative Agent or the Lenders; all applicable waiting periods shall have expired without any adverse action being taken or threatened by any Governmental Authority or Self-Regulatory Organization having jurisdiction; and no action, proceeding, investigation, regulation or legislation shall have been instituted, threatened or proposed before, and no order, injunction or decree shall have been entered by, any court or other Governmental Authority or any Self-Regulatory Organization, in each case to enjoin, restrain or prohibit, to obtain substantial damages in respect of, or to impose materially adverse conditions upon, this Agreement, any of the other Credit Documents or the consummation of the transactions contemplated hereby or that could reasonably be expected to have a Material Adverse Effect.

(c) The Borrower shall have (i) amended its existing Credit Agreement, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement dated as of August 24, 2007, the Second Amendment to Credit Agreement dated as of June 13, 2008, and as amended and restated by the Amendment and Restatement Agreement, dated as of April 9, 2009, with Wells Fargo, as administrative agent, BofA, as syndication agent and the lenders party thereto (the “Existing 2007 Credit Facility”) to (x) permit the consummation of the transactions contemplated hereby, and (y) make certain other amendments thereto requested by the Borrower and reasonably satisfactory to the Administrative Agent and (ii) complied with all terms and conditions in the definitive documentation of such amendment.

(d) The Borrower shall have (i) amended its existing Credit Agreement, dated as of April 9, 2009, with Wells Fargo, as administrative agent, BofA, as syndication agent and the lenders party thereto, providing for a revolving credit facility in the aggregate principal amount of \$100,000,000 and a term loan credit facility in the amount of \$200,000,000 (the “Existing 2009 Credit Facility”), to (x) permit the consummation of the transactions contemplated hereby, (y) terminate the revolving credit commitments of the lenders thereunder, and (z) make certain other amendments thereto requested by the Borrower and reasonably satisfactory to the Administrative Agent and (ii) complied with all terms and conditions in the definitive documentation of such amendment.

(e) (i) All principal, interest and other amounts outstanding under the Borrower’s existing Credit Agreement, dated as of April 9, 2009, with ICE Trust, Wells Fargo, as administrative agent, BofA, as syndication agent and the lenders party thereto, providing for a 364-day revolving credit facility in the aggregate principal amount of \$300,000,000 (the “Terminating Liquidity Facility”) shall be paid in full, and (ii) all commitments to extend credit under the agreements and instruments relating to the Terminating Liquidity Facility and all guarantees relating thereto shall be terminated; and the Administrative Agent shall have received evidence of the foregoing satisfactory to it.

(f) Since December 31, 2009, both immediately before and after giving effect to the transactions contemplated hereby, there shall not have occurred (i) a Material Adverse Effect or (ii) any event, condition or state of facts that could reasonably be expected to have a Material Adverse Effect.

(g) The Borrower shall have paid (i) to the Arrangers, the fees required under the Joint Fee Letter to be paid to them on the Closing Date, in the amounts due and payable on the Closing Date as required by the terms thereof, (ii) to the Administrative Agent, the initial payment of the annual administrative fee described in the Wells Fargo Fee Letter, and (iii) all other fees and reasonable expenses of the Arrangers, the Administrative Agent and the Lenders required to be paid on or prior to the Closing Date (including reasonable fees and expenses of counsel) in connection with this Agreement and the other Credit Documents.

(h) The Administrative Agent shall have received an Account Designation Letter, together with written instructions from an Authorized Officer of the Borrower, including wire transfer information, directing the payment of the proceeds of any Loans made hereunder.

(i) Each of the Administrative Agent and each Lender shall have received such other documents, certificates, opinions and instruments in connection with the transactions contemplated hereby as it shall have reasonably requested (including but not limited to legal opinions of counsel to the Borrower and its Subsidiaries).

3.2 Conditions of All Borrowings. The obligation of each Lender to make any Loans hereunder (excluding Revolving Loans made for the purpose of repaying Refunded Swingline Loans pursuant to **Section 2.2(e)**), and the obligation of the Issuing Lender to issue any Letters of Credit hereunder, is subject to the satisfaction of the following conditions precedent on the relevant Borrowing Date:

(a) The Administrative Agent shall have received a Notice of Borrowing in accordance with **Section 2.2(b)**, or (together with the Swingline Lender) a Notice of Swingline Borrowing in accordance with **Section 2.2(d)** or (together with the Issuing Lender) a Letter of Credit Notice in accordance with **Section 2.19(b)**, as applicable;

(b) Each of the representations and warranties contained in **Article IV** and in the other Credit Documents qualified as to materiality shall be true and correct and those not so qualified shall be true and correct in all material respects, in each case on and as of such Borrowing Date (including the Closing Date, in the case of the any Loans made on the Closing Date hereunder) or such date of issuance of a Letter of Credit with the same effect as if made on and as of such date, both immediately before and after giving effect to the Loans to be made or Letter of Credit to be issued on such date (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case such representation or warranty shall be true and correct as of such date); and

(c) No Default or Event of Default shall have occurred and be continuing on such date, both immediately before and after giving effect to the Loans to be made or Letter of Credit to be issued on such date.

Each giving of a Notice of Borrowing, a Notice of Swingline Borrowing or a Letter of Credit Notice, and the consummation of each Borrowing or issuance of a Letter of Credit, shall be deemed to constitute a representation by the Borrower that the statements contained in **Sections 3.2(b)** and **3.2(c)** are true, both as of the date of such notice or request and as of the relevant Borrowing Date or date of issuance.

ARTICLE IV

REPRESENTATIONS AND WARRANTIES

To induce the Administrative Agent and the Lenders to enter into this Agreement and to induce the Lenders to extend the credit contemplated hereby, the Borrower represents and warrants to the Administrative Agent and the Lenders as follows:

4.1 Corporate Organization and Power. Each Credit Party (i) is a corporation or a limited liability company duly organized or formed, validly existing and in good standing under the laws of the jurisdiction of its incorporation or formation, as the case may be (which

jurisdictions, as of the Closing Date, are set forth on **Schedule 4.1**), (ii) has the full corporate or limited liability company power and authority to execute, deliver and perform the Credit Documents to which it is or will be a party, to own and hold its property and to engage in its business as presently conducted, and (iii) is duly qualified to do business as a foreign corporation or limited liability company and is in good standing in each jurisdiction where the nature of its business or the ownership of its properties requires it to be so qualified, except where the failure to be so qualified, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.2 Authorization; Enforceability . Each Credit Party has taken all necessary corporate or limited liability action, as applicable, to execute, deliver and perform each of the Credit Documents to which it is a party, and has (or on any later date of execution and delivery will have) validly executed and delivered each of the Credit Documents to which it is a party. This Agreement constitutes, and each of the other Credit Documents upon execution and delivery will constitute, the legal, valid and binding obligation of each Credit Party that is a party hereto or thereto, enforceable against it in accordance with its terms, except as enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors' rights generally, by general equitable principles or by principles of good faith and fair dealing (regardless of whether enforcement is sought in equity or at law).

4.3 No Violation . The execution, delivery and performance by each Credit Party of each of the Credit Documents to which it is a party, and compliance by it with the terms hereof and thereof, do not and will not (i) violate any provision of its articles or certificate of incorporation or formation, its bylaws or operating agreement, or other applicable formation or organizational documents, (ii) contravene any other Requirement of Law applicable to it, (iii) conflict with, result in a breach of or constitute (with notice, lapse of time or both) a default under any indenture, mortgage, lease, agreement, contract or other instrument to which it is a party, by which it or any of its properties is bound or to which it is subject, or (iv) result in or require the creation or imposition of any Lien, other than a Permitted Lien, upon any of its properties, revenues or assets; except, in the case of clauses (ii) and (iii) above, where such violations, conflicts, breaches or defaults, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.4 Governmental and Third-Party Authorization; Permits . No consent, approval, authorization or other action by, notice to, or registration or filing with, any Governmental Authority, Self-Regulatory Organization, or other Person is required as a condition to or otherwise in connection with the due execution, delivery and performance by each Credit Party of this Agreement or any of the other Credit Documents to which it is a party or the legality, validity or enforceability hereof or thereof, other than (i) consents, authorizations and filings that have been made or obtained and that are in full force and effect, which consents, authorizations and filings are listed on **Schedule 4.4** , and (ii) consents and filings the failure to obtain or make which, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect. Each Credit Party has, and is in good standing with respect to, all governmental approvals, licenses, permits and authorizations necessary to conduct its business as presently conducted and to own or lease and operate its properties, except for those the failure to obtain which, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.5 Litigation. Except as set forth on **Schedule 4.5**, there are no actions, investigations, suits or proceedings pending or, to the knowledge of the Borrower, threatened, at law, in equity or in arbitration, before any court, other Governmental Authority, Self-Regulatory Organization, arbitrator or other Person, (i) against or affecting any of the Credit Parties or any of their respective properties that, if adversely determined, could reasonably be expected to have a Material Adverse Effect, or (ii) with respect to this Agreement, any of the other Credit Documents or any of the other transactions contemplated hereby or thereby.

4.6 Taxes. Each of the Borrower and its Subsidiaries has timely filed all federal, state, local and foreign tax returns and reports required to be filed by it and has paid, prior to the date on which penalties would attach thereto or a Lien would attach to any of its properties if unpaid, all taxes, assessments, fees and other charges levied upon it or upon its properties that are shown thereon as due and payable, other than those that are not yet delinquent or that are being contested in good faith and by proper proceedings and for which adequate reserves have been established in accordance with GAAP. Such returns accurately reflect in all material respects all liability for taxes of the Borrower and its Subsidiaries for the periods covered thereby. As of the Closing Date, there is no ongoing audit or examination or, to the knowledge of the Borrower, other investigation by any Governmental Authority of the tax liability of any of the Borrower or its Subsidiaries, and there is no material unresolved claim by any Governmental Authority concerning the tax liability of the Borrower or any of its Subsidiaries for any period for which tax returns have been or were required to have been filed, other than unsecured claims for which adequate reserves have been established in accordance with GAAP. As of the Closing Date, neither the Borrower nor any of its Subsidiaries has waived or extended or has been requested to waive or extend the statute of limitations relating to the payment of any taxes.

4.7 Subsidiaries. **Schedule 4.7** sets forth a list, as of the Closing Date, of all of the Subsidiaries of the Borrower and as to each such Subsidiary, the percentage ownership (direct and indirect) of the Borrower in each class of its Capital Stock and each direct owner thereof.

4.8 Full Disclosure. All factual information heretofore, contemporaneously or hereafter furnished in writing to the Administrative Agent, any Arranger or any Lender by or on behalf of any Credit Party pursuant to this Agreement or the other Credit Documents is or will be true and accurate in all material respects on the date as of which such information is dated or certified (or, if such information has been updated, amended or supplemented, on the date as of which any such update, amendment or supplement is dated or certified) and not made incomplete by omitting to state a material fact necessary to make the statements contained herein and therein, in light of the circumstances under which such information was provided, not misleading; provided that, with respect to projections, budgets and other estimates, except as specifically represented in **Section 4.11(b)**, the Borrower represents only that such information was prepared in good faith based upon assumptions believed to be reasonable at the time. As of the Closing Date, there is no fact known to any Credit Party that has, or could reasonably be expected to have, a Material Adverse Effect, which fact has not been set forth herein, in the consolidated financial statements of the Borrower and its Subsidiaries furnished to the Administrative Agent and/or the Lenders, or in any certificate, opinion or other written statement made or furnished by the Borrower to the Administrative Agent and/or the Lenders.

4.9 Margin Regulations. No Credit Party is engaged principally, or as one of its important activities, in the business of extending credit for the purpose of purchasing or carrying Margin Stock. No proceeds of the Loans will be used, directly or indirectly, to purchase or carry any Margin Stock, to extend credit for such purpose or for any other purpose, in each case that would violate or be inconsistent with Regulations T, U or X or any provision of the Exchange Act.

4.10 No Material Adverse Effect. There has been no Material Adverse Effect since December 31, 2009 and there exists no event, condition or state of facts that could reasonably be expected to result in a Material Adverse Effect.

4.11 Financial Matters.

(a) The Borrower has heretofore furnished to the Administrative Agent copies of the audited consolidated balance sheets of the Borrower and its Subsidiaries, for the 2009 and 2008 fiscal years, in each case with the related statements of income, stockholders' equity, comprehensive income and cash flows for the fiscal years then ended, together with the opinions of Ernst & Young LLP thereon. Such financial statements have been prepared in accordance with GAAP and present fairly in all material respects the financial condition of the Borrower and its Subsidiaries on a consolidated basis as of the respective dates thereof and the results of operations of the Borrower and its Subsidiaries on a consolidated basis for the respective periods then ended. Except as fully reflected in the most recent financial statements referred to above and the notes thereto, there are no material liabilities or obligations with respect to the Borrower and its Subsidiaries of any nature whatsoever (whether absolute, contingent or otherwise and whether or not due) that are required in accordance with GAAP to be reflected in such financial statements and that are not so reflected.

(b) The Borrower has prepared, and has heretofore furnished to the Administrative Agent a copy of, projected consolidated balance sheets and statements of income and cash flows of the Borrower and its Subsidiaries prepared on an annual basis through the end of fiscal year 2013, giving effect to the initial extensions of credit made under this Agreement, the payment of transaction fees and expenses related to the foregoing and the consummation of the other transactions contemplated hereby (the "Projections"). In the good faith opinion of management of the Borrower, the assumptions used in the preparation of the Projections were fair, complete and reasonable when made and continue to be fair, complete and reasonable as of the date hereof. The Projections have been prepared in good faith by the executive and financial personnel of the Borrower, are complete and represent a reasonable estimate of the future performance and financial condition of the Borrower and its Subsidiaries, subject to the uncertainties and approximations inherent in any projections.

(c) After giving effect to the consummation of the transactions contemplated hereby, each Credit Party (i) has capital sufficient to carry on its businesses as conducted and as proposed to be conducted, (ii) has assets with a fair saleable value, determined on a going concern basis, which are (y) not less than the amount required to pay the probable liability on its existing debts as they become absolute and matured and (z) greater than the total amount of its liabilities (including identified contingent liabilities, valued at the amount that can reasonably be expected to become absolute and matured in their ordinary course), and (iii) does not intend to, and does not believe that it will, incur debts or liabilities beyond its ability to pay such debts and liabilities as they mature in their ordinary course.

(d) Since December 31, 2009, there has not been an occurrence of a “material weakness” (as defined in statement on Auditing Standards No. 60) in, or fraud that involves management or other employees who have a significant role in, the Borrower’s internal controls over financial reporting, in each case as described in Section 404 of the Sarbanes-Oxley Act of 2002 and all rules and regulations promulgated thereunder and the accounting and auditing principles, rules, standards and practices promulgated or approved with respect thereto, in each case that could reasonably be expected to have a Material Adverse Effect.

(e) Neither (i) the board of directors of the Borrower, a committee thereof or an authorized officer of the Borrower has concluded that any financial statement previously furnished to the Administrative Agent should no longer be relied upon because of an error, nor (ii) has the Borrower been advised by its auditors that a previously issued audit report or interim review cannot be relied on.

4.12 Ownership of Properties. Each of the Borrower and its Subsidiaries (i) has good and marketable title to all real property owned by it, (ii) holds interests as lessee under valid leases in full force and effect with respect to all material leased real and personal property used in connection with its business, and (iii) has good title to all of its other material properties and assets reflected in the most recent financial statements referred to in **Section 4.11(a)** (except as sold or otherwise disposed of since the date thereof in the ordinary course of business), in each case free and clear of all Liens other than Permitted Liens.

4.13 ERISA.

(a) Each Credit Party and its ERISA Affiliates is in compliance with the applicable provisions of ERISA, and each Plan is and has been administered in compliance with all applicable Requirements of Law, including, without limitation, the applicable provisions of ERISA and the Code, in each case except where the failure so to comply, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect. No ERISA Event (i) has occurred within the five (5) year period prior to the Closing Date, (ii) has occurred and is continuing, or (iii) to the knowledge of the Borrower, is reasonably expected to occur with respect to any Plan. No Plan has any Unfunded Pension Liability as of the most recent annual valuation date applicable thereto, and no Credit Party or any of its ERISA Affiliates has engaged in a transaction that could be subject to Section 4069 or 4212(c) of ERISA.

(b) No Credit Party or any of its ERISA Affiliates has any outstanding liability on account of a complete or partial withdrawal from any Multiemployer Plan, and no Credit Party or any of its ERISA Affiliates would become subject to any liability under ERISA if any such Credit Party or ERISA Affiliate were to withdraw completely from all Multiemployer Plans as of the most recent valuation date. No Multiemployer Plan is in “reorganization” or is “insolvent” within the meaning of such terms under ERISA.

4.14 Environmental Matters. Neither the Borrower nor any of its Subsidiaries is involved in any suit, action or proceeding, or has received any notice, complaint or other request

for information from any Governmental Authority or other Person, with respect to any actual or alleged Environmental Claims, and to the knowledge of the Borrower, there are no threatened Environmental Claims, nor any basis therefor.

4.15 Compliance with Laws. Each of the Borrower and its Subsidiaries has timely filed all material reports, documents and other materials required to be filed by it under all applicable Requirements of Law with any Governmental Authority, has retained all material records and documents required to be retained by it under all applicable Requirements of Law, and is otherwise in compliance with all applicable Requirements of Law in respect of the conduct of its business and the ownership and operation of its properties, including without limitation, the applicable rules of any Self-Regulatory Organization, except in each case to the extent that the failure to comply therewith, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.16 Intellectual Property. Each of the Borrower and its Subsidiaries owns, or has the legal right to use, all Intellectual Property necessary for it to conduct its business as currently conducted. No claim has been asserted or is pending by any Person challenging or questioning the use of any such Intellectual Property or the validity or effectiveness of any such Intellectual Property, nor does the Borrower know of any such claim, and to the knowledge of the Borrower, the use of such Intellectual Property by any Credit Party does not infringe on the known rights of any Person, except for such claims and infringements that, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.17 Regulated Industries. No Credit Party is an “investment company,” a company “controlled” by an “investment company,” or an “investment advisor,” within the meaning of the Investment Company Act of 1940, as amended.

4.18 Insurance. The assets, properties and business of the Borrower and its Subsidiaries are insured against such hazards and liabilities, under such coverages and in such amounts, as are customarily maintained by prudent companies similarly situated and under policies issued by insurers of recognized responsibility.

4.19 Material Contracts. **Schedule 4.19** lists, as of the Closing Date, each “material contract” (within the meaning of Item 601(b)(10) of Regulation S-K under the Securities Act) to which the Borrower or any of its Subsidiaries is a party, by which the Borrower or any of its Subsidiaries or its properties is bound or to which the Borrower or any of its Subsidiaries is subject (collectively, “**Material Contracts**”), and also indicates the parties thereto. As of the Closing Date, (i) each Material Contract is in full force and effect and is enforceable by each of the Borrower and its Subsidiaries that is a party thereto in accordance with its terms, except as enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors’ rights generally, by general or equitable principles or by principles of good faith and fair dealing, and (ii) neither the Borrower nor any of its Subsidiaries or, to the knowledge of the Borrower, any other party thereto is in breach of or default under any Material Contract in any material respect or has given notice of termination or cancellation of any Material Contract.

4.20 No Burdensome Restrictions. No Credit Party is subject to any charter or corporate restriction or any provision of any applicable Requirement of Law that, individually or in the aggregate, could reasonably be expected to have a Material Adverse Effect.

4.21 OFAC; Anti-Terrorism Laws.

(a) No Credit Party or any Affiliate of any Credit Party (i) is a Sanctioned Person, (ii) has more than 15% of its assets in Sanctioned Countries, or (iii) derives more than 15% of its operating income from investments in, or transactions with, Sanctioned Persons or Sanctioned Countries. No part of the proceeds of any Loan hereunder will be used directly or indirectly to fund any operations in, finance any investments or activities in or make any payments to, a Sanctioned Person or a Sanctioned Country.

(b) Neither the making of the Loans hereunder nor the use of the proceeds thereof will violate the PATRIOT Act, the Trading with the Enemy Act, as amended, or any of the foreign assets control regulations of the United States Treasury Department (31 CFR, Subtitle B, Chapter V, as amended) or any enabling legislation or executive order relating thereto. The Credit Parties are in compliance in all material respects with the PATRIOT Act.

ARTICLE V

AFFIRMATIVE COVENANTS

The Borrower covenants and agrees that, until the termination of the Commitments, the termination or expiration of all Letters of Credit and the payment in full in cash of all principal and interest with respect to the Loans and all Reimbursement Obligations together with all fees, expenses and other amounts then due and owing hereunder:

5.1 Financial Statements. The Borrower will deliver to the Administrative Agent on behalf of the Lenders:

(a) As soon as available and in any event within forty-five (45) days (or, if earlier and if applicable to the Borrower, the quarterly report deadline under the Exchange Act rules and regulations) after the end of each of the first three fiscal quarters of each fiscal year, beginning with the first fiscal quarter of fiscal year 2010, unaudited consolidated and consolidating balance sheets of the Borrower and its Subsidiaries as of the end of such fiscal quarter and unaudited consolidated and consolidating statements of income, cash flows and stockholders' equity for the Borrower and its Subsidiaries for the fiscal quarter then ended and for that portion of the fiscal year then ended, in each case setting forth comparative consolidated figures as of the end of and for the corresponding period in the preceding fiscal year together with comparative budgeted figures for the fiscal period then ended, all in reasonable detail and prepared in accordance with GAAP (subject to the absence of notes required by GAAP and subject to normal year-end adjustments) applied on a basis consistent with that of the preceding quarter or containing disclosure of the effect on the financial condition or results of operations of any change in the application of accounting principles and practices during such quarter; and

(b) As soon as available and in any event within ninety (90) days (or, if earlier and if applicable to the Borrower, the annual report deadline under the Exchange Act rules and regulations) after the end of each fiscal year, beginning with fiscal year 2010, an audited consolidated and unaudited consolidating balance sheet of the Borrower and its Subsidiaries as of the end of such fiscal year and the related audited consolidated and unaudited consolidating statements of income, cash flows and stockholders' equity for the Borrower and its Subsidiaries for the fiscal year then ended, including the notes thereto, in each case setting forth comparative consolidated figures as of the end of and for the preceding fiscal year together with comparative budgeted figures for the fiscal year then ended, all in reasonable detail and (with respect to the audited statements) certified by the independent certified public accounting firm regularly retained by the Borrower or another independent certified public accounting firm of recognized national standing reasonably acceptable to the Administrative Agent, together with (y) a report thereon by such accountants that is not qualified as to going concern or scope of audit and to the effect that such financial statements present fairly in all material respects the consolidated financial condition and results of operations of the Borrower and its Subsidiaries as of the dates and for the periods indicated in accordance with GAAP applied on a basis consistent with that of the preceding year or containing disclosure of the effect on the financial condition or results of operations of any change in the application of accounting principles and practices during such year, and (z) a letter from such accountants to the effect that, based on and in connection with their examination of the financial statements of the Borrower and its Subsidiaries, they obtained no knowledge of the occurrence or existence of any Default or Event of Default relating to accounting or financial reporting matters (which certificate may be limited to the extent required by accounting rules or guidelines), or a statement specifying the nature and period of existence of any such Default or Event of Default disclosed by their audit.

(c) In the event that any financial statement or Compliance Certificate delivered pursuant to **Sections 5.2(a) or 5.2(b)** is shown to be inaccurate (regardless of whether this Agreement or the Commitments are in effect when such inaccuracy is discovered), and such inaccuracy, if corrected, would have led to the application of a higher Applicable Percentage for any period (an "Applicable Period") than the Applicable Percentage applied for such Applicable Period, then (i) the Borrower shall immediately deliver to the Administrative Agent a correct Compliance Certificate for such Applicable Period and (ii) the Borrower shall immediately pay to the Administrative Agent the accrued additional interest owing as a result of such increased Applicable Percentage for such Applicable Period, which payment shall be promptly applied by the Administrative Agent in accordance with **Section 2.12**. This **Section 5.1(c)** shall not limit the rights of the Administrative Agent and Lenders with respect to **Sections 2.8(b) and 8.2**.

Documents required to be delivered pursuant to **Sections 5.1, 5.2(a), 5.2(b), 5.2(c) or 5.2(d)** may be delivered electronically and, if so delivered, shall be deemed to have been delivered on the date (i) on which the Borrower provides notice to the Lenders that such information has been posted on the Borrower's website on the Internet at <http://ir.theice.com/sec.cfm>, at www.sec.gov/edgar/searchedgar/webusers.htm or at another website identified in such notice and accessible by the Lenders without charge; or (ii) on which such documents are posted on the Borrower's behalf on SyndTrak or another relevant website, if any, to which each of the Administrative Agent and each Lender has access; provided that (x) upon the request of the Administrative Agent or any Lender lacking access to the internet or SyndTrak, the Borrower shall deliver paper copies of such documents to the Administrative Agent or such Lender (until a

written request to cease delivering paper copies is given by the Administrative Agent or such Lender) and (y) the Borrower shall notify (which may be by a facsimile or electronic mail) the Administrative Agent and each Lender of the posting of any documents. The Administrative Agent shall have no obligation to request the delivery of, or to maintain copies of, the documents referred to in the proviso to the immediately preceding sentence or to monitor compliance by the Borrower with any such request for delivery, and each Lender shall be solely responsible for requesting delivery to it or maintaining its copies of such documents.

5.2 Other Business and Financial Information. The Borrower will deliver to the Administrative Agent and each Lender:

(a) Concurrently with each delivery of the financial statements described in **Sections 5.1(a)** and **5.1(b)**, a Compliance Certificate with respect to the period covered by the financial statements being delivered thereunder, executed by a Financial Officer of the Borrower, together with a Covenant Compliance Worksheet reflecting the computation of the financial covenants set forth in **Article VI** as of the last day of the period covered by such financial statements;

(b) As soon as available and in any event within thirty (30) days after the commencement of each fiscal year, beginning with the 2011 fiscal year, a consolidated operating budget for the Borrower and its Subsidiaries for such fiscal year (prepared on an annual basis), consisting of a consolidated balance sheet and consolidated statements of income and cash flows, together with a certificate of a Financial Officer of the Borrower to the effect that such budget has been prepared in good faith and is a reasonable estimate of the financial position and results of operations of the Borrower and its Subsidiaries for the period covered thereby; and as soon as available from time to time thereafter, any modifications or revisions to or restatements of such budget;

(c) Promptly upon receipt thereof, copies of any “management letter” submitted to any Credit Party by its certified public accountants in connection with each annual, interim or special audit, and promptly upon completion thereof, any response reports from such Credit Party in respect thereof;

(d) Promptly upon the sending, filing or receipt thereof, copies of (i) all financial statements, reports, notices and proxy statements that any Credit Party shall send or make available generally to its stockholders, (ii) all regular, periodic and special reports, registration statements and prospectuses (other than on Form S-8) that any Credit Party shall render to or file with the Securities and Exchange Commission, the National Association of Securities Dealers, Inc. or any national securities exchange or Self-Regulatory Organization, and (iii) all press releases and other statements made available generally by any Credit Party to the public concerning material developments in the business of the Credit Parties; provided that notwithstanding anything to the contrary included in **Section 5.1**, the Borrower shall be deemed to have given notice to the Administrative Agent and each Lender of the posting on the Borrower’s Internet website of the business and financial information set forth in clauses (i), (ii) or (iii) of this **Section 5.2(d)** at the time such information is posted thereon and no further notice shall be required to be provided by the Borrower to the Administrative Agent and the Lenders with respect thereto;

(e) Promptly upon (and in any event within five (5) Business Days after) any Responsible Officer of any Credit Party obtaining knowledge thereof, written notice of any of the following:

(i) the occurrence of any Default or Event of Default, together with a written statement of a Responsible Officer of the Borrower specifying the nature of such Default or Event of Default, the period of existence thereof and the action that the Borrower has taken and proposes to take with respect thereto;

(ii) the institution or threatened institution of any action, suit, investigation or proceeding against or affecting the Borrower or any of its Subsidiaries, including any such investigation or proceeding by any Governmental Authority or Self-Regulatory Organization (other than routine periodic inquiries, investigations or reviews), that, if adversely determined, could reasonably be expected, individually or in the aggregate, to have a Material Adverse Effect, and any material adverse development in any litigation or other proceeding previously reported pursuant to **Section 4.5** or this **Section 5.2(e)(ii)** ;

(iii) the receipt by the Borrower or any of its Subsidiaries from any Governmental Authority or Self-Regulatory Organization of (A) any notice asserting any failure by such Person to be in compliance with applicable Requirements of Law or that threatens the taking of any action against such Person or sets forth circumstances that, if taken or adversely determined, could reasonably be expected to have a Material Adverse Effect, or (B) any notice of any actual or threatened suspension, limitation or revocation of, failure to renew, or imposition of any restraining order, escrow or impoundment of funds in connection with, the Borrower or any of its Subsidiaries, where such action could reasonably be expected to have a Material Adverse Effect;

(iv) the occurrence of any ERISA Event, together with (x) a written statement of a Responsible Officer of the Borrower specifying the details of such ERISA Event and the action that the applicable Person has taken and proposes to take with respect thereto, (y) a copy of any notice with respect to such ERISA Event that may be required to be filed with the PBGC and (z) a copy of any notice delivered by the PBGC to any Credit Party or an ERISA Affiliate with respect to such ERISA Event;

(v) the occurrence of any material default under, or any proposed or threatened termination or cancellation of, any Material Contract (including without limitation, the agreement between the Borrower and LCH.Clearnet for the provision of clearing services) or other material contract or agreement to which the Borrower or any of its Subsidiaries is a party, the default under or termination or cancellation of which could reasonably be expected to have a Material Adverse Effect;

(vi) the occurrence of any of the following: (y) the assertion of any Environmental Claim against or affecting the Borrower or any of its Subsidiaries or any real property leased, operated or owned by the Borrower or any of its Subsidiaries, or the Borrower or any of its Subsidiaries' discovery of a basis for any such Environmental Claim; or (z) the receipt by the Borrower or any of its Subsidiaries of notice of any alleged violation of or noncompliance with any Environmental Laws by the Borrower or

any of its Subsidiaries or release of any Hazardous Substance; but in each case under clauses (y) and (z) above, only to the extent the same could reasonably be expected to have a Material Adverse Effect; and

(vii) any other matter or event that has, or could reasonably be expected to have, a Material Adverse Effect, together with a written statement of a Responsible Officer of the Borrower setting forth the nature and period of existence thereof and the action that the affected Persons have taken and propose to take with respect thereto.

(f) As promptly as reasonably possible, such other information about the business, condition (financial or otherwise), operations or properties of the Borrower or any of its Subsidiaries as the Administrative Agent or any Lender may from time to time reasonably request.

5.3 Compliance with All Material Contracts . The Borrower will, and will cause each of its Subsidiaries to, comply in all material respects with each term, condition and provision of all Material Contracts.

5.4 Existence; Franchises; Maintenance of Properties . The Borrower will, and will cause each of its Subsidiaries to, (i) maintain and preserve in full force and effect its legal existence, except as expressly permitted otherwise by **Section 7.1** , (ii) obtain, maintain and preserve in full force and effect all other rights, franchises, licenses, permits, certifications, approvals and authorizations required by Governmental Authorities and Self-Regulatory Organizations necessary to the ownership, occupation or use of its properties or the conduct of its business, except to the extent the failure to do so could not reasonably be expected to have a Material Adverse Effect, and (iii) keep all material properties in good working order and condition (normal wear and tear and damage by casualty excepted) and from time to time make all necessary repairs to and renewals and replacements of such properties, except to the extent that any of such properties are obsolete or are being replaced or, in the good faith judgment of the Borrower, are no longer useful or desirable in the conduct of the business of the Credit Parties.

5.5 Use of Proceeds . The proceeds of the Loans shall be used as follows: (i) up to \$150,000,000 of the proceeds of the Loans shall be used to provide liquidity for the clearing operations of ICE Clear Europe, (ii) up to \$50,000,000 of the proceeds of the Loans shall be used to provide liquidity for the clearing operations of ICE Clear US, (iii) up to \$100,000,000 of the proceeds of the Loans shall be used to provide liquidity for the clearing operations of ICE Trust, (iv) up to \$3,000,000 of the proceeds of the Loans shall be used to provide liquidity for the clearing operations of ICE Clear Canada, and (v) the remainder, plus any portion of the proceeds no longer necessary to be reserved for the purposes set forth in the foregoing clauses (i) through (iv), shall be used to provide for working capital and general corporate purposes of the Borrower.

5.6 Compliance with Laws . The Borrower will, and will cause each of its Subsidiaries to, comply in all respects with all Requirements of Law applicable in respect of the conduct of its business and the ownership and operation of its properties, except to the extent the failure so to comply could not reasonably be expected to have a Material Adverse Effect.

5.7 Payment of Obligations. The Borrower will, and will cause each of its Subsidiaries to, (i) pay, discharge or otherwise satisfy at or before maturity all liabilities and obligations as and when due (subject to any applicable subordination, grace and notice provisions), except to the extent failure to do so could not reasonably be expected to have a Material Adverse Effect, and (ii) pay and discharge all taxes, assessments and governmental charges or levies imposed upon it, upon its income or profits or upon any of its properties, prior to the date on which penalties would attach thereto, and all lawful claims that, if unpaid, would become a Lien (other than a Permitted Lien) upon any of the properties of any such Person; provided, however, that no such Person shall be required to pay any such tax, assessment, charge, levy or claim that is being contested in good faith and by proper proceedings and as to which such Credit Party is maintaining adequate reserves with respect thereto in accordance with GAAP.

5.8 Insurance. The Borrower will, and will cause each of its Subsidiaries to, maintain with financially sound and reputable insurance companies insurance with respect to its assets, properties and business, against such hazards and liabilities, of such types and in such amounts, as is customarily maintained by companies in the same or similar businesses similarly situated.

5.9 Maintenance of Books and Records; Inspection. The Borrower will, and will cause each of its Subsidiaries to, (i) maintain adequate books, accounts and records, in which full, true and correct entries shall be made of all financial transactions in relation to its business and properties, and prepare all financial statements required under this Agreement, in each case in accordance with GAAP and in compliance with the requirements of any Governmental Authority or Self-Regulatory Organization having jurisdiction over it, and (ii) permit employees or agents of the Administrative Agent or any Lender to visit and inspect its properties and examine or audit its books, records, working papers and accounts (except with respect to information which disclosure thereof is prohibited pursuant to arrangements among ICE Futures Europe, the United Kingdom Financial Services Authority, or other Governmental Authorities with jurisdiction over ICE Futures Europe and ICE Futures Europe's members), and make copies and memoranda of them, and to discuss its affairs, finances and accounts with its officers and employees and, upon reasonable notice to the Borrower, the independent public accountants of the Borrower and its Subsidiaries (and by this provision the Borrower authorizes such accountants to discuss the finances and affairs of the Borrower and its Subsidiaries), all at such times and from time to time, upon reasonable notice and during business hours, as may be reasonably requested; provided however, that when a Default or Event of Default exists the Administrative Agent may do any of the foregoing at the expense of the Borrower at any time during normal business hours and without advance notice.

5.10 Permitted Acquisitions. The Borrower shall comply with, and cause each other applicable Credit Party to comply with, the following covenants:

(a) Promptly after the consummation of any Permitted Acquisition or such later date reasonably acceptable to the Administrative Agent, the Borrower shall have delivered to the Administrative Agent the following (provided, however, that the delivery of the statements in clause (iii) below shall be required only with respect to Permitted Acquisitions having an Acquisition Amount exceeding \$200,000,000):

(i) a reasonably detailed description of the material terms of such Acquisition (including, without limitation, the purchase price and method and structure of payment) and of each Person or business that is the subject of such Acquisition (each, a “ Target ”);

(ii) to the extent available, audited historical financial statements of the Target (or, if there are two or more Targets that are the subject of such Acquisition and that are part of the same consolidated group, consolidated historical financial statements for all such Targets) for the two (2) most recent fiscal years available, prepared by a firm of independent certified public accountants, and (if available) unaudited financial statements for any interim periods since the most recent fiscal year-end;

(iii) consolidated projected income statements of the Borrower and its Subsidiaries (giving effect to such Acquisition and the consolidation with the Borrower of each relevant Target) for the one-year period (or, if available, such longer period up to three years) following the consummation of such Acquisition, in reasonable detail, together with any appropriate statement of assumptions and pro forma adjustments; and

(iv) a certificate, in form and substance reasonably satisfactory to the Administrative Agent, executed by a Financial Officer of the Borrower setting forth the Acquisition Amount and further to the effect that, to the best of such Financial Officer's knowledge, (y) the consummation of such Acquisition has not resulted in a violation of any provision of this **Section 5.10** or any other provision of this Agreement, and (x) the requirements set forth in **Section 7.5** have been satisfied (with financial covenant calculations to be attached to the certificate using the Covenant Compliance Worksheet).

(b) As soon as reasonably practicable after the consummation of any such Acquisition, the Borrower will deliver to the Administrative Agent true and correct copies of the fully executed acquisition agreement (including schedules and exhibits thereto) and other material documents and closing papers delivered in connection therewith.

(c) The consummation of each Permitted Acquisition shall be deemed to be a representation and warranty by the Borrower that (except as shall have been approved in writing by the Required Lenders) all conditions thereto set forth in this **Section 5.10** and in the description furnished under **Section 5.10(a)(i)** have been satisfied, that the same is permitted in accordance with the terms of this Agreement, and that the matters certified to by the Financial Officer of the Borrower in the certificate referred to in **Section 5.10(a)(iv)** are, to the best of such Financial Officer's knowledge, true and correct in all material respects as of the date such certificate is given, which representation and warranty shall be deemed to be a representation and warranty as of the date thereof for all purposes hereunder, including, without limitation, for purposes of **Sections 3.2** and **8.1**.

5.11 Creation or Acquisition of Subsidiaries. Subject to the provisions of **Sections 5.10** and **7.5**, the Borrower may from time to time create or acquire new Wholly Owned Subsidiaries in connection with Permitted Acquisitions or otherwise, and the Wholly Owned Subsidiaries of the Borrower may create or acquire new Wholly Owned Subsidiaries, provided that concurrently with (and in any event within ten (10) Business Days after or such later time approved by the Administrative Agent) the creation or direct or indirect acquisition thereof, each

such new Subsidiary will execute and deliver to the Administrative Agent a joinder to the Guaranty, pursuant to which such new Subsidiary shall become a guarantor thereunder and shall guarantee the payment in full of the Obligations of the Borrower under this Agreement and the other Credit Documents; provided that no Foreign Subsidiary shall be required to provide a guaranty to the extent (and for as long as) doing so would cause any adverse tax or regulatory consequences to the Borrower, and provided further that for any Subsidiary created for the sole purpose of making a Permitted Acquisition and so long as such Subsidiary has no assets, the Borrower shall not be required to comply with this **Section 5.11** until the consummation of such Permitted Acquisition.

5.12 OFAC, PATRIOT Act Compliance . The Borrower will, and will cause each of its Subsidiaries to, (i) refrain from doing business in a Sanctioned Country or with a Sanctioned Person in violation of the economic sanctions of the United States administered by OFAC, and (ii) provide, to the extent commercially reasonable, such information and take such actions as are reasonably requested by the Administrative Agent or any Lender in order to assist the Administrative Agent and the Lenders in maintaining compliance with the PATRIOT Act.

5.13 Further Assurances . The Borrower will, and will cause each of its Subsidiaries to, make, execute, endorse, acknowledge and deliver any amendments, modifications or supplements hereto and restatements hereof and any other agreements, instruments or documents, and take any and all such other actions, as may from time to time be reasonably requested by the Administrative Agent or the Required Lenders to effect, confirm or further assure or protect and preserve the interests, rights and remedies of the Administrative Agent and the Lenders under this Agreement and the other Credit Documents.

ARTICLE VI

FINANCIAL COVENANTS

The Borrower covenants and agrees that, until the termination of the Commitments, the termination or expiration of all Letters of Credit and the payment in full in cash of all principal and interest with respect to the Loans and all Reimbursement Obligations together with all fees, expenses and other amounts then due and owing hereunder:

6.1 Maximum Total Leverage Ratio . The Total Leverage Ratio as of the last day of any fiscal quarter, beginning with the first fiscal quarter of 2010, shall not be greater than the ratio of 2.50 to 1.00.

6.2 Minimum Interest Coverage Ratio . The Interest Coverage Ratio as of the last day of any fiscal quarter, beginning with the first fiscal quarter of 2010, shall not be less than 5.0 to 1.0.

ARTICLE VII

NEGATIVE COVENANTS

The Borrower covenants and agrees that, until the termination of the Commitments, the termination or expiration of all Letters of Credit and the payment in full in cash of all principal and interest with respect to the Loans and all Reimbursement Obligations together with all fees, expenses and other amounts then due and owing hereunder:

7.1 Merger; Consolidation. The Borrower will not, and will not permit or cause any of its Subsidiaries to, liquidate, wind up or dissolve, or enter into any consolidation, amalgamation, merger or other combination, or agree to do any of the foregoing; provided, however, that so long as no Default or Event of Default has occurred and is continuing or would result therefrom:

(i) any Subsidiary of the Borrower may merge, consolidate or amalgamate with, or be liquidated into, (x) the Borrower (so long as the Borrower is the surviving or continuing entity) or (y) any other Subsidiary of the Borrower (so long as, if either Person is a Subsidiary Guarantor, the surviving Person is a Subsidiary Guarantor, and if either Person is a Wholly Owned Subsidiary, the surviving Person is a Wholly Owned Subsidiary);

(ii) the Borrower may merge, consolidate or amalgamate with another Person (other than another Credit Party), so long as (y) the Borrower is the surviving entity, and (z) if such merger, consolidation or amalgamation constitutes an Acquisition, the applicable conditions and requirements of **Sections 5.11** and **7.5** are satisfied; and

(iii) to the extent not otherwise permitted under the foregoing clauses, any Subsidiary that has sold, transferred or otherwise disposed of all or substantially all of its assets in connection with an Asset Disposition permitted under this Agreement and no longer conducts any active trade or business may be liquidated, wound up and dissolved.

7.2 Indebtedness. The Borrower will not, and will not permit or cause any of its Subsidiaries to, create, incur, assume or suffer to exist any Indebtedness other than (without duplication):

(i) Indebtedness of the Credit Parties in favor of the Administrative Agent and the Lenders incurred under this Agreement and the other Credit Documents;

(ii) (A) Indebtedness of the Credit Parties under the Existing 2007 Credit Facility and the other “Credit Documents” (as defined in the Existing 2007 Credit Facility) and (B) Indebtedness of the Credit Parties under the Existing 2009 Credit Facility and the other “Credit Documents” (as defined in the Existing 2009 Credit Facility);

(iii) accrued expenses (including salaries, accrued vacation and other compensation), current trade or other accounts payable and other current liabilities arising in the ordinary course of business and not incurred through the borrowing of money, in each case above to the extent constituting Indebtedness;

(iv) purchase money Indebtedness of the Borrower and its Subsidiaries incurred solely to finance the acquisition, construction or improvement of any equipment, real property or other fixed assets in the ordinary course of business (or assumed or acquired by the Borrower and its Subsidiaries in connection with a Permitted Acquisition or other transaction permitted under this Agreement), including Capital Lease Obligations, and any renewals, replacements, refinancings or extensions thereof, provided that all such Indebtedness shall not exceed \$25,000,000 in aggregate principal amount outstanding at any one time;

(v) unsecured loans and advances (A) by the Borrower or any Subsidiary of the Borrower to any Subsidiary Guarantor, (B) by any Subsidiary of the Borrower to the Borrower, or (C) by the Borrower or any Subsidiary of the Borrower to any Subsidiary of the Borrower that is not a Subsidiary Guarantor, provided in each case that any such loan or advance made pursuant to clause (C) above is subordinated in right and time of payment to the Obligations and is evidenced by a promissory note, in form and substance reasonably satisfactory to the Administrative Agent;

(vi) Indebtedness of the Borrower or any of its Subsidiaries under Hedge Agreements entered into in the ordinary course of business to manage existing or anticipated interest rate or foreign currency risks and not for speculative purposes;

(vii) Indebtedness existing on the Closing Date and described in **Schedule 7.2** and any renewals, replacements, refinancings or extensions of any such Indebtedness that do not increase the outstanding principal amount thereof or result in an earlier final maturity date or decreased weighted average life thereof;

(viii) Indebtedness consisting of Guaranty Obligations of the Borrower or any of its Subsidiaries incurred in the ordinary course of business for the benefit of another Credit Party, provided that the primary obligation being guaranteed is expressly permitted by this Agreement;

(ix) Indebtedness that may be deemed to exist pursuant to any performance bond, surety, statutory appeal or similar obligation entered into or incurred by the Borrower or any of its Subsidiaries in the ordinary course of business;

(x) Indebtedness of ICE Clear Europe under the ICE Clear Europe Payment Services Agreement not exceeding \$150,000,000 in aggregate principal amount outstanding;

(xi) Indebtedness consisting of Guaranty Obligations of the Borrower with respect to the ICE Clear Europe Payment Services Agreement;

(xii) unsecured Indebtedness of the Borrower not exceeding \$400,000,000 in aggregate principal amount outstanding to provide liquidity for the clearing operations of ICE Clear Europe;

(xiii) unsecured Indebtedness of a Subsidiary acquired after the Closing Date or a Person merged into or consolidated with the Borrower or any Subsidiary after the Closing Date, in each case in connection with a Permitted Acquisition, which Indebtedness in each case exists at the time of such Permitted Acquisition and is not created in contemplation of such event, provided that all such Indebtedness shall not exceed \$250,000,000 in aggregate principal amount outstanding at any one time;

(xiv) other unsecured Indebtedness of the Borrower; provided that (A) that at the time of incurrence of such Indebtedness, no Default or Event of Default shall have occurred and be continuing (or would result therefrom), and (B) the Borrower is in compliance with the Total Leverage Ratio covenant set forth in **Section 6.1** on a Pro Forma Basis after giving effect to the incurrence of such Indebtedness; and

(xv) other unsecured Indebtedness of the Subsidiaries of the Borrower not exceeding \$50,000,000 in aggregate principal amount outstanding at any time.

7.3 Liens. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, make, create, incur, assume or suffer to exist, any Lien upon or with respect to any part of its property or assets, whether now owned or hereafter acquired or agree to do any of the foregoing, other than the following (collectively, “ Permitted Liens ”):

(i) Liens in existence on the Closing Date and set forth on **Schedule 7.3** , and any extensions, renewals or replacements thereof; provided that any such extension, renewal or replacement Lien shall be limited to all or a part of the property that secured the Lien so extended, renewed or replaced (plus any improvements on such property) and shall secure only those obligations that it secures on the date hereof (and any renewals, replacements, refinancings or extensions of such obligations that do not increase the outstanding principal amount thereof);

(ii) Liens imposed by law, such as Liens of carriers, warehousemen, mechanics, materialmen and landlords, incurred in the ordinary course of business for sums not constituting borrowed money that are not overdue for a period of more than thirty (30) days or that are being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP (if so required);

(iii) Liens (other than any Lien imposed by ERISA, the creation or incurrence of which would result in an Event of Default under **Section 8.1(k)**) incurred in the ordinary course of business in connection with worker’s compensation, unemployment insurance or other forms of governmental insurance or benefits, or to secure the performance of letters of credit, bids, tenders, statutory obligations, surety and appeal bonds, leases, public or statutory obligations, government contracts and other similar obligations (other than obligations for borrowed money) entered into in the ordinary course of business;

(iv) Liens for taxes, assessments or other governmental charges or statutory obligations that are not delinquent or remain payable without any penalty or that are being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP (if so required);

(v) any attachment or judgment Lien not constituting an Event of Default under **Section 8.1(h)** ;

(vi) Liens securing the purchase money Indebtedness permitted under **Section 7.2(iv)** , provided that (x) any such Lien shall attach to the property being acquired, constructed or improved with such Indebtedness concurrently with or within ninety (90) days after the acquisition (or completion of construction or improvement) or the refinancing thereof by the Borrower or such Subsidiary, (y) the amount of the Indebtedness secured by such Lien shall not exceed 100% of the cost to the Borrower or such Subsidiary of acquiring, constructing or improving the property and any other assets then being financed solely by the same financing source, and (z) any such Lien shall not encumber any other property of the Borrower or any of its Subsidiaries except assets then being financed solely by the same financing source;

(vii) with respect to any Realty occupied by the Borrower or any of its Subsidiaries, all easements, rights of way, reservations, licenses, encroachments, variations and similar restrictions, charges and encumbrances on title that do not secure monetary obligations and do not materially impair the use of such property for its intended purposes or the value thereof;

(viii) any leases, subleases, licenses or sublicenses granted by the Borrower or any of its Subsidiaries to third parties in the ordinary course of business and not interfering in any material respect with the business of the Borrower and its Subsidiaries, and any interest or title of a lessor, sublessor, licensor or sublicensor under any lease or license permitted under this Agreement;

(ix) Liens created in connection with the Guaranty Fund; and

(x) other Liens securing obligations of the Borrower and its Subsidiaries not exceeding \$20,000,000 in aggregate principal amount outstanding at any time.

7.4 Asset Dispositions . The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, make or agree to make any Asset Disposition except for:

(i) the sale or other disposition of inventory and Cash Equivalents in the ordinary course of business, the sale or write-off of past due or impaired accounts receivable for collection purposes (but not for factoring, securitization or other financing purposes), and the termination or unwinding of Hedge Agreements permitted hereunder;

(ii) the sale, lease or other disposition of assets by the Borrower or any Subsidiary of the Borrower to the Borrower or to a Subsidiary Guarantor (or by any Subsidiary that is not a Subsidiary Guarantor to another Subsidiary that is not a Subsidiary Guarantor), in each case so long as no Event of Default shall have occurred and be continuing or would result therefrom;

(iii) the sale, exchange or other disposition in the ordinary course of business of equipment or other capital assets that are obsolete or no longer necessary for the operations of the Borrower and its Subsidiaries; and

(iv) the sale or other disposition of assets (other than the Capital Stock of Subsidiaries) outside the ordinary course of business for fair value and for consideration, provided that (x) the aggregate amount of Net Cash Proceeds from all such sales or dispositions that are consummated during any fiscal year shall not exceed \$40,000,000 and (y) no Default or Event of Default shall have occurred and be continuing or would result therefrom.

7.5 Acquisitions. The Borrower will not, and will not permit or cause any of its Subsidiaries to, consummate any Acquisition, provided that the Borrower or any of its Subsidiaries may consummate any Acquisition so long as (i) prior to the closing of such Acquisition, the Borrower shall provide the Lenders with a Compliance Certificate prepared on a Pro Forma Basis giving effect to such Acquisition that demonstrates compliance with the covenants in **Article VI** on a Pro Forma Basis, (ii) in the case of an Acquisition to which the Borrower is a party involving a merger, amalgamation or the acquisition of control of the Capital Stock of a Person, the Borrower is the surviving or acquiring entity, as the case may be, (iii) each business acquired shall be in substantially the same line of business as the business conducted by the Borrower or its Subsidiaries on the Closing Date or in lines of business reasonably related thereto, (iv) the board of directors or equivalent governing body of the Person whose Capital Stock or business is acquired shall have approved such Acquisition, if required by applicable law (but provided in any event such Acquisition shall not be “hostile”), (v) no Default or Event of Default shall have occurred and be continuing at the time of the consummation of any such Acquisition or would exist immediately after giving effect thereto and (vi) the applicable conditions and requirements of **Section 5.11** are satisfied.

7.6 Restricted Payments. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, declare or make any dividend payment, or make any other distribution of cash, property or assets, in respect of any of its Capital Stock or any warrants, rights or options to acquire its Capital Stock, or purchase, redeem, retire or otherwise acquire for value any shares of its Capital Stock or any warrants, rights or options to acquire its Capital Stock, or set aside funds for any of the foregoing (any of the foregoing being a “Restricted Payment”), except that:

(a) each Subsidiary may make payments to the Borrower for its proportionate share of the tax liability of the affiliated group of entities that file consolidated federal income tax returns, provided that such payments are used to pay taxes, and provided further that any tax refunds received by the Borrower that are attributable to the any of its Subsidiaries shall be returned promptly by the Borrower to such Subsidiary;

(b) each Wholly Owned Subsidiary of the Borrower may declare and make dividend payments or other distributions to the Borrower or to another Subsidiary of the Borrower, in each case to the extent not prohibited under applicable Requirements of Law;

(c) the Borrower and any of its Subsidiaries may declare and make dividend payments or other distributions payable solely in its Common Stock; and

(d) so long as no Default or Event of Default shall have occurred and be continuing or would result therefrom, the Borrower and any of its Subsidiaries may make any Restricted Payment.

7.7 Transactions with Affiliates. The Borrower will not, and will not permit or cause any of its Subsidiaries to, enter into any transaction (including, without limitation, any purchase, sale, lease or exchange of property or the rendering of any service) with any officer, director, stockholder or other Affiliate of the Borrower or any of its Subsidiaries, except in the ordinary course of its business and upon fair and reasonable terms that are no less favorable to it than it would be obtained in a comparable arm's length transaction with a Person other than an Affiliate of the Borrower or any of its Subsidiaries; provided, however, that nothing contained in this **Section 7.7** shall prohibit:

(i) transactions described on **Schedule 7.7** (and any renewals or replacements thereof on terms not materially more disadvantageous to the applicable Credit Party) or otherwise expressly permitted under any other provision of this Agreement;

(ii) transactions among the Borrower and/or the Subsidiary Guarantors not prohibited under this Agreement (provided that such transactions shall remain subject to any other applicable limitations and restrictions set forth in this Agreement); and

(iii) transactions with Affiliates in good faith in the ordinary course of the Borrower's or such Subsidiary's business consistent with past practice and on terms no less favorable to the Borrower or such Subsidiary than those that could have been obtained in a comparable transaction on an arm's length basis from a Person that is not an Affiliate.

7.8 Lines of Business. The Borrower will not, and will not permit or cause any of its Subsidiaries to, engage in any lines of business other than the businesses engaged in by it on the Closing Date and businesses and activities reasonably related thereto.

7.9 Limitation on Certain Restrictions. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, create or otherwise cause or suffer to exist or become effective any restriction or encumbrance on (a) the ability of the Credit Parties to perform and comply with their respective obligations under the Credit Documents or (b) the ability of any Subsidiary of the Borrower to make any dividend payment or other distribution in respect of its Capital Stock, to repay Indebtedness owed to the Borrower or any other Subsidiary, to make loans or advances to the Borrower or any other Subsidiary, or to transfer any of its assets or properties to the Borrower or any other Subsidiary, except (in the case of clause (b) above only) for such restrictions or encumbrances existing under or by reason of (i) this Agreement and the other Credit Documents, (ii) applicable Requirements of Law, (iii) customary non-assignment

provisions in leases and licenses of real or personal property entered into by the Borrower or any Subsidiary as lessee or licensee in the ordinary course of business, restricting the assignment or transfer thereof or of property that is the subject thereof, (iv) the Guaranty Fund, (v) the Existing 2007 Credit Facility and Existing 2009 Credit Facility, and any agreement evidencing any permitted renewal, extension or refinancing of such Indebtedness so long as such renewal, extension or refinancing does not expand the scope of the restrictions existing as of the date hereof and (vi) customary restrictions and conditions contained in any agreement relating to the sale of assets (including Capital Stock of a Subsidiary) pending such sale, provided that such restrictions and conditions apply only to the assets being sold and such sale is permitted under this Agreement.

7.10 No Other Negative Pledges. The Borrower will not, and will not permit or cause any of its Subsidiaries to, enter into or suffer to exist any agreement or restriction that, directly or indirectly, prohibits or conditions the creation, incurrence or assumption of any Lien upon or with respect to any part of its property or assets, whether now owned or hereafter acquired, or agree to do any of the foregoing, except for such agreements or restrictions existing under or by reason of (i) this Agreement and the other Credit Documents, (ii) applicable Requirements of Law, (iii) any agreement or instrument creating a Permitted Lien (but only to the extent such agreement or restriction applies to the assets subject to such Permitted Lien), (iv) customary provisions in leases and licenses of real or personal property entered into by the Borrower or any Subsidiary as lessee or licensee in the ordinary course of business, restricting the granting of Liens therein or in property that is the subject thereof, (v) the Existing 2007 Credit Facility and Existing 2009 Credit Facility, and any agreement evidencing any permitted renewal, extension or refinancing of such Indebtedness so long as such renewal, extension or refinancing does not expand the scope of the restrictions existing as of the date hereof and (vi) customary restrictions and conditions contained in any agreement relating to the sale of assets (including Capital Stock of a Subsidiary) pending such sale, provided that such restrictions and conditions apply only to the assets being sold and such sale is permitted under this Agreement.

7.11 Investments in Subsidiaries. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, purchase, own, invest in or otherwise acquire any Capital Stock, evidence of indebtedness or other obligation or security or any interest whatsoever in any Domestic Subsidiary of the Borrower that is both (a) not a Wholly-Owned Subsidiary and (b) not a Subsidiary Guarantor (each, a “Non-Wholly-Owned Subsidiary”), or make or permit to exist any loans, advances or extensions of credit to, or any investment in cash or by delivery of property in, any Non-Wholly-Owned Subsidiary (collectively, “Investments”) other than:

- (i) Investments in Non-Wholly-Owned Subsidiaries existing as of the Closing Date;
 - (ii) Investments of the Borrower in ICE Trust made from proceeds of Loans not to exceed \$100,000,000 outstanding at any time;
- and
- (iii) other Investments in Non Wholly-Owned Subsidiaries made in any fiscal year in an aggregate amount not exceeding 15% of Consolidated EBITDA for the fiscal year most recently ended.

7.12 Fiscal Year. The Borrower will not, and will not permit or cause any of its Subsidiaries to, change its fiscal year or its method of determining fiscal quarters.

7.13 Accounting Changes. Other than as permitted pursuant to **Section 1.2**, the Borrower will not, and will not permit or cause any of its Subsidiaries to, make or permit any material change in its accounting policies or reporting practices, except as may be required by GAAP (or, in the case of Foreign Subsidiaries, generally accepted accounting principles in the jurisdiction of its organization).

ARTICLE VIII

EVENTS OF DEFAULT

8.1 Events of Default. The occurrence of any one or more of the following events shall constitute an “Event of Default”:

(a) The Borrower shall fail to pay when due (i) any principal of any Loan or any Reimbursement Obligation, or (ii) any interest on any Loan, any fee payable under this Agreement or any other Credit Document, or (except as provided in clause (i) above) any other Obligation (other than any Obligation under a Hedge Agreement), and (in the case of this clause (ii) only) such failure shall continue for a period of three (3) Business Days;

(b) The Borrower or any other Credit Party shall (i) fail to observe, perform or comply with any condition, covenant or agreement contained in any of **Sections 5.2(e)(i)**, **5.4**, **5.5**, **5.10**, or **5.11** or in **Articles VI** or **VII** or (ii) fail to observe, perform or comply with any condition, covenant or agreement contained in **Sections 5.1** or **5.2** (other than **Section 5.2(e)(i)**) and (in the case of this clause (ii) only) such failure shall continue unremedied for a period of five (5) days after the earlier of (y) the date on which a Responsible Officer of the Borrower acquires knowledge thereof and (z) the date on which written notice thereof is delivered by the Administrative Agent or any Lender to the Borrower;

(c) The Borrower or any other Credit Party shall fail to observe, perform or comply with any condition, covenant or agreement contained in this Agreement or any of the other Credit Documents other than those enumerated in **Sections 8.1(a)** and **8.1(b)**, and such failure (i) by the express terms of such Credit Document, constitutes an Event of Default, or (ii) shall continue unremedied for any grace period specifically applicable thereto or, if no grace period is specifically applicable, for a period of thirty (30) days after the earlier of (y) the date on which a Responsible Officer of the Borrower acquires knowledge thereof and (z) the date on which written notice thereof is delivered by the Administrative Agent or any Lender to the Borrower; or any default or event of default shall occur under any Hedge Agreement to which the Borrower and any Hedge Party are parties;

(d) Any representation or warranty made or deemed made by or on behalf of the Borrower or any other Credit Party in this Agreement, any of the other Credit Documents or in any certificate, instrument, report or other document furnished at any time in connection herewith or therewith shall prove to have been incorrect, false or misleading in any material respect as of the time made, deemed made or furnished;

(e) The Borrower or any other Credit Party shall (i) fail to pay when due (whether by scheduled maturity, acceleration or otherwise and after giving effect to any applicable grace period or notice provisions) any principal of or interest due under the Existing 2007 Credit Facility, the Existing 2009 Credit Facility or any other Indebtedness (other than the Indebtedness incurred pursuant to this Agreement) having an aggregate principal amount of at least \$1,000,000 or (ii) fail to observe, perform or comply with any condition, covenant or agreement contained in any agreement or instrument evidencing or relating to any such Indebtedness, or any other event shall occur or condition exist in respect thereof, and the effect of such failure, event or condition is to cause, or permit the holder or holders of such Indebtedness (or a trustee or agent on its or their behalf) to cause (with or without the giving of notice, lapse of time, or both), without regard to any subordination terms with respect thereto, such Indebtedness to become due, or to be prepaid, redeemed, purchased or defeased, prior to its stated maturity;

(f) The Borrower or any other Credit Party shall (i) file a voluntary petition or commence a voluntary case seeking liquidation, winding-up, reorganization, dissolution, arrangement, readjustment of debts or any other relief under the Bankruptcy Code or under any other applicable bankruptcy, insolvency or similar law now or hereafter in effect, (ii) consent to the institution of, or fail to controvert in a timely and appropriate manner, any petition or case of the type described in **Section 8.1(g)**, (iii) apply for or consent to the appointment of or taking possession by a custodian, trustee, receiver or similar official for or of itself or all or a substantial part of its properties or assets, (iv) fail generally, or admit in writing its inability, to pay its debts generally as they become due, (v) make a general assignment for the benefit of creditors or (vi) take any corporate action to authorize or approve any of the foregoing;

(g) Any involuntary petition or case shall be filed or commenced against the Borrower or any other Credit Party seeking liquidation, winding-up, reorganization, dissolution, arrangement, readjustment of debts, the appointment of a custodian, trustee, receiver or similar official for it or all or a substantial part of its properties or any other relief under the Bankruptcy Code or under any other applicable bankruptcy, insolvency or similar law now or hereafter in effect, and such petition or case shall continue undismissed and unstayed for a period of sixty (60) days; or an order, judgment or decree approving or ordering any of the foregoing shall be entered in any such proceeding;

(h) Any one or more money judgments, writs or warrants of attachment, executions or similar processes involving an aggregate amount (to the extent not paid or fully bonded or covered by insurance as to which the surety or insurer, as the case may be, has the financial ability to perform and has acknowledged liability in writing) in excess of \$1,000,000 shall be entered or filed against the Borrower or any other Credit Party or any of their respective properties and the same shall not be paid, dismissed, bonded, vacated, stayed or discharged within a period of thirty (30) days or in any event later than five (5) days prior to the date of any proposed sale of such property thereunder;

(i) Any Credit Document shall for any reason (other than as explicitly permitted under this Agreement or any other Credit Document) cease to be in full force and effect as to any Credit Party, or any Credit Party or any Person acting on its behalf shall deny or disaffirm such Credit Party's obligations thereunder;

(j) A Change of Control shall have occurred;

(k) Any ERISA Event or any other event or condition shall occur or exist with respect to any Plan or Multiemployer Plan and, as a result thereof, together with all other ERISA Events and other events or conditions then existing, any Credit Party and its ERISA Affiliates have incurred, or could reasonably be expected to incur, liability to any one or more Plans or Multiemployer Plans or to the PBGC (or to any combination thereof) in excess of \$1,000,000; or

(l) Any one or more licenses, permits, accreditations or authorizations of the Borrower or any other Credit Party shall be suspended, limited or terminated or shall not be renewed, or any other action shall be taken by any Governmental Authority or Self-Regulatory Organization in response to any alleged failure by the Borrower or any of its Subsidiaries to be in compliance with applicable Requirements of Law, and such action, individually or in the aggregate, has or could reasonably be expected to have a Material Adverse Effect.

8.2 Remedies: Termination of Commitments, Acceleration, etc. Upon and at any time after the occurrence and during the continuance of any Event of Default, the Administrative Agent shall at the direction, or may with the consent, of the Required Lenders, take any or all of the following actions at the same or different times:

(a) Declare the Commitments and the Swingline Commitment to be terminated, whereupon the same shall terminate; provided that, upon the occurrence of a Bankruptcy Event, the Commitments, the Swingline Commitment and the Issuing Lender's obligation to issue Letters of Credit shall automatically be terminated;

(b) Declare all or any part of the outstanding principal amount of the Loans to be immediately due and payable, whereupon the principal amount so declared to be immediately due and payable, together with all interest accrued thereon and all other amounts payable under this Agreement and the other Credit Documents (but, for the avoidance of doubt, excluding any amounts owing under any Hedge Agreement), shall become immediately due and payable without presentment, demand, protest, notice of intent to accelerate or other notice or legal process of any kind, all of which are hereby knowingly and expressly waived by the Borrower; provided that, upon the occurrence of a Bankruptcy Event, all of the outstanding principal amount of the Loans and all other amounts described in this **Section 8.2(b)** shall automatically become immediately due and payable without presentment, demand, protest, notice of intent to accelerate or other notice or legal process of any kind, all of which are hereby knowingly and expressly waived by the Borrower;

(c) Appoint or direct the appointment of a receiver for the properties and assets of the Credit Parties, both to operate and to sell such properties and assets, and the Borrower, for itself and on behalf of its Subsidiaries, hereby consents to such right and such appointment and hereby waives any objection the Borrower or any Subsidiary may have thereto or the right to have a bond or other security posted by the Administrative Agent on behalf of the Lenders, in connection therewith;

(d) Exercise all rights and remedies available to it under this Agreement, the other Credit Documents and applicable law; and

(e) Direct the Borrower to deposit (and the Borrower hereby agrees, forthwith upon receipt of notice of such direction from the Administrative Agent, to deposit) with the Administrative Agent from time to time such additional amount of cash as is equal to the aggregate Stated Amount of all Letters of Credit then outstanding (whether or not any beneficiary under any Letter of Credit shall have drawn or be entitled at such time to draw thereunder), such amount to be held by the Administrative Agent in the Cash Collateral Account as security for the Letter of Credit Exposure as described in **Section 2.19(i)** ;

8.3 Remedies: Set-Off . Upon and at any time after the occurrence and during the continuance of any Event of Default, each Lender and each of their respective Affiliates is hereby authorized at any time and from time to time, to the fullest extent permitted by applicable law, to set off and apply any and all deposits (general or special, time or demand, provisional or final, in whatever currency) at any time held and other obligations (in whatever currency) at any time owing by such Lender or any such Affiliate to or for the credit or the account of the Borrower against any and all of the obligations of the Borrower now or hereafter existing under this Agreement or any other Credit Document to such Lender, irrespective of whether or not such Lender shall have made any demand under this Agreement or any other Credit Document and although such obligations of the Borrower may be contingent or unmatured or are owed to a branch or office of such Lender different from the branch or office holding such deposit or obligated on such indebtedness. The rights of each Lender and their respective Affiliates under this Section are in addition to other rights and remedies (including other rights of setoff) that such Lender or their respective Affiliates may have. Each Lender agrees to notify the Borrower and the Administrative Agent promptly after any such setoff and application; provided that the failure to give such notice shall not affect the validity of such setoff and application.

ARTICLE IX

THE ADMINISTRATIVE AGENT

9.1 Appointment and Authority . Each of the Lenders (for purposes of this Article, references to the Lenders shall also mean the Swingline Lender) hereby irrevocably appoints Wells Fargo to act on its behalf as the Administrative Agent hereunder and under the other Credit Documents, and Wells Fargo Bank, National Association, London Branch to act on its behalf as the Multicurrency Agent hereunder and under the other Credit Documents, and authorizes each of the Agents to take such actions on its behalf and to exercise such powers as are delegated to the Agents by the terms hereof or thereof, together with such actions and powers as are reasonably incidental thereto. The provisions of this Article are solely for the benefit of the Agents and the Lenders, and neither the Borrower nor any other Credit Party shall have rights as a third party beneficiary of any of such provisions.

9.2 Rights as a Lender . The Person serving as the Administrative Agent hereunder shall have the same rights and powers in its capacity as a Lender as any other Lender and may exercise the same as though it were not the Administrative Agent and the term “Lender” or “Lenders” shall, unless otherwise expressly indicated or unless the context otherwise requires, include the Person serving as the Administrative Agent hereunder in its individual capacity. Such Person and its Affiliates may accept deposits from, lend money to, act as the financial

advisor or in any other advisory capacity for and generally engage in any kind of business with the Borrower or any Subsidiary or other Affiliate thereof as if such Person were not the Administrative Agent hereunder and without any duty to account therefor to the Lenders.

9.3 Exculpatory Provisions. The Agents shall not have any duties or obligations except those expressly set forth herein and in the other Credit Documents. Without limiting the generality of the foregoing, each of the Agents:

(a) shall not be subject to any fiduciary or other implied duties, regardless of whether a Default or Event of Default has occurred and is continuing;

(b) shall not have any duty to take any discretionary action or exercise any discretionary powers, except discretionary rights and powers expressly contemplated hereby or by the other Credit Documents that such Agent is required to exercise as directed in writing by the Required Lenders (or such other number or percentage of the Lenders as shall be expressly provided for herein or in the other Credit Documents), provided that no Agent shall be required to take any action that, in its opinion or the opinion of its counsel, may expose the such Agent to liability or that is contrary to any Credit Document or applicable law; and

(c) shall not, except as expressly set forth herein and in the other Credit Documents, have any duty to disclose, and shall not be liable for the failure to disclose, any information relating to the Borrower or any of its Affiliates that is communicated to or obtained by the Person serving as an Agent or any of its Affiliates in any capacity.

No Agent shall be liable for any action taken or not taken by it (i) with the consent or at the request of the Required Lenders (or such other number or percentage of the Lenders as shall be necessary, or as the Administrative Agent shall believe in good faith shall be necessary, under the circumstances as provided in **Sections 10.5 and 8.2**) or (ii) in the absence of its own gross negligence or willful misconduct. Each Agent shall be deemed not to have knowledge of any Default or Event of Default unless and until notice describing such Default or Event of Default is given to the Administrative Agent by the Borrower or a Lender.

No Agent shall be responsible for or have any duty to ascertain or inquire into (i) any statement, warranty or representation made in or in connection with this Agreement or any other Credit Document, (ii) the contents of any certificate, report or other document delivered hereunder or thereunder or in connection herewith or therewith, (iii) the performance or observance of any of the covenants, agreements or other terms or conditions set forth herein or therein or the occurrence of any Default or Event of Default, (iv) the validity, enforceability, effectiveness or genuineness of this Agreement, any other Credit Document or any other agreement, instrument or document or (v) the satisfaction of any condition set forth in **Article III** or elsewhere herein, other than to confirm receipt of items expressly required to be delivered to the Administrative Agent.

9.4 Reliance by Administrative Agent. Each Agent shall be entitled to rely upon, and shall not incur any liability for relying upon, any notice, request, certificate, consent, statement, instrument, document or other writing (including any electronic message, internet or intranet website posting or other distribution) believed by it to be genuine and to have been signed, sent

or otherwise authenticated by the proper Person. Each Agent also may rely upon any statement made to it orally or by telephone and believed by it to have been made by the proper Person, and shall not incur any liability for relying thereon. In determining compliance with any condition hereunder to the making of a Loan, or the issuance of a Letter of Credit, that by its terms must be fulfilled to the satisfaction of a Lender or the Issuing Lender, the applicable Agent may presume that such condition is satisfactory to such Lender or the Issuing Lender unless such Agent shall have received notice to the contrary from such Lender or the Issuing Lender prior to the making of such Loan or the issuance of such Letter of Credit. Each Agent may consult with legal counsel (who may be counsel for the Borrower), independent accountants and other experts selected by it, and shall not be liable for any action taken or not taken by it in accordance with the advice of any such counsel, accountants or experts.

9.5 Delegation of Duties . Each Agent may perform any and all of its duties and exercise its rights and powers hereunder or under any other Credit Document by or through any one or more sub-agents appointed by such Agent. Each Agent and any such sub-agent may perform any and all of its duties and exercise its rights and powers by or through their respective Related Parties. The exculpatory provisions of this Article shall apply to any such sub-agent and to the Related Parties of each Agent and any such sub-agent, and shall apply to their respective activities in connection with the syndication of the credit facilities provided for herein as well as activities as Agent.

9.6 Resignation of Administrative Agent . The Administrative Agent may at any time give notice of its resignation to the Lenders and the Borrower. Upon receipt of any such notice of resignation, the Required Lenders shall have the right, in consultation with the Borrower, to appoint a successor, which shall be a bank with an office in the United States, or an Affiliate of any such bank with an office in the United States, provided that if such bank is not a Lender or an Affiliate of a Lender, the Borrower shall have the right to consent to such appointment (such consent to not be unreasonably withheld). If no such successor shall have been so appointed by the Required Lenders and shall have accepted such appointment within thirty (30) days after the retiring Administrative Agent gives notice of its resignation, then the retiring Administrative Agent may, on behalf of the Lenders, appoint a successor Administrative Agent meeting the qualifications set forth above; provided that if the Administrative Agent shall notify the Borrower and the Lenders that no qualifying Person has accepted such appointment, then such resignation shall nonetheless become effective in accordance with such notice and (1) the retiring Administrative Agent shall be discharged from its duties and obligations hereunder and under the other Credit Documents (except that in the case of any collateral security held by the Administrative Agent on behalf of the Lenders under any of the Credit Documents, the retiring Administrative Agent shall continue to hold such collateral security until such time as a successor Administrative Agent is appointed) and (2) all payments, communications and determinations provided to be made by, to or through the Administrative Agent shall instead be made by or to each Lender directly, until such time as the Required Lenders appoint a successor Administrative Agent as provided for above in this Section. Upon the acceptance of a successor's appointment as Administrative Agent hereunder, such successor shall succeed to and become vested with all of the rights, powers, privileges and duties of the retiring (or retired) Administrative Agent, and the retiring Administrative Agent shall be discharged from all of its duties and obligations hereunder or under the other Credit Documents (if not already discharged therefrom as provided above in this Section). The fees payable by the Borrower to a successor

Administrative Agent shall be the same as those payable to its predecessor unless otherwise agreed between the Borrower and such successor. After the retiring Administrative Agent's resignation hereunder and under the other Credit Documents, the provisions of this Article and **Section 10.1** shall continue in effect for the benefit of such retiring Administrative Agent, its sub-agents and their respective Related Parties in respect of any actions taken or omitted to be taken by any of them while the retiring Administrative Agent was acting as Administrative Agent.

9.7 Non-Reliance on Administrative Agent and Other Lenders. Each Lender acknowledges that it has, independently and without reliance upon any Agent or any other Lender or any of their Related Parties and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement. Each Lender also acknowledges that it will, independently and without reliance upon any Agent or any other Lender or any of their Related Parties and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Credit Document or any related agreement or any document furnished hereunder or thereunder.

9.8 No Other Duties, Etc. Anything herein to the contrary notwithstanding, none of the Bookrunners, Arrangers, Syndication Agent or other agents listed on the cover page hereof shall have any powers, duties or responsibilities under this Agreement or any of the other Credit Documents, except in its capacity, as applicable, as the Administrative Agent or a Lender hereunder.

9.9 Guaranty Matters. The Lenders hereby authorize the Administrative Agent, at its option and in its discretion, to release any Guarantor from its obligations under the Guaranty if such Person ceases to be a Subsidiary as a result of a transaction permitted hereunder. Upon request by the Administrative Agent at any time, the Lenders will confirm in writing the Administrative Agent's authority to release any Guarantor from its obligations under the Guaranty, pursuant to this **Section 9.9**.

9.10 Swingline Lender. The provisions of this **Article IX** (other than **Section 9.2**) shall apply to the Swingline Lender *mutatis mutandis* to the same extent as such provisions apply to the Administrative Agent.

ARTICLE X

MISCELLANEOUS

10.1 Expenses; Indemnity; Damage Waiver.

(a) The Borrower shall pay (i) all reasonable out-of-pocket expenses incurred by the Agents, the Arrangers and their respective Affiliates (including the reasonable fees, charges and disbursements of counsel for the Administrative Agent and the Arrangers), in connection with the syndication of the credit facilities provided for herein, the preparation, negotiation, execution, delivery and administration of this Agreement and the other Credit Documents or any amendments, modifications or waivers of the provisions hereof or thereof (whether or not the

transactions contemplated hereby or thereby shall be consummated), (ii) all out-of-pocket expenses incurred by the Agents or any Lender (including the fees, charges and disbursements of any counsel for the Agents or any Lender), in connection with the enforcement or protection of its rights (A) in connection with this Agreement and the other Credit Documents, including its rights under this Section, or (B) in connection with the Loans made hereunder, including all such out-of-pocket expenses incurred during any workout, restructuring or negotiations in respect of such Loans, (iii) all reasonable out-of-pocket expenses incurred by the Issuing Lender in connection with the issuance, amendment, renewal or extension of any Letter of Credit or any demand for payment thereunder, and (iv) any civil penalty or fine assessed by OFAC against, and all reasonable costs and expenses (including counsel fees and disbursements) incurred in connection with defense thereof by, any Agent or any Lender as a result of conduct of the Borrower that violates a sanction enforced by OFAC.

(b) The Borrower shall indemnify each Agent (and any sub-agent thereof), the Arrangers, each Lender, and each Related Party of any of the foregoing persons (each such person being called an “Indemnitee”) against, and hold each Indemnitee harmless from, any and all losses, claims, damages, liabilities and related expenses (including the fees, charges and disbursements of any counsel for any Indemnitee), incurred by any Indemnitee or asserted against any Indemnitee by any third party or by the Borrower or any other Credit Party arising out of, in connection with, or as a result of (i) the execution or delivery of this Agreement, any other Credit Document or any agreement or instrument contemplated hereby or thereby, the performance by the parties hereto of their respective obligations hereunder or thereunder or the consummation of the transactions contemplated hereby or thereby, (ii) any Loan or Letter of Credit or the use or proposed use of the proceeds therefrom (including any refusal by the Issuing Lender to honor a demand for payment under a Letter of Credit if the documents presented in connection with such demand do not strictly comply with the terms of such Letter of Credit), (iii) any actual or alleged presence or release of Hazardous Substances on or from any property owned or operated by any Credit Party, or any Environmental Claim related in any way to any Credit Party, or (iv) any actual or prospective claim, litigation, investigation or proceeding relating to any of the foregoing, whether based on contract, tort or any other theory, whether brought by a third party or by the Borrower or any other Credit Party, and regardless of whether any Indemnitee is a party thereto; provided that such indemnity shall not, as to any Indemnitee, be available to the extent that such losses, claims, damages, liabilities or related expenses are determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the gross negligence or willful misconduct of such Indemnitee.

(c) To the extent that the Borrower for any reason fails to indefeasibly pay any amount required under **Section 10.1(a)** or **Section 10.1(b)** to be paid by it to any Agent (or any sub-agent thereof), each Lender severally agrees to pay to the Administrative Agent (or any such sub-agent) such Lender’s proportion (based on the percentages as used in determining the Required Lenders as of the time that the applicable unreimbursed expense or indemnity payment is sought) of such unpaid amount, provided that the unreimbursed expense or indemnified loss, claim, damage, liability or related expense, as the case may be, was incurred by or asserted against any Agent (or any such sub-agent) in its capacity as such, or against any Related Party of any of the foregoing acting for such Agent (or any such sub-agent) in connection with such capacity. The obligations of the Lenders under this **Section 10.1(c)** are subject to the provisions of **Section 2.3(c)**.

(d) To the fullest extent permitted by applicable law, the Borrower shall not assert, and hereby waives, any claim against any Indemnitee, on any theory of liability, for special, indirect, consequential or punitive damages (as opposed to direct or actual damages) arising out of, in connection with, or as a result of, this Agreement, any other Credit Document or any agreement or instrument contemplated hereby, the transactions contemplated hereby or thereby, any Loan or Letter of Credit or the use of the proceeds thereof. No Indemnitee referred to in **Section 10.1(b)** shall be liable for any damages arising from the use by unintended recipients of any information or other materials distributed by it through telecommunications, electronic or other information transmission systems (including Intralinks, SyndTrak or similar systems) in connection with this Agreement or the other Credit Documents or the transactions contemplated hereby or thereby, except as a result of such Indemnitee's gross negligence or willful misconduct.

(e) All amounts due under this Section shall be payable by the Borrower upon demand therefor.

10.2 Governing Law; Submission to Jurisdiction; Waiver of Venue; Service of Process .

(a) This Agreement and the other Credit Documents shall (except as may be expressly otherwise provided in any Credit Document) be governed by, and construed in accordance with, the law of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules); provided that each Letter of Credit shall be governed by, and construed in accordance with, the laws or rules designated in such Letter of Credit or application therefor or, if no such laws or rules are designated, the International Standby Practices of the International Chamber of Commerce, as in effect from time to time (the "ISP"), and, as to matters not governed by the ISP, the laws of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).

(b) Each Credit Party irrevocably and unconditionally submits, for itself and its property, to the nonexclusive jurisdiction of the courts of the State of New York sitting in New York County and of the United States District Court of the Southern District of New York, and any appellate court from any thereof, in any action or proceeding arising out of or relating to this Agreement or any other Credit Document, or for recognition or enforcement of any judgment, and each of the parties hereto irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding may be heard and determined in such state court or, to the fullest extent permitted by applicable law, in such federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Agreement or in any Credit Document shall affect any right that the Administrative Agent, any Lender may otherwise have to bring any action or proceeding relating to this Agreement or any other Credit Document against any Credit Party or any of their respective properties in the courts of any jurisdiction.

(c) The Borrower irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any objection that it may now or hereafter have to the laying of

venue of any action or proceeding arising out of or relating to this Agreement or any other Credit Document in any court referred to in **Section 10.2(b)** . Each of the parties hereto hereby irrevocably waives, to the fullest extent permitted by applicable law, the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court.

(d) Each party hereto irrevocably consents to service of process in the manner provided for notices in **Section 10.4** . Nothing in this Agreement will affect the right of any party hereto to serve process in any other manner permitted by applicable law.

10.3 Waiver of Jury Trial . EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY OTHER CREDIT DOCUMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH PARTY HERETO (A) CERTIFIES THAT NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PERSON HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PERSON WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER AND (B) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HERETO HAVE BEEN INDUCED TO ENTER INTO THIS AGREEMENT AND THE OTHER CREDIT DOCUMENTS BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION.

10.4 Notices; Effectiveness; Electronic Communication .

(a) Except in the cases of notices and other communications expressly permitted to be given by telephone (and except as provided in **Section 10.4(b)**), all notices and other communications provided for herein shall be in writing and shall be delivered by hand or overnight courier service, mailed by certified or registered mail or sent by telecopier as follows:

(i) if to the Borrower, the Administrative Agent, the Multicurrency Agent, the Issuing Lender or the Swingline Lender, to it at the address (or telecopier number) specified for such Person on **Schedule 1.1(a)** ; and

(ii) if to any Lender, to it at its address (or telecopier number) set forth in its Administrative Questionnaire.

Notices sent by hand or overnight courier service, or mailed by certified or registered mail, shall be deemed to have been given when received; notices sent by telecopier shall be deemed to have been given when sent (except that, if not given during normal business hours for the recipient, shall be deemed to have been given at the opening of business on the next business day for the recipient). Notices delivered through electronic communications to the extent provided in **Section 10.4(b)** shall be effective as provided in **Section 10.4(b)** .

(b) Notices and other communications to the Lenders hereunder may be delivered or furnished by electronic communication (including e-mail and internet or intranet websites) pursuant to procedures approved by the Administrative Agent, provided that the foregoing shall

not apply to notices to any Lender pursuant to **Article II** if such Lender has notified the Administrative Agent that it is incapable of receiving notices under such Article by electronic communication. The Administrative Agent or the Borrower may, in its discretion, agree to accept notices and other communications to it hereunder by electronic communication pursuant to procedures approved by it, provided that approval of such procedures may be limited to particular notices or communications. Unless the Administrative Agent otherwise prescribes, (i) notices and other communications sent to an e-mail address shall be deemed received upon the sender's receipt of an acknowledgement from the intended recipient (such as by the "return receipt requested" function, as available, return e-mail or other written acknowledgement), provided that if such notice or other communication is not sent during the normal business hours of the recipient, such notice or communication shall be deemed to have been sent at the opening of business on the next business day for the recipient, and (ii) notices or other communications posted to an internet or intranet website shall be deemed received upon the deemed receipt by the intended recipient at its e-mail address as described in the foregoing clause (i) of notification that such notice or communication is available and identifying the website address therefor.

(c) Any party hereto may change its address or telecopier number for notices and other communications hereunder by notice to the other parties hereto (except that each Lender need not give notice of any such change to the other Lenders in their capacities as such).

10.5 Amendments, Waivers, etc. No amendment, modification, waiver or discharge or termination of, or consent to any departure by any Credit Party from, any provision of this Agreement or any other Credit Document shall be effective unless in a writing signed by the Required Lenders (or by the Administrative Agent at the direction or with the consent of the Required Lenders), and then the same shall be effective only in the specific instance and for the specific purpose for which given; provided, however, that no such amendment, modification, waiver, discharge, termination or consent shall:

(a) unless agreed to by each Lender directly affected thereby, (i) reduce or forgive the principal amount of any Loan or Reimbursement Obligation, reduce the rate of or forgive any interest thereon (provided that only the consent of the Required Lenders shall be required to waive the applicability of any post-default increase in interest rates), or reduce or forgive any fees hereunder (other than fees payable to the Administrative Agent or the Arrangers for their own accounts) (it being understood that an amendment to the definition of Total Leverage Ratio (or any defined terms used therein) shall not constitute a reduction of any interest rate or fees hereunder), (ii) extend the final scheduled maturity date or any other scheduled date for the payment of any principal of or interest on any Loan (including any scheduled date for the mandatory termination of any Commitments), or extend the time of payment of any fees hereunder (other than fees payable to the Administrative Agent or the Arrangers for their own accounts), or extend the time of payment of any Reimbursement Obligation or any interest thereon, or extend the expiry date of any Letter of Credit beyond the Letter of Credit Maturity Date, or (iii) increase any Commitment of any such Lender over the amount thereof in effect or extend the maturity thereof (it being understood that a waiver of any condition precedent set forth in **Section 3.2** or of any Default or Event of Default or mandatory termination in the Commitments, if agreed to by the Required Lenders or all Lenders (as may be required hereunder with respect to such waiver), shall not constitute such an increase);

(b) unless agreed to by all of the Lenders, (i) release any Guarantor from its obligations under the Guaranty (other than (A) as may be otherwise specifically provided in this Agreement or in any other Credit Document or (B) in connection with the sale or other disposition of all of the Capital Stock of such Guarantor in a transaction expressly permitted under or pursuant to this Agreement), (ii) reduce the percentage of the aggregate Commitments or of the aggregate unpaid principal amount of the Loans, or the number or percentage of Lenders, that shall be required for the Lenders or any of them to take or approve, or direct the Administrative Agent to take, any action hereunder or under any other Credit Document (including as set forth in the definition of “ Required Lenders ”), (iii) change any other provision of this Agreement or any of the other Credit Documents requiring, by its terms, the consent or approval of all the Lenders for such amendment, modification, waiver, discharge, termination or consent, or (iv) change or waive any provision of **Section 2.12(e)** , **Section 2.14** , any other provision of this Agreement or any other Credit Document requiring pro rata treatment of any Lenders, or this **Section 10.5** ;

(c) change any provisions of any Credit Document in a manner that by its terms adversely affects the rights in respect of payments due to Lenders holding Loans of any Class differently than those of Lenders holding Loans of any other Class without the written consent of the Required Lenders of each adversely affected Class;

(d) unless agreed to by the Swingline Lender or the Administrative Agent in addition to the Lenders required as provided hereinabove to take such action, affect the respective rights or obligations of the Swingline Lender or the Administrative Agent, as applicable, hereunder or under any of the other Credit Documents; and

(e) unless agreed to by each Hedge Party that would be adversely affected thereby in its capacity as such relative to the Lenders, (i) amend the definition of “Guaranteed Obligations” in the Guaranty (or any similar defined term in any other Credit Document benefiting such Hedge Party), (ii) amend the definition of “Guaranteed Parties” in the Guaranty (or any similar defined term in any other Credit Document benefiting such Hedge Party), (iii) amend any provision regarding priority of payments in this Agreement or any other Credit Document, or (iv) release any Guarantor from its obligations under the Guaranty (other than (A) as may be otherwise specifically provided in this Agreement or in any other Credit Document or (B) in connection with the sale or other disposition of all of the Capital Stock of such Guarantor in a transaction expressly permitted under or pursuant to this Agreement);

and provided further that any waiver, amendment or modification of this Agreement that by its terms adversely affects the rights or duties under this Agreement of the Dollar Lenders (but not the Multicurrency Lenders) or the Multicurrency Lenders (but not the Dollar Lenders) may be effected by an agreement or agreements in writing entered into by the Borrower and the requisite percentage in interest of the affected Class of Lenders;

and provided further that the Fee Letters may only be amended or modified, and any rights thereunder waived, in a writing signed by the parties thereto.

Notwithstanding the fact that the consent of all Lenders is required in certain circumstances as set forth above, each Lender is entitled to vote as such Lender sees fit on any bankruptcy

reorganization plan that affects the Loans, and each Lender acknowledges that the provisions of Section 1126(c) of the Bankruptcy Code supersedes the unanimous consent provisions set forth herein. Notwithstanding anything to the contrary herein, no Defaulting Lender shall have any right to approve or disapprove any amendment, waiver or consent hereunder, except that the Commitment of such Lender may not be increased or extended without the consent of such Lender.

10.6 Successors and Assigns.

(a) The provisions of this Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns permitted hereby, except that neither the Borrower nor any other Credit Party may assign or otherwise transfer any of its rights or obligations hereunder without the prior written consent of the Administrative Agent and each Lender and no Lender may assign or otherwise transfer any of its rights or obligations hereunder except (i) to an assignee in accordance with the provisions of **Section 10.6(b)**, (ii) by way of participation in accordance with the provisions of **Section 10.6(d)** or (iii) by way of pledge or assignment of a security interest subject to the restrictions of **Section 10.6(f)** (and any other attempted assignment or transfer by any party hereto shall be null and void). Nothing in this Agreement, expressed or implied, shall be construed to confer upon any Person (other than the parties hereto, their respective successors and assigns permitted hereby, Participants to the extent provided in **Section 10.6(d)** and, to the extent expressly contemplated hereby, the Related Parties of each of the Administrative Agent and the Lenders) any legal or equitable right, remedy or claim under or by reason of this Agreement.

(b) Any Lender may assign to one or more assignees all or a portion of its rights and obligations under this Agreement (including all or a portion of its Commitments and the Loans (including for purposes of this **Section 10.6(b)**), participations in Swingline Loans and Letters of Credit) at the time owing to it); provided that any such assignment shall be subject to the following conditions:

(i) The prior written consent of the Administrative Agent and the Borrower (such consent not to be unreasonably withheld or delayed) is obtained, except that

(A) the consent of the Borrower shall not be required if (y) a Default or Event of Default has occurred and is continuing at the time of such assignment or (z) such assignment is to a Lender, an Affiliate of a Lender or an Approved Fund; and

(B) the consent of the Administrative Agent shall not be required for assignments in respect of a Commitment if such assignment is to a Person that is a Revolving Credit Lender;

(ii) (A) in the case of an assignment of the entire remaining amount of the assigning Lender's Commitment and the Loans of a Class at the time owing to it or in the case of an assignment to a Lender, an Affiliate of a Lender or an Approved Fund, no minimum amount need be assigned, and (B) in any case not described in clause (A) above, the aggregate amount of the Commitment of a Class (which for this purpose

includes Loans outstanding thereunder) or, if the applicable Commitment is not then in effect, the principal outstanding balance of the Loans of a Class of the assigning Lender subject to each such assignment (determined as of the date the Assignment and Assumption with respect to such assignment is delivered to the Administrative Agent or, if "Trade Date" is specified in the Assignment and Assumption, as of the Trade Date) shall not be less than (x) \$5,000,000, in the case of any assignment in respect of a Commitment of a Class (which for this purpose includes Revolving Loans of such Class outstanding), or (y) the entire Swingline Commitment and the full amount of the outstanding Swingline Loans, in the case of Swingline Loans, in any case, treating assignments to two or more Approved Funds under common management as one assignment for purposes of the minimum amounts, unless each of the Administrative Agent and, so long as no Default or Event of Default has occurred and is continuing, the Borrower otherwise consents (each such consent not to be unreasonably withheld or delayed);

(iii) each partial assignment shall be made as an assignment of a proportionate part of all the assigning Lender's rights and obligations under this Agreement with respect to the Loan or the Commitment of a Class assigned, except that this clause (iii) shall not apply to rights in respect of Swingline Loans;

(iv) the parties to each assignment shall execute and deliver to the Administrative Agent an Assignment and Assumption, together with a processing and recordation fee of \$3,500 for each assignment and the assignee, if it is not a Lender of the applicable Class, shall deliver to the Administrative Agent an Administrative Questionnaire;

(v) no such assignment shall be made to the Borrower or any of the Borrower's Affiliates or Subsidiaries; and

(vi) no such assignment shall be made to a natural person.

Subject to acceptance and recording thereof by the Administrative Agent pursuant to **Section 10.6(c)**, from and after the effective date specified in each Assignment and Assumption, the assignee thereunder shall be a party to this Agreement and, to the extent of the interest assigned by such Assignment and Assumption, have the rights and obligations of a Lender under this Agreement, and the assigning Lender thereunder shall, to the extent of the interest assigned by such Assignment and Assumption, be released from its obligations under this Agreement (and, in the case of an Assignment and Assumption covering all of the assigning Lender's rights and obligations under this Agreement, such Lender shall cease to be a party hereto) but shall continue to be entitled to the benefits of **Sections 2.15(a)**, **2.15(b)**, **2.16**, **2.17** and **10.1** with respect to facts and circumstances occurring prior to the effective date of such assignment. If requested by or on behalf of the assignee, the Borrower, at its own expense, will execute and deliver to the Administrative Agent a new Note or Notes to the order of the assignee (and, if the assigning Lender has retained any portion of its rights and obligations hereunder, to the order of the assigning Lender), prepared in accordance with the applicable provisions of **Section 2.4** as necessary to reflect, after giving effect to the assignment, the Commitments and/or outstanding Loans, as the case may be, of the assignee and (to the extent of any retained interests) the

assigning Lender, in substantially the form of **Exhibits A-1, A-2 and/or A-3**, as applicable. Any assignment or transfer by a Lender of rights or obligations under this Agreement that does not comply with this **Section 10.6(b)** shall be treated for purposes of this Agreement as a sale by such Lender of a participation in such rights and obligations in accordance with **Section 10.6(d)**.

(c) The Administrative Agent, acting solely for this purpose as an agent of the Borrower, shall maintain at its address for notices referred to in **Schedule 1.1(a)** a copy of each Assignment and Assumption delivered to it and a register for the recordation of the names and addresses of the Lenders, and the Commitments of, and principal amounts of the Loans owing to, each Lender pursuant to the terms hereof from time to time (the “Register”). The entries in the Register shall be conclusive, and the Borrower, the Administrative Agent and the Lenders may treat each Person whose name is recorded in the Register pursuant to the terms hereof as a Lender hereunder for all purposes of this Agreement, notwithstanding notice to the contrary. The Register shall be available for inspection by the Borrower, at any reasonable time and from time to time upon reasonable prior notice. In addition, at any time that a request for a consent for a material or substantive change to the Credit Documents is pending, any Lender wishing to consult with other Lenders in connection therewith may request and receive from the Administrative Agent a copy of the Register.

(d) Any Lender may at any time, without the consent of, or notice to, the Borrower or the Administrative Agent, sell participations to any Person (other than a natural person or the Borrower or any of the Borrower’s Affiliates or Subsidiaries) (each, a “Participant”) in all or a portion of such Lender’s rights and/or obligations under this Agreement (including all or a portion of its Commitments and/or the Loans (including such Lender’s participations Swingline Loans and Letters of Credit) owing to it); provided that (i) such Lender’s obligations under this Agreement shall remain unchanged, (ii) such Lender shall remain solely responsible to the other parties hereto for the performance of such obligations and (iii) the Borrower, the Administrative Agent, the Lenders and the Swingline Lender shall continue to deal solely and directly with such Lender in connection with such Lender’s rights and obligations under this Agreement. Any agreement or instrument pursuant to which a Lender sells such a participation shall provide that such Lender shall retain the sole right to enforce this Agreement and to approve any amendment, modification or waiver of any provision of this Agreement; provided that such agreement or instrument may provide that such Lender will not, without the consent of the Participant, agree to any amendment, waiver or other modification described in **Section 10.5(a)** and clause (i) of **Section 10.5(b)** that affects such Participant. Subject to **Section 10.6(e)**, the Borrower agrees that each Participant shall be entitled to the benefits of **Sections 2.15(a)**, **2.15(b)**, **2.16** and **2.17** to the same extent as if it were a Lender and had acquired its interest by assignment pursuant to **Section 10.6(b)**. To the extent permitted by law, each Participant also shall be entitled to the benefits of **Section 8.3** as though it were a Lender; provided such Participant agrees to be subject to **Section 2.14(b)** as though it were a Lender.

(e) A Participant shall not be entitled to receive any greater payment under **Section 2.15(a)**, **Section 2.15(b)** or **Section 2.16** than the applicable Lender would have been entitled to receive with respect to the participation sold to such Participant, unless the sale of the participation to such Participant is made with the Borrower’s prior written consent. A Participant that would be a Foreign Lender if it were a Lender shall not be entitled to the benefits of **Section 2.16** unless the Borrower is notified of the participation sold to such Participant and such Participant agrees, for the benefit of the Borrower, to comply with **Section 2.16(e)** as though it were a Lender.

(f) Any Lender may at any time pledge or assign, or grant a security interest in, all or any portion of its rights under this Agreement (including under its Notes, if any) to secure obligations of such Lender, including any pledge or assignment or grant to secure obligations to a Federal Reserve Bank; provided that no such pledge or assignment or grant shall release such Lender from any of its obligations hereunder or substitute any such pledgee or assignee or grantee for such Lender as a party hereto.

(g) The words “execution,” “signed,” “signature,” and words of like import in any Assignment and Assumption shall be deemed to include electronic signatures or the keeping of records in electronic form, each of which shall be of the same legal effect, validity or enforceability as a manually executed signature or the use of a paper-based recordkeeping system, as the case may be, to the extent and as provided for in any applicable law, including the Federal Electronic Signatures in Global and National Commerce Act or any state laws based on the Uniform Electronic Transactions Act.

(h) Any Lender or participant may, in connection with any assignment, participation, pledge or proposed assignment, participation or pledge pursuant to this **Section 10.6**, disclose to the Assignee, Participant or pledgee or proposed Assignee, Participant or pledgee any information relating to the Borrower and its Subsidiaries furnished to it by or on behalf of any other party hereto, provided that such Assignee, Participant or pledgee or proposed Assignee, Participant or pledgee agrees in writing to keep such information confidential to the same extent required of the Lenders under **Section 10.11**.

(i) Notwithstanding anything to the contrary contained herein, if Wells Fargo assigns all of its Commitments and Revolving Loans in accordance with this **Section 10.6**, Wells Fargo may resign as Issuing Lender and Swingline Lender upon written notice to the Borrower and the Lenders. Upon any such notice of resignation, the Borrower shall have the right to appoint from among the Lenders a successor Issuing Lender; provided that no failure by the Borrower to make such appointment shall affect the resignation of Wells Fargo as Issuing Lender. Wells Fargo shall retain all of the rights and obligations of the Issuing Lender hereunder with respect to all Letters of Credit issued by it and outstanding as of the effective date of its resignation and all obligations of the Borrower and the Revolving Credit Lenders with respect thereto (including the right to require the Revolving Credit Lenders to make Revolving Loans or fund participation interests pursuant to **Section 2.19**).

10.7 No Waiver. The rights and remedies of the Administrative Agent and the Lenders expressly set forth in this Agreement and the other Credit Documents are cumulative and in addition to, and not exclusive of, all other rights and remedies available at law, in equity or otherwise. No failure or delay on the part of the Administrative Agent or any Lender in exercising any right, power or privilege shall operate as a waiver thereof, nor shall any single or partial exercise of any such right, power or privilege preclude other or further exercise thereof or the exercise of any other right, power or privilege or be construed to be a waiver of any Default or Event of Default. No course of dealing between any Credit Party, the Administrative Agent or the Lenders or their agents or employees shall be effective to amend, modify or discharge any

provision of this Agreement or any other Credit Document or to constitute a waiver of any Default or Event of Default. No notice to or demand upon any Credit Party in any case shall entitle any Credit Party to any other or further notice or demand in similar or other circumstances or constitute a waiver of the right of the Administrative Agent or any Lender to exercise any right or remedy or take any other or further action in any circumstances without notice or demand.

10.8 Survival. All representations, warranties and agreements made by or on behalf of the Borrower or any other Credit Party in this Agreement and in the other Credit Documents shall survive the execution and delivery hereof or thereof and the making and repayment of the Loans until the indefeasible payment in full of the Obligations. In addition, notwithstanding anything herein or under applicable law to the contrary, the provisions of this Agreement and the other Credit Documents relating to indemnification or payment of costs and expenses, including, without limitation, the provisions of **Sections 2.15(a) , 2.15(b) , 2.16, 2.17 and 10.1** , shall survive the payment in full of all Loans and Letters of Credit, the termination of the Commitments and any termination of this Agreement or any of the other Credit Documents. Except as set forth above, this Agreement and the Credit Documents shall be deemed terminated upon the indefeasible payment in full of the Obligations.

10.9 Severability. To the extent any provision of this Agreement is prohibited by or invalid under the applicable law of any jurisdiction, such provision shall be ineffective only to the extent of such prohibition or invalidity and only in such jurisdiction, without prohibiting or invalidating such provision in any other jurisdiction or the remaining provisions of this Agreement in any jurisdiction.

10.10 Construction. The headings of the various articles, sections and subsections of this Agreement and the table of contents have been inserted for convenience only and shall not in any way affect the meaning or construction of any of the provisions hereof. Except as otherwise expressly provided herein and in the other Credit Documents, in the event of any inconsistency or conflict between any provision of this Agreement and any provision of any of the other Credit Documents, the provision of this Agreement shall control.

10.11 Confidentiality. Each of the Administrative Agent and the Lenders agree to maintain the confidentiality of the Information (as defined below), except that Information may be disclosed (a) to its Affiliates and to its and its Affiliates' respective partners, directors, officers, employees, agents, advisors and other representatives (it being understood that the Persons to whom such disclosure is made will be informed of the confidential nature of such Information and instructed to keep such Information confidential), (b) to the extent requested by any regulatory authority purporting to have jurisdiction over it (including any self-regulatory authority, such as the National Association of Insurance Commissioners), (c) to the extent required by applicable Requirements of Law or by any subpoena or similar legal process, (d) to any other party hereto, (e) in connection with the exercise of any remedies hereunder or under any other Credit Document or any action or proceeding relating to this Agreement or any other Credit Document or the enforcement of rights hereunder or thereunder, (f) subject to an agreement containing provisions substantially the same as those of this Section, to (i) any assignee of or Participant in, or any prospective assignee of or Participant in, any of its rights or obligations under this Agreement, or (ii) any actual or prospective counterparty (or its advisors)

to any swap or derivative transaction relating to the Borrower and its obligations, (g) with the consent of the Borrower or (h) to the extent such Information (x) becomes publicly available other than as a result of a breach of this Section or (y) becomes available to the Administrative Agent, any Lender or any of their respective Affiliates on a nonconfidential basis from a source other than the Borrower or any of its Subsidiaries or Affiliates.

For purposes of this Section, “Information” means all information received from the Credit Parties relating to any Credit Party or any of their respective businesses, other than any such information that is available to the Administrative Agent or any Lender on a nonconfidential basis prior to disclosure by any Credit Party, provided that, in the case of information received from any Credit Party after the date hereof, such information is clearly identified at the time of delivery as confidential. Any Person required to maintain the confidentiality of Information as provided in this Section shall be considered to have complied with its obligation to do so if such Person has exercised the same degree of care to maintain the confidentiality of such Information as such Person would accord to its own confidential information.

10.12 Counterparts; Integration; Effectiveness. This Agreement may be executed in counterparts (and by different parties hereto in different counterparts), each of which shall constitute an original, but all of which when taken together shall constitute a single contract. This Agreement and the other Credit Documents constitute the entire contract among the parties relating to the subject matter hereof and supersede any and all previous agreements and understandings, oral or written, relating to the subject matter hereof (except for the Fee Letters). Except as provided in **Section 3.1**, this Agreement shall become effective when it shall have been executed by the Administrative Agent and when the Administrative Agent shall have received counterparts hereof that, when taken together, bear the signatures of each of the other parties hereto. Delivery of an executed counterpart of a signature page of this Agreement by telecopy (or by PDF formatted page sent by electronic mail) shall be effective as delivery of a manually executed counterpart of this Agreement.

10.13 Disclosure of Information. The Borrower agrees and consents to the Administrative Agent’s and the Arrangers’ disclosure of information relating to this transaction to Gold Sheets and other similar bank trade publications. Such information will consist of deal terms and other information customarily found in such publications.

10.14 USA Patriot Act Notice. Each Lender that is subject to the Act (as defined below) and the Administrative Agent (for itself and not on behalf of any Lender) hereby notifies the Borrower that pursuant to the requirements of the USA Patriot Act (Title III of Pub. L. 107-56 (signed into law October 26, 2001)) (the “Act”), it is required to obtain, verify and record information that identifies the Borrower, which information includes the name and address of the Borrower and other information that will allow such Lender or the Administrative Agent, as applicable, to identify the Borrower in accordance with the Act.

IN WITNESS WHEREOF , the parties hereto have caused this Agreement to be executed by their duly authorized officers as of the date first above written.

INTERCONTINENTALEXCHANGE, INC.

By: /s/ Scott A. Hill
Name: Scott A. Hill
Title: Senior Vice President and Chief Financial Officer

WELLS FARGO BANK, NATIONAL ASSOCIATION (successor by merger to Wachovia Bank, National Association), as Administrative Agent, Swingline Lender and as a Lender

By: /s/ G. Mendel Lay, Jr.
Name: G. Mendel Lay, Jr.
Title: Senior Vice President

BANK OF AMERICA, N.A. , as Syndication Agent and as a Lender

By: /s/ Thomas M. Paulk
Name: Thomas M. Paulk
Title: Vice President

BANK OF MONTREAL (Chicago Branch) , as Documentation Agent and as a Lender

By: /s/ Scott Ferris
Name: Scott Ferris
Title: Managing Director

SOCIETE GENERALE , as Documentation Agent and as a Lender

By: /s/ Ambrish Thanawala
Name: Ambrish Thanawala
Title: Managing Director

**THE BANK OF TOKYO-MITSUBISHI UFJ, LTD.
NEW YORK BRANCH** , as Documentation Agent and
as a Lender

By: /s/ Chimie T. Pemba
Name: Chimie T. Pemba
Title: Authorized Signatory

REGIONS BANK , as a Lender

By: /s/ Stephen Brothers
Name: Stephen Brothers
Title: Senior Vice President

DEUTSCHE BANK AG NEW YORK BRANCH , as
a Lender

By: /s/ Robert Chelsey
Name: Robert Chelsey
Title: Director

By: /s/ Michael Campites
Name: Michael Campites
Title: Vice President

MORGAN STANLEY BANK, N.A. , as a Lender

By: /s/ Ryan Vetsch
Name: Ryan Vetsch
Title: Authorized Signatory

**FIFTH THIRD BANK AN OHIO BANKING
CORPORATION** , as a Lender

By: /s/ Mitchell A. Early
Name: Mitchell A. Early
Title: Portfolio Manager

THE BANK OF NEW YORK MELLON , as a Lender

By: /s/ Robert J. Motzel, Jr.
Name: Robert J. Motzel, Jr.
Title: Vice President

CHANG HWA COMMERCIAL BANK, LTD., NEW YORK BRANCH , as a Lender

By: /s/ Eric Tsai
Name: Eric Tsai
Title: V.P. & General Manager

TAIWAN COOPERATIVE BANK, LOS ANGELES BRANCH , as a Lender

By: /s/ Li-Hua Huang
Name: Li-Hua Huang
Title: AVP & General Manager

BANK OF TAIWAN, NEW YORK AGENCY , as a Lender

By: /s/ Thomas K.C. Wu
Name: Thomas K.C. Wu
Title: VP & General Manager

E. SUN COMMERCIAL BANK, LTD., LOS ANGELES BRANCH , as a Lender

By: /s/ Benjamin Lin
Name: Benjamin Lin
Title: EVP & General Manager

FIRST COMMERCIAL BANK NEW YORK AGENCY , as a Lender

By: /s/ Jenn-Hwa Wang
Name: Jenn-Hwa Wang
Title: General Manager

HUA NAN COMMERCIAL BANK, LTD. NEW YORK AGENCY , as a Lender

By: /s/ Henry Hsieh
Name: Henry Hsieh
Title: Assistant Vice President

TAIWAN BUSINESS BANK , as a Lender

By: /s/ Alex Wang

Name: Alex Wang

Title: S.V.P. & General Manager

**MEGA INTERNATIONAL COMMERCIAL BANK
CO., LTD. NEW YORK BRANCH** , as a Lender

By: /s/ Priscilla Hsing

Name: Priscilla Hsing

Title: VP & DGM

**BANK OF COMMUNICATIONS CO., LTD., NEW
YORK BRANCH** , as a Lender

By: /s/ Shelley He

Name: Shelley He

Title: Deputy General Manager

THE CHIBA BANK, LTD., NEW YORK BRANCH ,
as a Lender

By: /s/ Akihiro Watanabe

Name: Akihiro Watanabe

Title: Senior Deputy General Manager

EXHIBITS

FORM OF DOLLAR NOTE

\$ _____

_____, 20 ____
Charlotte, North Carolina

FOR VALUE RECEIVED, INTERCONTINENTAL EXCHANGE, INC., a Delaware corporation (the "Borrower"), hereby promises to pay to the order of

_____ (the "Lender"), at the offices of Wells Fargo Bank, National Association (the "Administrative Agent") located at One Wachovia Center, 301 South College Street, Charlotte, North Carolina (or at such other place or places as the Administrative Agent may designate), at the times and in the manner provided in the Credit Agreement, dated as of _____, 2010 (as amended, modified, restated or supplemented from time to time, the "Credit Agreement"), among the Borrower, the Lenders from time to time parties thereto, Wells Fargo Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent, the principal sum of

_____ **DOLLARS** (\$ _____), or such lesser amount as may constitute the unpaid principal amount of the Dollar Loans made by the Lender, under the terms and conditions of this promissory note (this "Dollar Note") and the Credit Agreement. The defined terms in the Credit Agreement are used herein with the same meaning. The Borrower also promises to pay interest on the aggregate unpaid principal amount of this Dollar Note at the rates applicable thereto from time to time as provided in the Credit Agreement.

This Dollar Note is one of a series of Dollar Notes referred to in the Credit Agreement and is issued to evidence the Dollar Loans made by the Lender pursuant to the Credit Agreement. All of the terms, conditions and covenants of the Credit Agreement are expressly made a part of this Dollar Note by reference in the same manner and with the same effect as if set forth herein at length, and any holder of this Dollar Note is entitled to the benefits of and remedies provided in the Credit Agreement and the other Credit Documents. Reference is made to the Credit Agreement for provisions relating to the interest rate, maturity, payment, prepayment and acceleration of this Dollar Note.

In the event of an acceleration of the maturity of this Dollar Note, this Dollar Note shall become immediately due and payable, without presentation, demand, protest or notice of any kind, all of which are hereby waived by the Borrower.

In the event this Dollar Note is not paid when due at any stated or accelerated maturity, the Borrower agrees to pay, in addition to the principal and interest, all costs of collection, including reasonable attorneys' fees, in accordance with the Credit Agreement.

This Dollar Note shall be governed by and construed in accordance with the internal laws and judicial decisions of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules). The Borrower hereby submits to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, although the Lender shall not be limited to bringing an action in such courts.

(signature next page)

IN WITNESS WHEREOF , the Borrower has caused this Dollar Note to be executed by its duly authorized corporate officer as of the day and year first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

SIGNATURE PAGE TO DOLLAR NOTE

FORM OF MULTICURRENCY NOTE

\$ _____

_____, 20 __
Charlotte, North Carolina

FOR VALUE RECEIVED, INTERCONTINENTALEXCHANGE, INC., a Delaware corporation (the "Borrower"), hereby promises to pay to the order of

_____ (the "Lender"), at the offices of Wells Fargo Bank, National Association (the "Administrative Agent") located at One Wachovia Center, 301 South College Street, Charlotte, North Carolina (or at such other place or places as the Administrative Agent may designate), at the times and in the manner provided in the Credit Agreement, dated as of _____, 2010 (as amended, modified, restated or supplemented from time to time, the "Credit Agreement"), among the Borrower, the Lenders from time to time parties thereto, Wells Fargo Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent, the principal sum of

_____ **DOLLARS** (\$ _____), or such lesser amount as may constitute the unpaid principal Dollar amount of the Multicurrency Loans made by the Lender, under the terms and conditions of this promissory note (this "Multicurrency Note") and the Credit Agreement. The defined terms in the Credit Agreement are used herein with the same meaning. The Borrower also promises to pay interest on the aggregate unpaid principal amount of this Multicurrency Note at the rates applicable thereto from time to time as provided in the Credit Agreement.

This Multicurrency Note is one of a series of Multicurrency Notes referred to in the Credit Agreement and is issued to evidence the Multicurrency Loans made by the Lender pursuant to the Credit Agreement. All of the terms, conditions and covenants of the Credit Agreement are expressly made a part of this Multicurrency Note by reference in the same manner and with the same effect as if set forth herein at length, and any holder of this Multicurrency Note is entitled to the benefits of and remedies provided in the Credit Agreement and the other Credit Documents. Reference is made to the Credit Agreement for provisions relating to the interest rate, maturity, payment, prepayment and acceleration of this Multicurrency Note.

In the event of an acceleration of the maturity of this Multicurrency Note, this Multicurrency Note shall become immediately due and payable, without presentation, demand, protest or notice of any kind, all of which are hereby waived by the Borrower.

In the event this Multicurrency Note is not paid when due at any stated or accelerated maturity, the Borrower agrees to pay, in addition to the principal and interest, all costs of collection, including reasonable attorneys' fees, in accordance with the Credit Agreement.

This Multicurrency Note shall be governed by and construed in accordance with the internal laws and judicial decisions of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules). The Borrower hereby submits to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, although the Lender shall not be limited to bringing an action in such courts.

(signature next page)

IN WITNESS WHEREOF , the Borrower has caused this Multicurrency Note to be executed by its duly authorized corporate officer as of the day and year first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

SIGNATURE PAGE TO MULTICURRENCY NOTE

FORM OF SWINGLINE NOTE

\$ _____

_____, 20 ____
Charlotte, North Carolina

FOR VALUE RECEIVED, INTERCONTINENTALEXCHANGE, INC., a Delaware corporation (the "Borrower"), hereby promises to pay to the order of

WELLS FARGO BANK, NATIONAL ASSOCIATION (the "Swingline Lender"), at the offices of Wells Fargo Bank, National Association (the "Administrative Agent") located at One Wachovia Center, 301 South College Street, Charlotte, North Carolina (or at such other place or places as the Administrative Agent may designate), at the times and in the manner provided in the Credit Agreement, dated as of _____, 2010 (as amended, modified, restated or supplemented from time to time, the "Credit Agreement"), among the Borrower, the Lenders from time to time parties thereto, Wells Fargo Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent, the principal sum of

_____ **DOLLARS** (\$ _____), or such lesser amount as may constitute the unpaid principal amount of the Swingline Loans made by the Swingline Lender, under the terms and conditions of this promissory note (this "Swingline Note") and the Credit Agreement. The defined terms in the Credit Agreement are used herein with the same meaning. The Borrower also promises to pay interest on the aggregate unpaid principal amount of this Swingline Note at the rates applicable thereto from time to time as provided in the Credit Agreement.

This Swingline Note is issued to evidence the Swingline Loans made by the Swingline Lender pursuant to the Credit Agreement. All of the terms, conditions and covenants of the Credit Agreement are expressly made a part of this Swingline Note by reference in the same manner and with the same effect as if set forth herein at length, and any holder of this Swingline Note is entitled to the benefits of and remedies provided in the Credit Agreement and the other Credit Documents. Reference is made to the Credit Agreement for provisions relating to the interest rate, maturity, payment, prepayment and acceleration of this Swingline Note.

In the event of an acceleration of the maturity of this Swingline Note, this Swingline Note shall become immediately due and payable, without presentation, demand, protest or notice of any kind, all of which are hereby waived by the Borrower.

In the event this Swingline Note is not paid when due at any stated or accelerated maturity, the Borrower agrees to pay, in addition to the principal and interest, all costs of collection, including reasonable attorneys' fees.

This Swingline Note shall be governed by and construed in accordance with the internal laws and judicial decisions of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules). The Borrower hereby submits to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, although the Lender shall not be limited to bringing an action in such courts.

IN WITNESS WHEREOF , the Borrower has caused this Swingline Note to be executed by its duly authorized corporate officer as of the day and year first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

SIGNATURE PAGE TO SWINGLINE NOTE

FORM OF NOTICE OF BORROWING

[Date]

Wells Fargo Bank, National Association,
as Administrative Agent
1525 W.T. Harris Blvd.
Building 3A2, Mailcode NC 0680
Charlotte, North Carolina 28262
Attention: Syndication Agency Services

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of _____, 2010, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent, Issuing Lender and Swingline Lender for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.2(b)** of the Credit Agreement, hereby gives you, as Administrative Agent, irrevocable notice that the Borrower requests a Borrowing of [Dollar][Multicurrency] Loans under the Credit Agreement, and to that end sets forth below the information relating to such Borrowing (the “Proposed Borrowing”) as required by **Section 2.2(b)** of the Credit Agreement:

- (i) The aggregate principal amount of the Proposed Borrowing is [\$][€][£] _____.^{1 2}
- (ii) The Loans comprising the Proposed Borrowing shall be initially made as [Base Rate Loans] [LIBOR Loans].³
- (iii) [The initial Interest Period for the LIBOR Loans comprising the Proposed Borrowing shall be [one/two/three/six months].]⁴
- (iv) The Proposed Borrowing is requested to be made on _____ (the “Borrowing Date”).⁵

¹ Select the applicable Class of Loans.

² Amount of Proposed Borrowing must comply with Section 2.2(b) of the Credit Agreement. Dollar Loans may only be denominated in Dollars. Multicurrency Loans may be denominated in Dollars, Euros or Sterling.

³ Select the applicable Type of Loans. Multicurrency Loans denominated in Foreign Currency may only be LIBOR Loans.

⁴ Include this clause in the case of a Proposed Borrowing comprised of LIBOR Loans, and select the applicable Interest Period.

(v) The use of the proceeds of the Proposed Borrowing is [to provide liquidity for the clearing operations of [ICE Clear Europe/ICE Clear US/ICE Trust/ICE Clear Canada][for working capital and general corporate purposes] ⁶.

The Borrower hereby certifies that the following statements are true on and as of the date hereof and will be true on and as of the Borrowing Date:

A. Each of the representations and warranties contained in **Article IV** of the Credit Agreement and in the other Credit Documents qualified as to materiality is and will be true and correct and each not so qualified is and will be true and correct in all material respects, in each case on and as of each such date, with the same effect as if made on and as of each such date, both immediately before and after giving effect to the Proposed Borrowing and to the application of the proceeds therefrom (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case each such representation or warranty qualified as to materiality shall be true and correct and each not so qualified shall be true and correct in all material respects, in each case as of such date);

B. No Default or Event of Default has occurred and is continuing or would result from the Proposed Borrowing or from the application of the proceeds therefrom; and

C. After giving effect to the Proposed Borrowing, [the Aggregate Revolving Dollar Credit Exposure will not exceed the aggregate Dollar Commitments][the aggregate Dollar Amount of Multicurrency Loans will not exceed the aggregate Multicurrency Commitments] ⁷.

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

⁵ Shall be a Business Day on or after the date hereof (in the case of Base Rate Loans) or at least three Business Days after the date hereof (in the case of LIBOR Loans).

⁶ Select the applicable use of proceeds of the Proposed Borrowing.

⁷ Select according to the applicable Class of Loans.

FORM OF NOTICE OF SWINGLINE BORROWING

[Date]

Wells Fargo Bank, National Association,
as Administrative Agent
1525 W. W.T. Harris Blvd
Building 3A2, Mailcode NC 0680
Charlotte, North Carolina 28262
Attention: Syndication Agency Services

Wells Fargo Bank, National Association,
as Swingline Lender
One Wachovia Center, [5th] Floor
301 South College Street
Charlotte, North Carolina 28288-0760
Attention: _____

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of _____, 2010, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent, Issuing Lender and Swingline Lender for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.2(d)** of the Credit Agreement, hereby gives you, as Administrative Agent and as Swingline Lender, irrevocable notice that the Borrower requests a Borrowing of a Swingline Loan under the Credit Agreement, and to that end sets forth below the information relating to such Borrowing (the “Proposed Borrowing”) as required by **Section 2.2(d)** of the Credit Agreement:

(i) The principal amount of the Proposed Borrowing is \$ _____.¹

(ii) The Proposed Borrowing is requested to be made on _____ (the “Borrowing Date”).²

¹ Amount of Proposed Borrowing must comply with Section 2.2(d) of the Credit Agreement.

² Shall be a Business Day on or after the date hereof.

(iii) The use of the proceeds of the Proposed Borrowing is [to provide liquidity for the clearing operations of [ICE Clear Europe/ICE Clear US/ICE Trust/ICE Clear Canada][for working capital and general corporate purposes].

The Borrower hereby certifies that the following statements are true on and as of the date hereof and will be true on and as of the Borrowing Date:

A. Each of the representations and warranties contained in **Article IV** of the Credit Agreement and in the other Credit Documents qualified as to materiality is and will be true and correct and each not so qualified is and will be true and correct in all material respects, in each case on and as of each such date, with the same effect as if made on and as of each such date, both immediately before and after giving effect to the Proposed Borrowing and to the application of the proceeds therefrom (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case each such representation or warranty qualified as to materiality shall be true and correct and each not so qualified shall be true and correct in all material respects, in each case as of such date);

B. No Default or Event of Default has occurred and is continuing or would result from the Proposed Borrowing or from the application of the proceeds therefrom; and

C. After giving effect to the Proposed Borrowing, the Aggregate Revolving Dollar Credit Exposure will not exceed the aggregate Dollar Commitments.

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

FORM OF NOTICE OF CONVERSION/CONTINUATION

[Date]

Wells Fargo Bank, National Association,
as Administrative Agent
1525 W. W.T. Harris Blvd
Building 3A2, Mailcode NC 0680
Charlotte, North Carolina 28262
Attention: Syndication Agency Services

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of _____, 2010, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent, Issuing Lender and Swingline Lender for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.11(b)** of the Credit Agreement, hereby gives you, as Agent, irrevocable notice that the Borrower requests a [conversion] [continuation]¹ of Loans under the Credit Agreement, and to that end sets forth below the information relating to such [conversion] [continuation] (the “Proposed [Conversion] [Continuation]”) as required by **Section 2.11(b)** of the Credit Agreement:

(i) The Proposed [Conversion] [Continuation] is requested to be made on _____.²

(ii) The Proposed [Conversion] [Continuation] involves [\$][€][£] _____³ in aggregate principal amount of [Multicurrency] [Dollar]⁴ Loans made pursuant to a Borrowing on

¹ Insert “conversion” or “continuation” throughout the notice, as applicable.

² Shall be a Business Day on or after the date hereof (in the case of any conversion of LIBOR Loans into Base Rate Loans) or at least three Business Days after the date hereof (in the case of any conversion of Base Rate Loans into, or continuation of, LIBOR Loans), and additionally, in the case of any conversion of LIBOR Loans into Base Rate Loans, or continuation of LIBOR Loans, shall be the last day of the Interest Period applicable to such LIBOR Loans.

³ Amount of Proposed Conversion or Continuation must comply with Section 2.11(a) of the Credit Agreement. A Borrowing denominated in one Currency may not be continued as, or converted to, a Borrowing in a different Currency.

⁴ Select the applicable Class of Loans. Borrowings of a Class may only be continued as or converted into a Borrowing of the same Class.

_____,⁵ which Loans are presently maintained as [Base Rate] [LIBOR] Loans and are proposed hereby to be [converted into Base Rate Loans] [converted into LIBOR Loans] [continued as LIBOR Loans].⁶

(iii) [The initial Interest Period for the Loans being [converted into] [continued as] LIBOR Loans pursuant to the Proposed [Conversion] [Continuation] shall be [one/two/three/six months].]⁷

The Borrower hereby certifies that the following statement is true both on and as of the date hereof and on and as of the effective date of the Proposed [Conversion] [Continuation]: no Default or Event of Default has or will have occurred and is continuing or would result from the Proposed [Conversion] [Continuation].

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____

Name: _____

Title: _____

⁵ Insert the applicable Borrowing Date for the Loans being converted or continued. A Borrowing of LIBOR Loans denominated in a Foreign Currency may not be converted to a Borrowing of a different Type.

⁶ Complete with the applicable bracketed language.

⁷ Include this clause in the case of a Proposed Conversion or Continuation involving a conversion of Base Rate Loans into, or continuation of, LIBOR Loans, and select the applicable Interest Period.

FORM OF LETTER OF CREDIT NOTICE

[Date]

Wells Fargo Bank, National Association,
as Administrative Agent
1525 W. W.T. Harris Blvd
Building 3A2, Mailcode NC 0680
Charlotte, North Carolina 28262
Attention: Syndication Agency Services

Wells Fargo Bank, National Association,
as Issuing Lender
One Wachovia Center, [5th] Floor
301 South College Street
Charlotte, North Carolina 28288-0760
Attention: _____

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of _____, 2010, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent, Issuing Lender and Swingline Lender for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.19(b)** of the Credit Agreement, hereby gives you irrevocable notice that the Borrower requests the issuance of a Letter of Credit for its account under the Credit Agreement, and to that end sets forth below the information relating to such Letter of Credit (the “Requested Letter of Credit”) as required by **Section 2.19(b)** of the Credit Agreement:

- (i) The Business Day on which the Requested Letter of Credit is requested to be issued is _____.¹
- (ii) The Stated Amount of the Requested Letter of Credit is \$ _____.
- (iii) The expiry date of the Requested Letter of Credit is _____.

¹ Shall be at least three Business Days (or such shorter period as is acceptable to the Bank in any given case) after the date hereof.

(iv) The name and address of the beneficiary of the Requested Letter of Credit is _____.

The undersigned agrees to complete all application procedures and documents required by you in connection with the Requested Letter of Credit.

The undersigned hereby certifies that the following statements are true on the date hereof and will be true on the date of issuance of the Requested Letter of Credit:

A. Each of the representations and warranties contained in **Article IV** of the Credit Agreement and in the other Credit Documents qualified as to materiality is and will be true and correct and each not so qualified is and will be true and correct in all material respects, in each case on and as of each such date, with the same effect as if made on and as of each such date, both immediately before and after giving effect to the issuance of the Requested Letter of Credit and to the application of the proceeds therefrom (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case each such representation or warranty qualified as to materiality shall be true and correct and each not so qualified shall be true and correct in all material respects, in each case as of such date);

B. No Default or Event of Default has occurred and is continuing or would result from the issuance of the Requested Letter of Credit; and

C. After giving effect to the issuance of the Requested Letter of Credit, the Aggregate Revolving Dollar Credit Exposure will not exceed the aggregate Dollar Commitments.

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

EXHIBIT C

FORM OF COMPLIANCE CERTIFICATE

THIS CERTIFICATE is delivered pursuant to the Credit Agreement, dated as of _____, 2010 (the “Credit Agreement”), among IntercontinentalExchange, Inc., a Delaware corporation (the “Borrower”), the Lenders from time to time parties thereto, Wells Fargo Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent. Capitalized terms used herein without definition shall have the meanings given to such terms in the Credit Agreement.

The undersigned hereby certifies that:

1. He is a duly elected Financial Officer of the Borrower.
2. Enclosed with this Certificate are copies of the financial statements of the Borrower and its Subsidiaries as of _____, and for the [_____-month period] [year] then ended, required to be delivered under **Section [5.1(a)][5.1(b)]** of the Credit Agreement. Such financial statements have been prepared in accordance with GAAP [(subject to the absence of notes required by GAAP and subject to normal year-end adjustments)] ¹ and fairly present in all material respects the financial condition of the Borrower and its Subsidiaries on a consolidated basis as of the date indicated and the results of operation of the Borrower and its Subsidiaries on a consolidated basis for the period covered thereby.
3. The undersigned has reviewed the terms of the Credit Agreement and has made, or caused to be made under the supervision of the undersigned, a review in reasonable detail of the transactions and condition of the Borrower and its Subsidiaries during the accounting period covered by such financial statements.
4. The examination described in paragraph 3 above did not disclose, and the undersigned has no knowledge of the existence of, any Default or Event of Default during or at the end of the accounting period covered by such financial statements or as of the date of this Certificate. [, except as set forth below.

Describe here or in a separate attachment any exceptions to paragraph 4 above by listing, in reasonable detail, the nature of the Default or Event of Default, the period during which it existed and the action that the Borrower has taken or proposes to take with respect thereto.]

5. Attached to this Certificate as Attachment A is a covenant compliance worksheet reflecting the computation of the financial covenants set forth in **Article VI** of the Credit Agreement as of the last day of and for the period covered by the financial statements enclosed herewith.

¹ Insert in the case of quarterly financial statements.

IN WITNESS WHEREOF , the undersigned has executed and delivered this Certificate as of the ____ day of _____, ____.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

ATTACHMENT A

COVENANT COMPLIANCE WORKSHEET

A. Total Leverage Ratio (Section 6.1 of the Credit Agreement)

(1)	Total Funded Debt as of the date of determination	\$ _____
(2)	Consolidated EBITDA for the Reference Period ending on the date of determination (from Line C(5) below)	\$ _____
(3)	Total Leverage Ratio: Divide Line A(1) by Line A(2)	_____ _____
(4)	Maximum Total Leverage Ratio as of the date of determination	2.50 to 1.00

B. Interest Coverage Ratio (Section 6.2 of the Credit Agreement)

- | | | |
|-----|---|------------|
| (1) | Consolidated EBITDA for the Reference Period ending on the date of determination (from Line C(7) below) | \$ _____ |
| (2) | Consolidated Interest Expense for such period | \$ _____ |
| (3) | Interest Coverage Ratio: Divide Line B(1) by Line B(2) | _____ |
| (4) | Minimum Interest Coverage Ratio as of the date of determination | 5.0 to 1.0 |

C. Consolidated EBITDA

- | | | |
|-----|---|----------|
| (1) | Consolidated Net Income for the Reference Period ending on the date of determination | \$ _____ |
| (2) | Additions to Consolidated Net Income (to the extent taken into account in the calculation of Consolidated Net Income for such period): | |
| (a) | Interest expense | \$ _____ |
| (b) | Federal, state, local and other taxes | \$ _____ |
| (c) | Depreciation and amortization of intangible assets | \$ _____ |
| (d) | Extraordinary losses or charges for such period (attach itemized schedule) | \$ _____ |
| (e) | Add Lines C(2)(a) through C(2)(d) | \$ _____ |
| (3) | Net Income plus Additions:
Add Lines C(1) and C(2)(e) | \$ _____ |
| (4) | Reductions from Consolidated Net Income (to the extent taken into account in the calculation of Consolidated Net Income for such period): | \$ _____ |
| (a) | Extraordinary gains or income for such period (attach itemized schedule) | \$ _____ |

		\$	
(b)	Noncash credits increasing income for such period	_____	
(c)	Add Lines C(4)(a) through C(4)(b)		(\$ _____)
(5)	Consolidated EBITDA: Subtract Line C(4)(c) from Line C(3)		\$ _____
(6)	Reductions from Consolidated EBITDA		
		\$	
(a)	Capital Expenditures for such period	_____	
		\$	
(b)	Capitalized Software Development Costs for such period	_____	
(c)	Add Lines C(6)(a) and C(6)(b)		\$ _____
(7)	Adjustments to Consolidated EBITDA: Subtract Line C(6)(c) from Line C(5)		\$ _____

ITEMIZED SCHEDULE OF EXTRAORDINARY LOSSES AND GAINS

EXHIBIT D

FORM OF ASSIGNMENT AND ASSUMPTION

THIS ASSIGNMENT AND ASSUMPTION (this “Assignment and Assumption”) is dated as of the Effective Date set forth below and is entered into by and between [*Insert name of Assignor*] (the “Assignor”) and [*Insert name of Assignee*] (the “Assignee”). Capitalized terms used but not defined herein shall have the meanings given to them in the Credit Agreement identified below, receipt of a copy of which is hereby acknowledged by the Assignee. The Standard Terms and Conditions set forth in Annex 1 attached hereto (the “Standard Terms and Conditions”) are hereby agreed to and incorporated herein by reference and made a part of this Assignment and Assumption as if set forth herein in full.

For an agreed consideration, the Assignor hereby irrevocably sells and assigns to the Assignee, and the Assignee hereby irrevocably purchases and assumes from the Assignor, subject to and in accordance with the Standard Terms and Conditions and the Credit Agreement, as of the Effective Date inserted by the Administrative Agent as contemplated below (i) all of the Assignor’s rights and obligations in its capacity as a Lender under the Credit Agreement and any other documents or instruments delivered pursuant thereto to the extent related to the amount and percentage interest identified below of all of such outstanding rights and obligations of the Assignor under the respective facilities identified below (including any guarantees and Swingline Loans included in such facilities) and (ii) to the extent permitted to be assigned under applicable law, all claims, suits, causes of action and any other right of the Assignor (in its capacity as a Lender) against any Person, whether known or unknown, arising under or in connection with the Credit Agreement, any other documents or instruments delivered pursuant thereto or the loan transactions governed thereby or in any way based on or related to any of the foregoing, including, but not limited to, contract claims, tort claims, malpractice claims, statutory claims and all other claims at law or in equity related to the rights and obligations sold and assigned pursuant to clause (i) above (the rights and obligations sold and assigned pursuant to clauses (i) and (ii) above being referred to herein collectively as the “Assigned Interest”). Such sale and assignment is without recourse to the Assignor and, except as expressly provided in this Assignment and Assumption, without representation or warranty by the Assignor.

1. Assignor: _____

2. Assignee: _____
[and is an Affiliate/Approved Fund of [*identify Lender*] ¹]

3. Borrower: **INTERCONTINENTALEXCHANGE, INC.**

4. Administrative Agent: Wells Fargo Bank, National Association, as the Administrative Agent under the Credit Agreement.

¹ Select as applicable.

5. Credit Agreement: Credit Agreement, dated as of _____, 2010 (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”), among the Borrower, certain lenders from time to time parties thereto (the “Lenders”), Wells Fargo Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent.

6. Assigned Interest:

	Aggregate Amount of Commitment/Loans	Amount of Commitment/Loans	Percentage Assigned of Commitment/Loans	CUSIP Number
Facility Assigned ²	for all Lenders ³	Assigned ³	⁴	⁵
	\$	\$	%	
	\$	\$	%	
	\$	\$	%	

[7. Trade Date: _____] ⁶

8. Effective Date: _____[TO BE INSERTED BY THE ADMINISTRATIVE AGENT AND WHICH SHALL BE THE EFFECTIVE DATE OF RECORDATION OF TRANSFER IN THE REGISTER THEREFOR.]

² Fill in the appropriate terminology for the types of facilities under the Credit Agreement that are being assigned under this Assignment (e.g. “Multicurrency Commitment”, “Dollar Commitment” or “Swingline Commitment.”).

³ Amount to be adjusted by the counterparties to take into account any payments or prepayments made between the Trade Date and the Effective Date.

⁴ Set forth, to at least 9 decimals, as a percentage of the Commitment/Loans of all Lenders thereunder.

⁵ Insert if applicable.

⁶ To be completed if the Assignor and the Assignee intend that the minimum assignment amount is to be determined as of the Trade Date.

The terms set forth in this Assignment and Assumption are hereby agreed to:

ASSIGNOR:

[NAME OF ASSIGNOR]

By: _____
Title: _____

ASSIGNEE:

[NAME OF ASSIGNEE]

By: _____
Title: _____

[Consented to and] ⁷ Accepted:

**WELLS FARGO BANK, NATIONAL
ASSOCIATION**

as Administrative Agent

By: _____
Title: _____

[Consented to:] ⁸

[NAME OF RELEVANT PARTY]

By: _____
Title: _____

⁷

To be added only if the consent of the Administrative Agent is required by the terms of the Credit Agreement.

⁸

To be added only if the consent of the Borrower and/or other parties (e.g., Swingline Lender, Issuing Lender) is required by the terms of the Credit Agreement.

Credit Agreement, dated as of _____, 2010, among IntercontinentalExchange, Inc., as Borrower, certain Lenders from time to time parties thereto, Wells Fargo Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent

STANDARD TERMS AND CONDITIONS FOR
ASSIGNMENT AND ASSUMPTION

1. Representations and Warranties .

1.1 Assignor . The Assignor (a) represents and warrants that (i) it is the legal and beneficial owner of the Assigned Interest, (ii) the Assigned Interest is free and clear of any lien, encumbrance or other adverse claim and (iii) it has full power and authority, and has taken all action necessary, to execute and deliver this Assignment and Assumption and to consummate the transactions contemplated hereby; and (b) assumes no responsibility with respect to (i) any statements, warranties or representations made in or in connection with the Credit Agreement or any other Credit Document, (ii) the execution, legality, validity, enforceability, genuineness, sufficiency or value of the Credit Documents or any collateral thereunder, (iii) the financial condition of the Borrower, any of its Subsidiaries or Affiliates or any other Person obligated in respect of any Credit Document or (iv) the performance or observance by the Borrower, any of its Subsidiaries or Affiliates or any other Person of any of their respective obligations under any Credit Document.

1.2. Assignee . The Assignee (a) represents and warrants that (i) it has full power and authority, and has taken all action necessary, to execute and deliver this Assignment and Assumption and to consummate the transactions contemplated hereby and to become a Lender under the Credit Agreement, (ii) it meets all requirements of an assignee of the Assigned Interest under the Credit Agreement (subject to receipt of such consents as may be required under the Credit Agreement), (iii) from and after the Effective Date, it shall be bound by the provisions of the Credit Agreement as a Lender thereunder and, to the extent of the Assigned Interest, shall have the obligations of a Lender thereunder, (iv) it has received a copy of the Credit Agreement, together with copies of the most recent financial statements delivered pursuant to **Section 5.1** thereof, as applicable, and such other documents and information as it has deemed appropriate to make its own credit analysis and decision to enter into this Assignment and Assumption and to purchase the Assigned Interest on the basis of which it has made such analysis and decision independently and without reliance on the Administrative Agent, Assignor or any other Lender, and (v) if it is a Foreign Lender, attached to the Assignment and Assumption is any documentation required to be delivered by it pursuant to the terms of the Credit Agreement, duly completed and executed by the Assignee; and (b) agrees that (i) it will, independently and without reliance on the Administrative Agent, the Assignor or any other Lender, and based on such documents and information as it shall deem appropriate at the time, continue to make its own credit decisions in taking or not taking action under the Credit Documents, and (ii) it will perform in accordance with their terms all of the obligations that by the terms of the Credit Documents are required to be performed by it as a Lender.

2. Payments. From and after the Effective Date, the Administrative Agent shall make all payments in respect of the Assigned Interest (including payments of principal, interest, fees and other amounts) to the Assignor for amounts that have accrued to but excluding the Effective Date and to the Assignee for amounts that have accrued from and after the Effective Date.

3. General Provisions. This Assignment and Assumption shall be binding upon, and inure to the benefit of, the parties hereto and their respective successors and assigns. This Assignment and Assumption may be executed in any number of counterparts, which together shall constitute one instrument. Delivery of an executed counterpart of a signature page of this Assignment and Assumption by telecopy shall be effective as delivery of a manually executed counterpart of this Assignment and Assumption. This Assignment and Assumption shall be governed by, and construed in accordance with, the laws of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).

EXHIBIT E

FORM OF GUARANTY

THIS GUARANTY AGREEMENT, dated as of the ___ day of _____, 2010 (this “Guaranty”), is made by each of the undersigned Subsidiaries of **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), and each other Subsidiary of the Borrower that, after the date hereof, executes an instrument of accession hereto substantially in the form of Exhibit A (a “Guarantor Accession”; the undersigned and such other Subsidiaries of the Borrower, collectively, the “Guarantors”), in favor of the Guaranteed Parties (as hereinafter defined). Capitalized terms used herein without definition shall have the meanings given to them in the Credit Agreement referred to below.

RECITALS

A. The Borrower, certain Lenders, Wells Fargo Bank, National Association, as administrative agent for the Lenders (in such capacity, the “Administrative Agent”), Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent, are parties to a Credit Agreement, dated as of _____, 2010 (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”), providing for the availability of certain credit facilities to the Borrower upon the terms and conditions set forth therein.

B. It is a condition to the extension of credit to the Borrower under the Credit Agreement that each Guarantor shall have agreed, by executing and delivering this Guaranty, to guarantee to the Guaranteed Parties the payment in full of the Guaranteed Obligations (as hereinafter defined). The Guaranteed Parties are relying on this Guaranty in their decision to extend credit to the Borrower under the Credit Agreement, and would not enter into the Credit Agreement without this Guaranty.

C. The Borrower and the Guarantors are engaged in related businesses and undertake certain activities and operations on an integrated basis. As part of such integrated operations, the Borrower, among other things, will advance to the Guarantors from time to time certain proceeds of the Loans made to the Borrower by the Lenders under the Credit Agreement. Each Guarantor will therefore obtain benefits as a result of the extension of credit to the Borrower under the Credit Agreement, which benefits are hereby acknowledged, and, accordingly, desires to execute and deliver this Guaranty.

Signature Page to Guaranty Agreement

STATEMENT OF AGREEMENT

NOW, THEREFORE, in consideration of the foregoing and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, to induce the Guaranteed Parties to enter into the Credit Agreement and to induce the Lenders to extend credit to the Borrower thereunder, each Guarantor hereby agrees as follows:

1.1 Guaranty.

(i) Each Guarantor hereby irrevocably, absolutely and unconditionally, and jointly and severally:

(A) guarantees (A) to the Lenders (including the Issuing Lender and the Swingline Lender in its capacity as such) and the Administrative Agent (together with any Lender (or any Affiliate of any Lender) in the capacity described in clause (B) below, collectively, the “Guaranteed Parties”) the full and prompt payment, at any time and from time to time as and when due (whether at the stated maturity, by acceleration or otherwise), of all Obligations of the Borrower under the Credit Agreement and the other Credit Documents, including, without limitation, all principal of and interest on the Loans, all fees, expenses, indemnities and other amounts payable by the Borrower under the Credit Agreement or any other Credit Document (including interest accruing after the filing of a petition or commencement of a case by or with respect to the Borrower seeking relief under any Insolvency Laws (as hereinafter defined), whether or not the claim for such interest is allowed in such proceeding), and all Obligations that, but for the operation of the automatic stay under Section 362(a) of the Bankruptcy Code, would become due, and (B) to each applicable Lender or Affiliate of any Lender in its capacity as a Hedge Party under any Hedge Agreement that is required or permitted by the Credit Agreement to be entered into by the Borrower or any of its Subsidiaries (a “Permitted Hedge Agreement”), all obligations of the Borrower under such Permitted Hedge Agreement, in each case under (A) and (B), whether now existing or hereafter created or arising and whether direct or indirect, absolute or contingent, due or to become due (all liabilities and obligations described in this clause (i), collectively, the “Guaranteed Obligations”); and

(B) agrees to pay the reasonable fees and expenses of counsel to, and reimburse upon demand all reasonable costs and expenses incurred or paid by, (y) any Guaranteed Party in connection with any suit, action or proceeding to enforce or protect any rights of the Guaranteed Parties hereunder and (z) the Administrative Agent in connection with any amendment, modification or waiver hereof or consent pursuant hereto, and to indemnify and hold each Guaranteed Party and its directors, officers, employees, agents and Affiliates harmless from and against any and all claims, losses, damages, obligations, liabilities, penalties, costs and expenses (including, without limitation, reasonable attorneys’ fees and expenses) of any kind or nature whatsoever, whether direct, indirect or consequential, that may at any time be imposed on, incurred by or asserted against any such indemnified party as a result of, arising from or in any way relating to this Guaranty or the collection or enforcement of the Guaranteed Obligations; provided, however, that no indemnified party shall have the right to be indemnified hereunder for any such claims, losses, costs and expenses to the extent determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the gross negligence or willful misconduct of such indemnified party.

Signature Page to Guaranty Agreement

(ii) Notwithstanding the provisions of subsection (a) above and notwithstanding any other provisions contained herein or in any other Credit Document:

(A) no provision of this Guaranty shall require or permit the collection from any Guarantor of interest in excess of the maximum rate or amount that such Guarantor may be required or permitted to pay pursuant to applicable law;

(B) the liability of each Guarantor under this Guaranty as of any date shall be limited to a maximum aggregate amount (the “Maximum Guaranteed Amount”) equal to the greatest amount that would not render such Guarantor’s obligations under this Guaranty subject to avoidance, discharge or reduction as of such date as a fraudulent transfer or conveyance under applicable federal and state laws pertaining to bankruptcy, reorganization, arrangement, moratorium, readjustment of debts, dissolution, liquidation or other debtor relief, specifically including, without limitation, the Bankruptcy Code and any fraudulent transfer and fraudulent conveyance laws (collectively, “Insolvency Laws”), in each instance after giving effect to all other liabilities of such Guarantor, contingent or otherwise, that are relevant under applicable Insolvency Laws (specifically excluding, however, any liabilities of such Guarantor in respect of intercompany indebtedness to the Borrower or any of its Affiliates to the extent that such indebtedness would be discharged in an amount equal to the amount paid by such Guarantor hereunder, and after giving effect as assets to the value (as determined under applicable Insolvency Laws) of any rights to subrogation, contribution, reimbursement, indemnity or similar rights of such Guarantor pursuant to (y) applicable law or (z) any agreement (including this Guaranty) providing for an equitable allocation among such Guarantor and other Affiliates of the Borrower of obligations arising under guaranties by such parties); and

(C) solely with respect to the guaranty hereunder of each clearing house operated by the Borrower in any action or proceeding to enforce this Guaranty against such clearing house, no recourse may be had to any assets of any kind held by or owing to such clearing house as (A) original margin securing positions in futures, options or other products cleared by such clearing house carried for its members or their customers, (B) amounts paid or payable to such clearing house as variation margin option premiums or the purchase price of any commodities with respect to any such positions, (C) amounts on deposit in a bank settlement account, received as variation margin, and any securities or other assets in which such amounts may be invested pursuant to repurchase agreements or otherwise, or (D) deposits in the Guaranty Fund of such clearing house, and no resort may be had to invoke the power of such clearing house to impose assessments on its clearing members pursuant to its bylaws and the rules adopted by the board of directors of such clearing house or otherwise.

(iii) The Guarantors desire to allocate among themselves, in a fair and equitable manner, their obligations arising under this Guaranty. Accordingly, in the event any payment or distribution is made hereunder on any date by a Guarantor (a “Funding Guarantor”) that exceeds its Fair Share (as hereinafter defined) as of such date, that Funding Guarantor shall be entitled to a contribution from each of the other Guarantors in the amount of such other Guarantor’s Fair Share Shortfall (as hereinafter defined) as of such date, with the result that all such contributions

Signature Page to Guaranty Agreement

will cause each Guarantor's Aggregate Payments (as hereinafter defined) to equal its Fair Share as of such date. " Fair Share " means, with respect to a Guarantor as of any date of determination, an amount equal to (i) the ratio of (x) the Adjusted Maximum Guaranteed Amount (as hereinafter defined) with respect to such Guarantor to (y) the aggregate of the Adjusted Maximum Guaranteed Amounts with respect to all Guarantors, multiplied by (ii) the aggregate amount paid or distributed on or before such date by all Funding Guarantors hereunder in respect of the obligations guaranteed. " Fair Share Shortfall " means, with respect to a Guarantor as of any date of determination, the excess, if any, of the Fair Share of such Guarantor over the Aggregate Payments of such Guarantor. " Adjusted Maximum Guaranteed Amount " means, with respect to a Guarantor as of any date of determination, the Maximum Guaranteed Amount of such Guarantor, determined in accordance with the provisions of subsection (ii) above; provided that, solely for purposes of calculating the "Adjusted Maximum Guaranteed Amount" with respect to any Guarantor for purposes of this subsection (iii), any assets or liabilities arising by virtue of any rights to subrogation, reimbursement or indemnity or any rights to or obligations of contribution hereunder shall not be considered as assets or liabilities of such Guarantor. " Aggregate Payments " means, with respect to a Guarantor as of any date of determination, the aggregate amount of all payments and distributions made on or before such date by such Guarantor in respect of this Guaranty (including, without limitation, in respect of this subsection (iii)). The amounts payable as contributions hereunder shall be determined as of the date on which the related payment or distribution is made by the applicable Funding Guarantor. Each Funding Guarantor's right of contribution under this subsection (iii) shall be subject to the provisions of **Section 1.4** . The allocation among Guarantors of their obligations as set forth in this subsection (iii) shall not be construed in any way to limit the liability of any Guarantor hereunder to the Guaranteed Parties.

(iv) The guaranty of each Guarantor set forth in this Section is a guaranty of payment as a primary obligor, and not a guaranty of collection. Each Guarantor hereby acknowledges and agrees that the Guaranteed Obligations, at any time and from time to time, may exceed the Maximum Guaranteed Amount of such Guarantor and may exceed the aggregate of the Maximum Guaranteed Amounts of all Guarantors, in each case without discharging, limiting or otherwise affecting the obligations of any Guarantor hereunder or the rights, powers and remedies of any Guaranteed Party hereunder or under any other Credit Document.

1.2 Guaranty Absolute . Each Guarantor agrees that its obligations hereunder and under the other Credit Documents to which it is a party are irrevocable, absolute and unconditional, are independent of the Guaranteed Obligations and any security therefore or other guaranty or liability in respect thereof, whether given by such Guarantor or any other Person, and shall not be discharged, limited or otherwise affected by reason of any of the following, whether or not such Guarantor has notice or knowledge thereof:

(A) any change in the time, manner or place of payment of, or in any other term of, any Guaranteed Obligations or any guaranty, security or other liability in respect thereof, or any amendment, modification or supplement to, restatement of, or consent to any rescission or waiver of or departure from, any provisions of the Credit Agreement, any other Credit Document or any agreement or instrument delivered pursuant to any of the foregoing;

Signature Page to Guaranty Agreement

(B) the invalidity or unenforceability of any Guaranteed Obligations, any guaranty, security or other liability in respect thereof or any provisions of the Credit Agreement, any other Credit Document or any agreement or instrument delivered pursuant to any of the foregoing;

(C) the addition or release of Guarantors hereunder or the taking, acceptance or release of other guarantees of any Guaranteed Obligations or for any guaranty, security or other liability in respect thereof;

(D) any discharge, modification, settlement, compromise or other action in respect of any Guaranteed Obligations or any guaranty, security or other liability in respect thereof, including any acceptance or refusal of any offer or performance with respect to the same or the subordination of the same to the payment of any other obligations;

(E) any agreement not to pursue or enforce or any failure to pursue or enforce (whether voluntarily or involuntarily as a result of operation of law, court order or otherwise) any right or remedy in respect of any Guaranteed Obligations, any guaranty, security or other liability in respect thereof;

(F) the exercise of any right or remedy available under the Credit Documents, at law, in equity or otherwise in respect of any guaranty, security or other liability for any Guaranteed Obligations, in any order and by any manner thereby permitted;

(G) any bankruptcy, reorganization, arrangement, liquidation, insolvency, dissolution, termination, reorganization or like change in the corporate structure or existence of the Borrower or any other Person directly or indirectly liable for any Guaranteed Obligations;

(H) any manner of application of any payments by or amounts received or collected from any Person, by whomsoever paid and howsoever realized, whether in reduction of any Guaranteed Obligations or any other obligations of the Borrower or any other Person directly or indirectly liable for any Guaranteed Obligations, regardless of what Guaranteed Obligations may remain unpaid after any such application; or

(I) any other circumstance that might otherwise constitute a legal or equitable discharge of, or a defense, set-off or counterclaim available to, the Borrower, any Guarantor or a surety or guarantor generally, other than the occurrence of all of the following: (x) the payment in full in cash of the Guaranteed Obligations (other than contingent and indemnification obligations not then due and payable), (y) the termination of the Commitments and the termination or expiration of all Letters of Credit under the Credit Agreement, and (z) the termination of, and settlement of all obligations of the Borrower or any of its Subsidiaries under, each Permitted Hedge Agreement to which any Hedge Party is a party (the events in clauses (x), (y) and (z) above, collectively, the “Termination Requirements”).

Signature Page to Guaranty Agreement

1.3 Certain Waivers. Each Guarantor hereby knowingly, voluntarily and expressly waives:

(A) presentment, demand for payment, demand for performance, protest and notice of any other kind, including, without limitation, notice of nonpayment or other nonperformance (including notice of default under any Credit Document with respect to any Guaranteed Obligations), protest, dishonor, acceptance hereof, extension of additional credit to the Borrower and of any of the matters referred to in **Section 1.2** and of any rights to consent thereto;

(B) any right to require the Guaranteed Parties or any of them, as a condition of payment or performance by such Guarantor hereunder, to proceed against, or to exhaust or have resort to any collateral or other security from or any deposit balance or other credit in favor of, the Borrower, any other Guarantor or any other Person directly or indirectly liable for any Guaranteed Obligations, or to pursue any other remedy or enforce any other right; and any other defense based on an election of remedies with respect to any collateral or other security for any Guaranteed Obligations or for any guaranty or other liability in respect thereof, notwithstanding that any such election (including any failure to pursue or enforce any rights or remedies) may impair or extinguish any right of indemnification, contribution, reimbursement or subrogation or other right or remedy of any Guarantor against the Borrower, any other Guarantor or any other Person directly or indirectly liable for any Guaranteed Obligations or any such collateral or other security;

(C) any right or defense based on or arising by reason of any right or defense of the Borrower or any other Person, including, without limitation, any defense based on or arising from a lack of authority or other disability of the Borrower or any other Person, the invalidity or unenforceability of any Guaranteed Obligations or any Credit Document or other agreement or instrument delivered pursuant thereto, or the cessation of the liability of the Borrower for any reason other than the satisfaction of the Termination Requirements;

(D) any defense based on any Guaranteed Party's acts or omissions in the administration of the Guaranteed Obligations, any guaranty, security or other liability in respect thereof or any collateral or other security for any of the foregoing, and promptness, diligence, or any requirement that any Guaranteed Party create, protect, perfect, secure, insure, continue or maintain any Liens in any such security;

(E) any right to assert against any Guaranteed Party, as a defense, counterclaim, crossclaim or set-off, any defense, counterclaim, claim, right of recoupment or set-off that it may at any time have against any Guaranteed Party (including, without limitation, failure of consideration, fraud, fraudulent inducement, statute of limitations, payment, accord and satisfaction and usury), other than compulsory counterclaims and other than the payment in full in cash of the Guaranteed Obligations; and

Signature Page to Guaranty Agreement

(F) any defense based on or afforded by any applicable law that limits the liability of or exonerates guarantors or sureties or that may in any other way conflict with the terms of this Guaranty.

1.4 No Subrogation. Each Guarantor hereby agrees that, until satisfaction of the Termination Requirements, it will not exercise or seek to exercise any claim or right that it may have against the Borrower or any other Guarantor at any time as a result of any payment made under or in connection with this Guaranty or the performance or enforcement hereof, including any right of subrogation to the rights of any of the Guaranteed Parties against the Borrower or any other Guarantor, any right of indemnity, contribution or reimbursement against the Borrower or any other Guarantor (including rights of contribution as set forth in **Section 1.1(iii)**), any right to enforce any remedies of any Guaranteed Party against the Borrower or any other Guarantor, or any benefit of, or any right to participate in, any security held by any Guaranteed Party to secure payment of the Guaranteed Obligations, in each case whether such claims or rights arise by contract, statute (including without limitation the Bankruptcy Code), common law or otherwise. Each Guarantor further agrees that all indebtedness and other obligations, whether now or hereafter existing, of the Borrower or any other Subsidiary of the Borrower to such Guarantor, including, without limitation, any such indebtedness in any proceeding under the Bankruptcy Code and any intercompany receivables, together with any interest thereon, shall be, and hereby are, subordinated and made junior in right of payment to the Guaranteed Obligations. Each Guarantor further agrees that if any amount shall be paid to or any distribution received by any Guarantor (i) on account of any such indebtedness at any time after the occurrence and during the continuance of an Event of Default, or (ii) on account of any such rights of subrogation, indemnity, contribution or reimbursement at any time prior to the satisfaction of the Termination Requirements, such amount or distribution shall be deemed to have been received and to be held in trust for the benefit of the Guaranteed Parties, and shall forthwith be delivered to the Administrative Agent in the form received (with any necessary endorsements in the case of written instruments), to be applied against the Guaranteed Obligations, whether or not matured, in accordance with the terms of the applicable Credit Documents and without in any way discharging, limiting or otherwise affecting the liability of such Guarantor under any other provision of this Guaranty. Additionally, in the event the Borrower or any other Credit Party becomes a “debtor” within the meaning of the Bankruptcy Code, the Administrative Agent shall be entitled, at its option, on behalf of the Guaranteed Parties and as attorney-in-fact for each Guarantor, and is hereby authorized and appointed by each Guarantor, to file proofs of claim on behalf of each relevant Guarantor and vote the rights of each such Guarantor in any plan of reorganization, and to demand, sue for, collect and receive every payment and distribution on any indebtedness of the Borrower or such Credit Party to any Guarantor in any such proceeding, each Guarantor hereby assigning to the Administrative Agent all of its rights in respect of any such claim, including the right to receive payments and distributions in respect thereof.

1.5 Representations and Warranties. Each Guarantor hereby represents and warrants to the Guaranteed Parties that, as to itself, all of the representations and warranties relating to it contained in the Credit Agreement qualified as to materiality are true and correct and those not so qualified are true and correct in all material respects.

1.6 Financial Condition of Borrower. Each Guarantor represents that it has knowledge of the Borrower’s financial condition and affairs and that it has adequate means to

Signature Page to Guaranty Agreement

obtain from the Borrower on an ongoing basis information relating thereto and to the Borrower's ability to pay and perform the Guaranteed Obligations, and agrees to assume the responsibility for keeping, and to keep, so informed for so long as this Guaranty is in effect with respect to such Guarantor. Each Guarantor agrees that the Guaranteed Parties shall have no obligation to investigate the financial condition or affairs of the Borrower for the benefit of any Guarantor nor to advise any Guarantor of any fact respecting, or any change in, the financial condition or affairs of the Borrower that might become known to any Guaranteed Party at any time, whether or not such Guaranteed Party knows or believes or has reason to know or believe that any such fact or change is unknown to any Guarantor, or might (or does) materially increase the risk of any Guarantor as guarantor, or might (or would) affect the willingness of any Guarantor to continue as a guarantor of the Guaranteed Obligations.

1.7 Payments; Application; Set-Off.

(i) Each Guarantor agrees that, upon the failure of the Borrower to pay any Guaranteed Obligations when and as the same shall become due (whether at the stated maturity, by acceleration or otherwise), and without limitation of any other right or remedy that any Guaranteed Party may have at law, in equity or otherwise against such Guarantor, such Guarantor will, subject to the provisions of **Section 1.1(ii)**, forthwith pay or cause to be paid to the Administrative Agent, for the benefit of the Guaranteed Parties, an amount equal to the amount of the Guaranteed Obligations then due and owing as aforesaid.

(ii) All payments made by each Guarantor hereunder will be made in Dollars to the Administrative Agent, without set-off, counterclaim or other defense and, in accordance with the Credit Agreement, free and clear of and without deduction for any Taxes, each Guarantor hereby agreeing to comply with and be bound by the provisions of the Credit Agreement in respect of all payments made by it hereunder.

(iii) All payments made hereunder shall be applied in accordance with the provisions of **Section 2.12** of the Credit Agreement. For purposes of applying amounts in accordance with this Section, the Administrative Agent shall be entitled to rely upon any Guaranteed Party that has entered into a Permitted Hedge Agreement with the Borrower or any of its Subsidiaries for a determination (which such Guaranteed Party agrees to provide or cause to be provided upon request of the Administrative Agent) of the outstanding Guaranteed Obligations owed to such Guaranteed Party under any such Permitted Hedge Agreement. Unless it has actual knowledge (including by way of written notice from any such Guaranteed Party) to the contrary, the Administrative Agent, in acting hereunder, shall be entitled to assume that no Permitted Hedge Agreements or Guaranteed Obligations in respect thereof are in existence between any Guaranteed Party and the Borrower or any of its Subsidiaries. If any Lender or Affiliate thereof that is a party to a Permitted Hedge Agreement with the Borrower or any of its Subsidiaries (the obligations of the Borrower under which are Guaranteed Obligations) ceases to be a Lender or Affiliate thereof, such former Lender or Affiliate thereof shall nevertheless continue to be a Guaranteed Party hereunder with respect to the Guaranteed Obligations under such Permitted Hedge Agreement.

(iv) Upon and at any time after the occurrence and during the continuance of any Event of Default, each Guaranteed Party and each of their respective Affiliates is hereby

Signature Page to Guaranty Agreement

authorized at any time and from time to time, to the fullest extent permitted by applicable law, to set off and apply any and all deposits (general or special, time or demand, provisional or final, in whatever currency) at any time held and other obligations (in whatever currency) at any time owing by such Guaranteed Party or any such Affiliate to or for the credit or the account of any Guarantor against any and all of the obligations of such Guarantor now or hereafter existing under this Guaranty or any other Credit Document to such Guaranteed Party, irrespective of whether or not such Guaranteed Party shall have made any demand under this Guaranty or any other Credit Document and although such obligations of such Guarantor may be contingent or unmatured or are owed to a branch or office of such Guaranteed Party different from the branch or office holding such deposit or obligated on such indebtedness. The rights of each Guaranteed Party and their respective Affiliates under this subsection are in addition to other rights and remedies (including other rights of setoff) that such Guaranteed Parties or their respective Affiliates may have. Each Guaranteed Party agrees to notify the Borrower and the Administrative Agent promptly after any such setoff and application; provided that the failure to give such notice shall not affect the validity of such setoff and application.

1.8 No Waiver. The rights and remedies of the Guaranteed Parties expressly set forth in this Guaranty and the other Credit Documents are cumulative and in addition to, and not exclusive of, all other rights and remedies available at law, in equity or otherwise. No failure or delay on the part of any Guaranteed Party in exercising any right, power or privilege shall operate as a waiver thereof, nor shall any single or partial exercise of any such right, power or privilege preclude any other or further exercise thereof or the exercise of any other right, power or privilege or be construed to be a waiver of any Default or Event of Default. No course of dealing between any of the Guarantors and the Guaranteed Parties or any Related Party thereof shall be effective to amend, modify or discharge any provision of this Guaranty or any other Credit Document or to constitute a waiver of any Default or Event of Default. No notice to or demand upon any Guarantor in any case shall entitle such Guarantor or any other Guarantor to any other or further notice or demand in similar or other circumstances or constitute a waiver of the right of any Guaranteed Party to exercise any right or remedy or take any other or further action in any circumstances without notice or demand.

1.9 Enforcement. The Guaranteed Parties agree that, except as provided in **Section 1.7(iv)**, this Guaranty may be enforced only by the Administrative Agent, acting upon the instructions or with the consent of the Required Lenders as provided for in the Credit Agreement, and that no Guaranteed Party shall have any right individually to enforce or seek to enforce this Guaranty or to secure the payment and performance of the Guarantors' obligations hereunder. The obligations of each Guarantor hereunder are independent of the Guaranteed Obligations, and a separate action or actions may be brought against each Guarantor whether or not action is brought against the Borrower or any other Guarantor and whether or not the Borrower or any other Guarantor is joined in any such action. Each Guarantor agrees that to the extent all or part of any payment of the Guaranteed Obligations made by any Person is subsequently invalidated, declared to be fraudulent or preferential, set aside or required to be repaid by or on behalf of any Guaranteed Party to a trustee, receiver or any other party under any Insolvency Laws (the amount of any such payment, a "Reclaimed Amount"), then, to the extent of such Reclaimed Amount, this Guaranty shall continue in full force and effect or be revived and reinstated, as the case may be, as to the Guaranteed Obligations intended to be satisfied as if such payment had not been received; and each Guarantor acknowledges that the term "Guaranteed Obligations" includes all Reclaimed Amounts that may arise from time to time.

Signature Page to Guaranty Agreement

1.10 Amendments, Waivers, etc. . No amendment, modification, waiver, discharge or termination of, or consent to any departure by any Guarantor from, any provision of this Guaranty, shall be effective unless in a writing signed by the Administrative Agent and such of the Lenders as may be required under the provisions of the Credit Agreement to concur in the action then being taken, and then the same shall be effective only in the specific instance and for the specific purpose for which given.

1.11 Addition, Release of Guarantors. . Each Guarantor recognizes that the provisions of the Credit Agreement require Persons that become Subsidiaries of the Borrower and that are not already parties hereto to become Guarantors hereunder (excluding any Foreign Subsidiary to the extent (and for as long as) doing so would cause adverse tax or regulatory consequences to the Borrower) by executing a Guarantor Accession, and agrees that its obligations hereunder shall not be discharged, limited or otherwise affected by reason of the same, or by reason of the Administrative Agent's actions in effecting the same or in releasing any Guarantor hereunder, in each case without the necessity of giving notice to or obtaining the consent of any other Guarantor.

1.12 Continuing Guaranty; Term; Successors and Assigns; Assignment; Survival. . This Guaranty is a continuing guaranty and covers all of the Guaranteed Obligations as the same may arise and be outstanding at any time and from time to time from and after the date hereof, and shall (i) remain in full force and effect until satisfaction of all of the Termination Requirements (provided that the indemnification provisions of clause (ii) of **Section 1(a)** shall survive any termination of this Guaranty), (ii) be binding upon and enforceable against each Guarantor and its successors and assigns (provided, however, that no Guarantor may sell, assign or transfer any of its rights, interests, duties or obligations hereunder without the prior written consent of the Lenders) and (iii) inure to the benefit of and be enforceable by each Guaranteed Party and its successors and permitted assigns. Without limiting the generality of clause (iii) above, any Guaranteed Party may, in accordance with the provisions of the Credit Agreement, assign all or a portion of the Guaranteed Obligations held by it (including by the sale of participations), whereupon each Person that becomes the holder of any such Guaranteed Obligations shall (except as may be otherwise agreed between such Guaranteed Party and such Person) have and may exercise all of the rights and benefits in respect thereof granted to such Guaranteed Party under this Guaranty or otherwise. Each Guarantor hereby irrevocably waives notice of and consents in advance to the assignment as provided above from time to time by any Guaranteed Party of all or any portion of the Guaranteed Obligations held by it and of the corresponding rights and interests of such Guaranteed Party hereunder in connection therewith. All representations, warranties, covenants and agreements herein shall survive the execution and delivery of this Guaranty and any Guarantor Accession.

1.13 Governing Law; Consent to Jurisdiction; Appointment of Borrower as Representative, Process Agent, Attorney-in-Fact. .

Signature Page to Guaranty Agreement

(i) This Guaranty shall be governed by, and construed and enforced in accordance with, the laws of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).

(ii) Each Guarantor irrevocably and unconditionally submits, for itself and its property, to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, in any action or proceeding arising out of or relating to this Guaranty or any other Credit Document, or for recognition or enforcement of any judgment, and each of the parties hereto irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding may be heard and determined in such state court or, to the fullest extent permitted by applicable law, in such federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Guaranty or in any other Credit Document shall affect any right that any Guaranteed Party may otherwise have to bring any action or proceeding relating to this Guaranty or any other Credit Document against any Guarantor or its properties in the courts of any jurisdiction.

(iii) Each Guarantor irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any objection that it may now or hereafter have to the laying of venue of any action or proceeding arising out of or relating to this Guaranty or any other Credit Document in any court referred to in **Section 13(b)**. Each of the parties hereto hereby irrevocably waives, to the fullest extent permitted by applicable law, the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court.

(iv) Each Guarantor hereby irrevocably designates and appoints the Borrower as its designee, appointee and agent to receive on its behalf all service of process in any such action or proceeding and any other notice or communication hereunder, irrevocably consents to service of process in any such action or proceeding in the manner provided for notices in **Section 15**, and irrevocably agrees that service so made shall be effective and binding upon such Guarantor in every respect and that any other notice or communication given to the Borrower at the address and in the manner specified herein shall be effective notice to such Guarantor. Nothing in this Section shall affect the right of any party to serve legal process in any other manner permitted by law or affect the right of any Guaranteed Party to bring any action or proceeding against any Guarantor in the courts of any other jurisdiction.

(v) Further, each Guarantor does hereby irrevocably make, constitute and appoint the Borrower as its true and lawful attorney-in-fact, with full authority in its place and stead and in its name, the Borrower's name or otherwise, and with full power of substitution in the premises, from time to time in the Borrower's discretion to agree on behalf of, and sign the name of, such Guarantor to any amendment, modification or supplement to, restatement of, or waiver or consent in connection with, this Guaranty, any other Credit Document or any document or instrument pursuant hereto or thereto, and to take any other action and do all other things on behalf of such Guarantor that the Borrower may deem necessary or advisable to carry out and accomplish the purposes of this Guaranty and the other Credit Documents. The Borrower will not be liable for any act or omission nor for any error of judgment or mistake of fact unless the same shall occur as a result of the gross negligence or willful misconduct of the Borrower. This

Signature Page to Guaranty Agreement

power, being coupled with an interest, is irrevocable by any Guarantor for so long as this Guaranty shall be in effect with respect to such Guarantor. By its signature hereto, the Borrower consents to its appointment as provided for herein and agrees promptly to distribute all process, notices and other communications to each Guarantor.

1.14 Waiver of Jury Trial. EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS GUARANTY OR ANY OTHER CREDIT DOCUMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH PARTY HERETO (A) CERTIFIES THAT NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PERSON HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PERSON WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER AND (B) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HERETO HAVE BEEN INDUCED TO ENTER INTO THIS GUARANTY AND THE OTHER CREDIT DOCUMENTS BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION.

1.15 Notices. All notices and other communications provided for herein shall be in writing and shall be delivered by hand or overnight courier service, mailed by certified or registered mail or sent by telecopier as follows: (a) if to any Guarantor, in care of the Borrower and at the Borrower's address for notices set forth in the Credit Agreement, and (b) if to any Guaranteed Party, at its address for notices set forth in the Credit Agreement; in each case, as such addresses may be changed from time to time pursuant to the Credit Agreement, and with copies to such other Persons as may be specified under the provisions of the Credit Agreement. Notices sent by hand or overnight courier service, or mailed by certified or registered mail, shall be deemed to have been given when received; notices sent by telecopier shall be deemed to have been given when sent (except that, if not given during normal business hours for the recipient, shall be deemed to have been given at the opening of business on the next business day for the recipient). Notices delivered through electronic communications to the extent provided in the Credit Agreement shall be effective as provided therein.

1.16 Severability. To the extent any provision of this Guaranty is prohibited by or invalid under the applicable law of any jurisdiction, such provision shall be ineffective only to the extent of such prohibition or invalidity and only in such jurisdiction, without prohibiting or invalidating such provision in any other jurisdiction or the remaining provisions of this Guaranty in any jurisdiction.

1.17 Construction. The headings of the various sections and subsections of this Guaranty have been inserted for convenience only and shall not in any way affect the meaning or construction of any of the provisions hereof. Unless the context otherwise requires, words in the singular include the plural and words in the plural include the singular.

1.18 Counterparts; Effectiveness. This Guaranty may be executed in any number of counterparts and by different parties hereto on separate counterparts, each of which when so

Signature Page to Guaranty Agreement

executed and delivered shall be an original, but all of which shall together constitute one and the same instrument. This Guaranty shall become effective, as to any Guarantor, upon the execution and delivery by such Guarantor of a counterpart hereof or a Guarantor Accession.

IN WITNESS WHEREOF , the parties have caused this Guaranty to be executed under seal by their duly authorized officers as of the date first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

[NAME OF GUARANTOR]
[NAME OF GUARANTOR]
[REPEAT]

By: _____
Title: _____

Accepted and agreed to:

**WELLS FARGO BANK, NATIONAL
ASSOCIATION,**
as Administrative Agent

By: _____
Name: _____
Title: _____

EXHIBIT A

GUARANTOR ACCESSION

THIS GUARANTOR ACCESSION (this “Accession”), dated as of _____, _____, is executed and delivered by [NAME OF NEW GUARANTOR], a _____ corporation (the “New Guarantor”), pursuant to the Guaranty Agreement referred to hereinbelow.

Reference is made to the Credit Agreement, dated as of _____, 2010, among **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), the Lenders party thereto, the Administrative Agent, the Issuing Lender, Swingline Lender, and the Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”). In connection with and as a condition to the initial and continued extensions of credit under the Credit Agreement, the Borrower and certain of its Subsidiaries have executed and delivered a Guaranty Agreement, dated as of _____, 2010 (as amended, modified, restated or supplemented from time to time, the “Guaranty Agreement”), pursuant to which such Subsidiaries have guaranteed the payment in full of the obligations of the Borrower under the Credit Agreement and the other Credit Documents (as defined in the Credit Agreement). Capitalized terms used herein without definition shall have the meanings given to them in the Guaranty Agreement.

The Borrower has agreed under the Credit Agreement to cause each of its future Subsidiaries (excluding any Foreign Subsidiary to the extent (and for as long as) doing so would cause adverse tax or regulatory consequences to the Borrower) to become a party to the Guaranty Agreement as a guarantor thereunder. The New Guarantor is a Subsidiary of the Borrower. The New Guarantor will obtain benefits as a result of the continued extension of credit to the Borrower under the Credit Agreement, which benefits are hereby acknowledged, and, accordingly, desire to execute and deliver this Accession. Therefore, in consideration of the foregoing and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and to induce the Lenders to continue to extend credit to the Borrower under the Credit Agreement, the New Guarantor hereby agrees as follows:

1. The New Guarantor hereby joins in and agrees to be bound by each and all of the provisions of the Guaranty Agreement as a Guarantor thereunder. In furtherance (and without limitation) of the foregoing, pursuant to Section 1.1 of the Guaranty Agreement, the New Guarantor hereby irrevocably, absolutely and unconditionally, and jointly and severally with each other Guarantor, guarantees to the Guaranteed Parties the full and prompt payment, at any time and from time to time as and when due (whether at the stated maturity, by acceleration or otherwise), of all of the Guaranteed Obligations, and agrees to pay or reimburse upon demand all other obligations of the Guarantors under the Guaranty Agreement, all on the terms and subject to the conditions set forth in the Guaranty Agreement.

2. The New Guarantor hereby represents and warrants that after giving effect to this Accession, each representation and warranty related to it contained in the Credit Agreement qualified as to materiality is true and correct and each not so qualified is true and correct in all material respects, in each case with respect to the New Guarantor as of the date hereof.

3. This Accession shall be a Credit Document (within the meaning of such term under the Credit Agreement), shall be binding upon and enforceable against the New Guarantor and its successors and assigns, and shall inure to the benefit of and be enforceable by each Guaranteed Party and its successors and permitted assigns. This Accession and its attachments are hereby incorporated into the Guaranty Agreement and made a part thereof.

IN WITNESS WHEREOF , the New Guarantor has caused this Accession to be executed under seal by its duly authorized officer as of the date first above written.

[NAME OF NEW GUARANTOR]

By: _____

Title: _____

Signature Page to Guaranty Agreement

EXHIBIT F

FORM OF FINANCIAL CONDITION CERTIFICATE

THIS FINANCIAL CONDITION CERTIFICATE (this “Certificate”) is delivered pursuant to the Credit Agreement, dated as of _____, 2010 (the “Credit Agreement”), among **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), the Lenders from time to time parties thereto, Wells Fargo Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent. Capitalized terms used herein without definition shall have the meanings given to such terms in the Credit Agreement.

The undersigned hereby certifies for and on behalf of the Borrower as follows:

1.1 Capacity. The undersigned is, and at all pertinent times mentioned herein has been, the duly qualified and acting chief financial officer of the Borrower, and in such capacity has responsibility for the management of the Borrower’s financial affairs and for the preparation of the Borrower’s financial statements. The undersigned has, together with other officers of the Borrower, acted on behalf of the Borrower in connection with the negotiation and consummation of the Credit Agreement, the initial extensions of credit made under the Credit Agreement, and the other transactions described therein.

1.2 Procedures. For purposes of this Certificate, the undersigned has, as of or prior to the date hereof, undertaken the following activities in connection herewith:

- (a) The undersigned has carefully reviewed the following:
 - (i) the contents of this Certificate;
 - (ii) the Credit Agreement (including the exhibits and schedules thereto); and
 - (iii) the audited and unaudited financial statements of the Borrower and its Subsidiaries referred to in **Section 4.11(a)** of the Credit Agreement.
- (b) Additionally, the undersigned has prepared or supervised the preparation of and has reviewed projected consolidated balance sheets and statements of income and cash flows of the Borrower and its Subsidiaries prepared on an annual basis through the end of fiscal year 2013, copies of which projected financial statements are attached hereto as Annex A (the “Projections”).
- (c) The undersigned, together with the other officers and personnel of the Borrower and its Subsidiaries who were principally and directly involved in the preparation of the Projections, have relied on historical financial and other information and upon information with respect to sales, costs and other data obtained in discussions with executive officers of the Borrower and other officers and supervisory personnel directly and primarily responsible for the various

Signature Page to Guaranty Agreement

operations involved. The undersigned has reexamined the Projections as of the date hereof, and has considered the continuing reasonableness of the assumptions set forth therein and the effect thereon of any changes since the date of preparation thereof on the financial condition set forth and the results projected therein.

- (d) The undersigned has made inquiries of certain other officers and personnel of the Borrower and its Subsidiaries with responsibility for financial and accounting matters regarding (i) whether the unaudited financial statements described in paragraph 2.1(c) above are in conformity with GAAP applied on a basis consistent with that of the audited financial statements described in paragraph 2.1(c) above (subject to the absence of footnotes required by GAAP and subject to normal year-end adjustments), and whether notes omitted from such unaudited financial statements would have disclosed any new information that would be necessary to make the statements contained therein, taken as a whole, not misleading, and (ii) whether such persons were aware of any events or conditions that, as of the date hereof, would cause the statements made in paragraph 3 below to be untrue in any material respect.
- (e) With respect to any contingent liabilities of the Borrower and its Subsidiaries on a pro forma basis after giving effect to the transactions contemplated by the Credit Agreement, the undersigned:
 - (i) has inquired of certain officers and other personnel of the Borrower and its Subsidiaries who have responsibility for the legal, financial and accounting affairs of the Borrower and its Subsidiaries, as to the existence and estimated amounts of all contingent liabilities known to them;
 - (ii) has confirmed with senior accounting officers of the Borrower that, to the best of such officers' knowledge, (i) all appropriate items have been included in contingent liabilities made known to the undersigned in the course of the inquiry of the undersigned in connection herewith, and (ii) the amounts relating thereto were the maximum estimated amounts of liability reasonably likely to result therefrom as of the date hereof, and
 - (iii) confirms that, to the best of the undersigned's knowledge, all material contingent liabilities that may arise from any pending litigation, asserted claims and assessments, guarantees, uninsured risks, and other relevant contingencies and circumstances have been considered in making the certification set forth herein, and with respect to each such contingent liability the maximum estimated amount of liability with respect thereto was used in making such certification.
- (f) The undersigned has conferred with counsel to the Borrower for the purpose of discussing the meaning of the contents of this Certificate.

Signature Page to Guaranty Agreement

1.3 Certifications. Based on the foregoing, the undersigned hereby certifies as follows:

- (a) The Borrower and its Subsidiaries, taken as a whole, are not insolvent now, and the incurrence by the Borrower and its Subsidiaries of their respective liabilities and obligations pursuant to the Credit Agreement and the other Credit Documents and the initial extensions of credit made under the Credit Agreement, the payment of transaction fees and expenses related to the foregoing and the consummation of the other transactions contemplated thereby will not render them insolvent taken as a whole. The undersigned understands that, in this context, (i) “insolvent” means that the present fair saleable value of assets is less than the amount that will be required to be paid on or in respect of the existing debts as such debts mature in the ordinary course, (ii) “fair value” of assets means the aggregate amount that could be realized within a reasonable time, either through collection or sale of such assets at the regular market value as an ongoing business, conceiving of the latter as the amount that could be obtained for the property in question within such period by a capable and diligent seller from an interested buyer who is willing to purchase under ordinary selling conditions, and (iii) “debts” includes any legal liability, whether matured or unmatured, liquidated or unliquidated, absolute, fixed or contingent, including any guaranty or other contingent obligation.
- (b) The undersigned reasonably believes that, by the incurrence of their respective liabilities and obligations pursuant to the Credit Agreement and the other Credit Documents and the initial extensions of credit made under the Credit Agreement, the payment of transaction fees and expenses related to the foregoing and the consummation of the other transactions contemplated thereby, the Borrower and its Subsidiaries, taken as a whole, will not incur debts beyond their ability to pay as they mature in the ordinary course (taking into account the timing and amounts of cash to be payable on or in respect of such debts). The foregoing conclusion is based in part on the Projections, which demonstrate that the cash flow of the Borrower and its Subsidiaries, after taking into account all anticipated uses of cash of each such Person, will at all times be sufficient to pay all amounts on or in respect of Indebtedness of such Persons when such amounts are required, in the ordinary course, to be paid (including without limitation scheduled payments pursuant to the Credit Agreement). The undersigned has concluded that the realization of current assets in the ordinary course of business should be sufficient to pay recurring current debt, short-term debt and long-term debt as such debts mature in their ordinary course, that the cash flow (including earnings plus non-cash charges to earnings) should be sufficient to provide cash necessary to repay loans made under the Credit Agreement and other long-term indebtedness as such debt matures in its ordinary course, and that the Borrower should have sufficient availability under the Credit Agreement to satisfy its working capital and short-term liquidity requirements.
- (c) After giving effect to the initial extensions of credit made under the Credit Agreement, the payment of transaction fees and expenses related to the foregoing

Signature Page to Guaranty Agreement

and the consummation of the other transactions contemplated thereby, the assets of the Borrower and its Subsidiaries, taken as a whole, do not constitute “unreasonably small capital” (within the meaning of Section 548(a) of the Bankruptcy Code, 11 U.S.C. Section 548(a)) for such Persons to carry on their businesses as now conducted and as proposed to be conducted, taking into account the particular capital requirements of the businesses conducted and to be conducted by them and the availability of capital in respect thereof (with reference to, without limitation, the Projections and the Borrower’s available credit capacity).

- (d) Neither the Borrower nor any of its Subsidiaries have executed the Credit Agreement or any other documents mentioned therein, or made any transfer or incurred any obligations thereunder, with intent to hinder, delay or defraud either present or future creditors of such Person.
- (e) The statements made herein by the undersigned are based upon the personal knowledge of the undersigned, or upon reports and other information given to the undersigned by supervisory personnel of the Borrower having principal and direct responsibility for the reports and information given, and who in the opinion of the undersigned are reliable and entitled to be relied upon. The statements made herein are made in good faith and, to the best of the knowledge and belief of the undersigned, and subject to the assumptions set forth in Annex A, are reasonable in all material respects.

(f) The undersigned understands that the Lenders have performed their own review and analysis of the financial condition of the Borrower and its Subsidiaries, but that the Lenders are relying on the foregoing statements in connection with the extension of credit to the Borrower pursuant to the Credit Agreement.

Executed on behalf of the Borrower as of the date first written above.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

Signature Page to Guaranty Agreement

SCHEDULES

DISCLOSURE SCHEDULES

CREDIT AGREEMENT

among

INTERCONTINENTALEXCHANGE, INC.,

as Borrower

THE LENDERS NAMED THEREIN,

WELLS FARGO BANK, NATIONAL ASSOCIATION

(successor by merger to Wachovia Bank, National Association)

as Administrative Agent

and

BANK OF AMERICA, N.A.

as Syndication Agent

\$725,000,000 Senior Revolving Credit Facilities

Dated as of March 31, 2010

Attached hereto are the Borrower's "Schedules" as contemplated by the Credit Agreement of even date herewith (the "Agreement"), by and among IntercontinentalExchange, Inc., a Delaware corporation (the "Borrower" or "ICE"), the Lenders named therein, Wells Fargo Bank, National Association (successor by merger to Wachovia Bank, National Association), as Administrative Agent, and Bank of America N.A., as Syndication Agent. Capitalized terms used, but not otherwise defined herein, have the meanings given to such terms in the Agreement.

The disclosures on the Borrower's Schedules may be over-inclusive, considering the materiality standard contained in, and the disclosures required by, the provisions of the Agreement corresponding to the respective disclosure schedule, and the fact that any item or matter is disclosed on the attached Schedules shall not be deemed to set or establish different standards of materiality or required disclosures from those set forth in the corresponding provisions of the Agreement. Furthermore, the disclosure of any item or information in the Schedules is not an admission that such item or information (or any non-disclosed item or information of comparable or greater significance) is material, is required to have been disclosed herein, or is of a nature that would have a Material Adverse Effect.

Schedule 1.1(a)Commitments and
Notice Addresses

Commitments

<u>Lender</u>	<u>Dollar Commitment</u>	<u>Multicurrency Commitment</u>
Wells Fargo Bank, National Association (successor by merger to Wachovia Bank, National Association)	\$ 65,000,000	\$ 23,000,000
Bank of America, N.A.	\$ 65,000,000	\$ 23,000,000
Bank of Montreal	\$ 55,000,000	\$ 20,000,000
Societe Generale	\$ 55,000,000	\$ 20,000,000
Bank of Tokyo-Mitsubishi UFJ, New York Branch	\$ 55,000,000	\$ 20,000,000
Regions Bank	\$ 44,000,000	\$ 16,000,000
Deutsche Bank AG New York Branch	\$ 36,000,000	\$ 14,000,000
Morgan Stanley Bank, N.A.	\$ 36,000,000	\$ 14,000,000
Fifth Third Bank	\$ 35,000,000	—
The Bank of New York Mellon	\$ 25,000,000	—
Chang Hwa Commercial Bank, Ltd., New York Branch	\$ 15,000,000	—
Taiwan Cooperative Bank, Los Angeles Branch	\$ 15,000,000	—
Bank of Taiwan, New York Agency	\$ 15,000,000	—
E. Sun Bank	\$ 10,000,000	—
First Commercial Bank, New York Agency	\$ 10,000,000	—
Hua Nan Commercial Bank, Ltd.	\$ 10,000,000	—
Taiwan Business Bank	\$ 10,000,000	—
Mega International Commercial Bank Co., Ltd.	\$ 9,000,000	—
Bank of Communications Co., Ltd, New York Branch	\$ 5,000,000	—
The Chiba Bank, Ltd., New York Branch	\$ 5,000,000	—
Total	\$575,000,000	\$150,000,000

Notice Addresses

Party	Address
Borrower	IntercontinentalExchange, Inc. 2100 River Edge Parkway, 5 th Floor Atlanta, Georgia 30328 Attention: Legal Department Telephone: (770) 738-2106 Telecopy: (770) 857-4755
Wells Fargo Bank, National Association	Instructions for wire transfers to the Administrative Agent: Wells Fargo Bank, National Association ABA Routing No. 053000219 Charlotte, North Carolina Account Number: 5000000147609 Account Name: IntercontinentalExchange Inc Attention: Syndication Agency Services Address for notices as Administrative Agent: Wells Fargo Bank, National Association 1525 W.T. Harris Blvd. Building 3A2, Mailcode NC 0680 Charlotte, North Carolina 28262 Attention: Syndication Agency Services Telephone: (704) 383-3721 Telecopy: (704) 383-0288 Address for notices as Swingline Lender: Wells Fargo Bank, National Association 1525 W.T. Harris Blvd. Building 3A2, Mailcode NC 0680 Charlotte, North Carolina 28262 Attention: Syndication Agency Services Telephone: (704) 383-3721 Telecopy: (704) 383-0288 with a copy to: Wells Fargo Bank, National Association 171 17th Street, N.W. Atlanta, Georgia 30363 Mailcode GA4507 Attention: Elaine Eaton Telephone: (404) 214-3627 Telecopy: (404) 861-0604 Attention: Mendel Lay Telephone: (404) 214-3849 Telecopy: (404) 214-3861

Schedule 1.1(b)
Existing Letters of Credit

1. Irrevocable Standby Letter of Credit Number SM230917W issued by Wachovia Bank, National Association (predecessor to Wells Fargo Bank, National Association) on April 22, 2008 for the benefit of United States Dept. of Agriculture—Farm Service Agency, on account of ICE Futures U.S., Inc., in the amount of \$75,000.00.

Schedule 1.1(c)
Mandatory Costs Rate

1. Definitions

In this Exhibit:

“ **Act** ” means the Bank of England Act of 1998.

The terms “ **Eligible Liabilities** ” and “ **Special Deposits** ” have the meanings ascribed to them under or pursuant to the Act or by the Bank of England (as may be appropriate), on the day of the application of the formula.

“ **Fee Base** ” has the meaning ascribed to it for the purposes of, and shall be calculated in accordance with, the Fees Regulations.

“ **Fees Regulations** ” means, as appropriate, either:

- (a) the Banking Supervision (Fees) Regulations 1998; or
- (b) such regulations as from time to time may be in force, relating to the payment of fees for banking supervision in respect of periods subsequent to January 1, 2000.

“ **FSA** ” means the Financial Services Authority.

Any reference to a provision of any statute, directive, order or regulation herein is a reference to that provision as amended or re-enacted from time to time.

2. Calculation of the Mandatory Costs Rate

The Mandatory Costs Rate is an addition to the interest rate on each LIBOR Loan or any other sum on which interest is to be calculated to compensate the Lenders for the cost attributable to such LIBOR Loan or such sum resulting from the imposition from time to time under or pursuant to the Act and/or by the Bank of England and/or the FSA (or other United Kingdom governmental authorities or agencies) of a requirement to place non-interest bearing or Special Deposits (whether interest bearing or not) with the Bank of England and/or pay fees to the FSA calculated by reference to the liabilities used to fund the relevant LIBOR Loan or such sum.

The “ **Mandatory Costs Rate** ” will be the rate determined by the Administrative Agent to be equal to the rate (rounded upward, if necessary, to the next higher 1/100 of 1%) resulting from the application of the following formula:

For Sterling:

$$\frac{XL + S(L-D) + F \times 0.01}{100-(X+S)}$$

For other Designated Foreign Currencies:

$$\frac{F \times 0.01}{300}$$

where on the day of application of the formula

- X is the percentage of Eligible Liabilities (in excess of any stated minimum) by reference to which Wells Fargo Bank, National Association ("WFB") is required under or pursuant to the Act to maintain cash ratio deposits with the Bank of England;
- L is the rate of interest (exclusive of Applicable Percentage and Mandatory Costs Rate) payable on that day on the related LIBOR Loan or unpaid sum pursuant to this Agreement;
- F is the rate of charge payable by WFB to the FSA pursuant to the Fees Regulations and expressed in pounds per £1 million of the Fee Base of WFB;
- S is the level of interest-bearing Special Deposits, expressed as a percentage of Eligible Liabilities, which WFB is required to maintain by the Bank of England (or other United Kingdom governmental authorities or agencies); and
- D is the percentage rate per annum payable by the Bank of England to WFB on Special Deposits.

(X, L, S and D are to be expressed in the formula as numbers and not as percentages. A negative result obtained from subtracting D from L shall be counted as zero.)

The Mandatory Costs Rate attributable to a LIBOR Loan or other sum for any period shall be calculated at or about 11:00 A.M. (London time) on the first day of such period for the duration of such period.

The determination of Mandatory Costs Rate by the Administrative Agent in relation to any period shall, in the absence of manifest error, be conclusive and binding on all parties hereto.

3. **Change of Requirements**

If there is any change in circumstance (including the imposition of alternative or additional requirements) which in the reasonable opinion of the Administrative Agent renders or will render the above formula (or any element thereof, or any defined term used therein) inappropriate or inapplicable, the Administrative Agent shall (with the written consent of the Borrower, which shall not be unreasonably withheld) be entitled to vary the same. Any such variation shall, in the absence of manifest error, be conclusive and binding on all parties and shall apply from the date specified in such notice.

Schedule 4.1
Corporate Organizations and Power

<u>Borrower</u>	<u>Jurisdiction of Organization</u>
IntercontinentalExchange, Inc.	Delaware
Subsidiary Guarantors	
Chatham Energy, LLC	Delaware
Creditex Group Inc.	Delaware
Creditex Holdco, LLC	Delaware
Creditex LLC	Delaware
Creditex Securities Corporation	Delaware
CreditTrade Inc.	Delaware
ICE Data Investment Group, LLC	Delaware
ICE Data Management Group, LLC	Delaware
ICE Data, LP	Delaware
ICE Futures U.S., Inc. (formerly known as CFC Acquisition Co.)	Delaware
ICE Markets, Inc.	Delaware
ICE US Holding Company GP LLC	Delaware
IntercontinentalExchange International, Inc.	Delaware
ICE Processing, LLC	Delaware
YellowJacket, Inc.	Delaware
eCOPS, LLC	New York
ICE Clear US, Inc. (formerly known as New York Clearing Corporation)	New York

Schedule 4.4

Governmental and Third-Party Authorization; Permits

None.

Schedule 4.5

Litigation

U.S. Department of Justice Antitrust Division Investigation of Credit Derivatives Market

The Borrower received a letter dated August 11, 2009 from the U.S. Department of Justice (the “DOJ”) that included a Civil Investigative Demand (“CID”) requiring the Borrower to produce certain documents and answer certain interrogatories related to the credit derivatives market. The Borrower operates businesses in the credit derivatives market in the U.S. through its Creditex division and through the operation of ICE Trust U.S., its U.S. credit default swap (“CDS”) clearing house and ICE Clear Europe, its European CDS clearing house. In connection with the acquisition of The Clearing Corporation (“TCC”) and the concurrent establishment of ICE Trust U.S., the Borrower entered into agreements with the various dealer/owners of TCC regarding the formation and operation of ICE Trust U.S. The CID seeks information and documents as part of an Antitrust Division industry investigation into violations of Sections 1 and 2 of the Sherman Act. The purpose of the CID is to investigate whether there has been or may be a violation of the Sherman Act “by conduct, activities, or proposed action of the following nature: agreements restraining competition in credit derivatives trading, processing, clearing, and information services, attempts to monopolize/monopoly maintenance of credit derivative information services.”

Information and documents requested by the CID are being provided to the DOJ on a rolling basis.

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European Climate Exchange (“ECX”) correspondence

ICE Futures Europe received a letter dated 4 February 2010 from Patrick Birley, Chief Executive of ECX, (“the ECX Letter”) stating that ECX had [***]

A conversation was subsequently held between Mr. Richard Sandor, representing ECX, and Mr. Jeff Sprecher on 4 February 2010. Mr. Sandor suggested to Mr. Sprecher that the ECX Letter had been sent inadvertently. Mr. Peniket subsequently responded to the ECX Letter confirming his understanding that the ECX Letter had been sent prematurely, and that it was not his intention to respond to the ECX Letter further, and requesting if this understanding was incorrect that Patrick Birley should respond to Mr. Peniket immediately in writing. No response has been received from Patrick Birley.

*** Confidential information on this page has been omitted and filed separately with the Commission. Confidential treatment has been requested with respect to the omitted portions.

Amirsaleh v. Board of Trade of the City of New York, Inc. and Intercontinental- Exchange, Inc.

This action was filed by a former NYBOT equity member in the Court of Chancery of the State of Delaware, New Castle County, on March 22, 2007, asserting that NYBOT breached the terms of the Merger Agreement between NYBOT and the Borrower, and breached the duty of good faith and fair dealing implicit in every contract, by allegedly failing to give plaintiff timely notice of the election deadline with respect to the merger consideration that would be paid to NYBOT equity members. The Plaintiff seeks shares of the Borrower's stock in an amount equal to the amount received by any member who made an all stock election, and seeks the issuance to him of two NYBOT trading memberships, which were not issued following the merger due to plaintiff's failure to own and pledge the shares of the Borrower's stock that were a pre-requisite to the issuance of such memberships.

The Borrower and NYBOT filed an Answer to the Complaint on April 23, 2007, denying the essential allegations and asserting as affirmative defenses that (1) the Complaint fails to state a claim upon which relief can be granted, (2) plaintiff's claims and requests for relief are barred by the doctrines of waiver, estoppel and/or acquiescence, (3) plaintiff lacks standing to assert claims for breach of the merger agreement, and (4) failure to take reasonable steps to mitigate the damages claimed. A motion for Judgment on the Pleading or in the alternative, for Summary Judgment was filed by defendants on June 11, 2008 and was decided on September 11, 2008. The court granted the motion insofar as the breach of contract claim was concerned and denied it with respect to the claim based on the implied covenant of good faith and fair dealing because the Court found there to be issues of fact in dispute that precluded the grant of summary judgment as a procedural matter. [***] Following the conclusion of discovery, Plaintiff filed a motion for Summary Judgment that was denied on November 9, 2009. The trial was held on November 16-18th, and the Court issued a decision and Order in favor of defendants, dismissing the Complaint with prejudice, on January 19, 2010. Plaintiff appealed the Court's decision and order.

*** Confidential information on this page has been omitted and filed separately with the Commission. Confidential treatment has been requested with respect to the omitted portions.

SEC Inquiry

In November 2008, Creditex received a subpoena from the Securities and Exchange Commission (“SEC”) requiring production of data and communications regarding transactions in certain named financial credit default swaps during the period September 1 through September 19, 2008, specifically: a schedule reflecting all CDS transactions brokered by Creditex in the named financial sector CDS during the relevant period, all bids and offers received by Creditex with respect to such financial CDS during the relevant period, and any communications with respect to the foregoing. Creditex responded to this request on December 19, 2008. Additionally, in January 2009, Creditex received a verbal request from the SEC to produce all documentation and information given to the New York Attorney General (“NYAG”) in connection with a prior NYAG investigation. Creditex responded to this request on February 6, 2009.

No further requests have been made by the SEC since January 2009.

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Financial and Energy Exchange Limited (“FEX”)

Pursuant to the Clearing Services Agreement (CSA), FEX owes TCC approximately \$833,333.00. TCC issued a notice to FEX terminating the CSA for material breach given FEX’s failure to pay invoiced amounts owed.

FEX responded that TCC’s termination was invalid because FEX is disputing the moneys invoiced by TCC. FEX alleged that TCC repeatedly failed to perform the services under the CSA. FEX further alleged that while previous invoices have been paid by FEX with respect to implementation fees, TCC did not earn the implementation fees and that FEX is entitled to recover those moneys or recover damages from TCC for its breaches of the CSA in failing to provide the services in accordance with the CSA’s terms. FEX alleged that among other breaches, TCC has failed to take any steps to progress its application for a Clearing and Settlement Facility License from the Australian Securities and Investments Commission. FEX invited TCC to withdraw its termination and asked TCC to confirm such, in writing, by May 11, 2009. FEX cited the non-compete provision of the CSA and has asked TCC to confirm, in writing, that it is not providing competing clearing services within Australia or New Zealand to ICE Trust or its affiliates. FEX raised a concern that following TCC’s acquisition by ICE, TCC may have acted, or is continuing to act, in breach of the confidentiality provisions of the CSA. FEX reserved its right to apply to the Supreme Court of South Wales for relief including declarations that TCC is not entitled to terminate the CSA; damages for TCC’s wrongful repudiation; injunctions to prevent TCC from acting in breach the non-compete provision of the CSA; and damages for any breach of the confidentiality provisions.

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TCC responded to FEX and denied FEX's allegations that TCC is in breach of the CSA. TCC also referenced the numerous occasions when FEX had indicated, in writing, that it was not disputing amounts owed and that its delay in paying the outstanding invoices was merely the results of funding issues. TCC also challenged FEX's assertion of its right to seek relief before the Supreme Court of New South Wales and TCC wrote that the appropriate jurisdiction for any dispute would be a court in Chicago, Illinois.

On August 18, 2009, FEX wrote that it is of the view that, when TCC issued invoices to FEX, FEX was entitled to dispute those invoices on the basis that TCC had failed to perform its obligations under the Agreement. In its letter, FEX alleges that TCC has wrongfully repudiated the Agreement and that FEX is entitled to recover damages from TCC to compensate FEX for:

- (a) The loss of value for the moneys already paid by FEX to TCC under the Agreement, totaling AUD \$2,514,680; and
- (b) the loss of value suffered by FEX as a result of the delay in commencement of operation of the "FEX Exchange", which delay was brought about by TCC's failure to perform its obligations under the Agreement. Currently, FEX expects that the net present value of the impact of delays well exceeds AUD\$12,000,000.

FEX also maintains that TCC made representations as to TCC's status as an independent clearing house and that subsequent events demonstrate that TCC is not an independent clearing house.

FEX indicated that it also will consider an action for contravention by TCC of section 52 of the TRADE Practices Act as an alternative to the action for damages discussed herein. FEX considers that it would be entitled to recover from TCC a similar quantum of damages on the basis of this cause of action as would be recoverable on a cause of action against TCC for breach of the Agreement (AUD\$14,514,680).

On or about August 31, 2009, TCC filed a Complaint against FEX in the United States District Court for the Northern District of Illinois, Eastern Division seeking damages and declaratory relief. Specifically, TCC's Complaint seeks to recover \$833,313 in fees due from FEX and a declaratory judgment that the CSA was properly terminated and that the non-compete provision contained in the CSA does not survive the CSA's termination.

On November 6, 2009, FEX filed a Motion to Dismiss TCC's Complaint. FEX contends that the United States District Court lacks personal jurisdiction over FEX.

On January 8, 2010, TCC filed its Response in Opposition to FEX's Motion to Dismiss TCC's Complaint.

On January 29, 2010, FEX filed its Reply in Support of its Motion to Dismiss The Clearing Corporation's Complaint. On February 18, 2010, the United States District Court issued an Order denying FEX's Motion to Dismiss.

On March 17, 2010 FEX filed its answer and counterclaims, pursuant to which FEX made counts for 1) fraudulent misrepresentation; 2) breach of contract; 3) unjust enrichment; 4) violation of

the Illinois deceptive trade practices act; and 5) declaratory judgment. For each of the counts, FEX claims damages of \$2,010,546.33 together with attorneys' fees and costs plus other damages.

Schedule 4.7

Subsidiaries

The Borrower is the 100% direct owner of the following domestic entities:

1. IntercontinentalExchange International, Inc. (“ ICE International ”)
2. ICE Markets, Inc. (“ ICE Markets ”)
3. ICE Data Management Group, LLC (“ ICE Management ”)
4. ICE Data Investment Group, LLC (“ ICE Investment ”)
5. ICE Futures U.S., Inc. (“ ICE Futures ”)
6. Chatham Energy, LLC
7. YellowJacket, Inc.
8. Creditex Holdco, LLC
9. ICE US Holding Company GP LLC

The Borrower is the 100% indirect owner (except as indicated below) of the following domestic entities:

1. Creditex Group, Inc. (Creditex Holdco, Ltd. is the direct 100% owner)
2. ICE Data, LP (ICE Management is the direct 1% owner; ICE Investment is the direct 99% owner)
3. ICE Clear US, Inc. (ICE Futures is the direct 100% owner)
4. eCOPS, LLC (ICE Futures is the direct 100% owner)
5. The Clearing Corporation (ICE US Holding Company L.P. is the direct 100% owner)
6. ICE US Trust LLC (ICE US Holding Company L.P. is the direct 100% owner)
7. QW Holdings LLC (50.11% owner is Creditex Group Inc and 49.89% owners are other third party investors)
8. Q-WIXX B Sub LLC (100% owned by QW Holdings LLC)
9. ICE Processing, LLC (100% owner is Creditex Group Inc.)
10. Creditex LLC (100% owner is Creditex Group Inc.)

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11. CreditTrade Inc. (100% owner is Creditex Group Inc.)
 12. Creditex Securities Corporation (100% owned by CreditTrade Inc.)

The Borrower is the 100% indirect owner (except as indicated below) of the following foreign entities:

1. ICE Markets Corporation (ICE Markets is the direct 100% owner)
2. ICE US Holding Company LP (ICE US Holding Company GP LLC, ICE & Creditex Group, Inc. collectively own approximately 51% of the limited partnership interests and other third party investors own approximately 49% of the limited partnership interests and ICE US Holding Company GP LLC owns 100% of the general partnership interests)
2. ICE Netherlands C.V. (ICE Markets 1% LP; ICE International 99% GP)
3. ICE Netherlands B.V. (ICE Netherlands C.V. 100% owner)
4. 5509794 Manitoba, Inc. (ICE Netherlands B.V. 100% owner)
5. ICE Futures Canada, Inc. (“ ICE Futures Canada ”) (5509794 Manitoba, Inc. 100% owner)
6. ICE Clear Canada, Inc. (ICE Futures Canada 100% owner)
7. Canadian Climate Exchange, Inc. (ICE Futures Canada 100% owner)
8. ICE Services Canada, Inc. (ICE Futures Canada 100% owner)
9. IntercontinentalExchange Holdings (ICE International is the < 1% owner and ICE Netherlands C.V. is > 99% owner)
10. ICE Markets Limited (IntercontinentalExchange Holdings is the direct 100% owner)
11. ICE Clear Europe Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
12. ICE Clear UK Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
13. ICE Futures Holdings Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
14. IntercontinentalExchange Technologies Limited (IntercontinentalExchange Holdings is the direct 100% owner)
15. ICE Data Holdings Limited (IntercontinentalExchange Holdings is the direct 20% owner and ICE Data Services Limited is the direct 80% owner)
16. International Petroleum Exchange of London Limited (IntercontinentalExchange Holdings is the direct 100% owner)

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17. IPE Holdings Limited (IntercontinentalExchange Holdings is the direct 100% owner)
 18. ICE Education Limited (ICE Futures Holdings Ltd. is the direct 100% owner)
 19. International Petroleum Exchange Limited (ICE Futures Holdings Ltd. is the direct 100% owner)
 20. ICE Futures Holdco No. 1 (ICE Futures Holdings Ltd. is the direct 100% owner)
 21. ICE Futures Holdco No. 2 (ICE Futures Holdings Ltd. is the direct 100% owner)
 22. ICE Data Services Limited (ICE Futures Holdings Ltd. is the direct 100% owner)
 23. ICE Futures Europe (ICE Futures Holdco No. 1 is 99% owner and ICE Futures Holdco No. 2 is 1% owner)
 24. ICE Futures Ltd. (ICE Futures Europe the direct 100% owner)
 25. ICE Data LLP (ICE Data Holdings Limited is 99% owner and IntercontinentalExchange Holdings is 1% owner)
 26. ICE US Holding Company L.P. (ICE US Holding Company GP LLC is the direct 100% owner of the general partnership interests; Borrower owns 50% of the limited partnership interests and the remaining 50% of the limited partnership interests are owned by the former shareholders of The Clearing Corporation)
 27. Q-WIXX International Limited (100% owned by Q-WIXX B Sub LLC)
 28. ICE Processing International, Limited (100% owned by ICE Processing LLC)
 29. Creditex UK, Ltd. (100% owned by CreditTrade, Inc.)
 30. Creditex Brokerage LLP (100% owned by Creditex UK Ltd.)
 31. Creditex Singapore PTE. Ltd. (100% owned by CreditTrade, Inc.)

The Borrower is the 100% direct owner of the following foreign entities:

1. Creditex Holdco Ltd.

Schedule 4.19

Material Contracts

1. Agreement and Plan of Merger by and among IntercontinentalExchange, Inc., Columbia Merger Corporation, Creditex Group Inc. and TA Associates, Inc. dated June 3, 2008 (incorporated by reference to Exhibit 10.1 to ICE's Quarterly Report on Form 10-Q, filed with the SEC on August 4, 2008, File No. 001-32671).
2. Amendment to Agreement and Plan of Merger, dated as of August 26, 2008, to the Agreement and Plan of Merger, dated as of June 3, 2008, by and among ICE, MergerCo, Creditex and the Stockholders' Representative (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on September 2, 2008, File No. 001-32671).
3. Agreement and Plan of Merger by and among The Clearing Corporation ("TCC"), a Delaware corporation, ICE US Holding Company L.P. ("Holdco"), a Cayman Islands exempted limited partnership and subsidiary of IntercontinentalExchange, Inc., Pony Merger Sub LLC, a Delaware limited liability company, IntercontinentalExchange, Inc., and TCC Stockholders Representative LLC, a Delaware limited liability company (solely in the capacity as representative of the former TCC stockholders) dated as of March 6, 2009 (incorporated by reference to Exhibit 2.1 to ICE's Quarterly Report on Form 10-Q, filed with the SEC on May 6, 2009, File No. 001-32671).
4. Employment Agreement, dated as of December 31, 2008, between IntercontinentalExchange, Inc. and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
5. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Charles A. Vice (incorporated by reference to Exhibit 10.2 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
6. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and David S. Goone (incorporated by reference to Exhibit 10.3 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
7. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Edwin D. Marcial (incorporated by reference to Exhibit 10.4 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
8. Employment Agreement dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Scott A. Hill (incorporated by reference to Exhibit 10.5 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
9. IntercontinentalExchange, Inc. 2000 Stock Option Plan, as amended effective December 31, 2008 (incorporated by reference to Exhibit 10.6 to ICE's Annual Report on Form 10-K, filed with the SEC on February 11, 2009, File No. 001-32671).
10. IntercontinentalExchange, Inc. 2003 Restricted Stock Deferral Plan for Outside Directors, as amended effective December 31, 2008 (incorporated by reference to Exhibit 10.7 to ICE's Annual Report on Form 10-K, filed with the SEC on February 11, 2009, File No. 001-32671).
11. IntercontinentalExchange, Inc. 2004 Restricted Stock Plan, as amended effective December 31, 2008 (incorporated by reference to Exhibit 10.8 to ICE's Annual Report on Form 10-K, filed with the SEC on February 11, 2009, File No. 001-32671).

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12. IntercontinentalExchange, Inc. 2005 Equity Incentive Plan, as amended effective December 31, 2008 (incorporated by reference to Exhibit 10.9 to ICE's Annual Report on Form 10-K, filed with the SEC on February 11, 2009, File No. 001-32671).
 13. IntercontinentalExchange, Inc. Executive Bonus Plan (incorporated by reference to Exhibit 10.1 to ICE's Quarterly Report on Form 10-Q, filed with the SEC on August 5, 2009, File No. 001-32671).
 14. IntercontinentalExchange, Inc. 2009 Omnibus Incentive Plan (incorporated by reference to Exhibit 10.2 to ICE's Quarterly Report on Form 10-Q, filed with the SEC on August 5, 2009, File No. 001-32671).
 15. Amendment and Restatement Agreement dated as of April 9, 2009 among IntercontinentalExchange, Inc., Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the lenders named therein for a senior unsecured term loan facility in the initial aggregate principal amount of \$175.0 million (incorporated by reference to ICE's Current Report on Form 8-K filed with the SEC on April 14, 2009, File No. 001-32671).
 16. Credit Agreement dated as of April 9, 2009 among IntercontinentalExchange, Inc., Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the lenders named therein for a three-year senior unsecured term loan facility in the initial aggregate principal amount of \$200.0 million (incorporated by reference to ICE's Current Report on Form 8-K filed with the SEC on April 14, 2009, File No. 001-32671).
 17. New Credit Facility to be entered into at Closing.
 18. Office Lease, dated as of June 8, 2000, as amended, between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, LLC (incorporated by reference to Exhibit 10.17 to ICE's registration statement on Form S-1, filed with the SEC on June 6, 2005, File No. 333-123500).
 19. Lease Amendment Six, dated as of October 12, 2005, by and between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.27 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).
 20. Lease Amendment Seven, dated as of May 12, 2006, by and between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.2 to ICE's Current Report on Form 8-K, filed with the SEC on May 17, 2006, File No. 001-32671).
 21. Lease Amendment Eight, dated as of November 28, 2006 (incorporated by reference to Exhibit 10.17 to ICE's Annual Report on Form 10-K, filed with the SEC on February 11, 2009, File No. 001-32671).
 22. Lease Amendment Nine, dated as of February 21, 2007 (incorporated by reference to Exhibit 10.18 to ICE's Annual Report on Form 10-K, filed with the SEC on February 11, 2009, File No. 001-32671).
 23. Lease Amendment Ten, dated as of May 15, 2008 (incorporated by reference to Exhibit 10.19 to ICE's Annual Report on Form 10-K, filed with the SEC on February 11, 2009, File No. 001-32671).
 24. TRS—Application Services Agreement, dated as of April 25, 2001, between The International Petroleum Exchange of London Limited and LIFFE Services Company Limited (incorporated by reference to Exhibit 10.14 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).

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25. Deed of Novation, dated July 22, 2005, between The International Petroleum Exchange of London Limited, LIFFE Services Limited, Atos Euronext Market Solutions Limited, and LIFFE Administration and Management (incorporated by reference to Exhibit 10.25 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).
 26. Managed Services Agreement, dated as of December 21, 2007, between ICE Clear Europe Limited and Atos Euronext Market Solutions Limited (incorporated by reference to Exhibit 10.22 to ICE's Annual Report on Form 10-K, filed with the SEC on February 11, 2009, File No. 001-32671).
 27. Patent License Agreement, dated as of March 29, 2002, between eSpeed, Inc. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.16 to ICE's registration statement on Form S-1, filed with the SEC on June 6, 2005, File No. 333-123500).
 28. Settlement Agreement, dated as of September 1, 2005, by and between EBS Group Limited and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.26 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).
 29. License Agreement For Index-Related Derivative Products dated as of June 15, 2007 between IntercontinentalExchange, Inc. and Frank Russell Company (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on June 20, 2007, File No. 001-32671).
 30. Contribution and Asset Transfer Agreement, dated as of May 11, 2000, by and between IntercontinentalExchange, LLC, Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.31 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 31. First Amendment to Contribution and Asset Transfer Agreement, dated as of May 17, 2000, by and among IntercontinentalExchange, LLC, Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.32 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 32. Second Amendment to Contribution and Asset Transfer Agreement, dated as of October 24, 2005, by and among IntercontinentalExchange, Inc., Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.33 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 33. IntercontinentalExchange, Inc. Amended and Restated 1999 Stock Option/Stock Issuance Plan (formerly the Creditex Group Inc. Amended and Restated 1999 Stock Option/Stock Issuance Plan) (incorporated by reference to Exhibit 4.1 to ICE's registration statement on Form S-8, filed with the SEC on September 2, 2008, File No. 333-153299).

Schedule 7.2

Indebtedness

None.

Schedule 7.3

Liens

None.

Schedule 7.7

Transactions with Affiliates

Transactions with Officer and Stockholder of ICE

As a part of the transactions surrounding our formation, ICE entered into an agreement with ICE's predecessor company, Continental Power Exchange, Inc. ("CPEX"), on May 11, 2000. ICE's Chief Executive Officer, Mr. Sprecher, owns all the equity interests in CPEX. Pursuant to the agreement, CPEX conveyed all of its assets and liabilities to ICE. These assets included intellectual property that ICE used to develop its electronic platform. In return, ICE issued to CPEX an equity interest in ICE and, further, agreed to give CPEX a put option, by which CPEX could require ICE to buy its equity interest in ICE at the purchase price equal to either its fair market value or \$5 million, whichever is greater.

In connection with ICE's initial public offering, in October 2005, ICE entered an agreement with CPEX and Mr. Sprecher to terminate the put option upon the closing of ICE's initial public offering. In connection with the termination of the put option, ICE amended certain registration rights previously granted to CPEX, which currently owns 1,952,978 shares of ICE's common stock. Under this agreement, CPEX is entitled to require ICE to register for resale into the public market its common stock if Mr. Sprecher's employment has been terminated. In addition, ICE may be obligated to pay the expenses of registration of such shares, including underwriters discounts up to a maximum of \$4.5 million.

THIS AMENDMENT AND RESTATEMENT AGREEMENT (this “Agreement”), dated as of April 9, 2009, is made among **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), the Subsidiary Guarantors party hereto, the Lenders (each as defined in the hereinafter defined Existing Credit Agreement) party hereto, **WACHOVIA BANK, NATIONAL ASSOCIATION**, as administrative agent for the Lenders (“Wachovia”), and **BANK OF AMERICA, N.A.**, as syndication agent for the Lenders (“BofA”), under the Existing Credit Agreement referred to below.

WHEREAS, the Borrower, the Subsidiary Guarantors party thereto, the Lenders party thereto, BofA, as syndication agent, and Wachovia, as administrative agent, entered into the Credit Agreement, dated as of January 12, 2007 (as amended by the First Amendment to Credit Agreement dated as of August 24, 2007 and the Second Amendment to Credit Agreement dated as of June 13, 2008, the “Existing Credit Agreement”), pursuant to which the Lenders made certain loans and other extensions of credit to the Borrower.

WHEREAS, the Credit Parties have requested, and the Administrative Agent and the Required Lenders have agreed, upon the terms and subject to the conditions set forth herein, that the Existing Credit Agreement be amended and restated as provided herein.

NOW, THEREFORE, the Credit Parties, the Administrative Agent and the Required Lenders hereby agree as follows:

Section 1. Amendment and Restatement of the Existing Credit Agreement; Loans.

(a) Effective as of the Restatement Effective Date, concurrently with the consummation of the transactions described in Section 2 hereof, the Existing Credit Agreement is hereby amended and restated to read in its entirety as set forth in **Exhibit A** hereto (the “Restated Credit Agreement”, with capitalized terms used but not otherwise defined herein or assigned a meaning herein having the meanings assigned to such terms in the Restated Credit Agreement), and as so amended and restated, is replaced and superseded by the terms, conditions, agreements, covenants, representations and warranties set forth in this Agreement and the Restated Credit Agreement. Except as specifically set forth herein, the amendment and restatement contained herein shall not, in any manner, be construed to constitute payment of, or impair, limit, cancel or extinguish, or constitute a novation in respect of, the Obligations (as defined in the Existing Credit Agreement) of the Credit Parties evidenced by or arising under the Existing Credit Agreement, the Guaranty (as defined in the Existing Credit Agreement) and the other Credit Documents (as defined in the Existing Credit Agreement). From and after the Restatement Effective Date, the terms “Agreement”, “this Agreement”, “herein”, “hereinafter”, “hereto”, “hereof” and words of similar import, as used in the Restated Credit Agreement, shall, unless the context otherwise requires, refer to the Restated Credit Agreement and all references in the Restated Credit Agreement to “the date hereof”, “the date of this Agreement” or other words or phrases of similar import shall be deemed references to the date of this Agreement.

*** Certain information in this agreement has been omitted and filed separately with the Commission. Confidential treatment has been requested with respect to the omitted portions.

(b) As set forth herein, (i) all Term Loans outstanding under (and to have the meaning herein assigned to such term in) the Existing Credit Agreement immediately prior to the Restatement Effective Date shall continue to be outstanding as Loans under the Restated Credit Agreement, and the terms of the Restated Credit Agreement will govern the rights and obligations of the Credit Parties, the Lenders and the Administrative Agent with respect thereto and (ii) all Revolving Loans outstanding under (and to have the meaning herein assigned to such term in) the Existing Credit Agreement immediately prior to the Restatement Effective Date shall be prepaid in full contemporaneously with the Restatement Effective Date, together with all interest accrued and accruing thereon, and all fees, costs, expenses and other charges relating thereto (including, without limitation, any amounts due under Section 2.17 of the Existing Credit Agreement); provided that the foregoing shall not be construed to discharge or release any Credit Party from any obligations owed to the Lenders or the Administrative Agent under the Existing Credit Agreement, which shall remain owing under the Restated Credit Agreement.

(c) The exhibits and schedules to the Existing Credit Agreement are hereby amended and restated in their entirety as set forth in **Exhibit B** hereto.

Section 2. Term Loans; Revolving Loans; Revolving Commitments.

(a) The parties hereto agree that, as of the Restatement Effective Date, the aggregate principal amount of the Term Loans under the Existing Credit Agreement is \$175,000,000, and in connection with the amendment and restatement of the Existing Credit Agreement as contemplated hereby, such Term Loans will be continued as Loans under the Restated Credit Agreement, so that, after giving effect thereto, the Lenders under the Restated Credit Agreement will be the Persons identified on Schedule 2 hereto and that the Lenders' outstanding Loans under the Restated Credit Agreement as of the Restatement Effective Date shall be in the principal amounts set forth on Schedule 2 hereto.

(b) The parties hereto agree that, immediately prior to the Restatement Effective Date, the aggregate principal amount of the Revolving Loans under the Existing Credit Agreement is \$195,000,000, and in connection with the amendment and restatement of the Existing Credit Agreement as contemplated hereby, (i) such Revolving Loans will be prepaid in full, together with all interest accrued and accruing thereon, and all fees, costs, expenses and other charges relating thereto (including, without limitation, any amounts due under Section 2.17 of the Existing Credit Agreement) and (ii) the Revolving Credit Commitments of the Revolving Credit Lenders (each having the meanings herein assigned to such terms in the Existing Credit Agreement), shall be terminated so that the Borrower has no right to borrow Revolving Loans or Swingline Loans or request Letters of Credit (each having the meanings herein assigned to such terms in the Existing Credit Agreement) on or after the Restatement Effective Date, in each case effective as of the Restatement Effective Date.

Section 3. Acknowledgment and Confirmation of the Credit Parties. Each Credit Party hereby confirms and agrees that, after giving effect to this Agreement, the Restated Credit Agreement and the other Credit Documents to which it is a party remain in full force and effect and enforceable against such Credit Party in accordance with their respective terms and shall not

be discharged, diminished, limited or otherwise affected in any respect, and represents and warrants to the Lenders that it has no knowledge of any claims, counterclaims, offsets, or defenses to or with respect to its obligations under the Credit Documents, or if such Credit Party has any such claims, counterclaims, offsets, or defenses to the Credit Documents or any transaction related to the Credit Documents, the same are hereby waived, relinquished, and released in consideration of the execution of this Agreement. This acknowledgement and confirmation by the Credit Parties is made and delivered to induce the Administrative Agent and the Lenders to enter into this Agreement, and each Credit Party acknowledges that the Administrative Agent and the Lenders would not enter into this Agreement in the absence of the acknowledgement and confirmation contained herein.

Section 4. Representations and Warranties . Each Credit Party represents and warrants that:

(a) As of the Restatement Effective Date, the representations and warranties made by such Credit Party in the Restated Credit Agreement and the other Credit Documents are true and correct with the same effect as if made on the Restatement Effective Date, except to the extent such representations and warranties expressly relate to an earlier date (in which case such representations and warranties are true and correct as of such earlier date).

(b) As of the Restatement Effective Date, both before and immediately following the consummation of the transactions contemplated hereby, no Default or Event of Default has occurred and is continuing.

Section 5. Conditions to Effectiveness . The effectiveness of this Agreement and the obligations of the Lenders under the Restated Credit Agreement shall be subject to the satisfaction of each of the conditions precedent set forth in this Section 5.

(a) The Administrative Agent shall have received the following, each dated as of the Restatement Effective Date (unless otherwise specified) and in such number of copies as the Administrative Agent shall have requested:

(i) a counterpart of this Agreement signed on behalf of each Credit Party and the Required Lenders under (and as defined in) the Existing Credit Agreement;

(ii) the Guaranty, duly completed and executed by each Wholly-Owned Subsidiary (other than any Foreign Subsidiary to the extent (and for as long as) doing so would cause adverse tax or regulatory consequences to the Borrower); and

(iii) the favorable opinions of Locke Lord Bissell & Liddell LLP, special counsel to the Credit Parties in form and substance reasonably satisfactory to the Administrative Agent.

(b) The Administrative Agent shall have received a certificate, signed by an Authorized Officer of the Borrower, dated the Restatement Effective Date and in form and substance reasonably satisfactory to the Administrative Agent, certifying that (i) all representations and warranties of the Credit Parties contained in this Agreement and the other Credit Documents qualified as to materiality are true and correct and those not so qualified are

true and correct in all material respects, in each case as of the Restatement Effective Date, both immediately before and after giving effect to the transactions contemplated hereby (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case such representation or warranty shall be true and correct as of such date), (ii) no Default or Event of Default has occurred and is continuing, both immediately before and after giving effect to the consummation of the transactions contemplated hereby, (iii) both immediately before and after giving effect to the consummation of the transactions contemplated hereby, no Material Adverse Effect has occurred since December 31, 2008, and there exists no event, condition or state of facts that could reasonably be expected to result in a Material Adverse Effect, and (iv) all conditions to the consummation of the transactions contemplated hereby have been satisfied or waived as required hereunder.

(c) The Administrative Agent shall have received a certificate of the secretary or an assistant secretary of each Credit Party executing any Credit Documents dated the Restatement Effective Date and in form and substance reasonably satisfactory to the Administrative Agent, certifying (i) that attached thereto is a true and complete copy of the articles or certificate of incorporation, certificate of formation or other organizational document and all amendments thereto of such Credit Party, certified as of a recent date by the Secretary of State (or comparable Governmental Authority) of its jurisdiction of organization, and that the same has not been amended since the date of such certification, (ii) that attached thereto is a true and complete copy of the bylaws, operating agreement or similar governing document of such Credit Party, as then in effect and as in effect at all times from the date on which the resolutions referred to in clause (iii) below were adopted to and including the date of such certificate, (iii) that attached thereto is a true and complete copy of resolutions adopted by the board of directors (or similar governing body) of such Credit Party, authorizing the execution, delivery and performance of this Agreement and the other Credit Documents to which it is a party, and (iv) as to the incumbency and genuineness of the signature of each officer of such Credit Party executing this Agreement or any of such other Credit Documents, and attaching all such copies of the documents described above.

(d) The Administrative Agent shall have received a certificate as of a recent date of the good standing of each Credit Party executing any Credit Documents as of the Restatement Effective Date, under the laws of its jurisdiction of organization, from the Secretary of State (or comparable Governmental Authority) of such jurisdiction.

(e) All approvals, permits and consents of any Governmental Authorities or other Persons required in connection with the execution and delivery of this Agreement and the other Credit Documents and the consummation of the transactions contemplated hereby shall have been obtained, without the imposition of conditions that are materially adverse to the Administrative Agent or any Lender, and all related filings, if any, shall have been made, and all such approvals, permits, consents and filings shall be in full force and effect and the Administrative Agent shall have received such copies thereof as it shall have reasonably requested; all applicable waiting periods shall have expired without any adverse action being taken or threatened by any Governmental Authority having jurisdiction; and no action, proceeding, investigation, regulation or legislation shall have been instituted, threatened or proposed before, and no order, injunction or decree shall have been entered by, any court or other Governmental Authority, in each case to enjoin, restrain or prohibit, to obtain substantial

damages in respect of, or to impose materially adverse conditions upon, this Agreement or any of the other Credit Documents or that could reasonably be expected to have a Material Adverse Effect.

(f) The Revolving Loans shall have been prepaid in full, together with all interest accrued and accruing thereon, and all fees, costs, expenses and other charges relating thereto (including, without limitation, any amounts due under Section 2.17 of the Existing Credit Agreement) and the Revolving Credit Commitments of the Revolving Credit Lenders shall be terminated so that the Borrower has no right to borrow Revolving Loans or Swingline Loans or request Letters of Credit.

(g) Concurrently with the Restatement Effective Date, (i) all principal, interest and other amounts outstanding under the Borrower's existing Credit Agreement, dated as of June 27, 2008, with Wachovia, as administrative agent, BofA, as syndication agent and the lenders party thereto (the "Terminating Liquidity Credit Facility"), and (ii) all commitments to extend credit under the agreements and instruments relating to the Terminating Liquidity Facility and all guarantees relating thereto shall be terminated; and the Administrative Agent shall have received evidence of the foregoing satisfactory to it.

(h) Concurrently with the Restatement Effective Date, the Borrower and ICE US Trust LLC shall have entered into the Credit Agreement, dated as of the date hereof, with Wachovia, as administrative agent, BofA, as syndication agent and the lenders party thereto, providing for a 364-day revolving credit facility in the aggregate principal amount of \$300,000,000.

(i) Concurrently with the Restatement Effective Date, the Borrower shall have entered into the Credit Agreement, dated as of the date hereof, with Wachovia, as administrative agent, BofA, as syndication agent and the lenders party thereto, providing for a revolving credit facility in the aggregate principal amount of \$100,000,000 and a term loan credit facility in the amount of \$200,000,000.

(j) Since December 31, 2008, both immediately before and after giving effect to the consummation of the transactions contemplated hereby, there shall not have occurred (i) a Material Adverse Effect or (ii) any event, condition or state of facts that could reasonably be expected to have a Material Adverse Effect.

(k) The Administrative Agent shall have received such other documents, certificates, opinions and instruments in connection with the transactions contemplated hereby as it shall have reasonably requested.

The Administrative Agent shall notify the Borrower and the Lenders of the Restatement Effective Date, and such notice shall be conclusive and binding.

Section 6. Expenses. The Borrower agrees to reimburse the Administrative Agent for the out-of-pocket expenses incurred by it in connection with this Agreement and the Restated Credit Agreement, including the reasonable fees, charges and disbursements of counsel for the Administrative Agent.

Section 7. Counterparts; Amendments. This Agreement may not be amended nor may any provision hereof be waived except pursuant to a writing signed by the Credit Parties, the Administrative Agent and the Required Lenders. This Agreement may be executed in two or more counterparts, each of which shall constitute an original but all of which when taken together shall constitute a single agreement. Delivery of an executed counterpart of a signature page of this Agreement by facsimile or other electronic transmission shall be effective as delivery of a manually executed counterpart of this Agreement.

Section 8. Notices. All notices hereunder shall be given in accordance with the provisions of Section 10.4 of the Restated Credit Agreement.

Section 9. Applicable Law; Waiver of Jury Trial.

(a) This Agreement shall be governed by, and construed in accordance with, the law of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).

(b) Each Credit Party irrevocably and unconditionally submits, for itself and its property, to the nonexclusive jurisdiction of the courts of the State of New York sitting in New York County and of the United States District Court of the Southern District of New York, and any appellate court from any thereof, in any action or proceeding arising out of or relating to this Agreement, or for recognition or enforcement of any judgment, and each of the parties hereto irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding may be heard and determined in such state court or, to the fullest extent permitted by applicable law, in such federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Agreement shall affect any right that the Administrative Agent or any Lender may otherwise have to bring any action or proceeding relating to this Agreement against any Credit Party or any of its respective properties in the courts of any jurisdiction.

Section 10. Headings. The Section headings used herein are for convenience of reference only, are not part of this Agreement and are not to affect the construction of, or to be taken into consideration in interpreting, this Agreement.

IN WITNESS WHEREOF , the parties hereto have caused this Amendment and Restatement Agreement to be duly executed by their respective authorized officers as of the day and year first above written.

BORROWER:

INTERCONTINENTALEXCHANGE, INC.

By: /s/ Scott A. Hill
Name: Scott A. Hill
Title: Senior Vice President, Chief Financial Officer

Guarantors:

IntercontinentalExchange International, Inc.

By: /s/ Scott A. Hill
Name: Scott A. Hill
Title: President and Treasurer

ICE Markets, Inc.

By: /s/ Scott A. Hill
Name: Scott A. Hill
Title: President

ICE Data, LP

GENERAL PARTNER:
ICE Data Management Group, LLC

By: /s/ Scott A. Hill
Name: Scott A. Hill
Title: Manager

ICE Data Management Group, LLC

By: /s/ Scott A. Hill
Name: Scott A. Hill
Title: Manager

ICE Data Investment Group, LLC

By: /s/ Scott A. Hill
Name: Scott A. Hill
Title: Manager

Chatham Energy, LLC

By: /s/ Scott A. Hill

Name: Scott A. Hill

Title: Manager

YellowJacket, Inc.

By: /s/ Scott A. Hill

Name: Scott A. Hill

Title: President and Treasurer

Creditex Holdco, LLC

By: /s/ Scott A. Hill

Name: Scott A. Hill

Title: President and Treasurer

ICE US Holding Company GP LLC

By: /s/ Scott A. Hill

Name: Scott A. Hill

Title: President and Treasurer

ICE Futures U.S., Inc.

By: /s/ Thomas Farley

Name: Thomas Farley

Title: President

eCOPS, LLC

By: /s/ Thomas Farley

Name: Thomas Farley

Title: President

ICE Clear US, Inc.

By: /s/ Thomas J. Hammond

Name: Thomas J. Hammond

Title: President and COO

New York Futures Exchange, Inc.

By: /s/ Thomas J. Hammond

Name: Thomas J. Hammond

Title: President and COO

Creditex Group Inc.

By: /s/ John Grifonetti

Name: John Grifonetti

Title: President

T-Zero Processing

By: /s/ Mark Beeston

Name: Mark Beeston

Title: President

Creditex LLC

By: /s/ John Grifonetti

Name: John Grifonetti

Title: President and COO

CreditTrade Inc.

By: /s/ John Grifonetti

Name: John Grifonetti

Title: President and COO

Creditex Securities Corporation

By: /s/ John Grifonetti

Name: John Grifonetti

Title: COO

WACHOVIA BANK, NATIONAL ASSOCIATION ,
as Administrative Agent, Swingline Lender and as a
Lender

By: /s/ G. Mendel Lay, Jr.
Name: G. Mendel Lay, Jr.
Title: Senior Vice President

BANK OF AMERICA, N.A. , as Syndication Agent
and a Lender

By: /s/ Mark A. Phillips
Name: Mark A. Phillips
Title: Senior Vice President

SOCIETE GENERALE , as Documentation Agent and
as a Lender

By: /s/ Ambrish Thanawala
Name: Ambrish Thanawala
Title: Managing Director

**CHANG HWA COMMERCIAL BANK, LTD.,
NEW YORK BRANCH** , as a Lender

By: /s/ Jim C.Y. Chen
Name: Jim C.Y. Chen
Title: V.P. & General Manager

**THE BANK OF TOKYO-MITSUBISHI UFJ,
LTD., NEW YORK BRANCH** , as Documentation
Agent and as a Lender

By: /s/ Chimie T. Pemba
Name: Chimie T. Pemba
Title: Authorized Signatory

THE BANK OF NOVA SCOTIA , as a Lender

By: /s/ David Mahmood
Name: David Mahmood
Title: Managing Director

TAIPEI FUBON , as a Lender

By: /s/ Michael Tan
Name: Michael Tan
Title: VP & General Manager

**FIRST COMMERCIAL BANK NEW YORK
AGENCY** , as a Lender

By: /s/ Yu-Mei Hsiao
Name: Yu-Mei Hsiao
Title: Assistant General Manager

BMO CAPITAL MARKETS FINANCING INC. , as
Documentation Agent and as a Lender

By: /s/ Linda C. Haven
Name: Linda C. Haven
Title: Managing Director

COMERICA BANK , as a Lender

By: /s/ Scott M. Kowalski
Name: Scott M. Kowalski
Title: Vice President

HUA NAN COMMERCIAL , as a Lender

By: /s/ Henry Hsieh
Name: Henry Hsieh
Title: Assistant Vice President

**E. SUN COMMERCIAL BANK, LTD., LOS
ANGELES BRACH** , as a Lender

By: /s/ Benjamin Lin
Name: Benjamin Lin
Title: EVP & General Manager

MIZUHO CORPORATE BANK, LTD. , as Managing
Agent and as a Lender

By: /s/ Toru Inoue
Name: Toru Inoue
Title: Deputy General Manager

RBC BANK (USA) , as a Lender

By: /s/ James R. Pryor
Name: James R. Pryor
Title: Managing Director

Exhibit A

AMENDED AND RESTATED CREDIT AGREEMENT

among

INTERCONTINENTALEXCHANGE, INC.,
as Borrower,

THE LENDERS NAMED HEREIN,

WACHOVIA BANK, NATIONAL ASSOCIATION,
as Administrative Agent,

BANK OF AMERICA, N.A.,
as Syndication Agent,

BMO CAPITAL MARKETS FINANCING INC.,
THE BANK OF TOKYO-MITSUBISHI UFJ, LTD. NEW YORK BRANCH,
and
SOCIETE GENERALE,
as Documentation Agents,

and

COMERZBANK AKTIENGESELLSCHAFT NEW YORK
AND GRAND CAYMAN BRANCHES,
and
MIZUHO CORPORATE BANK, LTD.,
as Managing Agents

\$175,000,000 Senior Term Loan Facility

WACHOVIA CAPITAL MARKETS, LLC
and
BANC OF AMERICA SECURITIES LLC
Joint Lead Arrangers and Joint Book Runners

Dated as of January 12, 2007,
As Amended and Restated as of April 9, 2009

TABLE OF CONTENTS (10.2)

ARTICLE I

DEFINITIONS

1.1	Defined Terms	1
1.2	Accounting Terms	20
1.3	Other Terms; Construction	20

ARTICLE II

AMOUNT AND TERMS OF THE LOANS

2.1	Loans	22
2.2	Evidence of Debt; Term Notes	22
2.3	Mandatory Payments	23
2.4	Voluntary Prepayments	24
2.5	Interest	24
2.6	Fees	26
2.7	Interest Periods	26
2.8	Conversions and Continuations	27
2.9	Method of Payments; Computations; Apportionment of Payments	28
2.10	Recovery of Payments	31
2.11	Pro Rata Treatment	31
2.12	Increased Costs; Change in Circumstances; Illegality	32
2.13	Taxes	34
2.14	Compensation	37
2.15	Replacement of Lenders; Mitigation of Costs	37

ARTICLE III

[RESERVED]

ARTICLE IV

REPRESENTATIONS AND WARRANTIES

4.1	Corporate Organization and Power	39
4.2	Authorization; Enforceability	39
4.3	No Violation	39
4.4	Governmental and Third-Party Authorization; Permits	40
4.5	Litigation	40
4.6	Taxes	40
4.7	Subsidiaries	40
4.8	Full Disclosure	41

4.9	Margin Regulations	41
4.10	No Material Adverse Effect	41
4.11	Financial Matters	41
4.12	Ownership of Properties	42
4.13	ERISA	43
4.14	Environmental Matters	43
4.15	Compliance with Laws	43
4.16	Intellectual Property	43
4.17	Regulated Industries	44
4.18	Insurance	44
4.19	Material Contracts	44
4.20	No Burdensome Restrictions	44
4.21	OFAC; Anti-Terrorism Laws	44

ARTICLE V

AFFIRMATIVE COVENANTS

5.1	Financial Statements	45
5.2	Other Business and Financial Information	47
5.3	Compliance with All Material Contracts	49
5.4	Existence; Franchises; Maintenance of Properties	49
5.5	[Reserved]	49
5.6	Compliance with Laws	49
5.7	Payment of Obligations	50
5.8	Insurance	50
5.9	Maintenance of Books and Records; Inspection	50
5.10	Permitted Acquisitions	50
5.11	Creation or Acquisition of Subsidiaries	52
5.12	OFAC, PATRIOT Act Compliance	52
5.13	Further Assurances	52

ARTICLE VI

FINANCIAL COVENANTS

6.1	Maximum Total Leverage Ratio	52
6.2	Minimum Interest Coverage Ratio	53

ARTICLE VII

NEGATIVE COVENANTS

7.1	Merger; Consolidation	53
7.2	Indebtedness	53
7.3	Liens	55
7.4	Asset Dispositions	57
7.5	Acquisitions	57

7.6	Restricted Payments	58
7.7	Transactions with Affiliates	58
7.8	Lines of Business	59
7.9	Limitation on Certain Restrictions	59
7.10	No Other Negative Pledges	59
7.11	Investments in Subsidiaries	60
7.12	Fiscal Year	60
7.13	Accounting Changes	60

ARTICLE VIII

EVENTS OF DEFAULT

8.1	Events of Default	60
8.2	Remedies: Acceleration, etc.	63
8.3	Remedies: Set-Off	63

ARTICLE IX

THE ADMINISTRATIVE AGENT

9.1	Appointment and Authority	64
9.2	Rights as a Lender	64
9.3	Exculpatory Provisions	64
9.4	Reliance by Administrative Agent	65
9.5	Delegation of Duties	65
9.6	Resignation of Administrative Agent	65
9.7	Non-Reliance on Administrative Agent and Other Lenders	66
9.8	No Other Duties, Etc	66
9.9	Guaranty Matters	67

ARTICLE X

MISCELLANEOUS

10.1	Expenses; Indemnity; Damage Waiver	67
10.2	Governing Law; Submission to Jurisdiction; Waiver of Venue; Service of Process	69
10.3	Waiver of Jury Trial	69
10.4	Notices; Effectiveness; Electronic Communication	70
10.5	Amendments, Waivers, etc.	71
10.6	Successors and Assigns	72
10.7	No Waiver	76
10.8	Survival	76
10.9	Severability	76
10.10	Construction	76
10.11	Confidentiality	76
10.12	Counterparts; Integration; Effectiveness	77

10.13	Disclosure of Information	77
10.14	USA Patriot Act Notice	78

EXHIBITS

Exhibit A-1	Form of Term Note
Exhibit B-3	Form of Notice of Conversion/Continuation
Exhibit C	Form of Compliance Certificate
Exhibit D	Form of Assignment and Assumption
Exhibit E	[Reserved]
Exhibit F	[Reserved]

SCHEDULES

Schedule 1.1(a)	Loans and Notice Addresses
Schedule 4.1	Jurisdictions of Organization
Schedule 4.4	Consents and Approvals
Schedule 4.5	Litigation Matters
Schedule 4.7	Subsidiaries
Schedule 4.19	Material Contracts
Schedule 7.2	Indebtedness
Schedule 7.3	Liens
Schedule 7.7	Transactions with Affiliates

AMENDED AND RESTATED CREDIT AGREEMENT

THIS AMENDED AND RESTATED CREDIT AGREEMENT, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement, dated as of August 24, 2007 and the Second Amendment to Credit Agreement, dated as of June 13, 2008, and as amended and restated as of the 9th day of April, 2009, is made among **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), the Lenders (as hereinafter defined), **WACHOVIA BANK, NATIONAL ASSOCIATION**, as Administrative Agent (as hereinafter defined) for the Lenders (“Wachovia”), and **BANK OF AMERICA, N.A.**, as Syndication Agent for the Lenders (“BofA”).

BACKGROUND STATEMENT

The Borrower, the Lenders, Wachovia and BofA are parties to that certain Credit Agreement, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement, dated as of August 24, 2007 and the Second Amendment to Credit Agreement, dated as of June 13, 2008 (the “Original Credit Agreement”) providing for a term loan facility in the aggregate principal amount of \$250,000,000 and a revolving credit facility in the aggregate principal amount of \$250,000,000. Pursuant to the Restatement Agreement, the Original Credit Agreement is being amended and restated in the form hereof.

AGREEMENT

NOW, THEREFORE, in consideration of the mutual provisions, covenants and agreements herein contained, the parties hereto hereby agree as follows:

ARTICLE II

DEFINITIONS

1.1 Defined Terms. For purposes of this Agreement, in addition to the terms defined elsewhere herein, the following terms have the meanings set forth below (such meanings to be equally applicable to the singular and plural forms thereof):

“Acquisition” means any transaction or series of related transactions, consummated on or after the date hereof, by which the Borrower directly, or indirectly through one or more Subsidiaries, (i) acquires any going business, division thereof or line of business, or all or substantially all of the assets, of any Person, whether through purchase of assets, merger or otherwise, or (ii) acquires Capital Stock of any Person having at least a majority of Total Voting Power of the then outstanding Capital Stock of such Person.

“ Acquisition Amount ” means, with respect to any Acquisition, the sum (without duplication) of (i) the amount of cash paid as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition, (ii) the value of all Capital Stock issued or given as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition (as determined by the parties thereto under the definitive acquisition agreement), (iii) the amount (determined by using the face amount or the amount payable at maturity, whichever is greater) of all Indebtedness incurred, assumed or acquired by the Borrower and its Subsidiaries in connection with such Acquisition, (iv) all amounts paid in respect of noncompetition agreements, consulting agreements and similar arrangements entered into in connection with such Acquisition, (v) all amounts paid in respect of any earnout obligations or similar deferred or contingent purchase price obligations of the Borrower or any of its Subsidiaries incurred or created in connection with such Acquisition and (vi) the aggregate fair market value of all other real, mixed or personal property paid as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition.

“ Adjusted Base Rate ” means, at any time with respect to any Base Rate Loan, a rate per annum equal to the Base Rate as in effect at such time plus the Applicable Percentage for Base Rate Loans as in effect at such time.

“ Adjusted LIBOR Rate ” means, at any time with respect to any LIBOR Loan, a rate per annum equal to the LIBOR Rate as in effect at such time plus the Applicable Percentage for LIBOR Loans as in effect at such time.

“ Administrative Agent ” means Wachovia, in its capacity as Administrative Agent appointed under **Section 9.1** , and its successors and permitted assigns in such capacity.

“ Administrative Questionnaire ” means, with respect to each Lender, the administrative questionnaire in the form submitted to such Lender by the Administrative Agent and returned to the Administrative Agent duly completed by such Lender.

“ Affiliate ” means, with respect to a specified Person, another Person that directly, or indirectly through one or more intermediaries, Controls or is Controlled by or is under common Control with the Person specified. Notwithstanding the foregoing, neither the Administrative Agent nor any Lender shall be deemed an “Affiliate” of any Credit Party.

“ Agreement ” means this Credit Agreement, as amended, modified, restated or supplemented from time to time in accordance with its terms.

“ Applicable Percentage ” means, at any time from and after the Restatement Effective Date, the applicable percentage (i) to be added to the Base Rate for purposes of determining the Adjusted Base Rate, and (ii) to be added to the LIBOR Rate for purposes of determining the Adjusted LIBOR Rate, as determined under the following matrix with reference to the Total Leverage Ratio, but subject to **Section 5.1(c)** :

<u>Tier</u>	<u>Total Leverage Ratio</u>	<u>Applicable</u>	<u>Applicable</u>
		<u>LIBOR Margin</u>	<u>Base Rate Margin</u>
I	Less than 1.0 to 1.0	2.50%	1.50%
II	Less than 1.50 to 1.0 but greater than or equal to 1.0 to 1.0	3.00%	2.00%
III	Less than 2.0 to 1.0 but greater than or equal to 1.50 to 1.0	3.50%	2.50%
IV	Greater than or equal to 2.0 to 1.0	4.50%	3.50%

On each Adjustment Date (as hereinafter defined), the Applicable Percentage for all Loans shall be adjusted effective as of such Adjustment Date (based upon the calculation of the Total Leverage Ratio as of the last day of the Reference Period to which such Adjustment Date relates) in accordance with the above matrix; provided , however , that, notwithstanding the foregoing or anything else herein to the contrary, if at any time the Borrower shall have failed to deliver any of the financial statements as required by **Sections 5.1(a)** or **5.1(b)** , as the case may be, or the Compliance Certificate as required by **Section 5.2(a)** , then at all times from and including the date on which such statements and Compliance Certificate are required to have been delivered until the date on which the same shall have been delivered, each Applicable Percentage shall be determined based on Tier IV above (notwithstanding the actual Total Leverage Ratio). For purposes of this definition, “ Adjustment Date ” means, with respect to any Reference Period of the Borrower beginning with the Reference Period ending as of the last day of the first fiscal quarter of fiscal year 2007, the day (or, if such day is not a Business Day, the next succeeding Business Day) of delivery by the Borrower in accordance with **Section 5.1(a)** or **Section 5.1(b)** , as the case may be, of (i) financial statements as of the end of and for such Reference Period and (ii) a duly completed Compliance Certificate with respect to such Reference Period. From the Restatement Effective Date until the first Adjustment Date requiring a change in any Applicable Percentage as provided herein, each Applicable Percentage shall be based on Tier I above.

“ Applicable Period ” has the meaning set forth in **Section 5.1(c)** .

“ Approved Fund ” means any Fund that is administered or managed by (i) a Lender, (ii) an Affiliate of a Lender, or (iii) a Person (or an Affiliate of a Person) that administers or manages a Lender.

“ Arrangers ” mean Wachovia Capital Markets, LLC, Banc of America Securities LLC and their respective successors.

“ Asset Disposition ” means any sale, assignment, lease, conveyance, transfer or other disposition by the Borrower or any of its Subsidiaries (whether in one or a series of transactions) of all or any of its assets, business or other properties (including Capital Stock of Subsidiaries).

“ Assignment and Assumption ” means an Assignment and Assumption entered into by a Lender and an assignee (with the consent of any party whose consent is required by **Section 10.6(b)**), and accepted by the Administrative Agent, in substantially the form of **Exhibit D** or any other form approved by the Administrative Agent.

“ Authorized Officer ” means, with respect to any action specified herein to be taken by or on behalf of a Credit Party, any officer of such Credit Party duly authorized by resolution of its board of directors or other governing body to take such action on its behalf, and whose signature and incumbency shall have been certified to the Administrative Agent by the secretary or an assistant secretary of such Credit Party.

“ Bankruptcy Code ” means 11 U.S.C. §§ 101 et seq., as amended from time to time, and any successor statute.

“ Bankruptcy Event ” means the occurrence of an event specified in **Section 8.1(f)** or **Section 8.1(g)** .

“ Base Rate ” means the highest of (i) the per annum interest rate publicly announced from time to time by Wachovia in Charlotte, North Carolina, to be its prime rate (which may not necessarily be its lowest or best lending rate), as adjusted to conform to changes as of the opening of business on the date of any such change in such prime rate, (ii) the Federal Funds Rate plus 0.5% per annum, as adjusted to conform to changes as of the opening of business on the date of any such change in the Federal Funds Rate, and (iii) the LIBOR Rate for an Interest Period of 1 month plus 1.50%, as adjusted to conform to changes as of the opening of business on the date of any such change of such LIBOR Rate.

“ Base Rate Loan ” means, at any time, any Loan that bears interest at such time at the applicable Adjusted Base Rate.

“ BofA ” means Bank of America, N.A.

“ Borrower ” has the meaning given to such term in the introductory paragraph hereof.

“ Borrowing ” means the incurrence by the Borrower as a result of conversions and continuations of outstanding Loans pursuant to **Section 2.8** , on a single date of a group of Loans of a single Type and, in the case of LIBOR Loans, as to which a single Interest Period is in effect.

“ Business Day ” means (i) any day other than a Saturday or Sunday, a legal holiday or a day on which commercial banks in Charlotte, North Carolina or New York, New York are authorized or required by law to be closed and (ii) in respect of any determination relevant to a LIBOR Loan, any such day that is also a day on which trading in Dollar deposits is conducted by banks in London, England in the London interbank Eurodollar market.

“ Capital Expenditures ” means, for any period, the aggregate amount (whether paid in cash or accrued as a liability) that would, in accordance with GAAP, be included on the consolidated statement of cash flows of the Borrower and its Subsidiaries for such period as additions to equipment, fixed assets, real property or improvements or other capital assets (including, without limitation, Capital Lease Obligations); provided, however, that Capital Expenditures shall not include any such expenditures (i) for replacements and substitutions for capital assets, to the extent made with the proceeds of insurance, (ii) for replacements and substitutions for capital assets, to the extent made with proceeds from the sale, exchange or other disposition of assets as permitted under **Sections 7.4(i) or 7.4(iii)**, or (iii) included within the Acquisition Amount of any Permitted Acquisition.

“ Capital Lease ” means, with respect to any Person, any lease of property (whether real, personal or mixed) by such Person as lessee that is or is required to be, in accordance with GAAP, recorded as a capital lease on such Person’s balance sheet.

“ Capital Lease Obligations ” means, with respect to any Person, the obligations of such Person to pay rent or other amounts under any Capital Lease of such Person, and the amount of such obligations shall be the capitalized amount thereof determined in accordance with GAAP.

“ Capital Stock ” means (i) with respect to any Person that is a corporation, any and all shares, interests or equivalents in capital stock (whether voting or nonvoting, and whether common or preferred) of such corporation, and (ii) with respect to any Person that is not a corporation, any and all partnership, membership, limited liability company or other equity interests of such Person; and in each case under clauses (i) and (ii), any and all warrants, rights or options to purchase any of the foregoing or any securities convertible into or exchangeable for any of the foregoing.

“ Capitalized Software Development Costs ” means those capitalized costs both internal and external, direct and incremental incurred related to software developed or obtained for internal use in accordance with AICPA Statement of Position 98-1 “Accounting for Costs of Computer Software Developed or Obtained for Internal Use.”

“ Cash Equivalents ” means (i) securities issued or unconditionally guaranteed or insured by the United States of America or any agency or instrumentality thereof, backed by the full faith and credit of the United States of America and maturing within one year from the date of acquisition, (ii) commercial paper issued by any Person organized under the laws of the United States of America, maturing within 180 days from the date of acquisition and, at the time of acquisition, having a rating of at least A-1 or the equivalent thereof by Standard & Poor’s Ratings Services or at least P-1 or the equivalent thereof by Moody’s Investors Service, Inc., (iii) time deposits and certificates of deposit maturing within 180 days from the date of issuance and issued by a bank or trust company organized under the laws of the United States of America or any state thereof (y) that has combined capital and surplus of at least \$500,000,000 or (z) that has (or is a subsidiary of a bank holding company that has) a long-term unsecured debt rating of at least A or the equivalent thereof by Standard & Poor’s Ratings Services or at least A2 or the equivalent thereof by Moody’s Investors Service, Inc., (iv) repurchase obligations with a term not exceeding thirty (30) days with respect to underlying securities of the types described in clause (i) above entered into with any bank or trust company meeting the qualifications specified in clause (iii) above, and (v) money market funds at least ninety-five percent (95%) of the assets of which are continuously invested in securities of the foregoing types.

“ Change in Law ” means the occurrence, after the date of this Agreement, of any of the following: (i) the adoption or taking effect of any law, rule, regulation or treaty, (ii) any change in any law, rule, regulation or treaty or in the administration, interpretation or application thereof by any Governmental Authority or (iii) the making or issuance of any request, guideline or directive (whether or not having the force of law) by any Governmental Authority.

“ Change of Control ” means (i) any Person or group of Persons acting in concert as a partnership or other group shall have become, as a result of a tender or exchange offer, open market purchases, privately negotiated purchases or otherwise, the beneficial owner of outstanding Capital Stock of the Borrower having 35% or more of the Total Voting Power of the Borrower, or (ii) the occupation of a majority of the seats (other than vacant seats) on the board of directors of the Borrower by Persons who were neither (a) nominated by the board of directors of the Borrower nor (b) appointed by directors so nominated.

“ Closing Date ” means January 12, 2007.

“ Code ” means the Internal Revenue Code of 1986, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ Compliance Certificate ” means a fully completed and duly executed certificate in the form of **Exhibit C** , together with a Covenant Compliance Worksheet.

“ Consolidated EBITDA ” means, for any Reference Period, the aggregate of (i) Consolidated Net Income for such period, plus (ii) the sum of (A) interest expense, (B) federal, state, local and other income taxes, (C) depreciation and amortization of intangible assets, and (D) extraordinary losses or charges, all to the extent taken into account in the calculation of Consolidated Net Income for such Reference Period and all calculated in accordance with GAAP, minus (iii) the sum of (A) extraordinary gains or income and (B) noncash credits increasing income for such period, all to the extent taken into account in the calculation of Consolidated Net Income for such period.

“ Consolidated Interest Expense ” means, for any Reference Period, the sum (without duplication) of (i) total interest expense of the Borrower and its Subsidiaries for such Reference Period in respect of Total Funded Debt (including, without limitation, all such interest expense accrued or capitalized during such Reference Period, whether or not actually paid during such Reference Period), determined on a consolidated basis in accordance with GAAP, and (ii) all recurring unused commitment fees and other ongoing fees in respect of Total Funded Debt paid, accrued or capitalized by the Borrower and its Subsidiaries during such Reference Period.

“ Consolidated Net Income ” means, for any Reference Period, net income (or loss) for the Borrower and its Subsidiaries for such Reference Period, determined on a consolidated basis in accordance with GAAP (after deduction for minority interests); provided that, in making such determination, there shall be excluded (i) the net income of any other Person that is not a Subsidiary of the Borrower (or is accounted for by the Borrower by the equity method of accounting) except to the extent of actual payment of cash dividends or distributions by such

Person to the Borrower or any Subsidiary of the Borrower during such period, (ii) the net income (or loss) of any other Person acquired by, or merged with, the Borrower or any of its Subsidiaries for any period prior to the date of such acquisition, and (iii) the net income of any Subsidiary of the Borrower to the extent that the declaration or payment of dividends or similar distributions by such Subsidiary of such net income is not at the time permitted by operation of the terms of its charter, certificate of incorporation or formation or other constituent document or any agreement or instrument (other than a Credit Document) or Requirement of Law applicable to such Subsidiary.

“ Control ” means, with respect to any Person, (i) the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of such Person, whether through the ownership of voting securities, by contract or otherwise, or (ii) the beneficial ownership of securities or other ownership interests of such Person having 10% or more of the combined voting power of the then outstanding securities or other ownership interests of such Person ordinarily (and apart from rights accruing under special circumstances) having the right to vote in the election of directors or other governing body of such Person; and the terms “Controlled” and “Controlling” have correlative meanings.

“ Covenant Compliance Worksheet ” means a fully completed worksheet in the form of **Attachment A** to **Exhibit C** .

“ Credit Documents ” means this Agreement, the Restatement Agreement, the Term Notes, the Fee Letters, the Guaranty, and all other agreements, instruments, documents and certificates now or hereafter executed and delivered to the Administrative Agent or any Lender by or on behalf of the Borrower or any other Credit Party with respect to this Agreement, in each case as amended, modified, supplemented or restated from time to time.

“ Credit Parties ” means the Borrower, each of the Subsidiary Guarantors, and their respective successors.

“ Debtor Relief Laws ” means the Bankruptcy Code, and all other liquidation, conservatorship, bankruptcy, assignment for the benefit of creditors, moratorium, rearrangement, receivership, insolvency, reorganization, or similar debtor relief laws of the United States or other applicable jurisdictions from time to time in effect and affecting the rights of creditors generally.

“ Default ” means any event or condition that, with the passage of time or giving of notice, or both, would constitute an Event of Default.

“ Defaulting Lender ” means any Lender, as determined in good faith by the Administrative Agent, that (i) has failed (which failure has not been cured) to fund any Loan, (ii) has notified the Borrower or the Administrative Agent in writing that it does not intend to comply with any of its funding obligations under this Agreement or has made a public statement to the effect that it does not intend to comply with its funding obligations under this Agreement or generally under other agreements in which it commits to extend credit, (iii) has failed, within three Business Days after request by the Administrative Agent, to confirm that it will comply with the terms of this Agreement relating to its obligations to fund prospective Loans, (iv) has

failed to pay to the Administrative Agent or any Lender when due an amount owed by such Lender pursuant to the terms of this Agreement, unless such amount is subject to a good faith dispute or such failure has been cured, or (v) (a) has become or is insolvent or has a parent company that has become or is insolvent or (b) has become the subject of a proceeding under any Debtor Relief Law, or has had a receiver, conservator, trustee or custodian appointed for it, or has taken any action in furtherance of, or indicating its consent to, approval of or acquiescence in any such proceeding or appointment or has a parent company that has become the subject of a proceeding under any Debtor Relief Law, or has had a receiver, conservator, trustee or custodian appointed for it, or has taken any action in furtherance of, or indicating its consent to, approval of or acquiescence in any such proceeding or appointment.

“ Disqualified Capital Stock ” means, with respect to any Person, any Capital Stock of such Person that, by its terms (or by the terms of any security into which it is convertible or for which it is exchangeable), or upon the happening of any event or otherwise, (i) matures or is mandatorily redeemable or subject to any mandatory repurchase requirement, pursuant to a sinking fund obligation or otherwise, (ii) is redeemable or subject to any mandatory repurchase requirement at the sole option of the holder thereof, or (iii) is convertible into or exchangeable for (whether at the option of the issuer or the holder thereof) (y) debt securities or (z) any Capital Stock referred to in (i) or (ii) above, in each case under (i), (ii) or (iii) above at any time on or prior to the first anniversary of the Maturity Date; provided, however, that only the portion of Capital Stock that so matures or is mandatorily redeemable, is so redeemable at the option of the holder thereof, or is so convertible or exchangeable on or prior to such date shall be deemed to be Disqualified Capital Stock.

“ Dollars ” or “ \$ ” means dollars of the United States of America.

“ Domestic Subsidiary ” means any Subsidiary of the Borrower organized under the laws of any jurisdiction within the United States.

“ Environmental Claims ” means any and all administrative, regulatory or judicial actions, suits, demands, demand letters, claims, liens, allegations, notices of noncompliance or violation, investigations by a Governmental Authority, or proceedings (including, without limitation, administrative, regulatory and judicial proceedings) relating in any way to any Hazardous Substance, any actual or alleged violation of or liability under any Environmental Law or any permit issued, or any approval given, under any Environmental Law (collectively, “ Claims ”), including, without limitation, (i) any and all Claims by Governmental Authorities for enforcement, cleanup, removal, response, remedial or other actions or damages pursuant to any applicable Environmental Law and (ii) any and all Claims by any third party seeking damages, contribution, indemnification, cost recovery, compensation or injunctive relief resulting from any Hazardous Substance or arising from alleged injury or threat of injury to human health or the environment.

“ Environmental Laws ” means any and all federal, state and local laws, statutes, ordinances, rules, regulations, permits, licenses, approvals, rules of common law and orders of courts or Governmental Authorities, relating to the protection of human health, occupational safety with respect to exposure to Hazardous Substances, or the environment, now or hereafter in effect, and in each case as amended from time to time, including, without limitation,

requirements pertaining to the manufacture, processing, distribution, use, treatment, storage, disposal, transportation, handling, reporting, licensing, permitting, investigation or remediation of Hazardous Substances.

“ ERISA ” means the Employee Retirement Income Security Act of 1974, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ ERISA Affiliate ” means any Person (including any trade or business, whether or not incorporated) deemed to be under “common control” with, or a member of the same “controlled group” as, the Borrower or any of its Subsidiaries, within the meaning of Sections 414(b), (c), (m) or (o) of the Code or Section 4001 of ERISA.

“ ERISA Event ” means any of the following with respect to a Plan or Multiemployer Plan, as applicable: (i) a Reportable Event, (ii) a complete or partial withdrawal by the Borrower or any ERISA Affiliate from a Multiemployer Plan that results in liability under Section 4201 or 4204 of ERISA, or the receipt by the Borrower or any ERISA Affiliate of notice from a Multiemployer Plan that it is in reorganization or insolvency pursuant to Section 4241 or 4245 of ERISA or that it intends to terminate or has terminated under Section 4041A of ERISA, (iii) the distribution by the Borrower or any ERISA Affiliate under Section 4041 or 4041A of ERISA of a notice of intent to terminate any Plan or the taking of any action to terminate any Plan, (iv) the commencement of proceedings by the PBGC under Section 4042 of ERISA for the termination of, or the appointment of a trustee to administer, any Plan, or the receipt by the Borrower or any ERISA Affiliate of a notice from any Multiemployer Plan that such action has been taken by the PBGC with respect to such Multiemployer Plan, (v) the institution of a proceeding by any fiduciary of any Multiemployer Plan against the Borrower or any ERISA Affiliate to enforce Section 515 of ERISA, which is not dismissed within thirty (30) days, (vi) the imposition upon the Borrower or any ERISA Affiliate of any liability under Title IV of ERISA, other than for PBGC premiums due but not delinquent under Section 4007 of ERISA, or the imposition or threatened imposition of any Lien upon any assets of the Borrower or any ERISA Affiliate as a result of any alleged failure to comply with the Code or ERISA in respect of any Plan, (vii) the engaging in or otherwise becoming liable for a nonexempt Prohibited Transaction by the Borrower or any ERISA Affiliate, or a violation of the applicable requirements of Section 404 or 405 of ERISA or the exclusive benefit rule under Section 401(a) of the Code by any fiduciary of any Plan for which the Borrower or any of its ERISA Affiliates may be directly or indirectly liable, (viii) the occurrence with respect to any Plan of any “accumulated funding deficiency” (within the meaning of Section 302 of ERISA and Section 412 of the Code), whether or not waived, (ix) with respect to plan years beginning prior to January 1, 2008, the adoption of an amendment to any Plan that, pursuant to Section 307 of ERISA, would require the provision of security to such Plan by the Borrower or an ERISA Affiliate, or (x) with respect to plan years beginning on or after the PPA 2006 Effective Date, the incurrence of an obligation to provide a notice under Section 101 (j) of ERISA, the adoption of an amendment which may not take effect due to the application of Section 436(c)(1) of the Code or Section 206 (g)(2)(A) of ERISA, or the payment of a contribution in order to satisfy the requirements of Section 436(c)(2) of the Code or Section 206(g)(2) (B) of ERISA.

“ Event of Default ” has the meaning given to such term in **Section 8.1** .

“ Exchange Act ” means the Securities Exchange Act of 1934, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ Excluded Taxes ” means, with respect to the Administrative Agent, any Lender or any other recipient of any payment to be made by or on account of any obligation of the Borrower hereunder, (i) taxes imposed on or measured by its overall net income (however denominated), and franchise taxes imposed on it (in lieu of net income taxes), by the jurisdiction (or any political subdivision thereof) under the laws of which such recipient is organized or in which its principal office is located or, in the case of any Lender, in which its applicable Lending Office is located, (ii) any branch profits taxes imposed by the United States or any similar tax imposed by any other jurisdiction in which the Borrower is located and (iii) in the case of a Foreign Lender (other than an assignee pursuant to a request by the Borrower under **Section 2.15(a)**), any withholding tax that is imposed on amounts payable to such Foreign Lender at the time such Foreign Lender becomes a party hereto (or designates a new Lending Office) or is attributable to such Foreign Lender’s failure or inability (other than as a result of a Change in Law) to comply with **Section 2.13(e)** , except to the extent that such Foreign Lender (or its assignor, if any) was entitled, at the time of designation of a new Lending Office (or assignment), to receive additional amounts from the Borrower with respect to such withholding tax pursuant to **Section 2.13(a)** .

“ Federal Funds Rate ” means, for any period, a fluctuating per annum interest rate (rounded upwards, if necessary, to the nearest 1/100 of one percentage point) equal for each day during such period to the weighted average of the rates on overnight federal funds transactions with members of the Federal Reserve System arranged by federal funds brokers, as published for such day (or, if such day is not a Business Day, for the next preceding Business Day) by the Federal Reserve Bank of New York, or if such rate is not so published for any day that is a Business Day, the average of the quotations for such day on such transactions received by the Administrative Agent from three federal funds brokers of recognized standing selected by the Administrative Agent.

“ Federal Reserve Board ” means the Board of Governors of the Federal Reserve System or any successor thereto.

“ Fee Letters ” mean the letters from each of Wachovia and Wachovia Securities, LLC and BofA and Banc of America Securities LLC, respectively, to the Borrower, each dated November 17, 2006.

“ Financial Officer ” means, with respect to the Borrower, the chief financial officer, vice president—finance, principal accounting officer or treasurer of the Borrower.

“ fiscal quarter ” or “ FQ ” means a fiscal quarter of the Borrower and its Subsidiaries.

“ fiscal year ” or “ FY ” means a fiscal year of the Borrower and its Subsidiaries.

“ Foreign Lender ” means any Lender that is organized under the laws of a jurisdiction outside of the United States.

“ Foreign Subsidiary ” means any Subsidiary of the Borrower that is not a Domestic Subsidiary.

“ Fund ” means any Person (other than a natural person) that is (or will be) engaged in making, purchasing, holding or otherwise investing in commercial loans and similar extensions of credit in the ordinary course of its business.

“ GAAP ” means generally accepted accounting principles in the United States of America, as set forth in the statements, opinions and pronouncements of the Accounting Principles Board, the American Institute of Certified Public Accountants and the Financial Accounting Standards Board, consistently applied and maintained, as in effect from time to time (subject to the provisions of **Section 1.2**).

“ Governmental Authority ” means the government of the United States of America or any other nation, or of any political subdivision thereof, whether state or local, and any agency, authority, instrumentality, regulatory body, court, central bank or other entity exercising executive, legislative, judicial, taxing, regulatory or administrative powers or functions of or pertaining to government (including any supra-national bodies such as the European Union or the European Central Bank).

“ Guarantor ” means any Wholly-Owned Subsidiary of the Borrower that is a guarantor of the Obligations under the Guaranty (or under another guaranty agreement in form and substance satisfactory to the Administrative Agent).

“ Guaranty ” means the Amended and Restated Guaranty Agreement, dated as of April __, 2009, made by the Guarantors in favor of the Administrative Agent and the Lenders, as amended, supplemented or modified from time to time.

“ Guaranty Fund ” means any fund set up by (i) ICE Clear US pursuant to Section 5.4 of its by-laws, (ii) ICE Clear Europe, (iii) The Clearing Corporation, (iv) ICE US Trust, (v) ICE Clear Canada, and (vi) such other clearing houses owned and operated by the Borrower in the future, in each case in which its clearing members make deposits to secure the obligations of its clearing members and which is used to cover the losses sustained by such Person as a result of the default of any such clearing member.

“ Guaranty Obligation ” means, with respect to any Person, any direct or indirect liability of such Person with respect to any Indebtedness, liability or other obligation (the “ primary obligation ”) of another Person (the “ primary obligor ”), whether or not contingent, (i) to purchase, repurchase or otherwise acquire such primary obligation or any property constituting direct or indirect security therefor, (ii) to advance or provide funds (x) for the payment or discharge of any such primary obligation or (y) to maintain working capital or equity capital of the primary obligor or otherwise to maintain the net worth or solvency or any balance sheet item, level of income or financial condition of the primary obligor (including, without limitation, keep well agreements, maintenance agreements, comfort letters or similar agreements or arrangements), (iii) to lease or purchase property, securities or services primarily for the purpose of assuring the owner of any such primary obligation of the ability of the primary obligor in respect thereof to make payment of such primary obligation or (iv) otherwise to assure or hold

harmless the owner of any such primary obligation against loss or failure or inability to perform in respect thereof; provided, however, that, with respect to the Borrower and its Subsidiaries, the term Guaranty Obligation shall not include endorsements for collection or deposit in the ordinary course of business. The amount of any Guaranty Obligation of any guaranteeing Person hereunder shall be deemed to be the lower of (a) an amount equal to the stated or determinable amount of the primary obligation in respect of which such Guaranty Obligation is made and (b) the maximum amount for which such guaranteeing Person may be liable pursuant to the terms of the instrument embodying such Guaranty Obligation, unless such primary obligation and the maximum amount for which such guaranteeing Person may be liable are not stated or determinable, in which case the amount of such Guaranty Obligation shall be such guaranteeing Person's maximum reasonably anticipated liability in respect thereof as determined by such guaranteeing Person in good faith.

" Hazardous Substance " means any substance or material meeting any one or more of the following criteria: (i) it is or contains a substance designated as a hazardous waste, hazardous substance, hazardous material, pollutant, contaminant or toxic substance under any Environmental Law, (ii) it is toxic, explosive, corrosive, ignitable, infectious, radioactive, mutagenic or otherwise hazardous to human health or the environment and is or becomes regulated by any Governmental Authority, (iii) its presence may require investigation or response under any Environmental Law, (iv) it constitutes a nuisance, trespass or health or safety hazard to Persons or neighboring properties, or (v) it is or contains, without limiting the foregoing, asbestos, polychlorinated biphenyls, urea formaldehyde foam insulation, petroleum hydrocarbons, petroleum derived substances or wastes, crude oil, nuclear fuel, natural gas or synthetic gas.

" Hedge Agreement " means any interest or foreign currency rate swap, cap, collar, option, hedge, forward rate or other similar agreement or arrangement designed to protect against fluctuations in interest rates or currency exchange rates.

" Hedge Party " means any Lender or any Affiliate of any Lender in its capacity as a counterparty to any Hedge Agreement with the Borrower or any Subsidiary, which Hedge Agreement is required or permitted under this Agreement to be entered into by the Borrower, or any former Lender or any Affiliate of any former Lender in its capacity as a counterparty to any such Hedge Agreement entered into prior to the date such Person or its Affiliate ceased to be a Lender.

" ICE Clear Canada " means ICE Clear Canada, Inc., a Manitoba corporation and an indirect Wholly-Owned Subsidiary of the Borrower.

" ICE Clear Europe " means ICE Clear Europe Limited, a private limited company incorporated in England and Wales and an indirect Wholly-Owned Subsidiary of the Borrower.

" ICE Clear Europe Payment Services Agreement " shall mean the Payment Services Agreement between ICE Clear Europe and Citibank, N.A., London Branch, in a form reasonably acceptable to the Administrative Agent, for the purpose of providing an intraday liquidity line of credit to handle timing differences between receipts from and payments to clearing house members, and any renewal, replacement, refinancing or extension of such Indebtedness that does not increase the outstanding principal amount thereof.

“ ICE Clear US ” means ICE Clear U.S., Inc., a New York corporation and an indirect Wholly-Owned Subsidiary of the Borrower (formerly known as New York Clearing Corporation).

“ ICE Futures Europe ” means ICE Futures Europe, a United Kingdom corporation and an indirect Wholly-Owned Subsidiary of the Borrower.

“ ICE US Trust ” means ICE US Trust LLC, a New York limited liability trust company and a Subsidiary of the Borrower.

“ Indebtedness ” means, with respect to any Person (without duplication), (i) all obligations of such Person for borrowed money, (ii) all obligations of such Person evidenced by notes, bonds, debentures or similar instruments, or upon which interest payments are customarily made, (iii) the maximum stated or face amount of all surety bonds, letters of credit and bankers’ acceptances issued or created for the account of such Person and, without duplication, all drafts drawn thereunder (to the extent unreimbursed), (iv) all obligations of such Person to pay the deferred purchase price of property or services (excluding trade payables incurred in the ordinary course of business and not more than 90 days past due), (v) all indebtedness created or arising under any conditional sale or other title retention agreement with respect to property acquired by such Person, (vi) all Capital Lease Obligations of such Person, (vii) all Disqualified Capital Stock issued by such Person, with the amount of Indebtedness represented by such Disqualified Capital Stock being equal to the greater of its voluntary or involuntary liquidation preference and its maximum fixed repurchase price, (viii) the principal balance outstanding and owing by such Person under any synthetic lease, tax retention operating lease or similar off-balance sheet financing product, (ix) all Guaranty Obligations of such Person with respect to Indebtedness of another Person, (x) the net termination obligations of such Person under any Hedge Agreements, calculated as of any date as if such agreement or arrangement were terminated as of such date, and (xi) all indebtedness of the types referred to in clauses (i) through (x) above (A) of any partnership or unincorporated joint venture in which such Person is a general partner or joint venturer to the extent such Person is liable therefor or (B) secured by any Lien on any property or asset owned or held by such Person regardless of whether or not the indebtedness secured thereby shall have been incurred or assumed by such Person or is nonrecourse to the credit of such Person, the amount thereof being equal to the value of the property or assets subject to such Lien.

“ Indemnified Taxes ” means Taxes other than Excluded Taxes.

“ Intellectual Property ” means (i) all inventions (whether or not patentable and whether or not reduced to practice), all improvements thereto, and all patents, patent applications, and patent disclosures, together with all reissues, continuations, continuations-in-part, divisions, revisions, extensions, and reexaminations thereof, (ii) all trademarks, service marks, trade dress, logos, trade names, and corporate names, together with all goodwill associated therewith, and all applications, registrations, and renewals in connection therewith, (iii) all copyrightable works and all copyrights (registered and unregistered), (iv) all trade secrets and confidential

information (including, without limitation, financial, business and marketing plans and customer and supplier lists and related information), (v) all computer software and software systems (including, without limitation, data, databases and related documentation), (vi) all Internet web sites and domain names, (vii) all technology, know-how, processes and other proprietary rights, and (viii) all licenses or other agreements to or from third parties regarding any of the foregoing.

“ Interest Coverage Ratio ” means, as of the last day of any Reference Period ending on the last day of a fiscal quarter, the ratio of (i) Consolidated EBITDA for such Reference Period less Capital Expenditures and Capitalized Software Development Costs to (ii) Consolidated Interest Expense for such Reference Period.

“ Interest Period ” has the meaning given to such term in **Section 2.7** .

“ Investments ” has the meaning given to such term in **Section 7.11** .

“ Lender ” means each Person holding outstanding Loans, and each other Person that becomes a “Lender” hereunder pursuant to **Section 10.6** , and their respective successors and assigns.

“ Lending Office ” means, with respect to any Lender, the office of such Lender designated as such in such Lender’s Administrative Questionnaire or in connection with an Assignment and Assumption, or such other office as may be otherwise designated in writing from time to time by such Lender to the Borrower and the Administrative Agent. A Lender may designate separate Lending Offices as provided in the foregoing sentence for the purposes of making or maintaining different Types of Loans, and, with respect to LIBOR Loans, such office may be a domestic or foreign branch or Affiliate of such Lender.

“ LIBOR Loan ” means, at any time, any Loan that bears interest at such time at the applicable Adjusted LIBOR Rate.

“ LIBOR Rate ” means, with respect to each LIBOR Loan comprising part of the same Borrowing for any Interest Period, an interest rate per annum obtained by dividing (i) (y) the rate of interest appearing on Reuters Screen LIBOR01 Page (or any successor page) that represents an average British Bankers Association Interest Settlement Rate for Dollar deposits or (z) if no such rate is available, the rate of interest determined by the Administrative Agent to be the rate or the arithmetic mean of rates at which Dollar deposits in immediately available funds are offered to first-tier banks in the London interbank Eurodollar market, in each case under (y) and (z) above at approximately 11:00 a.m., London time, two (2) Business Days prior to the first day of such Interest Period for a period substantially equal to such Interest Period and in an amount substantially equal to the amount of Wachovia’s LIBOR Loan comprising part of such Borrowing, by (ii) the amount equal to 1.00 minus the Reserve Requirement (expressed as a decimal) for such Interest Period.

“ Lien ” means any mortgage, pledge, hypothecation, assignment, security interest, lien (statutory or otherwise), charge or other encumbrance of any nature, whether voluntary or involuntary, including, without limitation, the interest of any vendor or lessor under any conditional sale agreement, title retention agreement, Capital Lease or any other lease or arrangement having substantially the same effect as any of the foregoing.

“ Loans ” has the meaning set forth in **Section 2.1(a)** .

“ Margin Stock ” has the meaning given to such term in Regulation U.

“ Material Adverse Effect ” means a material adverse effect upon (i) the business, assets, properties, liabilities (actual or contingent), operations, condition (financial or otherwise) or prospects of the Borrower and its Subsidiaries, taken as a whole, (ii) the ability of the Credit Parties, taken as a whole, to perform their respective obligations under this Agreement or any of the other Credit Documents or (iii) the legality, validity or enforceability of this Agreement or any of the other Credit Documents or the rights and remedies of the Administrative Agent and the Lenders hereunder and thereunder.

“ Material Contract ” has the meaning given to such term in **Section 4.19** .

“ Maturity Date ” means January 12, 2012.

“ Multiemployer Plan ” means any “multiemployer plan” within the meaning of Section 4001(a)(3) of ERISA to which the Borrower or any ERISA Affiliate makes, is making or is obligated to make contributions or, during the immediately preceding five plan years, has made or been obligated to make contributions.

“ Net Cash Proceeds ” means, in the case of any Asset Disposition, the aggregate cash proceeds received by any Credit Party in respect thereof, less (i) reasonable fees and out-of-pocket expenses payable by the Borrower or any of its Subsidiaries in connection therewith, (ii) taxes paid or payable as a result thereof, and (iii) the amount required to retire Indebtedness to the extent such Indebtedness is secured by Liens on the subject property; it being understood that the term “ Net Cash Proceeds ” shall include, as and when received, any cash received upon the sale or other disposition of any non-cash consideration received by any Credit Party in respect of any of the foregoing events.

“ New Liquidity Facility ” means the Credit Agreement, dated as of the date hereof, among the Borrower, ICE US Trust, Wachovia, as administrative agent, BofA, as syndication agent and the lenders party thereto, providing for a revolving credit facility in the aggregate principal amount of \$300,000,000, the proceeds of which shall be used to provide liquidity for the clearing operations of ICE Clear Europe and ICE Clear US and for working capital and general corporate purposes of the Borrower and ICE Trust US in accordance with the terms and provisions thereof.

“ New Credit Facility ” means the Credit Agreement, dated as of the date hereof, among the Borrower, Wachovia, as administrative agent, BofA, as syndication agent and the lenders party thereto, providing for term and revolving credit facilities in the aggregate principal amount of \$300,000,000, the proceeds of which shall be used for working capital and general corporate purposes of the Borrower in accordance with the terms and provisions thereof.

“ Nonconsenting Lender ” means any Lender that does not approve a consent, waiver or amendment to any Credit Document requested by the Borrower or the Administrative Agent and that requires the approval of all Lenders (or all Lenders directly affected thereby) under **Section 10.5** when the Required Lenders have agreed to such consent, waiver or amendment.

“ Non-Wholly-Owned Subsidiary ” has the meaning given to such term in **Section 7.11** .

“ Notice of Conversion/Continuation ” has the meaning given to such term in **Section 2.8(b)** .

“ Obligations ” means all principal of and interest (including interest accruing after the filing of a petition or commencement of a case by or with respect to the Borrower seeking relief under any applicable federal and state laws pertaining to bankruptcy, reorganization, arrangement, moratorium, readjustment of debts, dissolution, liquidation or other debtor relief, specifically including, without limitation, the Bankruptcy Code and any fraudulent transfer and fraudulent conveyance laws, whether or not the claim for such interest is allowed in such proceeding) on the Loans and all fees, expenses, indemnities and other obligations owing, due or payable at any time by the Borrower or any Subsidiary Guarantor to the Administrative Agent, any Lender or any other Person entitled thereto, under this Agreement or any of the other Credit Documents, and all payment and other obligations owing or payable at any time by the Borrower to any Hedge Party under or in connection with any Hedge Agreement to fix or limit interest rates payable by the Borrower in respect of any Loans, in each case whether direct or indirect, joint or several, absolute or contingent, matured or unmatured, liquidated or unliquidated, secured or unsecured, and whether existing by contract, operation of law or otherwise.

“ OFAC ” means the U.S. Department of the Treasury’s Office of Foreign Assets Control, and any successor thereto.

“ Original Credit Agreement ” has the meaning given to such term in the Background Statement of this Agreement.

“ Other Taxes ” means all present or future stamp or documentary taxes or any other excise or property taxes, charges or similar levies arising from any payment made hereunder or under any other Credit Document or from the execution, delivery or enforcement of, or otherwise with respect to, this Agreement or any other Credit Document.

“ Participant ” has the meaning given to such term in **Section 10.6(d)** .

“ PATRIOT Act ” means the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism (USA PATRIOT Act of 2001), as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ Payment Office ” means the office of the Administrative Agent designated on **Schedule 1.1(a)** under the heading “Instructions for wire transfers to the Administrative Agent,” or such other office as the Administrative Agent may designate to the Lenders and the Borrower for such purpose from time to time.

“ PBGC ” means the Pension Benefit Guaranty Corporation established pursuant to Subtitle A of Title IV of ERISA, and any successor thereto.

“ Permitted Acquisition ” means any Acquisition permitted to be consummated pursuant to the terms in **Section 7.5** .

“ Permitted Asset Disposition ” means any Asset Disposition permitted under **Section 7.4(iv)** .

“ Permitted Liens ” has the meaning given to such term in **Section 7.3** .

“ Person ” means any natural person, corporation, limited liability company, trust, joint venture, association, company, partnership, Governmental Authority, Self-Regulatory Organization or other entity.

“ Plan ” means any “employee pension benefit plan” within the meaning of Section 3(2) of ERISA that is subject to the provisions of Title IV of ERISA (other than a Multiemployer Plan) and to which the Borrower or any ERISA Affiliate may have any liability.

“ PPA 2006 Effective Date ” means, with respect to any Plan, except as hereinafter provided, the first day of the first plan year beginning on or after January 1, 2008. However, solely with respect to a Plan maintained pursuant to one or more collective bargaining agreements between employee representatives and one or more employers ratified before January 1, 2008, such term means the first day of the first plan year beginning on or after the earlier of (A) and (B), where: (A) is the later of (x) the date on which the last collective bargaining agreement relating to the Plan terminates (determined without regard to any extension thereof agreed to after August 17, 2006), or (y) the first day of the first plan year beginning on or after January 1, 2008; and (B) is January 1, 2010.

“ Pro Forma Basis ” has the meaning given to such term in **Section 1.3(b)** .

“ Prohibited Transaction ” means any transaction described in (i) Section 406 of ERISA that is not exempt by reason of Section 408 of ERISA or by reason of a Department of Labor prohibited transaction individual or class exemption or (ii) Section 4975(c) of the Code that is not exempt by reason of Section 4975(c)(2) or 4975(d) of the Code.

“ Projections ” has the meaning given to such term in **Section 4.11(b)** .

“ Realty ” means all real property and interests in real property now or hereafter acquired or leased by any Credit Party.

“ Reference Period ” with respect to any date of determination, means (except as may be otherwise expressly provided herein) the period of twelve consecutive fiscal months of the Borrower immediately preceding such date or, if such date is the last day of a fiscal quarter, the period of four consecutive fiscal quarters ending on such date.

“ Register ” has the meaning given to such term in **Section 10.6(c)** .

“ Regulations T, U and X ” means Regulations T, U and X, respectively, of the Federal Reserve Board, and any successor regulations.

“ Related Parties ” means, with respect to any Person, such Person’s Affiliates and the partners, directors, officers, employees, agents and advisors of such Person and of such Person’s Affiliates.

“ Reportable Event ” means, with respect to any Plan, (i) any “reportable event” within the meaning of Section 4043(c) of ERISA for which the 30-day notice under Section 4043(a) of ERISA has not been waived by the PBGC (including, without limitation, any failure to meet the minimum funding standard of, or timely make any required installment under, Section 412 of the Code or Section 302 of ERISA, regardless of the issuance of any waivers in accordance with Section 412(d) of the Code), (ii) any such “reportable event” subject to advance notice to the PBGC under Section 4043(b)(3) of ERISA, (iii) any application for a funding waiver or an extension of any amortization period pursuant to Section 412 of the Code, and (iv) a cessation of operations described in Section 4062(e) of ERISA.

“ Required Lenders ” means, at any time, the Lenders holding outstanding Loans representing at least a majority of the aggregate, at such time, of all outstanding Loans.

“ Requirement of Law ” means, with respect to any Person, the charter, articles or certificate of organization or incorporation and bylaws or other organizational or governing documents of such Person, and any statute, law, treaty, rule, regulation, order, decree, writ, injunction or determination of any arbitrator or court or other Governmental Authority or any Self-Regulatory Organization, in each case applicable to or binding upon such Person or any of its property or to which such Person or any of its property is subject or otherwise pertaining to any or all of the transactions contemplated by this Agreement and the other Credit Documents.

“ Reserve Requirement ” means, with respect to any Interest Period, the reserve percentage (expressed as a decimal and rounded upwards, if necessary, to the next higher 1/100th of 1%) in effect from time to time during such Interest Period, as provided by the Federal Reserve Board, applied for determining the maximum reserve requirements (including, without limitation, basic, supplemental, marginal and emergency reserves) applicable to Wachovia under Regulation D with respect to “Eurocurrency liabilities” within the meaning of Regulation D, or under any similar or successor regulation with respect to Eurocurrency liabilities or Eurocurrency funding.

“ Responsible Officer ” means, with respect to any Credit Party, the president, the chief executive officer, the chief financial officer, any executive officer, or any other Financial Officer of such Credit Party, and any other officer or similar official thereof responsible for the administration of the obligations of such Credit Party in respect of this Agreement or any other Credit Document.

“ Restatement Agreement ” means the Amendment and Restatement Agreement dated as of the Restatement Effective Date, effecting the amendment and restatement of the Original Credit Agreement.

“ Restatement Effective Date ” means the Business Day on which all the conditions precedent in Section 5 of the Restatement Agreement shall have been satisfied or waived in accordance with the terms of this Agreement.

“ Sanctioned Country ” means a country subject to a sanctions program identified on the list maintained by OFAC and available at <http://www.treas.gov/offices/enforcement/ofac/-sanctions/index.html> , or as otherwise published from time to time.

“Sanctioned Person” means (i) a Person named on the list of Specially Designated Nationals or Blocked Persons maintained by OFAC available at <http://www.treas.gov/-offices/enforcement/ofac/sdn/index.html>, or as otherwise published from time to time, or (ii) (A) an agency of the government of a Sanctioned Country, (B) an organization controlled by a Sanctioned Country, or (C) a Person resident in a Sanctioned Country, to the extent subject to a sanctions program administered by OFAC.

“Self Regulatory Organization” means any U.S. or foreign commission, board, agency or body that is not a Governmental Authority, but is charged with the supervision or regulation of brokers, dealers, securities underwriting or trading, stock exchanges, commodities exchanges, electronic communication networks, insurance companies or agents, investment companies or investment advisors.

“Subsidiary” means, with respect to any Person, any corporation or other Person of which more than fifty percent (50%) of the outstanding Capital Stock having ordinary voting power to elect a majority of the board of directors, board of managers or other governing body of such Person, is at the time, directly or indirectly, owned or controlled by such Person and one or more of its other Subsidiaries or a combination thereof (irrespective of whether, at the time, securities of any other class or classes of any such corporation or other Person shall or might have voting power by reason of the happening of any contingency). When used without reference to a parent entity, the term “Subsidiary” shall be deemed to refer to a Subsidiary of the Borrower.

“Subsidiary Guarantor” means any Guarantor that is a Subsidiary of the Borrower.

“Target” has the meaning given to such term in **Section 5.10(a)(i)**.

“Taxes” means all present or future taxes, levies, imposts, duties, deductions, withholdings, assessments, fees or other charges imposed by any Governmental Authority, including any interest, additions to tax or penalties applicable thereto.

“Term Note” means, with respect to any Lender requesting the same, the promissory note of the Borrower in favor of such Lender evidencing the Loan made by such Lender pursuant to **Section 2.1(a)**, in substantially the form of **Exhibit A-1**, together with any amendments, modifications and supplements thereto, substitutions therefor and restatements thereof.

“The Clearing Corporation” means The Clearing Corporation, a Delaware corporation and a Subsidiary of the Borrower.

“Total Funded Debt” means, as of any date of determination, the aggregate principal amount of all Indebtedness of the Borrower and its Subsidiaries as of such date, determined on a consolidated basis in accordance with GAAP.

“Total Leverage Ratio” means, as of the last day of any Reference Period ending on the last day of a fiscal quarter, the ratio of (i) Total Funded Debt as of such date to (ii) Consolidated EBITDA for such Reference Period.

“Total Voting Power” means, with respect to any Person, the total number of votes which may be cast in the election of directors of such Person at any meeting of stockholders of such

Person if all securities entitled to vote in the election of directors of such Person (on a fully diluted basis, assuming the exercise, conversion or exchange of all rights, warrants, options and securities exercisable for, exchangeable for or convertible into, such voting securities) were present and voted at such meeting (other than votes that may be cast only upon the happening of a contingency).

“Type” has the meaning given to such term in **Section 2.1(b)** .

“Unfunded Pension Liability” means, with respect to any Plan, the excess of its benefit liabilities under Section 4001(a)(16) of ERISA over the current value of its assets, determined in accordance with the applicable assumptions used for funding under Section 412 of the Code for the applicable plan year.

“Wachovia” means Wachovia Bank, National Association, and its successors and assigns.

“Wholly-Owned” means, with respect to any Subsidiary of any Person, that 100% of the outstanding Capital Stock of such Subsidiary (excluding any directors’ qualifying shares and shares required to be held by foreign nationals, in the case of a Foreign Subsidiary) is owned, directly or indirectly, by such Person.

1.2 Accounting Terms. Unless otherwise specified herein, all accounting terms used herein shall be interpreted, all accounting determinations hereunder shall be made, and all financial statements required to be delivered hereunder shall be prepared in accordance with, GAAP applied on a basis consistent with the most recent audited consolidated financial statements of the Borrower and its Subsidiaries delivered to the Lenders prior to the Closing Date; provided that if the Borrower notifies the Administrative Agent that it wishes to amend any financial covenant in **Article VI** to eliminate the effect of any change in GAAP on the operation of such covenant (or if the Administrative Agent notifies the Borrower that the Required Lenders wish to amend **Article VI** for such purpose), then the Borrower’s compliance with such covenant shall be determined on the basis of GAAP as in effect immediately before the relevant change in GAAP became effective, until either such notice is withdrawn or such covenant is amended in a manner satisfactory to the Borrower and the Required Lenders.

1.3 Other Terms; Construction.

- (a) The definitions of terms herein shall apply equally to the singular and plural forms of the terms defined. Whenever the context may require, any pronoun shall include the corresponding masculine, feminine and neuter forms. The words “include,” “includes” and “including” shall be deemed to be followed by the phrase “without limitation.” The word “will” shall be construed to have the same meaning and effect as the word “shall.” Unless the context requires otherwise, (i) any definition of or reference to any agreement, instrument or other document shall be construed as referring to such agreement, instrument or other document as from time to time amended, supplemented, restated or otherwise modified (subject to any restrictions on such amendments, supplements, restatements or modifications set forth herein or in any other Credit Document), (ii) any reference

herein to any Person shall be construed to include such Person's successors and assigns permitted hereunder, (iii) the words "herein," "hereof" and "hereunder," and words of similar import when used in any Credit Document, shall be construed to refer to such Credit Document in its entirety and not to any particular provision thereof, (iv) all references in a Credit Document to Articles, Sections, Exhibits and Schedules shall be construed to refer to Articles and Sections of, and Exhibits and Schedules to, the Credit Document in which such references appear, (v) any reference to any law or regulation herein shall, unless otherwise specified, refer to such law or regulation as amended, modified or supplemented from time to time, and (vi) the words "asset" and "property" shall be construed to have the same meaning and effect and to refer to any and all tangible and intangible assets and properties, including cash, securities, accounts and contract rights.

- (b) Notwithstanding the foregoing, calculations to determine compliance by the Borrower for any period with the Total Leverage Ratio covenant as set forth in **Article VI**, and calculations of the financial covenants contained in **Article VI** to determine whether a condition to a Permitted Acquisition, Permitted Asset Disposition, permitted incurrence of Indebtedness or other transaction has been met, shall be determined in each case on a pro forma basis (a "Pro Forma Basis") after giving effect to any Acquisition, Asset Disposition, incurrence of Indebtedness or other transaction (each, a "transaction") occurring during such period (or proposed to be consummated, as the case may be) as if such transaction had occurred as of the first day of such period, in accordance with the following:
- (i) any Indebtedness incurred or assumed by any Credit Party in connection with any transaction (including any Indebtedness of a Person acquired in a Permitted Acquisition that is not retired or repaid in connection therewith) shall be deemed to have been incurred or assumed as of the first day of the applicable period (and if such Indebtedness has a floating or formula rate, such Indebtedness shall, for purposes of such determination, have an implied rate of interest during the applicable period determined by utilizing the rate of interest that is or would be in effect with respect to such Indebtedness as of the date of determination);
 - (ii) any Indebtedness retired or repaid in connection with any transaction (including any Indebtedness of a Person acquired in a Permitted Acquisition) shall be deemed to have been retired or repaid as of the first day of the applicable period;
 - (iii) with respect to any Permitted Acquisition, (A) income statement items (whether positive or negative) and balance sheet items attributable to the Person or assets acquired shall (to the extent not otherwise included in the consolidated financial statements of the Borrower and its Subsidiaries in accordance with GAAP or in accordance with other provisions of this Agreement) be included in such calculations to the extent relating to the

applicable period, provided that such income statement and balance sheet items are reflected in financial statements or other financial data reasonably acceptable to the Administrative Agent, and (B) operating expense reductions, cost savings and other pro forma adjustments attributable to such Permitted Acquisition may be included to the extent that such adjustments (y) would be permitted pursuant to Article XI of Regulation S-X under the Securities Act (irrespective of whether the Borrower is subject thereto) or (z) have been approved in writing by the Administrative Agent; and

- (iv) with respect to any Permitted Asset Disposition, income statement items (whether positive or negative) and balance sheet items attributable to the assets disposed of shall be excluded from such calculations to the extent relating to the applicable period.

ARTICLE II

AMOUNT AND TERMS OF THE LOANS

2.1 Loans.

- (a) The aggregate principal amount of the Term Loans (as defined in the Original Credit Agreement) made pursuant to the Original Credit Agreement and outstanding on the Restatement Date is \$175,000,000 (such Term Loans, the “Loans”). To the extent repaid, the Loans may not be reborrowed.
- (b) The Loans shall, at the option of the Borrower and subject to the terms and conditions of this Agreement, be either Base Rate Loans or LIBOR Loans (each, a “Type” of Loan), provided that all Loans comprising the same Borrowing shall, unless otherwise specifically provided herein, be of the same Type.
- (c) Each Lender may, at its option, make and maintain any Loan at, to or for the account of any of its Lending Offices, provided that any exercise of such option shall not affect the obligation of the Borrower to repay such Loan to or for the account of such Lender in accordance with the terms of this Agreement.

2.2 Evidence of Debt; Term Notes.

- (a) Each Lender shall maintain in accordance with its usual practice an account or accounts evidencing the indebtedness of the Borrower to the applicable Lending Office of such Lender resulting from each Loan made by such Lending Office of such Lender from time to time, including the amounts of principal and interest payable and paid to such Lending Office of such Lender from time to time under this Agreement.

- (b) The Administrative Agent shall maintain the Register pursuant to **Section 10.6(c)** , and a subaccount for each Lender, in which Register and subaccounts (taken together) shall be recorded (i) the amount of each such Loan, the Type of each such Loan and the Interest Period applicable thereto, (ii) the amount of any principal or interest due and payable or to become due and payable from the Borrower to each Lender hereunder in respect of each such Loan and (iii) the amount of any sum received by the Administrative Agent hereunder from the Borrower in respect of each such Loan and each Lender's share thereof.
- (c) The entries made in the Register and subaccounts maintained pursuant to **Section 2.2(b)** (and, if consistent with the entries of the Administrative Agent, the accounts maintained pursuant to **Section 2.2(a)**) shall, to the extent permitted by applicable law, be conclusive absent manifest error of the existence and amounts of the obligations of the Borrower therein recorded; provided, however, that the failure of any Lender or the Administrative Agent to maintain such account, such Register or such subaccount, as applicable, or any error therein, shall not in any manner affect the obligation of the Borrower to repay (with applicable interest) the Loans made to the Borrower by such Lender in accordance with the terms of this Agreement.
- (d) The Loans made by each Lender, if requested by the applicable Lender (which request shall be made to the Administrative Agent), are and shall be evidenced by a Term Note appropriately completed in substantially the form of **Exhibit A-1** . Each Term Note shall be entitled to all of the benefits of this Agreement and the other Credit Documents and shall be subject to the provisions hereof and thereof.

2.3 Mandatory Payments.

- (a) Except to the extent due or paid sooner pursuant to the provisions of this Agreement, the Borrower will repay the Loans on each date set forth below in the aggregate principal amount opposite such date:

<u>Date</u>	<u>Payment Amount</u>
June 30, 2009	\$ 12,500,000
September 30, 2009	\$ 12,500,000
December 31, 2009	\$ 12,500,000
March 31, 2010	\$ 12,500,000
June 30, 2010	\$ 12,500,000
September 30, 2010	\$ 12,500,000
December 31, 2010	\$ 12,500,000
March 31, 2011	\$ 12,500,000
June 30, 2011	\$ 18,750,000
September 30, 2011	\$ 18,750,000
December 31, 2011	\$ 18,750,000
Maturity Date	\$ 18,750,000

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- (b) Except to the extent due or paid sooner pursuant to the provisions of this Agreement, the aggregate outstanding principal of the Loans shall be due and payable in full on the Maturity Date.

2.4 Voluntary Prepayments.

- (a) At any time and from time to time, the Borrower shall have the right to prepay the Loans, in whole or in part, without premium or penalty (except as provided in clause (iii) below), upon written notice given to the Administrative Agent not later than 11:00 a.m., Charlotte time, three (3) Business Days prior to each intended prepayment of LIBOR Loans and one (1) Business Day prior to each intended prepayment of Base Rate Loans, provided that (i) each partial prepayment of LIBOR Loans shall be in an aggregate principal amount of not less than \$5,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof, and each partial prepayment of Base Rate Loans shall be in an aggregate principal amount of not less than \$3,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof, (ii) no partial prepayment of LIBOR Loans made pursuant to any single Borrowing shall reduce the aggregate outstanding principal amount of the remaining LIBOR Loans under such Borrowing to less than \$5,000,000 or to any greater amount not an integral multiple of \$1,000,000 in excess thereof, and (iii) unless made together with all amounts required under **Section 2.14** to be paid as a consequence of such prepayment, a prepayment of a LIBOR Loan may be made only on the last day of the Interest Period applicable thereto. Each such notice shall specify the proposed date of such prepayment and the aggregate principal amount, the Type of the Loans to be prepaid (and, in the case of LIBOR Loans, the Interest Period of the Borrowing pursuant to which made), and shall be irrevocable and shall bind the Borrower to make such prepayment on the terms specified therein. In the event the Administrative Agent receives a notice of prepayment under this Section, the Administrative Agent will give prompt notice thereof to the Lenders; provided that if such notice has also been furnished to the Lenders, the Administrative Agent shall have no obligation to notify the Lenders with respect thereto.
- (b) Each prepayment of the Loans made pursuant to **Section 2.4(a)** shall be applied to reduce the outstanding principal amount of the Loans, with such reduction to be applied to the remaining scheduled principal payments in each instance on a pro rata basis. Each prepayment of the Loans made pursuant to **Section 2.4(a)** shall be applied ratably among the Lenders holding the Loans being prepaid, in proportion to the principal amount held by each.

2.5 Interest.

- (a) Subject to **Section 2.5(b)**, the Borrower will pay interest in respect of the unpaid principal amount of each Loan, from the Restatement Effective Date until such principal amount shall be paid in full, (i) at the Adjusted Base Rate, as in effect from time to time during such periods as such Loan is a Base Rate Loan, and (ii) at the Adjusted LIBOR Rate, as in effect from time to time during such periods as such Loan is a LIBOR Loan.

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- (b) Upon the occurrence and during the continuance of any Event of Default under **Sections 8.1(a)** , **8.1(f)** , or **8.1(g)** and (at the election of the Required Lenders) upon the occurrence and during the continuance of any other Event of Default, all outstanding principal amounts of the Loans and, to the greatest extent permitted by law, all interest accrued on the Loans and all other accrued and outstanding fees and other amounts hereunder, shall bear interest at a rate per annum equal to the interest rate applicable from time to time thereafter to such Loans plus 2% (or, in the case of interest, fees and other amounts for which no rate is provided hereunder, at the Adjusted Base Rate plus 2%), and, in each case, such default interest shall be payable on demand. To the greatest extent permitted by law, interest shall continue to accrue after the filing by or against the Borrower of any petition seeking any relief in bankruptcy or under any law pertaining to insolvency or debtor relief.
- (c) Accrued (and theretofore unpaid) interest shall be payable as follows:
- (i) in respect of each Base Rate Loan (including any Base Rate Loan or portion thereof paid or prepaid pursuant to the provisions of **Section 2.3** , except as provided hereinbelow), in arrears on the last Business Day of each calendar quarter, beginning with the first such day to occur after the Restatement Effective Date; provided, that in the event the Loans are repaid or prepaid in full, then accrued interest in respect of all Base Rate Loans shall be payable together with such repayment or prepayment on the date thereof;
 - (ii) in respect of each LIBOR Loan (including any LIBOR Loan or portion thereof paid or prepaid pursuant to the provisions of **Section 2.3** , except as provided hereinbelow), in arrears (y) on the last Business Day of the Interest Period applicable thereto (subject to the provisions of **Section 2.7(iii)**) and (z) in addition, in the case of a LIBOR Loan with an Interest Period having a duration of six months or longer, on each date on which interest would have been payable under clause (y) above had successive Interest Periods of three months' duration been applicable to such LIBOR Loan; provided, that in the event all LIBOR Loans made pursuant to a single Borrowing are repaid or prepaid in full, then accrued interest in respect of such LIBOR Loans shall be payable together with such repayment or prepayment on the date thereof; and
 - (iii) in respect of any Loan, at maturity (whether pursuant to acceleration or otherwise) and, after maturity, on demand.

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- (d) Nothing contained in this Agreement or in any other Credit Document shall be deemed to establish or require the payment of interest to any Lender at a rate in excess of the maximum rate permitted by applicable law. If the amount of interest payable for the account of any Lender on any interest payment date would exceed the maximum amount permitted by applicable law to be charged by such Lender, the amount of interest payable for its account on such interest payment date shall be automatically reduced to such maximum permissible amount. In the event of any such reduction affecting any Lender, if from time to time thereafter the amount of interest payable for the account of such Lender on any interest payment date would be less than the maximum amount permitted by applicable law to be charged by such Lender, then the amount of interest payable for its account on such subsequent interest payment date shall be automatically increased to such maximum permissible amount, provided that at no time shall the aggregate amount by which interest paid for the account of any Lender has been increased pursuant to this sentence exceed the aggregate amount by which interest paid for its account has theretofore been reduced pursuant to the previous sentence.
- (e) The Administrative Agent shall promptly notify the Borrower and the Lenders upon determining the interest rate for each Borrowing of LIBOR Loans after its receipt of the relevant Notice of Conversion/Continuation, and upon each change in the Base Rate; provided, however, that the failure of the Administrative Agent to provide the Borrower or the Lenders with any such notice shall neither affect any obligations of the Borrower or the Lenders hereunder nor result in any liability on the part of the Administrative Agent to the Borrower or any Lender. Each such determination (including each determination of the Reserve Requirement) shall, absent manifest error, be conclusive absent manifest error and binding on all parties hereto.

2.6 Fees. The Borrower agrees to pay to Wachovia, for its own account, the administrative fee required under its Fee Letter to be paid to Wachovia, in the amounts due and at the times due as required by the terms thereof.

2.7 Interest Periods. Concurrently with the giving of a Notice of Conversion/Continuation in respect of any Borrowing comprised of Base Rate Loans to be converted into, or LIBOR Loans to be continued as, LIBOR Loans, the Borrower shall have the right to elect, pursuant to such notice, the interest period (each, an “Interest Period”) to be applicable to such LIBOR Loans, which Interest Period shall, at the option of the Borrower, be a one, two, three or six-month period; provided, however, that:

- (i) the initial Interest Period for any LIBOR Loan shall commence on the date of any continuation of, or conversion into, such LIBOR Loan, and each successive Interest Period applicable to such LIBOR Loan shall commence on the day on which the next preceding Interest Period applicable thereto expires;

- (ii) LIBOR Loans may not be outstanding under more than ten (10) separate Interest Periods at any one time (for which purpose Interest Periods shall be deemed to be separate even if they are coterminous);
- (iii) if any Interest Period otherwise would expire on a day that is not a Business Day, such Interest Period shall expire on the next succeeding Business Day unless such next succeeding Business Day falls in another calendar month, in which case such Interest Period shall expire on the next preceding Business Day;
- (iv) no Interest Period may be selected with respect to the Loans that would end after a scheduled date for repayment of principal of the Loans occurring on or after the first day of such Interest Period unless, immediately after giving effect to such selection, the aggregate principal amount of Loans that are Base Rate Loans or that have Interest Periods expiring on or before such principal repayment date equals or exceeds the principal amount required to be paid on such principal repayment date;
- (v) the Borrower may not select any Interest Period that expires after the Maturity Date, with respect to Loans that are to be maintained as LIBOR Loans;
- (vi) if any Interest Period begins on a day for which there is no numerically corresponding day in the calendar month during which such Interest Period would otherwise expire, such Interest Period shall expire on the last Business Day of such calendar month; and
- (vii) the Borrower may not select any Interest Period (and consequently, no LIBOR Loans shall be made) if a Default or Event of Default shall have occurred and be continuing at the time of such Notice of Conversion/Continuation with respect to any Borrowing.

2.8 Conversions and Continuations.

- (a) The Borrower shall have the right, on any Business Day occurring on or after the Restatement Effective Date, to elect (i) to convert all or a portion of the outstanding principal amount of any Base Rate Loans into LIBOR Loans, or to convert any LIBOR Loans the Interest Periods for which end on the same day into Base Rate Loans, or (ii) upon the expiration of any Interest Period, to continue all or a portion of the outstanding principal amount of any LIBOR Loans the Interest Periods for which end on the same day for an additional Interest Period, provided that (w) any such conversion of LIBOR Loans into Base Rate Loans shall involve an aggregate principal amount of not less than \$3,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof; any such conversion of Base

Rate Loans into, or continuation of, LIBOR Loans shall involve an aggregate principal amount of not less than \$5,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof; and no partial conversion of LIBOR Loans made pursuant to a single Borrowing shall reduce the outstanding principal amount of such LIBOR Loans to less than \$5,000,000 or to any greater amount not an integral multiple of \$1,000,000 in excess thereof, (x) except as otherwise provided in **Section 2.12(f)**, LIBOR Loans may be converted into Base Rate Loans only on the last day of the Interest Period applicable thereto (and, in any event, if a LIBOR Loan is converted into a Base Rate Loan on any day other than the last day of the Interest Period applicable thereto, the Borrower will pay, upon such conversion, all amounts required under **Section 2.14** to be paid as a consequence thereof), and (y) no conversion of Base Rate Loans into LIBOR Loans or continuation of LIBOR Loans shall be permitted during the continuance of a Default or Event of Default.

- (b) The Borrower shall make each such election by giving the Administrative Agent written notice not later than 11:00 a.m., Charlotte time, three (3) Business Days prior to the intended effective date of any conversion of Base Rate Loans into, or continuation of, LIBOR Loans and one (1) Business Day prior to the intended effective date of any conversion of LIBOR Loans into Base Rate Loans. Each such notice (each, a “Notice of Conversion/Continuation”) shall be irrevocable, shall be given in the form of **Exhibit B-3** and shall specify (x) the date of such conversion or continuation (which shall be a Business Day), (y) in the case of a conversion into, or a continuation of, LIBOR Loans, the Interest Period to be applicable thereto, and (z) the aggregate amount, and Type of the Loans being converted or continued. Upon the receipt of a Notice of Conversion/Continuation, the Administrative Agent will promptly notify each applicable Lender of the proposed conversion or continuation. In the event that the Borrower shall fail to deliver a Notice of Conversion/Continuation as provided herein with respect to any outstanding LIBOR Loans, such LIBOR Loans shall automatically be converted to Base Rate Loans upon the expiration of the then current Interest Period applicable thereto (unless repaid pursuant to the terms hereof). In the event the Borrower shall have failed to select in a Notice of Conversion/Continuation the duration of the Interest Period to be applicable to any conversion into, or continuation of, LIBOR Loans, then the Borrower shall be deemed to have selected an Interest Period with a duration of one month.

2.9 Method of Payments; Computations; Apportionment of Payments.

- (a) All payments by the Borrower hereunder shall be made without setoff, counterclaim or other defense, in Dollars and in immediately available funds to the Administrative Agent, for the account of the Lenders entitled to such payment or the Administrative Agent, as the case may be (except as otherwise expressly provided herein as to payments required to be made directly to the Lenders) at the Payment Office prior to 12:00 noon, Charlotte time, on the date payment is due. Any payment made as required hereinabove, but after 12:00 noon, Charlotte time, shall be deemed to have been made on the next succeeding Business Day. If any

payment falls due on a day that is not a Business Day, then such due date shall be extended to the next succeeding Business Day (except that in the case of LIBOR Loans to which the provisions of **Section 2.7(iii)** are applicable, such due date shall be the next preceding Business Day), and such extension of time shall then be included in the computation of payment of interest, fees or other applicable amounts.

- (b) The Administrative Agent will distribute to the Lenders like amounts relating to payments made to the Administrative Agent for the account of the Lenders as follows: (i) if the payment is received by 12:00 noon, Charlotte time, in immediately available funds, the Administrative Agent will make available to each relevant Lender on the same date, by wire transfer of immediately available funds, such Lender's ratable share of such payment (based on the percentage that the amount of the relevant payment owing to such Lender bears to the total amount of such payment owing to all of the relevant Lenders), and (ii) if such payment is received after 12:00 noon, Charlotte time, or in other than immediately available funds, the Administrative Agent will make available to each such Lender its ratable share of such payment by wire transfer of immediately available funds on the next succeeding Business Day (or in the case of uncollected funds, as soon as practicable after collected). If the Administrative Agent shall not have made a required distribution to the appropriate Lenders as required hereinabove after receiving a payment for the account of such Lenders, the Administrative Agent will pay to each such Lender, on demand, its ratable share of such payment with interest thereon at the Federal Funds Rate for each day from the date such amount was required to be disbursed by the Administrative Agent until the date repaid to such Lender.
- (c) Unless the Administrative Agent shall have received notice from the Borrower prior to the date on which any payment is due to the Administrative Agent for the account of the Lenders hereunder that the Borrower will not make such payment, the Administrative Agent may assume that the Borrower has made such payment on such date in accordance herewith and may, in reliance upon such assumption, distribute to the Lenders, as the case may be, the amount due. In such event, if the Borrower has not in fact made such payment, then each Lender, as the case may be, severally agrees to repay to the Administrative Agent forthwith on demand the amount so distributed to such Lender, with interest thereon, for each day from and including the date such amount is distributed to it to but excluding the date of payment to the Administrative Agent, at the greater of the Federal Funds Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation.
- (d) All computations of interest and fees hereunder (including computations of the Reserve Requirement) shall be made on the basis of a year consisting of (i) in the case of interest on Base Rate Loans, 365/366 days, as the case may be, or (ii) in all other instances, 360 days; and in each case under (i) and (ii) above, with regard to the actual number of days (including the first day, but excluding the last day) elapsed.

- (e) Notwithstanding any other provision of this Agreement or any other Credit Document to the contrary, all amounts collected or received by the Administrative Agent or any Lender after acceleration of the Loans pursuant to **Section 8.2** shall be applied by the Administrative Agent as follows:
- (i) first, to the payment of all reasonable out-of-pocket costs and expenses (including, without limitation, reasonable attorneys' and consultants' fees irrespective of whether such fees are allowed as a claim after the occurrence of a Bankruptcy Event) of the Administrative Agent in connection with enforcing the rights of the Lenders under the Credit Documents;
 - (ii) second, to the payment of any fees owed to the Administrative Agent hereunder or under any other Credit Document;
 - (iii) third, to the payment of all reasonable and documented out-of-pocket costs and expenses (including, without limitation, reasonable attorneys' and consultants' fees irrespective of whether such fees are allowed as a claim after the occurrence of a Bankruptcy Event) of each of the Lenders in connection with enforcing its rights under the Credit Documents or otherwise with respect to the Obligations owing to such Lender;
 - (iv) fourth, to the payment of all of the Obligations consisting of accrued fees and interest (including, without limitation, fees incurred and interest accruing at the then applicable rate after the occurrence of a Bankruptcy Event irrespective of whether a claim for such fees incurred and interest accruing is allowed in such proceeding);
 - (v) fifth, to the payment of the outstanding principal amount of the Obligations;
 - (vi) sixth, to the payment of all other Obligations and other obligations that shall have become due and payable under the Credit Documents and not repaid; and
 - (vii) seventh, to the payment of the surplus (if any) to whomever may be lawfully entitled to receive such surplus.

In carrying out the foregoing, (x) amounts received shall be applied in the numerical order provided until exhausted prior to application to the next succeeding category, and (y) all amounts shall be apportioned ratably among the Lenders in proportion to the amounts of such principal, interest, fees or other Obligations owed to them respectively pursuant to clauses (iii) through (vii) above.

2.10 Recovery of Payments.

- (a) The Borrower agrees that to the extent the Borrower makes a payment or payments to or for the account of the Administrative Agent or any Lender, which payment or payments or any part thereof are subsequently invalidated, declared to be fraudulent or preferential, set aside or required to be repaid to a trustee, receiver or any other party under any bankruptcy, insolvency or similar state or federal law, common law or equitable cause (whether as a result of any demand, settlement, litigation or otherwise), then, to the extent of such payment or repayment, the Obligation intended to be satisfied shall be revived and continued in full force and effect as if such payment had not been received.
- (b) If any amounts distributed by the Administrative Agent to any Lender are subsequently returned or repaid by the Administrative Agent to the Borrower, its representative or successor in interest, or any other Person, whether by court order, by settlement approved by the Lender in question, or pursuant to applicable Requirements of Law, such Lender will, promptly upon receipt of notice thereof from the Administrative Agent, pay the Administrative Agent such amount. If any such amounts are recovered by the Administrative Agent from the Borrower, its representative or successor in interest or such other Person, the Administrative Agent will redistribute such amounts to the Lenders on the same basis as such amounts were originally distributed.

2.11 Pro Rata Treatment.

- (a) All fundings, continuations and conversions of Loans shall be made by the Lenders pro rata on the basis of their respective outstanding Loans. All payments on account of principal of or interest on any Loans, fees or any other Obligations owing to or for the account of any one or more Lenders shall be apportioned ratably among such Lenders in proportion to the amounts of such principal, interest, fees or other Obligations owed to them respectively.
- (b) If any Lender shall, by exercising any right of setoff or counterclaim or otherwise, obtain payment in respect of any principal of or interest on any of its Loans or other Obligations hereunder resulting in such Lender's receiving payment of a proportion of the aggregate amount of its Loans and accrued interest thereon or other such Obligations greater than its pro rata share thereof as provided herein, then the Lender receiving such greater proportion shall (a) notify the Administrative Agent of such fact, and (b) purchase (for cash at face value) participations in the Loans and such other Obligations of the other Lenders, or make such other adjustments as shall be equitable, so that the benefit of all such payments shall be shared by the Lenders ratably in accordance with the aggregate amount of principal of and accrued interest on their respective Loans and other amounts owing them, provided that (i) if any such participations are purchased and all or any portion of the payment giving rise thereto is recovered, such participations shall be rescinded and the purchase price restored to the extent of such recovery, without interest, and (ii) the provisions of this Section shall not be

construed to apply to (x) any payment made by the Borrower pursuant to and in accordance with the express terms of this Agreement or (y) any payment obtained by a Lender as consideration for the assignment of or sale of a participation in any of its Loans to any assignee or participant, other than to the Borrower or any Subsidiary thereof (as to which the provisions of this **Section 2.11(b)** shall apply). The Borrower consents to the foregoing and agrees, to the extent it may effectively do so under applicable law, that any Lender acquiring a participation pursuant to the foregoing arrangements may exercise against the Borrower rights of setoff and counterclaim with respect to such participation as fully as if such Lender were a direct creditor of the Borrower in the amount of such participation. If under any applicable bankruptcy, insolvency or similar law, any Lender receives a secured claim in lieu of a setoff to which this **Section 2.11(b)** applies, such Lender shall, to the extent practicable, exercise its rights in respect of such secured claim in a manner consistent with the rights of the Lenders entitled under this **Section 2.11(b)** to share in the benefits of any recovery on such secured claim.

2.12 Increased Costs; Change in Circumstances; Illegality.

(a) If any Change in Law shall:

- (i) impose, modify or deem applicable any reserve, special deposit, compulsory loan, insurance charge or similar requirement against assets of, deposits with or for the account of, or credit extended or participated in by, any Lender (except the Reserve Requirement reflected in the LIBOR Rate);
- (ii) subject any Lender to any tax of any kind whatsoever with respect to this Agreement or any LIBOR Loan made by it, or change the basis of taxation of payments to such Lender in respect thereof (except for Indemnified Taxes or Other Taxes covered by **Section 2.13** and the imposition of, or any change in the rate of, any Excluded Tax payable by such Lender); or
- (iii) impose on any Lender or the London interbank market any other condition, cost or expense affecting this Agreement or LIBOR Loans made by such Lender or participation therein;

and the result of any of the foregoing shall be to increase the cost to such Lender of making or maintaining any LIBOR Loan (or of maintaining its obligation to make any such Loan), or to reduce the amount of any sum received or receivable by such Lender hereunder (whether of principal, interest or any other amount), then, upon request of such Lender, the Borrower will pay to such Lender, such additional amount or amounts as will compensate such Lender for such additional costs incurred or reduction suffered.

(b) If any Lender determines that any Change in Law affecting such Lender or any Lending Office of such Lender or such Lender's holding company, if any,

regarding capital requirements has or would have the effect of reducing the rate of return on such Lender's capital or on the capital of such Lender's holding company, if any, as a consequence of this Agreement, the Loans made by such Lender to a level below that which such Lender or such Lender's holding company could have achieved but for such Change in Law (taking into consideration such Lender's policies and the policies of such Lender's holding company with respect to capital adequacy), then from time to time the Borrower will pay to such Lender such additional amount or amounts as will compensate such Lender or such Lender's holding company for any such reduction suffered."

- (c) A certificate of a Lender (which shall be in reasonable detail) setting forth the amount or amounts necessary to compensate such Lender or its holding company, as specified in **Section 2.12(a)** or **Section 2.12(b)** and delivered to the Borrower shall be conclusive absent manifest error. The Borrower shall pay such Lender, the amount shown as due on any such certificate within ten (10) Business Days after receipt thereof.
- (d) Failure or delay on the part of any Lender to demand compensation pursuant to the foregoing provisions of this Section shall not constitute a waiver of such Lender's right to demand such compensation, provided that the Borrower shall not be required to compensate a Lender pursuant to the foregoing provisions of this Section for any increased costs incurred or reductions suffered more than 180 days prior to the date that such Lender, notifies the Borrower of the Change in Law giving rise to such increased costs or reductions and of such Lender's intention to claim compensation therefor (except that, if the Change in Law giving rise to such increased costs or reductions is retroactive, then the 180 day period referred to above shall be extended to include the period of retroactive effect thereof).
- (e) If, on or prior to the first day of any Interest Period, (y) the Administrative Agent shall have determined in good faith that adequate and reasonable means do not exist for ascertaining the applicable LIBOR Rate for such Interest Period or (z) the Administrative Agent shall have received written notice from the Required Lenders of their determination in good faith that the rate of interest referred to in the definition of "LIBOR Rate" upon the basis of which the Adjusted LIBOR Rate for LIBOR Loans for such Interest Period is to be determined will not adequately and fairly reflect the cost to such Lenders of making or maintaining LIBOR Loans during such Interest Period, the Administrative Agent will forthwith so notify the Borrower and the Lenders. Upon such notice, (i) all then outstanding LIBOR Loans shall automatically, on the expiration date of the respective Interest Periods applicable thereto (unless then repaid in full), be converted into Base Rate Loans, (ii) the obligation of the Lenders to make, to convert Base Rate Loans into, or to continue, LIBOR Loans shall be suspended (including pursuant to the Borrowing to which such Interest Period applies), and (iii) any Notice of Conversion/Continuation given at any time thereafter with respect to LIBOR Loans shall be deemed to be a request for Base Rate Loans, in each case until the Administrative Agent or the Required Lenders, as the case may

be, shall have determined that the circumstances giving rise to such suspension no longer exist (and the Required Lenders, if making such determination, shall have so notified the Administrative Agent), and the Administrative Agent shall have so notified the Borrower and the Lenders.

- (f) Notwithstanding any other provision in this Agreement, if, at any time after the date hereof and from time to time, any Lender shall have determined in good faith that the introduction of or any change in any applicable law, rule or regulation or in the interpretation or administration thereof by any Governmental Authority charged with the interpretation or administration thereof, or compliance with any guideline or request from any such Governmental Authority (whether or not having the force of law), has or would have the effect of making it unlawful for such Lender to make or to continue to make or maintain LIBOR Loans, such Lender will forthwith so notify the Administrative Agent and the Borrower. Upon such notice, (i) each of such Lender's then outstanding LIBOR Loans shall automatically, on the expiration date of the respective Interest Period applicable thereto (or, to the extent any such LIBOR Loan may not lawfully be maintained as a LIBOR Loan until such expiration date, upon such notice) and to the extent not sooner prepaid, be converted into a Base Rate Loan, (ii) the obligation of such Lender to make, to convert Base Rate Loans into, or to continue, LIBOR Loans shall be suspended, and (iii) any Notice of Conversion/Continuation given at any time thereafter with respect to LIBOR Loans shall, as to such Lender, be deemed to be a request for a Base Rate Loan, in each case until such Lender shall have determined that the circumstances giving rise to such suspension no longer exist and shall have so notified the Administrative Agent, and the Administrative Agent shall have so notified the Borrower.

2.13 Taxes.

- (a) Any and all payments by or on account of any obligation of the Borrower hereunder or under any other Credit Document shall be made free and clear of and without reduction or withholding for any Indemnified Taxes or Other Taxes, provided that if the Borrower shall be required by applicable law to deduct any Indemnified Taxes (including any Other Taxes) from such payments, then (i) the sum payable shall be increased as necessary so that after making all required deductions (including deductions applicable to additional sums payable under this Section) the Administrative Agent or Lender, as the case may be, receives an amount equal to the sum it would have received had no such deductions been made, (ii) the Borrower shall make such deductions and (iii) the Borrower shall timely pay the full amount deducted to the relevant Governmental Authority in accordance with applicable law.
- (b) Without limiting the provisions of **Section 2.13(a)**, the Borrower shall timely pay any Other Taxes to the relevant Governmental Authority in accordance with applicable law.

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- (c) The Borrower shall indemnify the Administrative Agent and each Lender, within ten (10) Business Days after demand therefor, for the full amount of any Indemnified Taxes or Other Taxes (including Indemnified Taxes or Other Taxes imposed or asserted on or attributable to amounts payable under this Section) paid by the Administrative Agent or such Lender, as the case may be, and any penalties, interest and reasonable expenses arising therefrom or with respect thereto, whether or not such Indemnified Taxes or Other Taxes were correctly or legally imposed or asserted by the relevant Governmental Authority. A certificate (which shall be in reasonable detail) as to the amount of such payment or liability delivered to the Borrower by a Lender (with a copy to the Administrative Agent), or by the Administrative Agent on its own behalf or on behalf of a Lender, shall be conclusive absent manifest error. The Administrative Agent and each Lender agrees to cooperate with any reasonable request made by the Borrower in respect of a claim of a refund in respect of Indemnified Taxes as to which it has been indemnified by the Borrower or with respect to which the Borrower has paid additional amounts pursuant to this **Section 2.13** if (i) the Borrower has agreed in writing to pay all of the Administrative Agent's or such Lender's reasonable out-of-pocket costs and expenses relating to such claim, (ii) the Administrative Agent or such Lender determines, in its good faith judgment, that it would not be disadvantaged, unduly burdened or prejudiced as a result of such claim and (iii) the Borrower furnishes, upon request of the Administrative Agent or such Lender, an opinion of tax counsel (such opinion and such counsel to be reasonably acceptable to the Administrative Agent or such Lender) to the effect that such Indemnified Taxes were wrongly or illegally imposed.
- (d) As soon as practicable after any payment of Indemnified Taxes or Other Taxes by the Borrower to a Governmental Authority, the Borrower shall deliver to the Administrative Agent the original or a certified copy of a receipt issued by such Governmental Authority evidencing such payment, a copy of the return reporting such payment or other evidence of such payment reasonably satisfactory to the Administrative Agent.
- (e) Any Foreign Lender that is entitled to an exemption from or reduction of withholding tax under the law of the jurisdiction in which the Borrower is resident for tax purposes, or any treaty to which such jurisdiction is a party, with respect to payments hereunder or under any other Credit Document shall deliver to the Borrower (with a copy to the Administrative Agent), at the time or times prescribed by applicable law or reasonably requested by the Borrower or the Administrative Agent, such properly completed and executed documentation prescribed by applicable law as will permit such payments to be made without withholding or at a reduced rate of withholding. In addition, any Lender, if requested by the Borrower or the Administrative Agent, shall deliver such other documentation prescribed by applicable law or reasonably requested by the Borrower or the Administrative Agent as will enable the Borrower or the Administrative Agent to determine whether or not such Lender is subject to backup withholding or information reporting requirements.

Without limiting the generality of the foregoing, in the event that the Borrower is resident for tax purposes in the United States, any Foreign Lender shall deliver to the Borrower and the Administrative Agent (in such number of copies as shall be requested by the recipient) on or prior to the date on which such Foreign Lender becomes a Lender under this Agreement (and from time to time thereafter upon the request of the Borrower or the Administrative Agent, but only if such Foreign Lender is legally entitled to do so), whichever of the following is applicable:

- (i) duly completed copies of Internal Revenue Service Form W-8BEN claiming eligibility for benefits of an income tax treaty to which the United States is a party,
 - (ii) duly completed copies of Internal Revenue Service Form W-8ECI,
 - (iii) in the case of a Foreign Lender claiming the benefits of the exemption for portfolio interest under Section 881(c) of the Code, (x) a certificate to the effect that such Foreign Lender is not (A) a “bank” within the meaning of Section 881(c)(3)(A) of the Code, (B) a “10 percent shareholder” of the Borrower within the meaning of Section 881(c)(3)(B) of the Code, or (C) a “controlled foreign corporation” described in Section 881(c)(3)(C) of the Code and (y) duly completed copies of Internal Revenue Service Form W-8BEN, or
 - (iv) any other form prescribed by applicable law as a basis for claiming exemption from or a reduction in United States Federal withholding tax duly completed together with such supplementary documentation as may be prescribed by applicable law to permit the Borrower to determine the withholding or deduction required to be made.
- (f) If the Administrative Agent or any Lender determines that it has received a refund of any Taxes or Other Taxes as to which it has been indemnified by the Borrower or with respect to which the Borrower has paid additional amounts pursuant to this Section, it shall pay to the Borrower an amount equal to such refund (but only to the extent of indemnity payments made, or additional amounts paid, by the Borrower under this Section with respect to the Taxes or Other Taxes giving rise to such refund), net of all out-of-pocket expenses of the Administrative Agent or such Lender, as the case may be, and without interest (other than any interest paid by the relevant Governmental Authority with respect to such refund), provided that the Borrower, upon the request of the Administrative Agent or such Lender, agrees to repay the amount paid over to the Borrower (plus any penalties, interest or other charges imposed by the relevant Governmental Authority) to the Administrative Agent or such Lender in the event the Administrative Agent or such Lender is required to repay such refund to such Governmental Authority. This **Section 2.13(f)** shall not be construed to require the Administrative Agent or any Lender to make available its tax returns (or any other information relating to its taxes that it deems confidential) to the Borrower or any other Person.

2.14 Compensation. The Borrower will compensate each Lender upon demand for all losses, expenses and liabilities (including, without limitation, any loss, expense or liability incurred by reason of the liquidation or reemployment of deposits or other funds required by such Lender to fund or maintain LIBOR Loans) that such Lender may incur or sustain (i) if for any reason (other than a default by such Lender) a continuation of, or conversion into, a LIBOR Loan does not occur on a date specified therefor in a Notice of Conversion/Continuation, (ii) if any repayment, prepayment or conversion of any LIBOR Loan occurs on a date other than the last day of an Interest Period applicable thereto (including as a consequence of any assignment made pursuant to **Section 2.15(a)** or any acceleration of the maturity of the Loans pursuant to **Section 8.2**), (iii) if any prepayment of any LIBOR Loan is not made on any date specified in a notice of prepayment given by the Borrower or (iv) as a consequence of any other failure by the Borrower to make any payments with respect to any LIBOR Loan when due hereunder. Calculation of all amounts payable to a Lender under this **Section 2.14** shall be made as though such Lender had actually funded its relevant LIBOR Loan through the purchase of a Eurodollar deposit bearing interest at the LIBOR Rate in an amount equal to the amount of such LIBOR Loan, having a maturity comparable to the relevant Interest Period; provided, however, that each Lender may fund its LIBOR Loans in any manner it sees fit and the foregoing assumption shall be utilized only for the calculation of amounts payable under this **Section 2.14** . A certificate (which shall be in reasonable detail) showing the bases for the determinations set forth in this **Section 2.14** by any Lender as to any additional amounts payable pursuant to this **Section 2.14** shall be submitted by such Lender to the Borrower either directly or through the Administrative Agent. Determinations set forth in any such certificate made in good faith for purposes of this **Section 2.14** of any such losses, expenses or liabilities shall be conclusive absent manifest error.

2.15 Replacement of Lenders; Mitigation of Costs.

- (a) The Borrower may, at any time (other than after the occurrence and during the continuance of an Event of Default) at its sole expense and effort, require any Lender (i) that has requested compensation from the Borrower under **Sections 2.12(a)** or **2.12(b)** or payments from the Borrower under **Section 2.13** , or (ii) the obligation of which to make or maintain LIBOR Loans has been suspended under **Section 2.12(f)** or (iii) that is a Defaulting Lender or a Nonconsenting Lender, in any case upon notice to such Lender and the Administrative Agent, to assign and delegate, without recourse (in accordance with and subject to the restrictions contained in, and consents required by, **Section 10.6**), all of its interests, rights and obligations under this Agreement and the related Credit Documents to an assignee that shall assume such obligations (which assignee may be another Lender, if a Lender accepts such assignment); provided that:

(i) the Administrative Agent shall have received the assignment fee specified in **Section 10.6(b)(iv)** , which fee shall be payable by the Borrower or such assignee;

(ii) such Lender shall have received payment of an amount equal to the outstanding principal of its Loans, accrued interest thereon, accrued fees and all other amounts payable to it hereunder and under the other Credit Documents (including any amounts under **Section 2.14**) from the assignee (to the extent of such outstanding principal and accrued interest and fees) or the Borrower (in the case of all other amounts);

(iii) in the case of any such assignment resulting from a request for compensation under **Sections 2.12(a)** or **2.12(b)** or payments required to be made pursuant to **Section 2.13** , such assignment will result in a reduction in such compensation or payments thereafter;

(iv) in the case of an assignment of the interests, rights and obligations under this Agreement and the related Credit Documents of a Nonconsenting Lender, such assignee shall have approved (or shall approve) such consent, waiver or amendment that resulted in the Nonconsenting Lender becoming a Nonconsenting Lender; and

(v) such assignment does not conflict with applicable Requirements of Law.

A Lender shall not be required to make any such assignment or delegation if, prior thereto, as a result of a waiver by such Lender or otherwise, the circumstances entitling the Borrower to require such assignment and delegation cease to apply.

- (b) If any Lender requests compensation under **Sections 2.12(a)** or **2.12(b)** , or the Borrower is required to pay any additional amount to any Lender or any Governmental Authority for the account of any Lender pursuant to **Section 2.13** , or if any Lender gives a notice pursuant to **Section 2.12(f)** , then such Lender shall use reasonable efforts to designate a different Lending Office for funding or booking its Loans hereunder or to assign its rights and obligations hereunder to another of its offices, branches or affiliates, if, in the judgment of such Lender, such designation or assignment (i) would eliminate or reduce amounts payable pursuant to **Sections 2.12(a), 2.12(b)** or **2.13** , as the case may be, in the future, or eliminate the need for the notice pursuant to **Section 2.12(f)** , as applicable, and (ii) in each case, would not subject such Lender to any unreimbursed cost or expense and would not otherwise be disadvantageous to such Lender. The Borrower hereby agrees to pay all reasonable costs and expenses incurred by any Lender in connection with any such designation or assignment.

ARTICLE III

[RESERVED]

ARTICLE IV

REPRESENTATIONS AND WARRANTIES

To induce the Administrative Agent and the Lenders to enter into this Agreement and to induce the Lenders to extend the credit contemplated hereby, the Borrower represents and warrants to the Administrative Agent and the Lenders as follows:

4.1 Corporate Organization and Power. Each Credit Party (i) is a corporation or a limited liability company duly organized or formed, validly existing and in good standing under the laws of the jurisdiction of its incorporation or formation, as the case may be (which jurisdictions, as of the Restatement Effective Date, are set forth on **Schedule 4.1**), (ii) has the full corporate or limited liability company power and authority to execute, deliver and perform the Credit Documents to which it is or will be a party, to own and hold its property and to engage in its business as presently conducted, and (iii) is duly qualified to do business as a foreign corporation or limited liability company and is in good standing in each jurisdiction where the nature of its business or the ownership of its properties requires it to be so qualified, except where the failure to be so qualified, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.2 Authorization; Enforceability. Each Credit Party has taken all necessary corporate or limited liability action, as applicable, to execute, deliver and perform each of the Credit Documents to which it is a party, and has (or on any later date of execution and delivery will have) validly executed and delivered each of the Credit Documents to which it is a party. This Agreement constitutes, and each of the other Credit Documents upon execution and delivery will constitute, the legal, valid and binding obligation of each Credit Party that is a party hereto or thereto, enforceable against it in accordance with its terms, except as enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors' rights generally, by general equitable principles or by principles of good faith and fair dealing (regardless of whether enforcement is sought in equity or at law).

4.3 No Violation. The execution, delivery and performance by each Credit Party of each of the Credit Documents to which it is a party, and compliance by it with the terms hereof and thereof, do not and will not (i) violate any provision of its articles or certificate of incorporation or formation, its bylaws or operating agreement, or other applicable formation or organizational documents, (ii) contravene any other Requirement of Law applicable to it, (iii) conflict with, result in a breach of or constitute (with notice, lapse of time or both) a default under any indenture, mortgage, lease, agreement, contract or other instrument to which it is a party, by which it or any of its properties is bound or to which it is subject, or (iv) result in or require the creation or imposition of any Lien, other than a Permitted Lien, upon any of its properties, revenues or assets; except, in the case of clauses (ii) and (iii) above, where such violations, conflicts, breaches or defaults, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.4 Governmental and Third-Party Authorization; Permits. No consent, approval, authorization or other action by, notice to, or registration or filing with, any Governmental Authority, Self-Regulatory Organization, or other Person is required as a condition to or otherwise in connection with the due execution, delivery and performance by each Credit Party of this Agreement or any of the other Credit Documents to which it is a party or the legality, validity or enforceability hereof or thereof, other than (i) consents, authorizations and filings that have been made or obtained and that are in full force and effect, which consents, authorizations and filings are listed on **Schedule 4.4**, and (ii) consents and filings the failure to obtain or make which, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect. Each Credit Party has, and is in good standing with respect to, all governmental approvals, licenses, permits and authorizations necessary to conduct its business as presently conducted and to own or lease and operate its properties, except for those the failure to obtain which, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.5 Litigation. Except as set forth on **Schedule 4.5**, there are no actions, investigations, suits or proceedings pending or, to the knowledge of the Borrower, threatened, at law, in equity or in arbitration, before any court, other Governmental Authority, Self-Regulatory Organization, arbitrator or other Person, (i) against or affecting any of the Credit Parties or any of their respective properties that, if adversely determined, could reasonably be expected to have a Material Adverse Effect, or (ii) with respect to this Agreement, any of the other Credit Documents or any of the other transactions contemplated hereby or thereby.

4.6 Taxes. Each of the Borrower and its Subsidiaries has timely filed all federal, state, local and foreign tax returns and reports required to be filed by it and has paid, prior to the date on which penalties would attach thereto or a Lien would attach to any of its properties if unpaid, all taxes, assessments, fees and other charges levied upon it or upon its properties that are shown thereon as due and payable, other than those that are not yet delinquent or that are being contested in good faith and by proper proceedings and for which adequate reserves have been established in accordance with GAAP. Such returns accurately reflect in all material respects all liability for taxes of the Borrower and its Subsidiaries for the periods covered thereby. As of the Restatement Effective Date, there is no ongoing audit or examination or, to the knowledge of the Borrower, other investigation by any Governmental Authority of the tax liability of any of the Borrower or its Subsidiaries, and there is no material unresolved claim by any Governmental Authority concerning the tax liability of the Borrower or any of its Subsidiaries for any period for which tax returns have been or were required to have been filed, other than unsecured claims for which adequate reserves have been established in accordance with GAAP. As of the Restatement Effective Date, neither the Borrower nor any of its Subsidiaries has waived or extended or has been requested to waive or extend the statute of limitations relating to the payment of any taxes.

4.7 Subsidiaries. **Schedule 4.7** sets forth a list, as of the Restatement Effective Date, of all of the Subsidiaries of the Borrower and as to each such Subsidiary, the percentage ownership (direct and indirect) of the Borrower in each class of its Capital Stock and each direct owner thereof.

4.8 Full Disclosure. All factual information heretofore, contemporaneously or hereafter furnished in writing to the Administrative Agent, any Arranger or any Lender by or on behalf of any Credit Party pursuant to this Agreement or the other Credit Documents is or will be true and accurate in all material respects on the date as of which such information is dated or certified (or, if such information has been updated, amended or supplemented, on the date as of which any such update, amendment or supplement is dated or certified) and not made incomplete by omitting to state a material fact necessary to make the statements contained herein and therein, in light of the circumstances under which such information was provided, not misleading; provided that, with respect to projections, budgets and other estimates, except as specifically represented in **Section 4.11(b)**, the Borrower represents only that such information was prepared in good faith based upon assumptions believed to be reasonable at the time. As of the Restatement Effective Date, there is no fact known to any Credit Party that has, or could reasonably be expected to have, a Material Adverse Effect, which fact has not been set forth herein, in the consolidated financial statements of the Borrower and its Subsidiaries furnished to the Administrative Agent and/or the Lenders, or in any certificate, opinion or other written statement made or furnished by the Borrower to the Administrative Agent and/or the Lenders.

4.9 Margin Regulations. No Credit Party is engaged principally, or as one of its important activities, in the business of extending credit for the purpose of purchasing or carrying Margin Stock. No proceeds of the Loans will be used, directly or indirectly, to purchase or carry any Margin Stock, to extend credit for such purpose or for any other purpose, in each case that would violate or be inconsistent with Regulations T, U or X or any provision of the Exchange Act.

4.10 No Material Adverse Effect. There has been no Material Adverse Effect since December 31, 2008 and there exists no event, condition or state of facts that could reasonably be expected to result in a Material Adverse Effect.

4.11 Financial Matters.

- (a) The Borrower has heretofore furnished to the Administrative Agent copies of the audited consolidated balance sheets of the Borrower and its Subsidiaries, for the 2008 and 2007 fiscal years, in each case with the related statements of income, stockholders' equity, comprehensive income and cash flows for the fiscal years then ended, together with the opinions of Ernst & Young LLP thereon. Such financial statements have been prepared in accordance with GAAP and present fairly in all material respects the financial condition of the Borrower and its Subsidiaries on a consolidated basis as of the respective dates thereof and the results of operations of the Borrower and its Subsidiaries on a consolidated basis for the respective periods then ended. Except as fully reflected in the most recent financial statements referred to above and the notes thereto, there are no material liabilities or obligations with respect to the Borrower and its Subsidiaries of any nature whatsoever (whether absolute, contingent or otherwise and whether or not due) that are required in accordance with GAAP to be reflected in such financial statements and that are not so reflected.

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- (b) The Borrower has prepared, and has heretofore furnished to the Administrative Agent a copy of, projected consolidated balance sheets and statements of income and cash flows of the Borrower and its Subsidiaries prepared on an annual basis through the end of fiscal year 2012, giving effect to the initial extensions of credit made under this Agreement, the payment of transaction fees and expenses related to the foregoing and the consummation of the other transactions contemplated hereby (the “Projections”). In the good faith opinion of management of the Borrower, the assumptions used in the preparation of the Projections were fair, complete and reasonable when made and continue to be fair, complete and reasonable as of the date hereof. The Projections have been prepared in good faith by the executive and financial personnel of the Borrower, are complete and represent a reasonable estimate of the future performance and financial condition of the Borrower and its Subsidiaries, subject to the uncertainties and approximations inherent in any projections.
 - (c) After giving effect to the consummation of the transactions contemplated hereby, each Credit Party (i) has capital sufficient to carry on its businesses as conducted and as proposed to be conducted, (ii) has assets with a fair saleable value, determined on a going concern basis, which are (y) not less than the amount required to pay the probable liability on its existing debts as they become absolute and matured and (z) greater than the total amount of its liabilities (including identified contingent liabilities, valued at the amount that can reasonably be expected to become absolute and matured in their ordinary course), and (iii) does not intend to, and does not believe that it will, incur debts or liabilities beyond its ability to pay such debts and liabilities as they mature in their ordinary course.
 - (d) Since December 31, 2008, there has not been an occurrence of a “material weakness” (as defined in statement on Auditing Standards No. 60) in, or fraud that involves management or other employees who have a significant role in, the Borrower’s internal controls over financial reporting, in each case as described in Section 404 of the Sarbanes-Oxley Act of 2002 and all rules and regulations promulgated thereunder and the accounting and auditing principles, rules, standards and practices promulgated or approved with respect thereto, in each case that could reasonably be expected to have a Material Adverse Effect.
 - (e) Neither (i) the board of directors of the Borrower, a committee thereof or an authorized officer of the Borrower has concluded that any financial statement previously furnished to the Administrative Agent should no longer be relied upon because of an error, nor (ii) has the Borrower been advised by its auditors that a previously issued audit report or interim review cannot be relied on.

4.12 Ownership of Properties. Each of the Borrower and its Subsidiaries (i) has good and marketable title to all real property owned by it, (ii) holds interests as lessee under valid leases in full force and effect with respect to all material leased real and personal property used in connection with its business, and (iii) has good title to all of its other material properties and assets reflected in the most recent financial statements referred to in **Section 4.11(a)** (except as sold or otherwise disposed of since the date thereof in the ordinary course of business), in each case free and clear of all Liens other than Permitted Liens.

4.13 ERISA.

- (a) Each Credit Party and its ERISA Affiliates is in compliance with the applicable provisions of ERISA, and each Plan is and has been administered in compliance with all applicable Requirements of Law, including, without limitation, the applicable provisions of ERISA and the Code, in each case except where the failure so to comply, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect. No ERISA Event (i) has occurred within the five (5) year period prior to the Restatement Effective Date, (ii) has occurred and is continuing, or (iii) to the knowledge of the Borrower, is reasonably expected to occur with respect to any Plan. No Plan has any Unfunded Pension Liability as of the most recent annual valuation date applicable thereto, and no Credit Party or any of its ERISA Affiliates has engaged in a transaction that could be subject to Section 4069 or 4212(c) of ERISA.
- (b) No Credit Party or any of its ERISA Affiliates has any outstanding liability on account of a complete or partial withdrawal from any Multiemployer Plan, and no Credit Party or any of its ERISA Affiliates would become subject to any liability under ERISA if any such Credit Party or ERISA Affiliate were to withdraw completely from all Multiemployer Plans as of the most recent valuation date. No Multiemployer Plan is in “reorganization” or is “insolvent” within the meaning of such terms under ERISA.

4.14 Environmental Matters. Neither the Borrower nor any of its Subsidiaries is involved in any suit, action or proceeding, or has received any notice, complaint or other request for information from any Governmental Authority or other Person, with respect to any actual or alleged Environmental Claims, and to the knowledge of the Borrower, there are no threatened Environmental Claims, nor any basis therefor.

4.15 Compliance with Laws. Each of the Borrower and its Subsidiaries has timely filed all material reports, documents and other materials required to be filed by it under all applicable Requirements of Law with any Governmental Authority, has retained all material records and documents required to be retained by it under all applicable Requirements of Law, and is otherwise in compliance with all applicable Requirements of Law in respect of the conduct of its business and the ownership and operation of its properties, including without limitation, the applicable rules of any Self-Regulatory Organization, except in each case to the extent that the failure to comply therewith, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.16 Intellectual Property. Each of the Borrower and its Subsidiaries owns, or has the legal right to use, all Intellectual Property necessary for it to conduct its business as currently conducted. No claim has been asserted or is pending by any Person challenging or questioning the use of any such Intellectual Property or the validity or effectiveness of any such Intellectual Property, nor does the Borrower know of any such claim, and to the knowledge of the Borrower,

the use of such Intellectual Property by any Credit Party does not infringe on the known rights of any Person, except for such claims and infringements that, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.17 Regulated Industries. No Credit Party is an “investment company,” a company “controlled” by an “investment company,” or an “investment advisor,” within the meaning of the Investment Company Act of 1940, as amended.

4.18 Insurance. The assets, properties and business of the Borrower and its Subsidiaries are insured against such hazards and liabilities, under such coverages and in such amounts, as are customarily maintained by prudent companies similarly situated and under policies issued by insurers of recognized responsibility.

4.19 Material Contracts. **Schedule 4.19** lists, as of the Restatement Effective Date, each “material contract” (within the meaning of Item 601(b)(10) of Regulation S-K under the Securities Act) to which the Borrower or any of its Subsidiaries is a party, by which the Borrower or any of its Subsidiaries or its properties is bound or to which the Borrower or any of its Subsidiaries is subject (collectively, “Material Contracts”), and also indicates the parties thereto. As of the Restatement Effective Date, (i) each Material Contract is in full force and effect and is enforceable by each of the Borrower and its Subsidiaries that is a party thereto in accordance with its terms, except as enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors’ rights generally, by general or equitable principles or by principles of good faith and fair dealing, and (ii) neither the Borrower nor any of its Subsidiaries or, to the knowledge of the Borrower, any other party thereto is in breach of or default under any Material Contract in any material respect or has given notice of termination or cancellation of any Material Contract.

4.20 No Burdensome Restrictions. No Credit Party is subject to any charter or corporate restriction or any provision of any applicable Requirement of Law that, individually or in the aggregate, could reasonably be expected to have a Material Adverse Effect.

4.21 OFAC; Anti-Terrorism Laws.

- (a) No Credit Party or any Affiliate of any Credit Party (i) is a Sanctioned Person, (ii) has more than 15% of its assets in Sanctioned Countries, or (iii) derives more than 15% of its operating income from investments in, or transactions with, Sanctioned Persons or Sanctioned Countries. No part of the proceeds of any Loan hereunder will be used directly or indirectly to fund any operations in, finance any investments or activities in or make any payments to, a Sanctioned Person or a Sanctioned Country.
- (b) Neither the making of the Loans hereunder nor the use of the proceeds thereof will violate the PATRIOT Act, the Trading with the Enemy Act, as amended, or any of the foreign assets control regulations of the United States Treasury Department (31 CFR, Subtitle B, Chapter V, as amended) or any enabling legislation or executive order relating thereto. The Credit Parties are in compliance in all material respects with the PATRIOT Act.

ARTICLE V

AFFIRMATIVE COVENANTS

The Borrower covenants and agrees that, until the payment in full in cash of all principal and interest with respect to the Loans together with all fees, expenses and other amounts then due and owing hereunder:

5.1 Financial Statements. The Borrower will deliver to the Administrative Agent on behalf of the Lenders:

- (a) As soon as available and in any event within forty-five (45) days (or, if earlier and if applicable to the Borrower, the quarterly report deadline under the Exchange Act rules and regulations) after the end of each of the first three fiscal quarters of each fiscal year, beginning with the first fiscal quarter of fiscal year 2009, unaudited consolidated and consolidating balance sheets of the Borrower and its Subsidiaries as of the end of such fiscal quarter and unaudited consolidated and consolidating statements of income, cash flows and stockholders' equity for the Borrower and its Subsidiaries for the fiscal quarter then ended and for that portion of the fiscal year then ended, in each case setting forth comparative consolidated figures as of the end of and for the corresponding period in the preceding fiscal year together with comparative budgeted figures for the fiscal period then ended, all in reasonable detail and prepared in accordance with GAAP (subject to the absence of notes required by GAAP and subject to normal year-end adjustments) applied on a basis consistent with that of the preceding quarter or containing disclosure of the effect on the financial condition or results of operations of any change in the application of accounting principles and practices during such quarter; and
- (b) As soon as available and in any event within ninety (90) days (or, if earlier and if applicable to the Borrower, the annual report deadline under the Exchange Act rules and regulations) after the end of each fiscal year, beginning with fiscal year 2009, an audited consolidated and unaudited consolidating balance sheet of the Borrower and its Subsidiaries as of the end of such fiscal year and the related audited consolidated and unaudited consolidating statements of income, cash flows and stockholders' equity for the Borrower and its Subsidiaries for the fiscal year then ended, including the notes thereto, in each case setting forth comparative consolidated figures as of the end of and for the preceding fiscal year together with comparative budgeted figures for the fiscal year then ended, all in reasonable detail and (with respect to the audited statements) certified by the independent certified public accounting firm regularly retained by the Borrower or another independent certified public accounting firm of recognized national standing reasonably acceptable to the Administrative Agent, together with (y) a report thereon by such accountants that is not qualified as to going concern or scope of audit and to the effect that such financial statements present fairly in all material respects the consolidated financial condition and results of operations of the Borrower and its Subsidiaries as of the dates and for the periods indicated in

accordance with GAAP applied on a basis consistent with that of the preceding year or containing disclosure of the effect on the financial condition or results of operations of any change in the application of accounting principles and practices during such year, and (z) a letter from such accountants to the effect that, based on and in connection with their examination of the financial statements of the Borrower and its Subsidiaries, they obtained no knowledge of the occurrence or existence of any Default or Event of Default relating to accounting or financial reporting matters (which certificate may be limited to the extent required by accounting rules or guidelines), or a statement specifying the nature and period of existence of any such Default or Event of Default disclosed by their audit.

- (c) In the event that any financial statement or Compliance Certificate delivered pursuant to **Sections 5.2(a) or 5.2(b)** is shown to be inaccurate (regardless of whether this Agreement is in effect when such inaccuracy is discovered), and such inaccuracy, if corrected, would have led to the application of a higher Applicable Percentage for any period (an “Applicable Period”) than the Applicable Percentage applied for such Applicable Period, then (i) the Borrower shall immediately deliver to the Administrative Agent a correct Compliance Certificate for such Applicable Period and (ii) the Borrower shall immediately pay to the Administrative Agent the accrued additional interest owing as a result of such increased Applicable Percentage for such Applicable Period, which payment shall be promptly applied by the Administrative Agent in accordance with **Section 2.9**. This **Section 5.1(c)** shall not limit the rights of the Administrative Agent and Lenders with respect to **Sections 2.5(b) and 8.2**.

Documents required to be delivered pursuant to **Sections 5.1, 5.2(a), 5.2(b), 5.2(c) or 5.2(d)** may be delivered electronically and, if so delivered, shall be deemed to have been delivered on the date (i) on which the Borrower provides notice to the Lenders that such information has been posted on the Borrower’s website on the Internet at <http://ir.theice.com/sec.cfm>, at www.sec.gov/edgar/searchedgar/webusers.htm or at another website identified in such notice and accessible by the Lenders without charge; or (ii) on which such documents are posted on the Borrower’s behalf on SyndTrak or another relevant website, if any, to which each of the Administrative Agent and each Lender has access; provided that (x) upon the request of the Administrative Agent or any Lender lacking access to the internet or SyndTrak, the Borrower shall deliver paper copies of such documents to the Administrative Agent or such Lender (until a written request to cease delivering paper copies is given by the Administrative Agent or such Lender) and (y) the Borrower shall notify (which may be by a facsimile or electronic mail) the Administrative Agent and each Lender of the posting of any documents. The Administrative Agent shall have no obligation to request the delivery of, or to maintain copies of, the documents referred to in the proviso to the immediately preceding sentence or to monitor compliance by the Borrower with any such request for delivery, and each Lender shall be solely responsible for requesting delivery to it or maintaining its copies of such documents.

5.2 Other Business and Financial Information. The Borrower will deliver to the Administrative Agent and each Lender:

- (a) Concurrently with each delivery of the financial statements described in **Sections 5.1(a)** and **5.1(b)**, a Compliance Certificate with respect to the period covered by the financial statements being delivered thereunder, executed by a Financial Officer of the Borrower, together with a Covenant Compliance Worksheet reflecting the computation of the financial covenants set forth in **Article VI** as of the last day of the period covered by such financial statements;
- (b) As soon as available and in any event within thirty (30) days after the commencement of each fiscal year, beginning with the 2010 fiscal year, a consolidated operating budget for the Borrower and its Subsidiaries for such fiscal year (prepared on an annual basis), consisting of a consolidated balance sheet and consolidated statements of income and cash flows, together with a certificate of a Financial Officer of the Borrower to the effect that such budget has been prepared in good faith and is a reasonable estimate of the financial position and results of operations of the Borrower and its Subsidiaries for the period covered thereby; and as soon as available from time to time thereafter, any modifications or revisions to or restatements of such budget;
- (c) Promptly upon receipt thereof, copies of any “management letter” submitted to any Credit Party by its certified public accountants in connection with each annual, interim or special audit, and promptly upon completion thereof, any response reports from such Credit Party in respect thereof;
- (d) Promptly upon the sending, filing or receipt thereof, copies of (i) all financial statements, reports, notices and proxy statements that any Credit Party shall send or make available generally to its stockholders, (ii) all regular, periodic and special reports, registration statements and prospectuses (other than on Form S-8) that any Credit Party shall render to or file with the Securities and Exchange Commission, the National Association of Securities Dealers, Inc. or any national securities exchange or Self-Regulatory Organization, and (iii) all press releases and other statements made available generally by any Credit Party to the public concerning material developments in the business of the Credit Parties; provided that notwithstanding anything to the contrary included in **Section 5.1**, the Borrower shall be deemed to have given notice to the Administrative Agent and each Lender of the posting on the Borrower’s Internet website of the business and financial information set forth in clauses (i), (ii) or (iii) of this **Section 5.2(d)** at the time such information is posted thereon and no further notice shall be required to be provided by the Borrower to the Administrative Agent and the Lenders with respect thereto;
- (e) Promptly upon (and in any event within five (5) Business Days after) any Responsible Officer of any Credit Party obtaining knowledge thereof, written notice of any of the following:
 - (i) the occurrence of any Default or Event of Default, together with a written statement of a Responsible Officer of the Borrower specifying the nature of such Default or Event of Default, the period of existence thereof and the action that the Borrower has taken and proposes to take with respect thereto;

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- (ii) the institution or threatened institution of any action, suit, investigation or proceeding against or affecting the Borrower or any of its Subsidiaries, including any such investigation or proceeding by any Governmental Authority or Self-Regulatory Organization (other than routine periodic inquiries, investigations or reviews), that, if adversely determined, could reasonably be expected, individually or in the aggregate, to have a Material Adverse Effect, and any material adverse development in any litigation or other proceeding previously reported pursuant to **Section 4.5** or this **Section 5.2(e)(ii)** ;
- (iii) the receipt by the Borrower or any of its Subsidiaries from any Governmental Authority or Self-Regulatory Organization of (A) any notice asserting any failure by such Person to be in compliance with applicable Requirements of Law or that threatens the taking of any action against such Person or sets forth circumstances that, if taken or adversely determined, could reasonably be expected to have a Material Adverse Effect, or (B) any notice of any actual or threatened suspension, limitation or revocation of, failure to renew, or imposition of any restraining order, escrow or impoundment of funds in connection with, the Borrower or any of its Subsidiaries, where such action could reasonably be expected to have a Material Adverse Effect;
- (iv) the occurrence of any ERISA Event, together with (x) a written statement of a Responsible Officer of the Borrower specifying the details of such ERISA Event and the action that the applicable Person has taken and proposes to take with respect thereto, (y) a copy of any notice with respect to such ERISA Event that may be required to be filed with the PBGC and (z) a copy of any notice delivered by the PBGC to any Credit Party or an ERISA Affiliate with respect to such ERISA Event;
- (v) the occurrence of any material default under, or any proposed or threatened termination or cancellation of, any Material Contract (including without limitation, the agreement between the Borrower and LCH.Clearnet for the provision of clearing services) or other material contract or agreement to which the Borrower or any of its Subsidiaries is a party, the default under or termination or cancellation of which could reasonably be expected to have a Material Adverse Effect;
- (vi) the occurrence of any of the following: (y) the assertion of any Environmental Claim against or affecting the Borrower or any

of its Subsidiaries or any real property leased, operated or owned by the Borrower or any of its Subsidiaries, or the Borrower or any of its Subsidiaries' discovery of a basis for any such Environmental Claim; or (z) the receipt by the Borrower or any of its Subsidiaries of notice of any alleged violation of or noncompliance with any Environmental Laws by the Borrower or any of its Subsidiaries or release of any Hazardous Substance; but in each case under clauses (y) and (z) above, only to the extent the same could reasonably be expected to have a Material Adverse Effect; and

(vii) any other matter or event that has, or could reasonably be expected to have, a Material Adverse Effect, together with a written statement of a Responsible Officer of the Borrower setting forth the nature and period of existence thereof and the action that the affected Persons have taken and propose to take with respect thereto.

- (f) As promptly as reasonably possible, such other information about the business, condition (financial or otherwise), operations or properties of the Borrower or any of its Subsidiaries as the Administrative Agent or any Lender may from time to time reasonably request.

5.3 Compliance with All Material Contracts. The Borrower will, and will cause each of its Subsidiaries to, comply in all material respects with each term, condition and provision of all Material Contracts.

5.4 Existence; Franchises; Maintenance of Properties. The Borrower will, and will cause each of its Subsidiaries to, (i) maintain and preserve in full force and effect its legal existence, except as expressly permitted otherwise by **Section 7.1**, (ii) obtain, maintain and preserve in full force and effect all other rights, franchises, licenses, permits, certifications, approvals and authorizations required by Governmental Authorities and Self-Regulatory Organizations necessary to the ownership, occupation or use of its properties or the conduct of its business, except to the extent the failure to do so could not reasonably be expected to have a Material Adverse Effect, and (iii) keep all material properties in good working order and condition (normal wear and tear and damage by casualty excepted) and from time to time make all necessary repairs to and renewals and replacements of such properties, except to the extent that any of such properties are obsolete or are being replaced or, in the good faith judgment of the Borrower, are no longer useful or desirable in the conduct of the business of the Credit Parties.

5.5 [Reserved]

5.6 Compliance with Laws. The Borrower will, and will cause each of its Subsidiaries to, comply in all respects with all Requirements of Law applicable in respect of the conduct of its business and the ownership and operation of its properties, except to the extent the failure so to comply could not reasonably be expected to have a Material Adverse Effect.

5.7 Payment of Obligations. The Borrower will, and will cause each of its Subsidiaries to, (i) pay, discharge or otherwise satisfy at or before maturity all liabilities and obligations as and when due (subject to any applicable subordination, grace and notice provisions), except to the extent failure to do so could not reasonably be expected to have a Material Adverse Effect, and (ii) pay and discharge all taxes, assessments and governmental charges or levies imposed upon it, upon its income or profits or upon any of its properties, prior to the date on which penalties would attach thereto, and all lawful claims that, if unpaid, would become a Lien (other than a Permitted Lien) upon any of the properties of any such Person; provided, however, that no such Person shall be required to pay any such tax, assessment, charge, levy or claim that is being contested in good faith and by proper proceedings and as to which such Credit Party is maintaining adequate reserves with respect thereto in accordance with GAAP.

5.8 Insurance. The Borrower will, and will cause each of its Subsidiaries to, maintain with financially sound and reputable insurance companies insurance with respect to its assets, properties and business, against such hazards and liabilities, of such types and in such amounts, as is customarily maintained by companies in the same or similar businesses similarly situated.

5.9 Maintenance of Books and Records; Inspection. The Borrower will, and will cause each of its Subsidiaries to, (i) maintain adequate books, accounts and records, in which full, true and correct entries shall be made of all financial transactions in relation to its business and properties, and prepare all financial statements required under this Agreement, in each case in accordance with GAAP and in compliance with the requirements of any Governmental Authority or Self-Regulatory Organization having jurisdiction over it, and (ii) permit employees or agents of the Administrative Agent or any Lender to visit and inspect its properties and examine or audit its books, records, working papers and accounts (except with respect to information which disclosure thereof is prohibited pursuant to arrangements among ICE Futures Europe, the United Kingdom Financial Services Authority, or other Governmental Authorities with jurisdiction over ICE Futures Europe and ICE Futures Europe's members), and make copies and memoranda of them, and to discuss its affairs, finances and accounts with its officers and employees and, upon reasonable notice to the Borrower, the independent public accountants of the Borrower and its Subsidiaries (and by this provision the Borrower authorizes such accountants to discuss the finances and affairs of the Borrower and its Subsidiaries), all at such times and from time to time, upon reasonable notice and during business hours, as may be reasonably requested; provided however, that when a Default or Event of Default exists the Administrative Agent may do any of the foregoing at the expense of the Borrower at any time during normal business hours and without advance notice.

5.10 Permitted Acquisitions. The Borrower shall comply with, and cause each other applicable Credit Party to comply with, the following covenants:

- (a) Promptly after the consummation of any Permitted Acquisition or such later date reasonably acceptable to the Administrative Agent, the Borrower shall have delivered to the Administrative Agent the following (provided, however, that the delivery of the statements in clause (iii) below shall be required only with respect to Permitted Acquisitions having an Acquisition Amount exceeding \$200,000,000):
 - (i) a reasonably detailed description of the material terms of such Acquisition (including, without limitation, the purchase price and method and structure of payment) and of each Person or business that is the subject of such Acquisition (each, a “Target”);

(ii) to the extent available, audited historical financial statements of the Target (or, if there are two or more Targets that are the subject of such Acquisition and that are part of the same consolidated group, consolidated historical financial statements for all such Targets) for the two (2) most recent fiscal years available, prepared by a firm of independent certified public accountants, and (if available) unaudited financial statements for any interim periods since the most recent fiscal year-end;

(iii) consolidated projected income statements of the Borrower and its Subsidiaries (giving effect to such Acquisition and the consolidation with the Borrower of each relevant Target) for the one-year period (or, if available, such longer period up to three years) following the consummation of such Acquisition, in reasonable detail, together with any appropriate statement of assumptions and pro forma adjustments; and

(iv) a certificate, in form and substance reasonably satisfactory to the Administrative Agent, executed by a Financial Officer of the Borrower setting forth the Acquisition Amount and further to the effect that, to the best of such Financial Officer's knowledge, (y) the consummation of such Acquisition has not resulted in a violation of any provision of this **Section 5.10** or any other provision of this Agreement, and (x) the requirements set forth in **Section 7.5** have been satisfied (with financial covenant calculations to be attached to the certificate using the Covenant Compliance Worksheet).

- (b) As soon as reasonably practicable after the consummation of any such Acquisition, the Borrower will deliver to the Administrative Agent true and correct copies of the fully executed acquisition agreement (including schedules and exhibits thereto) and other material documents and closing papers delivered in connection therewith.
- (c) The consummation of each Permitted Acquisition shall be deemed to be a representation and warranty by the Borrower that (except as shall have been approved in writing by the Required Lenders) all conditions thereto set forth in this **Section 5.10** and in the description furnished under **Section 5.10(a)(i)** have been satisfied, that the same is permitted in accordance with the terms of this Agreement, and that the matters certified to by the Financial Officer of the Borrower in the certificate referred to in **Section 5.10(a)(iv)** are, to the best of such Financial Officer's knowledge, true and correct in all material respects as of

the date such certificate is given, which representation and warranty shall be deemed to be a representation and warranty as of the date thereof for all purposes hereunder, including, without limitation, for purposes of **Section 8.1** .

5.11 Creation or Acquisition of Subsidiaries. Subject to the provisions of **Sections 5.10** and **7.5** , the Borrower may from time to time create or acquire new Wholly Owned Subsidiaries in connection with Permitted Acquisitions or otherwise, and the Wholly Owned Subsidiaries of the Borrower may create or acquire new Wholly Owned Subsidiaries, provided that concurrently with (and in any event within ten (10) Business Days after or such later time approved by the Administrative Agent) the creation or direct or indirect acquisition thereof, each such new Subsidiary will execute and deliver to the Administrative Agent a joinder to the Guaranty, pursuant to which such new Subsidiary shall become a guarantor thereunder and shall guarantee the payment in full of the Obligations of the Borrower under this Agreement and the other Credit Documents; provided that no Foreign Subsidiary shall be required to provide a guaranty to the extent (and for as long as) doing so would cause any adverse tax or regulatory consequences to the Borrower, and provided further that for any Subsidiary created for the sole purpose of making a Permitted Acquisition and so long as such Subsidiary has no assets, the Borrower shall not be required to comply with this **Section 5.11** until the consummation of such Permitted Acquisition.

5.12 OFAC, PATRIOT Act Compliance. The Borrower will, and will cause each of its Subsidiaries to, (i) refrain from doing business in a Sanctioned Country or with a Sanctioned Person in violation of the economic sanctions of the United States administered by OFAC, and (ii) provide, to the extent commercially reasonable, such information and take such actions as are reasonably requested by the Administrative Agent or any Lender in order to assist the Administrative Agent and the Lenders in maintaining compliance with the PATRIOT Act.

5.13 Further Assurances. The Borrower will, and will cause each of its Subsidiaries to, make, execute, endorse, acknowledge and deliver any amendments, modifications or supplements hereto and restatements hereof and any other agreements, instruments or documents, and take any and all such other actions, as may from time to time be reasonably requested by the Administrative Agent or the Required Lenders to effect, confirm or further assure or protect and preserve the interests, rights and remedies of the Administrative Agent and the Lenders under this Agreement and the other Credit Documents.

ARTICLE VI

FINANCIAL COVENANTS

The Borrower covenants and agrees that, until the payment in full in cash of all principal and interest with respect to the Loans together with all fees, expenses and other amounts then due and owing hereunder:

6.1 Maximum Total Leverage Ratio. The Total Leverage Ratio as of the last day of any fiscal quarter, beginning with the first fiscal quarter of 2009, shall not be greater than the ratio of 2.50 to 1.00.

6.2 Minimum Interest Coverage Ratio. The Interest Coverage Ratio as of the last day of any fiscal quarter, beginning with the first fiscal quarter of 2009, shall not be less than 5.0 to 1.0.

ARTICLE VII

NEGATIVE COVENANTS

The Borrower covenants and agrees that, until the payment in full in cash of all principal and interest with respect to the Loans together with all fees, expenses and other amounts then due and owing hereunder:

7.1 Merger; Consolidation. The Borrower will not, and will not permit or cause any of its Subsidiaries to, liquidate, wind up or dissolve, or enter into any consolidation, amalgamation, merger or other combination, or agree to do any of the foregoing; provided, however, that so long as no Default or Event of Default has occurred and is continuing or would result therefrom:

(i) any Subsidiary of the Borrower may merge, consolidate or amalgamate with, or be liquidated into, (x) the Borrower (so long as the Borrower is the surviving or continuing entity) or (y) any other Subsidiary of the Borrower (so long as, if either Person is a Subsidiary Guarantor, the surviving Person is a Subsidiary Guarantor, and if either Person is a Wholly Owned Subsidiary, the surviving Person is a Wholly Owned Subsidiary;

(ii) the Borrower may merge, consolidate or amalgamate with another Person (other than another Credit Party), so long as (y) the Borrower is the surviving entity, and (z) if such merger, consolidation or amalgamation constitutes an Acquisition, the applicable conditions and requirements of **Sections 5.10** and **7.5** are satisfied; and

(iii) to the extent not otherwise permitted under the foregoing clauses, any Subsidiary that has sold, transferred or otherwise disposed of all or substantially all of its assets in connection with an Asset Disposition permitted under this Agreement and no longer conducts any active trade or business may be liquidated, wound up and dissolved.

7.2 Indebtedness. The Borrower will not, and will not permit or cause any of its Subsidiaries to, create, incur, assume or suffer to exist any Indebtedness other than (without duplication):

(i) Indebtedness of the Credit Parties in favor of the Administrative Agent and the Lenders incurred under this Agreement and the other Credit Documents;

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- (ii) (A) Indebtedness of the Credit Parties under the New Credit Facility and the other “Credit Documents” (as defined in the New Credit Facility) and (B) Indebtedness of the Credit Parties under the New Liquidity Facility and the other “Credit Documents” (as defined in the New Liquidity Facility);
- (iii) accrued expenses (including salaries, accrued vacation and other compensation), current trade or other accounts payable and other current liabilities arising in the ordinary course of business and not incurred through the borrowing of money, in each case above to the extent constituting Indebtedness;
- (iv) purchase money Indebtedness of the Borrower and its Subsidiaries incurred solely to finance the acquisition, construction or improvement of any equipment, real property or other fixed assets in the ordinary course of business (or assumed or acquired by the Borrower and its Subsidiaries in connection with a Permitted Acquisition or other transaction permitted under this Agreement), including Capital Lease Obligations, and any renewals, replacements, refinancings or extensions thereof, provided that all such Indebtedness shall not exceed \$25,000,000 in aggregate principal amount outstanding at any one time;
- (v) unsecured loans and advances (A) by the Borrower or any Subsidiary of the Borrower to any Subsidiary Guarantor, (B) by any Subsidiary of the Borrower to the Borrower, or (C) by the Borrower or any Subsidiary of the Borrower to any Subsidiary of the Borrower that is not a Subsidiary Guarantor, provided in each case that any such loan or advance made pursuant to clause (C) above is subordinated in right and time of payment to the Obligations and is evidenced by a promissory note, in form and substance reasonably satisfactory to the Administrative Agent;
- (vi) Indebtedness of the Borrower under Hedge Agreements entered into in the ordinary course of business to manage existing or anticipated interest rate or foreign currency risks and not for speculative purposes;
- (vii) Indebtedness existing on the Restatement Effective Date and described in **Schedule 7.2** and any renewals, replacements, refinancings or extensions of any such Indebtedness that do not increase the outstanding principal amount thereof or result in an earlier final maturity date or decreased weighted average life thereof;
- (viii) Indebtedness consisting of Guaranty Obligations of the Borrower or any of its Subsidiaries incurred in the ordinary course

of business for the benefit of another Credit Party, provided that the primary obligation being guaranteed is expressly permitted by this Agreement;

(ix) Indebtedness that may be deemed to exist pursuant to any performance bond, surety, statutory appeal or similar obligation entered into or incurred by the Borrower or any of its Subsidiaries in the ordinary course of business;

(x) Indebtedness of ICE Clear Europe under the ICE Clear Europe Payment Services Agreement not exceeding \$150,000,000 in aggregate principal amount outstanding;

(xi) Indebtedness consisting of Guaranty Obligations of the Borrower with respect to the ICE Clear Europe Payment Services Agreement;

(xii) unsecured Indebtedness of the Borrower not exceeding \$400,000,000 in aggregate principal amount outstanding to provide liquidity for the clearing operations of ICE Clear Europe;

(xiii) other unsecured Indebtedness of the Borrower not exceeding \$50,000,000 in aggregate principal amount outstanding at any time; and

(xiv) other unsecured Indebtedness of the Subsidiaries of the Borrower not exceeding \$50,000,000 in aggregate principal amount outstanding at any time.

7.3 Liens. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, make, create, incur, assume or suffer to exist, any Lien upon or with respect to any part of its property or assets, whether now owned or hereafter acquired or agree to do any of the foregoing, other than the following (collectively, “ Permitted Liens ”):

(i) Liens in existence on the Restatement Effective Date and set forth on **Schedule 7.3** , and any extensions, renewals or replacements thereof; provided that any such extension, renewal or replacement Lien shall be limited to all or a part of the property that secured the Lien so extended, renewed or replaced (plus any improvements on such property) and shall secure only those obligations that it secures on the date hereof (and any renewals, replacements, refinancings or extensions of such obligations that do not increase the outstanding principal amount thereof);

(ii) Liens imposed by law, such as Liens of carriers, warehousemen, mechanics, materialmen and landlords, incurred in the ordinary course of business for sums not constituting borrowed money that are not overdue for a period of more than thirty (30)

days or that are being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP (if so required);

(iii) Liens (other than any Lien imposed by ERISA, the creation or incurrence of which would result in an Event of Default under **Section 8.1(k)**) incurred in the ordinary course of business in connection with worker's compensation, unemployment insurance or other forms of governmental insurance or benefits, or to secure the performance of letters of credit, bids, tenders, statutory obligations, surety and appeal bonds, leases, public or statutory obligations, government contracts and other similar obligations (other than obligations for borrowed money) entered into in the ordinary course of business;

(iv) Liens for taxes, assessments or other governmental charges or statutory obligations that are not delinquent or remain payable without any penalty or that are being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP (if so required);

(v) any attachment or judgment Lien not constituting an Event of Default under **Section 8.1(h)** ;

(vi) Liens securing the purchase money Indebtedness permitted under **Section 7.2(iv)** , provided that (x) any such Lien shall attach to the property being acquired, constructed or improved with such Indebtedness concurrently with or within ninety (90) days after the acquisition (or completion of construction or improvement) or the refinancing thereof by the Borrower or such Subsidiary, (y) the amount of the Indebtedness secured by such Lien shall not exceed 100% of the cost to the Borrower or such Subsidiary of acquiring, constructing or improving the property and any other assets then being financed solely by the same financing source, and (z) any such Lien shall not encumber any other property of the Borrower or any of its Subsidiaries except assets then being financed solely by the same financing source;

(vii) with respect to any Realty occupied by the Borrower or any of its Subsidiaries, all easements, rights of way, reservations, licenses, encroachments, variations and similar restrictions, charges and encumbrances on title that do not secure monetary obligations and do not materially impair the use of such property for its intended purposes or the value thereof;

(viii) any leases, subleases, licenses or sublicenses granted by the Borrower or any of its Subsidiaries to third parties in the ordinary

course of business and not interfering in any material respect with the business of the Borrower and its Subsidiaries, and any interest or title of a lessor, sublessor, licensor or sublicensor under any lease or license permitted under this Agreement;

(ix) Liens created in connection with the Guaranty Fund; and

(x) other Liens securing obligations of the Borrower and its Subsidiaries not exceeding \$1,000,000 in aggregate principal amount outstanding at any time.

7.4 Asset Dispositions. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, make or agree to make any Asset Disposition except for:

(i) the sale or other disposition of inventory and Cash Equivalents in the ordinary course of business, the sale or write-off of past due or impaired accounts receivable for collection purposes (but not for factoring, securitization or other financing purposes), and the termination or unwinding of Hedge Agreements permitted hereunder;

(ii) the sale, lease or other disposition of assets by the Borrower or any Subsidiary of the Borrower to the Borrower or to a Subsidiary Guarantor (or by any Subsidiary that is not a Subsidiary Guarantor to another Subsidiary that is not a Subsidiary Guarantor), in each case so long as no Event of Default shall have occurred and be continuing or would result therefrom;

(iii) the sale, exchange or other disposition in the ordinary course of business of equipment or other capital assets that are obsolete or no longer necessary for the operations of the Borrower and its Subsidiaries; and

(iv) the sale or other disposition of assets (other than the Capital Stock of Subsidiaries) outside the ordinary course of business for fair value and for consideration, provided that (x) the aggregate amount of Net Cash Proceeds from all such sales or dispositions that are consummated during any fiscal year shall not exceed \$25,000,000 and (y) no Default or Event of Default shall have occurred and be continuing or would result therefrom.

7.5 Acquisitions. The Borrower will not, and will not permit or cause any of its Subsidiaries to, consummate any Acquisition, provided that the Borrower or any of its Subsidiaries may consummate any Acquisition so long as (i) prior to the closing of such Acquisition, the Borrower shall provide the Lenders with a Compliance Certificate prepared on a Pro Forma Basis giving effect to such Acquisition that demonstrates compliance with the covenants in **Article VI** on a Pro Forma Basis, (ii) in the case of an Acquisition to which the Borrower is a party involving a merger, amalgamation or the acquisition of control of the Capital

Stock of a Person, the Borrower is the surviving or acquiring entity, as the case may be, (iii) each business acquired shall be in substantially the same line of business as the business conducted by the Borrower or its Subsidiaries on the Restatement Effective Date or in lines of business reasonably related thereto, (iv) the board of directors or equivalent governing body of the Person whose Capital Stock or business is acquired shall have approved such Acquisition, if required by applicable law (but provided in any event such Acquisition shall not be “hostile”), (v) no Default or Event of Default shall have occurred and be continuing at the time of the consummation of any such Acquisition or would exist immediately after giving effect thereto and (vi) the applicable conditions and requirements of **Section 5.10** are satisfied.

7.6 Restricted Payments. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, declare or make any dividend payment, or make any other distribution of cash, property or assets, in respect of any of its Capital Stock or any warrants, rights or options to acquire its Capital Stock, or purchase, redeem, retire or otherwise acquire for value any shares of its Capital Stock or any warrants, rights or options to acquire its Capital Stock, or set aside funds for any of the foregoing (any of the foregoing being a “Restricted Payment”), except that:

(a) each Subsidiary may make payments to the Borrower for its proportionate share of the tax liability of the affiliated group of entities that file consolidated federal income tax returns, provided that such payments are used to pay taxes, and provided further that any tax refunds received by the Borrower that are attributable to the any of its Subsidiaries shall be returned promptly by the Borrower to such Subsidiary;

(b) each Wholly Owned Subsidiary of the Borrower may declare and make dividend payments or other distributions to the Borrower or to another Subsidiary of the Borrower, in each case to the extent not prohibited under applicable Requirements of Law;

(c) the Borrower and any of its Subsidiaries may declare and make dividend payments or other distributions payable solely in its Common Stock; and

(d) so long as no Default or Event of Default shall have occurred and be continuing or would result therefrom, the Borrower and any of its Subsidiaries may make any Restricted Payment.

7.7 Transactions with Affiliates. The Borrower will not, and will not permit or cause any of its Subsidiaries to, enter into any transaction (including, without limitation, any purchase, sale, lease or exchange of property or the rendering of any service) with any officer, director, stockholder or other Affiliate of the Borrower or any of its Subsidiaries, except in the ordinary course of its business and upon fair and reasonable terms that are no less favorable to it than it would be obtained in a comparable arm’s length transaction with a Person other than an Affiliate of the Borrower or any of its Subsidiaries; provided, however, that nothing contained in this **Section 7.7** shall prohibit:

(i) transactions described on **Schedule 7.7** (and any renewals or replacements thereof on terms not materially more disadvantageous to the applicable Credit Party) or otherwise expressly permitted under any other provision of this Agreement;

(ii) transactions among the Borrower and/or the Subsidiary Guarantors not prohibited under this Agreement (provided that such transactions shall remain subject to any other applicable limitations and restrictions set forth in this Agreement); and

(iii) transactions with Affiliates in good faith in the ordinary course of the Borrower's or such Subsidiary's business consistent with past practice and on terms no less favorable to the Borrower or such Subsidiary than those that could have been obtained in a comparable transaction on an arm's length basis from a Person that is not an Affiliate.

7.8 Lines of Business. The Borrower will not, and will not permit or cause any of its Subsidiaries to, engage in any lines of business other than the businesses engaged in by it on the Restatement Effective Date and businesses and activities reasonably related thereto.

7.9 Limitation on Certain Restrictions. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, create or otherwise cause or suffer to exist or become effective any restriction or encumbrance on (a) the ability of the Credit Parties to perform and comply with their respective obligations under the Credit Documents or (b) the ability of any Subsidiary of the Borrower to make any dividend payment or other distribution in respect of its Capital Stock, to repay Indebtedness owed to the Borrower or any other Subsidiary, to make loans or advances to the Borrower or any other Subsidiary, or to transfer any of its assets or properties to the Borrower or any other Subsidiary, except (in the case of clause (b) above only) for such restrictions or encumbrances existing under or by reason of (i) this Agreement and the other Credit Documents, (ii) applicable Requirements of Law, (iii) customary non-assignment provisions in leases and licenses of real or personal property entered into by the Borrower or any Subsidiary as lessee or licensee in the ordinary course of business, restricting the assignment or transfer thereof or of property that is the subject thereof, (iv) the Guaranty Fund and (v) customary restrictions and conditions contained in any agreement relating to the sale of assets (including Capital Stock of a Subsidiary) pending such sale, provided that such restrictions and conditions apply only to the assets being sold and such sale is permitted under this Agreement.

7.10 No Other Negative Pledges. The Borrower will not, and will not permit or cause any of its Subsidiaries to, enter into or suffer to exist any agreement or restriction that, directly or indirectly, prohibits or conditions the creation, incurrence or assumption of any Lien upon or with respect to any part of its property or assets, whether now owned or hereafter acquired, or agree to do any of the foregoing, except for such agreements or restrictions existing under or by reason of (i) this Agreement and the other Credit Documents, (ii) applicable Requirements of Law, (iii) any agreement or instrument creating a Permitted Lien (but only to the extent such agreement or restriction applies to the assets subject to such Permitted Lien), (iv) customary provisions in leases and licenses of real or personal property entered into by the Borrower or any Subsidiary as lessee or licensee in the ordinary course of business, restricting the granting of

Liens therein or in property that is the subject thereof, and (v) customary restrictions and conditions contained in any agreement relating to the sale of assets (including Capital Stock of a Subsidiary) pending such sale, provided that such restrictions and conditions apply only to the assets being sold and such sale is permitted under this Agreement.

7.11 Investments in Subsidiaries. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, purchase, own, invest in or otherwise acquire any Capital Stock, evidence of indebtedness or other obligation or security or any interest whatsoever in any Domestic Subsidiary of the Parent that is both (a) not a Wholly-Owned Subsidiary and (b) not a Subsidiary Guarantor (each, a “Non-Wholly-Owned Subsidiary”), or make or permit to exist any loans, advances or extensions of credit to, or any investment in cash or by delivery of property in, any Non-Wholly-Owned Subsidiary (collectively, “Investments”) other than:

- (i) Investments in Non-Wholly-Owned Subsidiaries existing as of the Closing Date;
- (ii) the Borrower’s guarantee of the loans made by ICE US Trust under the New Liquidity Facility; and
 - (i) other Investments in Non Wholly-Owned Subsidiaries made in any fiscal year in an aggregate amount not exceeding 15% of Consolidated EBITDA for the fiscal year most recently ended.

7.12 Fiscal Year. The Borrower will not, and will not permit or cause any of its Subsidiaries to, change its fiscal year or its method of determining fiscal quarters.

7.13 Accounting Changes. Other than as permitted pursuant to **Section 1.2**, the Borrower will not, and will not permit or cause any of its Subsidiaries to, make or permit any material change in its accounting policies or reporting practices, except as may be required by GAAP (or, in the case of Foreign Subsidiaries, generally accepted accounting principles in the jurisdiction of its organization).

ARTICLE VIII

EVENTS OF DEFAULT

8.1 Events of Default. The occurrence of any one or more of the following events shall constitute an “Event of Default”:

- (a) The Borrower shall fail to pay when due (i) any principal of any Loan, or (ii) any interest on any Loan, any fee payable under this Agreement or any other Credit Document, or (except as provided in clause (i) above) any other Obligation (other than any Obligation under a Hedge Agreement), and (in the case of this clause (ii) only) such failure shall continue for a period of three (3) Business Days;
- (b) The Borrower or any other Credit Party shall (i) fail to observe, perform or comply with any condition, covenant or agreement contained in any of

- Sections 5.2(e)(i) , 5.4, 5.10 or 5.11** or in **Articles VI or VII** or (ii) fail to observe, perform or comply with any condition, covenant or agreement contained in **Sections 5.1 or 5.2** (other than **Section 5.2(e)(i)**) and (in the case of this clause (ii) only) such failure shall continue unremedied for a period of five (5) days after the earlier of (y) the date on which a Responsible Officer of the Borrower acquires knowledge thereof and (z) the date on which written notice thereof is delivered by the Administrative Agent or any Lender to the Borrower;
- (c) The Borrower or any other Credit Party shall fail to observe, perform or comply with any condition, covenant or agreement contained in this Agreement or any of the other Credit Documents other than those enumerated in **Sections 8.1(a) and 8.1(b)** , and such failure (i) by the express terms of such Credit Document, constitutes an Event of Default, or (ii) shall continue unremedied for any grace period specifically applicable thereto or, if no grace period is specifically applicable, for a period of thirty (30) days after the earlier of (y) the date on which a Responsible Officer of the Borrower acquires knowledge thereof and (z) the date on which written notice thereof is delivered by the Administrative Agent or any Lender to the Borrower; or any default or event of default shall occur under any Hedge Agreement to which the Borrower and any Hedge Party are parties;
 - (d) Any representation or warranty made or deemed made by or on behalf of the Borrower or any other Credit Party in this Agreement, any of the other Credit Documents or in any certificate, instrument, report or other document furnished at any time in connection herewith or therewith shall prove to have been incorrect, false or misleading in any material respect as of the time made, deemed made or furnished;
 - (e) The Borrower or any other Credit Party shall (i) fail to pay when due (whether by scheduled maturity, acceleration or otherwise and after giving effect to any applicable grace period or notice provisions) any principal of or interest due under the New Credit Facility, the New Liquidity Facility or any other Indebtedness (other than the Indebtedness incurred pursuant to this Agreement) having an aggregate principal amount of at least \$1,000,000 or (ii) fail to observe, perform or comply with any condition, covenant or agreement contained in any agreement or instrument evidencing or relating to any such Indebtedness, or any other event shall occur or condition exist in respect thereof, and the effect of such failure, event or condition is to cause, or permit the holder or holders of such Indebtedness (or a trustee or agent on its or their behalf) to cause (with or without the giving of notice, lapse of time, or both), without regard to any subordination terms with respect thereto, such Indebtedness to become due, or to be prepaid, redeemed, purchased or defeased, prior to its stated maturity;
 - (f) The Borrower or any other Credit Party shall (i) file a voluntary petition or commence a voluntary case seeking liquidation, winding-up, reorganization, dissolution, arrangement, readjustment of debts or any other relief under the Bankruptcy Code or under any other applicable bankruptcy, insolvency or similar law now or hereafter in effect, (ii) consent to the institution of, or fail to

controvert in a timely and appropriate manner, any petition or case of the type described in **Section 8.1(g)** , (iii) apply for or consent to the appointment of or taking possession by a custodian, trustee, receiver or similar official for or of itself or all or a substantial part of its properties or assets, (iv) fail generally, or admit in writing its inability, to pay its debts generally as they become due, (v) make a general assignment for the benefit of creditors or (vi) take any corporate action to authorize or approve any of the foregoing;

- (g) Any involuntary petition or case shall be filed or commenced against the Borrower or any other Credit Party seeking liquidation, winding-up, reorganization, dissolution, arrangement, readjustment of debts, the appointment of a custodian, trustee, receiver or similar official for it or all or a substantial part of its properties or any other relief under the Bankruptcy Code or under any other applicable bankruptcy, insolvency or similar law now or hereafter in effect, and such petition or case shall continue undismissed and unstayed for a period of sixty (60) days; or an order, judgment or decree approving or ordering any of the foregoing shall be entered in any such proceeding;
- (h) Any one or more money judgments, writs or warrants of attachment, executions or similar processes involving an aggregate amount (to the extent not paid or fully bonded or covered by insurance as to which the surety or insurer, as the case may be, has the financial ability to perform and has acknowledged liability in writing) in excess of \$1,000,000 shall be entered or filed against the Borrower or any other Credit Party or any of their respective properties and the same shall not be paid, dismissed, bonded, vacated, stayed or discharged within a period of thirty (30) days or in any event later than five (5) days prior to the date of any proposed sale of such property thereunder;
- (i) Any Credit Document shall for any reason (other than as explicitly permitted under this Agreement or any other Credit Document) cease to be in full force and effect as to any Credit Party, or any Credit Party or any Person acting on its behalf shall deny or disaffirm such Credit Party's obligations thereunder;
- (j) A Change of Control shall have occurred;
- (k) Any ERISA Event or any other event or condition shall occur or exist with respect to any Plan or Multiemployer Plan and, as a result thereof, together with all other ERISA Events and other events or conditions then existing, any Credit Party and its ERISA Affiliates have incurred, or could reasonably be expected to incur, liability to any one or more Plans or Multiemployer Plans or to the PBGC (or to any combination thereof) in excess of \$1,000,000; or
- (l) Any one or more licenses, permits, accreditations or authorizations of the Borrower or any other Credit Party shall be suspended, limited or terminated or shall not be renewed, or any other action shall be taken by any Governmental Authority or Self-Regulatory Organization in response to any alleged failure by the Borrower or any of its Subsidiaries to be in compliance with applicable Requirements of Law, and such action, individually or in the aggregate, has or could reasonably be expected to have a Material Adverse Effect.

8.2 Remedies: Acceleration, etc. Upon and at any time after the occurrence and during the continuance of any Event of Default, the Administrative Agent shall at the direction, or may with the consent, of the Required Lenders, take any or all of the following actions at the same or different times:

- (a) Declare all or any part of the outstanding principal amount of the Loans to be immediately due and payable, whereupon the principal amount so declared to be immediately due and payable, together with all interest accrued thereon and all other amounts payable under this Agreement and the other Credit Documents (but, for an avoidance of doubt, excluding any amounts owing under any Hedge Agreement), shall become immediately due and payable without presentment, demand, protest, notice of intent to accelerate or other notice or legal process of any kind, all of which are hereby knowingly and expressly waived by the Borrower; provided that, upon the occurrence of a Bankruptcy Event, all of the outstanding principal amount of the Loans and all other amounts described in this **Section 8.2(a)** shall automatically become immediately due and payable without presentment, demand, protest, notice of intent to accelerate or other notice or legal process of any kind, all of which are hereby knowingly and expressly waived by the Borrower;
- (b) Appoint or direct the appointment of a receiver for the properties and assets of the Credit Parties, both to operate and to sell such properties and assets, and the Borrower, for itself and on behalf of its Subsidiaries, hereby consents to such right and such appointment and hereby waives any objection the Borrower or any Subsidiary may have thereto or the right to have a bond or other security posted by the Administrative Agent on behalf of the Lenders, in connection therewith; and
- (c) Exercise all rights and remedies available to it under this Agreement, the other Credit Documents and applicable law.

8.3 Remedies: Set-Off. Upon and at any time after the occurrence and during the continuance of any Event of Default, each Lender and each of their respective Affiliates is hereby authorized at any time and from time to time, to the fullest extent permitted by applicable law, to set off and apply any and all deposits (general or special, time or demand, provisional or final, in whatever currency) at any time held and other obligations (in whatever currency) at any time owing by such Lender or any such Affiliate to or for the credit or the account of the Borrower against any and all of the obligations of the Borrower now or hereafter existing under this Agreement or any other Credit Document to such Lender, irrespective of whether or not such Lender shall have made any demand under this Agreement or any other Credit Document and although such obligations of the Borrower may be contingent or unmatured or are owed to a branch or office of such Lender different from the branch or office holding such deposit or obligated on such indebtedness. The rights of each Lender and their respective Affiliates under this Section are in addition to other rights and remedies (including other rights of setoff) that

such Lender or their respective Affiliates may have. Each Lender agrees to notify the Borrower and the Administrative Agent promptly after any such setoff and application; provided that the failure to give such notice shall not affect the validity of such setoff and application.

ARTICLE IX

THE ADMINISTRATIVE AGENT

9.1 Appointment and Authority. Each of the Lenders hereby irrevocably appoints Wachovia to act on its behalf as the Administrative Agent hereunder and under the other Credit Documents and authorizes the Administrative Agent to take such actions on its behalf and to exercise such powers as are delegated to the Administrative Agent by the terms hereof or thereof, together with such actions and powers as are reasonably incidental thereto. The provisions of this Article are solely for the benefit of the Administrative Agent and the Lenders, and neither the Borrower nor any other Credit Party shall have rights as a third party beneficiary of any of such provisions.

9.2 Rights as a Lender. The Person serving as the Administrative Agent hereunder shall have the same rights and powers in its capacity as a Lender as any other Lender and may exercise the same as though it were not the Administrative Agent and the term “Lender” or “Lenders” shall, unless otherwise expressly indicated or unless the context otherwise requires, include the Person serving as the Administrative Agent hereunder in its individual capacity. Such Person and its Affiliates may accept deposits from, lend money to, act as the financial advisor or in any other advisory capacity for and generally engage in any kind of business with the Borrower or any Subsidiary or other Affiliate thereof as if such Person were not the Administrative Agent hereunder and without any duty to account therefor to the Lenders.

9.3 Exculpatory Provisions. The Administrative Agent shall not have any duties or obligations except those expressly set forth herein and in the other Loan Documents. Without limiting the generality of the foregoing, the Administrative Agent:

- (a) shall not be subject to any fiduciary or other implied duties, regardless of whether a Default or Event of Default has occurred and is continuing;
- (b) shall not have any duty to take any discretionary action or exercise any discretionary powers, except discretionary rights and powers expressly contemplated hereby or by the other Credit Documents that the Administrative Agent is required to exercise as directed in writing by the Required Lenders (or such other number or percentage of the Lenders as shall be expressly provided for herein or in the other Credit Documents), provided that the Administrative Agent shall not be required to take any action that, in its opinion or the opinion of its counsel, may expose the Administrative Agent to liability or that is contrary to any Credit Document or applicable law; and
- (c) shall not, except as expressly set forth herein and in the other Credit Documents, have any duty to disclose, and shall not be liable for the failure to disclose, any information relating to the Borrower or any of its Affiliates that is communicated to or obtained by the Person serving as the Administrative Agent or any of its Affiliates in any capacity.

The Administrative Agent shall not be liable for any action taken or not taken by it (i) with the consent or at the request of the Required Lenders (or such other number or percentage of the Lenders as shall be necessary, or as the Administrative Agent shall believe in good faith shall be necessary, under the circumstances as provided in **Sections 10.5 and 8.2**) or (ii) in the absence of its own gross negligence or willful misconduct. The Administrative Agent shall be deemed not to have knowledge of any Default or Event of Default unless and until notice describing such Default or Event of Default is given to the Administrative Agent by the Borrower or a Lender.

The Administrative Agent shall not be responsible for or have any duty to ascertain or inquire into (i) any statement, warranty or representation made in or in connection with this Agreement or any other Credit Document, (ii) the contents of any certificate, report or other document delivered hereunder or thereunder or in connection herewith or therewith, (iii) the performance or observance of any of the covenants, agreements or other terms or conditions set forth herein or therein or the occurrence of any Default or Event of Default, (iv) the validity, enforceability, effectiveness or genuineness of this Agreement, any other Credit Document or any other agreement, instrument or document or (v) the satisfaction of any condition set forth in **Article III** or elsewhere herein, other than to confirm receipt of items expressly required to be delivered to the Administrative Agent.

9.4 Reliance by Administrative Agent. The Administrative Agent shall be entitled to rely upon, and shall not incur any liability for relying upon, any notice, request, certificate, consent, statement, instrument, document or other writing (including any electronic message, internet or intranet website posting or other distribution) believed by it to be genuine and to have been signed, sent or otherwise authenticated by the proper Person. The Administrative Agent also may rely upon any statement made to it orally or by telephone and believed by it to have been made by the proper Person, and shall not incur any liability for relying thereon. The Administrative Agent may consult with legal counsel (who may be counsel for the Borrower), independent accountants and other experts selected by it, and shall not be liable for any action taken or not taken by it in accordance with the advice of any such counsel, accountants or experts.

9.5 Delegation of Duties. The Administrative Agent may perform any and all of its duties and exercise its rights and powers hereunder or under any other Credit Document by or through any one or more sub-agents appointed by the Administrative Agent. The Administrative Agent and any such sub-agent may perform any and all of its duties and exercise its rights and powers by or through their respective Related Parties. The exculpatory provisions of this Article shall apply to any such sub-agent and to the Related Parties of the Administrative Agent and any such sub-agent, and shall apply to their respective activities in connection with the syndication of the credit facilities provided for herein as well as activities as Administrative Agent.

9.6 Resignation of Administrative Agent. The Administrative Agent may at any time give notice of its resignation to the Lenders and the Borrower. Upon receipt of any such notice of resignation, the Required Lenders shall have the right, in consultation with the Borrower, to

appoint a successor, which shall be a bank with an office in the United States, or an Affiliate of any such bank with an office in the United States, provided that if such bank is not a Lender or an Affiliate of a Lender, the Borrower shall have the right to consent to such appointment (such consent to not be unreasonably withheld). If no such successor shall have been so appointed by the Required Lenders and shall have accepted such appointment within thirty (30) days after the retiring Administrative Agent gives notice of its resignation, then the retiring Administrative Agent may, on behalf of the Lenders, appoint a successor Administrative Agent meeting the qualifications set forth above; provided that if the Administrative Agent shall notify the Borrower and the Lenders that no qualifying Person has accepted such appointment, then such resignation shall nonetheless become effective in accordance with such notice and (1) the retiring Administrative Agent shall be discharged from its duties and obligations hereunder and under the other Credit Documents (except that in the case of any collateral security held by the Administrative Agent on behalf of the Lenders under any of the Credit Documents, the retiring Administrative Agent shall continue to hold such collateral security until such time as a successor Administrative Agent is appointed) and (2) all payments, communications and determinations provided to be made by, to or through the Administrative Agent shall instead be made by or to each Lender directly, until such time as the Required Lenders appoint a successor Administrative Agent as provided for above in this Section. Upon the acceptance of a successor's appointment as Administrative Agent hereunder, such successor shall succeed to and become vested with all of the rights, powers, privileges and duties of the retiring (or retired) Administrative Agent, and the retiring Administrative Agent shall be discharged from all of its duties and obligations hereunder or under the other Credit Documents (if not already discharged therefrom as provided above in this Section). The fees payable by the Borrower to a successor Administrative Agent shall be the same as those payable to its predecessor unless otherwise agreed between the Borrower and such successor. After the retiring Administrative Agent's resignation hereunder and under the other Credit Documents, the provisions of this Article and **Section 10.1** shall continue in effect for the benefit of such retiring Administrative Agent, its sub-agents and their respective Related Parties in respect of any actions taken or omitted to be taken by any of them while the retiring Administrative Agent was acting as Administrative Agent.

9.7 Non-Reliance on Administrative Agent and Other Lenders. Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender or any of their Related Parties and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender or any of their Related Parties and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Credit Document or any related agreement or any document furnished hereunder or thereunder.

9.8 No Other Duties, Etc. Anything herein to the contrary notwithstanding, none of the Bookrunners, Arrangers, Syndication Agent or other agents listed on the cover page hereof shall have any powers, duties or responsibilities under this Agreement or any of the other Credit Documents, except in its capacity, as applicable, as the Administrative Agent or a Lender hereunder.

9.9 Guaranty Matters. The Lenders hereby authorize the Administrative Agent, at its option and in its discretion, to release any Guarantor from its obligations under the Guaranty if such Person ceases to be a Subsidiary as a result of a transaction permitted hereunder. Upon request by the Administrative Agent at any time, the Lenders will confirm in writing the Administrative Agent's authority to release any Guarantor from its obligations under the Guaranty, pursuant to this **Section 9.9**.

ARTICLE X

MISCELLANEOUS

10.1 Expenses; Indemnity; Damage Waiver.

- (a) The Borrower shall pay (i) all reasonable out-of-pocket expenses incurred by the Administrative Agent, the Arrangers and their respective Affiliates (including the reasonable fees, charges and disbursements of counsel for the Administrative Agent and the Arrangers), in connection with the syndication of the credit facilities provided for herein, the preparation, negotiation, execution, delivery and administration of this Agreement and the other Credit Documents or any amendments, modifications or waivers of the provisions hereof or thereof (whether or not the transactions contemplated hereby or thereby shall be consummated), (ii) all out-of-pocket expenses incurred by the Administrative Agent or any Lender (including the fees, charges and disbursements of any counsel for the Administrative Agent or any Lender), in connection with the enforcement or protection of its rights (A) in connection with this Agreement and the other Credit Documents, including its rights under this Section, or (B) in connection with the Loans made hereunder, including all such out-of-pocket expenses incurred during any workout, restructuring or negotiations in respect of such Loans, and (iii) any civil penalty or fine assessed by OFAC against, and all reasonable costs and expenses (including counsel fees and disbursements) incurred in connection with defense thereof by, the Administrative Agent or any Lender as a result of conduct of the Borrower that violates a sanction enforced by OFAC.
- (b) The Borrower shall indemnify the Administrative Agent (and any sub-agent thereof), the Arrangers, each Lender, and each Related Party of any of the foregoing persons (each such person being called an "Indemnitee") against, and hold each Indemnitee harmless from, any and all losses, claims, damages, liabilities and related expenses (including the fees, charges and disbursements of any counsel for any Indemnitee), incurred by any Indemnitee or asserted against any Indemnitee by any third party or by the Borrower or any other Credit Party arising out of, in connection with, or as a result of (i) the execution or delivery of this Agreement, any other Credit Document or any agreement or instrument contemplated hereby or thereby, the performance by the parties hereto of their respective obligations hereunder or thereunder or the consummation of the transactions contemplated hereby or thereby, (ii) any Loan or the use or proposed

use of the proceeds therefrom, (iii) any actual or alleged presence or release of Hazardous Substances on or from any property owned or operated by any Credit Party, or any Environmental Claim related in any way to any Credit Party, or (iv) any actual or prospective claim, litigation, investigation or proceeding relating to any of the foregoing, whether based on contract, tort or any other theory, whether brought by a third party or by the Borrower or any other Credit Party, and regardless of whether any Indemnatee is a party thereto; provided that such indemnity shall not, as to any Indemnatee, be available to the extent that such losses, claims, damages, liabilities or related expenses are determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the gross negligence or willful misconduct of such Indemnatee.

- (c) To the extent that the Borrower for any reason fails to indefeasibly pay any amount required under **Section 10.1(a)** or **Section 10.1(b)** to be paid by it to the Administrative Agent (or any sub-agent thereof), each Lender severally agrees to pay to the Administrative Agent (or any such sub-agent) such Lender's proportion (based on the percentages as used in determining the Required Lenders as of the time that the applicable unreimbursed expense or indemnity payment is sought) of such unpaid amount, provided that the unreimbursed expense or indemnified loss, claim, damage, liability or related expense, as the case may be, was incurred by or asserted against the Administrative Agent (or any such sub-agent) in its capacity as such, or against any Related Party of any of the foregoing acting for the Administrative Agent (or any such sub-agent) in connection with such capacity. The obligations of the Lenders under this **Section 10.1(c)** are several and not joint. The failure of any Lender to make any such payment on any date shall not relieve any other Lender of its corresponding obligation, if any, hereunder to do so on such date, but no Lender shall be responsible for the failure of any other Lender to make any such payment required hereunder.
- (d) To the fullest extent permitted by applicable law, the Borrower shall not assert, and hereby waives, any claim against any Indemnatee, on any theory of liability, for special, indirect, consequential or punitive damages (as opposed to direct or actual damages) arising out of, in connection with, or as a result of, this Agreement, any other Credit Document or any agreement or instrument contemplated hereby, the transactions contemplated hereby or thereby, any Loan or the use of the proceeds thereof. No Indemnatee referred to in **Section 10.1(b)** shall be liable for any damages arising from the use by unintended recipients of any information or other materials distributed by it through telecommunications, electronic or other information transmission systems (including Intralinks, SyndTrak or similar systems) in connection with this Agreement or the other Credit Documents or the transactions contemplated hereby or thereby, except as a result of such Indemnatee's gross negligence or willful misconduct.
- (e) All amounts due under this Section shall be payable by the Borrower upon demand therefor.

10.2 Governing Law; Submission to Jurisdiction; Waiver of Venue; Service of Process.

- (a) This Agreement and the other Credit Documents shall (except as may be expressly otherwise provided in any Credit Document) be governed by, and construed in accordance with, the law of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).
- (b) Each Credit Party irrevocably and unconditionally submits, for itself and its property, to the nonexclusive jurisdiction of the courts of the State of New York sitting in New York County and of the United States District Court of the Southern District of New York, and any appellate court from any thereof, in any action or proceeding arising out of or relating to this Agreement or any other Credit Document, or for recognition or enforcement of any judgment, and each of the parties hereto irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding may be heard and determined in such state court or, to the fullest extent permitted by applicable law, in such federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Agreement or in any Credit Document shall affect any right that the Administrative Agent, any Lender may otherwise have to bring any action or proceeding relating to this Agreement or any other Credit Document against any Credit Party or any of their respective properties in the courts of any jurisdiction.
- (c) The Borrower irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any objection that it may now or hereafter have to the laying of venue of any action or proceeding arising out of or relating to this Agreement or any other Credit Document in any court referred to in **Section ARTICLE I Section 9(b)** . Each of the parties hereto hereby irrevocably waives, to the fullest extent permitted by applicable law, the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court.
- (d) Each party hereto irrevocably consents to service of process in the manner provided for notices in **Section 10.4** . Nothing in this Agreement will affect the right of any party hereto to serve process in any other manner permitted by applicable law.

10.3 Waiver of Jury Trial.. EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY OTHER CREDIT DOCUMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH PARTY HERETO (A) CERTIFIES THAT NO REPRESENTATIVE, AGENT OR

ATTORNEY OF ANY OTHER PERSON HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PERSON WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER AND (B) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HERETO HAVE BEEN INDUCED TO ENTER INTO THIS AGREEMENT AND THE OTHER CREDIT DOCUMENTS BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION.

10.4 Notices; Effectiveness; Electronic Communication.

- (a) Except in the cases of notices and other communications expressly permitted to be given by telephone (and except as provided in **Section 10.4(b)**), all notices and other communications provided for herein shall be in writing and shall be delivered by hand or overnight courier service, mailed by certified or registered mail or sent by telecopier as follows:
 - (i) if to the Borrower or the Administrative Agent, to it at the address (or telecopier number) specified for such Person on **Schedule 1.1(a)**; and
 - (ii) if to any Lender, to it at its address (or telecopier number) set forth in its Administrative Questionnaire.

Notices sent by hand or overnight courier service, or mailed by certified or registered mail, shall be deemed to have been given when received; notices sent by telecopier shall be deemed to have been given when sent (except that, if not given during normal business hours for the recipient, shall be deemed to have been given at the opening of business on the next business day for the recipient). Notices delivered through electronic communications to the extent provided in **Section 10.4(b)** shall be effective as provided in **Section 10.4(b)**.

- (b) Notices and other communications to the Lenders hereunder may be delivered or furnished by electronic communication (including e-mail and internet or intranet websites) pursuant to procedures approved by the Administrative Agent, provided that the foregoing shall not apply to notices to any Lender pursuant to **Article II** if such Lender has notified the Administrative Agent that it is incapable of receiving notices under such Article by electronic communication. The Administrative Agent or the Borrower may, in its discretion, agree to accept notices and other communications to it hereunder by electronic communication pursuant to procedures approved by it, provided that approval of such procedures may be limited to particular notices or communications. Unless the Administrative Agent otherwise prescribes, (i) notices and other communications sent to an e-mail address shall be deemed received upon the sender's receipt of an acknowledgement from the intended recipient (such as by the "return receipt requested" function, as available, return e-mail or other written acknowledgement), provided that if such notice or other communication is not sent during the normal business hours of the recipient, such notice or communication shall be deemed to have been sent at the opening of business on

the next business day for the recipient, and (ii) notices or other communications posted to an internet or intranet website shall be deemed received upon the deemed receipt by the intended recipient at its e-mail address as described in the foregoing clause (i) of notification that such notice or communication is available and identifying the website address therefor.

- (c) Any party hereto may change its address or telecopier number for notices and other communications hereunder by notice to the other parties hereto (except that each Lender need not give notice of any such change to the other Lenders in their capacities as such).

10.5 Amendments, Waivers, etc. No amendment, modification, waiver or discharge or termination of, or consent to any departure by any Credit Party from, any provision of this Agreement or any other Credit Document shall be effective unless in a writing signed by the Required Lenders (or by the Administrative Agent at the direction or with the consent of the Required Lenders), and then the same shall be effective only in the specific instance and for the specific purpose for which given; provided, however, that no such amendment, modification, waiver, discharge, termination or consent shall:

- (a) unless agreed to by each Lender directly affected thereby, (i) reduce or forgive the principal amount of any Loan, reduce the rate of or forgive any interest thereon (provided that only the consent of the Required Lenders shall be required to waive the applicability of any post-default increase in interest rates), or reduce or forgive any fees hereunder (other than fees payable to the Administrative Agent or the Arrangers for their own accounts) (it being understood that an amendment to the definition of Total Leverage Ratio (or any defined terms used therein) shall not constitute a reduction of any interest rate or fees hereunder), or (ii) extend the final scheduled maturity date or any other scheduled date for the payment of any principal of or interest on any Loan, or extend the time of payment of any fees hereunder (other than fees payable to the Administrative Agent or the Arrangers for their own accounts);
- (b) unless agreed to by all of the Lenders, (i) release any Guarantor from its obligations under the Guaranty (other than (A) as may be otherwise specifically provided in this Agreement or in any other Credit Document or (B) in connection with the sale or other disposition of all of the Capital Stock of such Guarantor in a transaction expressly permitted under or pursuant to this Agreement), (ii) reduce the percentage of the aggregate unpaid principal amount of the Loans, or the number or percentage of Lenders, that shall be required for the Lenders or any of them to take or approve, or direct the Administrative Agent to take, any action hereunder or under any other Credit Document (including as set forth in the definition of “ Required Lenders ”), (iii) change any other provision of this Agreement or any of the other Credit Documents requiring, by its terms, the consent or approval of all the Lenders for such amendment, modification, waiver, discharge, termination or consent, or (iv) change or waive any provision of **Section 2.9(e)** , **Section 2.11** , any other provision of this Agreement or any other Credit Document requiring pro rata treatment of any Lenders, or this **Section 10.5** ; and

-
- (c) unless agreed to by each Hedge Party that would be adversely affected thereby in its capacity as such relative to the Lenders, (i) amend the definition of “Guaranteed Obligations” in the Guaranty (or any similar defined term in any other Credit Document benefiting such Hedge Party), (ii) amend the definition of “Guaranteed Parties” in the Guaranty (or any similar defined term in any other Credit Document benefiting such Hedge Party), (iii) amend any provision regarding priority of payments in this Agreement or any other Credit Document, or (iv) release any Guarantor from its obligations under the Guaranty (other than (A) as may be otherwise specifically provided in this Agreement or in any other Credit Document or (B) in connection with the sale or other disposition of all of the Capital Stock of such Guarantor in a transaction expressly permitted under or pursuant to this Agreement);

and provided further that the Fee Letters may only be amended or modified, and any rights thereunder waived, in a writing signed by the parties thereto.

Notwithstanding the fact that the consent of all Lenders is required in certain circumstances as set forth above, each Lender is entitled to vote as such Lender sees fit on any bankruptcy reorganization plan that affects the Loans, and each Lender acknowledges that the provisions of Section 1126(c) of the Bankruptcy Code supersedes the unanimous consent provisions set forth herein.

10.6 Successors and Assigns.

- (a) The provisions of this Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns permitted hereby, except that neither the Borrower nor any other Credit Party may assign or otherwise transfer any of its rights or obligations hereunder without the prior written consent of the Administrative Agent and each Lender and no Lender may assign or otherwise transfer any of its rights or obligations hereunder except (i) to an assignee in accordance with the provisions of Section **10.6(b)**, (ii) by way of participation in accordance with the provisions of **Section 10.6(d)** or (iii) by way of pledge or assignment of a security interest subject to the restrictions of **Section 10.6(f)** (and any other attempted assignment or transfer by any party hereto shall be null and void). Nothing in this Agreement, expressed or implied, shall be construed to confer upon any Person (other than the parties hereto, their respective successors and assigns permitted hereby, Participants to the extent provided in **Section 10.6(d)** and, to the extent expressly contemplated hereby, the Related Parties of each of the Administrative Agent and the Lenders) any legal or equitable right, remedy or claim under or by reason of this Agreement.
- (b) Any Lender may assign to one or more assignees all or a portion of its rights and obligations under this Agreement (including all or a portion of its Loans at the time owing to it); provided that any such assignment shall be subject to the following conditions:

(i) The prior written consent of the Administrative Agent and the Borrower (such consent not to be unreasonably withheld or delayed) is obtained, except that

(A) the consent of the Borrower shall not be required if (y) a Default or Event of Default has occurred and is continuing at the time of such assignment or (z) such assignment is to a Lender, an Affiliate of a Lender or an Approved Fund; and

(B) the consent of the Administrative Agent shall not be required if such assignment is to a Lender, an Affiliate of a Lender or an Approved Fund;

(ii) (A) in the case of an assignment of the entire remaining amount of the assigning Lender's Loans at the time owing to it or in the case of an assignment to a Lender, an Affiliate of a Lender or an Approved Fund, no minimum amount need be assigned, and (B) in any case not described in clause (A) above, the principal outstanding balance of the Loans of the assigning Lender subject to each such assignment (determined as of the date the Assignment and Assumption with respect to such assignment is delivered to the Administrative Agent or, if "Trade Date" is specified in the Assignment and Assumption, as of the Trade Date) shall not be less than \$1,000,000, treating assignments to two or more Approved Funds under common management as one assignment for purposes of the minimum amounts, unless each of the Administrative Agent and, so long as no Default or Event of Default has occurred and is continuing, the Borrower otherwise consents (each such consent not to be unreasonably withheld or delayed);

(iii) each partial assignment shall be made as an assignment of a proportionate part of all the assigning Lender's rights and obligations under this Agreement with respect to the Loan assigned;

(iv) the parties to each assignment shall execute and deliver to the Administrative Agent an Assignment and Assumption, together with a processing and recordation fee of \$3,500 for each assignment and the assignee, if it is not a Lender, shall deliver to the Administrative Agent an Administrative Questionnaire;

(v) no such assignment shall be made to the Borrower or any of the Borrower's Affiliates or Subsidiaries; and

(vi) no such assignment shall be made to a natural person.

Subject to acceptance and recording thereof by the Administrative Agent pursuant to **Section 10.6(c)**, from and after the effective date specified in each Assignment and Assumption, the assignee thereunder shall be a party to this Agreement and, to the extent of the interest assigned by such Assignment and Assumption, have the rights and obligations of a Lender under this Agreement, and the assigning Lender thereunder shall, to the extent of the interest assigned by such Assignment and Assumption, be released from its obligations under this Agreement (and, in the case of an Assignment and Assumption covering all of the assigning Lender's rights and obligations under this Agreement, such Lender shall cease to be a party hereto) but shall continue to be entitled to the benefits of **Sections 2.12(a)**, **2.12(b)**, **2.13**, **2.14** and **10.1** with respect to facts and circumstances occurring prior to the effective date of such assignment. If requested by or on behalf of the assignee, the Borrower, at its own expense, will execute and deliver to the Administrative Agent a new Term Note or Term Notes to the order of the assignee (and, if the assigning Lender has retained any portion of its rights and obligations hereunder, to the order of the assigning Lender), prepared in accordance with the applicable provisions of **Section 2.2** as necessary to reflect, after giving effect to the assignment, the outstanding Loans, as the case may be, of the assignee and (to the extent of any retained interests) the assigning Lender, in substantially the form of **Exhibits A-1, A-2** and/or **A-3**, as applicable. Any assignment or transfer by a Lender of rights or obligations under this Agreement that does not comply with this **Section 10.6(b)** shall be treated for purposes of this Agreement as a sale by such Lender of a participation in such rights and obligations in accordance with **Section 10.6(d)**.

- (c) The Administrative Agent, acting solely for this purpose as an agent of the Borrower, shall maintain at its address for notices referred to in **Schedule 1.1(a)** a copy of each Assignment and Assumption delivered to it and a register for the recordation of the names and addresses of the Lenders, and the principal amounts of the Loans owing to, each Lender pursuant to the terms hereof from time to time (the "Register"). The entries in the Register shall be conclusive, and the Borrower, the Administrative Agent and the Lenders may treat each Person whose name is recorded in the Register pursuant to the terms hereof as a Lender hereunder for all purposes of this Agreement, notwithstanding notice to the contrary. The Register shall be available for inspection by the Borrower, at any reasonable time and from time to time upon reasonable prior notice. In addition, at any time that a request for a consent for a material or substantive change to the Credit Documents is pending, any Lender wishing to consult with other Lenders in connection therewith may request and receive from the Administrative Agent a copy of the Register.
- (d) Any Lender may at any time, without the consent of, or notice to, the Borrower or the Administrative Agent, sell participations to any Person (other than a natural person or the Borrower or any of the Borrower's Affiliates or Subsidiaries) (each, a "Participant") in all or a portion of such Lender's rights and/or obligations under this Agreement (including all or a portion of the Loans owing to it); provided that (i) such Lender's obligations under this Agreement shall remain unchanged, (ii) such Lender shall remain solely responsible to the other parties hereto for the performance of such obligations and (iii) the Borrower, the Administrative Agent and the Lenders shall continue to deal solely and directly with such Lender in connection with such Lender's rights and obligations under this Agreement. Any

agreement or instrument pursuant to which a Lender sells such a participation shall provide that such Lender shall retain the sole right to enforce this Agreement and to approve any amendment, modification or waiver of any provision of this Agreement; provided that such agreement or instrument may provide that such Lender will not, without the consent of the Participant, agree to any amendment, waiver or other modification described in **Section 10.5(a)** and clause (i) of **Section 10.5(b)** that affects such Participant. Subject to **Section 10.6(e)**, the Borrower agrees that each Participant shall be entitled to the benefits of **Sections 2.12(a)**, **2.12(b)**, **2.13** and **2.14** to the same extent as if it were a Lender and had acquired its interest by assignment pursuant to **Section 10.6(b)**. To the extent permitted by law, each Participant also shall be entitled to the benefits of **Section 8.3** as though it were a Lender; provided such Participant agrees to be subject to **Section 2.11(b)** as though it were a Lender.

- (e) A Participant shall not be entitled to receive any greater payment under **Section 2.12(a)**, **Section 2.12(b)** or **Section 2.13** than the applicable Lender would have been entitled to receive with respect to the participation sold to such Participant, unless the sale of the participation to such Participant is made with the Borrower's prior written consent. A Participant that would be a Foreign Lender if it were a Lender shall not be entitled to the benefits of **Section 2.13** unless the Borrower is notified of the participation sold to such Participant and such Participant agrees, for the benefit of the Borrower, to comply with **Section 2.13(e)** as though it were a Lender.
- (f) Any Lender may at any time pledge or assign, or grant a security interest in, all or any portion of its rights under this Agreement (including under its Term Notes, if any) to secure obligations of such Lender, including any pledge or assignment or grant to secure obligations to a Federal Reserve Bank; provided that no such pledge or assignment or grant shall release such Lender from any of its obligations hereunder or substitute any such pledgee or assignee or grantee for such Lender as a party hereto.
- (g) The words "execution," "signed," "signature," and words of like import in any Assignment and Assumption shall be deemed to include electronic signatures or the keeping of records in electronic form, each of which shall be of the same legal effect, validity or enforceability as a manually executed signature or the use of a paper-based recordkeeping system, as the case may be, to the extent and as provided for in any applicable law, including the Federal Electronic Signatures in Global and National Commerce Act or any state laws based on the Uniform Electronic Transactions Act.
- (h) Any Lender or participant may, in connection with any assignment, participation, pledge or proposed assignment, participation or pledge pursuant to this **Section 10.6**, disclose to the Assignee, Participant or pledgee or proposed Assignee, Participant or pledgee any information relating to the Borrower and its Subsidiaries furnished to it by or on behalf of any other party hereto, provided that such Assignee, Participant or pledgee or proposed Assignee, Participant or pledgee agrees in writing to keep such information confidential to the same extent required of the Lenders under **Section 10.11**.

10.7 No Waiver. The rights and remedies of the Administrative Agent and the Lenders expressly set forth in this Agreement and the other Credit Documents are cumulative and in addition to, and not exclusive of, all other rights and remedies available at law, in equity or otherwise. No failure or delay on the part of the Administrative Agent or any Lender in exercising any right, power or privilege shall operate as a waiver thereof, nor shall any single or partial exercise of any such right, power or privilege preclude other or further exercise thereof or the exercise of any other right, power or privilege or be construed to be a waiver of any Default or Event of Default. No course of dealing between any Credit Party, the Administrative Agent or the Lenders or their agents or employees shall be effective to amend, modify or discharge any provision of this Agreement or any other Credit Document or to constitute a waiver of any Default or Event of Default. No notice to or demand upon any Credit Party in any case shall entitle any Credit Party to any other or further notice or demand in similar or other circumstances or constitute a waiver of the right of the Administrative Agent or any Lender to exercise any right or remedy or take any other or further action in any circumstances without notice or demand.

10.8 Survival. All representations, warranties and agreements made by or on behalf of the Borrower or any other Credit Party in this Agreement and in the other Credit Documents shall survive the execution and delivery hereof or thereof and the making and repayment of the Loans until the indefeasible payment in full of the Obligations. In addition, notwithstanding anything herein or under applicable law to the contrary, the provisions of this Agreement and the other Credit Documents relating to indemnification or payment of costs and expenses, including, without limitation, the provisions of **Sections 2.12(a) , 2.12(b) , 2.13 , 2.14 and 10.1** , shall survive the payment in full of all Loans and any termination of this Agreement or any of the other Credit Documents. Except as set forth above, this Agreement and the Credit Documents shall be deemed terminated upon the indefeasible payment in full of the Obligations.

10.9 Severability. To the extent any provision of this Agreement is prohibited by or invalid under the applicable law of any jurisdiction, such provision shall be ineffective only to the extent of such prohibition or invalidity and only in such jurisdiction, without prohibiting or invalidating such provision in any other jurisdiction or the remaining provisions of this Agreement in any jurisdiction.

10.10 Construction. The headings of the various articles, sections and subsections of this Agreement and the table of contents have been inserted for convenience only and shall not in any way affect the meaning or construction of any of the provisions hereof. Except as otherwise expressly provided herein and in the other Credit Documents, in the event of any inconsistency or conflict between any provision of this Agreement and any provision of any of the other Credit Documents, the provision of this Agreement shall control.

10.11 Confidentiality. Each of the Administrative Agent and the Lenders agree to maintain the confidentiality of the Information (as defined below), except that Information may be disclosed (a) to its Affiliates and to its and its Affiliates' respective partners, directors, officers, employees, agents, advisors and other representatives (it being understood that the

Persons to whom such disclosure is made will be informed of the confidential nature of such Information and instructed to keep such Information confidential), (b) to the extent requested by any regulatory authority purporting to have jurisdiction over it (including any self-regulatory authority, such as the National Association of Insurance Commissioners), (c) to the extent required by applicable Requirements of Law or by any subpoena or similar legal process, (d) to any other party hereto, (e) in connection with the exercise of any remedies hereunder or under any other Credit Document or any action or proceeding relating to this Agreement or any other Credit Document or the enforcement of rights hereunder or thereunder, (f) subject to an agreement containing provisions substantially the same as those of this Section, to (i) any assignee of or Participant in, or any prospective assignee of or Participant in, any of its rights or obligations under this Agreement, or (ii) any actual or prospective counterparty (or its advisors) to any swap or derivative transaction relating to the Borrower and its obligations, (g) with the consent of the Borrower or (h) to the extent such Information (x) becomes publicly available other than as a result of a breach of this Section or (y) becomes available to the Administrative Agent, any Lender or any of their respective Affiliates on a nonconfidential basis from a source other than the Borrower or any of its Subsidiaries or Affiliates.

For purposes of this Section, “Information” means all information received from the Credit Parties relating to any Credit Party or any of their respective businesses, other than any such information that is available to the Administrative Agent or any Lender on a nonconfidential basis prior to disclosure by any Credit Party, provided that, in the case of information received from any Credit Party after the date hereof, such information is clearly identified at the time of delivery as confidential. Any Person required to maintain the confidentiality of Information as provided in this Section shall be considered to have complied with its obligation to do so if such Person has exercised the same degree of care to maintain the confidentiality of such Information as such Person would accord to its own confidential information.

10.12 Counterparts; Integration; Effectiveness. This Agreement may be executed in counterparts (and by different parties hereto in different counterparts), each of which shall constitute an original, but all of which when taken together shall constitute a single contract. This Agreement and the other Credit Documents constitute the entire contract among the parties relating to the subject matter hereof and supersede any and all previous agreements and understandings, oral or written, relating to the subject matter hereof (except for the Fee Letters). Except as provided in the Restatement Agreement, this Agreement shall become effective when it shall have been executed by the Administrative Agent and when the Administrative Agent shall have received counterparts hereof that, when taken together, bear the signatures of each of the other parties hereto. Delivery of an executed counterpart of a signature page of this Agreement by telecopy (or by PDF formatted page sent by electronic mail) shall be effective as delivery of a manually executed counterpart of this Agreement.

10.13 Disclosure of Information. The Borrower agrees and consents to the Administrative Agent’s and the Arrangers’ disclosure of information relating to this transaction to Gold Sheets and other similar bank trade publications. Such information will consist of deal terms and other information customarily found in such publications.

10.14 USA Patriot Act Notice. Each Lender that is subject to the Act (as defined below) and the Administrative Agent (for itself and not on behalf of any Lender) hereby notifies the Borrower that pursuant to the requirements of the USA Patriot Act (Title III of Pub. L. 107-56 (signed into law October 26, 2001)) (the “Act”), it is required to obtain, verify and record information that identifies the Borrower, which information includes the name and address of the Borrower and other information that will allow such Lender or the Administrative Agent, as applicable, to identify the Borrower in accordance with the Act.

FORM OF AMENDED AND RESTATED TERM NOTE

\$ _____

April __, 2009
Charlotte, North Carolina

FOR VALUE RECEIVED, INTERCONTINENTALEXCHANGE, INC., a Delaware corporation (the "Borrower"), hereby promises to pay to the order of

_____ (the "Lender"), at the offices of Wachovia Bank, National Association (the "Administrative Agent") located at One Wachovia Center, 301 South College Street, Charlotte, North Carolina (or at such other place or places as the Administrative Agent may designate), at the times and in the manner provided in the Credit Agreement, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement, dated as of August 24, 2007 and the Second Amendment to Credit Agreement, dated as of June 13, 2008, and as amended and restated as of the __ day of April, 2009, (as amended, modified, restated or supplemented from time to time, the "Credit Agreement"), among the Borrower, the Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, and Bank of America, N.A., as Syndication Agent, the principal sum of

_____ **DOLLARS** (\$ _____), under the terms and conditions of this promissory note (this "Term Note") and the Credit Agreement. The defined terms in the Credit Agreement are used herein with the same meaning. The Borrower also promises to pay interest on the aggregate unpaid principal amount of this Term Note at the rates applicable thereto from time to time as provided in the Credit Agreement.

This Term Note is one of a series of Term Notes referred to in the Credit Agreement and is issued to evidence the Loan made by the Lender pursuant to the Credit Agreement. All of the terms, conditions and covenants of the Credit Agreement are expressly made a part of this Term Note by reference in the same manner and with the same effect as if set forth herein at length, and any holder of this Term Note is entitled to the benefits of and remedies provided in the Credit Agreement and the other Credit Documents. Reference is made to the Credit Agreement for provisions relating to the interest rate, maturity, payment, prepayment and acceleration of this Term Note.

In the event of an acceleration of the maturity of this Term Note, this Term Note shall become immediately due and payable, without presentation, demand, protest or notice of any kind, all of which are hereby waived by the Borrower.

In the event this Term Note is not paid when due at any stated or accelerated maturity, the Borrower agrees to pay, in addition to the principal and interest, all costs of collection, including reasonable attorneys' fees, in accordance with the Credit Agreement.

This Term Note amends, restates and replaces that certain Term Note dated as of January 12, 2007 from the Borrower to the Lender (the "Prior Note"). The indebtedness represented by the Prior Note has not been paid or satisfied but, instead, continues in existence as evidenced by this Note. This Term Note is not intended by the parties to be, nor shall it be construed as, a novation of the indebtedness evidenced by the Prior Note.

This Term Note shall be governed by and construed in accordance with the internal laws and judicial decisions of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules). The Borrower hereby submits to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, although the Lender shall not be limited to bringing an action in such courts.

(signature next page)

IN WITNESS WHEREOF , the Borrower has caused this Term Note to be executed by its duly authorized corporate officer as of the day and year first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

FORM OF NOTICE OF CONVERSION/CONTINUATION

[Date]

Wachovia Bank, National Association,
as Administrative Agent
Charlotte Plaza Building
201 South College Street, 8th Floor NC 0680
Charlotte, North Carolina 28288
Attention: Syndication Agency Services

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement, dated as of August 24, 2007 and the Second Amendment to Credit Agreement, dated as of June 13, 2008, and as amended and restated as of the _____ day of April, 2009, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.8(b)** of the Credit Agreement, hereby gives you, as Agent, irrevocable notice that the Borrower requests a [conversion] [continuation] ¹ of Loans under the Credit Agreement, and to that end sets forth below the information relating to such [conversion] [continuation] (the “Proposed [Conversion] [Continuation]”) as required by **Section 2.8(b)** of the Credit Agreement:

(i) The Proposed [Conversion] [Continuation] is requested to be made on _____. ²

(ii) The Proposed [Conversion] [Continuation] involves \$ _____³ in aggregate principal amount of Loans made pursuant to a

¹ Insert “conversion” or “continuation” throughout the notice, as applicable.

² Shall be a Business Day on or after the date hereof (in the case of any conversion of LIBOR Loans into Base Rate Loans) or at least three Business Days after the date hereof (in the case of any conversion of Base Rate Loans into, or continuation of, LIBOR Loans), and additionally, in the case of any conversion of LIBOR Loans into Base Rate Loans, or continuation of LIBOR Loans, shall be the last day of the Interest Period applicable to such LIBOR Loans.

³ Amount of Proposed Conversion or Continuation must comply with Section 2.8(b) of the Credit Agreement.

Borrowing on _____, ⁴ which Loans are presently maintained as [Base Rate] [LIBOR] Loans and are proposed hereby to be [converted into Base Rate Loans] [converted into LIBOR Loans] [continued as LIBOR Loans]. ⁵

(iii) [The initial Interest Period for the Loans being [converted into] [continued as] LIBOR Loans pursuant to the Proposed [Conversion] [Continuation] shall be [one/two/three/six months].] ⁶

The Borrower hereby certifies that the following statement is true both on and as of the date hereof and on and as of the effective date of the Proposed [Conversion] [Continuation]: no Default or Event of Default has or will have occurred and is continuing or would result from the Proposed [Conversion] [Continuation].

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

⁴ Insert the applicable Borrowing Date for the Loans being converted or continued.

⁵ Complete with the applicable bracketed language.

⁶ Include this clause in the case of a Proposed Conversion or Continuation involving a conversion of Base Rate Loans into, or continuation of, LIBOR Loans, and select the applicable Interest Period.

EXHIBIT C

FORM OF COMPLIANCE CERTIFICATE

THIS CERTIFICATE is delivered pursuant to the Credit Agreement, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement, dated as of August 24, 2007 and the Second Amendment to Credit Agreement, dated as of June 13, 2008, and as amended and restated as of the ___ day of April, 2009, (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”), among IntercontinentalExchange, Inc., a Delaware corporation (the “Borrower”), the Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, and Bank of America, N.A., as Syndication Agent. Capitalized terms used herein without definition shall have the meanings given to such terms in the Credit Agreement.

The undersigned hereby certifies that:

1. He is a duly elected Financial Officer of the Borrower.

2. Enclosed with this Certificate are copies of the financial statements of the Borrower and its Subsidiaries as of _____, and for the [_____-month period] [year] then ended, required to be delivered under **Section [5.1(a)][5.1(b)]** of the Credit Agreement. Such financial statements have been prepared in accordance with GAAP [(subject to the absence of notes required by GAAP and subject to normal year-end adjustments)] ⁷ and fairly present in all material respects the financial condition of the Borrower and its Subsidiaries on a consolidated basis as of the date indicated and the results of operation of the Borrower and its Subsidiaries on a consolidated basis for the period covered thereby.

3. The undersigned has reviewed the terms of the Credit Agreement and has made, or caused to be made under the supervision of the undersigned, a review in reasonable detail of the transactions and condition of the Borrower and its Subsidiaries during the accounting period covered by such financial statements.

4. The examination described in paragraph 3 above did not disclose, and the undersigned has no knowledge of the existence of, any Default or Event of Default during or at the end of the accounting period covered by such financial statements or as of the date of this Certificate. [, except as set forth below.

Describe here or in a separate attachment any exceptions to paragraph 4 above by listing, in reasonable detail, the nature of the Default or Event of Default, the period during which it existed and the action that the Borrower has taken or proposes to take with respect thereto.]

5. Attached to this Certificate as Attachment A is a covenant compliance worksheet reflecting the computation of the financial covenants set forth in **Article VI** of the Credit Agreement as of the last day of and for the period covered by the financial statements enclosed herewith.

⁷ Insert in the case of quarterly financial statements.

IN WITNESS WHEREOF , the undersigned has executed and delivered this Certificate as of the _____ day of _____, ____.

INTERCONTINENTALEXCHANGE, INC.

By: _____

Name: _____

Title: _____

ATTACHMENT A

COVENANT COMPLIANCE WORKSHEET

A. Total Leverage Ratio (Section 6.1 of the Credit Agreement)

(1)	Total Funded Debt as of the date of determination	\$	
(2)	Consolidated EBITDA for the Reference Period ending on the date of determination (from Line C(5) below)	\$	
(3)	Total Leverage Ratio: Divide Line A(1) by Line A(2)		
(4)	Maximum Total Leverage Ratio as of the date of determination		2.50 to 1.00

B. Interest Coverage Ratio (Section 6.2 of the Credit Agreement)

(1)	Consolidated EBITDA for the Reference Period ending on the date of determination (from Line C(7) below)	\$ _____
(2)	Consolidated Interest Expense for such period	\$ _____
(3)	Interest Coverage Ratio: Divide Line B(1) by Line B(2)	_____
(4)	Minimum Interest Coverage Ratio as of the date of determination	5.0 to 1.0

C. Consolidated EBITDA

(1)	Consolidated Net Income for the Reference Period ending on the date of determination	\$ _____
(2)	Additions to Consolidated Net Income (to the extent taken into account in the calculation of Consolidated Net Income for such period):	
(a)	Interest expense	\$ _____
(b)	Federal, state, local and other taxes	\$ _____
(c)	Depreciation and amortization of intangible assets	\$ _____
(d)	Extraordinary losses or charges for such period (attach itemized schedule)	\$ _____
(e)	Add Lines C(2)(a) through Error! Referencesource not found.	\$ _____
(3)	Net Income plus Additions: Add Lines C(1) and C(2)(e)	\$ _____
(4)	Reductions from Consolidated Net Income (to the extent taken into account in the calculation of Consolidated Net Income for such period):	\$ _____
(a)	Extraordinary gains or income for such period (attach itemized schedule)	\$ _____
(b)	Noncash credits increasing income for such period	\$ _____
(c)	Add Lines C(4)(a) through C(4)(b)	(\$ _____)
(5)	Consolidated EBITDA: Subtract Line C(4)(c) from Line C(3)	\$ _____
(6)	Reductions from Consolidated EBITDA	
(a)	Capital Expenditures for such period	\$ _____
(b)	Capitalized Software Development Costs for such period	\$ _____
(c)	Add Lines C(6)(a) and C(6)(b)	\$ _____

(7)	Adjustments to Consolidated EBITDA: Subtract Line C(6)(c) from Line C(5)	\$ _____
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ITEMIZED SCHEDULE OF EXTRAORDINARY LOSSES AND GAINS

EXHIBIT D

FORM OF ASSIGNMENT AND ASSUMPTION

THIS ASSIGNMENT AND ASSUMPTION (this “ Assignment and Assumption ”) is dated as of the Effective Date set forth below and is entered into by and between [*Insert name of Assignor*] (the “ Assignor ”) and [*Insert name of Assignee*] (the “ Assignee ”). Capitalized terms used but not defined herein shall have the meanings given to them in the Credit Agreement identified below, receipt of a copy of which is hereby acknowledged by the Assignee. The Standard Terms and Conditions set forth in Annex 1 attached hereto (the “ Standard Terms and Conditions ”) are hereby agreed to and incorporated herein by reference and made a part of this Assignment and Assumption as if set forth herein in full.

For an agreed consideration, the Assignor hereby irrevocably sells and assigns to the Assignee, and the Assignee hereby irrevocably purchases and assumes from the Assignor, subject to and in accordance with the Standard Terms and Conditions and the Credit Agreement, as of the Effective Date inserted by the Administrative Agent as contemplated below (i) all of the Assignor’s rights and obligations in its capacity as a Lender under the Credit Agreement and any other documents or instruments delivered pursuant thereto to the extent related to the amount and percentage interest identified below of all of such outstanding rights and obligations of the Assignor under the respective facilities identified below (including any guarantees and Swingline Loans included in such facilities) and (ii) to the extent permitted to be assigned under applicable law, all claims, suits, causes of action and any other right of the Assignor (in its capacity as a Lender) against any Person, whether known or unknown, arising under or in connection with the Credit Agreement, any other documents or instruments delivered pursuant thereto or the loan transactions governed thereby or in any way based on or related to any of the foregoing, including, but not limited to, contract claims, tort claims, malpractice claims, statutory claims and all other claims at law or in equity related to the rights and obligations sold and assigned pursuant to clause (i) above (the rights and obligations sold and assigned pursuant to clauses (i) and (ii) above being referred to herein collectively as the “ Assigned Interest ”). Such sale and assignment is without recourse to the Assignor and, except as expressly provided in this Assignment and Assumption, without representation or warranty by the Assignor.

1. Assignor: _____
2. Assignee: _____
[and is an Affiliate/Approved Fund of [*identify Lender*] ⁸]
3. Borrower: **INTERCONTINENTALEXCHANGE, INC.**
4. Administrative Agent: Wachovia Bank, National Association, as the Administrative Agent under the Credit Agreement.

⁸ Select as applicable.

5. Credit Agreement: Credit Agreement, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement, dated as of August 24, 2007 and the Second Amendment to Credit Agreement, dated as of June 13, 2008, and as amended and restated as of the ___ day of April, 2009, (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”), among the Borrower, certain lenders from time to time parties thereto (the “Lenders”), Wachovia Bank, National Association, as Administrative Agent, and Bank of America, N.A., as Syndication Agent.

6. Assigned Interest:

<u>Aggregate Amount of Commitment/Loans for all Lenders ³</u>	<u>Amount of Commitment/Loans Assigned ⁹</u>	<u>Percentage Assigned of Commitment/Loans ¹⁰</u>	<u>CUSIP Number ¹¹</u>
\$	\$	%	
\$	\$	%	
\$	\$	%	

[7.TradeDate: _____] ¹²

8. Effective Date: _____[TO BE INSERTED BY THE ADMINISTRATIVE AGENT AND WHICH SHALL BE THE EFFECTIVE DATE OF RECORDATION OF TRANSFER IN THE REGISTER THEREFOR.]

⁹ Amount to be adjusted by the counterparties to take into account any payments or prepayments made between the Trade Date and the Effective Date.
¹⁰ Set forth, to at least 9 decimals, as a percentage of the Commitment/Loans of all Lenders thereunder.
¹¹ Insert if applicable.
¹² To be completed if the Assignor and the Assignee intend that the minimum assignment amount is to be determined as of the Trade Date.

The terms set forth in this Assignment and Assumption are hereby agreed to:

ASSIGNOR:

[NAME OF ASSIGNOR]

By: _____

Title: _____

ASSIGNEE:

[NAME OF ASSIGNEE]

By: _____

Title: _____

[Consented to and] ¹³ Accepted:

WACHOVIA BANK, NATIONAL ASSOCIATION,
as Administrative Agent

By: _____

Title: _____

[Consented to:] ¹⁴

[NAME OF RELEVANT PARTY]

By: _____

Title: _____

¹³

To be added only if the consent of the Administrative Agent is required by the terms of the Credit Agreement.

¹⁴

To be added only if the consent of the Administrative Agent is required by the terms of the Credit Agreement.

Credit Agreement, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement, dated as of August 24, 2007 and the Second Amendment to Credit Agreement, dated as of June 13, 2008, and as amended and restated as of the ____ day of April, 2009, (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”), among IntercontinentalExchange, Inc., as Borrower, certain Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, and Bank of America, N.A., as Syndication Agent

STANDARD TERMS AND CONDITIONS FOR
ASSIGNMENT AND ASSUMPTION

1. Representations and Warranties.

1.1 Assignor. The Assignor (a) represents and warrants that (i) it is the legal and beneficial owner of the Assigned Interest, (ii) the Assigned Interest is free and clear of any lien, encumbrance or other adverse claim and (iii) it has full power and authority, and has taken all action necessary, to execute and deliver this Assignment and Assumption and to consummate the transactions contemplated hereby; and (b) assumes no responsibility with respect to (i) any statements, warranties or representations made in or in connection with the Credit Agreement or any other Credit Document, (ii) the execution, legality, validity, enforceability, genuineness, sufficiency or value of the Credit Documents or any collateral thereunder, (iii) the financial condition of the Borrower, any of its Subsidiaries or Affiliates or any other Person obligated in respect of any Credit Document or (iv) the performance or observance by the Borrower, any of its Subsidiaries or Affiliates or any other Person of any of their respective obligations under any Credit Document.

1.2. Assignee. The Assignee (a) represents and warrants that (i) it has full power and authority, and has taken all action necessary, to execute and deliver this Assignment and Assumption and to consummate the transactions contemplated hereby and to become a Lender under the Credit Agreement, (ii) it meets all requirements of an assignee of the Assigned Interest under the Credit Agreement (subject to receipt of such consents as may be required under the Credit Agreement), (iii) from and after the Effective Date, it shall be bound by the provisions of the Credit Agreement as a Lender thereunder and, to the extent of the Assigned Interest, shall have the obligations of a Lender thereunder, (iv) it has received a copy of the Credit Agreement, together with copies of the most recent financial statements delivered pursuant to **Section 5.1** thereof, as applicable, and such other documents and information as it has deemed appropriate to make its own credit analysis and decision to enter into this Assignment and Assumption and to purchase the Assigned Interest on the basis of which it has made such analysis and decision independently and without reliance on the Administrative Agent, Assignor or any other Lender, and (v) if it is a Foreign Lender, attached to the Assignment and Assumption is any documentation required to be delivered by it pursuant to the terms of the Credit Agreement, duly completed and executed by the Assignee; and (b) agrees that (i) it will, independently and without reliance on the Administrative Agent, the Assignor or any other Lender, and based on

such documents and information as it shall deem appropriate at the time, continue to make its own credit decisions in taking or not taking action under the Credit Documents, and (ii) it will perform in accordance with their terms all of the obligations that by the terms of the Credit Documents are required to be performed by it as a Lender.

2. Payments. From and after the Effective Date, the Administrative Agent shall make all payments in respect of the Assigned Interest (including payments of principal, interest, fees and other amounts) to the Assignor for amounts that have accrued to but excluding the Effective Date and to the Assignee for amounts that have accrued from and after the Effective Date.

3. General Provisions. This Assignment and Assumption shall be binding upon, and inure to the benefit of, the parties hereto and their respective successors and assigns. This Assignment and Assumption may be executed in any number of counterparts, which together shall constitute one instrument. Delivery of an executed counterpart of a signature page of this Assignment and Assumption by telecopy shall be effective as delivery of a manually executed counterpart of this Assignment and Assumption. This Assignment and Assumption shall be governed by, and construed in accordance with, the laws of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).

DISCLOSURE SCHEDULES

AMENDED AND RESTATED CREDIT AGREEMENT

among

INTERCONTINENTALEXCHANGE, INC.,

as Borrower

THE LENDERS NAMED THEREIN,

WACHOVIA BANK, NATIONAL ASSOCIATION,

as Administrative Agent

and

BANK OF AMERICA, N.A.

as Syndication Agent

\$175,000,000 Senior Term Loan Facility

Dated as of April 9, 2009

Attached hereto are the Borrower's "Schedules" as contemplated by the Amended and Restated Credit Agreement of even date herewith (the "Agreement"), by and among IntercontinentalExchange, Inc., a Delaware corporation (the "Borrower"), the Lenders named therein, Wachovia Bank, National Association, as Administrative Agent, and Bank of America, N.A., as Syndication Agent. Capitalized terms used, but not otherwise defined herein, have the meanings given to such terms in the Agreement.

The disclosures on the Borrower's Schedules may be over-inclusive, considering the materiality standard contained in, and the disclosures required by, the provisions of the Agreement corresponding to the respective disclosure schedule, and the fact that any item or matter is disclosed on the attached Schedules shall not be deemed to set or establish different standards of materiality or required disclosures from those set forth in the corresponding provisions of the Agreement. Furthermore, the disclosure of any item or information in the Schedules is not an admission that such item or information (or any non-disclosed item or information of comparable or greater significance) is material, is required to have been disclosed herein, or is of a nature that would have a Material Adverse Effect.

Schedule 1.1(a)

Loans and
Notice Addresses

Loans

Loans

Lender	Loans
Wachovia Bank, National Association	\$ 26,250,000.00
Bank of America, N.A.	\$ 26,250,000.00
BMO Capital Markets Financing, Inc.	\$ 19,250,000.00
Societe Generale	\$ 17,500,000.00
Bank of Tokyo-Mitsubishi UFJ, Ltd.	\$ 17,500,000.00
Mizuho Corporate Bank, Ltd.	\$ 11,375,000.00
Commerzbank Aktiengesellschaft New York and Grand Cayman Branch	\$ 11,375,000.00
RBC Centura Bank	\$ 10,500,000.00
The Bank of Nova Scotia	\$ 6,125,000.00
Chang Hwa Commercial Branch, Ltd., New York Branch	\$ 6,125,000.00
First Commercial Bank New York Agency	\$ 6,125,000.00
Comerica Bank	\$ 6,125,000.00
E. Sun Commercial Bank, Ltd., Los Angeles Branch	\$ 3,500,000.00
Hua Nan Commercial	\$ 3,500,000.00
Taipei Fubon	\$ 3,500,000.00
Total	\$175,000,000.00

Notice Addresses

<u>Party</u>	<u>Address</u>
Borrower	IntercontinentalExchange, Inc. 2100 River Edge Parkway, 5 th Floor Atlanta, Georgia 30328 Attention: Legal Department Telephone: (770) 738-2106 Telecopy: (770) 857-4755
Wachovia Bank, National Association	Instructions for wire transfers to the Administrative Agent: Wachovia Bank, National Association ABA Routing No. 053000219 Charlotte, North Carolina Account Number: 5000000147609 Account Name: IntercontinentalExchange Inc Attention: Syndication Agency Services Address for notices as Administrative Agent: Wachovia Bank, National Association 1525 W.T. Harris Blvd. Building 3A2, Mailcode NC 0680 Charlotte, North Carolina 28262 Attention: Syndication Agency Services Telephone: (704) 383-3721 Telecopy: (704) 383-0288 with a copy to: Wachovia Bank, National Association 171 17th Street, N.W. Mailcode GA4507 Atlanta, Georgia 30363 Attention: Elaine Eaton Telephone: (404) 214-3627 Telecopy: (404) 861-0604 Attention: Mendel Lay Telephone: (404) 214-3849 Telecopy: (404) 214-3861

Schedule 4.1**Jurisdictions of Organization****Borrower**

IntercontinentalExchange, Inc.

Subsidiary Guarantors

Chatham Energy, LLC

Creditex Group Inc.

Creditex Holdco, LLC

Creditex LLC

Creditex Securities Corporation

CreditTrade Inc.

ICE Data Investment Group, LLC

ICE Data Management Group, LLC

ICE Data, LP

ICE Futures U.S., Inc. (formerly known as CFC Acquisition Co.)

ICE Markets, Inc.

ICE US Holding Company GP LLC

IntercontinentalExchange International, Inc.

T-Zero Processing Services LLC

YellowJacket, Inc.

eCOPS, LLC

ICE Clear US, Inc. (formerly known as New York Clearing Corporation)

New York Futures Exchange, Inc.

Jurisdiction of Organization

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

Delaware

New York

New York

New York

Schedule 4.4

Consents and Approvals

None.

Schedule 4.5

Litigation Matters

Altman et al v. ICE Futures U.S.

On April 6, 2007, the Supreme Court of the State of New York, County of New York, granted ICE Futures U.S.’s motion to dismiss all claims brought against it in an action commenced on December 8, 2006, by certain holders of non-equity trading permits, or Permit Holders, of ICE Futures U.S. seeking declaratory, monetary and injunctive relief with respect to the merger. Plaintiffs alleged that, in violation of contract rights and/or rights under New York’s Not-For-Profit Corporation Law (“NPCL”), ICE Futures U.S.’s Permit Holders, including plaintiffs, were not permitted to vote with respect to the merger and would not receive any part of the merger consideration. Plaintiffs sought (i) to enjoin consummation of the merger, (ii) declaratory relief regarding their past and future rights as Permit Holders, and (iii) an award of unspecified damages on claims for breach of fiduciary duty, breach of contract, unjust enrichment, estoppel and fraud. The court also denied the plaintiffs’ motion for a preliminary injunction. On February 4, 2008, the Permit Holders appealed the lower court’s ruling dismissing their complaint but did not pursue an appeal of the lower court’s denial of their request for an order enjoining the merger. On June 24, the court denied the plaintiffs’ appeal and the plaintiffs have no further right to appeal unless the New York Court of Appeals grants the plaintiffs a leave of appeal. The appeal was denied in its entirety on June 24th. The Permit Holders then requested leave of the court to appeal the decision to the New York Court of Appeals. That request was denied on October 7th and the Permit Holders then filed a motion for leave to appeal directly to the Court of Appeals. That motion, likewise, was denied on January 20, 2009 based on the permit holders’ failure to timely file the request for appeal. As a technical matter, “reargument” of the appeal could be sought, however, the permit holders would have to demonstrate that the Court of Appeals misapprehended some aspect of the “argument” that was made before it. In light of the fact that no such argument ever occurred, the permit holders would face serious impediments were they to file a request to reargue.

Amirsaleh v. Board of Trade of the City of New York, Inc. and Intercontinental Exchange, Inc.

This action was filed by a former NYBOT equity member in the Court of Chancery of the State of Delaware, New Castle County, on March 22, 2007, asserting that NYBOT breached the terms of the Merger Agreement between NYBOT and ICE, and breached the duty of good faith and fair dealing implicit in every contract, by allegedly failing to give plaintiff timely notice of the election deadline with respect to the merger consideration that would be paid to NYBOT equity members. The Plaintiff seeks shares of ICE stock in an amount equal to the amount received by any member who made an all stock election, and seeks the issuance to him of two NYBOT trading memberships, which were not issued following the merger due to plaintiff’s failure to own and pledge the shares of ICE stock that were a pre-requisite to the issuance of such memberships. ICE and NYBOT filed an Answer to the Complaint on April 23, 2007, denying the essential allegations and asserting as affirmative defenses that (1) the Complaint fails to state a claim upon which relief can be granted, (2) plaintiff’s claims and requests for relief are barred by the doctrines of waiver, estoppel and/or acquiescence and (3) plaintiff lacks standing to assert

claims for breach of the merger agreement and (4) failure to take reasonable steps to mitigate the damages claimed. A motion for Judgment on the Pleading or in the alternative, for Summary Judgment was filed by defendants on June 11, 2008 and was decided on September 11, 2008. The court granted the motion insofar as the breach of contract claim was concerned and denied it with respect to the claim based on the implied covenant of good faith and fair dealing because the Court found there to be issues of fact in dispute that precluded the grant of summary judgment as a procedural matter. [***] The matter has been scheduled for trial July 21-23, 2009.

*** Confidential information on this page has been omitted and filed separately with the Commission. Confidential treatment has been requested with respect to the omitted portions.

Schedule 4.7

Subsidiaries

The Borrower is the 100% direct owner of the following domestic entities :

1. IntercontinentalExchange International, Inc. (“ ICE International ”)
2. ICE Markets, Inc. (“ ICE Markets ”)
3. ICE Data Management Group, LLC (“ ICE Management ”)
4. ICE Data Investment Group, LLC (“ ICE Investment ”)
5. ICE Futures U.S., Inc. (“ ICE Futures ”)
6. Chatham Energy, LLC
7. YellowJacket, Inc.
8. Creditex Group Inc.
9. Creditex Holdco, LLC
10. ICE US Holding Company GP LLC

The Borrower is the 100% indirect owner (except as indicated below) of the following domestic entities :

1. ICE Data, LP (ICE Management is the direct 1% owner; ICE Investment is the direct 99% owner)
2. ICE Clear US, Inc. (ICE Futures is the direct 100% owner)
3. eCOPS, LLC (ICE Futures is the direct 100% owner)
4. New York Futures Exchange (ICE Futures is the direct 100% owner)
5. The Clearing Corporation (ICE US Holding Company L.P. is the direct 100% owner)
6. ICE US Trust LLC (ICE US Holding Company L.P. is the direct 100% owner)
7. QW Holdings LLC (50.11% owner is Creditex Group Inc and 49.89% owners are other third party investors)
8. Q-WIXX B Sub LLC (100% owned by QW Holdings LLC)
9. T-Zero Processing Services LLC (100% owner is Creditex Group Inc.)

-
10. Creditex LLC (100% owner is Creditex Group Inc.)
 11. CreditTrade Inc. (100% owner is Creditex Group Inc.)
 12. Creditex Securities Corporation (100% owned by CreditTrade Inc.)

The Borrower is the 100% indirect owner (except as indicated below) of the following foreign entities :

1. ICE Markets Corporation (ICE Markets is the direct 100% owner)
2. ICE Netherlands C.V. (ICE Markets 1% LP; ICE International 99% LP)
3. ICE Netherlands B.V. (ICE Netherlands C.V. 100% owner)
4. 5509794 Manitoba, Inc. (ICE Netherlands B.V. 100% owner)
5. ICE Futures Canada, Inc. (“ ICE Futures Canada ”) (5509794 Manitoba, Inc. 100% owner)
6. ICE Clear Canada, Inc. (ICE Futures Canada 100% owner)
7. Canadian Climate Exchange, Inc. (ICE Futures Canada 100% owner)
8. ICE Services Canada, Inc. (ICE Futures Canada 100% owner)
9. IntercontinentalExchange Holdings (ICE International is the < 1% owner and ICE Netherlands C.V. is > 99% owner)
10. ICE Markets Limited (IntercontinentalExchange Holdings is the direct 100% owner)
11. ICE Clear Europe Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
12. ICE Clear UK Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
13. ICE Futures Holdings Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
14. IntercontinentalExchange Technologies Limited (IntercontinentalExchange Holdings is the direct 100% owner)
15. ICE Data Holdings Limited (IntercontinentalExchange Holdings is the direct 20% owner and ICE Data Services Limited is the direct 80% owner)
16. International Petroleum Exchange of London Limited (IntercontinentalExchange Holdings is the direct 100% owner)
17. IPE Holdings Limited (IntercontinentalExchange Holdings is the direct 100% owner)
18. ICE Education Limited (ICE Futures Holdings Ltd. is the direct 100% owner)

-
19. International Petroleum Exchange Limited (ICE Futures Holdings Ltd. is the direct 100% owner)
 20. ICE Futures Holdco No. 1 (ICE Futures Holdings Ltd. is the direct 100% owner)
 21. ICE Futures Holdco No. 2 (ICE Futures Holdings Ltd. is the direct 100% owner)
 22. ICE Data Services Limited (ICE Futures Holdings Ltd. is the direct 100% owner)
 23. ICE Futures Europe (ICE Futures Holdco No. 1 is 50% owner and ICE Futures Holdco No. 2 is 50% owner)
 24. ICE Futures Ltd. (ICE Futures Europe is the direct 100% owner)
 25. ICE Data LLP (ICE Data Holdings Limited is 99% owner and IntercontinentalExchange Holdings is 1% owner)
 26. ICE US Holding Company L.P. (ICE US Holding Company GP LLC is the direct 100% owner of the general partnership interests; Borrower owns 50% of the limited partnership interests and the remaining 50% of the limited partnership interests are owned by the former shareholders of The Clearing Corporation)
 27. Q-WIXX International Limited (100% owned by Q-WIXX B Sub LLC)
 28. T-Zero International, Ltd. (100% owned by T-Zero Processing Services LLC)
 29. Creditex UK, Ltd. (100% owned by CreditTrade, Inc.)
 30. Creditex Brokerage LLP (100% owned by Creditex UK Ltd.)
 31. Creditex Singapore PTE. Ltd. (100% owned by CreditTrade, Inc.)

The Borrower is the 100% direct owner of the following foreign entities :

1. ICE Clear Holdco, Ltd.

Schedule 4.19

Material Contracts

1. Agreement and Plan of Merger by and among IntercontinentalExchange, Inc., Columbia Merger Corporation, Creditex Group Inc. and TA Associates, Inc. dated June 3, 2008 (incorporated by reference to Exhibit 10.1 to ICE's Quarterly Report on Form 10-Q, filed with the SEC on August 4, 2008, File No. 001-32671).
2. Amendment to Agreement and Plan of Merger, dated as of August 26, 2008, to the Agreement and Plan of Merger, dated as of June 3, 2008, by and among ICE, MergerCo, Creditex and the Stockholders' Representative (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on September 2, 2008, File No. 001-32671).
3. Employment Agreement, dated as of December 31, 2008, between IntercontinentalExchange, Inc. and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
4. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Charles A. Vice (incorporated by reference to Exhibit 10.2 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
5. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and David S. Goone (incorporated by reference to Exhibit 10.3 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
6. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Edwin D. Marcial (incorporated by reference to Exhibit 10.4 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
7. Employment Agreement dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Scott A. Hill (incorporated by reference to Exhibit 10.5 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
8. IntercontinentalExchange, Inc. 2000 Stock Option Plan, as amended effective December 31, 2008.
9. IntercontinentalExchange, Inc. 2003 Restricted Stock Deferral Plan for Outside Directors, as amended effective December 31, 2008.
10. IntercontinentalExchange, Inc. 2004 Restricted Stock Plan, as amended effective December 31, 2008.
11. IntercontinentalExchange, Inc. 2005 Equity Incentive Plan, as amended effective December 31, 2008.
12. \$500,000,000 Credit Agreement, dated as of January 12, 2007, among IntercontinentalExchange, Inc. Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and other Lenders named therein (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on January 12, 2007, File No. 001-32671) (as amended by items 13 and 14 below; to be amended and restated by this Agreement).
13. First Amendment to \$500,000,000 Credit Agreement among IntercontinentalExchange, Inc. and Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the Lenders named therein dated as of August 24, 2007 (incorporated by reference to Exhibit 10.1 to our Current Report on Form 8-K, filed with the SEC on August 30, 2007, File No. 001-32671) (amends item 12; to be amended and restated by this Agreement).

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14. Second Amendment to \$500,000,000 Credit Agreement among IntercontinentalExchange, Inc. and Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the Lenders named therein dated as of June 13, 2008 (incorporated by reference to Exhibit 10.1 to our Current Report on Form 8-K, filed with the SEC on June 19, 2008, File No. 001-32671) (amends item 12; to be amended and restated by this Agreement).
 15. \$150,000,000 Credit Agreement, dated as of June 27, 2008, among IntercontinentalExchange, Inc. Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and other Lenders named therein (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on July 3, 2008, File No. 001-32671) (to be terminated at Closing).
 16. New Credit Facility to be entered into at Closing.
 17. New Liquidity Facility to be entered into at Closing.
 18. Office Lease, dated as of June 8, 2000, as amended, between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, LLC (incorporated by reference to Exhibit 10.17 to ICE's registration statement on Form S-1, filed with the SEC on June 6, 2005, File No. 333-123500).*
 19. Lease Amendment Six, dated as of October 12, 2005, by and between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.27 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).*
 20. Lease Amendment Seven, dated as of May 12, 2006, by and between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.2 to ICE's Current Report on Form 8-K, filed with the SEC on May 17, 2006, File No. 001-32671).*
 21. Lease Amendment Eight, dated as of November 28, 2006.*
 22. Lease Amendment Nine, dated as of February 21, 2007.*
 23. Lease Amendment Ten, dated as of May 15, 2008.*
 24. TRS—Application Services Agreement, dated as of April 25, 2001, between The International Petroleum Exchange of London Limited and LIFFE Services Company Limited (incorporated by reference to Exhibit 10.14 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).*
 25. Deed of Novation, dated July 22, 2005, between The International Petroleum Exchange of London Limited, LIFFE Services Limited, Atos Euronext Market Solutions Limited, and LIFFE Administration and Management (incorporated by reference to Exhibit 10.25 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).
 26. Managed Services Agreement, dated as of December 21, 2007, between ICE Clear Europe Limited and Atos Euronext Market Solutions Limited.*
 27. Patent License Agreement, dated as of March 29, 2002, between eSpeed, Inc. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.16 to ICE's registration statement on Form S-1, filed with the SEC on June 6, 2005, File No. 333-123500).
 28. Settlement Agreement, dated as of September 1, 2005, by and between EBS Group Limited and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.26 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).

-
29. License Agreement For Index-Related Derivative Products dated as of June 15, 2007 between IntercontinentalExchange, Inc. and Frank Russell Company (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on June 20, 2007, File No. 001-32671).*
 30. Contribution and Asset Transfer Agreement, dated as of May 11, 2000, by and between IntercontinentalExchange, LLC, Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.31 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 31. First Amendment to Contribution and Asset Transfer Agreement, dated as of May 17, 2000, by and among IntercontinentalExchange, LLC, Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.32 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 32. Second Amendment to Contribution and Asset Transfer Agreement, dated as of October 24, 2005, by and among IntercontinentalExchange, Inc., Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.33 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 33. IntercontinentalExchange, Inc. Amended and Restated 1999 Stock Option/Stock Issuance Plan (formerly the Creditex Group Inc. Amended and Restated 1999 Stock Option/Stock Issuance Plan) (incorporated by reference to Exhibit 4.1 to ICE's registration statement on Form S-8, filed with the SEC on September 2, 2008, File No. 333-153299).
 34. Agreement and Plan of Merger dated as of March 6, 2009, by and among The Clearing Corporation, a Delaware corporation, ICE US Holding Company L.P., a Cayman Islands exempted limited partnership and subsidiary of IntercontinentalExchange, Inc., Pony Merger Sub LLC, a Delaware limited liability company, IntercontinentalExchange, Inc. (solely for the limited purposes therein), and TCC Stockholders' Representative, LLC, a Delaware limited liability company.
 35. Amended and Restated Limited Partnership Agreement of ICE US Holding Company L.P. dated as of March 6, 2009
 36. Master Agreement and the addenda thereto dated as of March 6, 2009 by and between Markit Group Limited, a company incorporated under the laws of England and Wales, and ICE US Trust LLC, a New York limited purpose limited liability trust company.

Schedule 7.2

Indebtedness

ICE Clear Canada, Inc., a wholly owned subsidiary of ICE Futures Canada, Inc. and an indirect subsidiary of Borrower (“ICE Clear Canada”), has a stand-by line of credit facility in the amount of \$3,000,000 with the Royal Bank of Canada, pursuant to the following: (a) General Hypothecation Agreement, dated October 28, 1998; (b) Letter Agreement, dated March 30, 2004, by WCE Clearing Corporation, setting forth the draw down line requirements; and (c) Letter Agreement, dated January 29, 2004, by Royal Bank of Canada, as amended by the Letter Agreement, dated October 30, 2008, setting forth the current fees and costs associated with the stand-by line of credit facility. As of the date hereof, ICE Clear Canada has not drawn upon this stand-by line of credit facility.

Schedule 7.3

Liens

None.

Schedule 7.7

Transactions with Affiliates

Transactions with Officer and Stockholder of Borrower

As a part of the transactions surrounding our formation, the Borrower entered into an agreement with our predecessor company, Continental Power Exchange, Inc. (“CPEX”), on May 11, 2000. Our Chief Executive Officer, Mr. Sprecher, owns all the equity interests in CPEX. Pursuant to the agreement, CPEX conveyed all of its assets and liabilities to us. These assets included intellectual property that we used to develop our electronic platform. In return, we issued to CPEX an equity interest in our business and we agreed to give CPEX a put option, by which CPEX could require us to buy its equity interest in our business at the purchase price equal to either our fair market value or \$5 million, whichever is greater.

In connection with the Borrower’s initial public offering, in October 2005 the Borrower entered an agreement with CPEX and Mr. Sprecher to terminate the put option upon the closing of the Borrower’s initial public offering. In connection with the termination of the put option, the Borrower amended certain registration rights previously granted to CPEX, which currently owns 1,952,978 shares of the Borrower’s common stock. Under this agreement, CPEX is entitled to require the Borrower to register for resale into the public market its common stock if Mr. Sprecher’s employment has been terminated. In addition, the Borrower may be obligated to pay the expenses of registration of such shares, including underwriters discounts up to a maximum of \$4.5 million.

Relationships with Former Director of Borrower

Richard L. Sandor, a former director of the Borrower, who retired on March 13, 2008, is the chairman, chief executive officer and principal owner of the Chicago Climate Exchange, Inc., which operates futures and OTC markets for the trading of emissions. In July 2003, the Borrower entered into an agreement with the Chicago Climate Exchange to provide hosting services for the trading of the Chicago Climate Exchange emissions on our electronic platform. In December 2007, the Borrower entered a new agreement with Chicago Climate Exchange to provide the services. Under this agreement, the Chicago Climate Exchange was required to pay us a platform license fee, a platform operations fee and clearing fee of \$2,300,000 in 2008, as well as certain fees relating to trading volumes. The Chicago Climate Exchange is also required to pay the Borrower for certain technology development work at an agreed upon rate. The initial term of this agreement began on January 1, 2008 and continues for five years. The agreement provides for automatic renewal of the term for additional one year periods following the expiration of the initial term unless either party provides at least 90 days notice of its intention not to renew.

In addition, in August 2004, ICE Futures Europe entered into a Cooperation and Licensing Agreement with the Chicago Climate Exchange. Pursuant to this agreement, the Chicago Climate Exchange and ICE Futures Europe formed a cooperative relationship for the purposes of promoting the development of a European emissions trading market through, in particular, the trading of emissions contracts on our electronic platform. The agreement provides for the Chicago Climate Exchange to fund ICE Futures Europe development and operating costs in relation to the emissions contracts, in return for which the Chicago Climate Exchange receives 75% of net transaction fee income from the emissions contracts (after the deduction of operating costs). Pursuant to an amendment to this agreement effective June 28, 2006, the amount that the Chicago Climate Exchange is entitled to receive decreased to 72.5%. In December 2004, the European Climate Exchange, which is a subsidiary of the Chicago Climate Exchange, acceded to the terms of the Cooperation and Licensing Agreement. Emissions contracts refer to any cash or spot or futures contract for European emissions allowances traded on our platform pursuant to this agreement. Consistent with, and subject to, its legal and regulatory obligations and the provisions of this agreement, ICE Futures Europe has agreed, among other obligations, to:

- use commercially reasonable efforts to cooperate with the Chicago Climate Exchange in the design and listing of the emissions contracts;
- manage, in cooperation with us, the process of modifying our electronic platform and other hardware and software as necessary to allow the trading of the emissions contracts;
- provide required market supervision, compliance and regulatory arrangements; and
- obtain the necessary regulatory approvals to allow the trading of the emissions contracts from trading screens located in the United Kingdom, Germany, France, the Netherlands, Switzerland, Sweden, Norway, the United States, and such other countries as ICE Futures Europe and the Chicago Climate Exchange agree.

The term of this agreement concludes on the later of December 31, 2012 and the date on which Phase I of the European Emissions Allowances Trading Scheme terminates, unless sooner terminated pursuant to special termination provisions of the agreement. The terms of this agreement provide for automatic renewal periods of one year following the conclusion of the term, unless terminated earlier by either party upon written notice provided no later than twelve months prior to the end of the term, or three months prior to the end of any renewal period.

During the year ended December 31, 2008, the Borrower recognized approximately \$3.4 million in revenues pursuant to these agreements. The Borrower believes the relationship and agreements between it and the Chicago Climate Exchange and European Climate Exchange are arms-length transactions that are on commercially reasonable terms no less favorable to the Borrower than would be negotiated with an unaffiliated third party.

CREDIT AGREEMENT

among

INTERCONTINENTALEXCHANGE, INC.,
as Borrower,

THE LENDERS NAMED HEREIN,

WACHOVIA BANK, NATIONAL ASSOCIATION,
as Administrative Agent, Issuing Lender and Swingline Lender

BANK OF AMERICA, N.A.,
as Syndication Agent,

and

THE BANK OF TOKYO-MITSUBISHI UFJ, LTD., NEW YORK BRANCH,

and

SOCIETE GENERALE,
as Documentation Agents

\$300,000,000 Senior Credit Facilities

WACHOVIA CAPITAL MARKETS, LLC

and

BANC OF AMERICA SECURITIES LLC
Joint Lead Arrangers and Joint Book Runners

Dated as of April 9, 2009

*** Certain information in this agreement has been omitted and filed separately with the Commission. Confidential treatment has been requested with respect to the omitted portions.

TABLE OF CONTENTS

	<u>Page</u>
 ARTICLE I	
DEFINITIONS	
1.1 Defined Terms	1
1.2 Accounting Terms	23
1.3 Other Terms; Construction	23
 ARTICLE II	
AMOUNT AND TERMS OF THE LOANS	
2.1 Commitments	25
2.2 Borrowings	26
2.3 Disbursements; Funding Reliance; Domicile of Loans	29
2.4 Evidence of Debt; Notes	30
2.5 Termination and Reduction of Commitments and Swingline Commitment	31
2.6 Mandatory Payments and Prepayments	31
2.7 Voluntary Prepayments	32
2.8 Interest	33
2.9 Fees	34
2.10 Interest Periods	35
2.11 Conversions and Continuations	36
2.12 Method of Payments; Computations; Apportionment of Payments	37
2.13 Recovery of Payments	39
2.14 Pro Rata Treatment	40
2.15 Increased Costs; Change in Circumstances; Illegality	40
2.16 Taxes	43
2.17 Compensation	45
2.18 Replacement of Lenders; Mitigation of Costs	45
2.19 Letters of Credit	46
2.20 Defaulting Lenders	53
 ARTICLE III	
CONDITIONS OF BORROWING	
3.1 Conditions of Initial Borrowing	53
3.2 Conditions of All Borrowings	56

ARTICLE IV

REPRESENTATIONS AND WARRANTIES

4.1	Corporate Organization and Power	57
4.2	Authorization; Enforceability	57
4.3	No Violation	58
4.4	Governmental and Third-Party Authorization; Permits	58
4.5	Litigation	58
4.6	Taxes	58
4.7	Subsidiaries	59
4.8	Full Disclosure	59
4.9	Margin Regulations	59
4.10	No Material Adverse Effect	59
4.11	Financial Matters	59
4.12	Ownership of Properties	60
4.13	ERISA	61
4.14	Environmental Matters	61
4.15	Compliance with Laws	61
4.16	Intellectual Property	61
4.17	Regulated Industries	62
4.18	Insurance	62
4.19	Material Contracts	62
4.20	No Burdensome Restrictions	62
4.21	OFAC; Anti-Terrorism Laws	62

ARTICLE V

AFFIRMATIVE COVENANTS

5.1	Financial Statements	63
5.2	Other Business and Financial Information	64
5.3	Compliance with All Material Contracts	66
5.4	Existence; Franchises; Maintenance of Properties	67
5.5	Use of Proceeds	67
5.6	Compliance with Laws	67
5.7	Payment of Obligations	67
5.8	Insurance	67
5.9	Maintenance of Books and Records; Inspection	67
5.10	Permitted Acquisitions	68
5.11	Creation or Acquisition of Subsidiaries	69
5.12	OFAC, PATRIOT Act Compliance	69
5.13	Further Assurances	69

ARTICLE VI

FINANCIAL COVENANTS

6.1	Maximum Total Leverage Ratio	70
6.2	Minimum Interest Coverage Ratio	70

ARTICLE VII

NEGATIVE COVENANTS

7.1	Merger; Consolidation	70
7.2	Indebtedness	71
7.3	Liens	72
7.4	Asset Dispositions	73
7.5	Acquisitions	74
7.6	Restricted Payments	75
7.7	Transactions with Affiliates	75
7.8	Lines of Business	76
7.9	Limitation on Certain Restrictions	76
7.10	No Other Negative Pledges	76
7.11	Investments in Subsidiaries	76
7.12	Fiscal Year	77
7.13	Accounting Changes	77

ARTICLE VIII

EVENTS OF DEFAULT

8.1	Events of Default	77
8.2	Remedies: Termination of Commitments, Acceleration, etc.	79
8.3	Remedies: Set-Off	80

ARTICLE IX

THE ADMINISTRATIVE AGENT

9.1	Appointment and Authority	80
9.2	Rights as a Lender	81
9.3	Exculpatory Provisions	81
9.4	Reliance by Administrative Agent	82
9.5	Delegation of Duties	82
9.6	Resignation of Administrative Agent	82
9.7	Non-Reliance on Administrative Agent and Other Lenders	83
9.8	No Other Duties, Etc	83
9.9	Guaranty Matters	83
9.10	Swingline Lender	83

ARTICLE X

MISCELLANEOUS

10.1	Expenses; Indemnity; Damage Waiver	84
10.2	Governing Law; Submission to Jurisdiction; Waiver of Venue; Service of Process	85
10.3	Waiver of Jury Trial	86
10.4	Notices; Effectiveness; Electronic Communication	86
10.5	Amendments, Waivers, etc	87
10.6	Successors and Assigns	89
10.7	No Waiver	93
10.8	Survival	93
10.9	Severability	93
10.10	Construction	94
10.11	Confidentiality	94
10.12	Counterparts; Integration; Effectiveness	94
10.13	Disclosure of Information	95
10.14	USA Patriot Act Notice	95

EXHIBITS

Exhibit A-1	Form of Term Note
Exhibit A-2	Form of Revolving Note
Exhibit A-3	Form of Swingline Note
Exhibit B-1	Form of Notice of Borrowing
Exhibit B-2	Form of Notice of Swingline Borrowing
Exhibit B-3	Form of Notice of Conversion/Continuation
Exhibit B-4	Form of Letter of Credit Notice
Exhibit C	Form of Compliance Certificate
Exhibit D	Form of Assignment and Assumption
Exhibit E	Form of Guaranty
Exhibit F	Form of Financial Condition Certificate

SCHEDULES

Schedule 1.1(a)	Commitments and Notice Addresses
Schedule 4.1	Jurisdictions of Organization
Schedule 4.4	Consents and Approvals
Schedule 4.5	Litigation Matters
Schedule 4.7	Subsidiaries
Schedule 4.19	Material Contracts
Schedule 7.2	Indebtedness
Schedule 7.3	Liens
Schedule 7.8	Transactions with Affiliates

CREDIT AGREEMENT

THIS CREDIT AGREEMENT, dated as of the 9th day of April, 2009, is made among **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), the Lenders (as hereinafter defined), **WACHOVIA BANK, NATIONAL ASSOCIATION**, as Administrative Agent (as hereinafter defined) for the Lenders (“Wachovia”), and **BANK OF AMERICA, N.A.**, as Syndication Agent for the Lenders (“BofA”).

BACKGROUND STATEMENT

The Borrower has requested that the Lenders make available to the Borrower a term loan facility in the aggregate principal amount of \$200,000,000 and a revolving credit facility in the aggregate principal amount of \$100,000,000. The Borrower will use the proceeds of these facilities as provided in **Section 5.5**. The Lenders are willing to make available to the Borrower the credit facilities described herein subject to and on the terms and conditions set forth in this Agreement.

AGREEMENT

NOW, THEREFORE, in consideration of the mutual provisions, covenants and agreements herein contained, the parties hereto hereby agree as follows:

ARTICLE I

DEFINITIONS

1.1 Defined Terms. For purposes of this Agreement, in addition to the terms defined elsewhere herein, the following terms have the meanings set forth below (such meanings to be equally applicable to the singular and plural forms thereof):

“Account Designation Letter” means a letter from the Borrower to the Administrative Agent, duly completed and signed by an Authorized Officer of the Borrower and in form and substance reasonably satisfactory to the Administrative Agent, listing any one or more accounts to which the Borrower may from time to time request the Administrative Agent to forward the proceeds of any Loans made hereunder.

“Acquisition” means any transaction or series of related transactions, consummated on or after the date hereof, by which the Borrower directly, or indirectly through one or more Subsidiaries, (i) acquires any going business, division thereof or line of business, or all or substantially all of the assets, of any Person, whether through purchase of assets, merger or otherwise, or (ii) acquires Capital Stock of any Person having at least a majority of Total Voting Power of the then outstanding Capital Stock of such Person.

“ Acquisition Amount ” means, with respect to any Acquisition, the sum (without duplication) of (i) the amount of cash paid as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition, (ii) the value of all Capital Stock issued or given as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition (as determined by the parties thereto under the definitive acquisition agreement), (iii) the amount (determined by using the face amount or the amount payable at maturity, whichever is greater) of all Indebtedness incurred, assumed or acquired by the Borrower and its Subsidiaries in connection with such Acquisition, (iv) all amounts paid in respect of noncompetition agreements, consulting agreements and similar arrangements entered into in connection with such Acquisition, (v) all amounts paid in respect of any earnout obligations or similar deferred or contingent purchase price obligations of the Borrower or any of its Subsidiaries incurred or created in connection with such Acquisition and (vi) the aggregate fair market value of all other real, mixed or personal property paid as purchase price by the Borrower and its Subsidiaries in connection with such Acquisition.

“ Adjusted Base Rate ” means, at any time with respect to any Base Rate Loan of any Class, a rate per annum equal to the Base Rate as in effect at such time plus the Applicable Percentage for Base Rate Loans of such Class as in effect at such time.

“ Adjusted LIBOR Market Index Rate ” means, for any date, with respect to any LIBOR Market Index Rate Loan, a rate per annum equal to the LIBOR Market Index Rate as in effect at such time plus the Applicable Percentage for LIBOR Loans as in effect at such time.

“ Adjusted LIBOR Rate ” means, at any time with respect to any LIBOR Loan of any Class, a rate per annum equal to the LIBOR Rate as in effect at such time plus the Applicable Percentage for LIBOR Loans as in effect at such time.

“ Administrative Agent ” means Wachovia, in its capacity as Administrative Agent appointed under **Section 9.1** , and its successors and permitted assigns in such capacity.

“ Administrative Questionnaire ” means, with respect to each Lender, the administrative questionnaire in the form submitted to such Lender by the Administrative Agent and returned to the Administrative Agent duly completed by such Lender.

“ Affiliate ” means, with respect to a specified Person, another Person that directly, or indirectly through one or more intermediaries, Controls or is Controlled by or is under common Control with the Person specified. Notwithstanding the foregoing, neither the Administrative Agent nor any Lender shall be deemed an “Affiliate” of any Credit Party.

“ Aggregate Revolving Credit Exposure ” means, at any time, the sum of (i) the aggregate principal amount of Revolving Loans outstanding at such time, (ii) the aggregate principal amount of Swingline Loans outstanding at such time and (iii) the aggregate Letter of Credit Exposure of all Revolving Credit Lenders at such time.

“ Agreement ” means this Credit Agreement, as amended, modified, restated or supplemented from time to time in accordance with its terms.

“ Applicable Percentage ” means, at any time from and after the Closing Date, the applicable percentage (i) to be added to the Base Rate for purposes of determining the Adjusted Base Rate, (ii) to be added to the LIBOR Rate and the LIBOR Market Index Rate for purposes of, respectively, determining the Adjusted LIBOR Rate and Adjusted LIBOR Market Index Rate and (iii) to be used in calculating the commitment fee payable pursuant to **Section 2.9(b)** , in each case as determined under the following matrix with reference to the Total Leverage Ratio, but subject to **Section 5.1(c)** :

Tier	Total Leverage Ratio	Applicable	Applicable	Applicable
		LIBOR Margin	Base Rate Margin	Commitment Fee Rate
I	Less than 1.0 to 1.0	2.50%	1.50%	0.50%
II	Less than 1.50 to 1.0 but greater than or equal to 1.0 to 1.0	3.00%	2.00%	0.60%
III	Less than 2.0 to 1.0 but greater than or equal to 1.50 to 1.0	3.50%	2.50%	0.70%
IV	Greater than or equal to 2.0 to 1.0	4.50%	3.50%	0.90%

On each Adjustment Date (as hereinafter defined), the Applicable Percentage for all Loans and the commitment fee payable pursuant to **Section 2.9(b)** shall be adjusted effective as of such Adjustment Date (based upon the calculation of the Total Leverage Ratio as of the last day of the Reference Period to which such Adjustment Date relates) in accordance with the above matrix; provided, however, that, notwithstanding the foregoing or anything else herein to the contrary, if at any time the Borrower shall have failed to deliver any of the financial statements as required by **Sections 5.1(a)** or **5.1(b)** , as the case may be, or the Compliance Certificate as required by **Section 5.2(a)** , then at all times from and including the date on which such statements and Compliance Certificate are required to have been delivered until the date on which the same shall have been delivered, each Applicable Percentage shall be determined based on Tier IV above (notwithstanding the actual Total Leverage Ratio). For purposes of this definition, “ Adjustment Date ” means, with respect to any Reference Period of the Borrower beginning with the Reference Period ending as of the last day of the first fiscal quarter of fiscal year 2009, the day (or, if such day is not a Business Day, the next succeeding Business Day) of delivery by the Borrower in accordance with **Section 5.1(a)** or **Section 5.1(b)** , as the case may be, of (i) financial statements as of the end of and for such Reference Period and (ii) a duly completed Compliance Certificate with respect to such Reference Period. From the Closing Date until the first Adjustment Date requiring a change in any Applicable Percentage as provided herein, each Applicable Percentage shall be based on Tier I above.

“ Applicable Period ” has the meaning set forth in **Section 5.1(c)** .

“ Approved Fund ” means any Fund that is administered or managed by (i) a Lender, (ii) an Affiliate of a Lender, or (iii) a Person (or an Affiliate of a Person) that administers or manages a Lender.

“ Arrangers ” mean Wachovia Capital Markets, LLC, Banc of America Securities LLC and their respective successors.

“ Asset Disposition ” means any sale, assignment, lease, conveyance, transfer or other disposition by the Borrower or any of its Subsidiaries (whether in one or a series of transactions) of all or any of its assets, business or other properties (including Capital Stock of Subsidiaries).

“ Assignment and Assumption ” means an Assignment and Assumption entered into by a Lender and an assignee (with the consent of any party whose consent is required by **Section 10.6(b)**), and accepted by the Administrative Agent, in substantially the form of **Exhibit D** or any other form approved by the Administrative Agent.

“ Authorized Officer ” means, with respect to any action specified herein to be taken by or on behalf of a Credit Party, any officer of such Credit Party duly authorized by resolution of its board of directors or other governing body to take such action on its behalf, and whose signature and incumbency shall have been certified to the Administrative Agent by the secretary or an assistant secretary of such Credit Party.

“ Bankruptcy Code ” means 11 U.S.C. §§ 101 *et seq.*, as amended from time to time, and any successor statute.

“ Bankruptcy Event ” means the occurrence of an event specified in **Section 8.1(f)** or **Section 8.1(g)** .

“ Base Rate ” means the highest of (i) the per annum interest rate publicly announced from time to time by Wachovia in Charlotte, North Carolina, to be its prime rate (which may not necessarily be its lowest or best lending rate), as adjusted to conform to changes as of the opening of business on the date of any such change in such prime rate, (ii) the Federal Funds Rate plus 0.5% per annum, as adjusted to conform to changes as of the opening of business on the date of any such change in the Federal Funds Rate, and (iii) the LIBOR Rate for an Interest Period of 1 month plus 1.50%, as adjusted to conform to changes as of the opening of business on the date of any such change of such LIBOR Rate.

“ Base Rate Loan ” means, at any time, any Loan that bears interest at such time at the applicable Adjusted Base Rate.

“ BofA ” means Bank of America, N.A.

“ Borrower ” has the meaning given to such term in the introductory paragraph hereof.

“ Borrowing ” means the incurrence by the Borrower (including as a result of conversions and continuations of outstanding Loans pursuant to **Section 2.11**) on a single date of a group of Loans of a single Class and Type (or a Swingline Loan made by the Swingline Lender) and, in the case of LIBOR Loans, as to which a single Interest Period is in effect.

“ Borrowing Date ” means, with respect to any Borrowing, the date upon which such Borrowing is made.

“ Business Day ” means (i) any day other than a Saturday or Sunday, a legal holiday or a day on which commercial banks in Charlotte, North Carolina or New York, New York are authorized or required by law to be closed and (ii) in respect of any determination relevant to a LIBOR Loan or a LIBOR Market Index Rate Loan, any such day that is also a day on which trading in Dollar deposits is conducted by banks in London, England in the London interbank Eurodollar market.

“ Capital Expenditures ” means, for any period, the aggregate amount (whether paid in cash or accrued as a liability) that would, in accordance with GAAP, be included on the consolidated statement of cash flows of the Borrower and its Subsidiaries for such period as additions to equipment, fixed assets, real property or improvements or other capital assets (including, without limitation, Capital Lease Obligations); provided, however, that Capital Expenditures shall not include any such expenditures (i) for replacements and substitutions for capital assets, to the extent made with the proceeds of insurance, (ii) for replacements and substitutions for capital assets, to the extent made with proceeds from the sale, exchange or other disposition of assets as permitted under **Sections 7.4(i) or 7.4(iii)**, or (iii) included within the Acquisition Amount of any Permitted Acquisition.

“ Capital Lease ” means, with respect to any Person, any lease of property (whether real, personal or mixed) by such Person as lessee that is or is required to be, in accordance with GAAP, recorded as a capital lease on such Person’s balance sheet.

“ Capital Lease Obligations ” means, with respect to any Person, the obligations of such Person to pay rent or other amounts under any Capital Lease of such Person, and the amount of such obligations shall be the capitalized amount thereof determined in accordance with GAAP.

“ Capital Stock ” means (i) with respect to any Person that is a corporation, any and all shares, interests or equivalents in capital stock (whether voting or nonvoting, and whether common or preferred) of such corporation, and (ii) with respect to any Person that is not a corporation, any and all partnership, membership, limited liability company or other equity interests of such Person; and in each case under clauses (i) and (ii), any and all warrants, rights or options to purchase any of the foregoing or any securities convertible into or exchangeable for any of the foregoing.

“ Capitalized Software Development Costs ” means those capitalized costs both internal and external, direct and incremental incurred related to software developed or obtained for internal use in accordance with AICPA Statement of Position 98-1 “Accounting for Costs of Computer Software Developed or Obtained for Internal Use.”

“ Cash Collateral Account ” has the meaning given to such term in **Section 2.19(h)**.

“ Cash Equivalents ” means (i) securities issued or unconditionally guaranteed or insured by the United States of America or any agency or instrumentality thereof, backed by the full faith and credit of the United States of America and maturing within one year from the date of acquisition, (ii) commercial paper issued by any Person organized under the laws of the United

States of America, maturing within 180 days from the date of acquisition and, at the time of acquisition, having a rating of at least A-1 or the equivalent thereof by Standard & Poor's Ratings Services or at least P-1 or the equivalent thereof by Moody's Investors Service, Inc., (iii) time deposits and certificates of deposit maturing within 180 days from the date of issuance and issued by a bank or trust company organized under the laws of the United States of America or any state thereof (y) that has combined capital and surplus of at least \$500,000,000 or (z) that has (or is a subsidiary of a bank holding company that has) a long-term unsecured debt rating of at least A or the equivalent thereof by Standard & Poor's Ratings Services or at least A2 or the equivalent thereof by Moody's Investors Service, Inc., (iv) repurchase obligations with a term not exceeding thirty (30) days with respect to underlying securities of the types described in clause (i) above entered into with any bank or trust company meeting the qualifications specified in clause (iii) above, and (v) money market funds at least ninety-five percent (95%) of the assets of which are continuously invested in securities of the foregoing types.

"Change in Law" means the occurrence, after the date of this Agreement, of any of the following: (i) the adoption or taking effect of any law, rule, regulation or treaty, (ii) any change in any law, rule, regulation or treaty or in the administration, interpretation or application thereof by any Governmental Authority or (iii) the making or issuance of any request, guideline or directive (whether or not having the force of law) by any Governmental Authority.

"Change of Control" means (i) any Person or group of Persons acting in concert as a partnership or other group shall have become, as a result of a tender or exchange offer, open market purchases, privately negotiated purchases or otherwise, the beneficial owner of outstanding Capital Stock of the Borrower having 35% or more of the Total Voting Power of the Borrower, or (ii) the occupation of a majority of the seats (other than vacant seats) on the board of directors of the Borrower by Persons who were neither (a) nominated by the board of directors of the Borrower nor (b) appointed by directors so nominated.

"Class" has the meaning given to such term in **Section 2.2(a)** .

"Closing Date" means the date upon which the initial extensions of credit are made pursuant to this Agreement, which shall be the date upon which each of the conditions set forth in **Sections 3.1** and **3.2** shall have been satisfied or waived in accordance with the terms of this Agreement.

"Code" means the Internal Revenue Code of 1986, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

"Commitment" means, with respect to any Lender, such Lender's Term Loan Commitment and/or Revolving Credit Commitment, as applicable.

"Compliance Certificate" means a fully completed and duly executed certificate in the form of **Exhibit C** , together with a Covenant Compliance Worksheet.

"Consolidated EBITDA" means, for any Reference Period, the aggregate of (i) Consolidated Net Income for such period, plus (ii) the sum of (A) interest expense, (B) federal, state, local and other income taxes, (C) depreciation and amortization of intangible assets, and (D) extraordinary losses or charges, all to the extent taken into account in the

calculation of Consolidated Net Income for such Reference Period and all calculated in accordance with GAAP, minus (iii) the sum of (A) extraordinary gains or income and (B) noncash credits increasing income for such period, all to the extent taken into account in the calculation of Consolidated Net Income for such period.

“ Consolidated Interest Expense ” means, for any Reference Period, the sum (without duplication) of (i) total interest expense of the Borrower and its Subsidiaries for such Reference Period in respect of Total Funded Debt (including, without limitation, all such interest expense accrued or capitalized during such Reference Period, whether or not actually paid during such Reference Period), determined on a consolidated basis in accordance with GAAP, and (ii) all recurring unused commitment fees and other ongoing fees in respect of Total Funded Debt (including the unused fees provided for under **Section 2.9**) paid, accrued or capitalized by the Borrower and its Subsidiaries during such Reference Period.

“ Consolidated Net Income ” means, for any Reference Period, net income (or loss) for the Borrower and its Subsidiaries for such Reference Period, determined on a consolidated basis in accordance with GAAP (after deduction for minority interests); provided that, in making such determination, there shall be excluded (i) the net income of any other Person that is not a Subsidiary of the Borrower (or is accounted for by the Borrower by the equity method of accounting) except to the extent of actual payment of cash dividends or distributions by such Person to the Borrower or any Subsidiary of the Borrower during such period, (ii) the net income (or loss) of any other Person acquired by, or merged with, the Borrower or any of its Subsidiaries for any period prior to the date of such acquisition, and (iii) the net income of any Subsidiary of the Borrower to the extent that the declaration or payment of dividends or similar distributions by such Subsidiary of such net income is not at the time permitted by operation of the terms of its charter, certificate of incorporation or formation or other constituent document or any agreement or instrument (other than a Credit Document) or Requirement of Law applicable to such Subsidiary.

“ Control ” means, with respect to any Person, (i) the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of such Person, whether through the ownership of voting securities, by contract or otherwise, or (ii) the beneficial ownership of securities or other ownership interests of such Person having 10% or more of the combined voting power of the then outstanding securities or other ownership interests of such Person ordinarily (and apart from rights accruing under special circumstances) having the right to vote in the election of directors or other governing body of such Person; and the terms “Controlled” and “Controlling” have correlative meanings.

“ Covenant Compliance Worksheet ” means a fully completed worksheet in the form of **Attachment A** to **Exhibit C** .

“ Credit Documents ” means this Agreement, the Notes, the Letters of Credit, the Fee Letters, the Guaranty, and all other agreements, instruments, documents and certificates now or hereafter executed and delivered to the Administrative Agent or any Lender by or on behalf of the Borrower or any other Credit Party with respect to this Agreement, in each case as amended, modified, supplemented or restated from time to time.

“ Credit Parties ” means the Borrower, each of the Subsidiary Guarantors and their respective successors.

“ Debtor Relief Laws ” means the Bankruptcy Code, and all other liquidation, conservatorship, bankruptcy, assignment for the benefit of creditors, moratorium, rearrangement, receivership, insolvency, reorganization, or similar debtor relief laws of the United States or other applicable jurisdictions from time to time in effect and affecting the rights of creditors generally.

“ Default ” means any event or condition that, with the passage of time or giving of notice, or both, would constitute an Event of Default.

“ Defaulting Lender ” means any Lender, as determined in good faith by the Administrative Agent, that (i) has failed (which failure has not been cured) to fund any Loan, or any participation interest in Letters of Credit or Swingline Loans requested and permitted to be made hereunder in accordance with the terms hereof, (ii) has notified the Borrower, the Administrative Agent, Swingline Lender or the Issuing Lender in writing that it does not intend to comply with any of its funding obligations under this Agreement or has made a public statement to the effect that it does not intend to comply with its funding obligations under this Agreement or generally under other agreements in which it commits to extend credit, (iii) has failed, within three Business Days after request by the Administrative Agent, to confirm that it will comply with the terms of this Agreement relating to its obligations to fund prospective Loans or participations in Letters of Credit or Swingline Loans, (iv) has failed to pay to the Administrative Agent, the Swingline Lender, the Issuing Lender or any Lender when due an amount owed by such Lender pursuant to the terms of this Agreement, unless such amount is subject to a good faith dispute or such failure has been cured, or (v) (a) has become or is insolvent or has a parent company that has become or is insolvent or (b) has become the subject of a proceeding under any Debtor Relief Law, or has had a receiver, conservator, trustee or custodian appointed for it, or has taken any action in furtherance of, or indicating its consent to, approval of or acquiescence in any such proceeding or appointment or has a parent company that has become the subject of a proceeding under any Debtor Relief Law, or has had a receiver, conservator, trustee or custodian appointed for it, or has taken any action in furtherance of, or indicating its consent to, approval of or acquiescence in any such proceeding or appointment.

“ Disqualified Capital Stock ” means, with respect to any Person, any Capital Stock of such Person that, by its terms (or by the terms of any security into which it is convertible or for which it is exchangeable), or upon the happening of any event or otherwise, (i) matures or is mandatorily redeemable or subject to any mandatory repurchase requirement, pursuant to a sinking fund obligation or otherwise, (ii) is redeemable or subject to any mandatory repurchase requirement at the sole option of the holder thereof, or (iii) is convertible into or exchangeable for (whether at the option of the issuer or the holder thereof) (y) debt securities or (z) any Capital Stock referred to in (i) or (ii) above, in each case under (i), (ii) or (iii) above at any time on or prior to the first anniversary of the Maturity Date; provided, however, that only the portion of Capital Stock that so matures or is mandatorily redeemable, is so redeemable at the option of the holder thereof, or is so convertible or exchangeable on or prior to such date shall be deemed to be Disqualified Capital Stock.

“ Dollars ” or “ \$ ” means dollars of the United States of America.

“ Domestic Subsidiary ” means any Subsidiary of the Borrower organized under the laws of any jurisdiction within the United States.

“ Environmental Claims ” means any and all administrative, regulatory or judicial actions, suits, demands, demand letters, claims, liens, allegations, notices of noncompliance or violation, investigations by a Governmental Authority, or proceedings (including, without limitation, administrative, regulatory and judicial proceedings) relating in any way to any Hazardous Substance, any actual or alleged violation of or liability under any Environmental Law or any permit issued, or any approval given, under any Environmental Law (collectively, “ Claims ”), including, without limitation, (i) any and all Claims by Governmental Authorities for enforcement, cleanup, removal, response, remedial or other actions or damages pursuant to any applicable Environmental Law and (ii) any and all Claims by any third party seeking damages, contribution, indemnification, cost recovery, compensation or injunctive relief resulting from any Hazardous Substance or arising from alleged injury or threat of injury to human health or the environment.

“ Environmental Laws ” means any and all federal, state and local laws, statutes, ordinances, rules, regulations, permits, licenses, approvals, rules of common law and orders of courts or Governmental Authorities, relating to the protection of human health, occupational safety with respect to exposure to Hazardous Substances, or the environment, now or hereafter in effect, and in each case as amended from time to time, including, without limitation, requirements pertaining to the manufacture, processing, distribution, use, treatment, storage, disposal, transportation, handling, reporting, licensing, permitting, investigation or remediation of Hazardous Substances.

“ ERISA ” means the Employee Retirement Income Security Act of 1974, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ ERISA Affiliate ” means any Person (including any trade or business, whether or not incorporated) deemed to be under “common control” with, or a member of the same “controlled group” as, the Borrower or any of its Subsidiaries, within the meaning of Sections 414(b), (c), (m) or (o) of the Code or Section 4001 of ERISA.

“ ERISA Event ” means any of the following with respect to a Plan or Multiemployer Plan, as applicable: (i) a Reportable Event, (ii) a complete or partial withdrawal by the Borrower or any ERISA Affiliate from a Multiemployer Plan that results in liability under Section 4201 or 4204 of ERISA, or the receipt by the Borrower or any ERISA Affiliate of notice from a Multiemployer Plan that it is in reorganization or insolvency pursuant to Section 4241 or 4245 of ERISA or that it intends to terminate or has terminated under Section 4041A of ERISA, (iii) the distribution by the Borrower or any ERISA Affiliate under Section 4041 or 4041A of ERISA of a notice of intent to terminate any Plan or the taking of any action to terminate any Plan, (iv) the commencement of proceedings by the PBGC under Section 4042 of ERISA for the termination of, or the appointment of a trustee to administer, any Plan, or the receipt by the Borrower or any ERISA Affiliate of a notice from any Multiemployer Plan that such action has been taken by the

PBGC with respect to such Multiemployer Plan, (v) the institution of a proceeding by any fiduciary of any Multiemployer Plan against the Borrower or any ERISA Affiliate to enforce Section 515 of ERISA, which is not dismissed within thirty (30) days, (vi) the imposition upon the Borrower or any ERISA Affiliate of any liability under Title IV of ERISA, other than for PBGC premiums due but not delinquent under Section 4007 of ERISA, or the imposition or threatened imposition of any Lien upon any assets of the Borrower or any ERISA Affiliate as a result of any alleged failure to comply with the Code or ERISA in respect of any Plan, (vii) the engaging in or otherwise becoming liable for a nonexempt Prohibited Transaction by the Borrower or any ERISA Affiliate, or a violation of the applicable requirements of Section 404 or 405 of ERISA or the exclusive benefit rule under Section 401(a) of the Code by any fiduciary of any Plan for which the Borrower or any of its ERISA Affiliates may be directly or indirectly liable, (viii) the occurrence with respect to any Plan of any “accumulated funding deficiency” (within the meaning of Section 302 of ERISA and Section 412 of the Code), whether or not waived, (ix) with respect to plan years beginning prior to January 1, 2008, the adoption of an amendment to any Plan that, pursuant to Section 307 of ERISA, would require the provision of security to such Plan by the Borrower or an ERISA Affiliate, or (x) with respect to plan years beginning on or after the PPA 2006 Effective Date, the incurrence of an obligation to provide a notice under Section 101(j) of ERISA, the adoption of an amendment which may not take effect due to the application of Section 436(c)(1) of the Code or Section 206(g)(2)(A) of ERISA, or the payment of a contribution in order to satisfy the requirements of Section 436(c)(2) of the Code or Section 206(g)(2)(B) of ERISA.

“ Event of Default ” has the meaning given to such term in **Section 8.1** .

“ Exchange Act ” means the Securities Exchange Act of 1934, as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ Excluded Taxes ” means, with respect to the Administrative Agent, any Lender or any other recipient of any payment to be made by or on account of any obligation of the Borrower hereunder, (i) taxes imposed on or measured by its overall net income (however denominated), and franchise taxes imposed on it (in lieu of net income taxes), by the jurisdiction (or any political subdivision thereof) under the laws of which such recipient is organized or in which its principal office is located or, in the case of any Lender, in which its applicable Lending Office is located, (ii) any branch profits taxes imposed by the United States or any similar tax imposed by any other jurisdiction in which the Borrower is located and (iii) in the case of a Foreign Lender (other than an assignee pursuant to a request by the Borrower under **Section 2.18(a)**), any withholding tax that is imposed on amounts payable to such Foreign Lender at the time such Foreign Lender becomes a party hereto (or designates a new Lending Office) or is attributable to such Foreign Lender’s failure or inability (other than as a result of a Change in Law) to comply with **Section 2.16(e)** , except to the extent that such Foreign Lender (or its assignor, if any) was entitled, at the time of designation of a new Lending Office (or assignment), to receive additional amounts from the Borrower with respect to such withholding tax pursuant to **Section 2.16(a)** .

“ Existing Credit Facility ” has the meaning set forth in **Section 3.1(c)** .

“ Federal Funds Rate ” means, for any period, a fluctuating per annum interest rate (rounded upwards, if necessary, to the nearest 1/100 of one percentage point) equal for each day during such period to the weighted average of the rates on overnight federal funds transactions with members of the Federal Reserve System arranged by federal funds brokers, as published for such day (or, if such day is not a Business Day, for the next preceding Business Day) by the Federal Reserve Bank of New York, or if such rate is not so published for any day that is a Business Day, the average of the quotations for such day on such transactions received by the Administrative Agent from three federal funds brokers of recognized standing selected by the Administrative Agent.

“ Federal Reserve Board ” means the Board of Governors of the Federal Reserve System or any successor thereto.

“ Fee Letters ” means the Joint Fee Letter and the Wachovia Fee Letter.

“ Financial Condition Certificate ” means a fully completed and duly executed certificate, in substantially the form of **Exhibit F** , together with the attachments thereto.

“ Financial Officer ” means, with respect to the Borrower, the chief financial officer, vice president—finance, principal accounting officer or treasurer of the Borrower.

“ fiscal quarter ” or “ FQ ” means a fiscal quarter of the Borrower and its Subsidiaries.

“ fiscal year ” or “ FY ” means a fiscal year of the Borrower and its Subsidiaries.

“ Foreign Lender ” means any Lender that is organized under the laws of a jurisdiction outside of the United States.

“ Foreign Subsidiary ” means any Subsidiary of the Borrower that is not a Domestic Subsidiary.

“ Fund ” means any Person (other than a natural person) that is (or will be) engaged in making, purchasing, holding or otherwise investing in commercial loans and similar extensions of credit in the ordinary course of its business.

“ GAAP ” means generally accepted accounting principles in the United States of America, as set forth in the statements, opinions and pronouncements of the Accounting Principles Board, the American Institute of Certified Public Accountants and the Financial Accounting Standards Board, consistently applied and maintained, as in effect from time to time (subject to the provisions of **Section 1.2**).

“ Governmental Authority ” means the government of the United States of America or any other nation, or of any political subdivision thereof, whether state or local, and any agency, authority, instrumentality, regulatory body, court, central bank or other entity exercising executive, legislative, judicial, taxing, regulatory or administrative powers or functions of or pertaining to government (including any supra-national bodies such as the European Union or the European Central Bank).

“Guarantor” means any Wholly-Owned Subsidiary of the Borrower that is a guarantor of the Obligations under the Guaranty (or under another guaranty agreement in form and substance satisfactory to the Administrative Agent).

“Guaranty” means a guaranty agreement made by the Guarantors in favor of the Administrative Agent and the Lenders, in substantially the form of **Exhibit E**, as amended, modified, restated or supplemented from time to time.

“Guaranty Fund” means any fund set up by (i) ICE Clear US pursuant to Section 5.4 of its by-laws, (ii) ICE Clear Europe, (iii) The Clearing Corporation, (iv) ICE US Trust, (v) ICE Clear Canada, and (vi) such other clearing houses owned and operated by the Borrower in the future, in each case in which its clearing members make deposits to secure the obligations of its clearing members and which is used to cover the losses sustained by such Person as a result of the default of any such clearing member.

“Guaranty Obligation” means, with respect to any Person, any direct or indirect liability of such Person with respect to any Indebtedness, liability or other obligation (the “primary obligation”) of another Person (the “primary obligor”), whether or not contingent, (i) to purchase, repurchase or otherwise acquire such primary obligation or any property constituting direct or indirect security therefor, (ii) to advance or provide funds (x) for the payment or discharge of any such primary obligation or (y) to maintain working capital or equity capital of the primary obligor or otherwise to maintain the net worth or solvency or any balance sheet item, level of income or financial condition of the primary obligor (including, without limitation, keep well agreements, maintenance agreements, comfort letters or similar agreements or arrangements), (iii) to lease or purchase property, securities or services primarily for the purpose of assuring the owner of any such primary obligation of the ability of the primary obligor in respect thereof to make payment of such primary obligation or (iv) otherwise to assure or hold harmless the owner of any such primary obligation against loss or failure or inability to perform in respect thereof; provided, however, that, with respect to the Borrower and its Subsidiaries, the term Guaranty Obligation shall not include endorsements for collection or deposit in the ordinary course of business. The amount of any Guaranty Obligation of any guaranteeing Person hereunder shall be deemed to be the lower of (a) an amount equal to the stated or determinable amount of the primary obligation in respect of which such Guaranty Obligation is made and (b) the maximum amount for which such guaranteeing Person may be liable pursuant to the terms of the instrument embodying such Guaranty Obligation, unless such primary obligation and the maximum amount for which such guaranteeing Person may be liable are not stated or determinable, in which case the amount of such Guaranty Obligation shall be such guaranteeing Person’s maximum reasonably anticipated liability in respect thereof as determined by such guaranteeing Person in good faith.

“Hazardous Substance” means any substance or material meeting any one or more of the following criteria: (i) it is or contains a substance designated as a hazardous waste, hazardous substance, hazardous material, pollutant, contaminant or toxic substance under any Environmental Law, (ii) it is toxic, explosive, corrosive, ignitable, infectious, radioactive, mutagenic or otherwise hazardous to human health or the environment and is or becomes regulated by any Governmental Authority, (iii) its presence may require investigation or response under any Environmental Law, (iv) it constitutes a nuisance, trespass or health or safety

hazard to Persons or neighboring properties, or (v) it is or contains, without limiting the foregoing, asbestos, polychlorinated biphenyls, urea formaldehyde foam insulation, petroleum hydrocarbons, petroleum derived substances or wastes, crude oil, nuclear fuel, natural gas or synthetic gas.

“ Hedge Agreement ” means any interest or foreign currency rate swap, cap, collar, option, hedge, forward rate or other similar agreement or arrangement designed to protect against fluctuations in interest rates or currency exchange rates.

“ Hedge Party ” means any Lender or any Affiliate of any Lender in its capacity as a counterparty to any Hedge Agreement with the Borrower or any Subsidiary, which Hedge Agreement is required or permitted under this Agreement to be entered into by the Borrower, or any former Lender or any Affiliate of any former Lender in its capacity as a counterparty to any such Hedge Agreement entered into prior to the date such Person or its Affiliate ceased to be a Lender.

“ ICE Clear Canada ” means ICE Clear Canada, Inc., a Manitoba corporation and an indirect Wholly-Owned Subsidiary of the Borrower.

“ ICE Clear Europe ” means ICE Clear Europe Limited, a private limited company incorporated in England and Wales and an indirect Wholly-Owned Subsidiary of the Borrower.

“ ICE Clear Europe Payment Services Agreement ” shall mean the Payment Services Agreement between ICE Clear Europe and Citibank, N.A., London Branch, in a form reasonably acceptable to the Administrative Agent, for the purpose of providing an intraday liquidity line of credit to handle timing differences between receipts from and payments to clearing house members, and any renewal, replacement, refinancing or extension of such Indebtedness that does not increase the outstanding principal amount thereof.

“ ICE Clear US ” means ICE Clear U.S., Inc., a New York corporation and an indirect Wholly-Owned Subsidiary of the Borrower (formerly known as New York Clearing Corporation).

“ ICE Futures Europe ” means ICE Futures Europe, a United Kingdom corporation and an indirect Wholly-Owned Subsidiary of the Borrower.

“ ICE US Trust ” means ICE US Trust LLC, a New York limited liability trust company and a Subsidiary of the Borrower.

“ Indebtedness ” means, with respect to any Person (without duplication), (i) all obligations of such Person for borrowed money, (ii) all obligations of such Person evidenced by notes, bonds, debentures or similar instruments, or upon which interest payments are customarily made, (iii) the maximum stated or face amount of all surety bonds, letters of credit and bankers’ acceptances issued or created for the account of such Person and, without duplication, all drafts drawn thereunder (to the extent unreimbursed), (iv) all obligations of such Person to pay the deferred purchase price of property or services (excluding trade payables incurred in the ordinary course of business and not more than 90 days past due), (v) all indebtedness created or arising under any conditional sale or other title retention agreement with respect to property acquired by

such Person, (vi) all Capital Lease Obligations of such Person, (vii) all Disqualified Capital Stock issued by such Person, with the amount of Indebtedness represented by such Disqualified Capital Stock being equal to the greater of its voluntary or involuntary liquidation preference and its maximum fixed repurchase price, (viii) the principal balance outstanding and owing by such Person under any synthetic lease, tax retention operating lease or similar off-balance sheet financing product, (ix) all Guaranty Obligations of such Person with respect to Indebtedness of another Person, (x) the net termination obligations of such Person under any Hedge Agreements, calculated as of any date as if such agreement or arrangement were terminated as of such date, and (xi) all indebtedness of the types referred to in clauses (i) through (x) above (A) of any partnership or unincorporated joint venture in which such Person is a general partner or joint venturer to the extent such Person is liable therefor or (B) secured by any Lien on any property or asset owned or held by such Person regardless of whether or not the indebtedness secured thereby shall have been incurred or assumed by such Person or is nonrecourse to the credit of such Person, the amount thereof being equal to the value of the property or assets subject to such Lien.

“ Indemnified Taxes ” means Taxes other than Excluded Taxes.

“ Intellectual Property ” means (i) all inventions (whether or not patentable and whether or not reduced to practice), all improvements thereto, and all patents, patent applications, and patent disclosures, together with all reissues, continuations, continuations-in-part, divisions, revisions, extensions, and reexaminations thereof, (ii) all trademarks, service marks, trade dress, logos, trade names, and corporate names, together with all goodwill associated therewith, and all applications, registrations, and renewals in connection therewith, (iii) all copyrightable works and all copyrights (registered and unregistered), (iv) all trade secrets and confidential information (including, without limitation, financial, business and marketing plans and customer and supplier lists and related information), (v) all computer software and software systems (including, without limitation, data, databases and related documentation), (vi) all Internet web sites and domain names, (vii) all technology, know-how, processes and other proprietary rights, and (viii) all licenses or other agreements to or from third parties regarding any of the foregoing.

“ Interest Coverage Ratio ” means, as of the last day of any Reference Period ending on the last day of a fiscal quarter, the ratio of (i) Consolidated EBITDA for such Reference Period less Capital Expenditures and Capitalized Software Development Costs to (ii) Consolidated Interest Expense for such Reference Period.

“ Interest Period ” has the meaning given to such term in **Section 2.10** .

“ Investments ” has the meaning given to such term in **Section 7.11** .

“ Issuing Lender ” means Wachovia in its capacity as issuer of the Letters of Credit, and its successors in such capacity.

“ Joint Fee Letter ” means the letter from Wachovia, Wachovia Capital Markets, LLC, BofA and Banc of America Securities LLC, to the Borrower, dated February 18, 2009, relating to certain fees payable by the Borrower in respect of the transactions contemplated by this Agreement, as amended, modified, restated or supplemented from time to time.

“ Lender ” means each Person signatory hereto as a “Lender” and each other Person that becomes a “Lender” hereunder pursuant to **Section 2.18(a)** or **Section 10.6** , and their respective successors and assigns.

“ Lending Office ” means, with respect to any Lender, the office of such Lender designated as such in such Lender’s Administrative Questionnaire or in connection with an Assignment and Assumption, or such other office as may be otherwise designated in writing from time to time by such Lender to the Borrower and the Administrative Agent. A Lender may designate separate Lending Offices as provided in the foregoing sentence for the purposes of making or maintaining different Types of Loans, and, with respect to LIBOR Loans, such office may be a domestic or foreign branch or Affiliate of such Lender.

“ Letter of Credit Exposure ” means, with respect to any Revolving Credit Lender at any time, such Lender’s ratable share (based on the proportion that its Revolving Credit Commitment bears to the aggregate Revolving Credit Commitments at such time, or if the Revolving Credit Commitments have been terminated, based upon the proportion that its Revolving Credit Exposure bears to the Aggregate Revolving Credit Exposure) of the sum of (i) the aggregate Stated Amount of all Letters of Credit outstanding at such time and (ii) the aggregate amount of all Reimbursement Obligations outstanding at such time.

“ Letter of Credit Maturity Date ” means the fifth Business Day prior to the Maturity Date.

“ Letter of Credit Notice ” has the meaning given to such term in **Section 2.19(b)** .

“ Letters of Credit ” has the meaning given to such term in **Section 2.19(a)** .

“ LIBOR Loan ” means, at any time, any Loan that bears interest at such time at the applicable Adjusted LIBOR Rate.

“ LIBOR Market Index Rate ” means, for any date, the rate for one month Dollar deposits as reported on Reuters Screen LIBOR01 Page as of 11:00 a.m. London time, on such day, or if such day is not a London Banking Day, then the immediately preceding London Banking Day (or if not so reported, then as reasonably determined by the Administrative Agent from another recognized source or interbank quotation).

“ LIBOR Market Index Rate Loan ” means any Swingline Loan bearing interest at a rate determined by reference to the LIBOR Market Index Rate.

“ LIBOR Rate ” means, with respect to each LIBOR Loan comprising part of the same Borrowing for any Interest Period, an interest rate per annum obtained by dividing (i) (y) the rate of interest appearing on Reuters Screen LIBOR01 Page (or any successor page) that represents an average British Bankers Association Interest Settlement Rate for Dollar deposits or (z) if no such rate is available, the rate of interest determined by the Administrative Agent to be the rate or the arithmetic mean of rates at which Dollar deposits in immediately available funds are offered to first-tier banks in the London interbank Eurodollar market, in each case under (y) and (z) above at approximately 11:00 a.m., London time, two (2) Business Days prior to the first day of such Interest Period for a period substantially equal to such Interest Period and in an amount substantially equal to the amount of Wachovia’s LIBOR Loan comprising part of such Borrowing, by (ii) the amount equal to 1.00 minus the Reserve Requirement (expressed as a decimal) for such Interest Period.

“ Lien ” means any mortgage, pledge, hypothecation, assignment, security interest, lien (statutory or otherwise), charge or other encumbrance of any nature, whether voluntary or involuntary, including, without limitation, the interest of any vendor or lessor under any conditional sale agreement, title retention agreement, Capital Lease or any other lease or arrangement having substantially the same effect as any of the foregoing.

“ Loans ” means any or all of the Term Loans, the Revolving Loans and the Swingline Loans.

“ Margin Stock ” has the meaning given to such term in Regulation U.

“ Material Adverse Effect ” means a material adverse effect upon (i) the business, assets, properties, liabilities (actual or contingent), operations, condition (financial or otherwise) or prospects of the Borrower and its Subsidiaries, taken as a whole, (ii) the ability of the Credit Parties, taken as a whole, to perform their respective obligations under this Agreement or any of the other Credit Documents or (iii) the legality, validity or enforceability of this Agreement or any of the other Credit Documents or the rights and remedies of the Administrative Agent and the Lenders hereunder and thereunder.

“ Material Contract ” has the meaning given to such term in **Section 4.19** .

“ Maturity Date ” means the third anniversary of the Closing Date.

“ Multiemployer Plan ” means any “multiemployer plan” within the meaning of Section 4001(a)(3) of ERISA to which the Borrower or any ERISA Affiliate makes, is making or is obligated to make contributions or, during the immediately preceding five plan years, has made or been obligated to make contributions.

“ Net Cash Proceeds ” means, in the case of any Asset Disposition, the aggregate cash proceeds received by any Credit Party in respect thereof, less (i) reasonable fees and out-of-pocket expenses payable by the Borrower or any of its Subsidiaries in connection therewith, (ii) taxes paid or payable as a result thereof, and (iii) the amount required to retire Indebtedness to the extent such Indebtedness is secured by Liens on the subject property; it being understood that the term “ Net Cash Proceeds ” shall include, as and when received, any cash received upon the sale or other disposition of any non-cash consideration received by any Credit Party in respect of any of the foregoing events.

“ New Liquidity Facility ” has the meaning set forth in **Section 3.1(e)**.

“ Nonconsenting Lender ” means any Lender that does not approve a consent, waiver or amendment to any Credit Document requested by the Borrower or the Administrative Agent and that requires the approval of all Lenders (or all Lenders directly affected thereby) under **Section 10.5** when the Required Lenders have agreed to such consent, waiver or amendment.

“ Non-Wholly-Owned Subsidiary ” has the meaning given to such term in **Section 7.11** .

“ Notes ” means any or all of the Term Notes, the Revolving Notes and the Swingline Note.

“ Notice of Borrowing ” has the meaning given to such term in **Section 2.2(b)** .

“ Notice of Conversion/Continuation ” has the meaning given to such term in **Section 2.11(b)** .

“ Notice of Swingline Borrowing ” has the meaning given to such term in **Section 2.2(d)** .

“ Obligations ” means all principal of and interest (including interest accruing after the filing of a petition or commencement of a case by or with respect to the Borrower seeking relief under any applicable federal and state laws pertaining to bankruptcy, reorganization, arrangement, moratorium, readjustment of debts, dissolution, liquidation or other debtor relief, specifically including, without limitation, the Bankruptcy Code and any fraudulent transfer and fraudulent conveyance laws, whether or not the claim for such interest is allowed in such proceeding) on the Loans and Reimbursement Obligations, and all fees, expenses, indemnities and other obligations owing, due or payable at any time by the Borrower or any Subsidiary Guarantor to the Administrative Agent, any Lender, the Swingline Lender, the Issuing Lender or any other Person entitled thereto, under this Agreement or any of the other Credit Documents, and all payment and other obligations owing or payable at any time by the Borrower to any Hedge Party under or in connection with any Hedge Agreement to fix or limit interest rates payable by the Borrower in respect of any Loans, in each case whether direct or indirect, joint or several, absolute or contingent, matured or unmatured, liquidated or unliquidated, secured or unsecured, and whether existing by contract, operation of law or otherwise.

“ OFAC ” means the U.S. Department of the Treasury’s Office of Foreign Assets Control, and any successor thereto.

“ Other Taxes ” means all present or future stamp or documentary taxes or any other excise or property taxes, charges or similar levies arising from any payment made hereunder or under any other Credit Document or from the execution, delivery or enforcement of, or otherwise with respect to, this Agreement or any other Credit Document.

“ Participant ” has the meaning given to such term in **Section 10.6(d)** .

“ PATRIOT Act ” means the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism (USA PATRIOT Act of 2001), as amended from time to time, and any successor statute, and all rules and regulations from time to time promulgated thereunder.

“ Payment Office ” means the office of the Administrative Agent designated on **Schedule 1.1(a)** under the heading “Instructions for wire transfers to the Administrative Agent,” or such other office as the Administrative Agent may designate to the Lenders and the Borrower for such purpose from time to time.

“ PBGC ” means the Pension Benefit Guaranty Corporation established pursuant to Subtitle A of Title IV of ERISA, and any successor thereto.

“ Permitted Acquisition ” means any Acquisition permitted to be consummated pursuant to the terms in **Section 7.5** .

“ Permitted Asset Disposition ” means any Asset Disposition permitted under **Section 7.4(iv)** .

“ Permitted Liens ” has the meaning given to such term in **Section 7.3** .

“ Person ” means any natural person, corporation, limited liability company, trust, joint venture, association, company, partnership, Governmental Authority, Self-Regulatory Organization or other entity.

“ Plan ” means any “employee pension benefit plan” within the meaning of Section 3(2) of ERISA that is subject to the provisions of Title IV of ERISA (other than a Multiemployer Plan) and to which the Borrower or any ERISA Affiliate may have any liability.

“ PPA 2006 Effective Date ” means, with respect to any Plan, except as hereinafter provided, the first day of the first plan year beginning on or after January 1, 2008. However, solely with respect to a Plan maintained pursuant to one or more collective bargaining agreements between employee representatives and one or more employers ratified before January 1, 2008, such term means the first day of the first plan year beginning on or after the earlier of (A) and (B), where: (A) is the later of (x) the date on which the last collective bargaining agreement relating to the Plan terminates (determined without regard to any extension thereof agreed to after August 17, 2006), or (y) the first day of the first plan year beginning on or after January 1, 2008; and (B) is January 1, 2010.

“ Pro Forma Basis ” has the meaning given to such term in **Section 1.3(c)** .

“ Prohibited Transaction ” means any transaction described in (i) Section 406 of ERISA that is not exempt by reason of Section 408 of ERISA or by reason of a Department of Labor prohibited transaction individual or class exemption or (ii) Section 4975(c) of the Code that is not exempt by reason of Section 4975(c)(2) or 4975(d) of the Code.

“ Projections ” has the meaning given to such term in **Section 4.11(b)** .

“ Realty ” means all real property and interests in real property now or hereafter acquired or leased by any Credit Party.

“ Reference Period ” with respect to any date of determination, means (except as may be otherwise expressly provided herein) the period of twelve consecutive fiscal months of the Borrower immediately preceding such date or, if such date is the last day of a fiscal quarter, the period of four consecutive fiscal quarters ending on such date.

“ Refunded Swingline Loans ” has the meaning given to such term in **Section 2.2(e)** .

“ Register ” has the meaning given to such term in **Section 10.6(c)** .

“ Regulations T, U and X ” means Regulations T, U and X, respectively, of the Federal Reserve Board, and any successor regulations.

“ Reimbursement Obligation ” has the meaning given to such term in **Section 2.19(d)** .

“ Related Parties ” means, with respect to any Person, such Person’s Affiliates and the partners, directors, officers, employees, agents and advisors of such Person and of such Person’s Affiliates.

“ Reportable Event ” means, with respect to any Plan, (i) any “reportable event” within the meaning of Section 4043(c) of ERISA for which the 30-day notice under Section 4043(a) of ERISA has not been waived by the PBGC (including, without limitation, any failure to meet the minimum funding standard of, or timely make any required installment under, Section 412 of the Code or Section 302 of ERISA, regardless of the issuance of any waivers in accordance with Section 412(d) of the Code), (ii) any such “reportable event” subject to advance notice to the PBGC under Section 4043(b)(3) of ERISA, (iii) any application for a funding waiver or an extension of any amortization period pursuant to Section 412 of the Code, and (iv) a cessation of operations described in Section 4062(e) of ERISA.

“ Required Lenders ” means, at any time, the Lenders holding outstanding Loans (excluding Swingline Loans) and unutilized Commitments (or, after the termination of the Revolving Credit Commitments, outstanding Loans, Letter of Credit Exposure and Swingline Exposure) representing at least a majority of the aggregate, at such time, of all outstanding Loans (excluding Swingline Loans) and unutilized Commitments (or, after the termination of the Revolving Credit Commitments, the aggregate at such time of all outstanding Loans, Letter of Credit Exposure and Swingline Exposure), provided that the Commitment of, and the portion of the outstanding Loans and other Revolving Credit Exposure held or deemed held by, any Defaulting Lender shall be excluded for purposes of making a determination of Required Lenders.

“ Required Revolving Credit Lenders ” means, at any time, the Revolving Credit Lenders holding outstanding Revolving Loans and Unutilized Revolving Credit Commitments (or, after the termination of the Revolving Credit Commitments, outstanding Revolving Loans, Letter of Credit Exposure and Swingline Exposure) representing at least a majority of the aggregate, at such time, of all outstanding Revolving Loans and Unutilized Revolving Credit Commitments (or, after the termination of the Revolving Credit Commitments, the aggregate at such time of all outstanding Revolving Loans, Letter of Credit Exposure and Swingline Exposure)), provided that the Commitment of, and the portion of the outstanding Revolving Loans and other Revolving Credit Exposure held or deemed held by, any Defaulting Lender shall be excluded for purposes of making a determination of Required Revolving Credit Lenders.

“ Requirement of Law ” means, with respect to any Person, the charter, articles or certificate of organization or incorporation and bylaws or other organizational or governing documents of such Person, and any statute, law, treaty, rule, regulation, order, decree, writ, injunction or determination of any arbitrator or court or other Governmental Authority or any Self-Regulatory Organization, in each case applicable to or binding upon such Person or any of its property or to which such Person or any of its property is subject or otherwise pertaining to any or all of the transactions contemplated by this Agreement and the other Credit Documents.

“ Reserve Requirement ” means, with respect to any Interest Period, the reserve percentage (expressed as a decimal and rounded upwards, if necessary, to the next higher 1/100th of 1%) in effect from time to time during such Interest Period, as provided by the Federal Reserve Board, applied for determining the maximum reserve requirements (including, without limitation, basic, supplemental, marginal and emergency reserves) applicable to Wachovia under Regulation D with respect to “Eurocurrency liabilities” within the meaning of Regulation D, or under any similar or successor regulation with respect to Eurocurrency liabilities or Eurocurrency funding.

“ Responsible Officer ” means, with respect to any Credit Party, the president, the chief executive officer, the chief financial officer, any executive officer, or any other Financial Officer of such Credit Party, and any other officer or similar official thereof responsible for the administration of the obligations of such Credit Party in respect of this Agreement or any other Credit Document.

“ Revolving Credit Commitment ” means, with respect to any Lender at any time, the commitment of such Lender to make Revolving Loans and participate in Letters of Credit and Swingline Loans in an aggregate principal amount at any time outstanding up to the amount set forth opposite such Lender’s name on **Schedule 1.1(a)** under the caption “Revolving Credit Commitment” or, if such Lender has entered into one or more Assignment and Assumptions, the amount set forth for such Lender at such time in the Register maintained by the Administrative Agent pursuant to **Section 10.6(c)** as such Lender’s “Revolving Credit Commitment,” in either case, as such amount may be reduced at or prior to such time pursuant to the terms hereof.

“ Revolving Credit Exposure ” means, with respect to any Revolving Credit Lender at any time, the sum of (i) the aggregate principal amount of all Revolving Loans made by such Lender that are outstanding at such time, (ii) such Lender’s Swingline Exposure at such time and (iii) such Lender’s Letter of Credit Exposure at such time.

“ Revolving Credit Lender ” means any Lender having a Revolving Credit Commitment (or, after the Revolving Credit Commitments have terminated, any Lender holding outstanding Revolving Credit Exposure).

“ Revolving Credit Termination Date ” means the Maturity Date or such earlier date of termination of the Revolving Credit Commitments pursuant to **Section 2.5** or **Section 8.2** .

“ Revolving Loans ” has the meaning given to such term in **Section 2.1(b)** .

“ Revolving Note ” means, with respect to any Revolving Credit Lender requesting the same, the promissory note of the Borrower in favor of such Revolving Credit Lender evidencing the Revolving Loans made by such Lender pursuant to **Section 2.1(b)** , in substantially the form of **Exhibit A-2** , together with any amendments, modifications and supplements thereto, substitutions therefor and restatements thereof.

“ Sanctioned Country ” means a country subject to a sanctions program identified on the list maintained by OFAC and available at <http://www.treas.gov/offices/enforcement/ofac/-sanctions/index.html> , or as otherwise published from time to time.

“ Sanctioned Person ” means (i) a Person named on the list of Specially Designated Nationals or Blocked Persons maintained by OFAC available at <http://www.treas.gov/-offices/enforcement/ofac/sdn/index.html>, or as otherwise published from time to time, or (ii) (A) an agency of the government of a Sanctioned Country, (B) an organization controlled by a Sanctioned Country, or (C) a Person resident in a Sanctioned Country, to the extent subject to a sanctions program administered by OFAC.

“ Self Regulatory Organization ” means any U.S. or foreign commission, board, agency or body that is not a Governmental Authority, but is charged with the supervision or regulation of brokers, dealers, securities underwriting or trading, stock exchanges, commodities exchanges, electronic communication networks, insurance companies or agents, investment companies or investment advisors.

“ Stated Amount ” means, with respect to any Letter of Credit at any time, the aggregate amount available to be drawn thereunder at such time (regardless of whether any conditions for drawing could then be met).

“ Subsidiary ” means, with respect to any Person, any corporation or other Person of which more than fifty percent (50%) of the outstanding Capital Stock having ordinary voting power to elect a majority of the board of directors, board of managers or other governing body of such Person, is at the time, directly or indirectly, owned or controlled by such Person and one or more of its other Subsidiaries or a combination thereof (irrespective of whether, at the time, securities of any other class or classes of any such corporation or other Person shall or might have voting power by reason of the happening of any contingency). When used without reference to a parent entity, the term “Subsidiary” shall be deemed to refer to a Subsidiary of the Borrower.

“ Subsidiary Guarantor ” means any Guarantor that is a Subsidiary of the Borrower.

“ Swingline Commitment ” means \$20,000,000, or, if less, the aggregate Revolving Credit Commitments at the time of determination, as such amount may be reduced at or prior to such time pursuant to the terms hereof.

“ Swingline Exposure ” means, with respect to any Revolving Credit Lender at any time, its maximum aggregate liability to make Refunded Swingline Loans pursuant to **Section 2.2(e)** to refund, or to purchase participations pursuant to **Section 2.2(f)** in, Swingline Loans that are outstanding at such time.

“ Swingline Lender ” means Wachovia in its capacity as maker of Swingline Loans, and its successors in such capacity.

“ Swingline Loans ” has the meaning given to such term in **Section 2.1(c)** .

“ Swingline Maturity Date ” means the day which is 30 days prior to the Maturity Date.

“ Swingline Note ” means, if requested by the Swingline Lender, the promissory note of the Borrower in favor of the Swingline Lender evidencing the Swingline Loans made by the

Swingline Lender pursuant to **Section 2.1(c)** , in substantially the form of **Exhibit A-3** , together with any amendments, modifications and supplements thereto, substitutions therefor and restatements thereof.

“ **Taxes** ” means all present or future taxes, levies, imposts, duties, deductions, withholdings, assessments, fees or other charges imposed by any Governmental Authority, including any interest, additions to tax or penalties applicable thereto.

“ **Term Lender** ” means any Lender having a Term Loan Commitment (or, after the Term Loan Commitments have terminated, any Lender holding outstanding Term Loans).

“ **Term Loan** ” has the meaning given to such term in **Section 2.1(a)** .

“ **Term Loan Commitment** ” means, with respect to any Lender at any time, the commitment of such Lender to make Term Loans in an aggregate principal amount up to the amount set forth opposite such Lender’s name on **Schedule 1.1(a)** under the caption “Term Loan Commitment” or, if such Lender has entered into one or more Assignment and Assumptions, the amount set forth for such Lender at such time in the Register maintained by the Administrative Agent pursuant to **Section 10.6(c)** as such Lender’s “Term Loan Commitment,” in either case, as such amount may be reduced at or prior to such time pursuant to the terms hereof.

“ **Term Note** ” means, with respect to any Term Lender requesting the same, the promissory note of the Borrower in favor of such Term Lender evidencing the Term Loan made by such Lender pursuant to **Section 2.1(a)** , in substantially the form of **Exhibit A-1** , together with any amendments, modifications and supplements thereto, substitutions therefor and restatements thereof.

“ **Terminating Liquidity Facility** ” has the meaning set forth in **Section 3.1(d)** .

“ **The Clearing Corporation** ” means The Clearing Corporation, a Delaware corporation and a Subsidiary of the Borrower.

“ **Total Funded Debt** ” means, as of any date of determination, the aggregate principal amount of all Indebtedness of the Borrower and its Subsidiaries as of such date, determined on a consolidated basis in accordance with GAAP.

“ **Total Leverage Ratio** ” means, as of the last day of any Reference Period ending on the last day of a fiscal quarter, the ratio of (i) Total Funded Debt as of such date to (ii) Consolidated EBITDA for such Reference Period.

“ **Total Voting Power** ” means, with respect to any Person, the total number of votes which may be cast in the election of directors of such Person at any meeting of stockholders of such Person if all securities entitled to vote in the election of directors of such Person (on a fully diluted basis, assuming the exercise, conversion or exchange of all rights, warrants, options and securities exercisable for, exchangeable for or convertible into, such voting securities) were present and voted at such meeting (other than votes that may be cast only upon the happening of a contingency).

“Type” has the meaning given to such term in **Section 2.2(a)** .

“Unfunded Pension Liability” means, with respect to any Plan, the excess of its benefit liabilities under Section 4001(a)(16) of ERISA over the current value of its assets, determined in accordance with the applicable assumptions used for funding under Section 412 of the Code for the applicable plan year.

“Unutilized Revolving Credit Commitment” means, with respect to any Revolving Credit Lender at any time, such Lender’s Revolving Credit Commitment at such time less the sum of (i) the aggregate principal amount of all Revolving Loans made by such Lender that are outstanding at such time, (ii) such Lender’s Swingline Exposure at such time and (iii) such Lender’s Letter of Credit Exposure at such time.

“Unutilized Swingline Commitment” means, with respect to the Swingline Lender at any time, the Swingline Commitment at such time less the aggregate principal amount of all Swingline Loans that are outstanding at such time.

“Wachovia” means Wachovia Bank, National Association, and its successors and assigns.

“Wachovia Fee Letter” means the letter from Wachovia and Wachovia Capital Markets, LLC, to the Borrower, dated February 18, 2009, relating to certain fees payable by the Borrower in respect of the transactions contemplated by this Agreement, as amended, modified, restated or supplemented from time to time.

“Wholly-Owned” means, with respect to any Subsidiary of any Person, that 100% of the outstanding Capital Stock of such Subsidiary (excluding any directors’ qualifying shares and shares required to be held by foreign nationals, in the case of a Foreign Subsidiary) is owned, directly or indirectly, by such Person.

1.2 Accounting Terms. Unless otherwise specified herein, all accounting terms used herein shall be interpreted, all accounting determinations hereunder shall be made, and all financial statements required to be delivered hereunder shall be prepared in accordance with, GAAP applied on a basis consistent with the most recent audited consolidated financial statements of the Borrower and its Subsidiaries delivered to the Lenders prior to the Closing Date; provided that if the Borrower notifies the Administrative Agent that it wishes to amend any financial covenant in **Article VI** to eliminate the effect of any change in GAAP on the operation of such covenant (or if the Administrative Agent notifies the Borrower that the Required Lenders wish to amend **Article VI** for such purpose), then the Borrower’s compliance with such covenant shall be determined on the basis of GAAP as in effect immediately before the relevant change in GAAP became effective, until either such notice is withdrawn or such covenant is amended in a manner satisfactory to the Borrower and the Required Lenders.

1.3 Other Terms; Construction.

(a) The definitions of terms herein shall apply equally to the singular and plural forms of the terms defined. Whenever the context may require, any pronoun shall include the corresponding masculine, feminine and neuter forms. The words “include,” “includes” and

“including” shall be deemed to be followed by the phrase “without limitation.” The word “will” shall be construed to have the same meaning and effect as the word “shall.” Unless the context requires otherwise, (i) any definition of or reference to any agreement, instrument or other document shall be construed as referring to such agreement, instrument or other document as from time to time amended, supplemented, restated or otherwise modified (subject to any restrictions on such amendments, supplements, restatements or modifications set forth herein or in any other Credit Document), (ii) any reference herein to any Person shall be construed to include such Person’s successors and assigns permitted hereunder, (iii) the words “herein,” “hereof” and “hereunder,” and words of similar import when used in any Credit Document, shall be construed to refer to such Credit Document in its entirety and not to any particular provision thereof, (iv) all references in a Credit Document to Articles, Sections, Exhibits and Schedules shall be construed to refer to Articles and Sections of, and Exhibits and Schedules to, the Credit Document in which such references appear, (v) any reference to any law or regulation herein shall, unless otherwise specified, refer to such law or regulation as amended, modified or supplemented from time to time, and (vi) the words “asset” and “property” shall be construed to have the same meaning and effect and to refer to any and all tangible and intangible assets and properties, including cash, securities, accounts and contract rights.

(b) All references herein to the Lenders or any of them shall be deemed to include the Swingline Lender and the Issuing Lender unless specifically provided otherwise or unless the context otherwise requires.

(c) Notwithstanding the foregoing, calculations to determine compliance by the Borrower for any period with the Total Leverage Ratio covenant as set forth in **Article VI**, and calculations of the financial covenants contained in **Article VI** to determine whether a condition to a Permitted Acquisition, Permitted Asset Disposition, permitted incurrence of Indebtedness or other transaction has been met, shall be determined in each case on a pro forma basis (a “Pro Forma Basis”) after giving effect to any Acquisition, Asset Disposition, incurrence of Indebtedness or other transaction (each, a “transaction”) occurring during such period (or proposed to be consummated, as the case may be) as if such transaction had occurred as of the first day of such period, in accordance with the following:

(i) any Indebtedness incurred or assumed by any Credit Party in connection with any transaction (including any Indebtedness of a Person acquired in a Permitted Acquisition that is not retired or repaid in connection therewith) shall be deemed to have been incurred or assumed as of the first day of the applicable period (and if such Indebtedness has a floating or formula rate, such Indebtedness shall, for purposes of such determination, have an implied rate of interest during the applicable period determined by utilizing the rate of interest that is or would be in effect with respect to such Indebtedness as of the date of determination);

(ii) any Indebtedness retired or repaid in connection with any transaction (including any Indebtedness of a Person acquired in a Permitted Acquisition) shall be deemed to have been retired or repaid as of the first day of the applicable period;

(iii) with respect to any Permitted Acquisition, (A) income statement items (whether positive or negative) and balance sheet items attributable to the Person or assets

acquired shall (to the extent not otherwise included in the consolidated financial statements of the Borrower and its Subsidiaries in accordance with GAAP or in accordance with other provisions of this Agreement) be included in such calculations to the extent relating to the applicable period, provided that such income statement and balance sheet items are reflected in financial statements or other financial data reasonably acceptable to the Administrative Agent, and (B) operating expense reductions, cost savings and other pro forma adjustments attributable to such Permitted Acquisition may be included to the extent that such adjustments (y) would be permitted pursuant to Article XI of Regulation S-X under the Securities Act (irrespective of whether the Borrower is subject thereto) or (z) have been approved in writing by the Administrative Agent; and

(iv) with respect to any Permitted Asset Disposition, income statement items (whether positive or negative) and balance sheet items attributable to the assets disposed of shall be excluded from such calculations to the extent relating to the applicable period.

ARTICLE II

AMOUNT AND TERMS OF THE LOANS

2.1 Commitments.

(a) Each Term Lender severally agrees, subject to and on the terms and conditions of this Agreement, to make a loan (each, a “Term Loan,” and collectively, the “Term Loans”) to the Borrower on the Closing Date in a principal amount not to exceed its Term Loan Commitment. No Term Loans shall be made at any time after the Closing Date. To the extent repaid, Term Loans may not be reborrowed.

(b) Each Revolving Credit Lender severally agrees, subject to and on the terms and conditions of this Agreement, to make loans (each, a “Revolving Loan,” and collectively, the “Revolving Loans”) to the Borrower, from time to time on any Business Day during the period from and including the Closing Date to but excluding the Revolving Credit Termination Date, in an aggregate principal amount at any time outstanding not exceeding its Revolving Credit Commitment, provided that no Borrowing of Revolving Loans shall be made if, immediately after giving effect thereto (and to any concurrent repayment of Swingline Loans with proceeds of Revolving Loans made pursuant to such Borrowing), (y) the Revolving Credit Exposure of any Revolving Credit Lender would exceed its Revolving Credit Commitment at such time or (z) the Aggregate Revolving Credit Exposure would exceed the aggregate Revolving Credit Commitments at such time. Subject to and on the terms and conditions of this Agreement, the Borrower may borrow, repay and reborrow Revolving Loans.

(c) The Swingline Lender agrees, subject to and on the terms and conditions of this Agreement, to make loans (each, a “Swingline Loan,” and collectively, the “Swingline Loans”) to the Borrower, from time to time on any Business Day during the period from the Closing Date to but excluding the Swingline Maturity Date (or, if earlier, the Revolving Credit Termination Date), in an aggregate principal amount at any time outstanding not exceeding the Swingline Commitment. Swingline Loans may be made even if the aggregate principal amount of

Swingline Loans outstanding at any time, when added to the aggregate principal amount of the Revolving Loans made by the Swingline Lender in its capacity as a Revolving Credit Lender outstanding at such time, would exceed the Swingline Lender's own Revolving Credit Commitment at such time, but provided that no Borrowing of Swingline Loans shall be made if, immediately after giving effect thereto, (x) the Revolving Credit Exposure of any Revolving Credit Lender would exceed its Revolving Credit Commitment at such time, (y) the Aggregate Revolving Credit Exposure would exceed the aggregate Revolving Credit Commitments at such time or (z) any Lender is at such time a Defaulting Lender hereunder, unless the Swingline Lender has entered into satisfactory arrangements with the Borrower or such Lender to eliminate the Swingline Lender's risk with respect to such Lender. Subject to and on the terms and conditions of this Agreement, the Borrower may borrow, repay (including by means of a Borrowing of Revolving Loans pursuant to **Section 2.2(e)**) and reborrow Swingline Loans.

2.2 Borrowings.

(a) The Term Loans and Revolving Loans (each, together with the Swingline Loans, a "Class" of Loan) shall, at the option of the Borrower and subject to the terms and conditions of this Agreement, be either Base Rate Loans or LIBOR Loans (each, a "Type" of Loan), provided that all Loans comprising the same Borrowing shall, unless otherwise specifically provided herein, be of the same Type. The Swingline Loans shall be made and maintained as LIBOR Market Index Rate Loans at all times.

(b) In order to make a Borrowing (other than (x) Borrowings of Swingline Loans, which shall be made pursuant to **Section 2.2(d)** , (y) Borrowings for the purpose of repaying Refunded Swingline Loans, which shall be made pursuant to **Section 2.2(e)** , and (z) Borrowings involving continuations or conversions of outstanding Loans, which shall be made pursuant to **Section 2.11**), the Borrower will give the Administrative Agent written notice not later than 11:00 a.m., Charlotte time, three (3) Business Days prior to each Borrowing to be comprised of LIBOR Loans and not later than 10:00 a.m., Charlotte time, on the Business Day of any Borrowing to be comprised of Base Rate Loans; provided, however, that requests for the Borrowing of the Term Loans and any Revolving Loans to be made on the Closing Date may, at the discretion of the Administrative Agent, be given with less advance notice than as specified hereinabove. Each such notice (each, a "Notice of Borrowing") shall be irrevocable, shall be given in the form of **Exhibit B-1** and shall specify (1) the aggregate principal amount, Class and initial Type of the Loans to be made pursuant to such Borrowing, (2) in the case of a Borrowing of LIBOR Loans, the initial Interest Period to be applicable thereto, and (3) the requested Borrowing Date, which shall be a Business Day. Upon its receipt of a Notice of Borrowing, the Administrative Agent will promptly notify each applicable Lender of the proposed Borrowing. Notwithstanding anything to the contrary contained herein:

(i) the aggregate principal amount of the Borrowing of Term Loans shall be in the amount of the aggregate Term Loan Commitments;

(ii) except for a Borrowing with respect to a Refunded Swingline Loan in accordance with **Section 2.2(e)** , the aggregate principal amount of each Borrowing comprised of Base Rate Loans shall not be less than \$3,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof (or, in the case of a Borrowing of Revolving

Loans, if less, in the amount of the aggregate Unutilized Revolving Credit Commitments), and the aggregate principal amount of each Borrowing comprised of LIBOR Loans shall not be less than \$5,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof;

(iii) if the Borrower shall have failed to designate the Type of Loans comprising a Borrowing, the Borrower shall be deemed to have requested a Borrowing comprised of Base Rate Loans; and

(iv) if the Borrower shall have failed to select the duration of the Interest Period to be applicable to any Borrowing of LIBOR Loans, then the Borrower shall be deemed to have selected an Interest Period with a duration of one month.

(c) Not later than 1:00 p.m., Charlotte time, on the requested Borrowing Date (which shall be the Closing Date, in the case of the Term Loans), each applicable Lender will make available to the Administrative Agent at the Payment Office an amount, in Dollars and in immediately available funds, equal to the amount of the Loan or Loans to be made by such Lender. To the extent such Lenders have made such amounts available to the Administrative Agent as provided hereinabove, the Administrative Agent will make the aggregate of such amounts available to the Borrower in accordance with **Section 2.3(a)** and in like funds as received by the Administrative Agent.

(d) In order to make a Borrowing of a Swingline Loan, the Borrower will give the Administrative Agent (and the Swingline Lender, if the Swingline Lender is not also the Administrative Agent) written notice not later than 11:00 a.m., Charlotte time, on the date of such Borrowing. Each such notice (each, a “Notice of Swingline Borrowing”) shall be given in the form of **Exhibit B-2**, shall be irrevocable and shall specify (i) the principal amount of the Swingline Loan to be made pursuant to such Borrowing (which shall not be less than \$100,000 and, if greater, shall be in an integral multiple of \$100,000 in excess thereof (or, if less, in the amount of the Unutilized Swingline Commitment)) and (ii) the requested Borrowing Date, which shall be a Business Day. Not later than 1:00 p.m., Charlotte time, on the requested Borrowing Date, the Swingline Lender will make available to the Administrative Agent at the Payment Office an amount, in Dollars and in immediately available funds, equal to the amount of the requested Swingline Loan. To the extent the Swingline Lender has made such amount available to the Administrative Agent as provided hereinabove, the Administrative Agent will make such amount available to the Borrower in accordance with **Section 2.3(a)** and in like funds as received by the Administrative Agent.

(e) With respect to any outstanding Swingline Loans, the Swingline Lender may at any time (whether or not an Event of Default has occurred and is continuing) in its sole and absolute discretion, and is hereby authorized and empowered by the Borrower to, cause a Borrowing of Revolving Loans to be made for the purpose of repaying such Swingline Loans by delivering to the Administrative Agent (if the Administrative Agent is not also the Swingline Lender) and each other Revolving Credit Lender (on behalf of, and with a copy to, the Borrower), not later than 10:00 a.m., Charlotte time on the Business Day of the proposed Borrowing Date therefor, a notice (which shall be deemed to be a Notice of Borrowing given by the Borrower) requesting the Revolving Credit Lenders to make Revolving Loans (which shall

be made initially as Base Rate Loans) on such Borrowing Date in an aggregate amount equal to the amount of such Swingline Loans (the “Refunded Swingline Loans”) outstanding on the date such notice is given that the Swingline Lender requests to be repaid. Not later than 1:00 p.m., Charlotte time, on the requested Borrowing Date, each Revolving Credit Lender (other than the Swingline Lender) will make available to the Administrative Agent at the Payment Office an amount, in Dollars and in immediately available funds, equal to the amount of the Revolving Loan to be made by such Lender. To the extent the Revolving Credit Lenders have made such amounts available to the Administrative Agent as provided hereinabove, the Administrative Agent will make the aggregate of such amounts available to the Swingline Lender in like funds as received by the Administrative Agent, which shall apply such amounts in repayment of the Refunded Swingline Loans. Notwithstanding any provision of this Agreement to the contrary, on the relevant Borrowing Date, the Refunded Swingline Loans (including the Swingline Lender’s ratable share thereof, in its capacity as a Revolving Credit Lender) shall be deemed to be repaid with the proceeds of the Revolving Loans made as provided above (including a Revolving Loan deemed to have been made by the Swingline Lender), and such Refunded Swingline Loans deemed to be so repaid shall no longer be outstanding as Swingline Loans but shall be outstanding as Revolving Loans. If any portion of any such amount repaid (or deemed to be repaid) to the Swingline Lender shall be recovered by or on behalf of the Borrower from the Swingline Lender in any bankruptcy, insolvency or similar proceeding or otherwise, the loss of the amount so recovered shall be shared ratably among all the Revolving Credit Lenders in the manner contemplated by **Section 2.14(b)** .

(f) If, as a result of any Bankruptcy Event with respect to the Borrower, Revolving Loans are not made pursuant to **Section 2.2(e)** in an amount sufficient to repay any amounts owed to the Swingline Lender in respect of any outstanding Swingline Loans, or if the Swingline Lender is otherwise precluded for any reason from giving a notice on behalf of the Borrower as provided for hereinabove, the Swingline Lender shall be deemed to have sold without recourse, representation or warranty, and each Revolving Credit Lender shall be deemed to have purchased and hereby agrees to purchase, a participation in such outstanding Swingline Loans in an amount equal to its ratable share (based on the proportion that its Revolving Credit Commitment bears to the aggregate Revolving Credit Commitments at such time, or if the Revolving Credit Commitments have been terminated, based on the proportion that its Revolving Credit Commitment bears to the aggregate Revolving Credit Commitments, in each case immediately prior to the termination thereof) of the unpaid amount thereof together with accrued interest thereon. Upon one (1) Business Day’s prior notice from the Swingline Lender, each Revolving Credit Lender (other than the Swingline Lender) will make available to the Administrative Agent at the Payment Office an amount, in Dollars and in immediately available funds, equal to its respective participation. To the extent the Revolving Credit Lenders have made such amounts available to the Administrative Agent as provided hereinabove, the Administrative Agent will make the aggregate of such amounts available to the Swingline Lender in like funds as received by the Administrative Agent. In the event any such Revolving Credit Lender fails to make available to the Administrative Agent the amount of such Lender’s participation as provided in this **Section 2.2(f)** , the Swingline Lender shall be entitled to recover such amount on demand from such Lender, together with interest thereon for each day from the date such amount is required to be made available for the account of the Swingline Lender until the date such amount is made available to the Swingline Lender at the Federal Funds Rate for the first three (3) Business Days and thereafter at the Adjusted Base Rate applicable to Revolving Loans.

Promptly following its receipt of any payment by or on behalf of the Borrower in respect of a Swingline Loan, the Swingline Lender will pay to each Revolving Credit Lender that has acquired a participation therein such Lender's ratable share of such payment.

(g) Notwithstanding any provision of this Agreement to the contrary, the obligation of each Revolving Credit Lender (other than the Swingline Lender) to make Revolving Loans for the purpose of repaying any Refunded Swingline Loans pursuant to **Section 2.2(e)** and each such Lender's obligation to purchase a participation in any unpaid Swingline Loans pursuant to **Section 2.2(f)** shall be absolute and unconditional and shall not be affected by any circumstance or event whatsoever, including, without limitation, (i) any set-off, counterclaim, recoupment, defense or other right that such Lender may have against the Swingline Lender, the Administrative Agent, the Borrower or any other Person for any reason whatsoever, (ii) the occurrence or continuance of any Default or Event of Default, (iii) the failure of the amount of such Borrowing of Revolving Loans to meet the minimum Borrowing amount specified in **Section 2.2(b)**, or (iv) the failure of any conditions set forth in **Section 3.2** or elsewhere herein to be satisfied.

2.3 Disbursements; Funding Reliance; Domicile of Loans.

(a) The Borrower hereby authorizes the Administrative Agent to disburse the proceeds of each Borrowing in accordance with the terms of any written instructions from any Authorized Officer of the Borrower, provided that the Administrative Agent shall not be obligated under any circumstances to forward amounts to any account not listed in an Account Designation Letter. The Borrower may at any time deliver to the Administrative Agent an Account Designation Letter listing any additional accounts or deleting any accounts listed in a previous Account Designation Letter.

(b) Unless the Administrative Agent shall have received notice from a Lender prior to the proposed date of any Borrowing that such Lender will not make available to the Administrative Agent such Lender's share of such Borrowing, the Administrative Agent may assume that such Lender has made such share available on such date in accordance with **Section 2.2** and may, in reliance upon such assumption, make available to the Borrower a corresponding amount. In such event, if a Lender has not in fact made its share of the applicable Borrowing available to the Administrative Agent, then the applicable Lender and the Borrower severally agree to pay to the Administrative Agent forthwith on demand such corresponding amount with interest thereon, for each day from and including the date such amount is made available to the Borrower to but excluding the date of payment to the Administrative Agent, at (i) in the case of a payment to be made by such Lender, the greater of the Federal Funds Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation and (ii) in the case of a payment to be made by the Borrower, the Adjusted Base Rate. If the Borrower and such Lender shall pay such interest to the Administrative Agent for the same or an overlapping period, the Administrative Agent shall promptly remit to the Borrower the amount of such interest paid by the Borrower for such period. If such Lender pays its share of the applicable Borrowing to the Administrative Agent, then the amount so paid shall constitute such Lender's Loan included in such Borrowing. Any payment by the Borrower shall be without prejudice to any claim the Borrower may have against a Lender that shall have failed to make such payment to the Administrative Agent.

(c) The obligations of the Lenders hereunder to make Loans, to fund participations in Swingline Loans and Letters of Credit and to make payments pursuant to **Section 10.1(c)** are several and not joint. The failure of any Lender to make any Loan, to fund any such participation or to make any such payment on any date shall not relieve any other Lender of its corresponding obligation, if any, hereunder to do so on such date, but no Lender shall be responsible for the failure of any other Lender to so make its Loan, purchase its participation or to make any such payment required hereunder.

(d) Each Lender may, at its option, make and maintain any Loan at, to or for the account of any of its Lending Offices, provided that any exercise of such option shall not affect the obligation of the Borrower to repay such Loan to or for the account of such Lender in accordance with the terms of this Agreement.

2.4 Evidence of Debt; Notes.

(a) Each Lender shall maintain in accordance with its usual practice an account or accounts evidencing the indebtedness of the Borrower to the applicable Lending Office of such Lender resulting from each Loan made by such Lending Office of such Lender from time to time, including the amounts of principal and interest payable and paid to such Lending Office of such Lender from time to time under this Agreement.

(b) The Administrative Agent shall maintain the Register pursuant to **Section 10.6(c)** , and a subaccount for each Lender, in which Register and subaccounts (taken together) shall be recorded (i) the amount of each such Loan, the Class and Type of each such Loan and the Interest Period applicable thereto, (ii) the amount of any principal or interest due and payable or to become due and payable from the Borrower to each Lender hereunder in respect of each such Loan and (iii) the amount of any sum received by the Administrative Agent hereunder from the Borrower in respect of each such Loan and each Lender's share thereof.

(c) The entries made in the Register and subaccounts maintained pursuant to **Section 2.4(b)** (and, if consistent with the entries of the Administrative Agent, the accounts maintained pursuant to **Section 2.4(a)**) shall, to the extent permitted by applicable law, be conclusive absent manifest error of the existence and amounts of the obligations of the Borrower therein recorded; provided , however , that the failure of any Lender or the Administrative Agent to maintain such account, such Register or such subaccount, as applicable, or any error therein, shall not in any manner affect the obligation of the Borrower to repay (with applicable interest) the Loans made to the Borrower by such Lender in accordance with the terms of this Agreement.

(d) The Loans of each Class made by each Lender shall, if requested by the applicable Lender (which request shall be made to the Administrative Agent), be evidenced (i) in the case of Term Loans, by a Term Note appropriately completed in substantially the form of **Exhibit A-1** , (ii) in the case of Revolving Loans, by a Revolving Note appropriately completed in substantially the form of **Exhibit A-2** , and (iii) in the case of the Swingline Loans, by a Swingline Note appropriately completed in substantially the form of **Exhibit A-3** , in each case executed by the Borrower and payable to the order of such Lender. Each Note shall be entitled to all of the benefits of this Agreement and the other Credit Documents and shall be subject to the provisions hereof and thereof.

2.5 Termination and Reduction of Commitments and Swingline Commitment.

(a) The Term Loan Commitments shall be automatically and permanently terminated concurrently with the making of the Term Loans on the Closing Date. The Revolving Credit Commitments shall be automatically and permanently terminated on the Revolving Credit Termination Date. The Swingline Commitment shall be automatically and permanently terminated on the Swingline Maturity Date, unless sooner terminated pursuant to any other provision of this **Section 2.5** or **Section 8.2**.

(b) At any time and from time to time after the date hereof, upon not less than five (5) Business Days' prior written notice to the Administrative Agent (and in the case of a termination or reduction of the Unutilized Swingline Commitment, the Swingline Lender), the Borrower may terminate in whole or reduce in part the aggregate Unutilized Revolving Credit Commitments or the Unutilized Swingline Commitment, provided that any such partial reduction shall be in an aggregate amount of not less than \$5,000,000 (\$500,000 in the case of the Unutilized Swingline Commitment) or, if greater, an integral multiple of \$1,000,000 in excess thereof (\$100,000 in the case of the Unutilized Swingline Commitment). The amount of any termination or reduction made under this **Section 2.5(b)** may not thereafter be reinstated.

(c) Each reduction of the Revolving Credit Commitments pursuant to this Section shall be applied ratably among the Revolving Credit Lenders according to their respective Revolving Credit Commitments. Notwithstanding any provision of this Agreement to the contrary, any reduction of the Revolving Credit Commitments pursuant to this **Section 2.5** that has the effect of reducing the aggregate Revolving Credit Commitments to an amount less than the amount of the Swingline Commitment at such time shall result in an automatic corresponding reduction of the Swingline Commitment, as the case may be, to the amount of the aggregate Revolving Credit Commitments (as so reduced), without any further action on the part of the Borrower, the Swingline Lender or any other Lender.

2.6 Mandatory Payments and Prepayments.

(a) Except to the extent due or paid sooner pursuant to the provisions of this Agreement, the Borrower will repay the Term Loans on each date set forth below in the aggregate principal amount opposite such date:

<u>Date</u>	<u>Payment Amount</u>
June 30, 2009	\$ 10,000,000
September 30, 2009	\$ 10,000,000
December 31, 2009	\$ 10,000,000
March 31, 2010	\$ 10,000,000
June 30, 2010	\$ 13,000,000
September 30, 2010	\$ 13,000,000
December 31, 2010	\$ 13,000,000
March 31, 2011	\$ 13,000,000
June 30, 2011	\$ 17,000,000
September 30, 2011	\$ 17,000,000

<u>Date</u>	<u>Payment Amount</u>
December 31, 2011	\$ 17,000,000
March 31, 2012	\$ 17,000,000
Maturity Date	\$ 40,000,000

(b) Except to the extent due or paid sooner pursuant to the provisions of this Agreement, (i) the aggregate outstanding principal of the Term Loans shall be due and payable in full on the Maturity Date, (ii) the aggregate outstanding principal of the Revolving Loans shall be due and payable in full on the Maturity Date, and (iii) the aggregate outstanding principal of the Swingline Loans shall be due and payable in full on the Swingline Maturity Date.

(c) In the event that, at any time, the Aggregate Revolving Credit Exposure (excluding the aggregate amount of any Swingline Loans to be repaid with proceeds of Revolving Loans made on the date of determination) shall exceed the aggregate Revolving Credit Commitments at such time (after giving effect to any concurrent termination or reduction thereof), the Borrower will immediately prepay the outstanding principal amount of the Swingline Loans and, to the extent of any excess remaining after prepayment in full of outstanding Swingline Loans, the outstanding principal amount of the Revolving Loans in the amount of such excess; provided that, to the extent such excess amount is greater than the aggregate principal amount of Swingline Loans and Revolving Loans outstanding immediately prior to the application of such prepayment, the amount so prepaid shall be retained by the Administrative Agent and held in the Cash Collateral Account as cover for Letter of Credit Exposure, as more particularly described in **Section 2.19(h)**, and thereupon such cash shall be deemed to reduce the aggregate Letter of Credit Exposure by an equivalent amount.

2.7 Voluntary Prepayments.

(a) At any time and from time to time, the Borrower shall have the right to prepay the Loans, in whole or in part, without premium or penalty (except as provided in clause (iii) below), upon written notice given to the Administrative Agent not later than 11:00 a.m., Charlotte time, three (3) Business Days prior to each intended prepayment of LIBOR Loans and one (1) Business Day prior to each intended prepayment of Base Rate Loans (other than Swingline Loans, which may be prepaid on a same-day basis), provided that (i) each partial prepayment of LIBOR Loans shall be in an aggregate principal amount of not less than \$5,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof, and each partial prepayment of Base Rate Loans shall be in an aggregate principal amount of not less than \$3,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof (\$100,000 and \$100,000, respectively, in the case of Swingline Loans), (ii) no partial prepayment of LIBOR Loans made pursuant to any single Borrowing shall reduce the aggregate outstanding principal amount of the remaining LIBOR Loans under such Borrowing to less than \$5,000,000 or to any greater amount not an integral multiple of \$1,000,000 in excess thereof, and (iii) unless made together with all amounts required under **Section 2.17** to be paid as a consequence of such prepayment, a prepayment of a LIBOR Loan may be made only on the last day of the Interest Period applicable thereto. Each such notice shall specify the proposed date of such prepayment and the aggregate principal amount, Class and Type of the Loans to be prepaid (and, in the case of LIBOR Loans, the Interest Period of the Borrowing pursuant to which made), and shall be irrevocable and shall

bind the Borrower to make such prepayment on the terms specified therein. Revolving Loans and Swingline Loans (but not Term Loans) prepaid pursuant to this **Section 2.7(a)** may be reborrowed, subject to the terms and conditions of this Agreement. In the event the Administrative Agent receives a notice of prepayment under this Section, the Administrative Agent will give prompt notice thereof to the Lenders; provided that if such notice has also been furnished to the Lenders, the Administrative Agent shall have no obligation to notify the Lenders with respect thereto.

(b) Each prepayment of the Term Loans made pursuant to **Section 2.7(a)** shall be applied to reduce the outstanding principal amount of the Term Loans, with such reduction to be applied to the remaining scheduled principal payments in each instance on a pro rata basis. Each prepayment of the Loans made pursuant to **Section 2.7(a)** shall be applied ratably among the Lenders holding the Loans being prepaid, in proportion to the principal amount held by each.

2.8 Interest.

(a) Subject to **Section 2.8(b)**, the Borrower will pay interest in respect of the unpaid principal amount of each Loan, from the date of Borrowing thereof until such principal amount shall be paid in full, (i) at the Adjusted Base Rate, as in effect from time to time during such periods as such Loan is a Base Rate Loan, (ii) at the Adjusted LIBOR Rate, as in effect from time to time during such periods as such Loan is a LIBOR Loan, and (iii) at the Adjusted LIBOR Market Index Rate, as in effect from time to time for all Swingline Loans.

(b) Upon the occurrence and during the continuance of any Event of Default under **Sections 8.1(a)**, **8.1(f)**, or **8.1(g)** and (at the election of the Required Lenders) upon the occurrence and during the continuance of any other Event of Default, all outstanding principal amounts of the Loans and, to the greatest extent permitted by law, all interest accrued on the Loans and all other accrued and outstanding fees and other amounts hereunder, shall bear interest at a rate per annum equal to the interest rate applicable from time to time thereafter to such Loans plus 2% (or, in the case of interest, fees and other amounts for which no rate is provided hereunder, at the Adjusted Base Rate plus 2%), and, in each case, such default interest shall be payable on demand. To the greatest extent permitted by law, interest shall continue to accrue after the filing by or against the Borrower of any petition seeking any relief in bankruptcy or under any law pertaining to insolvency or debtor relief.

(c) Accrued (and theretofore unpaid) interest shall be payable as follows:

(i) in respect of each Base Rate Loan (including any Base Rate Loan or portion thereof paid or prepaid pursuant to the provisions of **Section 2.6**, except as provided hereinbelow) and each LIBOR Market Index Rate Loan, in arrears on the last Business Day of each calendar quarter, beginning with the first such day to occur after the Closing Date; provided, that in the event the Loans are repaid or prepaid in full and the Commitments have been terminated, then accrued interest in respect of all Base Rate Loans and LIBOR Market Index Rate Loans shall be payable together with such repayment or prepayment on the date thereof;

(ii) in respect of each LIBOR Loan (including any LIBOR Loan or portion thereof paid or prepaid pursuant to the provisions of **Section 2.6** , except as provided hereinbelow), in arrears (y) on the last Business Day of the Interest Period applicable thereto (subject to the provisions of **Section 2.10(iv)**) and (z) in addition, in the case of a LIBOR Loan with an Interest Period having a duration of six months or longer, on each date on which interest would have been payable under clause (y) above had successive Interest Periods of three months' duration been applicable to such LIBOR Loan; provided, that in the event all LIBOR Loans made pursuant to a single Borrowing are repaid or prepaid in full, then accrued interest in respect of such LIBOR Loans shall be payable together with such repayment or prepayment on the date thereof; and

(iii) in respect of any Loan, at maturity (whether pursuant to acceleration or otherwise) and, after maturity, on demand.

(d) Nothing contained in this Agreement or in any other Credit Document shall be deemed to establish or require the payment of interest to any Lender at a rate in excess of the maximum rate permitted by applicable law. If the amount of interest payable for the account of any Lender on any interest payment date would exceed the maximum amount permitted by applicable law to be charged by such Lender, the amount of interest payable for its account on such interest payment date shall be automatically reduced to such maximum permissible amount. In the event of any such reduction affecting any Lender, if from time to time thereafter the amount of interest payable for the account of such Lender on any interest payment date would be less than the maximum amount permitted by applicable law to be charged by such Lender, then the amount of interest payable for its account on such subsequent interest payment date shall be automatically increased to such maximum permissible amount, provided that at no time shall the aggregate amount by which interest paid for the account of any Lender has been increased pursuant to this sentence exceed the aggregate amount by which interest paid for its account has theretofore been reduced pursuant to the previous sentence.

(e) The Administrative Agent shall promptly notify the Borrower and the Lenders upon determining the interest rate for each Borrowing of LIBOR Loans after its receipt of the relevant Notice of Borrowing or Notice of Conversion/Continuation, and upon each change in the Base Rate; provided, however, that the failure of the Administrative Agent to provide the Borrower or the Lenders with any such notice shall neither affect any obligations of the Borrower or the Lenders hereunder nor result in any liability on the part of the Administrative Agent to the Borrower or any Lender. Each such determination (including each determination of the Reserve Requirement) shall, absent manifest error, be conclusive absent manifest error and binding on all parties hereto.

2.9 Fees. The Borrower agrees to pay:

(a) To Wachovia, for its own account, the administrative fee required under the Wachovia Fee Letter to be paid to Wachovia, in the amounts due and at the times due as required by the terms thereof;

(b) To the Administrative Agent, for the account of each Revolving Credit Lender, a commitment fee for each calendar quarter (or portion thereof) for the period from and including

the Closing Date to but excluding the Revolving Credit Termination Date, at a per annum rate equal to the Applicable Percentage in effect for such fee from time to time during such quarter on such Lender's ratable share (based on the proportion that its Revolving Credit Commitment bears to the aggregate Revolving Credit Commitments) of the average daily aggregate Unutilized Revolving Credit Commitments (excluding clause (ii) of the definition thereof for purposes of this **Section 2.9(b)** only), payable in arrears (i) on the last Business Day of each calendar quarter, beginning with the first such day to occur after the Closing Date, and (ii) on the Revolving Credit Termination Date;

(c) To the Administrative Agent, for the account of each Revolving Credit Lender, a letter of credit fee for each calendar quarter (or portion thereof) in respect of all Letters of Credit outstanding during such quarter, at a per annum rate equal to the Applicable Percentage in effect from time to time during such quarter for LIBOR Loans, on such Lender's ratable share (based on the proportion that its Revolving Credit Commitment bears to the aggregate Revolving Credit Commitments, or if the Revolving Credit Commitments have been terminated, based upon the proportion that its Revolving Credit Exposure bears to the Aggregate Revolving Credit Exposure) of the daily average aggregate Stated Amount of such Letters of Credit, payable in arrears (i) on the last Business Day of each calendar quarter, beginning with the first such day to occur after the Closing Date, and (ii) on the later of the Revolving Credit Termination Date and the date of termination of the last outstanding Letter of Credit;

(d) To Wachovia, for its own account in its capacity as the Issuing Lender, the fronting fee required under the Wachovia Fee Letter to be paid to Wachovia, in the amounts due and at the times due as required by the terms thereof; and

(e) To the Issuing Lender, for its own account, such commissions, transfer fees and other fees and charges incurred in connection with the issuance and administration of each Letter of Credit as are customarily charged from time to time by the Issuing Lender for the performance of such services in connection with similar letters of credit, or as may be otherwise agreed to by the Issuing Lender, but without duplication of amounts payable under **Section 2.9(d)** .

2.10 Interest Periods . Concurrently with the giving of a Notice of Borrowing or Notice of Conversion/Continuation in respect of any Borrowing (whether in respect of Term Loans or Revolving Loans) comprised of Base Rate Loans to be converted into, or LIBOR Loans to be continued as, LIBOR Loans, the Borrower shall have the right to elect, pursuant to such notice, the interest period (each, an "Interest Period") to be applicable to such LIBOR Loans, which Interest Period shall, at the option of the Borrower, be a one, two, three or six-month period; provided, however, that:

(i) all LIBOR Loans comprising a single Borrowing shall at all times have the same Interest Period;

(ii) the initial Interest Period for any LIBOR Loan shall commence on the date of the Borrowing of such LIBOR Loan (including the date of any continuation of, or conversion into, such LIBOR Loan), and each successive Interest Period applicable to such LIBOR Loan shall commence on the day on which the next preceding Interest Period applicable thereto expires;

(iii) LIBOR Loans may not be outstanding under more than ten (10) separate Interest Periods at any one time (for which purpose Interest Periods shall be deemed to be separate even if they are coterminous);

(iv) if any Interest Period otherwise would expire on a day that is not a Business Day, such Interest Period shall expire on the next succeeding Business Day unless such next succeeding Business Day falls in another calendar month, in which case such Interest Period shall expire on the next preceding Business Day;

(v) no Interest Period may be selected with respect to the Term Loans that would end after a scheduled date for repayment of principal of the Term Loans occurring on or after the first day of such Interest Period unless, immediately after giving effect to such selection, the aggregate principal amount of Term Loans that are Base Rate Loans or that have Interest Periods expiring on or before such principal repayment date equals or exceeds the principal amount required to be paid on such principal repayment date;

(vi) the Borrower may not select any Interest Period that expires after the Maturity Date, with respect to Term Loans or Revolving Loans that are to be maintained as LIBOR Loans;

(vii) if any Interest Period begins on a day for which there is no numerically corresponding day in the calendar month during which such Interest Period would otherwise expire, such Interest Period shall expire on the last Business Day of such calendar month; and

(viii) the Borrower may not select any Interest Period (and consequently, no LIBOR Loans shall be made) if a Default or Event of Default shall have occurred and be continuing at the time of such Notice of Borrowing or Notice of Conversion/Continuation with respect to any Borrowing.

2.11 Conversions and Continuations.

(a) The Borrower shall have the right, on any Business Day occurring on or after the Closing Date, to elect (i) to convert all or a portion of the outstanding principal amount of any Base Rate Loans of any Class into LIBOR Loans of the same Class, or to convert any LIBOR Loans of any Class the Interest Periods for which end on the same day into Base Rate Loans of the same Class, or (ii) upon the expiration of any Interest Period, to continue all or a portion of the outstanding principal amount of any LIBOR Loans of any Class the Interest Periods for which end on the same day for an additional Interest Period, provided that (w) any such conversion of LIBOR Loans into Base Rate Loans shall involve an aggregate principal amount of not less than \$3,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof; any such conversion of Base Rate Loans into, or continuation of, LIBOR Loans shall involve an aggregate principal amount of not less than \$5,000,000 or, if greater, an integral multiple of \$1,000,000 in excess thereof; and no partial conversion of LIBOR Loans made pursuant to a single Borrowing shall reduce the outstanding principal amount of such LIBOR Loans to less than \$5,000,000 or to any greater amount not an integral multiple of \$1,000,000 in excess thereof, (x) except as otherwise provided in **Section 2.15(f)**, LIBOR Loans may be converted

into Base Rate Loans only on the last day of the Interest Period applicable thereto (and, in any event, if a LIBOR Loan is converted into a Base Rate Loan on any day other than the last day of the Interest Period applicable thereto, the Borrower will pay, upon such conversion, all amounts required under **Section 2.17** to be paid as a consequence thereof), (y) no such conversion or continuation shall be permitted with regard to any Swingline Loans, and (z) no conversion of Base Rate Loans into LIBOR Loans or continuation of LIBOR Loans shall be permitted during the continuance of a Default or Event of Default.

(b) The Borrower shall make each such election by giving the Administrative Agent written notice not later than 11:00 a.m., Charlotte time, three (3) Business Days prior to the intended effective date of any conversion of Base Rate Loans into, or continuation of, LIBOR Loans and one (1) Business Day prior to the intended effective date of any conversion of LIBOR Loans into Base Rate Loans. Each such notice (each, a “Notice of Conversion/Continuation”) shall be irrevocable, shall be given in the form of **Exhibit B-3** and shall specify (x) the date of such conversion or continuation (which shall be a Business Day), (y) in the case of a conversion into, or a continuation of, LIBOR Loans, the Interest Period to be applicable thereto, and (z) the aggregate amount, Class and Type of the Loans being converted or continued. Upon the receipt of a Notice of Conversion/Continuation, the Administrative Agent will promptly notify each applicable Lender of the proposed conversion or continuation. In the event that the Borrower shall fail to deliver a Notice of Conversion/Continuation as provided herein with respect to any of its outstanding LIBOR Loans, such LIBOR Loans shall automatically be converted to Base Rate Loans upon the expiration of the then current Interest Period applicable thereto (unless repaid pursuant to the terms hereof). In the event the Borrower shall have failed to select in a Notice of Conversion/Continuation the duration of the Interest Period to be applicable to any conversion into, or continuation of, its LIBOR Loans, then the Borrower shall be deemed to have selected an Interest Period with a duration of one month.

2.12 Method of Payments; Computations; Apportionment of Payments.

(a) All payments by the Borrower hereunder shall be made without setoff, counterclaim or other defense, in Dollars and in immediately available funds to the Administrative Agent, for the account of the Lenders entitled to such payment or the Administrative Agent, the Issuing Lender, or the Swingline Lender, as the case may be (except as otherwise expressly provided herein as to payments required to be made directly to the Lenders) at the Payment Office prior to 12:00 noon, Charlotte time, on the date payment is due. Any payment made as required hereinabove, but after 12:00 noon, Charlotte time, shall be deemed to have been made on the next succeeding Business Day. If any payment falls due on a day that is not a Business Day, then such due date shall be extended to the next succeeding Business Day (except that in the case of LIBOR Loans to which the provisions of **Section 2.10(iv)** are applicable, such due date shall be the next preceding Business Day), and such extension of time shall then be included in the computation of payment of interest, fees or other applicable amounts.

(b) The Administrative Agent will distribute to the Lenders like amounts relating to payments made to the Administrative Agent for the account of the Lenders as follows: (i) if the payment is received by 12:00 noon, Charlotte time, in immediately available funds, the Administrative Agent will make available to each relevant Lender on the same date, by wire

transfer of immediately available funds, such Lender's ratable share of such payment (based on the percentage that the amount of the relevant payment owing to such Lender bears to the total amount of such payment owing to all of the relevant Lenders), and (ii) if such payment is received after 12:00 noon, Charlotte time, or in other than immediately available funds, the Administrative Agent will make available to each such Lender its ratable share of such payment by wire transfer of immediately available funds on the next succeeding Business Day (or in the case of uncollected funds, as soon as practicable after collected). If the Administrative Agent shall not have made a required distribution to the appropriate Lenders as required hereinabove after receiving a payment for the account of such Lenders, the Administrative Agent will pay to each such Lender, on demand, its ratable share of such payment with interest thereon at the Federal Funds Rate for each day from the date such amount was required to be disbursed by the Administrative Agent until the date repaid to such Lender.

(c) Unless the Administrative Agent shall have received notice from the Borrower prior to the date on which any payment is due to the Administrative Agent for the account of the Lenders hereunder that the Borrower will not make such payment, the Administrative Agent may assume that the Borrower has made such payment on such date in accordance herewith and may, in reliance upon such assumption, distribute to the Lenders, as the case may be, the amount due. In such event, if the Borrower has not in fact made such payment, then each Lender, as the case may be, severally agrees to repay to the Administrative Agent forthwith on demand the amount so distributed to such Lender, with interest thereon, for each day from and including the date such amount is distributed to it to but excluding the date of payment to the Administrative Agent, at the greater of the Federal Funds Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation.

(d) All computations of interest and fees hereunder (including computations of the Reserve Requirement) shall be made on the basis of a year consisting of (i) in the case of interest on Base Rate Loans, 365/366 days, as the case may be, or (ii) in all other instances, 360 days; and in each case under (i) and (ii) above, with regard to the actual number of days (including the first day, but excluding the last day) elapsed.

(e) Notwithstanding any other provision of this Agreement or any other Credit Document to the contrary, all amounts collected or received by the Administrative Agent or any Lender after acceleration of the Loans pursuant to **Section 8.2** shall be applied by the Administrative Agent as follows:

(i) first, to the payment of all reasonable out-of-pocket costs and expenses (including, without limitation, reasonable attorneys' and consultants' fees irrespective of whether such fees are allowed as a claim after the occurrence of a Bankruptcy Event) of the Administrative Agent in connection with enforcing the rights of the Lenders under the Credit Documents;

(ii) second, to the payment of any fees owed to the Administrative Agent hereunder or under any other Credit Document;

(iii) third, to the payment of all reasonable and documented out-of-pocket costs and expenses (including, without limitation, reasonable attorneys' and consultants' fees

irrespective of whether such fees are allowed as a claim after the occurrence of a Bankruptcy Event) of each of the Lenders in connection with enforcing its rights under the Credit Documents or otherwise with respect to the Obligations owing to such Lender;

(iv) fourth, to the payment of all of the Obligations consisting of accrued fees and interest (including, without limitation, fees incurred and interest accruing at the then applicable rate after the occurrence of a Bankruptcy Event irrespective of whether a claim for such fees incurred and interest accruing is allowed in such proceeding);

(v) fifth, to the payment of the outstanding principal amount of the Obligations (including the payment of any outstanding Reimbursement Obligations and the obligation to cash collateralize Letter of Credit Exposure);

(vi) sixth, to the payment of all other Obligations and other obligations that shall have become due and payable under the Credit Documents and not repaid; and

(vii) seventh, to the payment of the surplus (if any) to whomever may be lawfully entitled to receive such surplus.

In carrying out the foregoing, (x) amounts received shall be applied in the numerical order provided until exhausted prior to application to the next succeeding category, and (y) all amounts shall be apportioned ratably among the Lenders in proportion to the amounts of such principal, interest, fees or other Obligations owed to them respectively pursuant to clauses (iii) through (vii) above.

2.13 Recovery of Payments.

(a) The Borrower agrees that to the extent the Borrower makes a payment or payments to or for the account of the Administrative Agent, the Swingline Lender, the Issuing Lender or any Lender, which payment or payments or any part thereof are subsequently invalidated, declared to be fraudulent or preferential, set aside or required to be repaid to a trustee, receiver or any other party under any bankruptcy, insolvency or similar state or federal law, common law or equitable cause (whether as a result of any demand, settlement, litigation or otherwise), then, to the extent of such payment or repayment, the Obligation intended to be satisfied shall be revived and continued in full force and effect as if such payment had not been received.

(b) If any amounts distributed by the Administrative Agent to any Lender are subsequently returned or repaid by the Administrative Agent to the Borrower, its representative or successor in interest, or any other Person, whether by court order, by settlement approved by the Lender in question, or pursuant to applicable Requirements of Law, such Lender will, promptly upon receipt of notice thereof from the Administrative Agent, pay the Administrative Agent such amount. If any such amounts are recovered by the Administrative Agent from the Borrower, its representative or successor in interest or such other Person, the Administrative Agent will redistribute such amounts to the Lenders on the same basis as such amounts were originally distributed.

2.14 Pro Rata Treatment.

(a) Except in the case of Swingline Loans, all fundings, continuations and conversions of Loans of any Class shall be made by the Lenders pro rata on the basis of their respective Commitments to provide Loans of such Class (in the case of the funding of Loans of such Class pursuant to **Section 2.2**) or on the basis of their respective outstanding Loans of such Class (in the case of continuations and conversions of Loans of such Class pursuant to **Section 2.11** , or in the event the Commitments for Loans of such Class have expired or have been terminated), as the case may be from time to time. All payments on account of principal of or interest on any Loans, fees or any other Obligations owing to or for the account of any one or more Lenders shall be apportioned ratably among such Lenders in proportion to the amounts of such principal, interest, fees or other Obligations owed to them respectively.

(b) If any Lender shall, by exercising any right of setoff or counterclaim or otherwise, obtain payment in respect of any principal of or interest on any of its Loans or other Obligations hereunder resulting in such Lender's receiving payment of a proportion of the aggregate amount of its Loans and accrued interest thereon or other such Obligations greater than its pro rata share thereof as provided herein, then the Lender receiving such greater proportion shall (a) notify the Administrative Agent of such fact, and (b) purchase (for cash at face value) participations in the Loans and such other Obligations of the other Lenders, or make such other adjustments as shall be equitable, so that the benefit of all such payments shall be shared by the Lenders ratably in accordance with the aggregate amount of principal of and accrued interest on their respective Loans and other amounts owing them, provided that (i) if any such participations are purchased and all or any portion of the payment giving rise thereto is recovered, such participations shall be rescinded and the purchase price restored to the extent of such recovery, without interest, and (ii) the provisions of this Section shall not be construed to apply to (x) any payment made by the Borrower pursuant to and in accordance with the express terms of this Agreement or (y) any payment obtained by a Lender as consideration for the assignment of or sale of a participation in any of its Loans, Swingline Loans or Letters of Credit to any assignee or participant, other than to the Borrower or any Subsidiary thereof (as to which the provisions of this **Section 2.14(b)** shall apply). The Borrower consents to the foregoing and agrees, to the extent it may effectively do so under applicable law, that any Lender acquiring a participation pursuant to the foregoing arrangements may exercise against the Borrower rights of setoff and counterclaim with respect to such participation as fully as if such Lender were a direct creditor of the Borrower in the amount of such participation. If under any applicable bankruptcy, insolvency or similar law, any Lender receives a secured claim in lieu of a setoff to which this **Section 2.14(b)** applies, such Lender shall, to the extent practicable, exercise its rights in respect of such secured claim in a manner consistent with the rights of the Lenders entitled under this **Section 2.14(b)** to share in the benefits of any recovery on such secured claim.

2.15 Increased Costs; Change in Circumstances; Illegality.

(a) If any Change in Law shall:

(i) impose, modify or deem applicable any reserve, special deposit, compulsory loan, insurance charge or similar requirement against assets of, deposits with or for the account of, or credit extended or participated in by, any Lender (except the Reserve Requirement reflected in the LIBOR Rate) or the Issuing Lender;

(ii) subject any Lender or the Issuing Lender to any tax of any kind whatsoever with respect to this Agreement, any Letter of Credit, any participation in a Letter of Credit or any LIBOR Loan made by it, or change the basis of taxation of payments to such Lender or the Issuing Lender in respect thereof (except for Indemnified Taxes or Other Taxes covered by **Section 2.16** and the imposition of, or any change in the rate of, any Excluded Tax payable by such Lender or the Issuing Lender); or

(iii) impose on any Lender or the Issuing Lender or the London interbank market any other condition, cost or expense affecting this Agreement or LIBOR Loans made by such Lender or any Letter of Credit or participation therein;

and the result of any of the foregoing shall be to increase the cost to such Lender of making or maintaining any LIBOR Loan (or of maintaining its obligation to make any such Loan), or to increase the cost to such Lender or the Issuing Lender of participating in, issuing or maintaining any Letter of Credit (or of maintaining its obligation to participate in or to issue any Letter of Credit), or to reduce the amount of any sum received or receivable by such Lender or the Issuing Lender hereunder (whether of principal, interest or any other amount), then, upon request of such Lender or the Issuing Lender, the Borrower will pay to such Lender or the Issuing Lender, as the case may be, such additional amount or amounts as will compensate such Lender or the Issuing Lender, as the case may be, for such additional costs incurred or reduction suffered.

(b) If any Lender or the Issuing Lender determines that any Change in Law affecting such Lender or the Issuing Lender or any Lending Office of such Lender or such Lender's or the Issuing Lender's holding company, if any, regarding capital requirements has or would have the effect of reducing the rate of return on such Lender's or the Issuing Lender's capital or on the capital of such Lender's or the Issuing Lender's holding company, if any, as a consequence of this Agreement, the Commitments of such Lender or the Loans made by, or participations in Letters of Credit held by, such Lender, or the Letters of Credit issued by such Issuing Lender, to a level below that which such Lender or such Issuing Lender or such Lender's or the Issuing Lender's holding company could have achieved but for such Change in Law (taking into consideration such Lender's or the Issuing Lender's policies and the policies of such Lender's or the Issuing Lender's holding company with respect to capital adequacy), then from time to time the Borrower will pay to such Lender or the Issuing Lender, as the case may be, such additional amount or amounts as will compensate such Lender or the Issuing Lender or such Lender's or the Issuing Lender's holding company for any such reduction suffered."

(c) A certificate of a Lender (which shall be in reasonable detail) setting forth the amount or amounts necessary to compensate such Lender or its holding company, as specified in **Section 2.15(a)** or **Section 2.15(b)** and delivered to the Borrower shall be conclusive absent manifest error. The Borrower shall pay such Lender, the amount shown as due on any such certificate within ten (10) Business Days after receipt thereof.

(d) Failure or delay on the part of any Lender to demand compensation pursuant to the foregoing provisions of this Section shall not constitute a waiver of such Lender's right to

demand such compensation, provided that the Borrower shall not be required to compensate a Lender pursuant to the foregoing provisions of this Section for any increased costs incurred or reductions suffered more than 180 days prior to the date that such Lender, notifies the Borrower of the Change in Law giving rise to such increased costs or reductions and of such Lender's intention to claim compensation therefor (except that, if the Change in Law giving rise to such increased costs or reductions is retroactive, then the 180 day period referred to above shall be extended to include the period of retroactive effect thereof).

(e) If, on or prior to the first day of any Interest Period, (y) the Administrative Agent shall have determined in good faith that adequate and reasonable means do not exist for ascertaining the applicable LIBOR Rate for such Interest Period or (z) the Administrative Agent shall have received written notice from the Required Lenders of their determination in good faith that the rate of interest referred to in the definition of "LIBOR Rate" upon the basis of which the Adjusted LIBOR Rate for LIBOR Loans for such Interest Period is to be determined will not adequately and fairly reflect the cost to such Lenders of making or maintaining LIBOR Loans during such Interest Period, the Administrative Agent will forthwith so notify the Borrower and the Lenders. Upon such notice, (i) all then outstanding LIBOR Loans shall automatically, on the expiration date of the respective Interest Periods applicable thereto (unless then repaid in full), be converted into Base Rate Loans, (ii) the obligation of the Lenders to make, to convert Base Rate Loans into, or to continue, LIBOR Loans shall be suspended (including pursuant to the Borrowing to which such Interest Period applies), and (iii) any Notice of Borrowing or Notice of Conversion/Continuation given at any time thereafter with respect to LIBOR Loans shall be deemed to be a request for Base Rate Loans, in each case until the Administrative Agent or the Required Lenders, as the case may be, shall have determined that the circumstances giving rise to such suspension no longer exist (and the Required Lenders, if making such determination, shall have so notified the Administrative Agent), and the Administrative Agent shall have so notified the Borrower and the Lenders.

(f) Notwithstanding any other provision in this Agreement, if, at any time after the date hereof and from time to time, any Lender shall have determined in good faith that the introduction of or any change in any applicable law, rule or regulation or in the interpretation or administration thereof by any Governmental Authority charged with the interpretation or administration thereof, or compliance with any guideline or request from any such Governmental Authority (whether or not having the force of law), has or would have the effect of making it unlawful for such Lender to make or to continue to make or maintain LIBOR Loans, such Lender will forthwith so notify the Administrative Agent and the Borrower. Upon such notice, (i) each of such Lender's then outstanding LIBOR Loans shall automatically, on the expiration date of the respective Interest Period applicable thereto (or, to the extent any such LIBOR Loan may not lawfully be maintained as a LIBOR Loan until such expiration date, upon such notice) and to the extent not sooner prepaid, be converted into a Base Rate Loan, (ii) the obligation of such Lender to make, to convert Base Rate Loans into, or to continue, LIBOR Loans shall be suspended (including pursuant to any Borrowing for which the Administrative Agent has received a Notice of Borrowing but for which the Borrowing Date has not arrived), and (iii) any Notice of Borrowing or Notice of Conversion/Continuation given at any time thereafter with respect to LIBOR Loans shall, as to such Lender, be deemed to be a request for a Base Rate Loan, in each case until such Lender shall have determined that the circumstances giving rise to such suspension no longer exist and shall have so notified the Administrative Agent, and the Administrative Agent shall have so notified the Borrower.

2.16 Taxes.

(a) Any and all payments by or on account of any obligation of the Borrower hereunder or under any other Credit Document shall be made free and clear of and without reduction or withholding for any Indemnified Taxes or Other Taxes, provided that if the Borrower shall be required by applicable law to deduct any Indemnified Taxes (including any Other Taxes) from such payments, then (i) the sum payable shall be increased as necessary so that after making all required deductions (including deductions applicable to additional sums payable under this Section) the Administrative Agent or Lender, as the case may be, receives an amount equal to the sum it would have received had no such deductions been made, (ii) the Borrower shall make such deductions and (iii) the Borrower shall timely pay the full amount deducted to the relevant Governmental Authority in accordance with applicable law.

(b) Without limiting the provisions of **Section 2.16(a)**, the Borrower shall timely pay any Other Taxes to the relevant Governmental Authority in accordance with applicable law.

(c) The Borrower shall indemnify the Administrative Agent and each Lender, within ten (10) Business Days after demand therefor, for the full amount of any Indemnified Taxes or Other Taxes (including Indemnified Taxes or Other Taxes imposed or asserted on or attributable to amounts payable under this Section) paid by the Administrative Agent or such Lender, as the case may be, and any penalties, interest and reasonable expenses arising therefrom or with respect thereto, whether or not such Indemnified Taxes or Other Taxes were correctly or legally imposed or asserted by the relevant Governmental Authority. A certificate (which shall be in reasonable detail) as to the amount of such payment or liability delivered to the Borrower by a Lender (with a copy to the Administrative Agent), or by the Administrative Agent on its own behalf or on behalf of a Lender, shall be conclusive absent manifest error. The Administrative Agent and each Lender agrees to cooperate with any reasonable request made by the Borrower in respect of a claim of a refund in respect of Indemnified Taxes as to which it has been indemnified by the Borrower or with respect to which the Borrower has paid additional amounts pursuant to this **Section 2.16** if (i) the Borrower has agreed in writing to pay all of the Administrative Agent's or such Lender's reasonable out-of-pocket costs and expenses relating to such claim, (ii) the Administrative Agent or such Lender determines, in its good faith judgment, that it would not be disadvantaged, unduly burdened or prejudiced as a result of such claim and (iii) the Borrower furnishes, upon request of the Administrative Agent or such Lender, an opinion of tax counsel (such opinion and such counsel to be reasonably acceptable to the Administrative Agent or such Lender) to the effect that such Indemnified Taxes were wrongly or illegally imposed.

(d) As soon as practicable after any payment of Indemnified Taxes or Other Taxes by the Borrower to a Governmental Authority, the Borrower shall deliver to the Administrative Agent the original or a certified copy of a receipt issued by such Governmental Authority evidencing such payment, a copy of the return reporting such payment or other evidence of such payment reasonably satisfactory to the Administrative Agent.

(e) Any Foreign Lender that is entitled to an exemption from or reduction of withholding tax under the law of the jurisdiction in which the Borrower is resident for tax purposes, or any treaty to which such jurisdiction is a party, with respect to payments hereunder or under any other Credit Document shall deliver to the Borrower (with a copy to the Administrative Agent), at the time or times prescribed by applicable law or reasonably requested by the Borrower or the Administrative Agent, such properly completed and executed documentation prescribed by applicable law as will permit such payments to be made without withholding or at a reduced rate of withholding. In addition, any Lender, if requested by the Borrower or the Administrative Agent, shall deliver such other documentation prescribed by applicable law or reasonably requested by the Borrower or the Administrative Agent as will enable the Borrower or the Administrative Agent to determine whether or not such Lender is subject to backup withholding or information reporting requirements.

Without limiting the generality of the foregoing, in the event that the Borrower is resident for tax purposes in the United States, any Foreign Lender shall deliver to the Borrower and the Administrative Agent (in such number of copies as shall be requested by the recipient) on or prior to the date on which such Foreign Lender becomes a Lender under this Agreement (and from time to time thereafter upon the request of the Borrower or the Administrative Agent, but only if such Foreign Lender is legally entitled to do so), whichever of the following is applicable:

(i) duly completed copies of Internal Revenue Service Form W-8BEN claiming eligibility for benefits of an income tax treaty to which the United States is a party,

(ii) duly completed copies of Internal Revenue Service Form W-8ECI,

(iii) in the case of a Foreign Lender claiming the benefits of the exemption for portfolio interest under Section 881(c) of the Code,

(x) a certificate to the effect that such Foreign Lender is not (A) a “bank” within the meaning of Section 881(c)(3)(A) of the Code, (B) a “10 percent shareholder” of the Borrower within the meaning of Section 881(c)(3)(B) of the Code, or (C) a “controlled foreign corporation” described in Section 881(c)(3)(C) of the Code and (y) duly completed copies of Internal Revenue Service Form W-8BEN, or

(iv) any other form prescribed by applicable law as a basis for claiming exemption from or a reduction in United States Federal withholding tax duly completed together with such supplementary documentation as may be prescribed by applicable law to permit the Borrower to determine the withholding or deduction required to be made.

(f) If the Administrative Agent or any Lender determines that it has received a refund of any Taxes or Other Taxes as to which it has been indemnified by the Borrower or with respect to which the Borrower has paid additional amounts pursuant to this Section, it shall pay to the Borrower an amount equal to such refund (but only to the extent of indemnity payments made, or additional amounts paid, by the Borrower under this Section with respect to the Taxes or Other Taxes giving rise to such refund), net of all out-of-pocket expenses of the Administrative Agent or such Lender, as the case may be, and without interest (other than any interest paid by the relevant Governmental Authority with respect to such refund), provided that the Borrower, upon

the request of the Administrative Agent or such Lender, agrees to repay the amount paid over to the Borrower (plus any penalties, interest or other charges imposed by the relevant Governmental Authority) to the Administrative Agent or such Lender in the event the Administrative Agent or such Lender is required to repay such refund to such Governmental Authority. This **Section 2.16(f)** shall not be construed to require the Administrative Agent or any Lender to make available its tax returns (or any other information relating to its taxes that it deems confidential) to the Borrower or any other Person.

2.17 Compensation. The Borrower will compensate each Lender upon demand for all losses, expenses and liabilities (including, without limitation, any loss, expense or liability incurred by reason of the liquidation or reemployment of deposits or other funds required by such Lender to fund or maintain LIBOR Loans) that such Lender may incur or sustain (i) if for any reason (other than a default by such Lender) a Borrowing or continuation of, or conversion into, a LIBOR Loan does not occur on a date specified therefor in a Notice of Borrowing or Notice of Conversion/Continuation, (ii) if any repayment, prepayment or conversion of any LIBOR Loan occurs on a date other than the last day of an Interest Period applicable thereto (including as a consequence of any assignment made pursuant to **Section 2.18(a)** or any acceleration of the maturity of the Loans pursuant to **Section 8.2**), (iii) if any prepayment of any LIBOR Loan is not made on any date specified in a notice of prepayment given by the Borrower or (iv) as a consequence of any other failure by the Borrower to make any payments with respect to any LIBOR Loan when due hereunder. Calculation of all amounts payable to a Lender under this **Section 2.17** shall be made as though such Lender had actually funded its relevant LIBOR Loan through the purchase of a Eurodollar deposit bearing interest at the LIBOR Rate in an amount equal to the amount of such LIBOR Loan, having a maturity comparable to the relevant Interest Period; provided, however, that each Lender may fund its LIBOR Loans in any manner it sees fit and the foregoing assumption shall be utilized only for the calculation of amounts payable under this **Section 2.17** . A certificate (which shall be in reasonable detail) showing the bases for the determinations set forth in this **Section 2.17** by any Lender as to any additional amounts payable pursuant to this **Section 2.17** shall be submitted by such Lender to the Borrower either directly or through the Administrative Agent. Determinations set forth in any such certificate made in good faith for purposes of this **Section 2.17** of any such losses, expenses or liabilities shall be conclusive absent manifest error.

2.18 Replacement of Lenders; Mitigation of Costs.

(a) The Borrower may, at any time (other than after the occurrence and during the continuance of an Event of Default) at its sole expense and effort, require any Lender (i) that has requested compensation from the Borrower under **Sections 2.15(a)** or **2.15(b)** or payments from the Borrower under **Section 2.16** , or (ii) the obligation of which to make or maintain LIBOR Loans or any funded participations in Letters of Credit not refinanced through the Borrowing of Revolving Loans has been suspended under **Section 2.15(f)** or (iii) that is a Defaulting Lender or a Nonconsenting Lender, in any case upon notice to such Lender and the Administrative Agent, to assign and delegate, without recourse (in accordance with and subject to the restrictions contained in, and consents required by, **Section 10.6**), all of its interests, rights and obligations under this Agreement and the related Credit Documents to an assignee that shall assume such obligations (which assignee may be another Lender, if a Lender accepts such assignment); provided that:

(i) the Administrative Agent shall have received the assignment fee specified in **Section 10.6(b)(iv)** , which fee shall be payable by the Borrower or such assignee;

(ii) such Lender shall have received payment of an amount equal to the outstanding principal of its Loans, accrued interest thereon, accrued fees and all other amounts payable to it hereunder and under the other Credit Documents (including any amounts under **Section 2.17**) from the assignee (to the extent of such outstanding principal and accrued interest and fees) or the Borrower (in the case of all other amounts);

(iii) in the case of any such assignment resulting from a request for compensation under **Sections 2.15(a)** or **2.15(b)** or payments required to be made pursuant to **Section 2.16**, such assignment will result in a reduction in such compensation or payments thereafter;

(iv) in the case of an assignment of the interests, rights and obligations under this Agreement and the related Credit Documents of a Nonconsenting Lender, such assignee shall have approved (or shall approve) such consent, waiver or amendment that resulted in the Nonconsenting Lender becoming a Nonconsenting Lender; and

(v) such assignment does not conflict with applicable Requirements of Law.

A Lender shall not be required to make any such assignment or delegation if, prior thereto, as a result of a waiver by such Lender or otherwise, the circumstances entitling the Borrower to require such assignment and delegation cease to apply.

(b) If any Lender requests compensation under **Sections 2.15(a)** or **2.15(b)**, or the Borrower is required to pay any additional amount to any Lender or any Governmental Authority for the account of any Lender pursuant to **Section 2.16**, or if any Lender gives a notice pursuant to **Section 2.15(f)**, then such Lender shall use reasonable efforts to designate a different Lending Office for funding or booking its Loans hereunder or to assign its rights and obligations hereunder to another of its offices, branches or affiliates, if, in the judgment of such Lender, such designation or assignment (i) would eliminate or reduce amounts payable pursuant to **Sections 2.15(a)**, **2.15(b)** or **2.16**, as the case may be, in the future, or eliminate the need for the notice pursuant to **Section 2.15(f)**, as applicable, and (ii) in each case, would not subject such Lender to any unreimbursed cost or expense and would not otherwise be disadvantageous to such Lender. The Borrower hereby agrees to pay all reasonable costs and expenses incurred by any Lender in connection with any such designation or assignment.

2.19 Letters of Credit.

(a) Issuance. Subject to and upon the terms and conditions herein set forth, so long as no Default or Event of Default has occurred and is continuing, the Issuing Lender will, at any time and from time to time on and after the Closing Date and prior to the earlier of (i) the Letter of Credit Maturity Date and (ii) the Revolving Credit Termination Date, and upon request by the Borrower in accordance with the provisions of **Section 3.2**, issue for the account of the Borrower or any of its Subsidiaries one or more irrevocable standby letters of credit denominated in Dollars and in a form customarily used or otherwise approved by the Issuing Lender (together

with all amendments, modifications and supplements thereto, substitutions therefor and renewals and restatements thereof, collectively, the “Letters of Credit”). The Stated Amount of each Letter of Credit shall not be less than \$100,000.00. Notwithstanding the foregoing:

(i) No Letter of Credit shall be issued if the Stated Amount upon issuance when added to the Aggregate Revolving Credit Exposure, would exceed the aggregate Revolving Credit Commitments at such time;

(ii) Notwithstanding that a Letter of Credit issued or outstanding hereunder is in support of any obligations of, or is for the account of, or otherwise will benefit, a Subsidiary of the Borrower, the Borrower shall be obligated to reimburse the Issuing Lender hereunder for any and all drawings under such Letter of Credit (and the Borrower hereby acknowledges that the issuance of Letters of Credit for the benefit of its Subsidiaries inures to the benefit of the Borrower and that the Borrower’s business derives substantial benefits from the businesses of such Subsidiaries);

(iii) No Letter of Credit shall be issued that by its terms expires later than the Letter of Credit Maturity Date or, in any event, more than one year after its date of issuance; provided, however, that a Letter of Credit may, if requested by the Borrower, provide by its terms, and on terms acceptable to the Issuing Lender, for renewal for successive periods of one year or less (but not beyond the Letter of Credit Maturity Date), unless and until the Issuing Lender shall have delivered a notice of nonrenewal to the beneficiary of such Letter of Credit; and

(iv) The Issuing Lender shall be under no obligation to issue any Letter of Credit if, at the time of such proposed issuance, (A) any order, judgment or decree of any Governmental Authority or arbitrator shall purport by its terms to enjoin or restrain the Issuing Lender from issuing such Letter of Credit, or any Requirement of Law applicable to the Issuing Lender or any request or directive (whether or not having the force of law) from any Governmental Authority with jurisdiction over the Issuing Lender shall prohibit, or request that the Issuing Lender refrain from, the issuance of letters of credit generally or such Letter of Credit in particular or shall impose upon the Issuing Lender with respect to such Letter of Credit any restriction or reserve or capital requirement (for which the Issuing Lender is not otherwise compensated) not in effect on the Second Amendment Effective Date, or any unreimbursed loss, cost or expense that was not applicable, in effect or known to the Issuing Lender as of the Second Amendment Effective Date and that the Issuing Lender in good faith deems material to it, (B) the Issuing Lender shall have actual knowledge, or shall have received notice from any Lender, prior to the issuance of such Letter of Credit that one or more of the conditions specified in **Section 3.2** are not then satisfied (or have not been waived in writing as required herein) or that the issuance of such Letter of Credit would violate the provisions of **Section 2.19(a)** or (C) any Lender is at such time a Defaulting Lender hereunder, unless the Issuing Lender has entered into satisfactory arrangements with the Borrower or such Lender to eliminate the Issuing Lender’s risk with respect to such Lender.

(b) Notices. Whenever the Borrower desires the issuance of a Letter of Credit, the Borrower will give the Issuing Lender written notice with a copy to the Administrative Agent not

later than 11:00 a.m., Charlotte time, three Business Days (or such shorter period as is acceptable to the Issuing Lender in any given case) prior to the requested date of issuance thereof. Each such notice (each, a “Letter of Credit Notice”) shall be irrevocable, shall be given in the form of **Exhibit B-4** and shall specify (i) the requested date of issuance, which shall be a Business Day, (ii) the requested Stated Amount and expiry date of the Letter of Credit, and (iii) the name and address of the requested beneficiary or beneficiaries of the Letter of Credit. The Borrower will also complete any application procedures and documents reasonably required by the Issuing Lender in connection with the issuance of any Letter of Credit. Upon its issuance of any Letter of Credit, the Issuing Lender will promptly notify the Administrative Agent of such issuance, and the Administrative Agent will give prompt notice thereof to each Revolving Credit Lender. The renewal or extension of any outstanding Letter of Credit shall, for purposes of this **Section 2.19**, be treated in all respects as the issuance of a new Letter of Credit.

(c) **Participations**. Immediately upon the issuance of any Letter of Credit, the Issuing Lender shall be deemed to have sold and transferred to each Revolving Credit Lender, and each Revolving Credit Lender shall be deemed irrevocably and unconditionally to have purchased and received from the Issuing Lender, without recourse or warranty (except for the absence of Liens thereon created, incurred or suffered to exist by, through or under the Issuing Lender), an undivided interest and participation, pro rata (based on the proportion that its Revolving Credit Commitment bears to the aggregate Revolving Credit Commitments at such time, or if the Revolving Credit Commitments have been terminated, based on the proportion that its Revolving Credit Commitment bears to the aggregate Revolving Credit Commitments, in each case immediately prior to the termination thereof), in such Letter of Credit, each drawing made thereunder and the obligations of the Borrower under this Agreement with respect thereto and any guaranty pertaining thereto; provided, however, that the fee relating to Letters of Credit described in **Section 2.9(d)** shall be payable directly to the Issuing Lender as provided therein, and the other Revolving Credit Lenders shall have no right to receive any portion thereof. In consideration and in furtherance of the foregoing, each Revolving Credit Lender hereby absolutely and unconditionally agrees to pay to the Administrative Agent, for the account of the Issuing Lender, such Lender’s pro rata share (determined as provided above) of each Reimbursement Obligation not reimbursed by the Borrower on the date due as provided in **Section 2.19(d)** or through the Borrowing of Revolving Loans as provided in **Section 2.19(e)** (because the conditions set forth in **Section 3.2** cannot be satisfied, or for any other reason), or of any reimbursement payment required to be refunded to the Borrower for any reason. Upon any change in the Revolving Credit Commitments of any of the Revolving Credit Lenders pursuant to **Section 10.6**, with respect to all outstanding Letters of Credit and Reimbursement Obligations there shall be an automatic adjustment to the participations pursuant to this **Section 2.19(c)** to reflect the new pro rata shares of the assigning Lender and the assignee. Each Revolving Credit Lender’s obligation to make payment to the Issuing Lender pursuant to this **Section 2.19(c)** shall be absolute and unconditional and shall not be affected by any circumstance whatsoever, including the termination of the Revolving Credit Commitments or the existence of any Default or Event of Default, and each such payment shall be made without any offset, abatement, reduction or withholding whatsoever.

(d) **Reimbursement**. The Borrower hereby agrees to reimburse the Issuing Lender by making payment to the Administrative Agent, for the account of the Issuing Lender, in immediately available funds, for any payment made by the Issuing Lender under any Letter of

Credit (each such amount so paid until reimbursed, together with interest thereon payable as provided hereinbelow, a “Reimbursement Obligation”) immediately upon, and in any event on the same Business Day as, the making of such payment by the Issuing Lender (provided that any such Reimbursement Obligation shall be deemed timely satisfied (but nevertheless subject to the payment of interest thereon as provided hereinbelow) if satisfied pursuant to a Borrowing of Revolving Loans made on the date of such payment by the Issuing Lender, as set forth more completely in **Section 2.19(e)**), together with interest on the amount so paid by the Issuing Lender, to the extent not reimbursed prior to 2:00 p.m., Charlotte time, on the date of such payment or disbursement, for the period from the date of the respective payment to the date the Reimbursement Obligation created thereby is satisfied, at the Adjusted Base Rate applicable to Revolving Loans as in effect from time to time during such period, such interest also to be payable on demand. The Issuing Lender will provide the Administrative Agent and the Borrower with prompt notice of any payment or disbursement made or to be made under any Letter of Credit, although the failure to give, or any delay in giving, any such notice shall not release, diminish or otherwise affect the Borrower’s obligations under this **Section 2.19(d)** or any other provision of this Agreement. The Administrative Agent will promptly pay to the Issuing Lender any such amounts received by it under this **Section 2.19(d)** .

(e) Payment by Revolving Loans . In the event that the Issuing Lender makes any payment under any Letter of Credit and the Borrower shall not have timely satisfied in full its Reimbursement Obligation to the Issuing Lender pursuant to **Section 2.19(d)** , and to the extent that any amounts then held in the Cash Collateral Account established pursuant to **Section 2.19(h)** shall be insufficient to satisfy such Reimbursement Obligation in full, the Issuing Lender will promptly notify the Administrative Agent, and the Administrative Agent will promptly notify each Revolving Credit Lender, of such failure. If the Administrative Agent gives such notice prior to 12:00 noon, Charlotte time, on any Business Day, each Revolving Credit Lender will make available to the Administrative Agent, for the account of the Issuing Lender, its pro rata share (based on the percentage of the aggregate Revolving Credit Commitments represented by such Lender’s Revolving Credit Commitment) of the amount of such payment on such Business Day in immediately available funds. If the Administrative Agent gives such notice after 12:00 noon, Charlotte time, on any Business Day, each such Revolving Credit Lender shall make its pro rata share of such amount available to the Administrative Agent on the next succeeding Business Day. If and to the extent any Revolving Credit Lender shall not have so made its pro rata share of the amount of such payment available to the Administrative Agent, such Lender agrees to pay to the Administrative Agent, for the account of the Issuing Lender, forthwith on demand such amount, together with interest thereon at the Federal Funds Rate for each day from such date until the date such amount is paid to the Administrative Agent. The failure of any Revolving Credit Lender to make available to the Administrative Agent its pro rata share of any payment under any Letter of Credit shall not relieve any other Revolving Credit Lender of its obligation hereunder to make available to the Administrative Agent its pro rata share of any payment under any Letter of Credit on the date required, as specified above, but no Revolving Credit Lender shall be responsible for the failure of any other Revolving Credit Lender to make available to the Administrative Agent such other Revolving Credit Lender’s pro rata share of any such payment. Each such payment by a Revolving Credit Lender under this **Section 2.19(e)** of its pro rata share of an amount paid by the Issuing Lender shall constitute a Revolving Loan by such Revolving Credit Lender (the Borrower being deemed to have given a timely Notice of Borrowing therefor) and shall be treated as such for all purposes of this

Agreement; provided that for purposes of determining the aggregate Unutilized Revolving Credit Commitments immediately prior to giving effect to the application of the proceeds of such Revolving Loans, the Reimbursement Obligation being satisfied thereby shall be deemed not to be outstanding at such time. Each Revolving Credit Lender's obligation to make Revolving Loans pursuant to this **Section 2.19(e)** shall be absolute and unconditional and shall not be affected by any circumstance whatsoever, including, without limitation, the failure of the amount of such Borrowing of Revolving Loans to meet the minimum Borrowing amount specified in **Section 2.2(b)** ; provided , however , that each Revolving Credit Lender's obligation to make Revolving Loans pursuant to this **Section 2.19(e)** is subject to the conditions set forth in **Section 3.2** (other than delivery by the Borrower of a Notice of Borrowing).

(f) Payment to Revolving Credit Lenders . Whenever the Issuing Lender receives a payment in respect of a Reimbursement Obligation as to which the Administrative Agent has received, for the account of the Issuing Lender, any payments from the Revolving Credit Lenders pursuant to **Section 2.19(e)** , the Issuing Lender will promptly pay to the Administrative Agent, and the Administrative Agent will promptly pay to each Revolving Credit Lender that has paid its pro rata share thereof, in immediately available funds, an amount equal to such Revolving Credit Lender's ratable share (based on the proportionate amount funded by such Revolving Credit Lender to the aggregate amount funded by all Revolving Credit Lenders) of such Reimbursement Obligation.

(g) Obligations Absolute . The Reimbursement Obligations of the Borrower shall be irrevocable, shall remain in effect until the Issuing Lender shall have no further obligations to make any payments or disbursements under any circumstances with respect to any Letter of Credit, and shall be absolute and unconditional, shall not be subject to counterclaim, setoff or other defense or any other qualification or exception whatsoever and shall be made in accordance with the terms and conditions of this Agreement under all circumstances, including, without limitation, any of the following circumstances:

(i) Any lack of validity or enforceability of this Agreement, any of the other Credit Documents or any documents or instruments relating to any Letter of Credit;

(ii) Any change in the time, manner or place of payment of, or in any other term of, all or any of the Obligations in respect of any Letter of Credit or any other amendment, modification or waiver of or any consent to departure from any Letter of Credit or any documents or instruments relating thereto, in each case whether or not the Borrower has notice or knowledge thereof;

(iii) The existence of any claim, setoff, defense or other right that the Borrower may have at any time against a beneficiary named in a Letter of Credit, any transferee of any Letter of Credit (or any Person for whom any such transferee may be acting), the Administrative Agent, the Issuing Lender, any Lender or other Person, whether in connection with this Agreement, any Letter of Credit, the transactions contemplated hereby or any unrelated transactions (including any underlying transaction between the Borrower and the beneficiary named in any such Letter of Credit);

(iv) Any draft, certificate or any other document presented under the Letter of Credit proving to be forged, fraudulent, invalid or insufficient in any respect or any statement therein being untrue or inaccurate in any respect (provided that such draft, certificate or other document appears on its face to comply with the terms of such Letter of Credit), any errors, omissions, interruptions or delays in transmission or delivery of any messages, by mail, telecopier or otherwise, or any errors in translation or in interpretation of technical terms;

(v) Any defense based upon the failure of any drawing under a Letter of Credit to conform to the terms of the Letter of Credit (provided that any draft, certificate or other document presented pursuant to such Letter of Credit appears on its face to comply with the terms thereof), any nonapplication or misapplication by the beneficiary or any transferee of the proceeds of such drawing or any other act or omission of such beneficiary or transferee in connection with such Letter of Credit;

(vi) The exchange, release, surrender or impairment of any collateral or other security for the Obligations;

(vii) The occurrence of any Default or Event of Default; or

(viii) Any other circumstance or event whatsoever, including, without limitation, any other circumstance that might otherwise constitute a defense available to, or a discharge of, the Borrower or a Guarantor.

Any action taken or omitted to be taken by the Issuing Lender under or in connection with any Letter of Credit, if taken or omitted in the absence of gross negligence or willful misconduct, shall be binding upon the Borrower and each Lender and shall not create or result in any liability of the Issuing Lender to the Borrower or any Lender. It is expressly understood and agreed that, for purposes of determining whether a wrongful payment under a Letter of Credit resulted from the Issuing Lender's gross negligence or willful misconduct, (i) the Issuing Lender's acceptance of documents that appear on their face to comply with the terms of such Letter of Credit, without responsibility for further investigation, regardless of any notice or information to the contrary, (ii) the Issuing Lender's exclusive reliance on the documents presented to it under such Letter of Credit as to any and all matters set forth therein, including the amount of any draft presented under such Letter of Credit, whether or not the amount due to the beneficiary thereunder equals the amount of such draft and whether or not any document presented pursuant to such Letter of Credit proves to be insufficient in any respect (so long as such document appears on its face to comply with the terms of such Letter of Credit), and whether or not any other statement or any other document presented pursuant to such Letter of Credit proves to be forged or invalid or any statement therein proves to be inaccurate or untrue in any respect whatsoever, and (iii) any noncompliance in any immaterial respect of the documents presented under such Letter of Credit with the terms thereof shall, in each case, be deemed not to constitute gross negligence or willful misconduct of the Issuing Lender.

(h) Cash Collateral Account. At any time and from time to time (i) after the occurrence and during the continuance of an Event of Default, the Administrative Agent may, and at the direction or with the consent of the Required Revolving Lenders shall, require the

Borrower to deliver to the Administrative Agent such additional amount of cash as is equal to 100% of the aggregate Stated Amount of all Letters of Credit at any time outstanding (whether or not any beneficiary under any Letter of Credit shall have drawn or be entitled at such time to draw thereunder) and (ii) in the event of a prepayment under **Section 2.6(c)**, the Administrative Agent will retain such amount as may then be required to be retained, such amounts to be held by the Administrative Agent in a cash collateral account (the “Cash Collateral Account”). The Borrower hereby grants to the Administrative Agent, for the benefit of the Issuing Lender and the Lenders, a Lien upon and security interest in the Cash Collateral Account and all amounts held therein from time to time as security for Letter of Credit Exposure, and for application to the Borrower’s Reimbursement Obligations as and when the same shall arise. The Administrative Agent shall have exclusive dominion and control, including the exclusive right of withdrawal, over such account. Other than any interest on the investment of such amounts in Cash Equivalents, which investments shall be made at the direction of the Borrower (unless a Default or Event of Default shall have occurred and be continuing, in which case the determination as to investments shall be made at the option and in the discretion of the Administrative Agent), amounts in the Cash Collateral Account shall not bear interest. Interest and profits, if any, on such investments shall accumulate in such account. In the event of a drawing, and subsequent payment by the Issuing Lender, under any Letter of Credit at any time during which any amounts are held in the Cash Collateral Account, the Administrative Agent will deliver to the Issuing Lender an amount equal to the Reimbursement Obligation created as a result of such payment (or, if the amounts so held are less than such Reimbursement Obligation, all of such amounts) to reimburse the Issuing Lender therefor. Any amounts remaining in the Cash Collateral Account (including interest) after the expiration of all Letters of Credit and reimbursement in full of the Issuing Lender for all of its obligations thereunder shall be held by the Administrative Agent, for the benefit of the Borrower, to be applied against the Obligations in such order and manner as the Administrative Agent may direct. If the Borrower is required to provide cash collateral pursuant to **Section 2.6(c)**, such amount (including interest), to the extent not applied as aforesaid, shall be returned to the Borrower on demand, provided that after giving effect to such return (i) the Aggregate Revolving Credit Exposure would not exceed the aggregate Revolving Credit Commitments at such time and (ii) no Default or Event of Default shall have occurred and be continuing at such time. If the Borrower is required to provide cash collateral as a result of an Event of Default, such amount (to the extent not applied as aforesaid) shall be returned to the Borrower within three Business Days after all Events of Default have been cured or waived.

(i) The Issuing Lender. The Issuing Lender shall act on behalf of the Lenders with respect to any Letters of Credit issued by it and the documents associated therewith, and the Issuing Lender shall have all of the rights, benefits and immunities (a) provided to the Administrative Agent in **Article IX** with respect to any acts taken or omissions suffered by it in connection with Letters of Credit issued by it or proposed to be issued by it and any documents pertaining to such Letters of Credit as fully as if the term “Administrative Agent” as used in **Article IX** included the Issuing Lender with respect to such acts or omissions, and (b) as additionally provided herein with respect to the Issuing Lender.

(j) Effectiveness. Notwithstanding any termination of the Revolving Credit Commitments or repayment of the Loans, or both, the obligations of the Borrower under this **Section 2.19** shall remain in full force and effect until the Issuing Lender and the Revolving Credit Lenders shall have no further obligations to make any payments or disbursements under any circumstances with respect to any Letter of Credit.

2.20 Defaulting Lenders. Notwithstanding anything contained in this Agreement to the contrary, in the event that any Lender becomes a Defaulting Lender due to its failure to fund any Revolving Loan (including, without limitation, any Revolving Loan made for the purpose of repaying Refunded Swingline Loans pursuant to **Section 2.2(e)** or for the purpose of paying unpaid Reimbursement Obligations pursuant to **Section 2.19(e)**), or any participation interest in Letters of Credit or Swingline Loans, requested and permitted to be made hereunder in accordance with the terms hereof (each, a “ Funding Default ”), then to the extent permitted by applicable law, until such time as each such Funding Default has been cured, (i) any prepayment of the Revolving Loans shall, if the Borrower so directs at the time of making such prepayment, be applied to the Revolving Loans of other Lenders as if such Defaulting Lender had no Revolving Loans outstanding and the Revolving Credit Exposure of such Defaulting Lender was zero; (ii) such Defaulting Lender shall not be entitled to receive any commitment fee or letter of credit fee pursuant to **Section 2.9** ; and (iii) the Aggregate Revolving Credit Exposure as at any date of determination shall be calculated as if no Funding Default shall exist. No Revolving Credit Commitment of any Lender shall be increased or otherwise affected, and, except as otherwise expressly provided in this **Section 2.20** , performance by the Borrower of its obligations hereunder and the other Credit Documents shall not be excused or otherwise modified as a result of any Funding Default or the operation of this **Section 2.20** . The rights and remedies against a Defaulting Lender under this **Section 2.20** are in addition to other rights and remedies which the Borrower may have against such Defaulting Lender with respect to any Funding Default and which Administrative Agent or any Lender may have against such Defaulting Lender with respect to any Funding Default.

ARTICLE III

CONDITIONS OF BORROWING

3.1 Conditions of Initial Borrowing. The obligation of each Lender to make Loans in connection with the initial Borrowing hereunder is subject to the satisfaction of the following conditions precedent:

(a) The Administrative Agent shall have received the following, each of which shall be originals or telecopies or in an electronic format acceptable to the Administrative Agent (followed promptly by originals) unless otherwise specified, each properly executed by a Responsible Officer of the applicable Credit Party, each dated as of the Closing Date (or, in the case of certificates of governmental officials, a recent date prior to the Closing Date) and each in a form and substance reasonably satisfactory to the Administrative Agent and each of the Lenders:

(i) executed counterparts of this Agreement in such number of copies as the Administrative Agent shall have required;

(ii) to the extent requested by any Lender in accordance with **Section 2.4(d)**, a Note or Notes for such Lender, in each case duly completed in accordance with the provisions of **Section 2.4(d)** and executed by the Borrower;

(iii) the Guaranty, duly completed and executed by each Wholly-Owned Subsidiary (other than any Foreign Subsidiary to the extent (and for as long as) doing so would cause adverse tax or regulatory consequences to the Borrower);

(iv) if any LIBOR Loans are to be borrowed prior to the 3rd Business Day after the Closing Date, the Administrative Agent shall have received, 3 days prior to the date such LIBOR Loans are to be borrowed, a pre-funding LIBOR indemnity letter from the Borrower and a completed Notice of Borrowing;

(v) a certificate, signed by an Authorized Officer of the Borrower, certifying that (i) all representations and warranties of the Credit Parties contained in this Agreement and the other Credit Documents qualified as to materiality shall be true and correct and those not so qualified shall be true and correct in all material respects, in each case as of the Closing Date, both immediately before and after giving effect to the transactions contemplated hereby, the making of the initial Loans and the application of the proceeds thereof (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case such representation or warranty shall be true and correct as of such date), (ii) no Default or Event of Default has occurred and is continuing, both immediately before and after giving effect to the transactions contemplated hereby, the making of the initial Loans and the application of the proceeds thereof, (iii) both immediately before and after giving effect to the transactions contemplated hereby, the making of the initial Loans and the application of the proceeds thereof, no Material Adverse Effect has occurred since December 31, 2008, and there exists no event, condition or state of facts that could reasonably be expected to result in a Material Adverse Effect, and (iv) all conditions to the initial extensions of credit hereunder set forth in this **Section 3.1** and in **Section 3.2** have been satisfied or waived as required hereunder;

(vi) a certificate of the secretary or an assistant secretary of each Credit Party executing any Credit Documents as of the Closing Date, certifying (i) that attached thereto is a true and complete copy of the articles or certificate of incorporation, certificate of formation or other organizational document and all amendments thereto of such Credit Party, certified as of a recent date by the Secretary of State (or comparable Governmental Authority) of its jurisdiction of organization, and that the same has not been amended since the date of such certification, (ii) that attached thereto is a true and complete copy of the bylaws, operating agreement or similar governing document of such Credit Party, as then in effect and as in effect at all times from the date on which the resolutions referred to in clause (iii) below were adopted to and including the date of such certificate, and (iii) that attached thereto is a true and complete copy of resolutions adopted by the board of directors (or similar governing body) of such Credit Party, authorizing the execution, delivery and performance of this Agreement and the other Credit Documents to which it is a party, and as to the incumbency and genuineness of the signature of each officer of such Credit Party executing this Agreement or any of such other Credit Documents, and attaching all such copies of the documents described above;

(vii) a certificate as of a recent date of the good standing of each Credit Party executing any Credit Documents as of the Closing Date, under the laws of its jurisdiction of organization, from the Secretary of State (or comparable Governmental Authority) of such jurisdiction; and

(viii) a Financial Conditions Certificate executed by the chief financial officer of the Borrower containing the copies of the financial statements referred to in **Section 4.11** and confirming that, as of the Closing Date, after giving effect to the consummation of the transactions contemplated hereby, the Borrower and its Subsidiaries on a consolidated basis are solvent.

(b) All approvals, permits and consents of any Governmental Authorities, any Self-Regulatory Organizations, or other Persons required in connection the consummation of any of the transactions contemplated hereby shall have been obtained, without the imposition of conditions that are materially adverse to the Administrative Agent or the Lenders; all applicable waiting periods shall have expired without any adverse action being taken or threatened by any Governmental Authority or Self-Regulatory Organization having jurisdiction; and no action, proceeding, investigation, regulation or legislation shall have been instituted, threatened or proposed before, and no order, injunction or decree shall have been entered by, any court or other Governmental Authority or any Self-Regulatory Organization, in each case to enjoin, restrain or prohibit, to obtain substantial damages in respect of, or to impose materially adverse conditions upon, this Agreement, any of the other Credit Documents or the consummation of the transactions contemplated hereby or that could reasonably be expected to have a Material Adverse Effect.

(c) The Borrower shall have (i) amended its existing Credit Agreement, dated as of January 12, 2007, as amended by the First Amendment to Credit Agreement dated as of August 24, 2007 and the Second Amendment to Credit Agreement dated as of June 13, 2008, with Wachovia, as administrative agent, BofA, as syndication agent and the lenders party thereto (the “Existing Credit Facility”) to (x) permit the consummation of the transactions contemplated hereby, (y) terminate the revolving credit commitments of the lenders thereunder, and (z) make certain other amendments thereto requested by the Borrower and reasonably satisfactory to the Administrative Agent and (ii) complied with all terms and conditions in the definitive documentation of such amendment.

(d) Concurrently with the making of the initial Loans hereunder, (i) all principal, interest and other amounts outstanding under the Borrower’s existing Credit Agreement, dated as of June 27, 2008, with Wachovia, as administrative agent, BofA, as syndication agent and the lenders party thereto (the “Terminating Liquidity Credit Facility”), and (ii) all commitments to extend credit under the agreements and instruments relating to the Terminating Liquidity Facility and all guarantees relating thereto shall be terminated; and the Administrative Agent shall have received evidence of the foregoing satisfactory to it.

(e) Concurrently with the making of the initial Loans hereunder, the Borrower shall have entered into the Credit Agreement, dated as of the date hereof, with Wachovia, as administrative agent, BofA, as syndication agent and the lenders party thereto (the “ New Liquidity Facility ”), providing for a 364-day revolving credit facility in the aggregate principal amount of \$300,000,000.

(f) Since December 31, 2008, both immediately before and after giving effect to the transactions contemplated hereby, there shall not have occurred (i) a Material Adverse Effect or (ii) any event, condition or state of facts that could reasonably be expected to have a Material Adverse Effect.

(g) The Borrower shall have paid (i) to the Arrangers, the fees required under the Joint Fee Letter to be paid to them on the Closing Date, in the amounts due and payable on the Closing Date as required by the terms thereof, (ii) to the Administrative Agent, the initial payment of the annual administrative fee described in the Wachovia Fee Letter, and (iii) all other fees and reasonable expenses of the Arrangers, the Administrative Agent and the Lenders required hereunder or under any other Credit Document to be paid on or prior to the Closing Date (including reasonable fees and expenses of counsel) in connection with this Agreement and the other Credit Documents.

(h) The Administrative Agent shall have received an Account Designation Letter, together with written instructions from an Authorized Officer of the Borrower, including wire transfer information, directing the payment of the proceeds of the initial Loans to be made hereunder.

(i) Each of the Administrative Agent and each Lender shall have received such other documents, certificates, opinions and instruments in connection with the transactions contemplated hereby as it shall have reasonably requested (including but not limited to legal opinions of counsel to the Borrower and its Subsidiaries).

3.2 Conditions of All Borrowings. The obligation of each Lender to make any Loans hereunder, including the initial Loans (but excluding Revolving Loans made for the purpose of repaying Refunded Swingline Loans pursuant to **Section 2.2(e)** or for the purpose of paying unpaid Reimbursement Obligations pursuant to **Section 2.19(e)**), and the obligation of the Issuing Lender to issue any Letters of Credit hereunder, is subject to the satisfaction of the following conditions precedent on the relevant Borrowing Date:

(a) The Administrative Agent shall have received a Notice of Borrowing in accordance with **Section 2.2(b)** , or (together with the Swingline Lender) a Notice of Swingline Borrowing in accordance with **Section 2.2(d)** or (together with the Issuing Lender) a Letter of Credit Notice in accordance with **Section 2.19(b)** , as applicable;

(b) Each of the representations and warranties contained in **Article IV** and in the other Credit Documents qualified as to materiality shall be true and correct and those not so qualified shall be true and correct in all material respects, in each case on and as of such Borrowing Date (including the Closing Date, in the case of the initial Loans made hereunder) or such date of issuance of a Letter of Credit with the same effect as if made on and as of such date,

both immediately before and after giving effect to the Loans to be made or Letter of Credit to be issued on such date (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case such representation or warranty shall be true and correct as of such date); and

(c) No Default or Event of Default shall have occurred and be continuing on such date, both immediately before and after giving effect to the Loans to be made or Letter of Credit to be issued on such date.

Each giving of a Notice of Borrowing, a Notice of Swingline Borrowing or a Letter of Credit Notice, and the consummation of each Borrowing or issuance of a Letter of Credit, shall be deemed to constitute a representation by the Borrower that the statements contained in **Sections 3.2(b)** and **3.2(c)** are true, both as of the date of such notice or request and as of the relevant Borrowing Date or date of issuance.

ARTICLE IV

REPRESENTATIONS AND WARRANTIES

To induce the Administrative Agent and the Lenders to enter into this Agreement and to induce the Lenders to extend the credit contemplated hereby, the Borrower represents and warrants to the Administrative Agent and the Lenders as follows:

4.1 Corporate Organization and Power. Each Credit Party (i) is a corporation or a limited liability company duly organized or formed, validly existing and in good standing under the laws of the jurisdiction of its incorporation or formation, as the case may be (which jurisdictions, as of the Closing Date, are set forth on **Schedule 4.1**), (ii) has the full corporate or limited liability company power and authority to execute, deliver and perform the Credit Documents to which it is or will be a party, to own and hold its property and to engage in its business as presently conducted, and (iii) is duly qualified to do business as a foreign corporation or limited liability company and is in good standing in each jurisdiction where the nature of its business or the ownership of its properties requires it to be so qualified, except where the failure to be so qualified, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.2 Authorization; Enforceability. Each Credit Party has taken all necessary corporate or limited liability action, as applicable, to execute, deliver and perform each of the Credit Documents to which it is a party, and has (or on any later date of execution and delivery will have) validly executed and delivered each of the Credit Documents to which it is a party. This Agreement constitutes, and each of the other Credit Documents upon execution and delivery will constitute, the legal, valid and binding obligation of each Credit Party that is a party hereto or thereto, enforceable against it in accordance with its terms, except as enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors' rights generally, by general equitable principles or by principles of good faith and fair dealing (regardless of whether enforcement is sought in equity or at law).

4.3 No Violation. The execution, delivery and performance by each Credit Party of each of the Credit Documents to which it is a party, and compliance by it with the terms hereof and thereof, do not and will not (i) violate any provision of its articles or certificate of incorporation or formation, its bylaws or operating agreement, or other applicable formation or organizational documents, (ii) contravene any other Requirement of Law applicable to it, (iii) conflict with, result in a breach of or constitute (with notice, lapse of time or both) a default under any indenture, mortgage, lease, agreement, contract or other instrument to which it is a party, by which it or any of its properties is bound or to which it is subject, or (iv) result in or require the creation or imposition of any Lien, other than a Permitted Lien, upon any of its properties, revenues or assets; except, in the case of clauses (ii) and (iii) above, where such violations, conflicts, breaches or defaults, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.4 Governmental and Third-Party Authorization; Permits. No consent, approval, authorization or other action by, notice to, or registration or filing with, any Governmental Authority, Self-Regulatory Organization, or other Person is required as a condition to or otherwise in connection with the due execution, delivery and performance by each Credit Party of this Agreement or any of the other Credit Documents to which it is a party or the legality, validity or enforceability hereof or thereof, other than (i) consents, authorizations and filings that have been made or obtained and that are in full force and effect, which consents, authorizations and filings are listed on **Schedule 4.4**, and (ii) consents and filings the failure to obtain or make which, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect. Each Credit Party has, and is in good standing with respect to, all governmental approvals, licenses, permits and authorizations necessary to conduct its business as presently conducted and to own or lease and operate its properties, except for those the failure to obtain which, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.5 Litigation. Except as set forth on **Schedule 4.5**, there are no actions, investigations, suits or proceedings pending or, to the knowledge of the Borrower, threatened, at law, in equity or in arbitration, before any court, other Governmental Authority, Self-Regulatory Organization, arbitrator or other Person, (i) against or affecting any of the Credit Parties or any of their respective properties that, if adversely determined, could reasonably be expected to have a Material Adverse Effect, or (ii) with respect to this Agreement, any of the other Credit Documents or any of the other transactions contemplated hereby or thereby.

4.6 Taxes. Each of the Borrower and its Subsidiaries has timely filed all federal, state, local and foreign tax returns and reports required to be filed by it and has paid, prior to the date on which penalties would attach thereto or a Lien would attach to any of its properties if unpaid, all taxes, assessments, fees and other charges levied upon it or upon its properties that are shown thereon as due and payable, other than those that are not yet delinquent or that are being contested in good faith and by proper proceedings and for which adequate reserves have been established in accordance with GAAP. Such returns accurately reflect in all material respects all liability for taxes of the Borrower and its Subsidiaries for the periods covered thereby. As of the Closing Date, there is no ongoing audit or examination or, to the knowledge of the Borrower, other investigation by any Governmental Authority of the tax liability of any of the Borrower or its Subsidiaries, and there is no material unresolved claim by any Governmental

Authority concerning the tax liability of the Borrower or any of its Subsidiaries for any period for which tax returns have been or were required to have been filed, other than unsecured claims for which adequate reserves have been established in accordance with GAAP. As of the Closing Date, neither the Borrower nor any of its Subsidiaries has waived or extended or has been requested to waive or extend the statute of limitations relating to the payment of any taxes.

4.7 Subsidiaries. **Schedule 4.7** sets forth a list, as of the Closing Date, of all of the Subsidiaries of the Borrower and as to each such Subsidiary, the percentage ownership (direct and indirect) of the Borrower in each class of its Capital Stock and each direct owner thereof.

4.8 Full Disclosure. All factual information heretofore, contemporaneously or hereafter furnished in writing to the Administrative Agent, any Arranger or any Lender by or on behalf of any Credit Party pursuant to this Agreement or the other Credit Documents is or will be true and accurate in all material respects on the date as of which such information is dated or certified (or, if such information has been updated, amended or supplemented, on the date as of which any such update, amendment or supplement is dated or certified) and not made incomplete by omitting to state a material fact necessary to make the statements contained herein and therein, in light of the circumstances under which such information was provided, not misleading; provided that, with respect to projections, budgets and other estimates, except as specifically represented in **Section 4.11(b)**, the Borrower represents only that such information was prepared in good faith based upon assumptions believed to be reasonable at the time. As of the Closing Date, there is no fact known to any Credit Party that has, or could reasonably be expected to have, a Material Adverse Effect, which fact has not been set forth herein, in the consolidated financial statements of the Borrower and its Subsidiaries furnished to the Administrative Agent and/or the Lenders, or in any certificate, opinion or other written statement made or furnished by the Borrower to the Administrative Agent and/or the Lenders.

4.9 Margin Regulations. No Credit Party is engaged principally, or as one of its important activities, in the business of extending credit for the purpose of purchasing or carrying Margin Stock. No proceeds of the Loans will be used, directly or indirectly, to purchase or carry any Margin Stock, to extend credit for such purpose or for any other purpose, in each case that would violate or be inconsistent with Regulations T, U or X or any provision of the Exchange Act.

4.10 No Material Adverse Effect. There has been no Material Adverse Effect since December 31, 2008 and there exists no event, condition or state of facts that could reasonably be expected to result in a Material Adverse Effect.

4.11 Financial Matters.

(a) The Borrower has heretofore furnished to the Administrative Agent copies of the audited consolidated balance sheets of the Borrower and its Subsidiaries, for the 2008 and 2007 fiscal years, in each case with the related statements of income, stockholders' equity, comprehensive income and cash flows for the fiscal years then ended, together with the opinions of Ernst & Young LLP thereon. Such financial statements have been prepared in accordance with GAAP and present fairly in all material respects the financial condition of the Borrower and its Subsidiaries on a consolidated basis as of the respective dates thereof and the results of

operations of the Borrower and its Subsidiaries on a consolidated basis for the respective periods then ended. Except as fully reflected in the most recent financial statements referred to above and the notes thereto, there are no material liabilities or obligations with respect to the Borrower and its Subsidiaries of any nature whatsoever (whether absolute, contingent or otherwise and whether or not due) that are required in accordance with GAAP to be reflected in such financial statements and that are not so reflected.

(b) The Borrower has prepared, and has heretofore furnished to the Administrative Agent a copy of, projected consolidated balance sheets and statements of income and cash flows of the Borrower and its Subsidiaries prepared on an annual basis through the end of fiscal year 2012, giving effect to the initial extensions of credit made under this Agreement, the payment of transaction fees and expenses related to the foregoing and the consummation of the other transactions contemplated hereby (the “Projections”). In the good faith opinion of management of the Borrower, the assumptions used in the preparation of the Projections were fair, complete and reasonable when made and continue to be fair, complete and reasonable as of the date hereof. The Projections have been prepared in good faith by the executive and financial personnel of the Borrower, are complete and represent a reasonable estimate of the future performance and financial condition of the Borrower and its Subsidiaries, subject to the uncertainties and approximations inherent in any projections.

(c) After giving effect to the consummation of the transactions contemplated hereby, each Credit Party (i) has capital sufficient to carry on its businesses as conducted and as proposed to be conducted, (ii) has assets with a fair saleable value, determined on a going concern basis, which are (y) not less than the amount required to pay the probable liability on its existing debts as they become absolute and matured and (z) greater than the total amount of its liabilities (including identified contingent liabilities, valued at the amount that can reasonably be expected to become absolute and matured in their ordinary course), and (iii) does not intend to, and does not believe that it will, incur debts or liabilities beyond its ability to pay such debts and liabilities as they mature in their ordinary course.

(d) Since December 31, 2008, there has not been an occurrence of a “material weakness” (as defined in statement on Auditing Standards No. 60) in, or fraud that involves management or other employees who have a significant role in, the Borrower’s internal controls over financial reporting, in each case as described in Section 404 of the Sarbanes-Oxley Act of 2002 and all rules and regulations promulgated thereunder and the accounting and auditing principles, rules, standards and practices promulgated or approved with respect thereto, in each case that could reasonably be expected to have a Material Adverse Effect.

(e) Neither (i) the board of directors of the Borrower, a committee thereof or an authorized officer of the Borrower has concluded that any financial statement previously furnished to the Administrative Agent should no longer be relied upon because of an error, nor (ii) has the Borrower been advised by its auditors that a previously issued audit report or interim review cannot be relied on.

4.12 Ownership of Properties. Each of the Borrower and its Subsidiaries (i) has good and marketable title to all real property owned by it, (ii) holds interests as lessee under valid leases in full force and effect with respect to all material leased real and personal property used

in connection with its business, and (iii) has good title to all of its other material properties and assets reflected in the most recent financial statements referred to in **Section 4.11(a)** (except as sold or otherwise disposed of since the date thereof in the ordinary course of business), in each case free and clear of all Liens other than Permitted Liens.

4.13 ERISA.

(a) Each Credit Party and its ERISA Affiliates is in compliance with the applicable provisions of ERISA, and each Plan is and has been administered in compliance with all applicable Requirements of Law, including, without limitation, the applicable provisions of ERISA and the Code, in each case except where the failure so to comply, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect. No ERISA Event (i) has occurred within the five (5) year period prior to the Closing Date, (ii) has occurred and is continuing, or (iii) to the knowledge of the Borrower, is reasonably expected to occur with respect to any Plan. No Plan has any Unfunded Pension Liability as of the most recent annual valuation date applicable thereto, and no Credit Party or any of its ERISA Affiliates has engaged in a transaction that could be subject to Section 4069 or 4212(c) of ERISA.

(b) No Credit Party or any of its ERISA Affiliates has any outstanding liability on account of a complete or partial withdrawal from any Multiemployer Plan, and no Credit Party or any of its ERISA Affiliates would become subject to any liability under ERISA if any such Credit Party or ERISA Affiliate were to withdraw completely from all Multiemployer Plans as of the most recent valuation date. No Multiemployer Plan is in “reorganization” or is “insolvent” within the meaning of such terms under ERISA.

4.14 Environmental Matters. Neither the Borrower nor any of its Subsidiaries is involved in any suit, action or proceeding, or has received any notice, complaint or other request for information from any Governmental Authority or other Person, with respect to any actual or alleged Environmental Claims, and to the knowledge of the Borrower, there are no threatened Environmental Claims, nor any basis therefor.

4.15 Compliance with Laws. Each of the Borrower and its Subsidiaries has timely filed all material reports, documents and other materials required to be filed by it under all applicable Requirements of Law with any Governmental Authority, has retained all material records and documents required to be retained by it under all applicable Requirements of Law, and is otherwise in compliance with all applicable Requirements of Law in respect of the conduct of its business and the ownership and operation of its properties, including without limitation, the applicable rules of any Self-Regulatory Organization, except in each case to the extent that the failure to comply therewith, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.16 Intellectual Property. Each of the Borrower and its Subsidiaries owns, or has the legal right to use, all Intellectual Property necessary for it to conduct its business as currently conducted. No claim has been asserted or is pending by any Person challenging or questioning the use of any such Intellectual Property or the validity or effectiveness of any such Intellectual Property, nor does the Borrower know of any such claim, and to the knowledge of the Borrower, the use of such Intellectual Property by any Credit Party does not infringe on the known rights of any Person, except for such claims and infringements that, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

4.17 Regulated Industries . No Credit Party is an “investment company,” a company “controlled” by an “investment company,” or an “investment advisor,” within the meaning of the Investment Company Act of 1940, as amended.

4.18 Insurance . The assets, properties and business of the Borrower and its Subsidiaries are insured against such hazards and liabilities, under such coverages and in such amounts, as are customarily maintained by prudent companies similarly situated and under policies issued by insurers of recognized responsibility.

4.19 Material Contracts . **Schedule 4.19** lists, as of the Closing Date, each “material contract” (within the meaning of Item 601(b)(10) of Regulation S-K under the Securities Act) to which the Borrower or any of its Subsidiaries is a party, by which the Borrower or any of its Subsidiaries or its properties is bound or to which the Borrower or any of its Subsidiaries is subject (collectively, “Material Contracts”), and also indicates the parties thereto. As of the Closing Date, (i) each Material Contract is in full force and effect and is enforceable by each of the Borrower and its Subsidiaries that is a party thereto in accordance with its terms, except as enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors’ rights generally, by general or equitable principles or by principles of good faith and fair dealing, and (ii) neither the Borrower nor any of its Subsidiaries or, to the knowledge of the Borrower, any other party thereto is in breach of or default under any Material Contract in any material respect or has given notice of termination or cancellation of any Material Contract.

4.20 No Burdensome Restrictions . No Credit Party is subject to any charter or corporate restriction or any provision of any applicable Requirement of Law that, individually or in the aggregate, could reasonably be expected to have a Material Adverse Effect.

4.21 OFAC; Anti-Terrorism Laws.

(a) No Credit Party or any Affiliate of any Credit Party (i) is a Sanctioned Person, (ii) has more than 15% of its assets in Sanctioned Countries, or (iii) derives more than 15% of its operating income from investments in, or transactions with, Sanctioned Persons or Sanctioned Countries. No part of the proceeds of any Loan hereunder will be used directly or indirectly to fund any operations in, finance any investments or activities in or make any payments to, a Sanctioned Person or a Sanctioned Country.

(b) Neither the making of the Loans hereunder nor the use of the proceeds thereof will violate the PATRIOT Act, the Trading with the Enemy Act, as amended, or any of the foreign assets control regulations of the United States Treasury Department (31 CFR, Subtitle B, Chapter V, as amended) or any enabling legislation or executive order relating thereto. The Credit Parties are in compliance in all material respects with the PATRIOT Act.

ARTICLE V

AFFIRMATIVE COVENANTS

The Borrower covenants and agrees that, until the termination of the Commitments, the termination or expiration of all Letters of Credit and the payment in full in cash of all principal and interest with respect to the Loans and all Reimbursement Obligations together with all fees, expenses and other amounts then due and owing hereunder:

5.1 Financial Statements. The Borrower will deliver to the Administrative Agent on behalf of the Lenders:

(a) As soon as available and in any event within forty-five (45) days (or, if earlier and if applicable to the Borrower, the quarterly report deadline under the Exchange Act rules and regulations) after the end of each of the first three fiscal quarters of each fiscal year, beginning with the first fiscal quarter of fiscal year 2009, unaudited consolidated and consolidating balance sheets of the Borrower and its Subsidiaries as of the end of such fiscal quarter and unaudited consolidated and consolidating statements of income, cash flows and stockholders' equity for the Borrower and its Subsidiaries for the fiscal quarter then ended and for that portion of the fiscal year then ended, in each case setting forth comparative consolidated figures as of the end of and for the corresponding period in the preceding fiscal year together with comparative budgeted figures for the fiscal period then ended, all in reasonable detail and prepared in accordance with GAAP (subject to the absence of notes required by GAAP and subject to normal year-end adjustments) applied on a basis consistent with that of the preceding quarter or containing disclosure of the effect on the financial condition or results of operations of any change in the application of accounting principles and practices during such quarter; and

(b) As soon as available and in any event within ninety (90) days (or, if earlier and if applicable to the Borrower, the annual report deadline under the Exchange Act rules and regulations) after the end of each fiscal year, beginning with fiscal year 2009, an audited consolidated and unaudited consolidating balance sheet of the Borrower and its Subsidiaries as of the end of such fiscal year and the related audited consolidated and unaudited consolidating statements of income, cash flows and stockholders' equity for the Borrower and its Subsidiaries for the fiscal year then ended, including the notes thereto, in each case setting forth comparative consolidated figures as of the end of and for the preceding fiscal year together with comparative budgeted figures for the fiscal year then ended, all in reasonable detail and (with respect to the audited statements) certified by the independent certified public accounting firm regularly retained by the Borrower or another independent certified public accounting firm of recognized national standing reasonably acceptable to the Administrative Agent, together with (y) a report thereon by such accountants that is not qualified as to going concern or scope of audit and to the effect that such financial statements present fairly in all material respects the consolidated financial condition and results of operations of the Borrower and its Subsidiaries as of the dates and for the periods indicated in accordance with GAAP applied on a basis consistent with that of the preceding year or containing disclosure of the effect on the financial condition or results of operations of any change in the application of accounting principles and practices during such year, and (z) a letter from such accountants to the effect that, based on and in connection with their examination of the financial statements of the Borrower and its Subsidiaries, they obtained

no knowledge of the occurrence or existence of any Default or Event of Default relating to accounting or financial reporting matters (which certificate may be limited to the extent required by accounting rules or guidelines), or a statement specifying the nature and period of existence of any such Default or Event of Default disclosed by their audit.

(c) In the event that any financial statement or Compliance Certificate delivered pursuant to **Sections 5.2(a) or 5.2(b)** is shown to be inaccurate (regardless of whether this Agreement or the Commitments are in effect when such inaccuracy is discovered), and such inaccuracy, if corrected, would have led to the application of a higher Applicable Percentage for any period (an “Applicable Period”) than the Applicable Percentage applied for such Applicable Period, then (i) the Borrower shall immediately deliver to the Administrative Agent a correct Compliance Certificate for such Applicable Period and (ii) the Borrower shall immediately pay to the Administrative Agent the accrued additional interest owing as a result of such increased Applicable Percentage for such Applicable Period, which payment shall be promptly applied by the Administrative Agent in accordance with **Section 2.12**. This **Section 5.1(c)** shall not limit the rights of the Administrative Agent and Lenders with respect to **Sections 2.8(b) and 8.2**.

Documents required to be delivered pursuant to **Sections 5.1, 5.2(a), 5.2(b), 5.2(c) or 5.2(d)** may be delivered electronically and, if so delivered, shall be deemed to have been delivered on the date (i) on which the Borrower provides notice to the Lenders that such information has been posted on the Borrower’s website on the Internet at <http://ir.theice.com/sec.cfm>, at www.sec.gov/edgar/searchedgar/webusers.htm or at another website identified in such notice and accessible by the Lenders without charge; or (ii) on which such documents are posted on the Borrower’s behalf on SyndTrak or another relevant website, if any, to which each of the Administrative Agent and each Lender has access; provided that (x) upon the request of the Administrative Agent or any Lender lacking access to the internet or SyndTrak, the Borrower shall deliver paper copies of such documents to the Administrative Agent or such Lender (until a written request to cease delivering paper copies is given by the Administrative Agent or such Lender) and (y) the Borrower shall notify (which may be by a facsimile or electronic mail) the Administrative Agent and each Lender of the posting of any documents. The Administrative Agent shall have no obligation to request the delivery of, or to maintain copies of, the documents referred to in the proviso to the immediately preceding sentence or to monitor compliance by the Borrower with any such request for delivery, and each Lender shall be solely responsible for requesting delivery to it or maintaining its copies of such documents.

5.2 Other Business and Financial Information. The Borrower will deliver to the Administrative Agent and each Lender:

(a) Concurrently with each delivery of the financial statements described in **Sections 5.1(a) and 5.1(b)**, a Compliance Certificate with respect to the period covered by the financial statements being delivered thereunder, executed by a Financial Officer of the Borrower, together with a Covenant Compliance Worksheet reflecting the computation of the financial covenants set forth in **Article VI** as of the last day of the period covered by such financial statements;

(b) As soon as available and in any event within thirty (30) days after the commencement of each fiscal year, beginning with the 2010 fiscal year, a consolidated operating

budget for the Borrower and its Subsidiaries for such fiscal year (prepared on an annual basis), consisting of a consolidated balance sheet and consolidated statements of income and cash flows, together with a certificate of a Financial Officer of the Borrower to the effect that such budget has been prepared in good faith and is a reasonable estimate of the financial position and results of operations of the Borrower and its Subsidiaries for the period covered thereby; and as soon as available from time to time thereafter, any modifications or revisions to or restatements of such budget;

(c) Promptly upon receipt thereof, copies of any “management letter” submitted to any Credit Party by its certified public accountants in connection with each annual, interim or special audit, and promptly upon completion thereof, any response reports from such Credit Party in respect thereof;

(d) Promptly upon the sending, filing or receipt thereof, copies of (i) all financial statements, reports, notices and proxy statements that any Credit Party shall send or make available generally to its stockholders, (ii) all regular, periodic and special reports, registration statements and prospectuses (other than on Form S-8) that any Credit Party shall render to or file with the Securities and Exchange Commission, the National Association of Securities Dealers, Inc. or any national securities exchange or Self-Regulatory Organization, and (iii) all press releases and other statements made available generally by any Credit Party to the public concerning material developments in the business of the Credit Parties; provided that notwithstanding anything to the contrary included in **Section 5.1**, the Borrower shall be deemed to have given notice to the Administrative Agent and each Lender of the posting on the Borrower’s Internet website of the business and financial information set forth in clauses (i), (ii) or (iii) of this **Section 5.2(d)** at the time such information is posted thereon and no further notice shall be required to be provided by the Borrower to the Administrative Agent and the Lenders with respect thereto;

(e) Promptly upon (and in any event within five (5) Business Days after) any Responsible Officer of any Credit Party obtaining knowledge thereof, written notice of any of the following:

(i) the occurrence of any Default or Event of Default, together with a written statement of a Responsible Officer of the Borrower specifying the nature of such Default or Event of Default, the period of existence thereof and the action that the Borrower has taken and proposes to take with respect thereto;

(ii) the institution or threatened institution of any action, suit, investigation or proceeding against or affecting the Borrower or any of its Subsidiaries, including any such investigation or proceeding by any Governmental Authority or Self-Regulatory Organization (other than routine periodic inquiries, investigations or reviews), that, if adversely determined, could reasonably be expected, individually or in the aggregate, to have a Material Adverse Effect, and any material adverse development in any litigation or other proceeding previously reported pursuant to **Section 4.5** or this **Section 5.2(e)(ii)** ;

(iii) the receipt by the Borrower or any of its Subsidiaries from any Governmental Authority or Self-Regulatory Organization of (A) any notice asserting any

failure by such Person to be in compliance with applicable Requirements of Law or that threatens the taking of any action against such Person or sets forth circumstances that, if taken or adversely determined, could reasonably be expected to have a Material Adverse Effect, or (B) any notice of any actual or threatened suspension, limitation or revocation of, failure to renew, or imposition of any restraining order, escrow or impoundment of funds in connection with, the Borrower or any of its Subsidiaries, where such action could reasonably be expected to have a Material Adverse Effect;

(iv) the occurrence of any ERISA Event, together with (x) a written statement of a Responsible Officer of the Borrower specifying the details of such ERISA Event and the action that the applicable Person has taken and proposes to take with respect thereto, (y) a copy of any notice with respect to such ERISA Event that may be required to be filed with the PBGC and (z) a copy of any notice delivered by the PBGC to any Credit Party or an ERISA Affiliate with respect to such ERISA Event;

(v) the occurrence of any material default under, or any proposed or threatened termination or cancellation of, any Material Contract (including without limitation, the agreement between the Borrower and LCH.Clearnet for the provision of clearing services) or other material contract or agreement to which the Borrower or any of its Subsidiaries is a party, the default under or termination or cancellation of which could reasonably be expected to have a Material Adverse Effect;

(vi) the occurrence of any of the following: (y) the assertion of any Environmental Claim against or affecting the Borrower or any of its Subsidiaries or any real property leased, operated or owned by the Borrower or any of its Subsidiaries, or the Borrower or any of its Subsidiaries' discovery of a basis for any such Environmental Claim; or (z) the receipt by the Borrower or any of its Subsidiaries of notice of any alleged violation of or noncompliance with any Environmental Laws by the Borrower or any of its Subsidiaries or release of any Hazardous Substance; but in each case under clauses (y) and (z) above, only to the extent the same could reasonably be expected to have a Material Adverse Effect; and

(vii) any other matter or event that has, or could reasonably be expected to have, a Material Adverse Effect, together with a written statement of a Responsible Officer of the Borrower setting forth the nature and period of existence thereof and the action that the affected Persons have taken and propose to take with respect thereto.

(f) As promptly as reasonably possible, such other information about the business, condition (financial or otherwise), operations or properties of the Borrower or any of its Subsidiaries as the Administrative Agent or any Lender may from time to time reasonably request.

5.3 Compliance with All Material Contracts . The Borrower will, and will cause each of its Subsidiaries to, comply in all material respects with each term, condition and provision of all Material Contracts.

5.4 Existence; Franchises; Maintenance of Properties. The Borrower will, and will cause each of its Subsidiaries to, (i) maintain and preserve in full force and effect its legal existence, except as expressly permitted otherwise by **Section 7.1**, (ii) obtain, maintain and preserve in full force and effect all other rights, franchises, licenses, permits, certifications, approvals and authorizations required by Governmental Authorities and Self-Regulatory Organizations necessary to the ownership, occupation or use of its properties or the conduct of its business, except to the extent the failure to do so could not reasonably be expected to have a Material Adverse Effect, and (iii) keep all material properties in good working order and condition (normal wear and tear and damage by casualty excepted) and from time to time make all necessary repairs to and renewals and replacements of such properties, except to the extent that any of such properties are obsolete or are being replaced or, in the good faith judgment of the Borrower, are no longer useful or desirable in the conduct of the business of the Credit Parties.

5.5 Use of Proceeds. The proceeds of the Loans shall be used (i) to pay or reimburse permitted fees and expenses in connection with the transactions contemplated hereby, and (ii) to provide for working capital and general corporate purposes and in accordance with the terms and provisions of this Agreement (including, without limitation, to finance Permitted Acquisitions in accordance with the terms and provisions of this Agreement).

5.6 Compliance with Laws. The Borrower will, and will cause each of its Subsidiaries to, comply in all respects with all Requirements of Law applicable in respect of the conduct of its business and the ownership and operation of its properties, except to the extent the failure so to comply could not reasonably be expected to have a Material Adverse Effect.

5.7 Payment of Obligations. The Borrower will, and will cause each of its Subsidiaries to, (i) pay, discharge or otherwise satisfy at or before maturity all liabilities and obligations as and when due (subject to any applicable subordination, grace and notice provisions), except to the extent failure to do so could not reasonably be expected to have a Material Adverse Effect, and (ii) pay and discharge all taxes, assessments and governmental charges or levies imposed upon it, upon its income or profits or upon any of its properties, prior to the date on which penalties would attach thereto, and all lawful claims that, if unpaid, would become a Lien (other than a Permitted Lien) upon any of the properties of any such Person; provided, however, that no such Person shall be required to pay any such tax, assessment, charge, levy or claim that is being contested in good faith and by proper proceedings and as to which such Credit Party is maintaining adequate reserves with respect thereto in accordance with GAAP.

5.8 Insurance. The Borrower will, and will cause each of its Subsidiaries to, maintain with financially sound and reputable insurance companies insurance with respect to its assets, properties and business, against such hazards and liabilities, of such types and in such amounts, as is customarily maintained by companies in the same or similar businesses similarly situated.

5.9 Maintenance of Books and Records; Inspection. The Borrower will, and will cause each of its Subsidiaries to, (i) maintain adequate books, accounts and records, in which full, true and correct entries shall be made of all financial transactions in relation to its business and properties, and prepare all financial statements required under this Agreement, in each case

in accordance with GAAP and in compliance with the requirements of any Governmental Authority or Self-Regulatory Organization having jurisdiction over it, and (ii) permit employees or agents of the Administrative Agent or any Lender to visit and inspect its properties and examine or audit its books, records, working papers and accounts (except with respect to information which disclosure thereof is prohibited pursuant to arrangements among ICE Futures Europe, the United Kingdom Financial Services Authority, or other Governmental Authorities with jurisdiction over ICE Futures Europe and ICE Futures Europe's members), and make copies and memoranda of them, and to discuss its affairs, finances and accounts with its officers and employees and, upon reasonable notice to the Borrower, the independent public accountants of the Borrower and its Subsidiaries (and by this provision the Borrower authorizes such accountants to discuss the finances and affairs of the Borrower and its Subsidiaries), all at such times and from time to time, upon reasonable notice and during business hours, as may be reasonably requested; provided however, that when a Default or Event of Default exists the Administrative Agent may do any of the foregoing at the expense of the Borrower at any time during normal business hours and without advance notice.

5.10 Permitted Acquisitions. The Borrower shall comply with, and cause each other applicable Credit Party to comply with, the following covenants:

(a) Promptly after the consummation of any Permitted Acquisition or such later date reasonably acceptable to the Administrative Agent, the Borrower shall have delivered to the Administrative Agent the following (provided, however, that the delivery of the statements in clause (iii) below shall be required only with respect to Permitted Acquisitions having an Acquisition Amount exceeding \$200,000,000):

(i) a reasonably detailed description of the material terms of such Acquisition (including, without limitation, the purchase price and method and structure of payment) and of each Person or business that is the subject of such Acquisition (each, a “ Target ”);

(ii) to the extent available, audited historical financial statements of the Target (or, if there are two or more Targets that are the subject of such Acquisition and that are part of the same consolidated group, consolidated historical financial statements for all such Targets) for the two (2) most recent fiscal years available, prepared by a firm of independent certified public accountants, and (if available) unaudited financial statements for any interim periods since the most recent fiscal year-end;

(iii) consolidated projected income statements of the Borrower and its Subsidiaries (giving effect to such Acquisition and the consolidation with the Borrower of each relevant Target) for the one-year period (or, if available, such longer period up to three years) following the consummation of such Acquisition, in reasonable detail, together with any appropriate statement of assumptions and pro forma adjustments; and

(iv) a certificate, in form and substance reasonably satisfactory to the Administrative Agent, executed by a Financial Officer of the Borrower setting forth the Acquisition Amount and further to the effect that, to the best of such Financial Officer's knowledge, (y) the consummation of such Acquisition has not resulted in a violation of any provision of this **Section 5.10** or any other provision of this Agreement, and (x) the requirements set forth in **Section 7.5** have been satisfied (with financial covenant calculations to be attached to the certificate using the Covenant Compliance Worksheet).

(b) As soon as reasonably practicable after the consummation of any such Acquisition, the Borrower will deliver to the Administrative Agent true and correct copies of the fully executed acquisition agreement (including schedules and exhibits thereto) and other material documents and closing papers delivered in connection therewith.

(c) The consummation of each Permitted Acquisition shall be deemed to be a representation and warranty by the Borrower that (except as shall have been approved in writing by the Required Lenders) all conditions thereto set forth in this **Section 5.10** and in the description furnished under **Section 5.10(a)(i)** have been satisfied, that the same is permitted in accordance with the terms of this Agreement, and that the matters certified to by the Financial Officer of the Borrower in the certificate referred to in **Section 5.10(a)(iv)** are, to the best of such Financial Officer's knowledge, true and correct in all material respects as of the date such certificate is given, which representation and warranty shall be deemed to be a representation and warranty as of the date thereof for all purposes hereunder, including, without limitation, for purposes of **Sections 3.2** and **8.1**.

5.11 Creation or Acquisition of Subsidiaries. Subject to the provisions of **Sections 5.10** and **7.5**, the Borrower may from time to time create or acquire new Wholly Owned Subsidiaries in connection with Permitted Acquisitions or otherwise, and the Wholly Owned Subsidiaries of the Borrower may create or acquire new Wholly Owned Subsidiaries, provided that concurrently with (and in any event within ten (10) Business Days after or such later time approved by the Administrative Agent) the creation or direct or indirect acquisition thereof, each such new Subsidiary will execute and deliver to the Administrative Agent a joinder to the Guaranty, pursuant to which such new Subsidiary shall become a guarantor thereunder and shall guarantee the payment in full of the Obligations of the Borrower under this Agreement and the other Credit Documents; provided that no Foreign Subsidiary shall be required to provide a guaranty to the extent (and for as long as) doing so would cause any adverse tax or regulatory consequences to the Borrower, and provided further that for any Subsidiary created for the sole purpose of making a Permitted Acquisition and so long as such Subsidiary has no assets, the Borrower shall not be required to comply with this **Section 5.11** until the consummation of such Permitted Acquisition.

5.12 OFAC, PATRIOT Act Compliance. The Borrower will, and will cause each of its Subsidiaries to, (i) refrain from doing business in a Sanctioned Country or with a Sanctioned Person in violation of the economic sanctions of the United States administered by OFAC, and (ii) provide, to the extent commercially reasonable, such information and take such actions as are reasonably requested by the Administrative Agent or any Lender in order to assist the Administrative Agent and the Lenders in maintaining compliance with the PATRIOT Act.

5.13 Further Assurances. The Borrower will, and will cause each of its Subsidiaries to, make, execute, endorse, acknowledge and deliver any amendments, modifications or supplements hereto and restatements hereof and any other agreements, instruments or documents, and take any and all such other actions, as may from time to time be reasonably requested by the Administrative Agent or the Required Lenders to effect, confirm or further assure or protect and preserve the interests, rights and remedies of the Administrative Agent and the Lenders under this Agreement and the other Credit Documents.

ARTICLE VI

FINANCIAL COVENANTS

The Borrower covenants and agrees that, until the termination of the Commitments, the termination or expiration of all Letters of Credit and the payment in full in cash of all principal and interest with respect to the Loans and all Reimbursement Obligations together with all fees, expenses and other amounts then due and owing hereunder:

6.1 Maximum Total Leverage Ratio. The Total Leverage Ratio as of the last day of any fiscal quarter, beginning with the first fiscal quarter of 2009, shall not be greater than the ratio of 2.50 to 1.00.

6.2 Minimum Interest Coverage Ratio. The Interest Coverage Ratio as of the last day of any fiscal quarter, beginning with the first fiscal quarter of 2009, shall not be less than 5.0 to 1.0.

ARTICLE VII

NEGATIVE COVENANTS

The Borrower covenants and agrees that, until the termination of the Commitments, the termination or expiration of all Letters of Credit and the payment in full in cash of all principal and interest with respect to the Loans and all Reimbursement Obligations together with all fees, expenses and other amounts then due and owing hereunder:

7.1 Merger; Consolidation. The Borrower will not, and will not permit or cause any of its Subsidiaries to, liquidate, wind up or dissolve, or enter into any consolidation, amalgamation, merger or other combination, or agree to do any of the foregoing; provided, however, that so long as no Default or Event of Default has occurred and is continuing or would result therefrom:

(i) any Subsidiary of the Borrower may merge, consolidate or amalgamate with, or be liquidated into, (x) the Borrower (so long as the Borrower is the surviving or continuing entity) or (y) any other Subsidiary of the Borrower (so long as, if either Person is a Subsidiary Guarantor, the surviving Person is a Subsidiary Guarantor, and if either Person is a Wholly Owned Subsidiary, the surviving Person is a Wholly Owned Subsidiary);

(ii) the Borrower may merge, consolidate or amalgamate with another Person (other than another Credit Party), so long as (y) the Borrower is the surviving entity, and (z) if such merger, consolidation or amalgamation constitutes an Acquisition, the applicable conditions and requirements of **Sections 5.11** and **7.5** are satisfied; and

(iii) to the extent not otherwise permitted under the foregoing clauses, any Subsidiary that has sold, transferred or otherwise disposed of all or substantially all of its assets in connection with an Asset Disposition permitted under this Agreement and no longer conducts any active trade or business may be liquidated, wound up and dissolved.

7.2 Indebtedness. The Borrower will not, and will not permit or cause any of its Subsidiaries to, create, incur, assume or suffer to exist any Indebtedness other than (without duplication):

(i) Indebtedness of the Credit Parties in favor of the Administrative Agent and the Lenders incurred under this Agreement and the other Credit Documents;

(ii) (A) Indebtedness of the Credit Parties under the Existing Credit Facility and the other “Credit Documents” (as defined in the Existing Credit Facility) and (B) Indebtedness of the Credit Parties under the New Liquidity Facility and the other “Credit Documents” (as defined in the New Liquidity Facility);

(iii) accrued expenses (including salaries, accrued vacation and other compensation), current trade or other accounts payable and other current liabilities arising in the ordinary course of business and not incurred through the borrowing of money, in each case above to the extent constituting Indebtedness;

(iv) purchase money Indebtedness of the Borrower and its Subsidiaries incurred solely to finance the acquisition, construction or improvement of any equipment, real property or other fixed assets in the ordinary course of business (or assumed or acquired by the Borrower and its Subsidiaries in connection with a Permitted Acquisition or other transaction permitted under this Agreement), including Capital Lease Obligations, and any renewals, replacements, refinancings or extensions thereof, provided that all such Indebtedness shall not exceed \$25,000,000 in aggregate principal amount outstanding at any one time;

(v) unsecured loans and advances (A) by the Borrower or any Subsidiary of the Borrower to any Subsidiary Guarantor, (B) by any Subsidiary of the Borrower to the Borrower, or (C) by the Borrower or any Subsidiary of the Borrower to any Subsidiary of the Borrower that is not a Subsidiary Guarantor, provided in each case that any such loan or advance made pursuant to clause (C) above is subordinated in right and time of payment to the Obligations and is evidenced by a promissory note, in form and substance reasonably satisfactory to the Administrative Agent;

(vi) Indebtedness of the Borrower under Hedge Agreements entered into in the ordinary course of business to manage existing or anticipated interest rate or foreign currency risks and not for speculative purposes;

(vii) Indebtedness existing on the Closing Date and described in **Schedule 7.2** and any renewals, replacements, refinancings or extensions of any such Indebtedness that do not increase the outstanding principal amount thereof or result in an earlier final maturity date or decreased weighted average life thereof;

(viii) Indebtedness consisting of Guaranty Obligations of the Borrower or any of its Subsidiaries incurred in the ordinary course of business for the benefit of another Credit Party, provided that the primary obligation being guaranteed is expressly permitted by this Agreement;

(ix) Indebtedness that may be deemed to exist pursuant to any performance bond, surety, statutory appeal or similar obligation entered into or incurred by the Borrower or any of its Subsidiaries in the ordinary course of business;

(x) Indebtedness of ICE Clear Europe under the ICE Clear Europe Payment Services Agreement not exceeding \$150,000,000 in aggregate principal amount outstanding;

(xi) Indebtedness consisting of Guaranty Obligations of the Borrower with respect to the ICE Clear Europe Payment Services Agreement;

(xii) unsecured Indebtedness of the Borrower not exceeding \$400,000,000 in aggregate principal amount outstanding to provide liquidity for the clearing operations of ICE Clear Europe;

(xiii) other unsecured Indebtedness of the Borrower not exceeding \$50,000,000 in aggregate principal amount outstanding at any time; and

(xiv) other unsecured Indebtedness of the Subsidiaries of the Borrower not exceeding \$50,000,000 in aggregate principal amount outstanding at any time.

7.3 Liens. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, make, create, incur, assume or suffer to exist, any Lien upon or with respect to any part of its property or assets, whether now owned or hereafter acquired or agree to do any of the foregoing, other than the following (collectively, “ Permitted Liens ”):

(i) Liens in existence on the Closing Date and set forth on **Schedule 7.3** , and any extensions, renewals or replacements thereof; provided that any such extension, renewal or replacement Lien shall be limited to all or a part of the property that secured the Lien so extended, renewed or replaced (plus any improvements on such property) and shall secure only those obligations that it secures on the date hereof (and any renewals, replacements, refinancings or extensions of such obligations that do not increase the outstanding principal amount thereof);

(ii) Liens imposed by law, such as Liens of carriers, warehousemen, mechanics, materialmen and landlords, incurred in the ordinary course of business for sums not constituting borrowed money that are not overdue for a period of more than thirty (30) days or that are being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP (if so required);

(iii) Liens (other than any Lien imposed by ERISA, the creation or incurrence of which would result in an Event of Default under **Section 8.1(k)**) incurred in the ordinary course of business in connection with worker's compensation, unemployment insurance or other forms of governmental insurance or benefits, or to secure the performance of letters of credit, bids, tenders, statutory obligations, surety and appeal bonds, leases, public or statutory obligations, government contracts and other similar obligations (other than obligations for borrowed money) entered into in the ordinary course of business;

(iv) Liens for taxes, assessments or other governmental charges or statutory obligations that are not delinquent or remain payable without any penalty or that are being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP (if so required);

(v) any attachment or judgment Lien not constituting an Event of Default under **Section 8.1(h)** ;

(vi) Liens securing the purchase money Indebtedness permitted under **Section 7.2(iv)** , provided that (x) any such Lien shall attach to the property being acquired, constructed or improved with such Indebtedness concurrently with or within ninety (90) days after the acquisition (or completion of construction or improvement) or the refinancing thereof by the Borrower or such Subsidiary, (y) the amount of the Indebtedness secured by such Lien shall not exceed 100% of the cost to the Borrower or such Subsidiary of acquiring, constructing or improving the property and any other assets then being financed solely by the same financing source, and (z) any such Lien shall not encumber any other property of the Borrower or any of its Subsidiaries except assets then being financed solely by the same financing source;

(vii) with respect to any Realty occupied by the Borrower or any of its Subsidiaries, all easements, rights of way, reservations, licenses, encroachments, variations and similar restrictions, charges and encumbrances on title that do not secure monetary obligations and do not materially impair the use of such property for its intended purposes or the value thereof;

(viii) any leases, subleases, licenses or sublicenses granted by the Borrower or any of its Subsidiaries to third parties in the ordinary course of business and not interfering in any material respect with the business of the Borrower and its Subsidiaries, and any interest or title of a lessor, sublessor, licensor or sublicensor under any lease or license permitted under this Agreement;

(ix) Liens created in connection with the Guaranty Fund; and

(x) other Liens securing obligations of the Borrower and its Subsidiaries not exceeding \$1,000,000 in aggregate principal amount outstanding at any time.

7.4 Asset Dispositions . The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, make or agree to make any Asset Disposition except for:

(i) the sale or other disposition of inventory and Cash Equivalents in the ordinary course of business, the sale or write-off of past due or impaired accounts receivable for collection purposes (but not for factoring, securitization or other financing purposes), and the termination or unwinding of Hedge Agreements permitted hereunder;

(ii) the sale, lease or other disposition of assets by the Borrower or any Subsidiary of the Borrower to the Borrower or to a Subsidiary Guarantor (or by any Subsidiary that is not a Subsidiary Guarantor to another Subsidiary that is not a Subsidiary Guarantor), in each case so long as no Event of Default shall have occurred and be continuing or would result therefrom;

(iii) the sale, exchange or other disposition in the ordinary course of business of equipment or other capital assets that are obsolete or no longer necessary for the operations of the Borrower and its Subsidiaries; and

(iv) the sale or other disposition of assets (other than the Capital Stock of Subsidiaries) outside the ordinary course of business for fair value and for consideration, provided that (x) the aggregate amount of Net Cash Proceeds from all such sales or dispositions that are consummated during any fiscal year shall not exceed \$25,000,000 and (y) no Default or Event of Default shall have occurred and be continuing or would result therefrom.

7.5 Acquisitions. The Borrower will not, and will not permit or cause any of its Subsidiaries to, consummate any Acquisition, provided that the Borrower or any of its Subsidiaries may consummate any Acquisition so long as (i) prior to the closing of such Acquisition, the Borrower shall provide the Lenders with a Compliance Certificate prepared on a Pro Forma Basis giving effect to such Acquisition that demonstrates compliance with the covenants in **Article VI** on a Pro Forma Basis, (ii) in the case of an Acquisition to which the Borrower is a party involving a merger, amalgamation or the acquisition of control of the Capital Stock of a Person, the Borrower is the surviving or acquiring entity, as the case may be, (iii) each business acquired shall be in substantially the same line of business as the business conducted by the Borrower or its Subsidiaries on the Closing Date or in lines of business reasonably related thereto, (iv) the board of directors or equivalent governing body of the Person whose Capital Stock or business is acquired shall have approved such Acquisition, if required by applicable law (but provided in any event such Acquisition shall not be “hostile”), (v) no Default or Event of Default shall have occurred and be continuing at the time of the consummation of any such Acquisition or would exist immediately after giving effect thereto and (vi) the applicable conditions and requirements of **Section 5.11** are satisfied.

7.6 Restricted Payments. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, declare or make any dividend payment, or make any other distribution of cash, property or assets, in respect of any of its Capital Stock or any warrants, rights or options to acquire its Capital Stock, or purchase, redeem, retire or otherwise acquire for value any shares of its Capital Stock or any warrants, rights or options to acquire its Capital Stock, or set aside funds for any of the foregoing (any of the foregoing being a “Restricted Payment”), except that:

(a) each Subsidiary may make payments to the Borrower for its proportionate share of the tax liability of the affiliated group of entities that file consolidated federal income tax returns, provided that such payments are used to pay taxes, and provided further that any tax refunds received by the Borrower that are attributable to the any of its Subsidiaries shall be returned promptly by the Borrower to such Subsidiary;

(b) each Wholly Owned Subsidiary of the Borrower may declare and make dividend payments or other distributions to the Borrower or to another Subsidiary of the Borrower, in each case to the extent not prohibited under applicable Requirements of Law;

(c) the Borrower and any of its Subsidiaries may declare and make dividend payments or other distributions payable solely in its Common Stock; and

(d) so long as no Default or Event of Default shall have occurred and be continuing or would result therefrom, the Borrower and any of its Subsidiaries may make any Restricted Payment.

7.7 Transactions with Affiliates. The Borrower will not, and will not permit or cause any of its Subsidiaries to, enter into any transaction (including, without limitation, any purchase, sale, lease or exchange of property or the rendering of any service) with any officer, director, stockholder or other Affiliate of the Borrower or any of its Subsidiaries, except in the ordinary course of its business and upon fair and reasonable terms that are no less favorable to it than it would be obtained in a comparable arm’s length transaction with a Person other than an Affiliate of the Borrower or any of its Subsidiaries; provided, however, that nothing contained in this **Section 7.7** shall prohibit:

(i) transactions described on **Schedule 7.7** (and any renewals or replacements thereof on terms not materially more disadvantageous to the applicable Credit Party) or otherwise expressly permitted under any other provision of this Agreement;

(ii) transactions among the Borrower and/or the Subsidiary Guarantors not prohibited under this Agreement (provided that such transactions shall remain subject to any other applicable limitations and restrictions set forth in this Agreement); and

(iii) transactions with Affiliates in good faith in the ordinary course of the Borrower’s or such Subsidiary’s business consistent with past practice and on terms no less favorable to the Borrower or such Subsidiary than those that could have been obtained in a comparable transaction on an arm’s length basis from a Person that is not an Affiliate.

7.8 Lines of Business. The Borrower will not, and will not permit or cause any of its Subsidiaries to, engage in any lines of business other than the businesses engaged in by it on the Closing Date and businesses and activities reasonably related thereto.

7.9 Limitation on Certain Restrictions. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, create or otherwise cause or suffer to exist or become effective any restriction or encumbrance on (a) the ability of the Credit Parties to perform and comply with their respective obligations under the Credit Documents or (b) the ability of any Subsidiary of the Borrower to make any dividend payment or other distribution in respect of its Capital Stock, to repay Indebtedness owed to the Borrower or any other Subsidiary, to make loans or advances to the Borrower or any other Subsidiary, or to transfer any of its assets or properties to the Borrower or any other Subsidiary, except (in the case of clause (b) above only) for such restrictions or encumbrances existing under or by reason of (i) this Agreement and the other Credit Documents, (ii) applicable Requirements of Law, (iii) customary non-assignment provisions in leases and licenses of real or personal property entered into by the Borrower or any Subsidiary as lessee or licensee in the ordinary course of business, restricting the assignment or transfer thereof or of property that is the subject thereof, (iv) the Guaranty Fund and (v) customary restrictions and conditions contained in any agreement relating to the sale of assets (including Capital Stock of a Subsidiary) pending such sale, provided that such restrictions and conditions apply only to the assets being sold and such sale is permitted under this Agreement.

7.10 No Other Negative Pledges. The Borrower will not, and will not permit or cause any of its Subsidiaries to, enter into or suffer to exist any agreement or restriction that, directly or indirectly, prohibits or conditions the creation, incurrence or assumption of any Lien upon or with respect to any part of its property or assets, whether now owned or hereafter acquired, or agree to do any of the foregoing, except for such agreements or restrictions existing under or by reason of (i) this Agreement and the other Credit Documents, (ii) applicable Requirements of Law, (iii) any agreement or instrument creating a Permitted Lien (but only to the extent such agreement or restriction applies to the assets subject to such Permitted Lien), (iv) customary provisions in leases and licenses of real or personal property entered into by the Borrower or any Subsidiary as lessee or licensee in the ordinary course of business, restricting the granting of Liens therein or in property that is the subject thereof, and (v) customary restrictions and conditions contained in any agreement relating to the sale of assets (including Capital Stock of a Subsidiary) pending such sale, provided that such restrictions and conditions apply only to the assets being sold and such sale is permitted under this Agreement.

7.11 Investments in Subsidiaries. The Borrower will not, and will not permit or cause any of its Subsidiaries to, directly or indirectly, purchase, own, invest in or otherwise acquire any Capital Stock, evidence of indebtedness or other obligation or security or any interest whatsoever in any Domestic Subsidiary of the Parent that is both (a) not a Wholly-Owned Subsidiary and (b) not a Subsidiary Guarantor (each, a “Non-Wholly-Owned Subsidiary”), or make or permit to exist any loans, advances or extensions of credit to, or any investment in cash or by delivery of property in, any Non-Wholly-Owned Subsidiary (collectively, “Investments”) other than:

- (i) Investments in Non-Wholly-Owned Subsidiaries existing as of the Closing Date;

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- (ii) the Borrower's guarantee of the loans made by ICE US Trust under the New Liquidity Facility; and
- (iii) other Investments in Non Wholly-Owned Subsidiaries made in any fiscal year in an aggregate amount not exceeding 15% of Consolidated EBITDA for the fiscal year most recently ended.

7.12 Fiscal Year. The Borrower will not, and will not permit or cause any of its Subsidiaries to, change its fiscal year or its method of determining fiscal quarters.

7.13 Accounting Changes. Other than as permitted pursuant to **Section 1.2**, the Borrower will not, and will not permit or cause any of its Subsidiaries to, make or permit any material change in its accounting policies or reporting practices, except as may be required by GAAP (or, in the case of Foreign Subsidiaries, generally accepted accounting principles in the jurisdiction of its organization).

ARTICLE VIII

EVENTS OF DEFAULT

8.1 Events of Default. The occurrence of any one or more of the following events shall constitute an “Event of Default”:

(a) The Borrower shall fail to pay when due (i) any principal of any Loan or any Reimbursement Obligation, or (ii) any interest on any Loan, any fee payable under this Agreement or any other Credit Document, or (except as provided in clause (i) above) any other Obligation (other than any Obligation under a Hedge Agreement), and (in the case of this clause (ii) only) such failure shall continue for a period of three (3) Business Days;

(b) The Borrower or any other Credit Party shall (i) fail to observe, perform or comply with any condition, covenant or agreement contained in any of **Sections 5.2(e)(i)**, **5.4**, **5.5**, **5.10**, or **5.11** or in **Articles VI** or **VII** or (ii) fail to observe, perform or comply with any condition, covenant or agreement contained in **Sections 5.1** or **5.2** (other than **Section 5.2(e)(i)**) and (in the case of this clause (ii) only) such failure shall continue unremedied for a period of five (5) days after the earlier of (y) the date on which a Responsible Officer of the Borrower acquires knowledge thereof and (z) the date on which written notice thereof is delivered by the Administrative Agent or any Lender to the Borrower;

(c) The Borrower or any other Credit Party shall fail to observe, perform or comply with any condition, covenant or agreement contained in this Agreement or any of the other Credit Documents other than those enumerated in **Sections 8.1(a)** and **8.1(b)**, and such failure (i) by the express terms of such Credit Document, constitutes an Event of Default, or (ii) shall continue unremedied for any grace period specifically applicable thereto or, if no grace period is specifically applicable, for a period of thirty (30) days after the earlier of (y) the date on which a Responsible Officer of the Borrower acquires knowledge thereof and (z) the date on which written notice thereof is delivered by the Administrative Agent or any Lender to the Borrower; or any default or event of default shall occur under any Hedge Agreement to which the Borrower and any Hedge Party are parties;

(d) Any representation or warranty made or deemed made by or on behalf of the Borrower or any other Credit Party in this Agreement, any of the other Credit Documents or in any certificate, instrument, report or other document furnished at any time in connection herewith or therewith shall prove to have been incorrect, false or misleading in any material respect as of the time made, deemed made or furnished;

(e) The Borrower or any other Credit Party shall (i) fail to pay when due (whether by scheduled maturity, acceleration or otherwise and after giving effect to any applicable grace period or notice provisions) any principal of or interest due under the Existing Credit Facility, the New Liquidity Facility or any other Indebtedness (other than the Indebtedness incurred pursuant to this Agreement) having an aggregate principal amount of at least \$1,000,000 or (ii) fail to observe, perform or comply with any condition, covenant or agreement contained in any agreement or instrument evidencing or relating to any such Indebtedness, or any other event shall occur or condition exist in respect thereof, and the effect of such failure, event or condition is to cause, or permit the holder or holders of such Indebtedness (or a trustee or agent on its or their behalf) to cause (with or without the giving of notice, lapse of time, or both), without regard to any subordination terms with respect thereto, such Indebtedness to become due, or to be prepaid, redeemed, purchased or defeased, prior to its stated maturity;

(f) The Borrower or any other Credit Party shall (i) file a voluntary petition or commence a voluntary case seeking liquidation, winding-up, reorganization, dissolution, arrangement, readjustment of debts or any other relief under the Bankruptcy Code or under any other applicable bankruptcy, insolvency or similar law now or hereafter in effect, (ii) consent to the institution of, or fail to controvert in a timely and appropriate manner, any petition or case of the type described in **Section 8.1(g)**, (iii) apply for or consent to the appointment of or taking possession by a custodian, trustee, receiver or similar official for or of itself or all or a substantial part of its properties or assets, (iv) fail generally, or admit in writing its inability, to pay its debts generally as they become due, (v) make a general assignment for the benefit of creditors or (vi) take any corporate action to authorize or approve any of the foregoing;

(g) Any involuntary petition or case shall be filed or commenced against the Borrower or any other Credit Party seeking liquidation, winding-up, reorganization, dissolution, arrangement, readjustment of debts, the appointment of a custodian, trustee, receiver or similar official for it or all or a substantial part of its properties or any other relief under the Bankruptcy Code or under any other applicable bankruptcy, insolvency or similar law now or hereafter in effect, and such petition or case shall continue undismissed and unstayed for a period of sixty (60) days; or an order, judgment or decree approving or ordering any of the foregoing shall be entered in any such proceeding;

(h) Any one or more money judgments, writs or warrants of attachment, executions or similar processes involving an aggregate amount (to the extent not paid or fully bonded or covered by insurance as to which the surety or insurer, as the case may be, has the financial ability to perform and has acknowledged liability in writing) in excess of \$1,000,000 shall be entered or filed against the Borrower or any other Credit Party or any of their respective

properties and the same shall not be paid, dismissed, bonded, vacated, stayed or discharged within a period of thirty (30) days or in any event later than five (5) days prior to the date of any proposed sale of such property thereunder;

(i) Any Credit Document shall for any reason (other than as explicitly permitted under this Agreement or any other Credit Document) cease to be in full force and effect as to any Credit Party, or any Credit Party or any Person acting on its behalf shall deny or disaffirm such Credit Party's obligations thereunder;

(j) A Change of Control shall have occurred;

(k) Any ERISA Event or any other event or condition shall occur or exist with respect to any Plan or Multiemployer Plan and, as a result thereof, together with all other ERISA Events and other events or conditions then existing, any Credit Party and its ERISA Affiliates have incurred, or could reasonably be expected to incur, liability to any one or more Plans or Multiemployer Plans or to the PBGC (or to any combination thereof) in excess of \$1,000,000; or

(l) Any one or more licenses, permits, accreditations or authorizations of the Borrower or any other Credit Party shall be suspended, limited or terminated or shall not be renewed, or any other action shall be taken by any Governmental Authority or Self-Regulatory Organization in response to any alleged failure by the Borrower or any of its Subsidiaries to be in compliance with applicable Requirements of Law, and such action, individually or in the aggregate, has or could reasonably be expected to have a Material Adverse Effect.

8.2 Remedies: Termination of Commitments, Acceleration, etc. Upon and at any time after the occurrence and during the continuance of any Event of Default, the Administrative Agent shall at the direction, or may with the consent, of the Required Lenders, take any or all of the following actions at the same or different times:

(a) Declare the Commitments and the Swingline Commitment to be terminated, whereupon the same shall terminate; provided that, upon the occurrence of a Bankruptcy Event, the Commitments, the Swingline Commitment and the Issuing Lender's obligation to issue Letters of Credit shall automatically be terminated;

(b) Declare all or any part of the outstanding principal amount of the Loans to be immediately due and payable, whereupon the principal amount so declared to be immediately due and payable, together with all interest accrued thereon and all other amounts payable under this Agreement and the other Credit Documents (but, for an avoidance of doubt, excluding any amounts owing under any Hedge Agreement), shall become immediately due and payable without presentment, demand, protest, notice of intent to accelerate or other notice or legal process of any kind, all of which are hereby knowingly and expressly waived by the Borrower; provided that, upon the occurrence of a Bankruptcy Event, all of the outstanding principal amount of the Loans and all other amounts described in this **Section 8.2(b)** shall automatically become immediately due and payable without presentment, demand, protest, notice of intent to accelerate or other notice or legal process of any kind, all of which are hereby knowingly and expressly waived by the Borrower;

(c) Appoint or direct the appointment of a receiver for the properties and assets of the Credit Parties, both to operate and to sell such properties and assets, and the Borrower, for itself and on behalf of its Subsidiaries, hereby consents to such right and such appointment and hereby waives any objection the Borrower or any Subsidiary may have thereto or the right to have a bond or other security posted by the Administrative Agent on behalf of the Lenders, in connection therewith;

(d) Exercise all rights and remedies available to it under this Agreement, the other Credit Documents and applicable law; and

(e) Direct the Borrower to deposit (and the Borrower hereby agrees, forthwith upon receipt of notice of such direction from the Administrative Agent, to deposit) with the Administrative Agent from time to time such additional amount of cash as is equal to the aggregate Stated Amount of all Letters of Credit then outstanding (whether or not any beneficiary under any Letter of Credit shall have drawn or be entitled at such time to draw thereunder), such amount to be held by the Administrative Agent in the Cash Collateral Account as security for the Letter of Credit Exposure as described in **Section 2.19(h)** ;

8.3 Remedies: Set-Off. Upon and at any time after the occurrence and during the continuance of any Event of Default, each Lender and each of their respective Affiliates is hereby authorized at any time and from time to time, to the fullest extent permitted by applicable law, to set off and apply any and all deposits (general or special, time or demand, provisional or final, in whatever currency) at any time held and other obligations (in whatever currency) at any time owing by such Lender or any such Affiliate to or for the credit or the account of the Borrower against any and all of the obligations of the Borrower now or hereafter existing under this Agreement or any other Credit Document to such Lender, irrespective of whether or not such Lender shall have made any demand under this Agreement or any other Credit Document and although such obligations of the Borrower may be contingent or unmatured or are owed to a branch or office of such Lender different from the branch or office holding such deposit or obligated on such indebtedness. The rights of each Lender and their respective Affiliates under this Section are in addition to other rights and remedies (including other rights of setoff) that such Lender or their respective Affiliates may have. Each Lender agrees to notify the Borrower and the Administrative Agent promptly after any such setoff and application; provided that the failure to give such notice shall not affect the validity of such setoff and application.

ARTICLE IX

THE ADMINISTRATIVE AGENT

9.1 Appointment and Authority. Each of the Lenders (for purposes of this Article, references to the Lenders shall also mean the Swingline Lender) hereby irrevocably appoints Wachovia to act on its behalf as the Administrative Agent hereunder and under the other Credit Documents and authorizes the Administrative Agent to take such actions on its behalf and to exercise such powers as are delegated to the Administrative Agent by the terms hereof or thereof, together with such actions and powers as are reasonably incidental thereto. The provisions of this Article are solely for the benefit of the Administrative Agent and the Lenders, and neither the Borrower nor any other Credit Party shall have rights as a third party beneficiary of any of such provisions.

9.2 Rights as a Lender . The Person serving as the Administrative Agent hereunder shall have the same rights and powers in its capacity as a Lender as any other Lender and may exercise the same as though it were not the Administrative Agent and the term “Lender” or “Lenders” shall, unless otherwise expressly indicated or unless the context otherwise requires, include the Person serving as the Administrative Agent hereunder in its individual capacity. Such Person and its Affiliates may accept deposits from, lend money to, act as the financial advisor or in any other advisory capacity for and generally engage in any kind of business with the Borrower or any Subsidiary or other Affiliate thereof as if such Person were not the Administrative Agent hereunder and without any duty to account therefor to the Lenders.

9.3 Exculpatory Provisions . The Administrative Agent shall not have any duties or obligations except those expressly set forth herein and in the other Loan Documents. Without limiting the generality of the foregoing, the Administrative Agent:

(a) shall not be subject to any fiduciary or other implied duties, regardless of whether a Default or Event of Default has occurred and is continuing;

(b) shall not have any duty to take any discretionary action or exercise any discretionary powers, except discretionary rights and powers expressly contemplated hereby or by the other Credit Documents that the Administrative Agent is required to exercise as directed in writing by the Required Lenders (or such other number or percentage of the Lenders as shall be expressly provided for herein or in the other Credit Documents), provided that the Administrative Agent shall not be required to take any action that, in its opinion or the opinion of its counsel, may expose the Administrative Agent to liability or that is contrary to any Credit Document or applicable law; and

(c) shall not, except as expressly set forth herein and in the other Credit Documents, have any duty to disclose, and shall not be liable for the failure to disclose, any information relating to the Borrower or any of its Affiliates that is communicated to or obtained by the Person serving as the Administrative Agent or any of its Affiliates in any capacity.

The Administrative Agent shall not be liable for any action taken or not taken by it (i) with the consent or at the request of the Required Lenders (or such other number or percentage of the Lenders as shall be necessary, or as the Administrative Agent shall believe in good faith shall be necessary, under the circumstances as provided in **Sections 10.5** and **8.2**) or (ii) in the absence of its own gross negligence or willful misconduct. The Administrative Agent shall be deemed not to have knowledge of any Default or Event of Default unless and until notice describing such Default or Event of Default is given to the Administrative Agent by the Borrower or a Lender.

The Administrative Agent shall not be responsible for or have any duty to ascertain or inquire into (i) any statement, warranty or representation made in or in connection with this Agreement or any other Credit Document, (ii) the contents of any certificate, report or other document delivered hereunder or thereunder or in connection herewith or therewith, (iii) the

performance or observance of any of the covenants, agreements or other terms or conditions set forth herein or therein or the occurrence of any Default or Event of Default, (iv) the validity, enforceability, effectiveness or genuineness of this Agreement, any other Credit Document or any other agreement, instrument or document or (v) the satisfaction of any condition set forth in **Article III** or elsewhere herein, other than to confirm receipt of items expressly required to be delivered to the Administrative Agent.

9.4 Reliance by Administrative Agent. The Administrative Agent shall be entitled to rely upon, and shall not incur any liability for relying upon, any notice, request, certificate, consent, statement, instrument, document or other writing (including any electronic message, internet or intranet website posting or other distribution) believed by it to be genuine and to have been signed, sent or otherwise authenticated by the proper Person. The Administrative Agent also may rely upon any statement made to it orally or by telephone and believed by it to have been made by the proper Person, and shall not incur any liability for relying thereon. In determining compliance with any condition hereunder to the making of a Loan, or the issuance of a Letter of Credit, that by its terms must be fulfilled to the satisfaction of a Lender or the Issuing Lender, the Administrative Agent may presume that such condition is satisfactory to such Lender or the Issuing Lender unless the Administrative Agent shall have received notice to the contrary from such Lender or the Issuing Lender prior to the making of such Loan or the issuance of such Letter of Credit. The Administrative Agent may consult with legal counsel (who may be counsel for the Borrower), independent accountants and other experts selected by it, and shall not be liable for any action taken or not taken by it in accordance with the advice of any such counsel, accountants or experts.

9.5 Delegation of Duties. The Administrative Agent may perform any and all of its duties and exercise its rights and powers hereunder or under any other Credit Document by or through any one or more sub-agents appointed by the Administrative Agent. The Administrative Agent and any such sub-agent may perform any and all of its duties and exercise its rights and powers by or through their respective Related Parties. The exculpatory provisions of this Article shall apply to any such sub-agent and to the Related Parties of the Administrative Agent and any such sub-agent, and shall apply to their respective activities in connection with the syndication of the credit facilities provided for herein as well as activities as Administrative Agent.

9.6 Resignation of Administrative Agent. The Administrative Agent may at any time give notice of its resignation to the Lenders and the Borrower. Upon receipt of any such notice of resignation, the Required Lenders shall have the right, in consultation with the Borrower, to appoint a successor, which shall be a bank with an office in the United States, or an Affiliate of any such bank with an office in the United States, provided that if such bank is not a Lender or an Affiliate of a Lender, the Borrower shall have the right to consent to such appointment (such consent to not be unreasonably withheld). If no such successor shall have been so appointed by the Required Lenders and shall have accepted such appointment within thirty (30) days after the retiring Administrative Agent gives notice of its resignation, then the retiring Administrative Agent may, on behalf of the Lenders, appoint a successor Administrative Agent meeting the qualifications set forth above; provided that if the Administrative Agent shall notify the Borrower and the Lenders that no qualifying Person has accepted such appointment, then such resignation shall nonetheless become effective in accordance with such notice and (1) the retiring Administrative Agent shall be discharged from its duties and obligations hereunder and under the

other Credit Documents (except that in the case of any collateral security held by the Administrative Agent on behalf of the Lenders under any of the Credit Documents, the retiring Administrative Agent shall continue to hold such collateral security until such time as a successor Administrative Agent is appointed) and (2) all payments, communications and determinations provided to be made by, to or through the Administrative Agent shall instead be made by or to each Lender directly, until such time as the Required Lenders appoint a successor Administrative Agent as provided for above in this Section. Upon the acceptance of a successor's appointment as Administrative Agent hereunder, such successor shall succeed to and become vested with all of the rights, powers, privileges and duties of the retiring (or retired) Administrative Agent, and the retiring Administrative Agent shall be discharged from all of its duties and obligations hereunder or under the other Credit Documents (if not already discharged therefrom as provided above in this Section). The fees payable by the Borrower to a successor Administrative Agent shall be the same as those payable to its predecessor unless otherwise agreed between the Borrower and such successor. After the retiring Administrative Agent's resignation hereunder and under the other Credit Documents, the provisions of this Article and **Section 10.1** shall continue in effect for the benefit of such retiring Administrative Agent, its sub-agents and their respective Related Parties in respect of any actions taken or omitted to be taken by any of them while the retiring Administrative Agent was acting as Administrative Agent.

9.7 Non-Reliance on Administrative Agent and Other Lenders . Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender or any of their Related Parties and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender or any of their Related Parties and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Credit Document or any related agreement or any document furnished hereunder or thereunder.

9.8 No Other Duties, Etc . Anything herein to the contrary notwithstanding, none of the Bookrunners, Arrangers, Syndication Agent or other agents listed on the cover page hereof shall have any powers, duties or responsibilities under this Agreement or any of the other Credit Documents, except in its capacity, as applicable, as the Administrative Agent or a Lender hereunder.

9.9 Guaranty Matters . The Lenders hereby authorize the Administrative Agent, at its option and in its discretion, to release any Guarantor from its obligations under the Guaranty if such Person ceases to be a Subsidiary as a result of a transaction permitted hereunder. Upon request by the Administrative Agent at any time, the Lenders will confirm in writing the Administrative Agent's authority to release any Guarantor from its obligations under the Guaranty, pursuant to this **Section 9.9** .

9.10 Swingline Lender . The provisions of this **Article IX** (other than **Section 9.2**) shall apply to the Swingline Lender mutatis mutandis to the same extent as such provisions apply to the Administrative Agent.

ARTICLE X
MISCELLANEOUS

10.1 Expenses; Indemnity; Damage Waiver.

(a) The Borrower shall pay (i) all reasonable out-of-pocket expenses incurred by the Administrative Agent, the Arrangers and their respective Affiliates (including the reasonable fees, charges and disbursements of counsel for the Administrative Agent and the Arrangers), in connection with the syndication of the credit facilities provided for herein, the preparation, negotiation, execution, delivery and administration of this Agreement and the other Credit Documents or any amendments, modifications or waivers of the provisions hereof or thereof (whether or not the transactions contemplated hereby or thereby shall be consummated), (ii) all out-of-pocket expenses incurred by the Administrative Agent or any Lender (including the fees, charges and disbursements of any counsel for the Administrative Agent or any Lender), in connection with the enforcement or protection of its rights (A) in connection with this Agreement and the other Credit Documents, including its rights under this Section, or (B) in connection with the Loans made hereunder, including all such out-of-pocket expenses incurred during any workout, restructuring or negotiations in respect of such Loans, (iii) all reasonable out-of-pocket expenses incurred by the Issuing Lender in connection with the issuance, amendment, renewal or extension of any Letter of Credit or any demand for payment thereunder, and (iv) any civil penalty or fine assessed by OFAC against, and all reasonable costs and expenses (including counsel fees and disbursements) incurred in connection with defense thereof by, the Administrative Agent or any Lender as a result of conduct of the Borrower that violates a sanction enforced by OFAC.

(b) The Borrower shall indemnify the Administrative Agent (and any sub-agent thereof), the Arrangers, each Lender, and each Related Party of any of the foregoing persons (each such person being called an “Indemnitee”) against, and hold each Indemnitee harmless from, any and all losses, claims, damages, liabilities and related expenses (including the fees, charges and disbursements of any counsel for any Indemnitee), incurred by any Indemnitee or asserted against any Indemnitee by any third party or by the Borrower or any other Credit Party arising out of, in connection with, or as a result of (i) the execution or delivery of this Agreement, any other Credit Document or any agreement or instrument contemplated hereby or thereby, the performance by the parties hereto of their respective obligations hereunder or thereunder or the consummation of the transactions contemplated hereby or thereby, (ii) any Loan or Letter of Credit or the use or proposed use of the proceeds therefrom (including any refusal by the Issuing Lender to honor a demand for payment under a Letter of Credit if the documents presented in connection with such demand do not strictly comply with the terms of such Letter of Credit), (iii) any actual or alleged presence or release of Hazardous Substances on or from any property owned or operated by any Credit Party, or any Environmental Claim related in any way to any Credit Party, or (iv) any actual or prospective claim, litigation, investigation or proceeding relating to any of the foregoing, whether based on contract, tort or any other theory, whether brought by a third party or by the Borrower or any other Credit Party, and regardless of whether any Indemnitee is a party thereto; provided that such indemnity shall not, as to any Indemnitee, be available to the extent that such losses, claims, damages, liabilities or related expenses are determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the gross negligence or willful misconduct of such Indemnitee.

(c) To the extent that the Borrower for any reason fails to indefeasibly pay any amount required under **Section 10.1(a)** or **Section 10.1(b)** to be paid by it to the Administrative Agent (or any sub-agent thereof), each Lender severally agrees to pay to the Administrative Agent (or any such sub-agent) such Lender's proportion (based on the percentages as used in determining the Required Lenders as of the time that the applicable unreimbursed expense or indemnity payment is sought) of such unpaid amount, provided that the unreimbursed expense or indemnified loss, claim, damage, liability or related expense, as the case may be, was incurred by or asserted against the Administrative Agent (or any such sub-agent) in its capacity as such, or against any Related Party of any of the foregoing acting for the Administrative Agent (or any such sub-agent) in connection with such capacity. The obligations of the Lenders under this **Section 10.1(c)** are subject to the provisions of **Section 2.3(c)**.

(d) To the fullest extent permitted by applicable law, the Borrower shall not assert, and hereby waives, any claim against any Indemnitee, on any theory of liability, for special, indirect, consequential or punitive damages (as opposed to direct or actual damages) arising out of, in connection with, or as a result of, this Agreement, any other Credit Document or any agreement or instrument contemplated hereby, the transactions contemplated hereby or thereby, any Loan or Letter of Credit or the use of the proceeds thereof. No Indemnitee referred to in **Section 10.1(b)** shall be liable for any damages arising from the use by unintended recipients of any information or other materials distributed by it through telecommunications, electronic or other information transmission systems (including Intralinks, SyndTrak or similar systems) in connection with this Agreement or the other Credit Documents or the transactions contemplated hereby or thereby, except as a result of such Indemnitee's gross negligence or willful misconduct.

(e) All amounts due under this Section shall be payable by the Borrower upon demand therefor.

10.2 Governing Law; Submission to Jurisdiction; Waiver of Venue; Service of Process.

(a) This Agreement and the other Credit Documents shall (except as may be expressly otherwise provided in any Credit Document) be governed by, and construed in accordance with, the law of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules); provided that each Letter of Credit shall be governed by, and construed in accordance with, the laws or rules designated in such Letter of Credit or application therefor or, if no such laws or rules are designated, the International Standby Practices of the International Chamber of Commerce, as in effect from time to time (the "ISP"), and, as to matters not governed by the ISP, the laws of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).

(b) Each Credit Party irrevocably and unconditionally submits, for itself and its property, to the nonexclusive jurisdiction of the courts of the State of New York sitting in New

York County and of the United States District Court of the Southern District of New York, and any appellate court from any thereof, in any action or proceeding arising out of or relating to this Agreement or any other Credit Document, or for recognition or enforcement of any judgment, and each of the parties hereto irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding may be heard and determined in such state court or, to the fullest extent permitted by applicable law, in such federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Agreement or in any Credit Document shall affect any right that the Administrative Agent, any Lender may otherwise have to bring any action or proceeding relating to this Agreement or any other Credit Document against any Credit Party or any of their respective properties in the courts of any jurisdiction.

(c) The Borrower irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any objection that it may now or hereafter have to the laying of venue of any action or proceeding arising out of or relating to this Agreement or any other Credit Document in any court referred to in **Section 10.2(b)**. Each of the parties hereto hereby irrevocably waives, to the fullest extent permitted by applicable law, the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court.

(d) Each party hereto irrevocably consents to service of process in the manner provided for notices in **Section 10.4**. Nothing in this Agreement will affect the right of any party hereto to serve process in any other manner permitted by applicable law.

10.3 Waiver of Jury Trial. EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY OTHER CREDIT DOCUMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH PARTY HERETO (A) CERTIFIES THAT NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PERSON HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PERSON WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER AND (B) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HERETO HAVE BEEN INDUCED TO ENTER INTO THIS AGREEMENT AND THE OTHER CREDIT DOCUMENTS BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION.

10.4 Notices; Effectiveness; Electronic Communication.

(a) Except in the cases of notices and other communications expressly permitted to be given by telephone (and except as provided in **Section 10.4(b)**), all notices and other communications provided for herein shall be in writing and shall be delivered by hand or overnight courier service, mailed by certified or registered mail or sent by telecopier as follows:

(i) if to the Borrower, the Administrative Agent, the Issuing Lender or the Swingline Lender, to it at the address (or telecopier number) specified for such Person on **Schedule 1.1(a)**; and

(ii) if to any Lender, to it at its address (or telecopier number) set forth in its Administrative Questionnaire.

Notices sent by hand or overnight courier service, or mailed by certified or registered mail, shall be deemed to have been given when received; notices sent by telecopier shall be deemed to have been given when sent (except that, if not given during normal business hours for the recipient, shall be deemed to have been given at the opening of business on the next business day for the recipient). Notices delivered through electronic communications to the extent provided in **Section 10.4(b)** shall be effective as provided in **Section 10.4(b)**.

(b) Notices and other communications to the Lenders hereunder may be delivered or furnished by electronic communication (including e-mail and internet or intranet websites) pursuant to procedures approved by the Administrative Agent, provided that the foregoing shall not apply to notices to any Lender pursuant to **Article II** if such Lender has notified the Administrative Agent that it is incapable of receiving notices under such Article by electronic communication. The Administrative Agent or the Borrower may, in its discretion, agree to accept notices and other communications to it hereunder by electronic communication pursuant to procedures approved by it, provided that approval of such procedures may be limited to particular notices or communications. Unless the Administrative Agent otherwise prescribes, (i) notices and other communications sent to an e-mail address shall be deemed received upon the sender's receipt of an acknowledgement from the intended recipient (such as by the "return receipt requested" function, as available, return e-mail or other written acknowledgement), provided that if such notice or other communication is not sent during the normal business hours of the recipient, such notice or communication shall be deemed to have been sent at the opening of business on the next business day for the recipient, and (ii) notices or other communications posted to an internet or intranet website shall be deemed received upon the deemed receipt by the intended recipient at its e-mail address as described in the foregoing clause (i) of notification that such notice or communication is available and identifying the website address therefor.

(c) Any party hereto may change its address or telecopier number for notices and other communications hereunder by notice to the other parties hereto (except that each Lender need not give notice of any such change to the other Lenders in their capacities as such).

10.5 Amendments, Waivers, etc. No amendment, modification, waiver or discharge or termination of, or consent to any departure by any Credit Party from, any provision of this Agreement or any other Credit Document shall be effective unless in a writing signed by the Required Lenders (or by the Administrative Agent at the direction or with the consent of the Required Lenders), and then the same shall be effective only in the specific instance and for the specific purpose for which given; provided, however, that no such amendment, modification, waiver, discharge, termination or consent shall:

(a) unless agreed to by each Lender directly affected thereby, (i) reduce or forgive the principal amount of any Loan or Reimbursement Obligation, reduce the rate of or forgive any

interest thereon (provided that only the consent of the Required Lenders shall be required to waive the applicability of any post-default increase in interest rates), or reduce or forgive any fees hereunder (other than fees payable to the Administrative Agent or the Arrangers for their own accounts) (it being understood that an amendment to the definition of Total Leverage Ratio (or any defined terms used therein) shall not constitute a reduction of any interest rate or fees hereunder), (ii) extend the final scheduled maturity date or any other scheduled date for the payment of any principal of or interest on any Loan (including any scheduled date for the mandatory termination of any Commitments), or extend the time of payment of any fees hereunder (other than fees payable to the Administrative Agent or the Arrangers for their own accounts), or extend the time of payment of any Reimbursement Obligation or any interest thereon, or extend the expiry date of any Letter of Credit beyond the Letter of Credit Maturity Date, or (iii) increase any Commitment of any such Lender over the amount thereof in effect or extend the maturity thereof (it being understood that a waiver of any condition precedent set forth in **Section 3.2** or of any Default or Event of Default or mandatory termination in the Commitments, if agreed to by the Required Lenders, Required Revolving Credit Lenders or all Lenders (as may be required hereunder with respect to such waiver), shall not constitute such an increase);

(b) unless agreed to by all of the Lenders, (i) release any Guarantor from its obligations under the Guaranty (other than (A) as may be otherwise specifically provided in this Agreement or in any other Credit Document or (B) in connection with the sale or other disposition of all of the Capital Stock of such Guarantor in a transaction expressly permitted under or pursuant to this Agreement), (ii) reduce the percentage of the aggregate Commitments or of the aggregate unpaid principal amount of the Loans, or the number or percentage of Lenders, that shall be required for the Lenders or any of them to take or approve, or direct the Administrative Agent to take, any action hereunder or under any other Credit Document (including as set forth in the definition of “ Required Lenders ”), (iii) change any other provision of this Agreement or any of the other Credit Documents requiring, by its terms, the consent or approval of all the Lenders for such amendment, modification, waiver, discharge, termination or consent, or (iv) change or waive any provision of **Section 2.12(e)** , **Section 2.14** , any other provision of this Agreement or any other Credit Document requiring pro rata treatment of any Lenders, or this **Section 10.5** ;

(c) unless agreed to by all of the Revolving Credit Lenders, reduce the percentage set forth in the definition of “ Required Revolving Credit Lenders ” (it being understood that no consent of any other Lender or the Administrative Agent is required);

(d) unless agreed to by the Required Revolving Credit Lenders, (i) except for any such changes to which **Section 10.5(a)** applies, change any provision of **Section 2.19** or any terms or provisions of any Letter of Credit or any supporting documentation relating thereto (it being understood that no consent of any other Lender or the Administrative Agent is required), or (ii) amend, modify or waive any condition precedent to any Borrowing of Revolving Loans or issuance of a Letter of Credit set forth in **Section 3.2** (including in connection with any waiver of an existing Default or Event of Default);

(e) unless agreed to by the Swingline Lender or the Administrative Agent in addition to the Lenders required as provided hereinabove to take such action, affect the respective rights or obligations of the Swingline Lender or the Administrative Agent, as applicable, hereunder or under any of the other Credit Documents; and

(f) unless agreed to by each Hedge Party that would be adversely affected thereby in its capacity as such relative to the Lenders, (i) amend the definition of “Guaranteed Obligations” in the Guaranty (or any similar defined term in any other Credit Document benefiting such Hedge Party), (ii) amend the definition of “Guaranteed Parties” in the Guaranty (or any similar defined term in any other Credit Document benefiting such Hedge Party), (iii) amend any provision regarding priority of payments in this Agreement or any other Credit Document, or (iv) release any Guarantor from its obligations under the Guaranty (other than (A) as may be otherwise specifically provided in this Agreement or in any other Credit Document or (B) in connection with the sale or other disposition of all of the Capital Stock of such Guarantor in a transaction expressly permitted under or pursuant to this Agreement);

and provided further that the Fee Letters may only be amended or modified, and any rights thereunder waived, in a writing signed by the parties thereto.

Notwithstanding the fact that the consent of all Lenders is required in certain circumstances as set forth above, each Lender is entitled to vote as such Lender sees fit on any bankruptcy reorganization plan that affects the Loans, and each Lender acknowledges that the provisions of Section 1126(c) of the Bankruptcy Code supersedes the unanimous consent provisions set forth herein. Notwithstanding anything to the contrary herein, no Defaulting Lender shall have any right to approve or disapprove any amendment, waiver or consent hereunder, except that the Commitment of such Lender may not be increased or extended without the consent of such Lender.

10.6 Successors and Assigns .

(a) The provisions of this Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns permitted hereby, except that neither the Borrower nor any other Credit Party may assign or otherwise transfer any of its rights or obligations hereunder without the prior written consent of the Administrative Agent and each Lender and no Lender may assign or otherwise transfer any of its rights or obligations hereunder except (i) to an assignee in accordance with the provisions of Section **10.6(b)** , (ii) by way of participation in accordance with the provisions of **Section 10.6(d)** or (iii) by way of pledge or assignment of a security interest subject to the restrictions of **Section 10.6(f)** (and any other attempted assignment or transfer by any party hereto shall be null and void). Nothing in this Agreement, expressed or implied, shall be construed to confer upon any Person (other than the parties hereto, their respective successors and assigns permitted hereby, Participants to the extent provided in **Section 10.6(d)** and, to the extent expressly contemplated hereby, the Related Parties of each of the Administrative Agent and the Lenders) any legal or equitable right, remedy or claim under or by reason of this Agreement.

(b) Any Lender may assign to one or more assignees all or a portion of its rights and obligations under this Agreement (including all or a portion of its Commitments and the Loans (including for purposes of this **Section 10.6(b)** , participations in Swingline Loans and Letters of Credit) at the time owing to it); provided that any such assignment shall be subject to the following conditions:

(i) The prior written consent of the Administrative Agent and the Borrower (such consent not to be unreasonably withheld or delayed) is obtained, except that

(A) the consent of the Borrower shall not be required if (y) a Default or Event of Default has occurred and is continuing at the time of such assignment or (z) such assignment is to a Lender, an Affiliate of a Lender or an Approved Fund; and

(B) the consent of the Administrative Agent shall not be required for assignments in respect of (y) a Revolving Credit Commitment if such assignment is to a Person that is a Revolving Credit Lender or (z) Term Loans to a Person who is a Term Lender, an Affiliate of a Term Lender or an Approved Fund;

(ii) (A) in the case of an assignment of the entire remaining amount of the assigning Lender's Commitment and the Loans at the time owing to it or in the case of an assignment to a Lender, an Affiliate of a Lender or an Approved Fund, no minimum amount need be assigned, and (B) in any case not described in clause (A) above, the aggregate amount of the Commitment (which for this purpose includes Loans outstanding thereunder) or, if the applicable Commitment is not then in effect, the principal outstanding balance of the Loans of the assigning Lender subject to each such assignment (determined as of the date the Assignment and Assumption with respect to such assignment is delivered to the Administrative Agent or, if "Trade Date" is specified in the Assignment and Assumption, as of the Trade Date) shall not be less than (x) \$5,000,000, in the case of any assignment in respect of a Revolving Credit Commitment (which for this purpose includes Revolving Loans outstanding), (y) the entire Swingline Commitment and the full amount of the outstanding Swingline Loans, in the case of Swingline Loans, or (z) \$1,000,000, in the case of any assignment in respect of a Commitment for Term Loans (which for this purpose includes Term Loans outstanding), in any case, treating assignments to two or more Approved Funds under common management as one assignment for purposes of the minimum amounts, unless each of the Administrative Agent and, so long as no Default or Event of Default has occurred and is continuing, the Borrower otherwise consents (each such consent not to be unreasonably withheld or delayed);

(iii) each partial assignment shall be made as an assignment of a proportionate part of all the assigning Lender's rights and obligations under this Agreement with respect to the Loan or the Commitment assigned, except that this clause (iii) shall not apply to rights in respect of Swingline Loans;

(iv) the parties to each assignment shall execute and deliver to the Administrative Agent an Assignment and Assumption, together with a processing and recordation fee of \$3,500 for each assignment and the assignee, if it is not a Lender, shall deliver to the Administrative Agent an Administrative Questionnaire;

-
- (v) no such assignment shall be made to the Borrower or any of the Borrower's Affiliates or Subsidiaries; and
 - (vi) no such assignment shall be made to a natural person.

Subject to acceptance and recording thereof by the Administrative Agent pursuant to **Section 10.6(c)**, from and after the effective date specified in each Assignment and Assumption, the assignee thereunder shall be a party to this Agreement and, to the extent of the interest assigned by such Assignment and Assumption, have the rights and obligations of a Lender under this Agreement, and the assigning Lender thereunder shall, to the extent of the interest assigned by such Assignment and Assumption, be released from its obligations under this Agreement (and, in the case of an Assignment and Assumption covering all of the assigning Lender's rights and obligations under this Agreement, such Lender shall cease to be a party hereto) but shall continue to be entitled to the benefits of **Sections 2.15(a)**, **2.15(b)**, **2.16**, **2.17** and **10.1** with respect to facts and circumstances occurring prior to the effective date of such assignment. If requested by or on behalf of the assignee, the Borrower, at its own expense, will execute and deliver to the Administrative Agent a new Note or Notes to the order of the assignee (and, if the assigning Lender has retained any portion of its rights and obligations hereunder, to the order of the assigning Lender), prepared in accordance with the applicable provisions of **Section 2.4** as necessary to reflect, after giving effect to the assignment, the Commitments and/or outstanding Loans, as the case may be, of the assignee and (to the extent of any retained interests) the assigning Lender, in substantially the form of **Exhibits A-1, A-2 and/or A-3**, as applicable. Any assignment or transfer by a Lender of rights or obligations under this Agreement that does not comply with this **Section 10.6(b)** shall be treated for purposes of this Agreement as a sale by such Lender of a participation in such rights and obligations in accordance with **Section 10.6(d)**.

(c) The Administrative Agent, acting solely for this purpose as an agent of the Borrower, shall maintain at its address for notices referred to in **Schedule 1.1(a)** a copy of each Assignment and Assumption delivered to it and a register for the recordation of the names and addresses of the Lenders, and the Commitments of, and principal amounts of the Loans owing to, each Lender pursuant to the terms hereof from time to time (the "Register"). The entries in the Register shall be conclusive, and the Borrower, the Administrative Agent and the Lenders may treat each Person whose name is recorded in the Register pursuant to the terms hereof as a Lender hereunder for all purposes of this Agreement, notwithstanding notice to the contrary. The Register shall be available for inspection by the Borrower, at any reasonable time and from time to time upon reasonable prior notice. In addition, at any time that a request for a consent for a material or substantive change to the Credit Documents is pending, any Lender wishing to consult with other Lenders in connection therewith may request and receive from the Administrative Agent a copy of the Register.

(d) Any Lender may at any time, without the consent of, or notice to, the Borrower or the Administrative Agent, sell participations to any Person (other than a natural person or the Borrower or any of the Borrower's Affiliates or Subsidiaries) (each, a "Participant") in all or a portion of such Lender's rights and/or obligations under this Agreement (including all or a portion of its Commitments and/or the Loans (including such Lender's participations Swingline Loans and Letters of Credit) owing to it); provided that (i) such Lender's obligations under this Agreement shall remain unchanged, (ii) such Lender shall remain solely responsible to the other

parties hereto for the performance of such obligations and (iii) the Borrower, the Administrative Agent, the Lenders and the Swingline Lender shall continue to deal solely and directly with such Lender in connection with such Lender's rights and obligations under this Agreement. Any agreement or instrument pursuant to which a Lender sells such a participation shall provide that such Lender shall retain the sole right to enforce this Agreement and to approve any amendment, modification or waiver of any provision of this Agreement; provided that such agreement or instrument may provide that such Lender will not, without the consent of the Participant, agree to any amendment, waiver or other modification described in **Section 10.5(a)** and clause (i) of **Section 10.5(b)** that affects such Participant. Subject to **Section 10.6(e)**, the Borrower agrees that each Participant shall be entitled to the benefits of **Sections 2.15(a)**, **2.15(b)**, **2.16** and **2.17** to the same extent as if it were a Lender and had acquired its interest by assignment pursuant to **Section 10.6(b)**. To the extent permitted by law, each Participant also shall be entitled to the benefits of **Section 8.3** as though it were a Lender; provided such Participant agrees to be subject to **Section 2.14(b)** as though it were a Lender.

(e) A Participant shall not be entitled to receive any greater payment under **Section 2.15(a)**, **Section 2.15(b)** or **Section 2.16** than the applicable Lender would have been entitled to receive with respect to the participation sold to such Participant, unless the sale of the participation to such Participant is made with the Borrower's prior written consent. A Participant that would be a Foreign Lender if it were a Lender shall not be entitled to the benefits of **Section 2.16** unless the Borrower is notified of the participation sold to such Participant and such Participant agrees, for the benefit of the Borrower, to comply with **Section 2.16(e)** as though it were a Lender.

(f) Any Lender may at any time pledge or assign, or grant a security interest in, all or any portion of its rights under this Agreement (including under its Notes, if any) to secure obligations of such Lender, including any pledge or assignment or grant to secure obligations to a Federal Reserve Bank; provided that no such pledge or assignment or grant shall release such Lender from any of its obligations hereunder or substitute any such pledgee or assignee or grantee for such Lender as a party hereto.

(g) The words "execution," "signed," "signature," and words of like import in any Assignment and Assumption shall be deemed to include electronic signatures or the keeping of records in electronic form, each of which shall be of the same legal effect, validity or enforceability as a manually executed signature or the use of a paper-based recordkeeping system, as the case may be, to the extent and as provided for in any applicable law, including the Federal Electronic Signatures in Global and National Commerce Act or any state laws based on the Uniform Electronic Transactions Act.

(h) Any Lender or participant may, in connection with any assignment, participation, pledge or proposed assignment, participation or pledge pursuant to this **Section 10.6**, disclose to the Assignee, Participant or pledgee or proposed Assignee, Participant or pledgee any information relating to the Borrower and its Subsidiaries furnished to it by or on behalf of any other party hereto, provided that such Assignee, Participant or pledgee or proposed Assignee, Participant or pledgee agrees in writing to keep such information confidential to the same extent required of the Lenders under **Section 10.11**.

(i) Notwithstanding anything to the contrary contained herein, if Wachovia assigns all of its Revolving Credit Commitments and Revolving Loans in accordance with this **Section 10.6** , Wachovia may resign as Issuing Lender and Swingline Lender upon written notice to the Borrower and the Lenders. Upon any such notice of resignation, the Borrower shall have the right to appoint from among the Lenders a successor Issuing Lender; provided that no failure by the Borrower to make such appointment shall affect the resignation of Wachovia as Issuing Lender. Wachovia shall retain all of the rights and obligations of the Issuing Lender hereunder with respect to all Letters of Credit issued by it and outstanding as of the effective date of its resignation and all obligations of the Borrower and the Revolving Credit Lenders with respect thereto (including the right to require the Revolving Credit Lenders to make Revolving Loans or fund participation interests pursuant to **Section 2.19**).

10.7 No Waiver . The rights and remedies of the Administrative Agent and the Lenders expressly set forth in this Agreement and the other Credit Documents are cumulative and in addition to, and not exclusive of, all other rights and remedies available at law, in equity or otherwise. No failure or delay on the part of the Administrative Agent or any Lender in exercising any right, power or privilege shall operate as a waiver thereof, nor shall any single or partial exercise of any such right, power or privilege preclude other or further exercise thereof or the exercise of any other right, power or privilege or be construed to be a waiver of any Default or Event of Default. No course of dealing between any Credit Party, the Administrative Agent or the Lenders or their agents or employees shall be effective to amend, modify or discharge any provision of this Agreement or any other Credit Document or to constitute a waiver of any Default or Event of Default. No notice to or demand upon any Credit Party in any case shall entitle any Credit Party to any other or further notice or demand in similar or other circumstances or constitute a waiver of the right of the Administrative Agent or any Lender to exercise any right or remedy or take any other or further action in any circumstances without notice or demand.

10.8 Survival . All representations, warranties and agreements made by or on behalf of the Borrower or any other Credit Party in this Agreement and in the other Credit Documents shall survive the execution and delivery hereof or thereof and the making and repayment of the Loans until the indefeasible payment in full of the Obligations. In addition, notwithstanding anything herein or under applicable law to the contrary, the provisions of this Agreement and the other Credit Documents relating to indemnification or payment of costs and expenses, including, without limitation, the provisions of **Sections 2.15(a)** , **2.15(b)** , **2.16** , **2.17** and **10.1** , shall survive the payment in full of all Loans and Letters of Credit, the termination of the Commitments and any termination of this Agreement or any of the other Credit Documents. Except as set forth above, this Agreement and the Credit Documents shall be deemed terminated upon the indefeasible payment in full of the Obligations.

10.9 Severability . To the extent any provision of this Agreement is prohibited by or invalid under the applicable law of any jurisdiction, such provision shall be ineffective only to the extent of such prohibition or invalidity and only in such jurisdiction, without prohibiting or invalidating such provision in any other jurisdiction or the remaining provisions of this Agreement in any jurisdiction.

10.10 Construction. The headings of the various articles, sections and subsections of this Agreement and the table of contents have been inserted for convenience only and shall not in any way affect the meaning or construction of any of the provisions hereof. Except as otherwise expressly provided herein and in the other Credit Documents, in the event of any inconsistency or conflict between any provision of this Agreement and any provision of any of the other Credit Documents, the provision of this Agreement shall control.

10.11 Confidentiality. Each of the Administrative Agent and the Lenders agree to maintain the confidentiality of the Information (as defined below), except that Information may be disclosed (a) to its Affiliates and to its and its Affiliates' respective partners, directors, officers, employees, agents, advisors and other representatives (it being understood that the Persons to whom such disclosure is made will be informed of the confidential nature of such Information and instructed to keep such Information confidential), (b) to the extent requested by any regulatory authority purporting to have jurisdiction over it (including any self-regulatory authority, such as the National Association of Insurance Commissioners), (c) to the extent required by applicable Requirements of Law or by any subpoena or similar legal process, (d) to any other party hereto, (e) in connection with the exercise of any remedies hereunder or under any other Credit Document or any action or proceeding relating to this Agreement or any other Credit Document or the enforcement of rights hereunder or thereunder, (f) subject to an agreement containing provisions substantially the same as those of this Section, to (i) any assignee of or Participant in, or any prospective assignee of or Participant in, any of its rights or obligations under this Agreement, or (ii) any actual or prospective counterparty (or its advisors) to any swap or derivative transaction relating to the Borrower and its obligations, (g) with the consent of the Borrower or (h) to the extent such Information (x) becomes publicly available other than as a result of a breach of this Section or (y) becomes available to the Administrative Agent, any Lender or any of their respective Affiliates on a nonconfidential basis from a source other than the Borrower or any of its Subsidiaries or Affiliates.

For purposes of this Section, " Information " means all information received from the Credit Parties relating to any Credit Party or any of their respective businesses, other than any such information that is available to the Administrative Agent or any Lender on a nonconfidential basis prior to disclosure by any Credit Party, provided that, in the case of information received from any Credit Party after the date hereof, such information is clearly identified at the time of delivery as confidential. Any Person required to maintain the confidentiality of Information as provided in this Section shall be considered to have complied with its obligation to do so if such Person has exercised the same degree of care to maintain the confidentiality of such Information as such Person would accord to its own confidential information.

10.12 Counterparts; Integration; Effectiveness. This Agreement may be executed in counterparts (and by different parties hereto in different counterparts), each of which shall constitute an original, but all of which when taken together shall constitute a single contract. This Agreement and the other Credit Documents constitute the entire contract among the parties relating to the subject matter hereof and supersede any and all previous agreements and understandings, oral or written, relating to the subject matter hereof (except for the Fee Letters). Except as provided in **Section 3.1** , this Agreement shall become effective when it shall have been executed by the Administrative Agent and when the Administrative Agent shall have

received counterparts hereof that, when taken together, bear the signatures of each of the other parties hereto. Delivery of an executed counterpart of a signature page of this Agreement by telecopy (or by PDF formatted page sent by electronic mail) shall be effective as delivery of a manually executed counterpart of this Agreement.

10.13 Disclosure of Information. The Borrower agrees and consents to the Administrative Agent's and the Arrangers' disclosure of information relating to this transaction to Gold Sheets and other similar bank trade publications. Such information will consist of deal terms and other information customarily found in such publications.

10.14 USA Patriot Act Notice. Each Lender that is subject to the Act (as defined below) and the Administrative Agent (for itself and not on behalf of any Lender) hereby notifies the Borrower that pursuant to the requirements of the USA Patriot Act (Title III of Pub. L. 107-56 (signed into law October 26, 2001)) (the "Act"), it is required to obtain, verify and record information that identifies the Borrower, which information includes the name and address of the Borrower and other information that will allow such Lender or the Administrative Agent, as applicable, to identify the Borrower in accordance with the Act.

IN WITNESS WHEREOF , the parties hereto have caused this Agreement to be executed by their duly authorized officers as of the date first above written.

INTERCONTINENTALEXCHANGE, INC.

By: /s/ Scott A. Hill
Name: Scott A. Hill
Title: Senior Vice President, Chief Financial Officer

WACHOVIA BANK, NATIONAL ASSOCIATION ,
as Administrative Agent, Swingline Lender and as a
Lender

By: /s/ G. Mendel Lay, Jr.
Name: G. Mendel Lay, Jr.
Title: Senior Vice President

BANK OF AMERICA, N.A. , as Syndication Agent
and as a Lender

By: /s/ Mark A. Phillips
Name: Mark A. Phillips
Title: Senior Vice President

**CHANG HWA COMMERCIAL BANK, LTD., NEW
YORK BRANCH** , as a Lender

By: /s/ Jim C.Y. Chen
Name: Jim C.Y. Chen
Title: V.P. & General Manager

SOCIETE GENERALE , as Documentation Agent and
as a Lender

By: /s/ Ambrish Thanawala
Name: Ambrish Thanawala
Title: Managing Director

Signature Page to IntercontinentalExchange, Inc. Credit Agreement

**THE BANK OF TOKYO-MITSUBISHI UFJ, LTD.,
NEW YORK BRANCH** , as Documentation Agent and
as a Lender

By: /s/ Chimie T. Pemba
Name: Chimie T. Pemba
Title: Authorized Signatory

DEUTSCHE BANK AG NEW YORK BRANCH , as
a Lender

By: /s/ Melissa Curry
Name: Melissa Curry
Title: Director

By: /s/ Michael Campites
Name: Michael Campites
Title: Vice President

THE BANK OF NEW YORK MELLON , as a Lender

By: /s/ Robert J. Motzel, Jr.
Name: Robert J. Motzel, Jr.
Title: Vice President

**FIRST COMMERCIAL BANK NEW YORK
AGENCY** , as a Lender

By: /s/ Yu-Mei Hsiao
Name: Yu-Mei Hsiao
Title: Assistant General Manager

BANK OF MONTREAL (Chicago Branch) , as a
Lender

By: /s/ Linda C. Haven
Name: Linda C. Haven
Title: Managing Director

Signature Page to IntercontinentalExchange, Inc. Credit Agreement

COMERICA BANK , as a Lender

By: /s/ Scott M. Kowalski

Name: Scott M. Kowalski

Title: Vice President

FIFTH THIRD BANCORP , as a Lender

By: /s/ Kenneth W. Deere

Name: Kenneth W. Deere

Title: Senior Vice President

MORGAN STANLEY BANK, N.A. , as a Lender

By: /s/ Melissa James

Name: Melissa James

Title: Authorized Signatory

REGIONS BANK , as a Lender

By: /s/ Stephen Brothers

Name: Stephen Brothers

Title: Senior Vice President

**MEGA INTERNATIONAL COMMERCIAL BANK
CO., LTD. NEW YORK BRANCH** , as a Lender

By: /s/ Tsang – Pei Hsu

Name: Tsang – Pei Hsu

Title: VP & DGM

Signature Page to IntercontinentalExchange, Inc. Credit Agreement

EXHIBITS

FORM OF TERM NOTE

\$ _____

_____, 2009
Charlotte, North Carolina

FOR VALUE RECEIVED, INTERCONTINENTAL EXCHANGE, INC., a Delaware corporation (the "Borrower"), hereby promises to pay to the order of

_____ (the "Lender"), at the offices of Wachovia Bank, National Association (the "Administrative Agent") located at One Wachovia Center, 301 South College Street, Charlotte, North Carolina (or at such other place or places as the Administrative Agent may designate), at the times and in the manner provided in the Credit Agreement, dated as of _____, 2009 (as amended, modified, restated or supplemented from time to time, the "Credit Agreement"), among the Borrower, the Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent, the principal sum of

_____ **DOLLARS** (\$ _____), under the terms and conditions of this promissory note (this "Term Note") and the Credit Agreement. The defined terms in the Credit Agreement are used herein with the same meaning. The Borrower also promises to pay interest on the aggregate unpaid principal amount of this Term Note at the rates applicable thereto from time to time as provided in the Credit Agreement.

This Term Note is one of a series of Term Notes referred to in the Credit Agreement and is issued to evidence the Term Loan made by the Lender pursuant to the Credit Agreement. All of the terms, conditions and covenants of the Credit Agreement are expressly made a part of this Term Note by reference in the same manner and with the same effect as if set forth herein at length, and any holder of this Term Note is entitled to the benefits of and remedies provided in the Credit Agreement and the other Credit Documents. Reference is made to the Credit Agreement for provisions relating to the interest rate, maturity, payment, prepayment and acceleration of this Term Note.

In the event of an acceleration of the maturity of this Term Note, this Term Note shall become immediately due and payable, without presentation, demand, protest or notice of any kind, all of which are hereby waived by the Borrower.

In the event this Term Note is not paid when due at any stated or accelerated maturity, the Borrower agrees to pay, in addition to the principal and interest, all costs of collection, including reasonable attorneys' fees, in accordance with the Credit Agreement.

This Term Note shall be governed by and construed in accordance with the internal laws and judicial decisions of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules). The Borrower hereby submits to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, although the Lender shall not be limited to bringing an action in such courts.

(signature next page)

IN WITNESS WHEREOF , the Borrower has caused this Term Note to be executed by its duly authorized corporate officer as of the day and year first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

FORM OF REVOLVING NOTE

\$ _____

_____, 20 ____
Charlotte, North Carolina

FOR VALUE RECEIVED, INTERCONTINENTAL EXCHANGE, INC., a Delaware corporation (the "Borrower"), hereby promises to pay to the order of

_____ (the "Lender"), at the offices of Wachovia Bank, National Association (the "Administrative Agent") located at One Wachovia Center, 301 South College Street, Charlotte, North Carolina (or at such other place or places as the Administrative Agent may designate), at the times and in the manner provided in the Credit Agreement, dated as of _____, 2009 (as amended, modified, restated or supplemented from time to time, the "Credit Agreement"), among the Borrower, the Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent, the principal sum of

_____ **DOLLARS** (\$ _____), or such lesser amount as may constitute the unpaid principal amount of the Revolving Loans made by the Lender, under the terms and conditions of this promissory note (this "Revolving Note") and the Credit Agreement. The defined terms in the Credit Agreement are used herein with the same meaning. The Borrower also promises to pay interest on the aggregate unpaid principal amount of this Revolving Note at the rates applicable thereto from time to time as provided in the Credit Agreement.

This Revolving Note is one of a series of Revolving Notes referred to in the Credit Agreement and is issued to evidence the Revolving Loans made by the Lender pursuant to the Credit Agreement. All of the terms, conditions and covenants of the Credit Agreement are expressly made a part of this Revolving Note by reference in the same manner and with the same effect as if set forth herein at length, and any holder of this Revolving Note is entitled to the benefits of and remedies provided in the Credit Agreement and the other Credit Documents. Reference is made to the Credit Agreement for provisions relating to the interest rate, maturity, payment, prepayment and acceleration of this Revolving Note.

In the event of an acceleration of the maturity of this Revolving Note, this Revolving Note shall become immediately due and payable, without presentation, demand, protest or notice of any kind, all of which are hereby waived by the Borrower.

In the event this Revolving Note is not paid when due at any stated or accelerated maturity, the Borrower agrees to pay, in addition to the principal and interest, all costs of collection, including reasonable attorneys' fees, in accordance with the Credit Agreement.

This Revolving Note shall be governed by and construed in accordance with the internal laws and judicial decisions of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules). The Borrower hereby submits to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, although the Lender shall not be limited to bringing an action in such courts.

IN WITNESS WHEREOF , the Borrower has caused this Revolving Note to be executed by its duly authorized corporate officer as of the day and year first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

FORM OF SWINGLINE NOTE

\$ _____

_____, 20 ____
Charlotte, North Carolina

FOR VALUE RECEIVED, INTERCONTINENTALEXCHANGE, INC., a Delaware corporation (the "Borrower"), hereby promises to pay to the order of

WACHOVIA BANK, NATIONAL ASSOCIATION (the "Swingline Lender"), at the offices of Wachovia Bank, National Association (the "Administrative Agent") located at One Wachovia Center, 301 South College Street, Charlotte, North Carolina (or at such other place or places as the Administrative Agent may designate), at the times and in the manner provided in the Credit Agreement, dated as of _____, 2009 (as amended, modified, restated or supplemented from time to time, the "Credit Agreement"), among the Borrower, the Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent, the principal sum of

_____ **DOLLARS** (\$ _____), or such lesser amount as may constitute the unpaid principal amount of the Swingline Loans made by the Swingline Lender, under the terms and conditions of this promissory note (this "Swingline Note") and the Credit Agreement. The defined terms in the Credit Agreement are used herein with the same meaning. The Borrower also promises to pay interest on the aggregate unpaid principal amount of this Swingline Note at the rates applicable thereto from time to time as provided in the Credit Agreement.

This Swingline Note is issued to evidence the Swingline Loans made by the Swingline Lender pursuant to the Credit Agreement. All of the terms, conditions and covenants of the Credit Agreement are expressly made a part of this Swingline Note by reference in the same manner and with the same effect as if set forth herein at length, and any holder of this Swingline Note is entitled to the benefits of and remedies provided in the Credit Agreement and the other Credit Documents. Reference is made to the Credit Agreement for provisions relating to the interest rate, maturity, payment, prepayment and acceleration of this Swingline Note.

In the event of an acceleration of the maturity of this Swingline Note, this Swingline Note shall become immediately due and payable, without presentation, demand, protest or notice of any kind, all of which are hereby waived by the Borrower.

In the event this Swingline Note is not paid when due at any stated or accelerated maturity, the Borrower agrees to pay, in addition to the principal and interest, all costs of collection, including reasonable attorneys' fees.

This Swingline Note shall be governed by and construed in accordance with the internal laws and judicial decisions of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules). The Borrower hereby submits to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, although the Lender shall not be limited to bringing an action in such courts.

IN WITNESS WHEREOF , the Borrower has caused this Swingline Note to be executed by its duly authorized corporate officer as of the day and year first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

FORM OF NOTICE OF BORROWING

[Date]

Wachovia Bank, National Association,
as Administrative Agent
Charlotte Plaza Building
201 South College Street, 8th Floor NC 0680
Charlotte, North Carolina 28288
Attention: Syndication Agency Services

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of _____, 2009, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent, Issuing Lender and Swingline Lender for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.2(b)** of the Credit Agreement, hereby gives you, as Administrative Agent, irrevocable notice that the Borrower requests a Borrowing of [Term] [Revolving] ¹ Loans under the Credit Agreement, and to that end sets forth below the information relating to such Borrowing (the “Proposed Borrowing”) as required by **Section 2.2(b)** of the Credit Agreement:

- (i) The aggregate principal amount of the Proposed Borrowing is \$ _____. ²
- (ii) The Loans comprising the Proposed Borrowing shall be initially made as [Base Rate Loans] [LIBOR Loans]. ³
- (iii) [The initial Interest Period for the LIBOR Loans comprising the Proposed Borrowing shall be [one/two/three/six months].] ⁴

¹ Select the applicable Class of Loans.

² Amount of Proposed Borrowing must comply with Section 2.2(b) of the Credit Agreement.

³ Select the applicable Type of Loans.

⁴ Include this clause in the case of a Proposed Borrowing comprised of LIBOR Loans, and select the applicable Interest Period.

(iv) The Proposed Borrowing is requested to be made on _____ (the “ **Borrowing Date** ”). ⁵

The Borrower hereby certifies that the following statements are true on and as of the date hereof and will be true on and as of the Borrowing Date:

A. Each of the representations and warranties contained in Article IV of the Credit Agreement and in the other Credit Documents qualified as to materiality is and will be true and correct and each not so qualified is and will be true and correct in all material respects, in each case on and as of each such date, with the same effect as if made on and as of each such date, both immediately before and after giving effect to the Proposed Borrowing and to the application of the proceeds therefrom (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case each such representation or warranty qualified as to materiality shall be true and correct and each not so qualified shall be true and correct in all material respects, in each case as of such date);

B. No Default or Event of Default has occurred and is continuing or would result from the Proposed Borrowing or from the application of the proceeds therefrom; and

C. [After giving effect to the Proposed Borrowing, the sum of (i) the aggregate principal amount of Revolving Loans outstanding and (ii) the aggregate principal amount of Swingline Loans outstanding, will not exceed the aggregate Revolving Credit Commitments.] ⁶

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

⁵ _____
Shall be a Business Day on or after the date hereof (in the case of Base Rate Loans) or at least three Business Days after the date hereof (in the case of LIBOR Loans).

⁶ Include this paragraph in the case of a Borrowing of Revolving Loans.

FORM OF NOTICE OF SWINGLINE BORROWING

[Date]

Wachovia Bank, National Association,
as Administrative Agent
Charlotte Plaza Building
201 South College Street, 8th Floor NC 0680
Charlotte, North Carolina 28288
Attention: Syndication Agency Services

Wachovia Bank, National Association,
as Swingline Lender
One Wachovia Center, [5th] Floor
301 South College Street
Charlotte, North Carolina 28288-0760
Attention: _____

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of _____, 2009, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent, Issuing Lender and Swingline Lender for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.2(d)** of the Credit Agreement, hereby gives you, as Administrative Agent and as Swingline Lender, irrevocable notice that the Borrower requests a Borrowing of a Swingline Loan under the Credit Agreement, and to that end sets forth below the information relating to such Borrowing (the “Proposed Borrowing”) as required by **Section 2.2(d)** of the Credit Agreement:

(i) The principal amount of the Proposed Borrowing is \$ _____.¹

(ii) The Proposed Borrowing is requested to be made on _____ (the “Borrowing Date”).²

¹ Amount of Proposed Borrowing must comply with Section 2.2(d) of the Credit Agreement.

² Shall be a Business Day on or after the date hereof.

The Borrower hereby certifies that the following statements are true on and as of the date hereof and will be true on and as of the Borrowing Date:

A. Each of the representations and warranties contained in Article IV of the Credit Agreement and in the other Credit Documents qualified as to materiality is and will be true and correct and each not so qualified is and will be true and correct in all material respects, in each case on and as of each such date, with the same effect as if made on and as of each such date, both immediately before and after giving effect to the Proposed Borrowing and to the application of the proceeds therefrom (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case each such representation or warranty qualified as to materiality shall be true and correct and each not so qualified shall be true and correct in all material respects, in each case as of such date);

B. No Default or Event of Default has occurred and is continuing or would result from the Proposed Borrowing or from the application of the proceeds therefrom; and

C. After giving effect to the Proposed Borrowing, the sum of (i) the aggregate principal amount of Revolving Loans outstanding and (ii) the aggregate principal amount of Swingline Loans outstanding, will not exceed the aggregate Revolving Credit Commitments.

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

FORM OF NOTICE OF CONVERSION/CONTINUATION

[Date]

Wachovia Bank, National Association,
as Administrative Agent
Charlotte Plaza Building
201 South College Street, 8th Floor NC 0680
Charlotte, North Carolina 28288
Attention: Syndication Agency Services

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of _____, 2009, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent, Issuing Lender and Swingline Lender for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.11(b)** of the Credit Agreement, hereby gives you, as Agent, irrevocable notice that the Borrower requests a [conversion] [continuation]¹ of Loans under the Credit Agreement, and to that end sets forth below the information relating to such [conversion] [continuation] (the “Proposed [Conversion] [Continuation]”) as required by **Section 2.11(b)** of the Credit Agreement:

(i) The Proposed [Conversion] [Continuation] is requested to be made on _____.²

(ii) The Proposed [Conversion] [Continuation] involves \$ _____³ in aggregate principal amount of [Term] [Revolving]⁴ Loans made pursuant to a Borrowing on _____,⁵ which Loans are

¹ Insert “conversion” or “continuation” throughout the notice, as applicable.

² Shall be a Business Day on or after the date hereof (in the case of any conversion of LIBOR Loans into Base Rate Loans) or at least three Business Days after the date hereof (in the case of any conversion of Base Rate Loans into, or continuation of, LIBOR Loans), and additionally, in the case of any conversion of LIBOR Loans into Base Rate Loans, or continuation of LIBOR Loans, shall be the last day of the Interest Period applicable to such LIBOR Loans.

³ Amount of Proposed Conversion or Continuation must comply with Section 2.11(b) of the Credit Agreement.

⁴ Select the applicable Class of Loans.

⁵ Insert the applicable Borrowing Date for the Loans being converted or continued.

presently maintained as [Base Rate] [LIBOR] Loans and are proposed hereby to be [converted into Base Rate Loans] [converted into LIBOR Loans] [continued as LIBOR Loans].⁶

(iii) [The initial Interest Period for the Loans being [converted into] [continued as] LIBOR Loans pursuant to the Proposed [Conversion] [Continuation] shall be [one/two/three/six months].]⁷

The Borrower hereby certifies that the following statement is true both on and as of the date hereof and on and as of the effective date of the Proposed [Conversion] [Continuation]: no Default or Event of Default has or will have occurred and is continuing or would result from the Proposed [Conversion] [Continuation].

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____

Name: _____

Title: _____

⁶ Complete with the applicable bracketed language.

⁷ Include this clause in the case of a Proposed Conversion or Continuation involving a conversion of Base Rate Loans into, or continuation of, LIBOR Loans, and select the applicable Interest Period.

FORM OF LETTER OF CREDIT NOTICE

[Date]

Wachovia Bank, National Association,
as Administrative Agent
Charlotte Plaza Building
201 South College Street, 8th Floor NC 0680
Charlotte, North Carolina 28288
Attention: Syndication Agency Services

Wachovia Bank, National Association,
as Issuing Lender
One Wachovia Center, [5th] Floor
301 South College Street
Charlotte, North Carolina 28288-0760
Attention: _____

Ladies and Gentlemen:

The undersigned, **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), refers to the Credit Agreement, dated as of _____, 2009, among the Borrower, certain Lenders from time to time parties thereto, you, as Administrative Agent, Issuing Lender and Swingline Lender for the Lenders, and Bank of America, N.A., as Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement,” the terms defined therein being used herein as therein defined), and, pursuant to **Section 2.19(b)** of the Credit Agreement, hereby gives you irrevocable notice that the Borrower requests the issuance of a Letter of Credit for its account under the Credit Agreement, and to that end sets forth below the information relating to such Letter of Credit (the “Requested Letter of Credit”) as required by **Section 2.19(b)** of the Credit Agreement:

- (i) The Business Day on which the Requested Letter of Credit is requested to be issued is _____.¹⁶
- (ii) The Stated Amount of the Requested Letter of Credit is \$ _____.
- (iii) The expiry date of the Requested Letter of Credit is _____.

¹⁶ Shall be at least three Business Days (or such shorter period as is acceptable to the Bank in any given case) after the date hereof.

(iv) The name and address of the beneficiary of the Requested Letter of Credit is _____.

The undersigned agrees to complete all application procedures and documents required by you in connection with the Requested Letter of Credit.

The undersigned hereby certifies that the following statements are true on the date hereof and will be true on the date of issuance of the Requested Letter of Credit:

A. Each of the representations and warranties contained in **Article IV** of the Credit Agreement and in the other Credit Documents qualified as to materiality is and will be true and correct and each not so qualified is and will be true and correct in all material respects, in each case on and as of each such date, with the same effect as if made on and as of each such date, both immediately before and after giving effect to the issuance of the Requested Letter of Credit and to the application of the proceeds therefrom (except to the extent any such representation or warranty is expressly stated to have been made as of a specific date, in which case each such representation or warranty qualified as to materiality shall be true and correct and each not so qualified shall be true and correct in all material respects, in each case as of such date);

B. No Default or Event of Default has occurred and is continuing or would result from the issuance of the Requested Letter of Credit; and

C. After giving effect to the issuance of the Requested Letter of Credit, the Aggregate Revolving Credit Exposure will not exceed the aggregate Revolving Credit Commitments.

Very truly yours,

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

EXHIBIT C

FORM OF COMPLIANCE CERTIFICATE

THIS CERTIFICATE is delivered pursuant to the Credit Agreement, dated as of _____, 2009 (the “Credit Agreement”), among IntercontinentalExchange, Inc., a Delaware corporation (the “Borrower”), the Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent. Capitalized terms used herein without definition shall have the meanings given to such terms in the Credit Agreement.

The undersigned hereby certifies that:

1. He is a duly elected Financial Officer of the Borrower.

2. Enclosed with this Certificate are copies of the financial statements of the Borrower and its Subsidiaries as of _____, and for the [_____-month period] [year] then ended, required to be delivered under **Section [5.1(a)][5.1(b)]** of the Credit Agreement. Such financial statements have been prepared in accordance with GAAP [(subject to the absence of notes required by GAAP and subject to normal year-end adjustments)] ¹⁷ and fairly present in all material respects the financial condition of the Borrower and its Subsidiaries on a consolidated basis as of the date indicated and the results of operation of the Borrower and its Subsidiaries on a consolidated basis for the period covered thereby.

3. The undersigned has reviewed the terms of the Credit Agreement and has made, or caused to be made under the supervision of the undersigned, a review in reasonable detail of the transactions and condition of the Borrower and its Subsidiaries during the accounting period covered by such financial statements.

4. The examination described in paragraph 3 above did not disclose, and the undersigned has no knowledge of the existence of, any Default or Event of Default during or at the end of the accounting period covered by such financial statements or as of the date of this Certificate. [, except as set forth below.

Describe here or in a separate attachment any exceptions to paragraph 4 above by listing, in reasonable detail, the nature of the Default or Event of Default, the period during which it existed and the action that the Borrower has taken or proposes to take with respect thereto.]

5. Attached to this Certificate as Attachment A is a covenant compliance worksheet reflecting the computation of the financial covenants set forth in **Article VI** of the Credit Agreement as of the last day of and for the period covered by the financial statements enclosed herewith.

¹⁷ _____
Insert in the case of quarterly financial statements.

IN WITNESS WHEREOF , the undersigned has executed and delivered this Certificate as of the _____ day of _____, ____.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: _____
Title: _____

ATTACHMENT A

COVENANT COMPLIANCE WORKSHEET

A. Total Leverage Ratio (Section 6.1 of the Credit Agreement)

(1)	Total Funded Debt as of the date of determination	\$	
(2)	Consolidated EBITDA for the Reference Period ending on the date of determination (from Line C(5) below)	\$	
(3)	Total Leverage Ratio: Divide Line A(1) by Line A(2)		
(4)	Maximum Total Leverage Ratio as of the date of determination		2.50 to 1.00

B. Interest Coverage Ratio (Section 6.2 of the Credit Agreement)

(1)	Consolidated EBITDA for the Reference Period ending on the date of determination (from Line C(7) below)	\$ _____
(2)	Consolidated Interest Expense for such period	\$ _____
(3)	Interest Coverage Ratio: Divide Line B(1) by Line B(2)	_____
(4)	Minimum Interest Coverage Ratio as of the date of determination	5.0 to 1.0

C. Consolidated EBITDA

(1)	Consolidated Net Income for the Reference Period ending on the date of determination	\$
(2)	Additions to Consolidated Net Income (to the extent taken into account in the calculation of Consolidated Net Income for such period):	
(a)	Interest expense	\$
(b)	Federal, state, local and other taxes	\$
(c)	Depreciation and amortization of intangible assets	\$
(d)	Extraordinary losses or charges for such period (attach itemized schedule)	\$
(e)	Add Lines C(2)(a) through Error! Reference source not found.	\$
(3)	Net Income plus Additions: Add Lines C(1) and C(2)(e)	\$
(4)	Reductions from Consolidated Net Income (to the extent taken into account in the calculation of Consolidated Net Income for such period):	\$
(a)	Extraordinary gains or income for such period (attach itemized schedule)	\$
(b)	Noncash credits increasing income for such period	\$
(c)	Add Lines C(4)(a) through C(4)(b)	(\$
(5)	Consolidated EBITDA: Subtract Line C(4)(c) from Line C(3)	\$
(6)	Reductions from Consolidated EBITDA	
(a)	Capital Expenditures for such period	\$
(b)	Capitalized Software Development Costs for such period	\$
(c)	Add Lines C(6)(a) and C(6)(b)	\$

(7)	Adjustments to Consolidated EBITDA:	\$ _____
	Subtract Line C(6)(c) from Line C(5)	

ITEMIZED SCHEDULE OF EXTRAORDINARY LOSSES AND GAINS

EXHIBIT D

FORM OF ASSIGNMENT AND ASSUMPTION

THIS ASSIGNMENT AND ASSUMPTION (this “Assignment and Assumption”) is dated as of the Effective Date set forth below and is entered into by and between [*Insert name of Assignor*] (the “Assignor”) and [*Insert name of Assignee*] (the “Assignee”). Capitalized terms used but not defined herein shall have the meanings given to them in the Credit Agreement identified below, receipt of a copy of which is hereby acknowledged by the Assignee. The Standard Terms and Conditions set forth in Annex 1 attached hereto (the “Standard Terms and Conditions”) are hereby agreed to and incorporated herein by reference and made a part of this Assignment and Assumption as if set forth herein in full.

For an agreed consideration, the Assignor hereby irrevocably sells and assigns to the Assignee, and the Assignee hereby irrevocably purchases and assumes from the Assignor, subject to and in accordance with the Standard Terms and Conditions and the Credit Agreement, as of the Effective Date inserted by the Administrative Agent as contemplated below (i) all of the Assignor’s rights and obligations in its capacity as a Lender under the Credit Agreement and any other documents or instruments delivered pursuant thereto to the extent related to the amount and percentage interest identified below of all of such outstanding rights and obligations of the Assignor under the respective facilities identified below (including any guarantees and Swingline Loans included in such facilities) and (ii) to the extent permitted to be assigned under applicable law, all claims, suits, causes of action and any other right of the Assignor (in its capacity as a Lender) against any Person, whether known or unknown, arising under or in connection with the Credit Agreement, any other documents or instruments delivered pursuant thereto or the loan transactions governed thereby or in any way based on or related to any of the foregoing, including, but not limited to, contract claims, tort claims, malpractice claims, statutory claims and all other claims at law or in equity related to the rights and obligations sold and assigned pursuant to clause (i) above (the rights and obligations sold and assigned pursuant to clauses (i) and (ii) above being referred to herein collectively as the “Assigned Interest”). Such sale and assignment is without recourse to the Assignor and, except as expressly provided in this Assignment and Assumption, without representation or warranty by the Assignor.

1. Assignor: _____

2. Assignee: _____
[and is an Affiliate/Approved Fund of [*identify Lender*] ¹⁸]

3. Borrower: **INTERCONTINENTALEXCHANGE, INC.**

4. Administrative Agent: Wachovia Bank, National Association, as the Administrative Agent under the Credit Agreement.

¹⁸ _____
Select as applicable.

5. Credit Agreement: Credit Agreement, dated as of _____, 2009 (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”), among the Borrower, certain lenders from time to time parties thereto (the “Lenders”), Wachovia Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent.

6. Assigned Interest:

Facility Assigned ¹⁹	Aggregate Amount of	Amount of	Percentage	CUSIP
	Commitment/Loans for all Lenders ³	Commitment/Loans Assigned ²⁰	Assigned of Commitment/Loans ²¹	
	\$	\$	%	
	\$	\$	%	
	\$	\$	%	

[7. Trade Date: _____] ²³

8. Effective Date: _____[TO BE INSERTED BY THE ADMINISTRATIVE AGENT AND WHICH SHALL BE THE EFFECTIVE DATE OF RECORDATION OF TRANSFER IN THE REGISTER THEREFOR.]

¹⁹ Fill in the appropriate terminology for the types of facilities under the Credit Agreement that are being assigned under this Assignment (e.g. “Revolving Credit Commitment,” “Term Loan Commitment” or “Swingline Commitment.”).

²⁰ Amount to be adjusted by the counterparties to take into account any payments or prepayments made between the Trade Date and the Effective Date.

²¹ Set forth, to at least 9 decimals, as a percentage of the Commitment/Loans of all Lenders thereunder.

²² Insert if applicable.

²³ To be completed if the Assignor and the Assignee intend that the minimum assignment amount is to be determined as of the Trade Date.

The terms set forth in this Assignment and Assumption are hereby agreed to:

ASSIGNOR:

[NAME OF ASSIGNOR]

By: _____
Title: _____

ASSIGNEE:

[NAME OF ASSIGNEE]

By: _____
Title: _____

[Consented to and] ²⁴ Accepted:

**WACHOVIA BANK, NATIONAL
ASSOCIATION**, as Administrative Agent

By: _____
Title: _____

[Consented to:] ²⁵

[NAME OF RELEVANT PARTY]

By: _____
Title: _____

²⁴ To be added only if the consent of the Administrative Agent is required by the terms of the Credit Agreement.

²⁵ To be added only if the consent of the Borrower and/or other parties (e.g., Swingline Lender, Issuing Lender) is required by the terms of the Credit Agreement.

Credit Agreement, dated as of _____, 2009, among IntercontinentalExchange, Inc., as Borrower, certain Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent

STANDARD TERMS AND CONDITIONS FOR
ASSIGNMENT AND ASSUMPTION

1. Representations and Warranties.

1.1 Assignor. The Assignor (a) represents and warrants that (i) it is the legal and beneficial owner of the Assigned Interest, (ii) the Assigned Interest is free and clear of any lien, encumbrance or other adverse claim and (iii) it has full power and authority, and has taken all action necessary, to execute and deliver this Assignment and Assumption and to consummate the transactions contemplated hereby; and (b) assumes no responsibility with respect to (i) any statements, warranties or representations made in or in connection with the Credit Agreement or any other Credit Document, (ii) the execution, legality, validity, enforceability, genuineness, sufficiency or value of the Credit Documents or any collateral thereunder, (iii) the financial condition of the Borrower, any of its Subsidiaries or Affiliates or any other Person obligated in respect of any Credit Document or (iv) the performance or observance by the Borrower, any of its Subsidiaries or Affiliates or any other Person of any of their respective obligations under any Credit Document.

1.2. Assignee. The Assignee (a) represents and warrants that (i) it has full power and authority, and has taken all action necessary, to execute and deliver this Assignment and Assumption and to consummate the transactions contemplated hereby and to become a Lender under the Credit Agreement, (ii) it meets all requirements of an assignee of the Assigned Interest under the Credit Agreement (subject to receipt of such consents as may be required under the Credit Agreement), (iii) from and after the Effective Date, it shall be bound by the provisions of the Credit Agreement as a Lender thereunder and, to the extent of the Assigned Interest, shall have the obligations of a Lender thereunder, (iv) it has received a copy of the Credit Agreement, together with copies of the most recent financial statements delivered pursuant to **Section 5.1** thereof, as applicable, and such other documents and information as it has deemed appropriate to make its own credit analysis and decision to enter into this Assignment and Assumption and to purchase the Assigned Interest on the basis of which it has made such analysis and decision independently and without reliance on the Administrative Agent, Assignor or any other Lender, and (v) if it is a Foreign Lender, attached to the Assignment and Assumption is any documentation required to be delivered by it pursuant to the terms of the Credit Agreement, duly completed and executed by the Assignee; and (b) agrees that (i) it will, independently and without reliance on the Administrative Agent, the Assignor or any other Lender, and based on such documents and information as it shall deem appropriate at the time, continue to make its own credit decisions in taking or not taking action under the Credit Documents, and (ii) it will perform in accordance with their terms all of the obligations that by the terms of the Credit Documents are required to be performed by it as a Lender.

2. Payments. From and after the Effective Date, the Administrative Agent shall make all payments in respect of the Assigned Interest (including payments of principal, interest, fees and other amounts) to the Assignor for amounts that have accrued to but excluding the Effective Date and to the Assignee for amounts that have accrued from and after the Effective Date.

3. General Provisions. This Assignment and Assumption shall be binding upon, and inure to the benefit of, the parties hereto and their respective successors and assigns. This Assignment and Assumption may be executed in any number of counterparts, which together shall constitute one instrument. Delivery of an executed counterpart of a signature page of this Assignment and Assumption by telecopy shall be effective as delivery of a manually executed counterpart of this Assignment and Assumption. This Assignment and Assumption shall be governed by, and construed in accordance with, the laws of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).

EXHIBIT E

FORM OF GUARANTY

THIS GUARANTY AGREEMENT, dated as of the ___ day of _____, 2009 (this “Guaranty”), is made by each of the undersigned Subsidiaries of **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), and each other Subsidiary of the Borrower that, after the date hereof, executes an instrument of accession hereto substantially in the form of Exhibit A (a “Guarantor Accession”; the undersigned and such other Subsidiaries of the Borrower, collectively, the “Guarantors”), in favor of the Guaranteed Parties (as hereinafter defined). Capitalized terms used herein without definition shall have the meanings given to them in the Credit Agreement referred to below.

RECITALS

A. The Borrower, certain Lenders, Wachovia Bank, National Association, as administrative agent for the Lenders (in such capacity, the “Administrative Agent”), Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent, are parties to a Credit Agreement, dated as of _____, 2009 (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”), providing for the availability of certain credit facilities to the Borrower upon the terms and conditions set forth therein.

B. It is a condition to the extension of credit to the Borrower under the Credit Agreement that each Guarantor shall have agreed, by executing and delivering this Guaranty, to guarantee to the Guaranteed Parties the payment in full of the Guaranteed Obligations (as hereinafter defined). The Guaranteed Parties are relying on this Guaranty in their decision to extend credit to the Borrower under the Credit Agreement, and would not enter into the Credit Agreement without this Guaranty.

C. The Borrower and the Guarantors are engaged in related businesses and undertake certain activities and operations on an integrated basis. As part of such integrated operations, the Borrower, among other things, will advance to the Guarantors from time to time certain proceeds of the Loans made to the Borrower by the Lenders under the Credit Agreement. Each Guarantor will therefore obtain benefits as a result of the extension of credit to the Borrower under the Credit Agreement, which benefits are hereby acknowledged, and, accordingly, desires to execute and deliver this Guaranty.

STATEMENT OF AGREEMENT

NOW, THEREFORE, in consideration of the foregoing and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, to induce the Guaranteed Parties to enter into the Credit Agreement and to induce the Lenders to extend credit to the Borrower thereunder, each Guarantor hereby agrees as follows:

10.15 Guaranty.

(i) Each Guarantor hereby irrevocably, absolutely and unconditionally, and jointly and severally:

(A) guarantees (A) to the Lenders (including the Issuing Lender and the Swingline Lender in its capacity as such) and the Administrative Agent (together with any Lender (or any Affiliate of any Lender) in the capacity described in clause (B) below, collectively, the “Guaranteed Parties”) the full and prompt payment, at any time and from time to time as and when due (whether at the stated maturity, by acceleration or otherwise), of all Obligations of the Borrower under the Credit Agreement and the other Credit Documents, including, without limitation, all principal of and interest on the Loans, all fees, expenses, indemnities and other amounts payable by the Borrower under the Credit Agreement or any other Credit Document (including interest accruing after the filing of a petition or commencement of a case by or with respect to the Borrower seeking relief under any Insolvency Laws (as hereinafter defined), whether or not the claim for such interest is allowed in such proceeding), and all Obligations that, but for the operation of the automatic stay under Section 362(a) of the Bankruptcy Code, would become due, and (B) to each applicable Lender or Affiliate of any Lender in its capacity as a Hedge Party under any Hedge Agreement that is required or permitted by the Credit Agreement to be entered into by the Borrower (a “Permitted Hedge Agreement”), all obligations of the Borrower under such Permitted Hedge Agreement, in each case under (A) and (B), whether now existing or hereafter created or arising and whether direct or indirect, absolute or contingent, due or to become due (all liabilities and obligations described in this clause (i), collectively, the “Guaranteed Obligations”); and

(B) agrees to pay the reasonable fees and expenses of counsel to, and reimburse upon demand all reasonable costs and expenses incurred or paid by, (y) any Guaranteed Party in connection with any suit, action or proceeding to enforce or protect any rights of the Guaranteed Parties hereunder and (z) the Administrative Agent in connection with any amendment, modification or waiver hereof or consent pursuant hereto, and to indemnify and hold each Guaranteed Party and its directors, officers, employees, agents and Affiliates harmless from and against any and all claims, losses, damages, obligations, liabilities, penalties, costs and expenses (including, without limitation, reasonable attorneys’ fees and expenses) of any kind or nature whatsoever, whether direct, indirect or consequential, that may at any time be imposed on, incurred by or asserted against any such indemnified party as a result of, arising from or in any way relating to this Guaranty or the collection or enforcement of the Guaranteed Obligations; provided, however, that no indemnified party shall have the right to be indemnified hereunder for any such claims, losses, costs and expenses to the extent determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the gross negligence or willful misconduct of such indemnified party.

(ii) Notwithstanding the provisions of subsection (a) above and notwithstanding any other provisions contained herein or in any other Credit Document:

(A) no provision of this Guaranty shall require or permit the collection from any Guarantor of interest in excess of the maximum rate or amount that such Guarantor may be required or permitted to pay pursuant to applicable law;

(B) the liability of each Guarantor under this Guaranty as of any date shall be limited to a maximum aggregate amount (the “Maximum Guaranteed Amount”) equal to the greatest amount that would not render such Guarantor’s obligations under this Guaranty subject to avoidance, discharge or reduction as of such date as a fraudulent transfer or conveyance under applicable federal and state laws pertaining to bankruptcy, reorganization, arrangement, moratorium, readjustment of debts, dissolution, liquidation or other debtor relief, specifically including, without limitation, the Bankruptcy Code and any fraudulent transfer and fraudulent conveyance laws (collectively, “Insolvency Laws”), in each instance after giving effect to all other liabilities of such Guarantor, contingent or otherwise, that are relevant under applicable Insolvency Laws (specifically excluding, however, any liabilities of such Guarantor in respect of intercompany indebtedness to the Borrower or any of its Affiliates to the extent that such indebtedness would be discharged in an amount equal to the amount paid by such Guarantor hereunder, and after giving effect as assets to the value (as determined under applicable Insolvency Laws) of any rights to subrogation, contribution, reimbursement, indemnity or similar rights of such Guarantor pursuant to (y) applicable law or (z) any agreement (including this Guaranty) providing for an equitable allocation among such Guarantor and other Affiliates of the Borrower of obligations arising under guaranties by such parties); and

(C) solely with respect to the guaranty hereunder of each clearing house operated by the Borrower in any action or proceeding to enforce this Guaranty against such clearing house, no recourse may be had to any assets of any kind held by or owing to such clearing house as (A) original margin securing positions in futures, options or other products cleared by such clearing house carried for its members or their customers, (B) amounts paid or payable to such clearing house as variation margin option premiums or the purchase price of any commodities with respect to any such positions, (C) amounts on deposit in a bank settlement account, received as variation margin, and any securities or other assets in which such amounts may be invested pursuant to repurchase agreements or otherwise, or (D) deposits in the Guaranty Fund of such clearing house, and no resort may be had to invoke the power of such clearing house to impose assessments on its clearing members pursuant to its bylaws and the rules adopted by the board of directors of such clearing house or otherwise.

(iii) The Guarantors desire to allocate among themselves, in a fair and equitable manner, their obligations arising under this Guaranty. Accordingly, in the event any payment or distribution is made hereunder on any date by a Guarantor (a “Funding Guarantor”) that exceeds its Fair Share (as hereinafter defined) as of such date, that Funding Guarantor shall be entitled to a contribution from each of the other Guarantors in the amount of such other Guarantor’s Fair Share Shortfall (as hereinafter defined) as of such date, with the result that all such contributions

will cause each Guarantor's Aggregate Payments (as hereinafter defined) to equal its Fair Share as of such date. " Fair Share " means, with respect to a Guarantor as of any date of determination, an amount equal to (i) the ratio of (x) the Adjusted Maximum Guaranteed Amount (as hereinafter defined) with respect to such Guarantor to (y) the aggregate of the Adjusted Maximum Guaranteed Amounts with respect to all Guarantors, multiplied by (ii) the aggregate amount paid or distributed on or before such date by all Funding Guarantors hereunder in respect of the obligations guaranteed. " Fair Share Shortfall " means, with respect to a Guarantor as of any date of determination, the excess, if any, of the Fair Share of such Guarantor over the Aggregate Payments of such Guarantor. " Adjusted Maximum Guaranteed Amount " means, with respect to a Guarantor as of any date of determination, the Maximum Guaranteed Amount of such Guarantor, determined in accordance with the provisions of subsection (ii) above; provided that, solely for purposes of calculating the "Adjusted Maximum Guaranteed Amount" with respect to any Guarantor for purposes of this subsection (iii), any assets or liabilities arising by virtue of any rights to subrogation, reimbursement or indemnity or any rights to or obligations of contribution hereunder shall not be considered as assets or liabilities of such Guarantor. " Aggregate Payments " means, with respect to a Guarantor as of any date of determination, the aggregate amount of all payments and distributions made on or before such date by such Guarantor in respect of this Guaranty (including, without limitation, in respect of this subsection (iii)). The amounts payable as contributions hereunder shall be determined as of the date on which the related payment or distribution is made by the applicable Funding Guarantor. Each Funding Guarantor's right of contribution under this subsection (iii) shall be subject to the provisions of **Section 10.18** . The allocation among Guarantors of their obligations as set forth in this subsection (iii) shall not be construed in any way to limit the liability of any Guarantor hereunder to the Guaranteed Parties.

(iv) The guaranty of each Guarantor set forth in this Section is a guaranty of payment as a primary obligor, and not a guaranty of collection. Each Guarantor hereby acknowledges and agrees that the Guaranteed Obligations, at any time and from time to time, may exceed the Maximum Guaranteed Amount of such Guarantor and may exceed the aggregate of the Maximum Guaranteed Amounts of all Guarantors, in each case without discharging, limiting or otherwise affecting the obligations of any Guarantor hereunder or the rights, powers and remedies of any Guaranteed Party hereunder or under any other Credit Document.

10.16 Guaranty Absolute . Each Guarantor agrees that its obligations hereunder and under the other Credit Documents to which it is a party are irrevocable, absolute and unconditional, are independent of the Guaranteed Obligations and any security therefore or other guaranty or liability in respect thereof, whether given by such Guarantor or any other Person, and shall not be discharged, limited or otherwise affected by reason of any of the following, whether or not such Guarantor has notice or knowledge thereof:

(A) any change in the time, manner or place of payment of, or in any other term of, any Guaranteed Obligations or any guaranty, security or other liability in respect thereof, or any amendment, modification or supplement to, restatement of, or consent to any rescission or waiver of or departure from, any provisions of the Credit Agreement, any other Credit Document or any agreement or instrument delivered pursuant to any of the foregoing;

(B) the invalidity or unenforceability of any Guaranteed Obligations, any guaranty, security or other liability in respect thereof or any provisions of the Credit Agreement, any other Credit Document or any agreement or instrument delivered pursuant to any of the foregoing;

(C) the addition or release of Guarantors hereunder or the taking, acceptance or release of other guarantees of any Guaranteed Obligations or for any guaranty, security or other liability in respect thereof;

(D) any discharge, modification, settlement, compromise or other action in respect of any Guaranteed Obligations or any guaranty, security or other liability in respect thereof, including any acceptance or refusal of any offer or performance with respect to the same or the subordination of the same to the payment of any other obligations;

(E) any agreement not to pursue or enforce or any failure to pursue or enforce (whether voluntarily or involuntarily as a result of operation of law, court order or otherwise) any right or remedy in respect of any Guaranteed Obligations, any guaranty, security or other liability in respect thereof;

(F) the exercise of any right or remedy available under the Credit Documents, at law, in equity or otherwise in respect of any guaranty, security or other liability for any Guaranteed Obligations, in any order and by any manner thereby permitted;

(G) any bankruptcy, reorganization, arrangement, liquidation, insolvency, dissolution, termination, reorganization or like change in the corporate structure or existence of the Borrower or any other Person directly or indirectly liable for any Guaranteed Obligations;

(H) any manner of application of any payments by or amounts received or collected from any Person, by whomsoever paid and howsoever realized, whether in reduction of any Guaranteed Obligations or any other obligations of the Borrower or any other Person directly or indirectly liable for any Guaranteed Obligations, regardless of what Guaranteed Obligations may remain unpaid after any such application; or

(I) any other circumstance that might otherwise constitute a legal or equitable discharge of, or a defense, set-off or counterclaim available to, the Borrower, any Guarantor or a surety or guarantor generally, other than the occurrence of all of the following: (x) the payment in full in cash of the Guaranteed Obligations (other than contingent and indemnification obligations not then due and payable), (y) the termination of the Commitments and the termination or expiration of all Letters of Credit under the Credit Agreement, and (z) the termination of, and settlement of all obligations of the Borrower under, each Permitted Hedge Agreement to which any Hedge Party is a party (the events in clauses (x), (y) and (z) above, collectively, the “Termination Requirements”).

10.17 Certain Waivers. Each Guarantor hereby knowingly, voluntarily and expressly waives:

(A) presentment, demand for payment, demand for performance, protest and notice of any other kind, including, without limitation, notice of nonpayment or other nonperformance (including notice of default under any Credit Document with respect to any Guaranteed Obligations), protest, dishonor, acceptance hereof, extension of additional credit to the Borrower and of any of the matters referred to in **Section 10.16** and of any rights to consent thereto;

(B) any right to require the Guaranteed Parties or any of them, as a condition of payment or performance by such Guarantor hereunder, to proceed against, or to exhaust or have resort to any collateral or other security from or any deposit balance or other credit in favor of, the Borrower, any other Guarantor or any other Person directly or indirectly liable for any Guaranteed Obligations, or to pursue any other remedy or enforce any other right; and any other defense based on an election of remedies with respect to any collateral or other security for any Guaranteed Obligations or for any guaranty or other liability in respect thereof, notwithstanding that any such election (including any failure to pursue or enforce any rights or remedies) may impair or extinguish any right of indemnification, contribution, reimbursement or subrogation or other right or remedy of any Guarantor against the Borrower, any other Guarantor or any other Person directly or indirectly liable for any Guaranteed Obligations or any such collateral or other security;

(C) any right or defense based on or arising by reason of any right or defense of the Borrower or any other Person, including, without limitation, any defense based on or arising from a lack of authority or other disability of the Borrower or any other Person, the invalidity or unenforceability of any Guaranteed Obligations or any Credit Document or other agreement or instrument delivered pursuant thereto, or the cessation of the liability of the Borrower for any reason other than the satisfaction of the Termination Requirements;

(D) any defense based on any Guaranteed Party's acts or omissions in the administration of the Guaranteed Obligations, any guaranty, security or other liability in respect thereof or any collateral or other security for any of the foregoing, and promptness, diligence, or any requirement that any Guaranteed Party create, protect, perfect, secure, insure, continue or maintain any Liens in any such security;

(E) any right to assert against any Guaranteed Party, as a defense, counterclaim, crossclaim or set-off, any defense, counterclaim, claim, right of recoupment or set-off that it may at any time have against any Guaranteed Party (including, without limitation, failure of consideration, fraud, fraudulent inducement, statute of limitations, payment, accord and satisfaction and usury), other than compulsory counterclaims and other than the payment in full in cash of the Guaranteed Obligations; and

(F) any defense based on or afforded by any applicable law that limits the liability of or exonerates guarantors or sureties or that may in any other way conflict with the terms of this Guaranty.

10.18 No Subrogation. Each Guarantor hereby agrees that, until satisfaction of the Termination Requirements, it will not exercise or seek to exercise any claim or right that it may have against the Borrower or any other Guarantor at any time as a result of any payment made under or in connection with this Guaranty or the performance or enforcement hereof, including any right of subrogation to the rights of any of the Guaranteed Parties against the Borrower or any other Guarantor, any right of indemnity, contribution or reimbursement against the Borrower or any other Guarantor (including rights of contribution as set forth in **Section 10.15(iii)**), any right to enforce any remedies of any Guaranteed Party against the Borrower or any other Guarantor, or any benefit of, or any right to participate in, any security held by any Guaranteed Party to secure payment of the Guaranteed Obligations, in each case whether such claims or rights arise by contract, statute (including without limitation the Bankruptcy Code), common law or otherwise. Each Guarantor further agrees that all indebtedness and other obligations, whether now or hereafter existing, of the Borrower or any other Subsidiary of the Borrower to such Guarantor, including, without limitation, any such indebtedness in any proceeding under the Bankruptcy Code and any intercompany receivables, together with any interest thereon, shall be, and hereby are, subordinated and made junior in right of payment to the Guaranteed Obligations. Each Guarantor further agrees that if any amount shall be paid to or any distribution received by any Guarantor (i) on account of any such indebtedness at any time after the occurrence and during the continuance of an Event of Default, or (ii) on account of any such rights of subrogation, indemnity, contribution or reimbursement at any time prior to the satisfaction of the Termination Requirements, such amount or distribution shall be deemed to have been received and to be held in trust for the benefit of the Guaranteed Parties, and shall forthwith be delivered to the Administrative Agent in the form received (with any necessary endorsements in the case of written instruments), to be applied against the Guaranteed Obligations, whether or not matured, in accordance with the terms of the applicable Credit Documents and without in any way discharging, limiting or otherwise affecting the liability of such Guarantor under any other provision of this Guaranty. Additionally, in the event the Borrower or any other Credit Party becomes a “debtor” within the meaning of the Bankruptcy Code, the Administrative Agent shall be entitled, at its option, on behalf of the Guaranteed Parties and as attorney-in-fact for each Guarantor, and is hereby authorized and appointed by each Guarantor, to file proofs of claim on behalf of each relevant Guarantor and vote the rights of each such Guarantor in any plan of reorganization, and to demand, sue for, collect and receive every payment and distribution on any indebtedness of the Borrower or such Credit Party to any Guarantor in any such proceeding, each Guarantor hereby assigning to the Administrative Agent all of its rights in respect of any such claim, including the right to receive payments and distributions in respect thereof.

10.19 Representations and Warranties. Each Guarantor hereby represents and warrants to the Guaranteed Parties that, as to itself, all of the representations and warranties relating to it contained in the Credit Agreement qualified as to materiality are true and correct and those not so qualified are true and correct in all material respects.

10.20 Financial Condition of Borrower. Each Guarantor represents that it has knowledge of the Borrower’s financial condition and affairs and that it has adequate means to

obtain from the Borrower on an ongoing basis information relating thereto and to the Borrower's ability to pay and perform the Guaranteed Obligations, and agrees to assume the responsibility for keeping, and to keep, so informed for so long as this Guaranty is in effect with respect to such Guarantor. Each Guarantor agrees that the Guaranteed Parties shall have no obligation to investigate the financial condition or affairs of the Borrower for the benefit of any Guarantor nor to advise any Guarantor of any fact respecting, or any change in, the financial condition or affairs of the Borrower that might become known to any Guaranteed Party at any time, whether or not such Guaranteed Party knows or believes or has reason to know or believe that any such fact or change is unknown to any Guarantor, or might (or does) materially increase the risk of any Guarantor as guarantor, or might (or would) affect the willingness of any Guarantor to continue as a guarantor of the Guaranteed Obligations.

10.21 Payments; Application; Set-Off.

(i) Each Guarantor agrees that, upon the failure of the Borrower to pay any Guaranteed Obligations when and as the same shall become due (whether at the stated maturity, by acceleration or otherwise), and without limitation of any other right or remedy that any Guaranteed Party may have at law, in equity or otherwise against such Guarantor, such Guarantor will, subject to the provisions of **Section 10.15(ii)**, forthwith pay or cause to be paid to the Administrative Agent, for the benefit of the Guaranteed Parties, an amount equal to the amount of the Guaranteed Obligations then due and owing as aforesaid.

(ii) All payments made by each Guarantor hereunder will be made in Dollars to the Administrative Agent, without set-off, counterclaim or other defense and, in accordance with the Credit Agreement, free and clear of and without deduction for any Taxes, each Guarantor hereby agreeing to comply with and be bound by the provisions of the Credit Agreement in respect of all payments made by it hereunder.

(iii) All payments made hereunder shall be applied in accordance with the provisions of **Section 2.12** of the Credit Agreement. For purposes of applying amounts in accordance with this Section, the Administrative Agent shall be entitled to rely upon any Guaranteed Party that has entered into a Permitted Hedge Agreement with the Borrower for a determination (which such Guaranteed Party agrees to provide or cause to be provided upon request of the Administrative Agent) of the outstanding Guaranteed Obligations owed to such Guaranteed Party under any such Permitted Hedge Agreement. Unless it has actual knowledge (including by way of written notice from any such Guaranteed Party) to the contrary, the Administrative Agent, in acting hereunder, shall be entitled to assume that no Permitted Hedge Agreements or Guaranteed Obligations in respect thereof are in existence between any Guaranteed Party and the Borrower. If any Lender or Affiliate thereof that is a party to a Permitted Hedge Agreement with the Borrower (the obligations of the Borrower under which are Guaranteed Obligations) ceases to be a Lender or Affiliate thereof, such former Lender or Affiliate thereof shall nevertheless continue to be a Guaranteed Party hereunder with respect to the Guaranteed Obligations under such Permitted Hedge Agreement.

(iv) Upon and at any time after the occurrence and during the continuance of any Event of Default, each Guaranteed Party and each of their respective Affiliates is hereby authorized at any time and from time to time, to the fullest extent permitted by applicable law, to

set off and apply any and all deposits (general or special, time or demand, provisional or final, in whatever currency) at any time held and other obligations (in whatever currency) at any time owing by such Guarantor Party or any such Affiliate to or for the credit or the account of any Guarantor against any and all of the obligations of such Guarantor now or hereafter existing under this Guaranty or any other Credit Document to such Guaranteed Party, irrespective of whether or not such Guarantor Party shall have made any demand under this Guaranty or any other Credit Document and although such obligations of such Guarantor may be contingent or unmatured or are owed to a branch or office of such Guarantor Party different from the branch or office holding such deposit or obligated on such indebtedness. The rights of each Guarantor Party and their respective Affiliates under this subsection are in addition to other rights and remedies (including other rights of setoff) that such Guarantor Parties or their respective Affiliates may have. Each Guarantor Party agrees to notify the Borrower and the Administrative Agent promptly after any such setoff and application; provided that the failure to give such notice shall not affect the validity of such setoff and application.

10.22 No Waiver. The rights and remedies of the Guarantor Parties expressly set forth in this Guaranty and the other Credit Documents are cumulative and in addition to, and not exclusive of, all other rights and remedies available at law, in equity or otherwise. No failure or delay on the part of any Guarantor Party in exercising any right, power or privilege shall operate as a waiver thereof, nor shall any single or partial exercise of any such right, power or privilege preclude any other or further exercise thereof or the exercise of any other right, power or privilege or be construed to be a waiver of any Default or Event of Default. No course of dealing between any of the Guarantors and the Guarantor Parties or any Related Party thereof shall be effective to amend, modify or discharge any provision of this Guaranty or any other Credit Document or to constitute a waiver of any Default or Event of Default. No notice to or demand upon any Guarantor in any case shall entitle such Guarantor or any other Guarantor to any other or further notice or demand in similar or other circumstances or constitute a waiver of the right of any Guarantor Party to exercise any right or remedy or take any other or further action in any circumstances without notice or demand.

10.23 Enforcement. The Guarantor Parties agree that, except as provided in **Section 10.21(iv)**, this Guaranty may be enforced only by the Administrative Agent, acting upon the instructions or with the consent of the Required Lenders as provided for in the Credit Agreement, and that no Guarantor Party shall have any right individually to enforce or seek to enforce this Guaranty or to secure the payment and performance of the Guarantors' obligations hereunder. The obligations of each Guarantor hereunder are independent of the Guaranteed Obligations, and a separate action or actions may be brought against each Guarantor whether or not action is brought against the Borrower or any other Guarantor and whether or not the Borrower or any other Guarantor is joined in any such action. Each Guarantor agrees that to the extent all or part of any payment of the Guaranteed Obligations made by any Person is subsequently invalidated, declared to be fraudulent or preferential, set aside or required to be repaid by or on behalf of any Guarantor Party to a trustee, receiver or any other party under any Insolvency Laws (the amount of any such payment, a "Reclaimed Amount"), then, to the extent of such Reclaimed Amount, this Guaranty shall continue in full force and effect or be revived and reinstated, as the case may be, as to the Guaranteed Obligations intended to be satisfied as if such payment had not been received; and each Guarantor acknowledges that the term "Guaranteed Obligations" includes all Reclaimed Amounts that may arise from time to time.

10.24 Amendments, Waivers, etc. . No amendment, modification, waiver, discharge or termination of, or consent to any departure by any Guarantor from, any provision of this Guaranty, shall be effective unless in a writing signed by the Administrative Agent and such of the Lenders as may be required under the provisions of the Credit Agreement to concur in the action then being taken, and then the same shall be effective only in the specific instance and for the specific purpose for which given.

10.25 Addition, Release of Guarantors . Each Guarantor recognizes that the provisions of the Credit Agreement require Persons that become Subsidiaries of the Borrower and that are not already parties hereto to become Guarantors hereunder (excluding any Foreign Subsidiary to the extent (and for as long as) doing so would cause adverse tax or regulatory consequences to the Borrower) by executing a Guarantor Accession, and agrees that its obligations hereunder shall not be discharged, limited or otherwise affected by reason of the same, or by reason of the Administrative Agent's actions in effecting the same or in releasing any Guarantor hereunder, in each case without the necessity of giving notice to or obtaining the consent of any other Guarantor.

10.26 Continuing Guaranty; Term; Successors and Assigns; Assignment; Survival . This Guaranty is a continuing guaranty and covers all of the Guaranteed Obligations as the same may arise and be outstanding at any time and from time to time from and after the date hereof, and shall (i) remain in full force and effect until satisfaction of all of the Termination Requirements (provided that the indemnification provisions of clause (ii) of **Section 1(a)** shall survive any termination of this Guaranty), (ii) be binding upon and enforceable against each Guarantor and its successors and assigns (provided, however, that no Guarantor may sell, assign or transfer any of its rights, interests, duties or obligations hereunder without the prior written consent of the Lenders) and (iii) inure to the benefit of and be enforceable by each Guaranteed Party and its successors and permitted assigns. Without limiting the generality of clause (iii) above, any Guaranteed Party may, in accordance with the provisions of the Credit Agreement, assign all or a portion of the Guaranteed Obligations held by it (including by the sale of participations), whereupon each Person that becomes the holder of any such Guaranteed Obligations shall (except as may be otherwise agreed between such Guaranteed Party and such Person) have and may exercise all of the rights and benefits in respect thereof granted to such Guaranteed Party under this Guaranty or otherwise. Each Guarantor hereby irrevocably waives notice of and consents in advance to the assignment as provided above from time to time by any Guaranteed Party of all or any portion of the Guaranteed Obligations held by it and of the corresponding rights and interests of such Guaranteed Party hereunder in connection therewith. All representations, warranties, covenants and agreements herein shall survive the execution and delivery of this Guaranty and any Guarantor Accession.

10.27 Governing Law; Consent to Jurisdiction; Appointment of Borrower as Representative, Process Agent, Attorney-in-Fact .

(i) This Guaranty shall be governed by, and construed and enforced in accordance with, the laws of the State of New York (including Sections 5-1401 and 5-1402 of the New York General Obligations Law, but excluding all other choice of law and conflicts of law rules).

(ii) Each Guarantor irrevocably and unconditionally submits, for itself and its property, to the nonexclusive jurisdiction of courts of the state of New York and of the United States District Court of the Southern District of New York, and any appellate court thereof, in any action or proceeding arising out of or relating to this Guaranty or any other Credit Document, or for recognition or enforcement of any judgment, and each of the parties hereto irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding may be heard and determined in such state court or, to the fullest extent permitted by applicable law, in such federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Guaranty or in any other Credit Document shall affect any right that any Guaranteed Party may otherwise have to bring any action or proceeding relating to this Guaranty or any other Credit Document against any Guarantor or its properties in the courts of any jurisdiction.

(iii) Each Guarantor irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any objection that it may now or hereafter have to the laying of venue of any action or proceeding arising out of or relating to this Guaranty or any other Credit Document in any court referred to in **Section 13(b)**. Each of the parties hereto hereby irrevocably waives, to the fullest extent permitted by applicable law, the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court.

(iv) Each Guarantor hereby irrevocably designates and appoints the Borrower as its designee, appointee and agent to receive on its behalf all service of process in any such action or proceeding and any other notice or communication hereunder, irrevocably consents to service of process in any such action or proceeding in the manner provided for notices in **Section 15**, and irrevocably agrees that service so made shall be effective and binding upon such Guarantor in every respect and that any other notice or communication given to the Borrower at the address and in the manner specified herein shall be effective notice to such Guarantor. Nothing in this Section shall affect the right of any party to serve legal process in any other manner permitted by law or affect the right of any Guaranteed Party to bring any action or proceeding against any Guarantor in the courts of any other jurisdiction.

(v) Further, each Guarantor does hereby irrevocably make, constitute and appoint the Borrower as its true and lawful attorney-in-fact, with full authority in its place and stead and in its name, the Borrower's name or otherwise, and with full power of substitution in the premises, from time to time in the Borrower's discretion to agree on behalf of, and sign the name of, such Guarantor to any amendment, modification or supplement to, restatement of, or waiver or consent in connection with, this Guaranty, any other Credit Document or any document or instrument pursuant hereto or thereto, and to take any other action and do all other things on behalf of such Guarantor that the Borrower may deem necessary or advisable to carry out and accomplish the purposes of this Guaranty and the other Credit Documents. The Borrower will not be liable for any act or omission nor for any error of judgment or mistake of fact unless the same shall occur as a result of the gross negligence or willful misconduct of the Borrower. This power, being coupled with an interest, is irrevocable by any Guarantor for so long as this Guaranty shall be in effect with respect to such Guarantor. By its signature hereto, the Borrower consents to its appointment as provided for herein and agrees promptly to distribute all process, notices and other communications to each Guarantor.

10.28 Waiver of Jury Trial. EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS GUARANTY OR ANY OTHER CREDIT DOCUMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH PARTY HERETO (A) CERTIFIES THAT NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PERSON HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PERSON WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER AND (B) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HERETO HAVE BEEN INDUCED TO ENTER INTO THIS GUARANTY AND THE OTHER CREDIT DOCUMENTS BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION.

10.29 Notices. All notices and other communications provided for herein shall be in writing and shall be delivered by hand or overnight courier service, mailed by certified or registered mail or sent by telecopier as follows: (a) if to any Guarantor, in care of the Borrower and at the Borrower's address for notices set forth in the Credit Agreement, and (b) if to any Guaranteed Party, at its address for notices set forth in the Credit Agreement; in each case, as such addresses may be changed from time to time pursuant to the Credit Agreement, and with copies to such other Persons as may be specified under the provisions of the Credit Agreement. Notices sent by hand or overnight courier service, or mailed by certified or registered mail, shall be deemed to have been given when received; notices sent by telecopier shall be deemed to have been given when sent (except that, if not given during normal business hours for the recipient, shall be deemed to have been given at the opening of business on the next business day for the recipient). Notices delivered through electronic communications to the extent provided in the Credit Agreement shall be effective as provided therein.

10.30 Severability. To the extent any provision of this Guaranty is prohibited by or invalid under the applicable law of any jurisdiction, such provision shall be ineffective only to the extent of such prohibition or invalidity and only in such jurisdiction, without prohibiting or invalidating such provision in any other jurisdiction or the remaining provisions of this Guaranty in any jurisdiction.

10.31 Construction. The headings of the various sections and subsections of this Guaranty have been inserted for convenience only and shall not in any way affect the meaning or construction of any of the provisions hereof. Unless the context otherwise requires, words in the singular include the plural and words in the plural include the singular.

10.32 Counterparts; Effectiveness. This Guaranty may be executed in any number of counterparts and by different parties hereto on separate counterparts, each of which when so executed and delivered shall be an original, but all of which shall together constitute one and the same instrument. This Guaranty shall become effective, as to any Guarantor, upon the execution and delivery by such Guarantor of a counterpart hereof or a Guarantor Accession.

IN WITNESS WHEREOF , the parties have caused this Guaranty to be executed under seal by their duly authorized officers as of the date first above written.

INTERCONTINENTALEXCHANGE, INC.

By: _____
Name: Scott A. Hill
Title: Vice President

[NAME OF GUARANTOR]
[NAME OF GUARANTOR]
[REPEAT]

By: _____
Title: _____

Accepted and agreed to:

WACHOVIA BANK, NATIONAL ASSOCIATION ,
as Administrative Agent

By: _____
Name: _____
Title: _____

EXHIBIT A

GUARANTOR ACCESSION

THIS GUARANTOR ACCESSION (this “Accession”), dated as of _____, _____, is executed and delivered by [NAME OF NEW GUARANTOR], a _____ corporation (the “New Guarantor”), pursuant to the Guaranty Agreement referred to hereinbelow.

Reference is made to the Credit Agreement, dated as of _____, 2009, among **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), the Lenders party thereto, the Administrative Agent, the Issuing Lender, Swingline Lender, and the Syndication Agent (as amended, modified, restated or supplemented from time to time, the “Credit Agreement”). In connection with and as a condition to the initial and continued extensions of credit under the Credit Agreement, the Borrower and certain of its Subsidiaries have executed and delivered a Guaranty Agreement, dated as of _____, 2009 (as amended, modified, restated or supplemented from time to time, the “Guaranty Agreement”), pursuant to which such Subsidiaries have guaranteed the payment in full of the obligations of the Borrower under the Credit Agreement and the other Credit Documents (as defined in the Credit Agreement). Capitalized terms used herein without definition shall have the meanings given to them in the Guaranty Agreement.

The Borrower has agreed under the Credit Agreement to cause each of its future Subsidiaries (excluding any Foreign Subsidiary to the extent (and for as long as) doing so would cause adverse tax or regulatory consequences to the Borrower) to become a party to the Guaranty Agreement as a guarantor thereunder. The New Guarantor is a Subsidiary of the Borrower. The New Guarantor will obtain benefits as a result of the continued extension of credit to the Borrower under the Credit Agreement, which benefits are hereby acknowledged, and, accordingly, desire to execute and deliver this Accession. Therefore, in consideration of the foregoing and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and to induce the Lenders to continue to extend credit to the Borrower under the Credit Agreement, the New Guarantor hereby agrees as follows:

1. The New Guarantor hereby joins in and agrees to be bound by each and all of the provisions of the Guaranty Agreement as a Guarantor thereunder. In furtherance (and without limitation) of the foregoing, pursuant to Section 10.15 of the Guaranty Agreement, the New Guarantor hereby irrevocably, absolutely and unconditionally, and jointly and severally with each other Guarantor, guarantees to the Guaranteed Parties the full and prompt payment, at any time and from time to time as and when due (whether at the stated maturity, by acceleration or otherwise), of all of the Guaranteed Obligations, and agrees to pay or reimburse upon demand all other obligations of the Guarantors under the Guaranty Agreement, all on the terms and subject to the conditions set forth in the Guaranty Agreement.

2. The New Guarantor hereby represents and warrants that after giving effect to this Accession, each representation and warranty related to it contained in the Credit Agreement qualified as to materiality is true and correct and each not so qualified is true and correct in all material respects, in each case with respect to the New Guarantor as of the date hereof.

3. This Accession shall be a Credit Document (within the meaning of such term under the Credit Agreement), shall be binding upon and enforceable against the New Guarantor and its successors and assigns, and shall inure to the benefit of and be enforceable by each Guaranteed Party and its successors and permitted assigns. This Accession and its attachments are hereby incorporated into the Guaranty Agreement and made a part thereof.

IN WITNESS WHEREOF , the New Guarantor has caused this Accession to be executed under seal by its duly authorized officer as of the date first above written.

[NAME OF NEW GUARANTOR]

By: _____
Title: _____

EXHIBIT F

FORM OF FINANCIAL CONDITION CERTIFICATE

THIS FINANCIAL CONDITION CERTIFICATE (this “Certificate”) is delivered pursuant to the Credit Agreement, dated as of _____, 2009 (the “Credit Agreement”), among **INTERCONTINENTALEXCHANGE, INC.**, a Delaware corporation (the “Borrower”), the Lenders from time to time parties thereto, Wachovia Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America, N.A., as Syndication Agent. Capitalized terms used herein without definition shall have the meanings given to such terms in the Credit Agreement.

The undersigned hereby certifies for and on behalf of the Borrower as follows:

10.33 Capacity. The undersigned is, and at all pertinent times mentioned herein has been, the duly qualified and acting chief financial officer of the Borrower, and in such capacity has responsibility for the management of the Borrower’s financial affairs and for the preparation of the Borrower’s financial statements. The undersigned has, together with other officers of the Borrower, acted on behalf of the Borrower in connection with the negotiation and consummation of the Credit Agreement, the initial extensions of credit made under the Credit Agreement, and the other transactions described therein.

10.34 Procedures. For purposes of this Certificate, the undersigned has, as of or prior to the date hereof, undertaken the following activities in connection herewith:

(a) The undersigned has carefully reviewed the following:

- (i) the contents of this Certificate;
- (ii) the Credit Agreement (including the exhibits and schedules thereto); and
- (iii) the audited and unaudited financial statements of the Borrower and its Subsidiaries referred to in **Section 4.11(a)** of the Credit Agreement.

(b) Additionally, the undersigned has prepared or supervised the preparation of and has reviewed projected consolidated balance sheets and statements of income and cash flows of the Borrower and its Subsidiaries prepared on an annual basis through the end of fiscal year 2012, copies of which projected financial statements are attached hereto as Annex A (the “Projections”).

(c) The undersigned, together with the other officers and personnel of the Borrower and its Subsidiaries who were principally and directly involved in the preparation of the Projections, have relied on historical financial and other information and upon information with respect to sales, costs and other data obtained in discussions with executive officers of the Borrower and other officers and supervisory personnel directly and primarily responsible for the various operations involved. The undersigned has reexamined the Projections as of the date

hereof, and has considered the continuing reasonableness of the assumptions set forth therein and the effect thereon of any changes since the date of preparation thereof on the financial condition set forth and the results projected therein.

(d) The undersigned has made inquiries of certain other officers and personnel of the Borrower and its Subsidiaries with responsibility for financial and accounting matters regarding (i) whether the unaudited financial statements described in paragraph 2.1(c) above are in conformity with GAAP applied on a basis consistent with that of the audited financial statements described in paragraph 2.1(c) above (subject to the absence of footnotes required by GAAP and subject to normal year-end adjustments), and whether notes omitted from such unaudited financial statements would have disclosed any new information that would be necessary to make the statements contained therein, taken as a whole, not misleading, and (ii) whether such persons were aware of any events or conditions that, as of the date hereof, would cause the statements made in paragraph 3 below to be untrue in any material respect.

(e) With respect to any contingent liabilities of the Borrower and its Subsidiaries on a pro forma basis after giving effect to the transactions contemplated by the Credit Agreement, the undersigned:

- (i) has inquired of certain officers and other personnel of the Borrower and its Subsidiaries who have responsibility for the legal, financial and accounting affairs of the Borrower and its Subsidiaries, as to the existence and estimated amounts of all contingent liabilities known to them;
- (ii) has confirmed with senior accounting officers of the Borrower that, to the best of such officers' knowledge, (i) all appropriate items have been included in contingent liabilities made known to the undersigned in the course of the inquiry of the undersigned in connection herewith, and (ii) the amounts relating thereto were the maximum estimated amounts of liability reasonably likely to result therefrom as of the date hereof, and
- (iii) confirms that, to the best of the undersigned's knowledge, all material contingent liabilities that may arise from any pending litigation, asserted claims and assessments, guarantees, uninsured risks, and other relevant contingencies and circumstances have been considered in making the certification set forth herein, and with respect to each such contingent liability the maximum estimated amount of liability with respect thereto was used in making such certification.

(f) The undersigned has conferred with counsel to the Borrower for the purpose of discussing the meaning of the contents of this Certificate.

10.35 Certifications. Based on the foregoing, the undersigned hereby certifies as follows:

(a) The Borrower and its Subsidiaries, taken as a whole, are not insolvent now, and the incurrence by the Borrower and its Subsidiaries of their respective liabilities and obligations pursuant to the Credit Agreement and the other Credit Documents and the initial extensions of

credit made under the Credit Agreement, the payment of transaction fees and expenses related to the foregoing and the consummation of the other transactions contemplated thereby will not render them insolvent taken as a whole. The undersigned understands that, in this context, (i) “insolvent” means that the present fair saleable value of assets is less than the amount that will be required to be paid on or in respect of the existing debts as such debts mature in the ordinary course, (ii) “fair value” of assets means the aggregate amount that could be realized within a reasonable time, either through collection or sale of such assets at the regular market value as an ongoing business, conceiving of the latter as the amount that could be obtained for the property in question within such period by a capable and diligent seller from an interested buyer who is willing to purchase under ordinary selling conditions, and (iii) “debts” includes any legal liability, whether matured or unmatured, liquidated or unliquidated, absolute, fixed or contingent, including any guaranty or other contingent obligation.

(b) The undersigned reasonably believes that, by the incurrence of their respective liabilities and obligations pursuant to the Credit Agreement and the other Credit Documents and the initial extensions of credit made under the Credit Agreement, the payment of transaction fees and expenses related to the foregoing and the consummation of the other transactions contemplated thereby, the Borrower and its Subsidiaries, taken as a whole, will not incur debts beyond their ability to pay as they mature in the ordinary course (taking into account the timing and amounts of cash to be payable on or in respect of such debts). The foregoing conclusion is based in part on the Projections, which demonstrate that the cash flow of the Borrower and its Subsidiaries, after taking into account all anticipated uses of cash of each such Person, will at all times be sufficient to pay all amounts on or in respect of Indebtedness of such Persons when such amounts are required, in the ordinary course, to be paid (including without limitation scheduled payments pursuant to the Credit Agreement). The undersigned has concluded that the realization of current assets in the ordinary course of business should be sufficient to pay recurring current debt, short-term debt and long-term debt as such debts mature in their ordinary course, that the cash flow (including earnings plus non-cash charges to earnings) should be sufficient to provide cash necessary to repay loans made under the Credit Agreement and other long-term indebtedness as such debt matures in its ordinary course, and that the Borrower should have sufficient availability under the Credit Agreement to satisfy its working capital and short-term liquidity requirements.

(c) After giving effect to the initial extensions of credit made under the Credit Agreement, the payment of transaction fees and expenses related to the foregoing and the consummation of the other transactions contemplated thereby, the assets of the Borrower and its Subsidiaries, taken as a whole, do not constitute “unreasonably small capital” (within the meaning of Section 548(a) of the Bankruptcy Code, 11 U.S.C. Section 548(a)) for such Persons to carry on their businesses as now conducted and as proposed to be conducted, taking into account the particular capital requirements of the businesses conducted and to be conducted by them and the availability of capital in respect thereof (with reference to, without limitation, the Projections and the Borrower’s available credit capacity).

(d) Neither the Borrower nor any of its Subsidiaries have executed the Credit Agreement or any other documents mentioned therein, or made any transfer or incurred any obligations thereunder, with intent to hinder, delay or defraud either present or future creditors of such Person.

(e) The statements made herein by the undersigned are based upon the personal knowledge of the undersigned, or upon reports and other information given to the undersigned by supervisory personnel of the Borrower having principal and direct responsibility for the reports and information given, and who in the opinion of the undersigned are reliable and entitled to be relied upon. The statements made herein are made in good faith and, to the best of the knowledge and belief of the undersigned, and subject to the assumptions set forth in Annex A, are reasonable in all material respects.

(f) The undersigned understands that the Lenders have performed their own review and analysis of the financial condition of the Borrower and its Subsidiaries, but that the Lenders are relying on the foregoing statements in connection with the extension of credit to the Borrower pursuant to the Credit Agreement.

Executed on behalf of the Borrower as of the date first written above.

INTERCONTINENTALEXCHANGE, INC.

By: _____

Name: Scott A. Hill

Title: Chief Financial Officer

SCHEDULES

DISCLOSURE SCHEDULES

CREDIT AGREEMENT

among

**INTERCONTINENTALEXCHANGE, INC.,
as Borrower**

THE LENDERS NAMED THEREIN,

**WACHOVIA BANK, NATIONAL ASSOCIATION,
as Administrative Agent, Issuing Lender and Swingline Lender**

and

**BANK OF AMERICA, N.A.
as Syndication Agent**

\$300,000,000 Senior Credit Facilities

Dated as of April 9, 2009

Attached hereto are the Borrower's "Schedules" as contemplated by the Credit Agreement of even date herewith (the "Agreement"), by and among IntercontinentalExchange, Inc., a Delaware corporation (the "Borrower"), the Lenders named therein, Wachovia Bank, National Association, as Administrative Agent, Issuing Lender and Swingline Lender, and Bank of America N.A., as Syndication Agent. Capitalized terms used, but not otherwise defined herein, have the meanings given to such terms in the Agreement.

The disclosures on the Borrower's Schedules may be over-inclusive, considering the materiality standard contained in, and the disclosures required by, the provisions of the Agreement corresponding to the respective disclosure schedule, and the fact that any item or matter is disclosed on the attached Schedules shall not be deemed to set or establish different standards of materiality or required disclosures from those set forth in the corresponding provisions of the Agreement. Furthermore, the disclosure of any item or information in the Schedules is not an admission that such item or information (or any non-disclosed item or information of comparable or greater significance) is material, is required to have been disclosed herein, or is of a nature that would have a Material Adverse Effect.

Schedule 1.1(a)

Commitments and
Notice Addresses

Commitments

<u>Lender</u>	<u>Revolving Credit Commitment</u>	<u>Term Loan Commitment</u>
Wachovia Bank, National Association	\$17,500,000.00	\$35,000,000.00
Bank of America, N.A.	\$17,500,000.00	\$35,000,000.00
The Bank of Tokyo-Mitsubishi UFJ, Ltd.	\$13,750,000.00	\$27,500,000.00
Societe Generale	\$12,916,666.67	\$25,833,333.33
Regions Financial Corporation	\$ 8,333,333.32	\$16,666,666.68
Morgan Stanley Bank, N.A.	\$ 5,833,333.33	\$11,666,666.67
Bank of Montreal	\$ 4,166,666.67	\$ 8,333,333.33
Deutsche Bank AG New York Branch	\$ 4,166,666.67	\$ 8,333,333.33
Fifth Third Bank	\$ 4,166,666.67	\$ 8,333,333.33
The Bank of New York Mellon	\$ 4,166,666.67	\$ 8,333,333.33
Chang Hwa Commercial Bank, Ltd., New York Branch	\$ 2,833,333.33	\$ 5,666,666.67
Comerica Bank	\$ 1,666,666.67	\$ 3,333,333.33
Mega International Commercial Bank Co., Ltd.	\$ 1,666,666.67	\$ 3,333,333.33
First Commercial Bank New York Agency	\$ 1,333,333.33	\$ 2,666,666.67
Total	\$ 100,000,000	\$ 200,000,000

Notice Addresses

<u>Party</u>	<u>Address</u>
Borrower	IntercontinentalExchange, Inc. 2100 River Edge Parkway, 5 th Floor Atlanta, Georgia 30328 Attention: Legal Department Telephone: (770) 738-2106 Telecopy: (770) 857-4755
Wachovia Bank, National Association	Instructions for wire transfers to the Administrative Agent: Wachovia Bank, National Association ABA Routing No. 053000219 Charlotte, North Carolina Account Number: 5000000147609 Account Name: IntercontinentalExchange Inc Attention: Syndication Agency Services Address for notices as Administrative Agent: Wachovia Bank, National Association 1525 W.T. Harris Blvd. Building 3A2, Mailcode NC 0680 Charlotte, North Carolina 28262 Attention: Syndication Agency Services Telephone: (704) 383-3721 Telecopy: (704) 383-0288 Address for notices as Swingline Lender: Wachovia Bank, National Association 1525 W.T. Harris Blvd. Building 3A2, Mailcode NC 0680 Charlotte, North Carolina 28262 Attention: Syndication Agency Services Telephone: (704) 383-3721 Telecopy: (704) 383-0288 with a copy to: Wachovia Bank, National Association 171 17th Street, N.W. Atlanta, Georgia 30363 Mailcode GA4507

Attention: Elaine Eaton
Telephone: (404) 214-3627
Telecopy: (404) 861-0604
Attention: Mendel Lay
Telephone: (404) 214-3849
Telecopy: (404) 214-3861

Schedule 4.1**Jurisdictions of Organization**

<u>Borrower</u>	<u>Jurisdiction of Organization</u>
IntercontinentalExchange, Inc.	Delaware
Subsidiary Guarantors	
Chatham Energy, LLC	Delaware
Creditex Group Inc.	Delaware
Creditex Holdco, LLC	Delaware
Creditex LLC	Delaware
Creditex Securities Corporation	Delaware
CreditTrade Inc.	Delaware
ICE Data Investment Group, LLC	Delaware
ICE Data Management Group, LLC	Delaware
ICE Data, LP	Delaware
ICE Futures U.S., Inc. (formerly known as CFC Acquisition Co.)	Delaware
ICE Markets, Inc.	Delaware
ICE US Holding Company GP LLC	Delaware
IntercontinentalExchange International, Inc.	Delaware
T-Zero Processing Services LLC	Delaware
YellowJacket, Inc.	Delaware
eCOPS, LLC	New York
ICE Clear US, Inc. (formerly known as New York Clearing Corporation)	New York
New York Futures Exchange, Inc.	New York

Schedule 4.4

Consents and Approvals

None.

Schedule 4.5

Litigation Matters

Altman et al v. ICE Futures U.S.

On April 6, 2007, the Supreme Court of the State of New York, County of New York, granted ICE Futures U.S.'s motion to dismiss all claims brought against it in an action commenced on December 8, 2006, by certain holders of non-equity trading permits, or Permit Holders, of ICE Futures U.S. seeking declaratory, monetary and injunctive relief with respect to the merger. Plaintiffs alleged that, in violation of contract rights and/or rights under New York's Not-For-Profit Corporation Law ("NPCL"), ICE Futures U.S.'s Permit Holders, including plaintiffs, were not permitted to vote with respect to the merger and would not receive any part of the merger consideration. Plaintiffs sought (i) to enjoin consummation of the merger, (ii) declaratory relief regarding their past and future rights as Permit Holders, and (iii) an award of unspecified damages on claims for breach of fiduciary duty, breach of contract, unjust enrichment, estoppel and fraud. The court also denied the plaintiffs' motion for a preliminary injunction. On February 4, 2008, the Permit Holders appealed the lower court's ruling dismissing their complaint but did not pursue an appeal of the lower court's denial of their request for an order enjoining the merger. On June 24, the court denied the plaintiffs' appeal and the plaintiffs have no further right to appeal unless the New York Court of Appeals grants the plaintiffs a leave of appeal. The appeal was denied in its entirety on June 24th. The Permit Holders then requested leave of the court to appeal the decision to the New York Court of Appeals. That request was denied on October 7th and the Permit Holders then filed a motion for leave to appeal directly to the Court of Appeals. That motion, likewise, was denied on January 20, 2009 based on the permit holders' failure to timely file the request for appeal. As a technical matter, "reargument" of the appeal could be sought, however, the permit holders would have to demonstrate that the Court of Appeals misapprehended some aspect of the "argument" that was made before it. In light of the fact that no such argument ever occurred, the permit holders would face serious impediments were they to file a request to reargue.

Amirsaleh v. Board of Trade of the City of New York, Inc. and Intercontinental Exchange, Inc.

This action was filed by a former NYBOT equity member in the Court of Chancery of the State of Delaware, New Castle County, on March 22, 2007, asserting that NYBOT breached the terms of the Merger Agreement between NYBOT and ICE, and breached the duty of good faith and fair dealing implicit in every contract, by allegedly failing to give plaintiff timely notice of the election deadline with respect to the merger consideration that would be paid to NYBOT equity members. The Plaintiff seeks shares of ICE stock in an amount equal to the amount received by any member who made an all stock election, and seeks the issuance to him of two NYBOT trading memberships, which were not issued following the merger due to plaintiff's failure to own and pledge the shares of ICE stock that were a pre-requisite to the issuance of such memberships. ICE and NYBOT filed an Answer to the Complaint on April 23, 2007, denying the essential allegations and asserting as affirmative defenses that (1) the Complaint fails to state a claim upon which relief can be granted, (2) plaintiff's claims and requests for relief are barred by the doctrines of waiver, estoppel and/or acquiescence and (3) plaintiff lacks standing to assert

claims for breach of the merger agreement and (4) failure to take reasonable steps to mitigate the damages claimed. A motion for Judgment on the Pleading or in the alternative, for Summary Judgment was filed by defendants on June 11, 2008 and was decided on September 11, 2008. The court granted the motion insofar as the breach of contract claim was concerned and denied it with respect to the claim based on the implied covenant of good faith and fair dealing because the Court found there to be issues of fact in dispute that precluded the grant of summary judgment as a procedural matter. [***] The matter has been scheduled for trial July 21 – 23, 2009.

*** Confidential information on this page has been omitted and filed separately with the Commission. Confidential treatment has been requested with respect to the omitted portions.

Schedule 4.7

Subsidiaries

The Borrower is the 100% direct owner of the following domestic entities :

1. IntercontinentalExchange International, Inc. (“ ICE International ”)
2. ICE Markets, Inc. (“ ICE Markets ”)
3. ICE Data Management Group, LLC (“ ICE Management ”)
4. ICE Data Investment Group, LLC (“ ICE Investment ”)
5. ICE Futures U.S., Inc. (“ ICE Futures ”)
6. Chatham Energy, LLC
7. YellowJacket, Inc.
8. Creditex Group Inc.
9. Creditex Holdco, LLC
10. ICE US Holding Company GP LLC

The Borrower is the 100% indirect owner (except as indicated below) of the following domestic entities :

1. ICE Data, LP (ICE Management is the direct 1% owner; ICE Investment is the direct 99% owner)
2. ICE Clear US, Inc. (ICE Futures is the direct 100% owner)
3. eCOPS, LLC (ICE Futures is the direct 100% owner)
4. New York Futures Exchange (ICE Futures is the direct 100% owner)
5. The Clearing Corporation (ICE US Holding Company L.P. is the direct 100% owner)
6. ICE US Trust LLC (ICE US Holding Company L.P. is the direct 100% owner)
7. QW Holdings LLC (50.11% owner is Creditex Group Inc and 49.89% owners are other third party investors)
8. Q-WIXX B Sub LLC (100% owned by QW Holdings LLC)
9. T-Zero Processing Services LLC (100% owner is Creditex Group Inc.)

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10. Creditex LLC (100% owner is Creditex Group Inc.)
 11. CreditTrade Inc. (100% owner is Creditex Group Inc.)
 12. Creditex Securities Corporation (100% owned by CreditTrade Inc.)

The Borrower is the 100% indirect owner (except as indicated below) of the following foreign entities :

1. ICE Markets Corporation (ICE Markets is the direct 100% owner)
2. ICE Netherlands C.V. (ICE Markets 1% LP; ICE International 99% LP)
3. ICE Netherlands B.V. (ICE Netherlands C.V. 100% owner)
4. 5509794 Manitoba, Inc. (ICE Netherlands B.V. 100% owner)
5. ICE Futures Canada, Inc. (“ ICE Futures Canada ”) (5509794 Manitoba, Inc. 100% owner)
6. ICE Clear Canada, Inc. (ICE Futures Canada 100% owner)
7. Canadian Climate Exchange, Inc. (ICE Futures Canada 100% owner)
8. ICE Services Canada, Inc. (ICE Futures Canada 100% owner)
9. IntercontinentalExchange Holdings (ICE International is the < 1% owner and ICE Netherlands C.V. is > 99% owner)
10. ICE Markets Limited (IntercontinentalExchange Holdings is the direct 100% owner)
11. ICE Clear Europe Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
12. ICE Clear UK Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
13. ICE Futures Holdings Ltd. (IntercontinentalExchange Holdings is the direct 100% owner)
14. IntercontinentalExchange Technologies Limited (IntercontinentalExchange Holdings is the direct 100% owner)
15. ICE Data Holdings Limited (IntercontinentalExchange Holdings is the direct 20% owner and ICE Data Services Limited is the direct 80% owner)
16. International Petroleum Exchange of London Limited (IntercontinentalExchange Holdings is the direct 100% owner)
17. IPE Holdings Limited (IntercontinentalExchange Holdings is the direct 100% owner)
18. ICE Education Limited (ICE Futures Holdings Ltd. is the direct 100% owner)

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19. International Petroleum Exchange Limited (ICE Futures Holdings Ltd. is the direct 100% owner)
 20. ICE Futures Holdco No. 1 (ICE Futures Holdings Ltd. is the direct 100% owner)
 21. ICE Futures Holdco No. 2 (ICE Futures Holdings Ltd. is the direct 100% owner)
 22. ICE Data Services Limited (ICE Futures Holdings Ltd. is the direct 100% owner)
 23. ICE Futures Europe (ICE Futures Holdco No. 1 is 50% owner and ICE Futures Holdco No. 2 is 50% owner)
 24. ICE Futures Ltd. (ICE Futures Europe the direct 100% owner)
 25. ICE Data LLP (ICE Data Holdings Limited is 99% owner and IntercontinentalExchange Holdings is 1% owner)
 26. ICE US Holding Company L.P. (ICE US Holding Company GP LLC is the direct 100% owner of the general partnership interests; Borrower owns 50% of the limited partnership interests and the remaining 50% of the limited partnership interests are owned by the former shareholders of The Clearing Corporation)
 27. Q-WIXX International Limited (100% owned by Q-WIXX B Sub LLC)
 28. T-Zero International, Ltd. (100% owned by T-Zero Processing Services LLC)
 29. Creditex UK, Ltd. (100% owned by CreditTrade, Inc.)
 30. Creditex Brokerage LLP (100% owned by Creditex UK Ltd.)
 31. Creditex Singapore PTE. Ltd. (100% owned by CreditTrade, Inc.)

The Borrower is the 100% direct owner of the following foreign entities :

1. ICE Clear Holdco, Ltd.

Schedule 4.19

Material Contracts

1. Agreement and Plan of Merger by and among IntercontinentalExchange, Inc., Columbia Merger Corporation, Creditex Group Inc. and TA Associates, Inc. dated June 3, 2008 (incorporated by reference to Exhibit 10.1 to ICE's Quarterly Report on Form 10-Q, filed with the SEC on August 4, 2008, File No. 001-32671).
2. Amendment to Agreement and Plan of Merger, dated as of August 26, 2008, to the Agreement and Plan of Merger, dated as of June 3, 2008, by and among ICE, MergerCo, Creditex and the Stockholders' Representative (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on September 2, 2008, File No. 001-32671).
3. Employment Agreement, dated as of December 31, 2008, between IntercontinentalExchange, Inc. and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
4. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Charles A. Vice (incorporated by reference to Exhibit 10.2 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
5. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and David S. Goone (incorporated by reference to Exhibit 10.3 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
6. Employment Agreement, dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Edwin D. Marcial (incorporated by reference to Exhibit 10.4 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
7. Employment Agreement dated as of December 31, 2008, between Intercontinental-Exchange, Inc. and Scott A. Hill (incorporated by reference to Exhibit 10.5 to ICE's Current Report on Form 8-K, filed with the SEC on January 7, 2009, File No. 001-32671).
8. IntercontinentalExchange, Inc. 2000 Stock Option Plan, as amended effective December 31, 2008.
9. IntercontinentalExchange, Inc. 2003 Restricted Stock Deferral Plan for Outside Directors, as amended effective December 31, 2008.
10. IntercontinentalExchange, Inc. 2004 Restricted Stock Plan, as amended effective December 31, 2008.
11. IntercontinentalExchange, Inc. 2005 Equity Incentive Plan, as amended effective December 31, 2008.
12. \$500,000,000 Credit Agreement, dated as of January 12, 2007, among IntercontinentalExchange, Inc. Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and other Lenders named therein (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on January 12, 2007, File No. 001-32671) (as amended by items 13 and 14 below; to be amended and restated by that certain Amendment and Restatement Agreement, dated April 9, 2009, among IntercontinentalExchange, Inc., the subsidiary guarantors party thereto, the lenders signatory thereto, Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent (the "Restated Credit Facility")).

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13. First Amendment to \$500,000,000 Credit Agreement among IntercontinentalExchange, Inc. and Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the Lenders named therein dated as of August 24, 2007 (incorporated by reference to Exhibit 10.1 to our Current Report on Form 8-K, filed with the SEC on August 30, 2007, File No. 001-32671) (amends item 12; to be amended and restated by the Restated Credit Facility).
 14. Second Amendment to \$500,000,000 Credit Agreement among IntercontinentalExchange, Inc. and Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and the Lenders named therein dated as of June 13, 2008 (incorporated by reference to Exhibit 10.1 to our Current Report on Form 8-K, filed with the SEC on June 19, 2008, File No. 001-32671) (amends item 12; to be amended and restated by the Restated Credit Facility).
 15. \$150,000,000 Credit Agreement, dated as of June 27, 2008, among IntercontinentalExchange, Inc. Wachovia Bank, National Association, as Administrative Agent, Bank of America, N.A., as Syndication Agent, and other Lenders named therein (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on July 3, 2008, File No. 001-32671) (to be terminated at Closing).
 16. Restated Credit Facility to be entered into at Closing.
 17. New Liquidity Facility to be entered into at Closing.
 18. Office Lease, dated as of June 8, 2000, as amended, between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, LLC (incorporated by reference to Exhibit 10.17 to ICE's registration statement on Form S-1, filed with the SEC on June 6, 2005, File No. 333-123500).*
 19. Lease Amendment Six, dated as of October 12, 2005, by and between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.27 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).*
 20. Lease Amendment Seven, dated as of May 12, 2006, by and between CMD Realty Investment Fund IV, L.P. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.2 to ICE's Current Report on Form 8-K, filed with the SEC on May 17, 2006, File No. 001-32671).*
 21. Lease Amendment Eight, dated as of November 28, 2006.*
 22. Lease Amendment Nine, dated as of February 21, 2007.*
 23. Lease Amendment Ten, dated as of May 15, 2008.*
 24. TRS—Application Services Agreement, dated as of April 25, 2001, between The International Petroleum Exchange of London Limited and LIFFE Services Company Limited (incorporated by reference to Exhibit 10.14 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).*
 25. Deed of Novation, dated July 22, 2005, between The International Petroleum Exchange of London Limited, LIFFE Services Limited, Atos Euronext Market Solutions Limited, and LIFFE Administration and Management (incorporated by reference to Exhibit 10.25 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).
 26. Managed Services Agreement, dated as of December 21, 2007, between ICE Clear Europe Limited and Atos Euronext Market Solutions Limited.*
 27. Patent License Agreement, dated as of March 29, 2002, between eSpeed, Inc. and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.16 to ICE's registration statement on Form S-1, filed with the SEC on June 6, 2005, File No. 333-123500).

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28. Settlement Agreement, dated as of September 1, 2005, by and between EBS Group Limited and IntercontinentalExchange, Inc. (incorporated by reference to Exhibit 10.26 to ICE's registration statement on Form S-1, filed with the SEC on October 14, 2005, File No. 333-123500).
 29. License Agreement For Index-Related Derivative Products dated as of June 15, 2007 between IntercontinentalExchange, Inc. and Frank Russell Company (incorporated by reference to Exhibit 10.1 to ICE's Current Report on Form 8-K, filed with the SEC on June 20, 2007, File No. 001-32671).*
 30. Contribution and Asset Transfer Agreement, dated as of May 11, 2000, by and between IntercontinentalExchange, LLC, Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.31 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 31. First Amendment to Contribution and Asset Transfer Agreement, dated as of May 17, 2000, by and among IntercontinentalExchange, LLC, Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.32 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 32. Second Amendment to Contribution and Asset Transfer Agreement, dated as of October 24, 2005, by and among IntercontinentalExchange, Inc., Continental Power Exchange, Inc., and Jeffrey C. Sprecher (incorporated by reference to Exhibit 10.33 to ICE's registration statement on Form S-1, filed with the SEC on October 25, 2005, File No. 333-123500).
 33. IntercontinentalExchange, Inc. Amended and Restated 1999 Stock Option/Stock Issuance Plan (formerly the Creditex Group Inc. Amended and Restated 1999 Stock Option/Stock Issuance Plan) (incorporated by reference to Exhibit 4.1 to ICE's registration statement on Form S-8, filed with the SEC on September 2, 2008, File No. 333-153299).
 34. Agreement and Plan of Merger dated as of March 6, 2009, by and among The Clearing Corporation, a Delaware corporation, ICE US Holding Company L.P., a Cayman Islands exempted limited partnership and subsidiary of IntercontinentalExchange, Inc., Pony Merger Sub LLC, a Delaware limited liability company, IntercontinentalExchange, Inc. (solely for the limited purposes therein), and TCC Stockholders' Representative, LLC, a Delaware limited liability company.
 35. Amended and Restated Limited Partnership Agreement of ICE US Holding Company L.P. dated as of March 6, 2009
 36. Master Agreement and the addenda thereto dated as of March 6, 2009 by and between Markit Group Limited, a company incorporated under the laws of England and Wales, and ICE US Trust LLC, a New York limited purpose limited liability trust company.

Schedule 7.2

Indebtedness

ICE Clear Canada, Inc., a wholly owned subsidiary of ICE Futures Canada, Inc. and an indirect subsidiary of Borrower (“ICE Clear Canada”), has a stand-by line of credit facility in the amount of \$3,000,000 with the Royal Bank of Canada, pursuant to the following: (a) General Hypothecation Agreement, dated October 28, 1998; (b) Letter Agreement, dated March 30, 2004, by WCE Clearing Corporation, setting forth the draw down line requirements; and (c) Letter Agreement, dated January 29, 2004, by Royal Bank of Canada, as amended by the Letter Agreement, dated October 30, 2008, setting forth the current fees and costs associated with the stand-by line of credit facility. As of the date hereof, ICE Clear Canada has not drawn upon this stand-by line of credit facility.

Schedule 7.3

Liens

None.

Schedule 7.8

Transactions With Affiliates

Transactions with Officer and Stockholder of Borrower

As a part of the transactions surrounding our formation, the Borrower entered into an agreement with our predecessor company, Continental Power Exchange, Inc. (“CPEX”), on May 11, 2000. Our Chief Executive Officer, Mr. Sprecher, owns all the equity interests in CPEX. Pursuant to the agreement, CPEX conveyed all of its assets and liabilities to us. These assets included intellectual property that we used to develop our electronic platform. In return, we issued to CPEX an equity interest in our business and we agreed to give CPEX a put option, by which CPEX could require us to buy its equity interest in our business at the purchase price equal to either our fair market value or \$5 million, whichever is greater.

In connection with the Borrower’s initial public offering, in October 2005 the Borrower entered an agreement with CPEX and Mr. Sprecher to terminate the put option upon the closing of the Borrower’s initial public offering. In connection with the termination of the put option, the Borrower amended certain registration rights previously granted to CPEX, which currently owns 1,952,978 shares of the Borrower’s common stock. Under this agreement, CPEX is entitled to require the Borrower to register for resale into the public market its common stock if Mr. Sprecher’s employment has been terminated. In addition, the Borrower may be obligated to pay the expenses of registration of such shares, including underwriters discounts up to a maximum of \$4.5 million.

Relationships with Former Director of Borrower

Richard L. Sandor, a former director of the Borrower, who retired on March 13, 2008, is the chairman, chief executive officer and principal owner of the Chicago Climate Exchange, Inc., which operates futures and OTC markets for the trading of emissions. In July 2003, the Borrower entered into an agreement with the Chicago Climate Exchange to provide hosting services for the trading of the Chicago Climate Exchange emissions on our electronic platform. In December 2007, the Borrower entered a new agreement with Chicago Climate Exchange to provide the services. Under this agreement, the Chicago Climate Exchange was required to pay us a platform license fee, a platform operations fee and clearing fee of \$2,300,000 in 2008, as well as certain fees relating to trading volumes. The Chicago Climate Exchange is also required to pay the Borrower for certain technology development work at an agreed upon rate. The initial term of this agreement began on January 1, 2008 and continues for five years. The agreement provides for automatic renewal of the term for additional one year periods following the expiration of the initial term unless either party provides at least 90 days notice of its intention not to renew.

In addition, in August 2004, ICE Futures Europe entered into a Cooperation and Licensing Agreement with the Chicago Climate Exchange. Pursuant to this agreement, the Chicago Climate Exchange and ICE Futures Europe formed a cooperative relationship for the purposes of promoting the development of a European emissions trading market through, in particular, the trading of emissions contracts on our electronic platform. The agreement provides for the Chicago Climate Exchange to fund ICE Futures Europe development and operating costs in relation to the emissions contracts, in return for which the Chicago Climate Exchange receives 75% of net transaction fee income from the emissions contracts (after the deduction of operating costs). Pursuant to an amendment to this agreement effective June 28, 2006, the amount that the Chicago Climate Exchange is entitled to receive decreased to 72.5%. In December 2004, the European Climate Exchange, which is a subsidiary of the Chicago Climate Exchange, acceded to the terms of the Cooperation and Licensing Agreement. Emissions contracts refer to any cash or spot or futures contract for European emissions allowances traded on our platform pursuant to this agreement. Consistent with, and subject to, its legal and regulatory obligations and the provisions of this agreement, ICE Futures Europe has agreed, among other obligations, to:

- use commercially reasonable efforts to cooperate with the Chicago Climate Exchange in the design and listing of the emissions contracts;
- manage, in cooperation with us, the process of modifying our electronic platform and other hardware and software as necessary to allow the trading of the emissions contracts;
- provide required market supervision, compliance and regulatory arrangements; and
- obtain the necessary regulatory approvals to allow the trading of the emissions contracts from trading screens located in the United Kingdom, Germany, France, the Netherlands, Switzerland, Sweden, Norway, the United States, and such other countries as ICE Futures Europe and the Chicago Climate Exchange agree.

The term of this agreement concludes on the later of December 31, 2012 and the date on which Phase I of the European Emissions Allowances Trading Scheme terminates, unless sooner terminated pursuant to special termination provisions of the agreement. The terms of this agreement provide for automatic renewal periods of one year following the conclusion of the term, unless terminated earlier by either party upon written notice provided no later than twelve months prior to the end of the term, or three months prior to the end of any renewal period.

During the year ended December 31, 2008, the Borrower recognized approximately \$3.4 million in revenues pursuant to these agreements. The Borrower believes the relationship and agreements between it and the Chicago Climate Exchange and European Climate Exchange are arms-length transactions that are on commercially reasonable terms no less favorable to the Borrower than would be negotiated with an unaffiliated third party.

THIS DOCUMENT IS IMPORTANT AND REQUIRES YOUR IMMEDIATE ATTENTION. If you are in any doubt as to the action you should take, you are recommended to seek your own financial advice immediately from your stockbroker, bank manager, accountant or other independent financial adviser authorised under the Financial Services and Markets Act 2000, if you are in the United Kingdom, or from another appropriately authorised independent financial adviser if you are taking advice in a territory outside the United Kingdom.

If you have sold or otherwise transferred all of your Climate Exchange Shares, please send this document together with the accompanying documents at once to the purchaser or transferee, or to the stockbroker, bank or other agent through whom the sale or transfer was effected, for transmission to the purchaser or transferee. However, such documents should not be forwarded or transmitted in or into any jurisdiction in which such act would constitute a violation of the relevant laws of such jurisdiction.

The distribution of this document in or into jurisdictions other than the United Kingdom and the Isle of Man may be restricted by the laws of those jurisdictions and therefore persons into whose possession this document comes should inform themselves about, and observe, any such restrictions. Failure to comply with any such restrictions may constitute a violation of the securities laws of any such jurisdiction.

Recommended Cash Acquisition by

Aether Ios Limited

(“Bidco”)

(a wholly-owned subsidiary of IntercontinentalExchange, Inc.)

of

Climate Exchange plc

to be effected by means of a scheme of arrangement between Climate Exchange plc and holders of Scheme Shares

under section 152 of the Isle of Man Companies Act 1931 (as amended)

This document should be read as a whole. Your attention is drawn to the letter from the Chairman of Climate Exchange in Part One of this document, which contains the unanimous recommendation of the Climate Exchange Directors that you vote in favour of the Scheme at the Court Meeting and the Special Resolution to be proposed at the Climate Exchange EGM. A letter from J.P. Morgan Cazenove and Kinmont explaining the Scheme appears in Part Two of this document.

Notices of the Court Meeting and Climate Exchange EGM, each of which will be held at One Bunhill Row, London EC1Y 8YY on 2 July 2010, are set out in Parts Ten and Eleven of this document, respectively. The Court Meeting will start at 9.30 a.m. on that date and the Climate Exchange EGM at 9.45 a.m. or as soon thereafter as the Court Meeting is concluded or adjourned.

Climate Exchange Shareholders are informed that, in order for their votes to be counted at the Court Meeting and the Climate Exchange EGM, they must complete and return the enclosed blue and yellow forms of proxy in accordance with the instructions printed thereon as soon as possible, but in any event so as to be received by Climate Exchange’s receiving agent, Computershare Investor Services (Jersey) Limited, Queensway House, Hilgrove Street, St Helier, Jersey JE1 1ES, not later than 48 hours before the relevant meeting. Forms of proxy may also be sent by facsimile transmission to Computershare Investor

Services (Jersey) Limited on 0870 873 5851 (from within the British Isles) or +44 870 873 5851 (from outside the British Isles). Climate Exchange Shareholders who hold Climate Exchange Shares in CREST may also appoint a proxy using CREST by following the instructions set out in paragraph 12 of Part Two of this document. If the blue form of proxy for the Court Meeting is not lodged by the relevant time, it may be handed to the Chairman of the Court Meeting before the start of that meeting and will still be valid. However, in the case of the Climate Exchange EGM, if the yellow form of proxy is not lodged by the relevant time, it will be invalid. The action to be taken by Climate Exchange Shareholders is further described on page 2 and in paragraph 12 of Part Two of this document.

Climate Exchange ADS Holders should refer to Part Six of this document, which contains important information relevant to such holders.

If you have any questions about this document, the Court Meeting or the Climate Exchange EGM, have not received both forms of proxy or are in any doubt as to how to complete the forms of proxy, please call Computershare between 8.30 a.m. and 5.30 p.m. Monday to Friday (except public holidays) on 01534 281 839 (from within the British Isles) or +44 1534 281 839 (from outside the British Isles). Calls will be charged at national or international rates as the case may be. Please note that calls may be monitored or recorded and Computershare cannot provide financial or tax advice or advice on the merits of the Scheme.

Morgan Stanley is acting as exclusive financial adviser to ICE and Bidco and no one else in connection with the Acquisition and will not be responsible to anyone other than ICE and Bidco for providing the protections afforded to clients of Morgan Stanley nor for providing advice in relation to the Acquisition or any matter referred to herein.

J.P. Morgan plc, which conducts its UK investment banking business as J.P. Morgan Cazenove and is authorised and regulated by the UK Financial Services Authority, is acting exclusively for Climate Exchange and for no one else in connection with the Acquisition and will not be responsible to anyone other than Climate Exchange for providing the protections afforded to clients of J.P. Morgan plc nor for providing advice in relation to the Acquisition or any matters referred to herein.

Kinmont, which is authorised and regulated by the UK Financial Services Authority, is acting exclusively for Climate Exchange and for no one else in connection with the Acquisition and will not be responsible to anyone other than Climate Exchange for providing the protections afforded to clients of Kinmont nor for providing advice in relation to the Acquisition or any matters referred to herein.

Fox-Pitt, Kelton, which is authorised and regulated by the UK Financial Services Authority, is acting exclusively for Climate Exchange and for no one else in connection with the Acquisition and will not be responsible to anyone other than Climate Exchange for providing the protections afforded to clients of Fox-Pitt, Kelton nor for providing advice in relation to the Acquisition or any matters referred to herein.

Capitalised words and phrases used in this document have the meaning given to them in Part Nine of this document.

A copy of this document has been made available on the Climate Exchange website at www.climateexchangeplc.com and the ICE website at www.theice.com.

Date: 28 May 2010

IMPORTANT NOTICE

The release, publication or distribution of this document in or into jurisdictions other than the United Kingdom and the Isle of Man may be restricted by the law of those jurisdictions and therefore any persons in such jurisdictions into whose possession this document comes should inform themselves about and observe such restrictions. Any failure to comply with the applicable restrictions may constitute a violation of the securities laws of such jurisdiction. This document does not constitute an offer or invitation to purchase or subscribe for any securities or a solicitation of any vote or approval of an offer to buy any securities pursuant to this document or otherwise in any jurisdiction in which such offer, invitation or solicitation is unlawful. This document has been prepared for the purposes of complying with English law, Isle of Man law, the AIM Rules and the City Code and the information disclosed may not be the same as that which would have been disclosed if this document had been prepared in accordance with the laws of jurisdictions outside of the United Kingdom and the Isle of Man.

The Acquisition relates to the shares of an Isle of Man company and is proposed to be made by means of a scheme of arrangement under Isle of Man company law. A transaction effected by means of a scheme of arrangement is not subject to the tender offer rules under the Exchange Act. Accordingly, the Scheme is subject to the disclosure requirements, rules and practices applicable in the United Kingdom and the Isle of Man to schemes of arrangement, which differ from the requirements of the U.S. tender offer rules. Financial information included in or incorporated by reference into this document has been prepared in accordance with International Financial Reporting Standards as adopted by the European Union, which may not be comparable to the financial statements of U.S. companies.

The statements contained in this document are made as at the date of this document, unless some other time is specified in relation to them, and delivery of this document shall not give rise to any implication that there has been no change in the facts set forth in this document since such date. Nothing in this document shall be deemed to be a forecast, projection or estimate of the future financial performance of Climate Exchange, the Wider Climate Exchange Group, ICE or the Wider ICE Group except where otherwise stated.

CAUTIONARY NOTE REGARDING FORWARD-LOOKING STATEMENTS

This document contains certain statements that are or may be forward-looking. These statements typically contain words such as “intends”, “expects”, “anticipates”, “estimates” and words of similar import. By their nature, forward-looking statements involve risk and uncertainty because they relate to events and depend on circumstances that will occur in the future. There are a number of factors that could cause actual results and developments to differ materially from those expressed or implied by such forward-looking statements. These factors include, but are not limited to, factors identified elsewhere in this document as well as the following possibilities: future revenues are lower than expected; costs or difficulties relating to the integration of the business of ICE and Climate Exchange or of other future acquisitions, are greater than expected; expected cost savings from the transaction or from other future acquisitions are not fully realised or realised within the expected time frame; competitive pressures in the industry increase; general economic conditions or conditions affecting the relevant industries, whether internationally or in the place ICE and Climate Exchange do business, are less favourable than expected; and/or conditions in the securities market are less favourable than expected.

DEALING DISCLOSURE REQUIREMENTS

Under Rule 8.3(a) of the City Code, any person who is interested in 1 per cent. or more of any class of relevant securities of an offeree company or of any paper offeror (being any offeror other than an offeror in

respect of which it has been announced that its offer is, or is likely to be, solely in cash) must make an Opening Position Disclosure following the commencement of the offer period and, if later, following the announcement in which any paper offeror is first identified. An Opening Position Disclosure must contain details of the person's interests and short positions in, and rights to subscribe for, any relevant securities of each of: (i) the offeree company; and (ii) any paper offeror(s). An Opening Position Disclosure by a person to whom Rule 8.3(a) applies must be made by no later than 3.30 p.m. (London time) on the 10th business day following the commencement of the offer period and, if appropriate, by no later than 3.30 p.m. (London time) on the 10th business day following the announcement in which any paper offeror is first identified. Relevant persons who deal in the relevant securities of the offeree company or of a paper offeror prior to the deadline for making an Opening Position Disclosure must instead make a Dealing Disclosure.

Under Rule 8.3(b) of the City Code, any person who is, or becomes, interested in 1 per cent. or more of any class of relevant securities of the offeree company or of any paper offeror must make a Dealing Disclosure if the person deals in any relevant securities of the offeree company or of any paper offeror. A Dealing Disclosure must contain details of the dealing concerned and of the person's interests and short positions in, and rights to subscribe for, any relevant securities of each of: (i) the offeree company; and (ii) any paper offeror, save to the extent that these details have previously been disclosed under Rule 8. A Dealing Disclosure by a person to whom Rule 8.3(b) applies must be made by no later than 3.30 p.m. (London time) on the business day following the date of the relevant dealing.

If two or more persons act together pursuant to an agreement or understanding, whether formal or informal, to acquire or control an interest in relevant securities of an offeree company or a paper offeror, they will be deemed to be a single person for the purpose of Rule 8.3.

Opening Position Disclosures must also be made by the offeree company and by any offeror and Dealing Disclosures must also be made by the offeree company, by any offeror and by any persons acting in concert with any of them (see Rules 8.1, 8.2 and 8.4).

Details of the offeree and offeror companies in respect of whose relevant securities Opening Position Disclosures and Dealing Disclosures must be made can be found in the Disclosure Table on the Panel's website at www.thetakeoverpanel.org.uk, including details of the number of relevant securities in issue, when the Acquisition period commenced and when any offeror was first identified. If you are in any doubt as to whether you are required to make an Opening Position Disclosure or a Dealing Disclosure, you should contact the Panel's Market Surveillance Unit on +44 (0)20 7638 0129.

TABLE OF CONTENTS

	<u>Page</u>
EXPECTED TIMETABLE OF PRINCIPAL EVENTS	1
ACTION TO BE TAKEN	2
PART ONE: LETTER FROM THE CHAIRMAN OF CLIMATE EXCHANGE	4
1. Introduction	4
2. Summary of the terms of the Acquisition	5
3. Background to and reasons for the recommendation	5
4. Strategic rationale for the Acquisition	6
5. Conditions	7
6. Information on Climate Exchange	8
7. Information on ICE and Bidco	8
8. Management and employees	8
9. Climate Exchange Share Schemes	9
10. Warrants	10
11. Irrevocable undertakings	11
12. Shareholder meetings and action to be taken by Climate Exchange Shareholders	11
13. Cancellation of trading, re-registration, termination of Climate Exchange ADS programme and settlement of cash consideration	11
14. Overseas holders of Climate Exchange Shares and Climate Exchange ADSs	11
15. Recommendation	12
16. Further information	12
PART TWO: EXPLANATORY STATEMENT	13
1. Introduction	13
2. Summary of the terms of the Acquisition and the Scheme	14
3. Climate Exchange meetings	16

4. Sanction of the Scheme by the Court	17
5. Financing	18
6. The Climate Exchange Directors and the effect of the Scheme on their interests	18
7. Cancellation of trading of Climate Exchange Shares, re-registration, termination of Climate Exchange ADS programme and settlement of cash consideration	18
8. Right to implement the Acquisition by way of an Offer	20
9. Climate Exchange Share Schemes	20
10. Warrants	21
11. Overseas holders of Climate Exchange Shares and Climate Exchange ADSs	21
12. Actions to be taken	21
13. Further information	23
PART THREE: CONDITIONS TO THE IMPLEMENTATION OF THE SCHEME AND THE ACQUISITION AND FURTHER TERMS OF THE ACQUISITION	24
PART FOUR: THE SCHEME OF ARRANGEMENT	34
PART FIVE: FINANCIAL INFORMATION ON CLIMATE EXCHANGE	39
PART SIX: ADDITIONAL INFORMATION FOR OVERSEAS HOLDERS OF CLIMATE EXCHANGE SHARES AND CLIMATE EXCHANGE ADSs	40
PART SEVEN: ADDITIONAL INFORMATION ON CLIMATE EXCHANGE, ICE AND BIDCO	43
1. Responsibility	43
2. Directors	43
3. Market quotations	44
4. Interests in relevant Climate Exchange securities	45
5. Dealings in relevant Climate Exchange securities	47
6. Interests in relevant ICE securities	48
7. Dealings in relevant ICE securities	48
8. Interests and dealings – general	48
9. Directors’ service contracts and emoluments	50

10. Material contracts	52
11. Irrevocable undertakings	55
12. Cash confirmation	56
13. Persons acting in concert	56
14. No material change	57
15. Consents	57
16. Sources of information and bases of calculations	57
17. Documents available for inspection	58
PART EIGHT: TAXATION	59
PART NINE: DEFINITIONS	65
PART TEN: NOTICE OF COURT MEETING	72
PART ELEVEN: NOTICE OF EXTRAORDINARY GENERAL MEETING	74

EXPECTED TIMETABLE OF PRINCIPAL EVENTS

<u>Event</u>	<u>Expected time/date</u>
ADS Voting Record Time	5.00 p.m. (New York time) on 3 June 2010
Latest time for receipt by the ADS Depositary of completed ADS Voting Instruction Cards from Climate Exchange ADS Holders	5.00 p.m. (New York time) on 24 June 2010
Latest time for lodging forms of proxy for the:	
Court Meeting (blue form)	9.30 a.m. on 30 June 2010 ⁽¹⁾
Climate Exchange EGM (yellow form)	9.45 a.m. on 30 June 2010 ⁽²⁾
Voting Record Time	6.00 p.m. on 30 June 2010 ⁽³⁾
Court Meeting	9.30 a.m. on 2 July 2010
Climate Exchange EGM	9.45 a.m. on 2 July 2010 ⁽⁴⁾
<i>The following dates are indicative only and subject to change. Please see note (5) below.</i>	
Last day of dealings in, for registration of transfers of, and disablement in CREST of, Climate Exchange Shares and Climate Exchange ADSs	7 July 2010 ⁽⁵⁾
Hearing of the Court (to sanction the Scheme)	7 July 2010 ⁽⁵⁾
Scheme Record Time	6.00 p.m. on 7 July 2010 ⁽⁵⁾
Effective Date of the Scheme	8 July 2010 ⁽⁵⁾
Cancellation of trading of the Climate Exchange Shares on AIM	with effect from 7.00 a.m. on 8 July 2010 ⁽⁵⁾
Latest date for despatch of cheques in respect of cash consideration and settlement through CREST	by 22 July 2010 ⁽⁵⁾
(1) It is requested that blue forms of proxy for the Court Meeting be lodged not later than 48 hours prior to the time appointed for the Court Meeting. Blue forms of proxy not so lodged may be handed to the Chairman of the Court Meeting before the start of the Court Meeting. (2) Yellow forms of proxy for the Climate Exchange EGM must be lodged not later than 48 hours prior to the time appointed for the Climate Exchange EGM. (3) If either the Court Meeting or the Climate Exchange EGM is adjourned, the Voting Record Time for the relevant adjourned meeting will be 6.00 p.m. on the day that is 2 days before the adjourned meeting. (4) Or as soon thereafter as the Court Meeting shall have concluded or been adjourned. (5) These dates are indicative only and will depend, among other things, on the date upon which the Court sanctions the Scheme and the regulatory timetable. If the expected time and/or date of the Hearing is changed or ICE receives regulatory clearances earlier or later than expected, Climate Exchange will give notice of the change by issuing an announcement through a Regulatory Information Service.	

All references in this document to times are to UK time unless otherwise stated.

ACTION TO BE TAKEN

Detailed instructions for the actions to be taken by Climate Exchange Shareholders are set out in paragraph 12 of Part Two of this document and are summarised below.

Voting at the Court Meeting and Climate Exchange EGM

The Scheme will require approval at a meeting of Climate Exchange Shareholders convened by order of the Court to be held at One Bunhill Row, London, EC1Y 8YY at 9.30 a.m. on 2 July 2010. Implementation of the Scheme will also require the passing of the Special Resolution at the Climate Exchange EGM to be held at One Bunhill Row, London, EC1Y 8YY at 9.45 a.m. or as soon thereafter as the Court Meeting is concluded or adjourned. Notices of the Court Meeting and Climate Exchange EGM are set out at Parts Ten and Eleven, respectively, of this document.

Please check that you have received the following with this document:

- Blue form of proxy for use in respect of the Court Meeting on 2 July 2010; and
- Yellow form of proxy for use in respect of the Climate Exchange EGM on 2 July 2010.

It is important that, for the Court Meeting, as many votes as possible are cast so that the Court may be satisfied that there is a fair representation of Climate Exchange Shareholder opinion. You are therefore strongly urged to complete and return your forms of proxy as soon as possible, whether or not you intend to attend the meetings in person, and in any event so as to be received by Climate Exchange's receiving agent, Computershare Investor Services (Jersey) Limited, Queensway House, Hilgrove Street, St Helier, Jersey JE1 1ES, by the following times and dates:

Blue forms of proxy for the Court Meeting

9.30 a.m. on 30 June 2010

Yellow forms of proxy for the Climate Exchange EGM

9.45 a.m. on 30 June 2010

or, if either meeting is adjourned, not later than 48 hours before the time fixed for the adjourned meeting.

Alternatively, blue forms of proxy (but not yellow forms of proxy) may be handed to the Chairman of the Court Meeting before the start of the Court Meeting on 2 July 2010 and will still be valid.

The completion and return of either form of proxy will not preclude you from attending the Court Meeting or the Climate Exchange EGM and voting in person, if you so wish.

Proxy forms should be returned in the reply-paid envelope provided in accordance with the instructions printed thereon to Climate Exchange's receiving agent, Computershare Investor Services (Jersey) Limited, Queensway House, Hilgrove Street, St Helier, Jersey JE1 1ES. Forms of proxy may also be sent by facsimile transmission to Computershare Investor Services (Jersey) Limited on 0870 873 5851 (from within the British Isles) or +44 870 873 5851 (from outside the British Isles).

Assistance

If you have any questions about this document, the Court Meeting or the Climate Exchange EGM, have not received both forms of proxy or are in any doubt as to how to complete the forms of proxy, please call Computershare between 8.30 a.m. and 5.30 p.m. Monday to Friday (except public holidays) on 01534 281 839 (from within the British Isles) or +44 1534 281 839 (from outside the British Isles). Calls will be charged at national or international rates as the case may be. Please note that calls may be monitored or recorded and Computershare cannot provide financial or tax advice or advice on the merits of the Scheme.

CREST and Climate Exchange ADSs

For Climate Exchange Shareholders who hold shares through CREST, details for appointing a proxy through CREST are set out in paragraph 12 of Part Two of this document.

Climate Exchange ADS Holders should refer to Part Six for information relevant to such holders.

PART ONE: LETTER FROM THE CHAIRMAN OF CLIMATE EXCHANGE

Climate Exchange plc
IOMA House
Hope Street
Douglas
Isle of Man IM1 1AP
Registered in Isle of Man No . 109015C

28 May 2010

To Climate Exchange Shareholders and Climate Exchange ADS Holders and, for information only, to holders of options or awards under the Climate Exchange Share Schemes and holders of Warrants issued by members of the Climate Exchange Group

Dear Climate Exchange Shareholder or Climate Exchange ADS Holder

RECOMMENDED CASH ACQUISITION BY BIDCO OF CLIMATE EXCHANGE at 750 pence per Climate Exchange Share

1. Introduction

On 30 April 2010, the boards of Climate Exchange and ICE announced that they had agreed the terms of a unanimously recommended cash acquisition by Bidco, a wholly-owned subsidiary of ICE, of the entire issued and to be issued share capital of Climate Exchange. I am writing to you today to set out the terms of the Acquisition, to explain the background to and reasons for our recommendation of the Acquisition and to seek your support and approval for the Acquisition.

This letter sets out the background to the Acquisition and the reasons why the Climate Exchange Directors consider the terms of the Acquisition to be fair and reasonable and are unanimously recommending that you vote in favour of the Resolutions to be proposed at the Court Meeting and the Climate Exchange EGM, as the Climate Exchange Directors have irrevocably agreed to do in respect of the Climate Exchange Shares held by them. I draw your attention in particular to the letter from J.P. Morgan Cazenove and Kinmont set out in Part Two of this document, which gives details about the Acquisition and to the additional information set out in Part Seven of this document.

The Acquisition will be implemented, subject to the satisfaction or waiver of the Conditions, by means of a Court approved scheme of arrangement between Climate Exchange and the holders of Scheme Shares under section 152 of the Isle of Man Companies Act.

For the Acquisition to be completed, Climate Exchange Shareholders will need to vote in favour of the Resolutions to be proposed at the Court Meeting and the Climate Exchange EGM to be held on 2 July 2010 at One Bunhill Row, London EC1Y 8YY at 9.30 a.m. and 9.45 a.m., respectively. Details of the actions you should take, and the recommendation of the Climate Exchange Directors, are set out in paragraphs 12 and 15 respectively of this letter.

2. Summary of the terms of the Acquisition

Under the terms of the Acquisition, which is subject to the satisfaction or waiver of the Conditions set out in Part Three of this document, Climate Exchange Shareholders and Climate Exchange ADS Holders will receive:

**for each Climate Exchange Share
or two Climate Exchange ADSs**

750 pence in cash

The above offer price values the entire existing issued and to be issued share capital of Climate Exchange at approximately £395 million.

The consideration to be received under the Acquisition represents a premium of approximately:

- 56.9 per cent. to the closing price of 478.0 pence per Climate Exchange Share on 29 April 2010, being the last dealing day prior to the date of the Announcement;
- 56.5 per cent. to the average closing price of 479.3 pence per Climate Exchange Share for the one month period up to and including 29 April 2010, being the last dealing day prior to the date of the Announcement; and
- 44.3 per cent. to the average closing price of 519.6 pence per Climate Exchange Share for the three month period up to and including 29 April 2010, being the last dealing day prior to the date of the Announcement.

Climate Exchange Shares will be acquired by Bidco fully paid and free from all liens, equitable interests, charges, encumbrances, pre-emption rights and other third party interests and rights of any nature whatsoever and together with all rights now or hereafter attaching to them, including the right to receive and retain all dividends and other distributions declared, made or paid after the date of the Announcement.

The above offer price has been determined on the basis that no final dividend in respect of the share capital of Climate Exchange will be paid by Climate Exchange in respect of the year ended 31 December 2009.

3. Background to and reasons for the recommendation

Climate Exchange has successfully pursued a strategy to become a world leading exchange for trading emissions and environmental contracts. In Europe, the EU Emission Trading System (“**EU ETS**”) is the world’s largest and most developed emissions cap and trade system and Climate Exchange is a market leader in this segment of the derivatives market. Transaction volumes are continuing to rise rapidly with 2010 volumes 22 per cent. ahead of 2009 (year to date). In the U.S., Climate Exchange has a significant share in all the main emissions contracts currently in force, including those issued under the EPA Clean Air Act programmes, the state level Greenhouse Gas (“**GHG**”) programme of the Regional Greenhouse Gas Initiative and emission offset contracts under the voluntary offset program of the California Climate Action Registry.

The Board believes the future growth of Climate Exchange will be driven, in Europe, by the switch in the EU ETS initial distribution mechanism from central government allocation to 100 per cent. auctioning. This is expected to generate a material increase in the underlying price risk exposure for industries within EU ETS and, as a consequence, potentially lead to a material increase in demand for hedging products and strategies. In the U.S., the key growth drivers are expected to be resolutions on federal level legislative programmes, including a nationwide cap and trade system for GHGs, as well as clarity on the existing EPA Clean Air Act programmes. In addition, Climate Exchange has interests in other countries where environmental markets are being developed and which may develop to material scale, including China in particular.

As Climate Exchange's key products or offerings have expanded and developed, certain aspects of its original strategy have been confirmed and the needs of its customers in the marketplace have been understood. Climate Exchange's customers have made it clear that they see benefits in a single trading platform for environmental contracts worldwide and for this platform also to provide a wider offering of contracts. Equally, a single clearing entity for Climate Exchange customers is expected to bring customer benefits in terms of netting, cross margining and ease of use.

The Acquisition by ICE, valuing Climate Exchange at 750 pence per share, represents a premium of 56.9 per cent. to the closing price of 478.0 pence per Climate Exchange Share on 29 April 2010, the last trading day prior to the date of the Announcement. While the Board believes that the U.S. may ultimately adopt a mandatory emissions trading system, it accepts that there is uncertainty regarding the timing of the implementation of such legislation. Similarly there is also an additional level of uncertainty regarding the implementation of an international basis for the post-Kyoto era. Climate Exchange faces a number of risks alongside the opportunities described above and considers that a larger organisation with a broader portfolio of trading contracts is a more appropriate owner of the business. Against this background, the Climate Exchange Directors consider the terms of the Acquisition to be fair and reasonable, providing shareholders with certainty and the opportunity to realise, in cash, their investment in Climate Exchange.

4. Strategic rationale for the Acquisition

The board and management of ICE believe that the Acquisition of Climate Exchange represents an attractive strategic opportunity to combine two companies with complementary businesses and strengths and to enhance the competitiveness of the respective businesses. ICE, through its wholly-owned subsidiary, IntercontinentalExchange Holdings, acquired 2,277,034 Climate Exchange Shares (representing approximately 4.8 per cent. of Climate Exchange's entire existing issued share capital) on 22 June 2009 for a price of 645 pence per Climate Exchange Share. The board and management of ICE have determined that the Acquisition is consistent with the strategic plans of ICE to expand its product offerings and diversify its class of commodities. The transaction is expected to be accretive to earnings in 2011 and slightly dilutive to earnings for the balance of the current year following an anticipated closing at the end of July 2010.¹

ICE and its affiliates currently have multiple contracts in place with Climate Exchange and its affiliates to provide technology and clearing services, including a cooperation and licensing agreement whereby ICE provides an electronic trading platform and clearing to European Climate Exchange (“**ECX**”) for European emissions trading, a licensing technology agreement whereby ICE provides an electronic trading platform to Chicago Climate Exchange (“**CCX**”) for U.S. emissions trading and a clearing services agreement whereby ICE provides clearing for CCX’s U.S. emissions trading. Pursuant to these contracts, ICE charges fees to Climate Exchange for the services provided and shares in the revenue generated by Climate Exchange with respect to the trading and clearing of emissions contracts.

ICE identified a number of factors that it believes support engaging in the Acquisition and would contribute to the success and the future performance of the combined companies, including:

- (A) the combination of Climate Exchange and ICE would create an industry leading global carbon derivatives exchange;
- (B) the Acquisition would allow ICE to expand its offerings for market participants;
- (C) the Acquisition provides opportunities for cost savings by eliminating duplicate activities;
- (D) the current environment in the global derivatives industry, including the trend of consolidation and increased competition;
- (E) ICE’s ability to leverage its scalable business model; and
- (F) the fact that ICE has greater financial, operational and technical resources to develop innovative new products for Climate Exchange’s customers.

5. Conditions

The Acquisition will be implemented by means of a scheme of arrangement between Climate Exchange and holders of Scheme Shares under section 152 of the Isle of Man Companies Act and will be conditional upon, amongst other things, the approval of the Scheme by Climate Exchange Shareholders and the sanction of the Scheme by the Court. The Acquisition is also conditional upon the passing of the Special Resolution by Climate Exchange Shareholders at the Climate Exchange EGM and the UK Office of Fair Trading indicating in terms reasonably satisfactory to Bidco that it does not intend to refer the proposed acquisition to the UK Competition Commission for investigation.

¹ Nothing in this document is intended to be a profit forecast and the statements in this document should not be interpreted to mean that the earnings per share of ICE common stock for the current or future financial periods will necessarily be greater or lower than those for the relevant preceding financial period.

The implementation of the Acquisition is subject to a number of other Conditions, further details of which are set out in Part Three of this document.

6. Information on Climate Exchange

Climate Exchange is a holding company whose subsidiaries are principally engaged in owning, operating and developing exchanges to facilitate trading in environmental financial instruments, including emissions reduction credits in both voluntary and mandatory markets. Climate Exchange is a leader in the development of traded emissions markets. Its three core operating businesses are ECX, which operates an exchange that focuses on compliance certificates for the mandatory EU ETS; CCX, which operates the voluntary, but contractually binding cap and trade system for greenhouse gas emissions reductions; and the Chicago Climate Futures Exchange (“CCFE”), a regulated exchange in the United States with a portfolio of environmental futures contracts.

In the financial year ending 31 December 2009, Climate Exchange reported sales of £33.6 million and pre-tax profit (excluding non-cash expenses) of £6.8 million.

7. Information on ICE and Bidco

ICE, which is listed on the New York Stock Exchange under the symbol ICE, is a leading operator of regulated global futures exchanges and over-the-counter markets for agricultural, credit, currency, emissions, energy and equity index contracts. ICE Futures Europe hosts trade in half of the world’s crude and refined oil futures. ICE Futures U.S. and ICE Futures Canada list agricultural, currencies and Russell Index markets. ICE is also a leading operator of central clearing services for the futures and over-the-counter markets, with five regulated clearing houses across North America and Europe. ICE serves customers in more than 55 countries.

Bidco is a wholly-owned subsidiary of ICE and is a private company with limited liability incorporated in the United Kingdom.

8. Management and employees

I, Richard Sandor, will be entering into an employment agreement with ICE which will become effective upon completion of the Acquisition. I will be taking the position within ICE of Chairman Emeritus of Climate Initiatives.

ICE has also given assurances to the Board that, when the Acquisition becomes effective, the existing employment rights, including pension rights, of the management and employees of Climate Exchange will be fully safeguarded.

ICE and Climate Exchange are engaged in complementary businesses that operate in certain of the same jurisdictions and the Acquisition is therefore likely to result in synergies and to provide an opportunity to realise savings in costs and expenses. In assessing the terms of the Acquisition, ICE has made certain assumptions in relation to

such synergies and savings. However, their extent and the timing and manner of their implementation will be determined by ICE following completion of the Acquisition. ICE has advised that their implementation is likely to result in job losses and the closure or relocation of sites from which Climate Exchange currently operates.

9. Climate Exchange Share Schemes

2006 Plan

Certain outstanding options granted under the 2006 Plan are currently exercisable. The rest of the outstanding options under the 2006 Plan will become exercisable immediately prior to but conditional upon the Scheme becoming effective in accordance with its terms. Proposals will be put to all option holders under which they will be able to exercise options on a cashless basis by undertaking to pay the exercise price, and any tax liabilities due, from the proceeds which they would otherwise receive from Bidco for their Climate Exchange Shares. Options will lapse, to the extent not exercised, immediately following the Scheme becoming effective.

CLE ECX Plan

All outstanding options granted under the CLE ECX Plan are currently exercisable. Proposals will be put to all option holders under which they will be able to exercise options on a cashless basis by undertaking to pay the exercise price, and any tax liabilities due, from the proceeds which they would otherwise receive from Bidco for their Climate Exchange Shares. Options will lapse, to the extent not exercised, immediately following the Scheme becoming effective.

LTIP

All options granted under the LTIP are currently exercisable. Proposals will be put to the option holder under which he will be able to exercise options on a cashless basis by undertaking to pay the exercise price, and any tax liabilities due, from the proceeds which he would otherwise receive from Bidco for his Climate Exchange Shares. Options will lapse, to the extent not exercised, immediately following the Scheme becoming effective.

The necessary amendments will be made to the rules of each of the Climate Exchange Share Schemes to implement the arrangements discussed above.

All Climate Exchange Shares issued by 6.00 p.m. on the day of the Hearing Date pursuant to the exercise of options under the Climate Exchange Share Schemes will be subject to the Scheme. All Climate Exchange Shares issued at or after 6.00 p.m. on the day of the Hearing Date pursuant to the exercise of options under the Climate Exchange Share Schemes will be required to be sold to Bidco for 750 pence per Climate Exchange Share in cash pursuant to the revised articles of association of Climate Exchange.

Participants in the Climate Exchange Share Schemes will receive a separate communication with further details of these arrangements.

10. Warrants

All Warrants issued at the date of this document by the Climate Exchange Group under contractual arrangements in existence (without amendment) as at 30 April 2010, will become exercisable immediately into a number of Climate Exchange Shares specified in or calculated in accordance with those contractual arrangements if the terms of those contractual arrangements allow for the exercise of those Warrants upon the occurrence of an event such as the Acquisition. Any other Warrants issued at the date of this document by the Climate Exchange Group under such contractual arrangements will become exercisable immediately prior to but conditional upon the Scheme becoming effective in accordance with its terms into a number of Climate Exchange Shares specified in or calculated in accordance with those contractual arrangements. Proposals will be put to all Warrant holders under which they will be able to exercise such Warrants on a cashless basis by undertaking to pay the exercise price, and any tax liabilities due, from the proceeds which they would otherwise receive from Bidco for their Climate Exchange Shares.

The contractual arrangements entered into by the Climate Exchange Group with its market makers provide for the issue of Warrants by Climate Exchange on a monthly or quarterly basis throughout 2010 and at the end of 2010 or beginning of 2011 if certain performance conditions are achieved in 2010 (the “**Performance Warrants**”). Following the date of this document, and if such performance conditions are achieved, Performance Warrants will be issued in accordance with the terms of those contractual arrangements as follows:

- (A) Any Performance Warrants so issued following the date of this document but prior to the Scheme becoming effective will become exercisable immediately prior to but conditional upon the Scheme becoming effective in accordance with its terms into a number of Climate Exchange Shares specified in or calculated in accordance with those contractual arrangements. Holders of such Performance Warrants will be able to exercise their Performance Warrants on a cashless basis by undertaking to pay the exercise price, and any tax liabilities due, from the proceeds which they would otherwise receive from Bidco for their Climate Exchange Shares.
- (B) Any Performance Warrants so issued on or following the Scheme becoming effective will be required to be exercised immediately into a number of Climate Exchange Shares specified in or calculated in accordance with those contractual arrangements and sold to Bidco for 750 pence per Climate Exchange Share in cash pursuant to the revised articles of association of Climate Exchange.

All Climate Exchange Shares issued before 6.00 p.m. on the day of the Hearing Date pursuant to the exercise of the Warrants (including Performance Warrants) will be subject to the Scheme. All Climate Exchange Shares issued at or after 6.00 p.m. on the day of the Hearing Date pursuant to the exercise of the Warrants (including Performance Warrants) will be required to be sold to Bidco for 750 pence per Climate Exchange Share in cash pursuant to the revised articles of association of Climate Exchange. Warrants already issued will lapse, to the extent not exercised, immediately following the Scheme becoming effective.

Holders of Warrants will receive a separate communication with further details of these arrangements.

11. Irrevocable undertakings

Bidco has received irrevocable undertakings from the Climate Exchange Directors and Climate Exchange's largest shareholder, Invesco Asset Management Limited, to vote in favour of the Scheme (or, if applicable, to accept the Offer) in respect of their own beneficial shareholdings in Climate Exchange. Further details of these irrevocable undertakings, including the circumstances in which they will fall away, are set out in paragraph 11 of Part Seven of this document. The irrevocable undertakings received represent approximately 48.2 per cent. of Climate Exchange's entire existing issued share capital. Together with ICE's holding of 2,277,034 Climate Exchange Shares (representing approximately 4.8 per cent. of Climate Exchange's entire existing issued share capital), this represents approximately 53.0 per cent. of the entire existing issued share capital of Climate Exchange.

12. Shareholder meetings and action to be taken by Climate Exchange Shareholders

Completion of the Acquisition is conditional upon the Climate Exchange Shareholders approving the Resolutions to be proposed at the Court Meeting and the Climate Exchange EGM. Details of the approvals being sought at the Court Meeting and the Climate Exchange EGM and the action to be taken by Climate Exchange Shareholders in respect of the Acquisition are set out on page 2 of this document and paragraph 12 of Part Two of this document.

It is important that, for the Court Meeting, as many votes as possible are cast so that the Court may be satisfied that there is a fair representation of Climate Exchange Shareholder opinion. You are therefore strongly urged to complete and return your forms of proxy as soon as possible, whether or not you intend to attend the meetings in person.

13. Cancellation of trading, re-registration, termination of Climate Exchange ADS programme and settlement of cash consideration

Details relating to the cancellation of trading of the Climate Exchange Shares on AIM, re-registration of Climate Exchange as a limited company under the Isle of Man Companies Act 2006, termination of the Climate Exchange ADS programme and settlement of the cash consideration by Bidco are included in paragraph 7 of Part Two of this document.

14. Overseas holders of Climate Exchange Shares and Climate Exchange ADSs

Overseas holders of Climate Exchange Shares and Climate Exchange ADSs should also refer to Part Six of this document, which contains important information relevant to such holders.

15. Recommendation

The Climate Exchange Directors, who have been so advised by J.P. Morgan Cazenove and Kinmont, consider the terms of the Acquisition to be fair and reasonable. In providing advice to the Climate Exchange Directors, J.P. Morgan Cazenove and Kinmont have taken into account the commercial assessments of the Climate Exchange Directors.

The Climate Exchange Directors believe that the terms of the Acquisition (including the Scheme) are in the best interests of Climate Exchange Shareholders as a whole and unanimously recommend that Climate Exchange Shareholders vote in favour of the Resolutions to be proposed at the Court Meeting and the Climate Exchange EGM, as they intend to do in respect of their own respective beneficial holdings, which on 26 May 2010 (the latest practicable date before the publication of this document) amounted in aggregate to 9,026,583 Climate Exchange Shares (representing approximately 18.9 per cent. of Climate Exchange's entire existing issued share capital).

16. Further information

Your attention is drawn to the Explanatory Statement set out in Part Two of this document, which provides further details concerning the Scheme. Your attention is also drawn to the further information contained in Part Three, Part Four and Part Seven and the expected timetable of principal events set out on page 1 of this document.

You should read the whole of this document and not just rely on the information contained in this letter or the Explanatory Statement.

If you have any questions about this document, the Court Meeting or the Climate Exchange EGM, have not received both forms of proxy or are in any doubt as to how to complete the forms of proxy, please call Computershare between 8.30 a.m. and 5.30 p.m. Monday to Friday (except public holidays) on 01534 281 839 (from within the British Isles) or +44 1534 281 839 (from outside the British Isles). Calls will be charged at national or international rates as the case may be. Please note that calls may be monitored or recorded and Computershare cannot provide financial or tax advice or advice on the merits of the Scheme.

Yours faithfully,

/s/ Dr. Richard Sandor
Dr. Richard Sandor
Chairman

Climate Exchange plc

PART TWO: EXPLANATORY STATEMENT

J.P. Morgan plc
125 London Wall
London EC2Y 5AJ

Kinmont Limited
5 Clifford Street
London W1S 2LG

28 May 2010

To the holders of Climate Exchange Shares and Climate Exchange ADSs and, for information only, to holders of options or awards under the Climate Exchange Share Schemes and holders of Warrants issued by members of the Climate Exchange Group

Dear Climate Exchange Shareholder or Climate Exchange ADS Holder

RECOMMENDED CASH ACQUISITION BY BIDCO OF CLIMATE EXCHANGE at 750 pence per Climate Exchange Share

1. Introduction

On 30 April 2010, the boards of Climate Exchange and ICE announced that they had agreed the terms of a recommended Acquisition by Bidco of the entire issued and to be issued share capital of Climate Exchange.

The Climate Exchange Directors have been advised by J.P. Morgan Cazenove and Kinmont in connection with the Acquisition and the Scheme. We have been authorised by the Climate Exchange Directors to write to you to explain the terms of the Acquisition and the Scheme and to provide you with other relevant information.

Your attention is drawn to the letter from the Chairman of Climate Exchange set out in Part One of this document, which forms part of this Explanatory Statement. The letter contains, among other things: (a) information on the reasons for and benefits of the Acquisition; and (b) the unanimous recommendation by the Climate Exchange Directors to Climate Exchange Shareholders to vote in favour of the Resolutions to be proposed at the Court Meeting and the Climate Exchange EGM.

Your attention is also drawn to the other parts of this document including, for overseas holders of Climate Exchange Shares and Climate Exchange ADSs, Part Six, which all form part of this Explanatory Statement.

2. Summary of the terms of the Acquisition and the Scheme

The Acquisition

The Acquisition is to be implemented, subject to the satisfaction or waiver of the Conditions, by way of a Court sanctioned scheme of arrangement between Climate Exchange and the holders of Scheme Shares under section 152 of the Isle of Man Companies Act. The Scheme is set out in full in Part Four of this document. Following the Scheme becoming effective, the entire issued share capital of Climate Exchange will be held by Bidco.

Under the terms of the Acquisition, which is subject to the satisfaction or waiver of the Conditions set out in Part Three of this document, Climate Exchange Shareholders and Climate Exchange ADS Holders will receive:

for each Climate Exchange Share or two Climate Exchange ADSs	750 pence in cash
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The above offer price values the entire existing issued and to be issued share capital of Climate Exchange at approximately £395 million.

The consideration to be received under the Acquisition represents a premium of approximately:

- 56.9 per cent. to the closing price of 478.0 pence per Climate Exchange Share on 29 April 2010, being the last dealing day prior to the date of the Announcement;
- 56.5 per cent. to the average closing price of 479.3 pence per Climate Exchange Share for the one month period up to and including 29 April 2010, being the last dealing day prior to the date of the Announcement; and
- 44.3 per cent. to the average closing price of 519.6 pence per Climate Exchange Share for the three month period up to and including 29 April 2010, being the last dealing day prior to the date of the Announcement.

Climate Exchange ADS Holders should also refer to Part Six of this document, which contains important information relevant to such holders.

Conditions

The Acquisition will be conditional upon, amongst other things, the approval of the Scheme by Climate Exchange Shareholders and the sanction of the Scheme by the Court. The Acquisition is also conditional upon the passing of the Special Resolution by Climate Exchange Shareholders at the Climate Exchange EGM and the UK Office of Fair Trading indicating in terms reasonably satisfactory to Bidco that it does not intend to refer the proposed acquisition to the UK Competition Commission for investigation.

The implementation of the Acquisition is subject to a number of other Conditions, further details of which are set out in Part Three of this document.

Details of the Court Meeting and the Climate Exchange EGM and the nature of the approvals required to be given at them are described in more detail in paragraph 3 below. Details of the Hearing to sanction the Scheme are described in more detail in paragraph 4 below.

The Scheme

Under the Scheme, each Climate Exchange Share will be transferred to Bidco. In consideration for the transfer of their shares in Climate Exchange, Climate Exchange Shareholders will receive consideration under the terms of the Acquisition as outlined above. On the Scheme becoming effective, Climate Exchange will be a wholly-owned subsidiary of Bidco, operating under Climate Exchange's respective brand names.

Once the Conditions specified above and in Part Three of this document have been satisfied, the Scheme will only become effective upon delivery of an office copy of the Court Order to the Financial Supervision Commission for registration. Upon the Scheme becoming effective, it will be binding on all Climate Exchange Shareholders, irrespective of whether or not they attended or voted at the Court Meeting or the Climate Exchange EGM.

Amendments to Climate Exchange's articles of association

The Special Resolution will be proposed at the Climate Exchange EGM relating to the Scheme to amend Climate Exchange's articles of association to ensure that any Climate Exchange Shares issued under the Climate Exchange Share Schemes, pursuant to the exercise of Warrants or otherwise between the Voting Record Time and 6.00 p.m. on the day of the Hearing Date will be subject to the Scheme. It is also proposed to amend Climate Exchange's articles of association so that any Climate Exchange Shares issued to any person other than Bidco or its nominee(s) at or after 6.00 p.m. on the day of the Hearing Date will be automatically acquired by Bidco on the same terms as under the Scheme. This will avoid any person (other than Bidco or its nominee(s)) being left with Climate Exchange Shares after dealings in such shares have ceased on AIM (which will occur at 5.00 p.m. on the Hearing Date). The Special Resolution set out in the notice of the Climate Exchange EGM in Part Eleven of this document seeks the approval of Climate Exchange Shareholders for such amendments.

Implementation Agreement

Climate Exchange and Bidco entered into an implementation agreement on 30 April 2010 governing arrangements relating to the Acquisition (the "**Implementation Agreement**"). The Implementation Agreement sets out, among other things, various matters in relation to the implementation of the Acquisition including an undertaking from Climate Exchange not, directly or indirectly, to solicit, initiate, encourage, negotiate, discuss or otherwise seek to procure any competing proposal to the Acquisition, nor to entertain any approach from or enter into or continue discussions and/or negotiations with any other person with a view to such a competing proposal being made. In addition, Climate Exchange has agreed to notify Bidco immediately of any approach made to Climate Exchange in relation to a competing proposal.

Bidco has a matching right in relation to any competing proposal whereby, upon receipt of details of a competing proposal, Bidco may match or better the value implied by that competing proposal, either by confirmation that it intends to increase its offer price or by confirmation that it is ready to announce the increased offer price, in either case such confirmation to be provided to Climate Exchange prior to the earlier of the Board meeting to approve the competing proposal or a set number of days after the announcement made by the competing offeror.

A summary of the Implementation Agreement is set out in paragraph 10.1(A) of Part Seven of this document and the agreement is on display at the times and places indicated in paragraph 17 of Part Seven of this document.

Irrevocable undertakings

Bidco has received irrevocable undertakings from the Climate Exchange Directors and Climate Exchange's largest shareholder, Invesco Asset Management Limited, to vote in favour of the Scheme (or, if applicable, to accept the Offer) in respect of their own beneficial shareholdings in Climate Exchange. Further details of these irrevocable undertakings, including the circumstances in which they will fall away, are set out in paragraph 11 of Part Seven of this document. The irrevocable undertakings received represent approximately 48.2 per cent. of Climate Exchange's entire existing issued share capital. Together with ICE's holding of 2,277,034 Climate Exchange Shares (representing approximately 4.8 per cent. of Climate Exchange's entire existing issued share capital), this represents approximately 53.0 per cent. of the entire existing issued share capital of Climate Exchange.

3. Climate Exchange meetings

The Scheme will require the approval of Climate Exchange Shareholders at the Court Meeting and the Special Resolution will require the approval of Climate Exchange Shareholders at the separate Climate Exchange EGM, both of which will be held on 2 July 2010 at One Bunhill Row, London EC1Y 8YY. The Court Meeting is being held at the direction of the Court to seek the approval of Climate Exchange Shareholders for the Scheme. The Climate Exchange EGM is being convened to amend the articles of association of Climate Exchange as described in paragraph 2 above.

Notices of both the Court Meeting and the Climate Exchange EGM are set out at the end of this document. Entitlement to attend and vote at these meetings and the number of votes which may be cast thereat will be determined by reference to the register of members of Climate Exchange at the Voting Record Time.

Any Climate Exchange Shares which ICE may acquire prior to the Court Meeting (and any Climate Exchange Shares which any member of the ICE Group holds at the date of the Court Meeting) are not Scheme Shares and therefore no member of the ICE Group is entitled to vote at the Court Meeting in respect of the Climate Exchange Shares held or acquired by it. Each such member of the ICE Group will undertake to be bound by the Scheme.

Climate Exchange ADS Holders should also refer to Part Six of this document for information relevant to such holders.

Court Meeting

The Court Meeting has been convened for 9.30 a.m. on 2 July 2010 to enable the Climate Exchange Shareholders to consider and, if thought fit, approve the Scheme. At the Court Meeting, voting will be by poll and each member present in person or by proxy will be entitled to one vote for each Climate Exchange Share held. The approval required at the Court Meeting is a simple majority in number representing three-fourths in value of the Climate Exchange Shares held by those Climate Exchange Shareholders present and voting in person or by proxy.

It is important that, for the Court Meeting, as many votes as possible are cast so that the Court may be satisfied that there is a fair representation of Climate Exchange Shareholder opinion. You are therefore strongly urged to complete and return your forms of proxy as soon as possible, whether or not you intend to attend the meetings in person.

Climate Exchange EGM

In addition, the Climate Exchange EGM has been convened for the same date at 9.45 a.m. or as soon thereafter as the Court Meeting is concluded or adjourned to consider and, if thought fit, pass the Special Resolution to amend the articles of association of Climate Exchange in the manner described in paragraph 2 above. At the Climate Exchange EGM, voting will be by poll and each member present in person or by proxy will be entitled to one vote for each Climate Exchange Share held. The approval required at the Climate Exchange EGM for the Special Resolution is a majority of not less than three-fourths of the votes cast by Climate Exchange Shareholders present in person or by proxy at the Climate Exchange EGM.

4. Sanction of the Scheme by the Court

Under the Isle of Man Companies Act, the Scheme also requires the sanction of the Court. The Hearing to sanction the Scheme is expected to be held on 7 July 2010. Bidco has agreed to appear by Counsel at the Hearing and to undertake to the Court to be bound by the provisions of the Scheme.

Following the Hearing, the Scheme will only become effective upon delivery of an office copy of the Court Order to the Financial Supervision Commission for registration.

If the Scheme becomes effective, it will be binding on all Climate Exchange Shareholders, irrespective of whether or not they attended or voted at the Court Meeting or the Climate Exchange EGM. Although Climate Exchange ADS Holders will not be entitled to attend the Court Meeting or the Climate Exchange EGM, they will be given the opportunity to instruct the ADS Depositary as to how to vote the Climate Exchange Shares underlying their Climate Exchange ADSs. If the Scheme becomes effective, it will also be binding on the ADS Depositary in respect of the Climate Exchange Shares underlying the Climate Exchange ADSs, irrespective of how the Climate Exchange ADS Holders instructed the ADS Depositary to vote at the Court Meeting or the Climate Exchange EGM. Once the Scheme becomes effective, Climate Exchange intends to terminate the Deposit Agreement through which the ADS programme is operated and a Notice of Termination will be sent to Climate Exchange ADS Holders.

Upon the Scheme becoming effective, each Climate Exchange Share will be transferred to Bidco. In consideration for the transfer of their shares in Climate Exchange, Climate Exchange Shareholders will receive consideration under the terms of the Acquisition as outlined above. Upon the Scheme becoming effective, Climate Exchange will be a wholly-owned subsidiary of Bidco, operating under Climate Exchange's respective brand names.

5. Financing

In relation to the cash consideration payable by Bidco under the terms of the Acquisition, \$220 million has been drawn from ICE's existing credit facilities and the remainder will be funded from its existing cash resources. Morgan Stanley & Co. Limited, an affiliate of Morgan Stanley, is satisfied that sufficient financial resources are available to Bidco to satisfy in full the cash consideration payable under the terms of the Acquisition.

6. The Climate Exchange Directors and the effect of the Scheme on their interests

The names of the Climate Exchange Directors and details of their interests are set out in Part Seven of this document.

In common with the other participants in the Climate Exchange Share Schemes, the Climate Exchange Directors will be able to exercise their options and receive shares under the Climate Exchange Share Schemes.

Save as set out above, the effect of the Scheme on the interests of Climate Exchange Directors does not differ from its effect on the like interests of any other Climate Exchange Shareholder.

7. Cancellation of trading of Climate Exchange Shares, re-registration, termination of Climate Exchange ADS programme and settlement of cash consideration

Cancellation of trading of Climate Exchange Shares

The last day of dealings in, and registration of transfers of, Climate Exchange Shares, will be the Hearing Date.

It is expected that application will be made to the London Stock Exchange for Climate Exchange Shares to cease to be admitted to trading on AIM on the Effective Date.

On the Effective Date, share certificates in respect of Scheme Shares held in certificated form will cease to be valid documents of title and should be destroyed or, at the request of Climate Exchange, delivered up to Climate Exchange, or to any person appointed by Climate Exchange to receive the same. On the Effective Date, entitlements to Scheme Shares held within CREST will be cancelled.

Climate Exchange ADS Holders should also refer to Part Six of this document, which contains important information relevant to such holders.

Re-registration of Climate Exchange

After the Effective Date, it is also intended that Climate Exchange will be re-registered as a limited company under the Isle of Man Companies Act 2006.

Termination of Climate Exchange ADS programme

On the Effective Date, certificates in respect of Climate Exchange ADSs will cease to be valid and should be surrendered to the ADS Depositary in accordance with the Deposit Agreement. In addition, once the Scheme becomes effective, Climate Exchange intends to terminate the Deposit Agreement through which the ADS programme is operated and a Notice of Termination will be sent to Climate Exchange ADS Holders. Holders of Climate Exchange ADSs should also refer to Part Six of this document, which contains important information relevant to such holders.

Settlement

Subject to the Scheme becoming effective (and except as provided in Part Six of this document in relation to certain overseas holders of Climate Exchange Shares), settlement of the consideration to which any Climate Exchange Shareholder is entitled under the Scheme will be effected in the following manner:

(A) Climate Exchange Shares in uncertificated form (that is, in CREST)

Where, at the Scheme Record Time, a Relevant Holder holds Climate Exchange Shares in uncertificated form, the cash consideration to which such Relevant Holder is entitled will be transferred to such person through CREST by Bidco procuring the creation of an assured payment obligation in favour of the appropriate CREST account through which the Relevant Holder holds such uncertificated Climate Exchange Shares in respect of the cash consideration due to him.

As from the Effective Date, each holding of Climate Exchange Shares credited to any stock account in CREST will be disabled and all Climate Exchange Shares will be removed from CREST in due course.

Bidco reserves the right to pay all, or any part of, the cash consideration referred to above to all or any Relevant Holder(s) who hold Climate Exchange Shares in uncertificated form in the manner referred to in paragraph 7(B) below if, for any reason, it wishes to do so.

(B) Climate Exchange Shares in certificated form

Where, at the Scheme Record Time, a Relevant Holder holds Climate Exchange Shares in certificated form, settlement of the cash consideration due under the Scheme in respect of the Scheme Shares will be despatched:

- (i) by first class post, by cheque drawn on a branch of a UK clearing bank; or

(ii) by such other method as may be approved by the Panel.

All such cash payments will be made in pounds sterling. Payments made by cheque will be payable to the Scheme Shareholder(s) concerned. Cheques will be despatched not later than the fourteenth day following the Effective Date to the person entitled thereto at the address as appearing in the register of members of Climate Exchange at the Scheme Record Time or in accordance with any special standing instructions regarding communications. None of Climate Exchange, Bidco or any of their respective agents shall be responsible for any loss or delay in the transmission of cheques sent in this way, and such cheques shall be sent at the risk of the person entitled thereto.

(C) General

All documents and remittances sent to Climate Exchange Shareholders and Climate Exchange ADS Holders will be sent at their own risk.

As from the Effective Date each certificate representing a holding of Scheme Shares will cease to be of value and can be destroyed.

Except with the consent of the Panel, settlement of the consideration to which any Climate Exchange Shareholder is entitled under the Scheme will be implemented in full in accordance with the terms of the Scheme free of any lien, right of set-off, counterclaim or other analogous right to which Bidco might otherwise be, or claim to be, entitled against such Climate Exchange Shareholder.

8. Right to implement the Acquisition by way of an Offer

Bidco reserves the right to elect to effect the Acquisition by means of an Offer. In such event, such Acquisition will be implemented on and subject to the same terms and conditions to those that would apply to the Scheme, subject to appropriate amendments, including (without limitation) an acceptance condition set at 90 per cent. of the Climate Exchange Shares affected (but capable of waiver in accordance with Rule 10 of the City Code) in substitution for the conditions set out in paragraph 1 of Part Three of this document (so far as applicable). Further, if sufficient acceptances of such Offer are received and/or sufficient Climate Exchange Shares are otherwise acquired, it is the intention of Bidco to apply the provisions of section 154 of the Isle of Man Companies Act to acquire compulsorily any outstanding Climate Exchange Shares affected.

9. Climate Exchange Share Schemes

The effect of the Scheme in relation to Climate Exchange Share Schemes is described in paragraph 9 of the letter from the Chairman of Climate Exchange in Part One of this document.

10. Warrants

The effect of the Scheme in relation to the Warrants is described in paragraph 10 of the letter from the Chairman of Climate Exchange in Part One of this document.

11. Overseas holders of Climate Exchange Shares and Climate Exchange ADSs

Overseas holders of Climate Exchange Shares and Climate Exchange ADSs should also refer to Part Six of this document, which contains important information relevant to such holders.

12. Actions to be taken

Actions to be taken by Climate Exchange Shareholders

The Scheme will require approval at a meeting of Climate Exchange Shareholders convened by order of the Court to be held at One Bunhill Row, London EC1Y 8YY at 9.30 a.m. on 2 July 2010. The approval required at this meeting is that those voting to approve the Scheme must:

- (A) represent a simple majority in number of those Climate Exchange Shareholders present and voting in person or by proxy; and
- (B) also represent three-fourths in value of the Climate Exchange Shares held by those Climate Exchange Shareholders present and voting in person or by proxy.

The Scheme requires the sanction of the Court, as described in paragraph 4 above, which will follow a hearing at which all Climate Exchange Shareholders may be present and be heard in person or through representation to support or oppose the sanctioning of the Scheme. Implementation of the Scheme will also require the passing of the Special Resolution at the Climate Exchange EGM to be held at One Bunhill Row, London EC1Y 8YY at 9.45 a.m. or as soon thereafter as the Court Meeting is concluded or adjourned, as described in paragraph 3 above. The approval required for the Special Resolution to be passed is a majority of not less than three-fourths of the votes cast by Climate Exchange Shareholders present in person or by proxy at the Climate Exchange EGM.

If the Scheme becomes effective it will be binding on all holders of Scheme Shares, including any holders who did not vote to approve the Scheme. Although Climate Exchange ADS Holders will not be entitled to attend the Court Meeting or the Climate Exchange EGM, they will be given the opportunity to instruct the ADS Depositary as to how to vote the Climate Exchange Shares underlying their Climate Exchange ADSs. If the Scheme becomes effective, it will also be binding on the ADS Depositary in respect of the Climate Exchange Shares underlying the Climate Exchange ADSs, irrespective of how the Climate Exchange ADS Holders instructed the ADS Depositary to vote at the Court Meeting or the Climate Exchange EGM.

Climate Exchange Shareholders will find enclosed with this document a blue form of proxy and a yellow form of proxy. The blue form of proxy is to be used in connection

with the Court Meeting and the yellow form of proxy is to be used in connection with the Climate Exchange EGM. Whether or not you intend to attend these meetings please complete and sign both forms of proxy and return them in the reply-paid envelope provided in accordance with the instructions printed thereon to Climate Exchange's receiving agent, Computershare Investor Services (Jersey) Limited, Queensway House, Hilgrove Street, St Helier, Jersey JE1 1ES, so as to arrive as soon as possible but in any event at least 48 hours prior to the relevant meeting. Forms of proxy may also be sent by facsimile transmission to Computershare Investor Services (Jersey) Limited on 0870 873 5851 (from within the British Isles) or +44 870 873 5851 (from outside the British Isles).

If the blue form of proxy relating to the Court Meeting is not lodged by the relevant time, it may be handed to the Chairman of the Court Meeting before the start of the Court Meeting and will still be valid. However, in the case of the Climate Exchange EGM, if the yellow form of proxy is not lodged so as to be received by the time mentioned above and in accordance with the instructions on that form of proxy, it will be invalid. The completion and return of either form of proxy will not preclude you from attending the Court Meeting or the Climate Exchange EGM and voting in person, if you so wish.

Climate Exchange Shareholders who hold shares through CREST and who wish to appoint a proxy or proxies for the Court Meeting and Climate Exchange EGM or any adjournment(s) by using the CREST electronic proxy appointment service may do so by using the procedures described in the CREST Manual. CREST personal members or other CREST sponsored members, and those CREST members who have appointed a voting service provider(s), should refer to their CREST sponsor or voting service providers), who will be able to take the appropriate action on their behalf.

In order for a proxy appointment or instruction made by means of CREST to be valid, the appropriate CREST message (a “**CREST Proxy Instruction**”) must be properly authenticated in accordance with Euroclear's specifications and must contain the information required for such instructions, as described in the CREST Manual. The message, regardless of whether it constitutes the appointment of a proxy or an amendment to the instructions given to a previously appointed proxy, must in order to be valid, be transmitted so as to be received by Climate Exchange's agent (CREST ID 3RA50) at least 48 hours prior to the Court Meeting or the Climate Exchange EGM. For this purpose, the time of receipt will be taken to be the time (as determined by the timestamp applied to the message by the CREST Applications Host) from which the registrar is able to retrieve the message by enquiry to CREST in the manner prescribed by CREST. After this time any change of instructions to proxies appointed through CREST should be communicated to the appointee through other means.

CREST members and, where applicable, their CREST sponsors or voting service providers, should note that Euroclear does not make available special procedures in CREST for any particular messages. Normal system timings and limitations will therefore apply in relation to the input of CREST Proxy Instructions. It is the responsibility of the CREST member concerned to take (or, if the CREST member is a CREST personal member or sponsored member or has appointed a voting service provider(s), to procure that his CREST sponsor or voting service provider(s) take(s)) such action as shall be necessary to ensure that a message is transmitted by means of the CREST system by any particular time. In this connection, CREST members and,

where applicable, their CREST sponsor or voting service provider(s) are referred, in particular, to those sections of the CREST Manual concerning practical limitations of the CREST system and timings.

The Company may treat as invalid a CREST Proxy Instruction in the circumstances set out in Regulation 18(4)(a) of the Regulations.

If you have any questions about this document, the Court Meeting or the Climate Exchange EGM, have not received both forms of proxy or are in any doubt as to how to complete the forms of proxy, please call Computershare between 8.30 a.m. and 5.30 p.m. Monday to Friday (except public holidays) on 01534 281 839 (from within the British Isles) or +44 1534 281 839 (from outside the UK). Calls will be charged at national or international rates as the case may be. Please note that calls may be monitored or recorded and Computershare cannot provide financial or tax advice or advice on the merits of the Scheme.

It is important that, for the Court Meeting, as many votes as possible are cast so that the Court may be satisfied that there is a fair representation of Climate Exchange Shareholder opinion. You are therefore strongly urged to complete and return your forms of proxy as soon as possible, whether or not you intend to attend the meetings in person.

Climate Exchange ADS Holders should also refer to Part Six for information relevant to such holders.

13. Further information

Your attention is drawn to the Chairman's letter in Part One and to the terms of the Scheme which are set out in full in Part Four of this document. Further information regarding Climate Exchange, ICE and Bidco is set out in Part Seven of this document. Documents available for inspection are listed in paragraph 17 of Part Seven of this document.

Yours faithfully,

J.P. Morgan plc

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PART THREE: CONDITIONS TO THE IMPLEMENTATION OF THE SCHEME AND THE ACQUISITION AND FURTHER TERMS OF THE ACQUISITION

The Acquisition is conditional upon the Scheme becoming effective by 31 July 2010 or such later date as ICE and Climate Exchange may, with the consent of the Panel, agree and (if required) the Court may approve.

Conditions to the implementation of the Scheme and the Acquisition

1. The Scheme is subject to the following conditions:
 - (A) the approval by a majority in number representing not less than three-fourths in value of the holders of the Climate Exchange Shares present and voting either in person or by proxy at the Court Meeting (or any separate class meeting that may be required by the Court) or any adjournment thereof;
 - (B) the Special Resolution being duly passed at the Climate Exchange EGM (or any adjournment thereof);
 - (C) the sanction of the Scheme by the Court (with or without modification (but subject to any such modification being acceptable to ICE and Climate Exchange)) and an office copy of the Court Order being delivered to the Financial Supervision Commission for registration;
2. Subject to the provisions of paragraph 3 of this Part Three and the requirements of the Panel in accordance with the City Code, the Acquisition is conditional upon, and accordingly the necessary actions to implement the Acquisition will only be taken on, the satisfaction or, where relevant, waiver of the following conditions:
 - (A) insofar as the Acquisition constitutes a relevant merger situation within Part 3 of the UK Enterprise Act 2002, the UK Office of Fair Trading indicating in terms reasonably satisfactory to Bidco that it does not intend to refer the proposed acquisition to the UK Competition Commission for investigation under Part 3 of the UK Enterprise Act 2002;
 - (B) no government or governmental, quasi-governmental, supranational, statutory or regulatory, environmental or investigative body, court, association, institution or agency (including any trade agency) or any other similar body or person (including any professional body) whatsoever in any jurisdiction (each a “**Relevant Authority**”) having decided to take, institute or threaten any action, proceeding, suit, investigation, enquiry or reference or having enacted, made or proposed and there not continuing to be outstanding any statute, regulation, order or decision or having taken any other step that would or might be reasonably expected to:
 - (i) make the Acquisition of, or control of, Climate Exchange by Bidco or any other member of the Wider ICE Group void, unenforceable or illegal or directly or indirectly prohibit or otherwise materially restrict, delay or interfere with the implementation of, or impose material additional conditions or obligations with respect to, or otherwise challenge, the Acquisition of, or control of, Climate Exchange by Bidco or any other member of the Wider ICE Group;

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- (ii) require, prevent or materially delay the divestiture or materially alter the terms envisaged for such divestiture by any member of the Wider ICE Group or by any member of the Wider Climate Exchange Group of all or any part of their respective businesses, assets or property or impose any limitation on their ability to conduct their respective businesses (or any part thereof) or to own any of their respective assets or properties (or any part thereof) in any such case to an extent which is material in the context of the Wider Climate Exchange Group taken as a whole or the Wider ICE Group taken as a whole (as the case may be);
 - (iii) impose any material limitation on, or result in a material delay in, the ability of any member of the Wider ICE Group directly or indirectly to acquire or to hold or to exercise effectively any or all rights of ownership in respect of shares, loans, securities convertible into shares or any other securities (or the equivalent) in any member of the Wider Climate Exchange Group or the Wider ICE Group or to exercise management control over any member of the Wider Climate Exchange Group or the Wider ICE Group;
 - (iv) require any member of the Wider ICE Group or of the Wider Climate Exchange Group to acquire or offer to acquire any shares or other securities (or the equivalent) in any member of the Wider Climate Exchange Group or any member of the Wider ICE Group owned by any third party (other than in the implementation of the Acquisition);
 - (v) require, prevent or materially delay a divestiture by any member of the Wider ICE Group of any shares or other securities (or the equivalent) in any member of the Wider Climate Exchange Group;
 - (vi) result in any member of the Wider Climate Exchange Group ceasing to be able to carry on business under any name under which it presently carries on business to an extent which is material in the context of the Wider Climate Exchange Group taken as a whole;
 - (vii) impose any material limitation on the ability of any member of the Wider ICE Group or the Wider Climate Exchange Group to integrate or co-ordinate all or any part of its business with all or any material part of the business of any other member of the Wider ICE Group and/or the Wider Climate Exchange Group respectively; or
 - (viii) otherwise adversely affect the business, assets, financial or trading position or profits or prospects of any member of the Wider Climate Exchange Group or of the Wider ICE Group to an extent which is material in the context of the Wider Climate Exchange Group taken as a whole or, as the case may be, the Wider ICE Group taken as a whole,

and all applicable waiting and other time periods during which any such Relevant Authority could decide to take, institute, implement or threaten any such action, proceeding, suit, investigation, enquiry or reference or any other step under the laws of any jurisdiction in respect of the Acquisition or the proposed acquisition of any Climate Exchange Shares having expired, lapsed or been terminated;

- (C) all necessary filings or applications having been made and all appropriate waiting periods (including any extensions thereof) under any applicable legislation or regulation of any jurisdiction having expired, lapsed or been terminated and all necessary statutory or regulatory obligations in any jurisdiction having been complied with, in each case in connection with the Acquisition or the acquisition by any member of the Wider ICE Group of any shares or other securities in, or control of, Climate Exchange and all authorisations, orders, grants, recognitions, confirmations, licences, consents, clearances, permissions, waiver of pre-emption rights and approvals (except under the shareholders' agreement relating to Climate Change Products Pty Limited) (" **Authorisations** ") necessary in any jurisdiction for or in respect of the Acquisition or the proposed acquisition by any member of the Wider ICE Group of any shares or other securities in, or control of, Climate Exchange having been obtained in terms and in a form reasonably satisfactory to Bidco from all appropriate Relevant Authorities or from any appropriate persons or bodies with whom any member of the Wider ICE Group or the Wider Climate Exchange Group has entered into material contractual arrangements and all such Authorisations together with all Authorisations reasonably deemed necessary or appropriate by Bidco to permit or enable any member of the Wider Climate Exchange Group to carry on its business remaining in full force and effect in such case where the absence of such Authorisation would have a material adverse effect on the Wider Climate Exchange Group taken as a whole, and there being no notice or intimation of any intention to revoke, suspend, restrict or modify or not to renew any of the same;
- (D) save as fairly disclosed in the report and accounts of Climate Exchange for the year ended 31 December 2008 or in Climate Exchange's statement of preliminary results for the year ended 31 December 2009 or as publicly announced by or on behalf of Climate Exchange to a Regulatory Information Service prior to the date of the Announcement or as fairly disclosed to ICE by or on behalf of Climate Exchange prior to the date of this document, there being no provision of any agreement, arrangement, licence, permit, lease or other instrument to which any member of the Wider Climate Exchange Group is a party or by or to which any such member or any of its assets is or may be bound, entitled or subject which, as a result of the making or implementation of the Acquisition by any member of the Wider ICE Group or the proposed acquisition of any shares or securities in Climate Exchange or because of a change in the control or management of Climate Exchange or otherwise, would or might reasonably be expected to result in any of the following, in each case to an extent which is material in the context of the Wider Climate Exchange Group taken as a whole:
- (i) any moneys borrowed by or any other indebtedness (actual or contingent) of, or grant available to, any such member of the Wider Climate Exchange Group being or becoming repayable or capable of being declared repayable immediately or earlier than their or its stated maturity date or repayment date or the ability of any such member to borrow monies or incur any indebtedness being withdrawn or inhibited or being capable of becoming withdrawn or inhibited;

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- (ii) the creation or enforcement of any mortgage, charge or other security interest over the whole or any part of the business, property or assets of any such member of the Wider Climate Exchange Group;
 - (iii) any assets or interests of, or any asset the use of which is enjoyed by, any such member of the Wider Climate Exchange Group being or falling to be disposed of or charged or any right arising under which any such asset or interest could be required to be disposed of or charged or could cease to be available to any member of the Wider Climate Exchange Group, in each case otherwise than in the ordinary course of business;
 - (iv) any such agreement, arrangement, licence, permit, lease or other instrument or the rights, liabilities, obligations or interests of any such member thereunder being terminated or adversely modified or affected or any obligation or liability arising or any adverse action being taken or arising thereunder, in each case otherwise than in the ordinary course of business;
 - (v) the interest of any such member of the Wider Climate Exchange Group in, or the business of any such member of the Wider Climate Exchange Group with, any person, firm or company (or any agreements or arrangements relating to such interest or business) being terminated or adversely modified or affected;
 - (vi) any such member of the Wider Climate Exchange Group ceasing to be able to carry on business under any name under which it presently does so;
 - (vii) the financial or trading position or prospects of any such member of the Wider Climate Exchange Group being prejudiced or adversely affected;
 - (viii) any such agreement, arrangement, licence, permit, lease or other instrument being terminated or adversely modified or any onerous obligation arising or any adverse action being taken or arising thereunder; or
 - (ix) the creation of any liabilities (actual or contingent) by any such member of the Wider Climate Exchange Group;
- and no event having occurred which, under any provision of any agreement, arrangement, licence, permit, lease or other instrument to which any member of

the Wider Climate Exchange Group is a party or by or to which any such member or any of its assets may be bound or be subject, would or could reasonably be expected to result in any of the events or circumstances as are referred to in sub-paragraphs (i) to (ix) of this paragraph (D);

- (E) save as fairly disclosed in the report and accounts of Climate Exchange for the year ended 31 December 2008 or in Climate Exchange's statement of preliminary results for the year ended 31 December 2009 or as publicly announced to a Regulatory Information Service by or on behalf of Climate Exchange prior to the date of the Announcement or as fairly disclosed to ICE by or on behalf of Climate Exchange prior to the date of the Announcement, no member of the Wider Climate Exchange Group having:
- (i) issued or agreed to issue or authorised or proposed the issue of additional shares of any class, or securities or securities convertible into, or exchangeable for, or rights, warrants or options to subscribe for or to acquire, any such shares, securities or convertible securities (save as between Climate Exchange and any of its direct or indirect wholly-owned subsidiaries or between any such wholly-owned subsidiaries or other than pursuant to the exercise of options granted prior to the date of the Announcement under any of the Climate Exchange Share Schemes or pursuant to the exercise of warrants issued under and on the terms of (without amendment) any agreements in existence as of the date of the Announcement with market makers for the Climate Exchange Group);
 - (ii) other than to another member of the Climate Exchange Group, recommended, declared, paid or made or authorised, proposed or announced its intention to implement any recommendation, declaration, payment or making of any bonus, dividend or other distribution, whether payable in cash or otherwise;
 - (iii) save for transactions between Climate Exchange and any of its direct or indirect wholly-owned subsidiaries or between any such wholly-owned subsidiaries, merged with or demerged from any body corporate or acquired or disposed of or transferred, mortgaged or charged, or created any other security interest over, any assets or any right, title or interest in any asset (including shares and trade investments) or authorised, proposed or announced any intention to do so, in each case other than in the ordinary course of business;
 - (iv) implemented or authorised, proposed or announced its intention to implement any reconstruction, amalgamation, scheme, commitment or other transaction or arrangement otherwise than in the ordinary course of business;
 - (v) purchased, redeemed or repaid or authorised, proposed or announced its intention to implement any purchase, redemption or repayment of any of its own shares or other securities or reduced or made any other change to any part of its share capital;

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- (vi) save for transactions between Climate Exchange and any of its direct or indirect wholly-owned subsidiaries or between any such wholly-owned subsidiaries, made or authorised, proposed or announced an intention to implement any change in its loan capital;
 - (vii) issued or authorised, proposed or announced its intention to implement the issue of any debentures or other debt securities or, save in the ordinary course of business, incurred or increased any indebtedness or become subject to any material contingent liability;
 - (viii) entered into or varied, authorised or proposed the entry into or variation of or agreed or announced its intention to enter into or vary any contract, transaction, commitment or arrangement (whether in respect of capital expenditure or otherwise) which is outside the ordinary course of business or which is of a long term, onerous or unusual nature or magnitude or which involves or could involve an obligation of such a nature or magnitude;
 - (ix) entered into, authorised or proposed the entry into of or agreed or announced its intention to enter into any contract, transaction, commitment or arrangement which is or could be restrictive on the business of any member of the Wider Climate Exchange Group or the Wider ICE Group to an extent material in the context of the Wider ICE Group taken as a whole or, as the case may be, the Wider Climate Exchange Group taken as a whole;
 - (x) been unable, or admitted in writing that it is unable, to pay its debts or commenced negotiations with one or more of its creditors with a view to rescheduling or restructuring any of its indebtedness, or having stopped or suspended (or threatened to stop or suspend) payment of its debts generally or ceased or threatened to cease carrying on all or a substantial part of its business;
 - (xi) (other than in respect of a member of the Wider Climate Exchange Group which is dormant and was solvent at the relevant time) taken any corporate action or had any legal proceedings started or threatened against it for its winding-up (voluntary or otherwise), dissolution or reorganisation (or for any analogous proceedings or steps in any jurisdiction) or for the appointment of a receiver, administrator, administrative receiver, trustee or similar officer (or for the appointment of any analogous person in any jurisdiction) of all or any of its assets or revenues;
 - (xii) waived or compromised any claim where such waiver or compromise is material in the context of the Wider Climate Exchange Group taken as a whole;
 - (xiii) entered into or materially amended, authorised or proposed the entry into of or material amendment to or agreed or announced its intention to enter or materially amend the terms of any contract with any director, officer or senior executive of a member of the Wider Climate Exchange Group;

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- (xiv) paid, authorised or proposed the payment of or agreed or announced its intention to pay (whether in cash or otherwise) any separation or transaction bonus to any director, officer, senior executive or employee of a member of the Wider Climate Exchange Group, except, with respect to employees, to the extent that the aggregate amount of such payments by all members of the Climate Exchange Group amount to £500,000 or less, plus such further amount as Climate Exchange and Bidco may mutually agree pursuant to the Implementation Agreement;
 - (xv) made, authorised, proposed or agreed to any change to:
 - (a) the terms of the trust deeds constituting the pension scheme(s) established by any member of the Wider Climate Exchange Group for its Directors and/or employees and/or their dependants;
 - (b) the contributions payable to any such scheme(s) or to the benefits which accrue or to the pensions which are payable thereunder;
 - (c) the basis on which qualification for, or accrual or entitlement to, such benefits or pensions are calculated or determined;
 - (d) the basis upon which the liabilities (including pensions) of such pension scheme(s) are funded, valued or met (including, without limitation, any changes which relate to or result from any purchase of a bulk annuity or longevity or financial hedging instrument in respect of some or all of those liabilities); or
 - (e) agreed or consented to any change to the trustees or trustee directors (except a simple replacement of a trustee or trustee director who has resigned);
 - (xvi) entered into or authorised or proposed the entry into of any material contract, commitment, agreement or arrangement or passed any resolution or made any offer (which remains open for acceptance) with respect to, or agreed or announced any intention to effect, any of the transactions, matters or events referred to in this condition;
 - (xvii) proposed, agreed to provide or modified in any material respect the terms of any Climate Exchange Share Scheme or other incentive scheme relating to the employment or termination of the employment of any person employed by the Wider Climate Exchange Group; or
 - (xviii) made any material alteration to its memorandum or articles of association or other incorporation documents (other than in respect of the proposed amendment to Climate Exchange's articles of association at the Climate Exchange EGM);

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- (F) save as fairly disclosed in the report and accounts of Climate Exchange for the year ended 31 December 2008 or in Climate Exchange's preliminary statement of results for the year ended 31 December 2009 or as publicly announced to a Regulatory Information Service by or on behalf of Climate Exchange prior to the date of the Announcement or as fairly disclosed to ICE by or on behalf of Climate Exchange prior to the date of the Announcement:
- (i) no adverse change having occurred in the business, assets, financial or trading position or profits or prospects of any member of the Wider Climate Exchange Group which is material in the context of the Wider Climate Exchange Group taken as a whole;
 - (ii) no litigation, arbitration proceedings, prosecution or other legal proceedings to which any member of the Wider Climate Exchange Group is or may become a party (whether as claimant or defendant or otherwise) and no enquiry or investigation by, or complaint or reference to, any Relevant Authority against or in respect of any member of the Wider Climate Exchange Group having been threatened, announced or instituted or remaining outstanding in respect of any member of the Wider Climate Exchange Group, which in each case could reasonably be expected to have a material adverse affect on the Wider Climate Exchange Group taken as a whole;
 - (iii) no contingent or other liability having arisen which would or might reasonably be expected to have a material adverse affect on the business, assets, financial or trading position or profits or prospects of any member of the Wider Climate Exchange Group taken as a whole; and
 - (iv) no steps having been taken and no omissions having been made which will or might reasonably be expected to result in the withdrawal, cancellation, termination or modification of any licence held by any member of the Wider Climate Exchange Group, which is necessary for the proper carrying on of its business;
- (G) save as fairly disclosed in the report and accounts of Climate Exchange for the year ended 31 December 2008 or in Climate Exchange's preliminary statement of results for the year ended 31 December 2009 or as publicly announced to a Regulatory Information Service by or on behalf of Climate Exchange prior to the date of the Announcement or as fairly disclosed to ICE by or on behalf of Climate Exchange prior to the date of the Announcement, ICE not having discovered:
- (i) that any financial, business or other information concerning the Wider Climate Exchange Group as contained in information publicly disclosed (and not publicly corrected) or disclosed to any member of the Wider ICE Group at any time by or on behalf of any member of the Wider Climate Exchange Group is misleading, contains a misrepresentation of fact or omits to state a fact necessary to make that information not misleading;

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- (ii) that any member of the Wider Climate Exchange Group is subject to any material liability, contingent or otherwise, which is not disclosed in the report and accounts of Climate Exchange for the year ended 31 December 2008 or in Climate Exchange's preliminary statement of results for the year ended 31 December 2009; or
 - (iii) any information which materially and adversely affects the import of any information disclosed to ICE at any time by or on behalf of any member of the Wider Climate Exchange Group,
- in each case the information discovered being materially adverse in the context of the Wider Climate Exchange Group.

Further Terms of the Acquisition

- 3. Bidco reserves the right to waive all or any of conditions set out in paragraph 2 above, in whole or in part.
- 4. If Bidco is required by the Panel to make an offer for any Climate Exchange Shares under Rule 9 of the City Code, Bidco may make such alterations to the above conditions as are necessary to comply with the provisions of that rule.
- 5. Bidco reserves the right to elect (with the consent of the Panel (where necessary)) to effect the Acquisition by means of an Offer. In such event, such Acquisition will be implemented on and subject to the same terms and conditions to those that would apply to the Scheme, subject to appropriate amendments to reflect the change in method of effecting the Acquisition, so far as applicable. In particular, the conditions set out in paragraph 1 above would not apply. The Offer would, however, be subject to the following further condition:
"valid acceptances being received (and not, where permitted, withdrawn) by not later than 1.00 pm (London time) on the first closing date of the Offer (or such later time(s) and/or date(s) as Bidco may, subject to the rules of the City Code and with the consent of the Panel, decide) in respect of not less than 90 per cent. (or such lower percentage as Bidco may decide): (i) of the Climate Exchange Shares affected; and (ii) of the voting rights attached to those shares, provided that this condition will not be satisfied unless Bidco (together with its wholly-owned subsidiaries) shall have acquired or agreed to acquire (whether pursuant to the Offer or otherwise) Climate Exchange Shares carrying in aggregate more than 50 per cent. of the voting rights normally exercisable at a general meeting of Climate Exchange, including for this purpose (except to the extent otherwise agreed by the Panel) any such voting rights attaching to Climate Exchange Shares that are unconditionally allotted or issued before the Offer becomes or is declared unconditional as to acceptances whether pursuant to the exercise of any outstanding subscription or conversion rights or otherwise. For the purposes of this condition:

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- (A) Climate Exchange Shares which have been unconditionally allotted shall be deemed to carry the voting rights they will carry upon issue; and
 - (B) the expression “Climate Exchange Shares affected” shall be construed in accordance with section 154 of the Isle of Man Companies Act.”

Further, if sufficient acceptances of such Offer are received and/or sufficient Climate Exchange Shares are otherwise acquired, it is the intention of Bidco to apply the provisions of section 154 of the Isle of Man Companies Act to acquire compulsorily any outstanding Climate Exchange Shares affected.

- 6. The Acquisition will be subject to the terms and conditions set out in paragraphs 1 and 2 of this Part Three and such further terms as may be required to comply with the AIM Rules, the City Code and the Isle of Man Companies Act. The Scheme will be governed by the laws of the Isle of Man.
- 7. The offer will lapse and the Scheme will not become effective if, before the Climate Exchange EGM, the Acquisition is referred to the UK Competition Commission.

PART FOUR: THE SCHEME OF ARRANGEMENT

THE SCHEME OF ARRANGEMENT

IN THE HIGH COURT OF JUSTICE OF THE ISLE OF MAN
CIVIL DIVISION
CHANCERY PROCEDURE

Serial No. CHP 10/0076

IN THE MATTER OF CLIMATE EXCHANGE PLC

and

IN THE MATTER OF THE ISLE OF MAN COMPANIES ACT 1931

SCHEME OF ARRANGEMENT
(under section 152 of the Isle of Man Companies Act 1931)

between

CLIMATE EXCHANGE PLC

AND

THE HOLDERS OF THE SCHEME SHARES
(as hereinafter defined)

PRELIMINARY

In this Scheme, unless inconsistent with the subject or context, the following expressions bear the following meanings:

“ Bidco ”	Aether Ios Limited, a private company with limited liability incorporated in the United Kingdom with registered number 07227809 and its registered office address at 5th Floor, Milton Gate, 60 Chiswell Street, London, EC1Y 4SA;
“ business day ”	a day (other than a Saturday, Sunday, public or bank holiday) on which banks are generally open for business in London other than solely for trading and settlement in Euro;
“ certificated form ” or “ in certificated form ”	a share or other security which is not in uncertificated form (that is, not in CREST);
“ City Code ”	the City Code on Takeovers and Mergers;

“ Climate Exchange ”	Climate Exchange plc, a public company with limited liability incorporated in the Isle of Man with registered number 109015C and its registered office at IOMA House, Hope Street, Douglas, Isle of Man, IM1 1AP;
“ Climate Exchange Shares ”	ordinary shares of £0.01 each in the capital of Climate Exchange;
“ Court ”	the High Court of Justice of the Isle of Man;
“ Court Meeting ”	the meeting of the holders of the Scheme Shares convened by order of the Court pursuant to section 152 of the Isle of Man Companies Act 1931 to consider and, if thought fit, approve this Scheme, including any adjournment thereof;
“ CREST ”	the system for the paperless settlement of trades in securities and the holding of uncertificated securities operated by Euroclear in accordance with the Regulations;
“ Effective Date ”	the date on which this Scheme becomes effective in accordance with its terms;
“ Euroclear ”	Euroclear UK & Ireland Limited;
“ holder ”	a registered holder and includes any person(s) entitled by transmission;
“ Order ”	the order of the Court sanctioning this Scheme;
“ Order Date ”	the date on which the Order is made or, if later, the date on which the Order is expressed to take effect;
“ Regulations ”	the Uncertificated Securities Regulations 2005 of the Isle of Man;
“ Relevant Holders ”	holders of Scheme Shares whose names appear in the register of members of Climate Exchange at the Scheme Record Time;
“ Scheme ”	this scheme of arrangement in its present form or with or subject to any modification, addition or condition approved or imposed by the Court;
“ Scheme Record Time ”	6.00 p.m. on the business day before the Effective Date;
“ Scheme Shares ”	(i) the Climate Exchange Shares in issue at the date of this document;

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- (ii) any Climate Exchange Shares issued after the date of this document and prior to the Voting Record Time; and
 - (iii) any Climate Exchange Shares issued at or after the Voting Record Time and prior to 6.00 p.m. on the Order Date in respect of which the original or any subsequent holder thereof shall be bound by the Scheme or shall by such time have agreed in writing to be bound by the Scheme,
- in any case, other than any Climate Exchange Shares held or beneficially owned by ICE;
- “ Shareholder ”** a holder of Scheme Shares;
- “ uncertificated form ” or “ in uncertificated form ”** a share or other security recorded on the relevant register as being held in uncertificated form in CREST, and title to which, by virtue of the Regulations, may be transferred by means of CREST; and
- “ Voting Record Time ”** 6.00 p.m. on the day which is 2 days before the Court Meeting or any adjournment thereof (as the case may be).
- (A) The authorised share capital of Climate Exchange at the date of this Scheme is £675,000 divided into 67,500,000 ordinary shares of £0.01 each. As at 26 May 2010, being the latest practicable date prior to publication of this document, 47,734,475 ordinary shares had been issued and were fully paid up and the remainder were unissued.
- (B) As at 26 May 2010, being the latest practicable date prior to publication of this document, IntercontinentalExchange Holdings, a wholly-owned subsidiary of IntercontinentalExchange, Inc. (the ultimate parent company of Bidco), held 2,277,034 Climate Exchange Shares (representing 4.8 per cent. of the entire existing issued share capital of Climate Exchange).
- (C) The Company is proposing the Scheme, under which the Scheme Shares will be transferred to Bidco in exchange for 750 pence in cash for each Scheme Share.
- (D) Bidco has agreed to appear by Counsel at the hearing to sanction this Scheme and to undertake to the Court to be bound by the provisions of this Scheme and to execute and do or procure to be executed and done all such documents, acts and things as may be necessary or desirable to be executed or done by it for the purpose of giving effect to this Scheme.

1. Transfer of Scheme Shares

The Scheme Shares will be acquired by Bidco, on the Effective Date, fully paid and free from all liens, equitable interests, charges, encumbrances, pre-emption rights and other third party interests and rights of any nature whatsoever and together with all rights now or hereafter attaching to them, including the right to receive and retain all dividends and other distributions declared, made or paid after the date of the Announcement.

In consideration for the transfer of the Scheme Shares to Bidco, Bidco shall, subject to clause 3(E), pay or procure that there shall be paid to or for the account of each Relevant Holder:

for each Scheme Share	750 pence in cash
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2. Share certificates and cancellation of CREST entitlements

- (A) With effect from and including the Effective Date, all certificates representing Scheme Shares shall cease to have effect as documents of title to the Scheme Shares comprised therein and every holder of Scheme Shares shall be bound by the request of Climate Exchange to deliver up the same to Climate Exchange, or, as it may direct, to destroy the same.
- (B) With effect from and including the Effective Date, Euroclear shall be instructed to cancel the entitlements to Scheme Shares of holders of Scheme Shares in uncertificated form. As regards certificated Scheme Shares, appropriate entries will be made in the register of members of Climate Exchange with effect from the Effective Date to reflect their cancellation.

3. Despatch of consideration

- (A) As soon as practicable after the Effective Date, and in any event not more than 14 days after the Effective Date, Bidco shall:
 - (i) in the case of the Scheme Shares, which at the Scheme Record Time are in certificated form, despatch or procure the despatch to the persons entitled thereto, or as they may direct, in accordance with the provisions of sub-clauses 3(B) and 3(C), cheques for the sums payable to them in accordance with clause 1; and
 - (ii) in the case of the Scheme Shares which at the Scheme Record Time are in uncertificated form, ensure that an assured payment obligation in respect of the sums payable is created in accordance with the CREST assured payment arrangements and the provisions of sub-clause 3(D), provided that Bidco reserves the right to make payment of the said consideration by cheque as aforesaid in sub-clause 3(A)(i) if, for any reason, it wishes to do so.
- (B) All deliveries of cheques or certificates required to be made pursuant to this Scheme shall be effected by sending the same by first class post in pre-paid envelopes addressed to the persons entitled thereto at their respective registered addresses as appearing in the register of members of Climate Exchange at the Scheme Record Time

or in accordance with any special standing instructions regarding communications, and none of Climate Exchange, Bidco or their respective agents or nominees shall be responsible for any loss or delay in the transmission of any cheques or certificates sent in accordance with this sub-clause 3(B), which shall be sent at the risk of the person or persons entitled thereto.

- (C) All cheques shall be made payable to the person or persons to whom, in accordance with the foregoing provisions of this clause 3, the envelope containing the same is addressed, and the encashment of any such cheque shall be a complete discharge of Bidco's obligation under this Scheme to pay for the monies represented thereby.
- (D) In respect of payments made through CREST, Bidco shall ensure that an assured payment obligation is created in accordance with the CREST assured payment arrangements, provided that Bidco reserves the right to make payment of the said consideration by cheque as aforesaid in sub-clause 3(A)(i) if, for any reason, it wishes to do so. The creation of such an assured payment obligation shall be a complete discharge of Bidco's obligation under this Scheme with reference to the payments made through CREST.
- (E) The preceding paragraphs of this clause 3 shall take effect subject to any prohibition or condition imposed by law.

4. Operation of this Scheme

- (A) This Scheme shall become effective as soon as an office copy of the Order under section 152 of the Isle of Man Companies Act shall have been duly delivered by Climate Exchange to the Isle of Man Financial Supervision Commission for registration.
- (B) Unless this Scheme shall become effective on or before 31 July 2010, or such later date, if any, as Climate Exchange and Bidco may agree and the Court may allow, this Scheme shall never become effective.
- (C) Climate Exchange and Bidco may jointly consent on behalf of all persons concerned to any modification of or addition to this Scheme or to any condition which the Court may approve or impose.

5. Governing Law

This Scheme is governed by the laws of the Isle of Man. The rules of the City Code will apply to this Scheme.

Dated 28 May 2010

PART FIVE: FINANCIAL INFORMATION ON CLIMATE EXCHANGE

The financial information set out below from the audited financial statements for Climate Exchange for the 12 month period ended 31 December 2009, the 12 month period ended 31 December 2008 and the 12 month period ended 31 December 2007 (together the “ **Climate Exchange Accounts** ”) are incorporated by reference into, and form part of, this document and are available at the following addresses on the Climate Exchange website:

Location in Climate Exchange Financial Statements and Notes

Information incorporated into this document by reference

For the 12 month period ended 31 December 2009, available at:

[http://www.climateexchangeplc.com/downloads/352_Climate%20Report%20%20Accounts%202010%20\(2\)FINAL.pdf](http://www.climateexchangeplc.com/downloads/352_Climate%20Report%20%20Accounts%202010%20(2)FINAL.pdf)

Consolidated income statement	Page 44
Consolidated statement of comprehensive income	Page 45
Consolidated balance sheet	Page 46
Consolidated statement of changes in equity	Page 47
Consolidated statement of cash flows	Page 48
Notes forming part of the consolidated financial statements	Pages 51 - 75

For the 12 month period ended 31 December 2008, available at:

http://www.climateexchangeplc.com/downloads/305_Report-Accounts-2008.pdf

Consolidated income statement	Page 38
Consolidated balance sheet	Page 39
Consolidated statement of changes in equity	Page 40
Consolidated statement of cash flows	Page 41
Notes to the financial statements	Pages 43 - 63

For the 12 month period ended 31 December 2007, available at:

http://www.climateexchangeplc.com/downloads/193_Report%20&%20Accounts%202007.pdf

Consolidated income statement	Page 26
Consolidated balance sheet	Page 27
Consolidated statement of changes in equity	Page 28
Consolidated statement of cash flows	Page 29
Notes to the financial statements	Pages 31 - 47

Climate Exchange Shareholders, persons with information rights and any other persons to whom this document is sent, may request a hard copy of the Climate Exchange Accounts free of charge by writing to Lauren Paton at Climate Exchange plc, 62 Bishopsgate, London EC2N 4AW or by telephoning 020 7382 7800 (from within the British Isles) or +44 207 382 7800 (from outside the British Isles). Copies of the Climate Exchange Accounts will not be provided to any of the persons mentioned above unless requested.

PART SIX: ADDITIONAL INFORMATION FOR OVERSEAS HOLDERS OF CLIMATE EXCHANGE SHARES AND CLIMATE EXCHANGE ADSs

General

This document has been prepared for the purposes of complying with English law, Isle of Man law, the AIM Rules and the City Code and the information disclosed may not be the same as that which would have been disclosed if this document had been prepared in accordance with the laws of jurisdictions outside the United Kingdom and the Isle of Man.

It is the responsibility of any person into whose possession this document comes to satisfy themselves as to the full observance of the laws of the relevant jurisdiction in connection with the Acquisition including the obtaining of any governmental, exchange control or other consents which may be required and/or compliance with other necessary formalities which are required to be observed and the payment of any issue, transfer or other taxes or levies due in such jurisdiction.

This document does not constitute an offer or invitation to purchase or subscribe for any securities or a solicitation of any vote or approval or of an offer to buy any securities pursuant to this document or otherwise in any jurisdiction in which such offer, invitation or solicitation is unlawful.

Overseas holders of Climate Exchange Shares and Climate Exchange ADSs should consult their own legal and tax advisers with respect to the legal and tax consequences of the Scheme.

U.S. Securities Laws

The Acquisition relates to the shares of an Isle of Man company and is proposed to be made by means of a scheme of arrangement under Isle of Man company law. A transaction effected by means of a scheme of arrangement is not subject to the tender offer rules under the Exchange Act. Accordingly, the Scheme is subject to the disclosure requirements, rules and practices applicable in the United Kingdom and the Isle of Man to schemes of arrangement, which differ from the requirements of the U.S. tender offer rules. Financial information included in or incorporated by reference into this document has been prepared in accordance with International Financial Reporting Standards as adopted by the European Union, which may not be comparable to the financial statements of U.S. companies. It may be difficult for you to enforce your rights and any claim you may have arising under U.S. federal securities laws, since Climate Exchange is located in a foreign country, and some or all of its officers and directors may be residents of a foreign country. You may not be able to sue Climate Exchange or its officers or directors in a foreign court for violations of the U.S. securities laws. It may be difficult to compel Climate Exchange and its affiliates to subject themselves to a U.S. court's judgement. This document has not been reviewed by any federal or state securities commission or regulatory authority in the U.S., nor has any such commission or authority passed upon the accuracy or adequacy of this document. Any representation to the contrary is unlawful and may be a criminal offence.

Information for Climate Exchange ADS Holders

Climate Exchange ADS Holders will not, except as described below, be entitled to attend the Court Meeting or the Climate Exchange EGM or to be present at the Hearing (although the ADS Depositary, the registered holder of Climate Exchange Shares underlying the Climate Exchange ADSs, will be so entitled and, pursuant to the Deposit Agreement, will endeavour, in so far as practicable, to vote or cause to be voted at the Court Meeting and/or the Climate Exchange EGM in accordance with the written instructions that may be received from registered Climate Exchange ADS Holders).

Climate Exchange ADS Holders who wish to attend the Court Meeting or the Climate Exchange EGM or to be present at the Hearing should take steps to present their Climate Exchange ADSs to the ADS Depositary for cancellation and (upon compliance with the terms of the Deposit Agreement, including payment of the ADS Depositary's fees and any applicable taxes and governmental charges) delivery of Climate Exchange Shares so as to become registered holders of Climate Exchange Shares prior to the Voting Record Time. The Voting Record Time, the time and date of the Court Meeting and Climate Exchange EGM and the anticipated date of the Hearing appear on page 1 of this document.

Registered Climate Exchange ADS Holders as at the ADS Voting Record Time may sign and complete an ADS Voting Instruction Card in accordance with the instructions printed thereon, which should be returned by mail to BNY Mellon Shareowner Services, P.O. Box 3549, South Hackensack, New Jersey 07606-9249 as soon as possible and, in any event, so as to be received no later than 5.00 p.m. (New York time) on 24 June 2010. Climate Exchange ADS Holders who hold Climate Exchange ADSs indirectly must rely on the procedures of their bank, broker, financial institution or share plan administrator through which they hold their Climate Exchange ADSs if they wish their voting instructions to be reflected on an ADS Voting Instruction Card and received by the ADS Depositary by this deadline.

The Deposit Agreement provides in Section 4.07 that the ADS Depositary shall not vote Climate Exchange Shares underlying Climate Exchange ADSs except in accordance with written instructions from the Climate Exchange ADS Holders. If the ADS Depositary fails to receive an ADS Voting Instruction Card from a registered Climate Exchange ADS Holder prior to the deadline, then the ADS Depositary will not vote the Climate Exchange Shares underlying the Climate Exchange ADSs of such holder, and, accordingly, such shares will not be represented and will not be voted at the Court Meeting or the Climate Exchange EGM.

Once the Scheme becomes effective, Climate Exchange intends to terminate the Deposit Agreement through which the ADS programme is operated and a Notice of Termination will be sent to Climate Exchange ADS Holders.

It is important that, for the Court Meeting in particular, as many votes as possible are cast so that the Court may be satisfied that there is a fair and reasonable representation of Climate Exchange Shareholders' opinion. Climate Exchange ADS Holders may only vote in person at the Court Meeting or Climate Exchange EGM if they become a registered holder of Climate Exchange Shares by arranging for the surrender of their Climate Exchange ADSs and delivery of Climate Exchange ADSs in accordance with the terms and conditions of the Deposit Agreement so as to become registered holders of Climate Exchange Shares prior to the Voting Record Time.

On the Effective Date, the Climate Exchange Shares underlying the Climate Exchange ADSs will be transferred to Bidco, the Climate Exchange ADSs will be cancelled and the American depositary receipts evidencing the Climate Exchange ADSs will be required to be surrendered to the ADS Depositary in order for the holder thereof to receive his entitlement under the Scheme (without interest and less any withholding taxes, if applicable). Climate Exchange shall be liable to pay to the ADS Depositary a fee of up to \$0.05 in respect of each Climate Exchange ADS surrendered. The ADS Depositary (as the registered holder of the Climate Exchange Shares) will receive an amount in pounds sterling equal to the total amount payable in respect of all the Climate Exchange Shares held by the ADS Depositary in accordance with the terms of the Scheme. Such amount will be converted into U.S. dollars by the ADS Depositary pursuant to the terms and conditions of the Deposit Agreement. Once the ADS Depositary has received the funds, Climate Exchange ADS Holders will receive their pro rata portion in U.S. dollars from the ADS Depositary upon surrender of their Climate Exchange ADSs in accordance with the terms and conditions of the Deposit Agreement (without interest and less any withholding taxes, if applicable). Following the Effective Date, the ADS Depositary will mail a notice to registered holders of Climate Exchange ADSs regarding the mechanics of the surrender of their existing Climate Exchange ADSs in exchange for their entitlement under the Scheme. Instructions for the surrender of Climate Exchange ADS certificates will be set out in the letter of transmittal. If you hold your Climate Exchange ADSs indirectly, you must rely on the procedures of the bank, broker, financial institution or share plan administrator through which you hold your Climate Exchange ADSs for completion of the exchange.

Any Climate Exchange ADS Holder whose Climate Exchange ADSs are held indirectly through a bank, broker, financial institution or share plan administrator within a book-entry facility, such as DTC, will receive credit of the funds to their account from their bank, broker, financial institution or share plan administrator. The ADS Depositary will remit the funds to each book-entry facility, net of the total amount of any ADS Depositary fee due from such holder to the ADS Depositary, and the relevant book-entry facility in turn will credit the Climate Exchange ADS Holder's bank, broker, financial institution or share plan administrator.

In order to avoid the application of U.S. backup withholding (currently at a rate of 28 per cent.) on cash amounts paid to Climate Exchange ADS Holders (including non-U.S. persons) who have not previously provided a duly completed Form W-9 or W-8 to their broker or the ADS Depositary that remains valid at the time of payment, it is necessary for such holders to provide the ADS Depositary with a properly completed IRS Form W-8BEN or Form W-9 as applicable. See Part Eight. Persons who are uncertain as to their need to provide these forms should consult their own tax advisers. IRS Forms W-9 and W-8 are available on the IRS website at <http://www.irs.gov>.

PART SEVEN: ADDITIONAL INFORMATION ON CLIMATE EXCHANGE, ICE AND BIDCO

1. Responsibility

- 1.1 The Climate Exchange Directors, whose names are set out in paragraph 2.1 below, accept responsibility for the information contained in this document other than the information for which responsibility is taken by others pursuant to paragraph 1.2 of this Part Seven. To the best of the knowledge and belief of the Climate Exchange Directors (who have taken all reasonable care to ensure that such is the case) the information contained in this document for which they accept responsibility is in accordance with the facts and does not omit anything likely to affect the import of such information.
- 1.2 The directors of Bidco and ICE, whose names are set out in paragraphs 2.2 and 2.3 below, accept responsibility for the information contained in this document relating to the ICE Group (including paragraphs 4 and 7 of Part One of this document), the Bidco Directors and ICE Directors and their close relatives, related trusts and controlled companies. To the best of the knowledge and belief of the Bidco Directors and ICE Directors (who have taken all reasonable care to ensure that such is the case) the information contained in this document for which they accept responsibility is in accordance with the facts and does not omit anything likely to affect the import of such information.

2. Directors

- 2.1 The Climate Exchange Directors and their respective positions are as follows:

<u>Name</u>	<u>Position</u>
Richard Sandor	Chairman
Neil Eckert	Chief Executive Officer
Matthew Whittell	Chief Financial Officer
Carole Brookins	Non Executive Director
Klaus Gierstner	Non Executive Director
Sir Laurence Magnus	Non Executive Director
Sir Brian Williamson	Non Executive Director
Philip Scales	Non Executive Director

The business address of each of the Climate Exchange Directors is 62 Bishopsgate, London EC2N 4AW, save that the business address of Philip Scales is IOMA House, Hope Street, Douglas, Isle of Man, IM1 1AP. Richard Sandor’s second business address is 190 South LaSalle Street, Suite 1100, Chicago, IL 60603.

The company secretary of Climate Exchange is Philip Scales.

2.2 The Bidco Directors and their respective positions are as follows:

<u>Name</u>	<u>Position</u>
Scott A. Hill	Director
Johnathan H. Short	Director
David J. Peniket	Director

The business address of each of Scott A. Hill and Johnathan H. Short is 2100 RiverEdge Parkway, Suite 500, Atlanta, GA 30328, United States of America and of David J. Peniket is 5th Floor, Milton Gate, 60 Chiswell Street, London EC1Y 4SA.

The company secretary of Bidco is Patrick Davis.

2.3 The ICE Directors and their respective positions are as follows:

<u>Name</u>	<u>Position</u>
Jeffrey C. Sprecher	Chairman and Chief Executive Officer
Charles R. Crisp	Director
Jean-Marc Forneri	Director
Fred W. Hatfield	Director
Terrence F. Martell	Director
Sir Callum McCarthy	Director
Sir Robert Reid	Director
Frederic V. Salerno	Director
Judith A. Sprieser	Director
Vincent Tese	Director

The business address of each of the ICE Directors is 2100 RiverEdge Parkway, Suite 500, Atlanta, GA 30328, United States of America.

The company secretary of ICE is Johnathan H. Short.

3. **Market quotations**

The following table shows the closing middle market prices for Climate Exchange Shares, as derived from the AIM Appendix to the Daily Official List of the London Stock Exchange, on the first business day in each of the six months immediately before the date of this document and on 29 April 2010 (being the last dealing day prior to the date of the Announcement) and 26 May 2010 (being the latest practicable date prior to the posting of this document).

<u>Date</u>	<u>Share price (pence)</u>
2 November 2009	840.0
1 December 2009	780.0
4 January 2010	647.0
1 February 2010	613.5
1 March 2010	523.0
1 April 2010	500.0
29 April 2010	478.0
26 May 2010	742.5

4. Interests in relevant Climate Exchange securities

4.1 For the purposes of this paragraph 4 and paragraphs 5 to 8:

- (A) “acting in concert” has the meaning given to it in the City Code;
- (B) “arrangement” means any arrangement of the kind referred to in Note 11 on the definition of acting in concert in the City Code, including indemnity or option arrangements, and any agreement or understanding, formal or informal, of whatever nature, relating to relevant securities (such term having the meaning given to it in the City Code) which may be an inducement to deal or refrain from dealing;
- (C) “connected adviser” has the meaning given to it in the City Code;
- (D) “control” means an interest, or interests, in shares carrying 30 per cent. or more of the voting rights attributable to the share capital of a company which are currently exercisable at a general meeting, irrespective of whether the holding or holdings give(s) de facto control, and “controlled” shall be construed accordingly;
- (E) “dealing” has the meaning given to it in the City Code;
- (F) “derivative” includes any financial product whose value in whole or in part is determined directly or indirectly by reference to the price of an underlying security;
- (G) “disclosure period” means the period beginning on 1 May 2009 (being the date 12 months prior to the commencement of the offer period) and ending on 26 May 2010 (being the latest practicable date prior to the publication of this document);
- (H) “interest” or “interests” in relevant securities (such term having the meaning given to it in the City Code) has the meaning given to it in the City Code and references to interests of Bidco Directors, interests of ICE Directors or interests of Climate Exchange Directors in relevant securities shall include all interests,

short positions and borrowings of any other person whose interests in shares the Bidco Directors, ICE Directors or the Climate Exchange Directors (as the case may be), are taken to be interested in pursuant to Part 22 of the UK Companies Act and related regulations;

- (I) “offer period” means the period commencing on 30 April 2010 and ending on 26 May 2010 (being the latest practicable date prior to the publication of this document);
- (J) “relevant Climate Exchange securities” mean relevant securities (such term having the meaning given to it in the City Code in relation to an offeree) of Climate Exchange;
- (K) “relevant ICE securities” mean relevant securities (such term having the meaning given to it in the City Code in relation to an offeror) of ICE; and
- (L) “short position” means any short position (whether conditional or absolute and whether in the money or otherwise) including any short position under a derivative, any agreement to sell or any delivery obligation or right to require another person to purchase or take delivery.
- 4.2 Except as specified in paragraph 4.4 below, as at 26 May 2010 (being the latest practicable date prior to the posting of this document), neither ICE nor Bidco held any interests, rights to subscribe or short positions in relevant Climate Exchange securities.
- 4.3 As at 26 May 2010 (being the latest practicable date prior to the posting of this document), no ICE Director, no Bidco Director and none of their respective close relatives, related trusts or controlled companies held any interests, rights to subscribe or short positions in relevant Climate Exchange securities.
- 4.4 As at 26 May 2010 (being the latest practicable date prior to the posting of this document), the interests, rights to subscribe or short positions in relevant Climate Exchange securities held by any person acting in concert with ICE or Bidco were as follows:

<u>Name</u>	Number of Climate Exchange
	<u>securities</u>
IntercontinentalExchange Holdings	2,277,034

- 4.5 As at 26 May 2010 (being the latest practicable date prior to the posting of this document), the interests, rights to subscribe or short positions of the Climate Exchange Directors and their close relatives, related trusts and controlled companies, all of which are beneficial unless otherwise stated, in relevant Climate Exchange securities (other than the options detailed in paragraph 4.6 below) were as follows:

<u>Name</u>	<u>Number of Climate Exchange Shares</u>	<u>Per cent. of Climate Exchange's ordinary issued share capital</u>
Richard Sandor ⁽¹⁾	7,883,614	16.52
Neil Eckert ⁽²⁾	1,084,124	2.27
Carole Brookins	16,252	0.03
Klaus Gierstner	37,000	0.08
Sir Laurence Magnus ⁽³⁾	4,093	0.01
Sir Brian Williamson	1,500	0.00
Total	9,026,583	18.91

- (1) Richard Sandor holds all of his shares through family trusts.
(2) Neil Eckert holds 19,124 of his shares through Isabella Eckert and the Mary and Clive Eckert Varied Will Trust.
(3) Sir Laurence Magnus holds all of his shares through an account with C. Hoare & Co.

- 4.6 As at 26 May 2010 (being the latest practicable date prior to the posting of this document), the interests of the Climate Exchange Directors and their close relatives, related trusts and controlled companies in options and/or awards over relevant Climate Exchange securities were as follows:

<u>Name</u>	<u>Plan</u>	<u>Exercise price (p)</u>	<u>Number of Climate Exchange Options</u>
Neil Eckert	LTIP	1	1,299,428
	2006 Plan	330	1,050,000
Matthew Whittell	2006 Plan	430	500,000
Carole Brookins	2006 Plan	330	10,000
Total			2,859,428

- 4.7 As at 26 May 2010 (being the latest practicable date prior to the posting of this document), no persons acting in concert with Climate Exchange held any interests, rights to subscribe or short positions in relevant Climate Exchange securities.

5. Dealings in relevant Climate Exchange securities

- 5.1 Except as specified in paragraph 5.3 below, during the disclosure period there were no dealings in relevant Climate Exchange securities by any member of the ICE Group, by any of the Bidco Directors or ICE Directors (or any of their respective close relatives, related trusts or controlled companies), by any person whose interests in relevant Climate Exchange securities the Bidco Directors or ICE Directors are taken to be interested in pursuant to Part 22 of the UK Companies Act and related regulations or by any other person acting in concert with ICE or Bidco for the purposes of the Acquisition.

- 5.2 During the offer period there were no dealings in relevant Climate Exchange securities by any member of the Climate Exchange Group, by any of the Climate Exchange Directors (or any of their close relatives, related trusts or controlled companies), by any person whose interests in relevant Climate Exchange securities the Climate Exchange Directors are taken to be interested in pursuant to Part 22 of the UK Companies Act and related regulations or by any other person acting in concert with Climate Exchange for the purposes of the Acquisition.
- 5.3 During the disclosure period, the dealings in relevant Climate Exchange securities by persons acting in concert with ICE or Bidco were as follows:

<u>Name</u>	<u>Date</u>	<u>Transaction</u>	<u>No. of relevant securities</u>	<u>Price per share (p)</u>
IntercontinentalExchange Holdings	22 June 2009	Purchase	2,277,034	645

6. Interests in relevant ICE securities

As at 26 May 2010 (the latest practicable date prior to the publication of this document), neither Climate Exchange nor any Climate Exchange Director was, directly or indirectly, interested in relevant ICE securities.

7. Dealings in relevant ICE securities

Neither Climate Exchange nor any of the Climate Exchange Directors (or any of their close relatives, related trusts or controlled companies or any person whose interests in relevant Climate Exchange securities the Climate Exchange Directors are taken to be interested in pursuant to Part 22 of the UK Companies Act and related regulations) dealt in relevant ICE securities during the offer period.

8. Interests and dealings – general

- 8.1 Save as disclosed in paragraphs 4 to 7 above, as at 26 May 2010 (the latest practicable date prior to the publication of this document),
- (A) no member of the ICE Group had any interest in, right to subscribe in respect of, or any short position in relation to relevant Climate Exchange securities nor has any member of the ICE Group dealt in any relevant Climate Exchange securities during the disclosure period;
- (B) none of the ICE Directors or Bidco Directors (or any of their respective close relatives, related trusts or controlled companies) had any interest in, right to subscribe in respect of, or any short position in relation to relevant Climate Exchange securities, nor has any such person (or any person whose interests in relevant Climate Exchange securities the ICE Directors or Bidco Directors are

taken to be interested in pursuant to Part 22 of the UK Companies Act and related regulations) dealt in any relevant Climate Exchange securities during the disclosure period;

- (C) no person deemed to be acting in concert with ICE or Bidco had any interest in, right to subscribe in respect of, or any short position in relation to relevant Climate Exchange securities, nor has any such person dealt in any relevant Climate Exchange securities, during the disclosure period;
- (D) no person who has an arrangement with ICE or Bidco (or any person acting in concert with ICE or Bidco) had any interest in, right to subscribe in respect of, or any short position in relation to relevant Climate Exchange securities, nor has any such person dealt in any relevant Climate Exchange securities during the disclosure period; and
- (E) neither ICE or Bidco, nor any person acting in concert with ICE or Bidco, has borrowed or lent any relevant Climate Exchange securities during the disclosure period, save for any borrowed shares which have been either on-lent or sold.

8.2 Save as disclosed in paragraphs 4 to 7 above as at 26 May 2010 (the latest practicable date prior to the publication of this document):

- (A) no member of the Climate Exchange Group had any interest in, right to subscribe in respect of or any short position in relation to relevant Climate Exchange Securities or relevant ICE securities nor has any such person dealt in any relevant Climate Exchange securities or relevant ICE securities during the offer period;
- (B) none of the Climate Exchange Directors had any interest in, right to subscribe in respect of, or any short position in relation to relevant Climate Exchange securities or relevant ICE securities, nor has any such person (or any person whose interests in relevant Climate Exchange securities or relevant ICE securities the Climate Exchange Directors are taken to be interested in pursuant to Part 22 of the UK Companies Act and related regulations) dealt in any relevant Climate Exchange securities or any relevant ICE securities during the offer period;
- (C) no person deemed to be acting in concert with Climate Exchange had any interest in, right to subscribe in respect of, or any short position in relation to relevant Climate Exchange securities, nor has any such person dealt in any relevant Climate Exchange securities during the offer period;
- (D) no person who has an arrangement with Climate Exchange (or any person acting in concert with Climate Exchange) had any interest in, right to subscribe in respect of, or any short position in relation to relevant Climate Exchange securities, nor has any such person dealt in any relevant Climate Exchange securities during the offer period; and
- (E) neither Climate Exchange, nor any person acting in concert with Climate Exchange, has borrowed or lent any relevant Climate Exchange securities during the offer period save for any borrowed shares which have been either on-lent or sold.

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- 8.3 Save as disclosed herein, no persons have given any irrevocable or other commitment to vote in favour of the Resolutions to be proposed at the Court Meeting and the Climate Exchange EGM. Save as disclosed herein, none of: (i) ICE, Bidco or any person acting in concert with ICE or Bidco; or (ii) Climate Exchange or any person acting in concert with Climate Exchange has any arrangement in relation to relevant Climate Exchange securities, or relevant ICE securities (as the case may be).
- 8.4 Save as disclosed herein, no agreement, arrangement or understanding (including any compensation arrangement) exists between ICE, Bidco or any person acting in concert with ICE or Bidco and any of the Climate Exchange Directors or the recent directors, shareholders or recent shareholders of Climate Exchange, or any person interested in or recently interested in Climate Exchange Shares, having any connection with or dependence upon the Acquisition.
- 8.5 There is no agreement, arrangement or understanding whereby the beneficial ownership of any Climate Exchange Shares to be acquired by Bidco pursuant to the Scheme will be transferred to any other person.
- 8.6 No relevant securities of Climate Exchange have been redeemed or purchased by Climate Exchange during the disclosure period.

9. Directors' service contracts and emoluments

- 9.1 The details of the service contracts of the Climate Exchange Directors are as follows:

(A) Richard Sandor

Richard Sandor entered into an employment agreement with CCX (a wholly owned subsidiary of Climate Exchange) effective on 1 January 2005. Under the terms of his employment agreement, Richard Sandor's appointment is terminable by CCX or Richard Sandor upon written notice. Richard Sandor receives a base salary of \$1,000,000 per annum payable monthly in arrears and is entitled to no less than 4 weeks' holiday in each year (excluding public holidays). Richard Sandor is eligible to be considered for participation in such bonus scheme as may, from time to time, be established or agreed by Climate Exchange for its senior executives on such terms as Climate Exchange may, in its sole discretion, determine. If Richard Sandor's employment is terminated by CCX (other than due to death, disability, cause or mutual agreement), he shall be entitled to salary continuation at his base salary then in effect for a period of 12 months. If Richard Sandor's employment is terminated in connection with a change in control, in addition to a 12 month salary continuation referred to above, he also is entitled to (a) a payment equal to his annual base salary; and (b) a payment equal to the annual bonus he received in the fiscal year immediately preceding the termination of his employment. The employment agreement also provides that Richard Sandor is eligible to participate in any employee benefits made available by CCX, including qualified retirement plan, medical insurance, life insurance and disability plan.

Richard Sandor has agreed to enter into an employment agreement (the “ **Proposed Employment Agreement** ”) with ICE to take the position of Chairman Emeritus of Chicago Climate Futures Exchange, Inc. (or similar). Under the terms of the Proposed Employment Agreement, Richard Sandor will be required to work for approximately one week per month for a base salary of \$250,000 per annum and will receive an equity grant of \$250,000 per annum and reimbursement of all business travel. The Proposed Employment Agreement contains a non-compete provision which will continue irrespective of early termination. If the Proposed Employment Agreement is terminated prematurely by ICE, Richard Sandor’s base salary will be paid to the end of the term of the Proposed Employment Agreement and any unvested equity granted will vest immediately. The Proposed Employment Agreement will be for a term of two years from completion of the Acquisition.

J.P. Morgan Cazenove and Kinmont consider the Proposed Employment Agreement to be fair and reasonable as far as the independent Climate Exchange Shareholders are concerned.

(B) Neil Eckert

Neil Eckert entered into a service contract with Climate Exchange on 6 November 2006. Under the terms of his service contract, Neil Eckert’s appointment is terminable by Climate Exchange on twelve months’ written notice or by Neil Eckert on 6 months’ written notice. Neil Eckert receives a salary of £375,000 per annum payable monthly in arrears and is entitled to 30 business days’ holiday in each year (excluding public holidays). Neil Eckert is eligible to be considered for participation in such bonus scheme as may, from time to time, be established or agreed by Climate Exchange for its senior executives on such terms as Climate Exchange may, in its sole discretion, determine. The service contract also provides that Climate Exchange will make a contribution to Neil Eckert’s personal pension plan, provide Neil Eckert with private medical insurance and provide Neil Eckert with life assurance cover. The service contract includes provision for pay in lieu of notice.

(C) Matthew Whittell

Matthew Whittell entered into a service contract with Climate Exchange on 6 November 2006. Under the terms of his service contract, Matthew Whittell’s appointment is terminable by Climate Exchange on twelve months’ written notice or by Matthew Whittell on 6 months’ written notice. Matthew Whittell receives a salary of £215,000 per annum payable monthly in arrears and is entitled to 32 business days’ holiday in each year (excluding public holidays). Matthew Whittell is eligible to be considered for participation in such bonus scheme as may, from time to time, be established or agreed by Climate Exchange for its senior executives on such terms as Climate Exchange may, in its sole discretion, determine. The service contract also provides that Climate Exchange will make a contribution to Matthew Whittell’s personal pension plan, provide Matthew Whittell with private medical insurance and provide Matthew Whittell with life assurance cover. The service contract includes provision for pay in lieu of notice.

- 9.2 Save as disclosed above, there are no service contracts or letters of appointment between any Climate Exchange Director or proposed director of Climate Exchange and any member of the Climate Exchange Group and no such contract or letter of appointment has been entered into or amended within the six months preceding the date of this document.
- 9.3 Save as set out in this document, the effect of the Scheme on the interests of the Climate Exchange Directors does not differ from its effect on the like interests of any other holder of Scheme Shares.

10. Material contracts

- 10.1 The following contract, not being a contract entered into in the ordinary course of business, has been entered into by members of the Climate Exchange Group in the period beginning on 1 May 2008 and ending on 26 May 2010 (being the latest practicable date prior to the publication of this document):

- (A) An Implementation Agreement dated 30 April 2010 between Bidco and Climate Exchange relating to the implementation of the Acquisition (including the Scheme) and matters relating thereto. The Implementation Agreement provides for the implementation of the Acquisition and contains assurances and confirmations between the parties, including provisions to implement the Scheme on a timely basis and to govern the conduct of business of Climate Exchange during the period prior to the Effective Date.

Bidco and Climate Exchange have each undertaken to cooperate with the other in taking such action within its power as may reasonably be considered to be necessary or desirable in respect of the preparation of any documentation in connection with the Acquisition, with a view to the implementation of the Acquisition in a timely manner.

It is currently intended that the Acquisition should be implemented by means of the Scheme. However, Bidco has the right to elect at any time by notice to Climate Exchange (and subject to the consent of the Panel) to implement the Acquisition by way of a takeover offer.

Recommendation

Climate Exchange has agreed that the Directors will unanimously and unqualifiedly recommend to the Climate Exchange Shareholders that they vote in favour of the Resolutions at the Court Meeting and the Climate Exchange EGM and has agreed that the recommendation by the Directors will be included in the Announcement and this document and will not at any time be withdrawn, modified or qualified unless an event or change of circumstance has occurred (otherwise than arising out of or in connection with a breach by Climate Exchange of the Implementation Agreement) and as a result of that event or change of circumstance the Directors determine in good faith that such recommendation should not be given or should be withdrawn, modified or qualified (but to the minimum extent required) in order to comply with the Directors' duties.

Non-solicitation arrangements

Climate Exchange has undertaken not, directly or indirectly, to solicit, initiate, encourage, negotiate, discuss or otherwise seek to procure any competing proposal to the Acquisition, nor to entertain any approach from or enter into or continue discussions and/or negotiations with any other person with a view to such a competing proposal being made. In addition, Climate Exchange has agreed to notify Bidco immediately of any approach made to Climate Exchange in relation to a competing proposal.

Bidco has a matching right in relation to any competing proposal whereby, upon receipt of details of a competing proposal, Bidco may match or better the value implied by that competing proposal, either by confirmation that it intends to increase its offer price or by confirmation that it is ready to announce the increased offer price, in either case such confirmation to be provided to Climate Exchange prior to the earlier of the Climate Exchange Board meeting to approve the competing proposal and 5 or 6 Business Days after the announcement made by the competing offeror, respectively.

Conduct of business arrangements

Climate Exchange has undertaken, without prejudice to Rule 21 of the City Code, that until the earlier of: (a) the Effective Date; and (b) the termination of the Implementation Agreement, it shall not (without the prior written consent of Bidco, not to be unreasonably withheld) carry on business other than in the ordinary course and other than consistent with past practice, incur any financial indebtedness or reduce its cash balance to less than £21,000,000 (less the amount of professional fees payable by Climate Exchange in connection with the Acquisition), or pay any separation or transaction bonus to any Director, officer, senior executive or employee subject to an aggregate cap of £500,000 plus such further amount as the parties mutually agree, subject to certain limitations, among other things.

Termination provisions

The Implementation Agreement will terminate upon the occurrence of any of the following:

- (i) if Bidco, with the consent of the Panel, is entitled to withdraw and withdraws from the Acquisition;
- (ii) where the Acquisition is implemented by way of Scheme: (i) if (A) the Scheme is not approved by Climate Exchange Shareholders at the Court Meeting; (B) the Special Resolution is not passed at the Climate Exchange EGM; (C) the Court refuses to grant the Court Order; or (D) (save as otherwise agreed) the Effective Date has not occurred on or before the end of July 2010, unless in the case of (A), (B) and (C) above Bidco has within five Business Days of such event elected to implement the Acquisition by way of a takeover offer; or (ii) by notice from Bidco to Climate Exchange, if the Directors have withdrawn or

adversely modified or qualified their recommendation to Climate Exchange Shareholders to vote in favour of the Resolutions, subject to consent by the Panel; or

- (iii) where the Acquisition is implemented by way of takeover offer: (i) if the offer lapses in accordance with its terms or is withdrawn; or (ii) by notice in writing from Bidco to Climate Exchange, if the Directors have withdrawn or adversely modified or qualified their recommendation to Climate Exchange Shareholders to accept the offer, subject to consent by the Panel.

10.2 In addition, the following contracts have been entered into by members of the Climate Exchange Group and members of the ICE Group:

- (A) A clearing services agreement dated 14 July 2004 between CCX and The Clearing Corporation (“**CCorp**”), as amended (the “**Clearing Services Agreement**”). Under the Clearing Services Agreement CCorp provides clearing services for contracts listed on CCFE.

The Clearing Services Agreement terminates on 30 June 2010 and includes provision for a transition assistance period during which CCorp will continue to provide clearing services pursuant to CCX’s instructions for a period of 6 months after the expiration of the Clearing Services Agreement. The parties intend to enter into an amendment to the Clearing Services Agreement, under which the Clearing Services Agreement will terminate on the earlier of: (i) 31 December 2010; and (ii) in the event that the Acquisition does not complete for any reason, six months after the date on which the Acquisition fails.

Under the Clearing Services Agreement, CCX pays to CCorp a clearing fee per trade, subject to a monthly minimum, as well as fees in relation to the maintenance of a communication link between the trading platform and CCorp, and reimburses CCorp for its development costs for new products on a time and material basis.

- (B) A licensing and technology agreement dated 28 December 2007 among CCX, CCFE and ICE (the “**Licensing and Technology Agreement**”) under which ICE granted to CCX a license to display, access and use the electronic web based trading platform owned and operated by ICE, along with specific software and equipment, subject to certain restrictions and limitations.

The Licensing and Technology Agreement terminates on 1 January 2013 and is renewable on a rolling basis annually thereafter unless terminated by either party giving 90 days notice prior to the end of such renewal period.

Under the Licensing and Technology Agreement CCX pays to ICE an annual licensing fee for the trading platform, along with a platform operation fee and a clearing fee. CCX also pays a flat fee in respect of the launch of any new products.

- (C) A cooperation and licensing agreement dated 31 August 2004 between CCX, ICE Futures Europe (formerly The International Petroleum Exchange of London Limited) (“**IFE**”) and (by accession) ECX (the “**Cooperation and Licensing Agreement**”) under which CCX granted a license to IFE of certain contracts and trademarks for trading on a platform and exchange operated by ICE Europe, among other things. Under the Cooperation and Licensing Agreement IFE also provides clearing and settlement services through a separate clearing organisation.

The Cooperation and Licensing Agreement terminates in December 2012 and is renewable on a rolling basis annually thereafter.

Under the Cooperation and Licensing Agreement ICE Europe receives an annual fee equal to a percentage of net transaction revenue, ECX receives membership fees attributable specifically to trading of ECX contracts less ICE Europe’s costs related to such membership, ECX is responsible for payment of development and implementation costs and rechargeable operating costs, and ICE charges a per transaction clearing fee.

11. Irrevocable undertakings

- 11.1 The following Climate Exchange Shareholders have given irrevocable undertakings to vote in favour of the Resolutions to be proposed to Climate Exchange Shareholders at the Court Meeting and the Climate Exchange EGM in respect of their own beneficial shareholdings as follows:

<u>Name</u>	<u>Number of Shares</u>	<u>Per cent. of issued</u>
		<u>share capital of Climate Exchange</u>
Richard Sandor	7,883,614	16.52
Neil Eckert	1,084,124	2.27
Carole Brookins	16,252	0.03
Klaus Gierstner	37,000	0.08
Sir Laurence Magnus	4,093	0.01
Sir Brian Williamson	1,500	0.00
Invesco Asset Management Limited	14,004,318	29.34

- 11.2 The irrevocable undertakings from the Climate Exchange Directors will cease to be binding upon the earliest to occur of the following:

- (A) if this document is not posted within 28 days of the announcement in relation to the Scheme or if a formal document containing an Offer is not posted within 28 days of an announcement under Rule 2.5 of the City Code in relation to that Offer (or, in either case, such longer period as may be agreed with the Panel);

- (B) if the Scheme becomes effective or an Offer becomes or is declared unconditional in all respects;
- (C) if an Offer is not announced pursuant to Rule 2.5 of the City Code within ten Business Days of the date on which the Scheme fails to become effective or any condition to which the Scheme is subject becomes incapable of satisfaction and, if applicable, is not waived;
- (D) if an Offer lapses or is withdrawn without becoming or being declared unconditional in all respects; and
- (E) 31 July 2010.

11.3 The irrevocable undertaking given by Invesco Asset Management Limited will cease to be binding upon the earlier to occur of the following:

- (A) in the event of a higher competing offer for Climate Exchange being announced; and
- (B) if the Scheme does not become effective by 31 July 2010.

12. Cash confirmation

In relation to the cash consideration payable by Bidco under the terms of the Acquisition, \$220 million has been drawn from ICE's existing credit facilities and the remainder will be funded from its existing cash resources.

Morgan Stanley & Co. Limited, an affiliate of Morgan Stanley, is satisfied that sufficient financial resources are available to Bidco to satisfy in full the cash consideration payable under the terms of the Acquisition.

13. Persons acting in concert

13.1 The persons (other than the ICE Directors and Bidco Directors) who are acting in concert with ICE and Bidco are as follows:

<u>Name</u>	<u>Type</u>	<u>Registered office</u>	<u>Relationship with Bidco</u>
IntercontinentalExchange Holdings	Private unlimited company incorporated in the United Kingdom	5 th Floor, Milton Gate, 60 Chiswell Street, London, EC1Y 4SA	Fellow subsidiary
Morgan Stanley & Co Incorporated	Company incorporated in Delaware, United States of America	The Corporation Trust Company, 1209 Orange Street, Wilmington, DE 19801	Connected adviser
Morgan Stanley & Co Limited	Private limited company incorporated in the United Kingdom	Legal Dept., 25 Cabot Square, Canary Wharf, London E14 4QA	Connected adviser

13.2 The persons (other than the Climate Exchange Directors) who are acting in concert with Climate Exchange are as follows:

<u>Name</u>	<u>Type</u>	<u>Registered office</u>	<u>Relationship with Climate Exchange</u>
J.P. Morgan plc	Public limited company incorporated in the United Kingdom	125 London Wall, London EC2Y 5AY	Connected adviser
Kinmont	Private limited company incorporated in the United Kingdom	5 Clifford Street, London W1S 2LG	Connected adviser
Fox-Pitt, Kelton	Private limited company incorporated in the United Kingdom	Level 35, Citypoint, 1 Ropemaker Street, London EC2Y 9HD	Connected adviser

14. No material change

There has been no material change in the financial or trading position of Climate Exchange since 31 December 2009, being the date to which the latest audited financial statements of Climate Exchange were drawn up.

15. Consents

Each of Morgan Stanley & Co. Limited, J.P. Morgan Cazenove, Kinmont and Fox-Pitt, Kelton has given and not withdrawn its written consent to the issue of this document with the inclusion of references to its name in the form and context in which they are included.

16. Sources of information and bases of calculations

- 16.1 Financial information relating to Climate Exchange has been extracted or derived (without material adjustment) from published sources or from Climate Exchange's management sources;

- 16.2 The value of £395 million attributed to the entire existing issued and to be issued ordinary share capital of Climate Exchange is based on:
- (A) the offer price of 750 pence in cash for each Climate Exchange Share;
 - (B) 47,592,023 Climate Exchange Shares being in issue as at 29 April 2010 (being the last dealing day prior to the date of the Announcement); and
 - (C) 5,018,453 Climate Exchange Shares being subject to options granted under the Climate Exchange Share Schemes and warrants issued pursuant to contractual arrangements entered into by Climate Exchange or its subsidiary undertakings for which Climate Exchange Shares would need to be issued or transferred on or after the date of the Announcement in order to satisfy the exercise and vesting of such options and warrants (assuming all such options and warrants which are “in the money” are exercised and vested in accordance with the rules of the Climate Exchange Share Schemes or such contractual arrangements (as applicable));
- 16.3 Other statements (including the size of shareholdings) made by reference to the existing issued ordinary share capital of Climate Exchange are based on 47,734,475 Climate Exchange Shares being in issue as at 26 May 2010 (being the latest practicable date before the publication of this document); and
- 16.4 The information with respect to the effect of the transaction on ICE’s earnings is based on Climate Exchange’s published sources and ICE’s management sources.

17. Documents available for inspection

Copies of the following documents will be available for inspection during usual business hours on Monday to Friday of each week (public holidays excepted) up to and including the Effective Date at the registered office of Climate Exchange being IOMA House, Hope Street, Douglas, Isle of Man, IM1 1AP and at the offices of Slaughter and May, One Bunhill Row, London EC1Y 8YY and will be published on the Climate Exchange website at www.climateexchangeplc.com:

- (A) this document;
- (B) the memorandum and articles of association of each of Climate Exchange and Bidco;
- (C) a draft of the articles of association of Climate Exchange as proposed to be amended at the Climate Exchange EGM;
- (D) the consolidated audited report and accounts of Climate Exchange for the three financial years ended 31 December 2007, 2008 and 2009;
- (E) the written consents referred to in paragraph 15 above;
- (F) the material contract referred to in paragraph 10.1 above; and
- (G) copies of the irrevocable undertakings referred to in paragraph 11 above.

PART EIGHT: TAXATION

Isle of Man taxation

The comments set out below summarise certain limited aspects of the Isle of Man taxation treatment of Climate Exchange Shareholders under the Scheme and do not purport to be a complete analysis of all tax considerations relating to the Scheme. They are based on current Isle of Man legislation and what is understood to be current Isle of Man Government published practice, both of which are subject to change, possibly with retrospective effect.

The comments are intended as a general guide and apply only to Climate Exchange Shareholders who are resident or (if individuals) ordinarily resident for tax purposes in the Isle of Man. Climate Exchange Shareholders who are in any doubt about their taxation position, or who are resident or otherwise subject to taxation in a jurisdiction outside the Isle of Man, should consult an appropriate independent professional tax adviser immediately.

Isle of Man taxation of capital gains

The disposal by Climate Exchange Shareholders of their Climate Exchange Shares for cash under the Scheme will not give rise to any liability to capital gains tax in the Isle of Man.

(A) Individual Climate Exchange Shareholders

Isle of Man resident holders of Climate Exchange Shares may be liable to income tax on the receipt of cash under the Scheme, currently 10 per cent., or at the higher rate, currently 20 per cent., depending on their individual circumstances.

(B) Corporate Climate Exchange Shareholders

The Isle of Man operates a zero rate of tax for most corporate taxpayers.

Isle of Man stamp duty and stamp duty reserve tax

No Isle of Man stamp duty or stamp duty reserve tax will be payable on the transfer of, or any other dealing in, Climate Exchange Shares.

United Kingdom taxation

The comments set out below summarise certain limited aspects of the UK taxation treatment of Climate Exchange Shareholders under the Scheme and do not purport to be a complete analysis of all tax considerations relating to the Scheme. They are based on current UK legislation and current HM Revenue & Customs published practice, both of which are subject to change, possibly with retrospective effect. Climate Exchange Shareholders should note that the new UK government which was formed in May 2010 has announced a Budget to be held on 22 June 2010, as a result of which changes may be made to UK tax legislation (including a possible increase in the rates of tax on certain chargeable gains as proposed in the Coalition Agreement of the new government dated 11 May 2010).

The comments are intended as a general guide and apply only to Climate Exchange Shareholders who are resident or (if individuals) ordinarily resident for tax purposes in the UK, who hold Climate Exchange Shares as an investment (other than under a personal equity plan or individual savings account) and who are the absolute beneficial owners of their Climate Exchange Shares. These comments do not deal with certain types of shareholders (such as persons holding or acquiring shares in the course of trade or persons who have or could be treated as having acquired their Climate Exchange Shares by reason of their employment), collective investment schemes and insurance companies. Climate Exchange Shareholders who are in any doubt about their taxation position, or who are resident or otherwise subject to taxation in a jurisdiction outside the UK, should consult an appropriate independent professional tax adviser immediately.

Climate Exchange Shareholders and Climate Exchange ADS Holders who are not resident in the UK for tax purposes are referred to the section entitled “United Kingdom taxation of holders of Climate Exchange Shares and Climate Exchange ADSs” of this Part Eight below, which summarises certain UK tax consequences of the Scheme for such non-resident holders.

UK taxation on chargeable gains

Subject to any Climate Exchange Shareholders being liable to a charge to income tax on a disposal of Climate Exchange Shares, the receipt by Climate Exchange Shareholders of cash under the Scheme will be treated as the proceeds of a disposal of their Climate Exchange Shares which may give rise, depending on the Climate Exchange Shareholders’ particular circumstances (including the availability of exemptions, reliefs and/or allowable losses), to a liability to UK taxation on a chargeable gain, or to an allowable loss.

(A) Individual Climate Exchange Shareholders

Disposals of Climate Exchange Shares by individual Climate Exchange Shareholders will be taxed, currently, at a flat rate of 18 per cent. This will apply irrespective of how long the Climate Exchange Shares have been held (or whether they have been held for business purposes). Individual Shareholders should note that, from 6 April 2008, taper relief and indexation allowance no longer apply to reduce any chargeable gain.

The capital gains annual exemption (£10,100 for 2010/2011) will be available to individual Climate Exchange Shareholders to offset chargeable gains arising during the tax year.

(B) Corporate Climate Exchange Shareholders

Corporate Climate Exchange Shareholders who are resident in the UK for tax purposes will generally be subject to UK corporation tax on any chargeable gain arising on the disposal of the Climate Exchange Shares (subject to the availability of the substantial shareholding exemption). For Climate Exchange Shareholders within the charge to UK corporation tax, indexation allowance will be available in respect of the full period of ownership of the Climate Exchange Shares to reduce any chargeable gain arising (but not to create or increase any allowable loss) on the disposal of their Climate Exchange Shares.

UK stamp duty and stamp duty reserve tax

No UK stamp duty or stamp duty reserve tax will be payable by Climate Exchange Shareholders as a result of the Scheme.

United Kingdom taxation of holders of Climate Exchange Shares and Climate Exchange ADSs

Subject to the paragraph below (dealing with individuals who are temporarily resident outside the UK) Climate Exchange Shareholders and Climate Exchange ADS Holders who are not resident in or, in the case of an individual, ordinarily resident in the UK for tax purposes are not subject to UK taxation on chargeable gains unless they carry on:

- (A) in the case of an individual Climate Exchange Shareholder or Climate Exchange ADS Holder, a trade, profession or vocation through a branch or agency in the UK and have used, held or acquired the Climate Exchange Shares or Climate Exchange ADSs for the purposes of such trade, profession or vocation, or for the purposes of such branch or agency; or
- (B) in the case of a corporate Climate Exchange Shareholder or Climate Exchange ADS Holder, a trade in the UK through a permanent establishment and have used, held or acquired the Climate Exchange Shares or Climate Exchange ADSs for the purposes of that trade or for the purposes of such permanent establishment.

A Climate Exchange Shareholder or Climate Exchange ADS Holder who is an individual and who has ceased to be resident or ordinarily resident for tax purposes in the UK for a period of less than five tax years and who disposes of Climate Exchange Shares or Climate Exchange ADSs during that period may be liable to UK taxation on chargeable gains (subject to any available exemption or relief).

United States Federal Income Taxation

WE HEREBY INFORM YOU THAT THE DESCRIPTION SET FORTH IN THIS EXPLANATORY STATEMENT WITH RESPECT TO U.S. FEDERAL TAX ISSUES WAS NOT INTENDED OR WRITTEN TO BE USED, AND SUCH DESCRIPTION CANNOT BE USED, BY ANY TAXPAYER FOR THE PURPOSE OF AVOIDING ANY PENALTIES THAT MAY BE IMPOSED ON THE TAXPAYER UNDER THE U.S. INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “ **CODE** ”). SUCH DESCRIPTION WAS WRITTEN TO SUPPORT THE MARKETING OF THE ACQUISITION AND THE SCHEME. EACH PROSPECTIVE INVESTOR SHOULD SEEK ADVICE BASED ON ITS PARTICULAR CIRCUMSTANCES FROM AN INDEPENDENT TAX ADVISOR.

The following is a description of certain U.S. federal income tax consequences of the disposition of Climate Exchange Shares or Climate Exchange ADSs pursuant to the Acquisition. This discussion applies only to U.S. Holders described below who are beneficial owners of Climate Exchange Shares or Climate Exchange ADSs and that hold such Climate Exchange Shares or Climate Exchange ADSs as “capital assets” (generally, property held for investment). This discussion is based on the Code, its legislative history, existing final, temporary and proposed Treasury Regulations, administrative pronouncements by the IRS, and judicial decisions, all as of the date hereof and all of which are subject to change (possibly on a retroactive basis) and to different interpretations.

This discussion does not purport to address all U.S. federal income tax consequences that may be relevant to a particular holder and you are urged to consult your own tax advisor regarding your specific tax situation. The discussion does not address the tax consequences that may be relevant to a holder subject to special tax rules, such as a bank, thrift, real estate investment trust, regulated investment company, insurance company, dealer in securities or currencies, trader in securities or commodities that elects “mark-to-market treatment,” investor that held Climate Exchange Shares or Climate Exchange ADSs as a hedge against currency risk or as a position in a “straddle” or conversion transactions, partnership or other pass-through entity for U.S. federal income tax purposes, person subject to the U.S. federal alternative minimum tax, tax-exempt organization, person holding Climate Exchange Shares or Climate Exchange ADSs in connection with a trade or business conducted outside of the United States or person whose functional currency for U.S. federal income tax purposes is not the U.S. dollar.

Except where specifically described below, this discussion assumes that Climate Exchange is not a passive foreign investment company (“**PFIC**”), for U.S. federal income tax purposes. Please see the discussion under “Passive Foreign Investment Company Rules” below. Further, this discussion does not address the U.S. federal estate and gift tax consequences of disposing the Climate Exchange Shares or Climate Exchange ADSs. In addition, this discussion does not address the U.S. state and local and non U.S. tax consequences of disposing the Climate Exchange Shares or Climate Exchange ADSs.

You should consult your own tax advisor regarding the U.S. federal, state and local, as well as non U.S. income and other tax consequences of the disposition of the Climate Exchange Shares or Climate Exchange ADSs pursuant to the Acquisition in your particular circumstances.

You are a “**U.S. Holder**” if you are a beneficial owner of Climate Exchange Shares or Climate Exchange ADSs and you are for U.S. federal income tax purposes:

- (A) an individual who is a citizen or resident of the United States;
- (B) a corporation, or any other entity taxable as a corporation, created or organized in or under the laws of the United States, any state thereof or the District of Columbia;
- (C) an estate the income of which is subject to U.S. federal income tax regardless of its source; or
- (D) a trust if (i) a court within the United States is able to exercise primary supervision over its administration and one or more United States persons have the authority to control all substantial decisions of the trust or
(ii) the trust has a valid election in effect under current Treasury Regulations to be treated as a United States person.

Disposition of Climate Exchange Shares or Climate Exchange ADSs

A U.S. Holder generally will recognize capital gain or loss upon the disposition of Climate Exchange Shares or Climate Exchange ADSs pursuant to the Acquisition measured by the

difference between the amount realized on the disposition of Climate Exchange Shares or Climate Exchange ADSs and the U.S. Holder's adjusted tax basis in such Climate Exchange Shares or Climate Exchange ADSs, each determined in U.S. dollars. Any gain or loss will be long term capital gain or loss if the U.S. Holder's holding period in the Climate Exchange Shares or Climate Exchange ADSs exceeds one year. Certain non corporate U.S. Holders (including individuals) may be eligible for preferential rates of U.S. federal income tax in respect of long term capital gains. The deductibility of capital losses is subject to limitations under the Code.

Any gain or loss recognized on the conversion of the UK pounds sterling received by a U.S. Holder or the ADS Depositary will be U.S. source ordinary income or loss.

Capital gain or loss, if any, realized by a U.S. Holder on the disposition of Climate Exchange Shares or Climate Exchange ADSs generally will be treated as U.S.-source gain or loss for U.S. foreign tax credit purposes.

Passive Foreign Investment Company Rules

Special U.S. federal income tax rules apply to U.S. persons owning shares of a PFIC. A non-U.S. corporation generally will be classified as a PFIC for U.S. federal income tax purposes in any taxable year in which, after applying relevant look-through rules with respect to the income and assets of subsidiaries, either:

- (A) at least 75% of its gross income is "passive income"; or
- (B) on average at least 50% of the gross value of its assets is attributable to assets that produce passive income or are held for the production of passive income.

For this purpose, passive income generally includes, among other things, dividends, interest, rents, royalties and gains from the disposition of passive assets. In addition, if the non U.S. corporation owns, directly or indirectly, at least 25%, by value, of the shares of another corporation, it will be treated as if it holds directly its proportionate share of the assets and receives directly its proportionate share of the income of such other corporation.

The determination as to whether a non-U.S. corporation is a PFIC is based on the application of complex U.S. federal income tax rules, which are subject to differing interpretations, the composition of the income and assets (including goodwill) of the non-U.S. corporation from time to time and the nature of the activities performed by such non-U.S. corporation. Based on the nature of its business and the market price of its shares and ADSs, Climate Exchange believes that it should not be treated as a PFIC were its status determined at the present time, although there can be no assurance that the IRS would not reach a contrary conclusion. In addition, Climate Exchange's actual PFIC status for any taxable year is not determinable until after the end of such taxable year, and Climate Exchange does not intend to make a determination for the current (or any prior) taxable year. Because of these uncertainties, it is possible that Climate Exchange may be a PFIC for the current taxable year or may have been a PFIC in any prior taxable year.

If Climate Exchange is a PFIC or was a PFIC during a U.S. Holder's holding period, any gain realized on a sale of Climate Exchange Shares or Climate Exchange ADSs would generally be treated as realized ratably over the U.S. Holder's holding period for such Climate Exchange Shares or Climate Exchange ADSs, amounts allocated to prior years in which Climate

Exchange was a PFIC would be taxed at the highest tax rate in effect for such years, and an additional interest charge would apply to the portion of the U.S. federal income tax liability on gains treated under the PFIC rules as having been deferred by the U.S. Holder. Amounts allocated to the current year and to any year before Climate Exchange became a PFIC would be taxed as ordinary income in the current year.

Backup Withholding and Information Reporting

In general, payments of the proceeds of a disposition of Climate Exchange Shares or Climate Exchange ADSs, paid within the United States or through certain U.S.-related financial intermediaries to a U.S. Holder are subject to information reporting and may be subject to backup withholding at a current rate of 28% unless the holder (i) establishes that it is an exempt recipient or (ii) provides an accurate taxpayer identification number and certifies that it is a U.S. person and that no loss of exemption from backup withholding has occurred.

Backup withholding is not an additional tax. The amount of any backup withholding tax from a payment to a U.S. Holder will be allowed as a credit against the U.S. Holder's U.S. federal income tax liability, provided that the required information is timely furnished to the IRS. A U.S. Holder generally may obtain a refund of any amounts withheld under the backup withholding rules that exceed its U.S. federal income tax liability by timely filing a refund claim with the IRS.

THE ABOVE DESCRIPTION IS NOT INTENDED TO CONSTITUTE A COMPLETE ANALYSIS OF ALL TAX CONSEQUENCES RELATING TO DISPOSITION OF CLIMATE EXCHANGE SHARES OR CLIMATE EXCHANGE ADSs. YOU SHOULD CONSULT YOUR OWN TAX ADVISOR CONCERNING THE TAX CONSEQUENCES OF YOUR PARTICULAR SITUATION.

PART NINE: DEFINITIONS

“2006 Plan”	Climate Exchange plc 2006 Share Option Plan
“ Acquisition ”	the acquisition of Climate Exchange by Bidco, through the transfer of the issued share capital of Climate Exchange in accordance with the Scheme
“ADS”	an American depositary share evidenced by an American depositary receipt
“ADS Depositary”	The Bank of New York Mellon, as depositary under the Deposit Agreement
“ADS Voting Instruction Card”	the voting instruction card accompanying this document for use by registered Climate Exchange ADS Holders to provide their instructions to the ADS Depositary as to how to vote at the Court Meeting and the Climate Exchange EGM in respect of the Climate Exchange Shares underlying their Climate Exchange ADSs
“ADS Voting Record Time”	5.00 p.m. (New York time) on 3 June 2010
“AIM”	the alternative investment market of the London Stock Exchange
“AIM Rules”	the AIM Rules for Companies published by the London Stock Exchange, as amended from time to time
“Announcement”	the announcement of the Acquisition and the Scheme made by Bidco on 30 April 2010
“ Bidco ”	Aether Ios Limited, a private company with limited liability incorporated in the United Kingdom with registered number 07227809 and its registered office address at 5 th Floor, Milton Gate, 60 Chiswell Street, London EC1Y 4SA
“Bidco Directors”	the persons whose names are set out in paragraph 2.2 of Part Seven of this document or, where the context so requires, the directors of Bidco from time to time
“ Board ” or “ Directors ”	the board of directors of Climate Exchange
“ Business Day ”	a day (other than a Saturday, Sunday, or public holiday) on which banks are generally open for business in the City of London and the Isle of Man

“ certificated ” or “ in certificated form ”	a share or other security which is not in uncertificated form (that is, not in CREST)
“ City Code ”	The City Code on Takeovers and Mergers
“ CLE ECX Plan ”	the Climate Exchange plc (European Climate Exchange Limited Commutation) Share Option Plan
“ Climate Exchange ”	Climate Exchange plc, a public company with limited liability incorporated in the Isle of Man with registered number 109015C whose registered office is at IOMA House, Hope Street, Douglas, Isle of Man, IM1 1AP
“ Climate Exchange ADSs ”	American depositary shares, evidenced by an American depositary receipt, issued by the ADS Depositary in accordance with the Deposit Agreement, each two such depositary shares representing one Climate Exchange Share
“ Climate Exchange ADS Holder ”	a holder of a Climate Exchange ADS
“ Climate Exchange Directors ”	the persons whose names are set out in paragraph 2.1 of Part Seven of this document or, where the context so requires, the directors of Climate Exchange from time to time
“ Climate Exchange EGM ”	the extraordinary general meeting of Climate Exchange convened by the notice set out on pages 55 to 56 of this document, including any adjournment thereof
“ Climate Exchange Group ”	Climate Exchange, its subsidiaries and subsidiary undertakings
“ Climate Exchange Meetings ”	the Court Meeting and the Climate Exchange EGM
“ Climate Exchange Shareholders ”	the holders of Climate Exchange Shares
“ Climate Exchange Shares ”	the ordinary shares of £0.01 pence each in the capital of Climate Exchange
“ Climate Exchange Share Schemes ”	the 2006 Plan, CLE ECX Plan and the LTIP
“ Computershare ”	Computershare Investor Services (Jersey) Limited
“ Conditions ”	the conditions to the implementation of the Acquisition as set out in Part Three of this document
“ Court ”	the High Court of Justice of the Isle of Man

“ Court Meeting ”	the meeting of the holders of Scheme Shares convened by order of the Court pursuant to section 152 of the Isle of Man Companies Act, notice of which is set out on pages 53 to 54 of this document, including any adjournment thereof
“ Court Order ”	the order of the court sanctioning the Scheme
“ CREST ”	the relevant system (as defined in the Regulations) in respect of which Euroclear is the Operator (as defined in the Regulations)
“ CREST Manual ”	the CREST manual issued by Euroclear
“ Dealing Disclosure ”	an announcement pursuant to Rule 8 of the City Code containing details of interests or short positions in, or rights to subscribe for, any relevant securities of a party to an offer in whose securities the person disclosing has dealt as well as the person’s positions (if any) in the relevant securities of any other party to the offer
“ Deposit Agreement ”	the deposit agreement dated as of 14 July 2008, among Climate Exchange, The Bank of New York Mellon, as ADS Depositary, and the owners and holders of American depositary receipts issued thereunder
“ disclosure period ”	the period commencing on 1 May 2009 (being the date 12 months prior to the Announcement) and ending on 26 May 2010 (being the last practicable date prior to the publication of this document)
“ Effective Date ”	the date on which the Scheme becomes effective in accordance with its terms
“ Euroclear ”	Euroclear UK & Ireland Limited
“ Exchange Act ”	the U.S. Securities Exchange Act of 1934, as amended
“ Explanatory Statement ”	the explanatory statement relating to the Scheme, as set out in Part Two of this document
“ Financial Supervision Commission ”	the Companies Registry of the Isle of Man Financial Supervision Commission
“ Fox-Pitt, Kelton ”	Fox-Pitt, Kelton Limited
“ Hearing ”	the hearing by the Court of the petition to sanction the Scheme

“ Hearing Date ”	the date of the Hearing
“ holder ”	a registered holder and includes any person(s) entitled by transmission
“ ICE ”	IntercontinentalExchange, Inc., a Delaware corporation with its principal office address at 2100 RiverEdge Parkway, Suite 500, Atlanta, GA 30328, United States of America
“ ICE Directors ”	the persons whose names are set out in paragraph 2.3 of Part Seven of this document or, where the context so requires, the directors of ICE from time to time
“ ICE Group ”	ICE and its subsidiaries and subsidiary undertakings
“ Isle of Man Companies Act ”	the Isle of Man Companies Act 1931 (as amended)
“ J.P. Morgan Cazenove ”	J.P. Morgan plc, which conducts its UK investment banking activities as J.P. Morgan Cazenove
“ Kinmont ”	Kinmont Limited, a corporate finance advisory business based in London, United Kingdom
“ London Stock Exchange ”	London Stock Exchange plc
“ LTIP ”	the Climate Exchange Long Term Incentive Plan
“ Morgan Stanley ”	Morgan Stanley & Co. Incorporated
“ Notice of Termination ”	the notice of termination relating to the Deposit Agreement, which is to be sent to Climate Exchange ADS Holders after the Effective Date
“ Offer ”	should Bidco so elect, the offer to be made by Bidco to acquire the entire issued and to be issued share capital of Climate Exchange by means of contractual offer pursuant to the City Code
“ Opening Position Disclosure ”	an announcement pursuant to Rule 8 of the City Code containing details of interests or short positions in, or rights to subscribe for, any relevant securities of a party to an offer
“ Order Date ”	the date on which the Order is made or, if later, the date on which the Order is expressed to take effect
“ Panel ”	The Panel on Takeovers and Mergers

“ Regulations ”	the Uncertificated Securities Regulations 2005 of the Isle of Man
“ Regulatory Information Service ”	any of the services set out in appendix 3 of the listing rules of the UK Listing Authority, being the competent authority for the purposes of Part VI of the UK Financial Services and Markets Act 2000
“ Relevant Authority ”	a government or governmental, quasi-governmental, supranational, statutory or regulatory, environmental or investigative body, court, association, institution or agency (including trading agency) or any other similar body or person (including any professional body) whatsoever in any jurisdiction
“ Relevant Holders ”	holders of Scheme Shares whose names appear in the register of members of Climate Exchange at the Scheme Record Time
“ Resolutions ”	the resolution set out in the Notice of Court Meeting in Part Ten of this document and the Special Resolution
“ Scheme ” or “ Scheme of Arrangement ”	the proposed scheme of arrangement under section 152 of the Isle of Man Companies Act between Climate Exchange and holders of Scheme Shares, as set out in Part Four of this document, with or subject to any modification, addition or condition approved or imposed by the Court
“ Scheme Document ”	this circular dated 28 May 2010 addressed to Climate Exchange Shareholders containing the Scheme and an Explanatory Statement
“ Scheme Record Time ”	6.00 p.m. on the Business Day immediately prior to the Effective Date
“ Scheme Shares ”	(i) the Climate Exchange Shares in issue at the date of this document; (ii) any Climate Exchange Shares issued after the date of this document and prior to the Voting Record Time; and (iii) any Climate Exchange Shares issued at or after the Voting Record Time and prior to 6.00 p.m. on the Order Date in respect of which the original or any subsequent holder thereof is bound by the Scheme, or shall by such time have agreed in writing to be bound by the Scheme, in any case, other than Climate Exchange Shares held or beneficially owned by ICE

“ Special Resolution ”	the special resolution to be proposed at the Climate Exchange EGM for the purposes of approving certain amendments to the articles of association of Climate Exchange as set out in Part Eleven of this document
“ subsidiary ”	has the meaning given in section 1159 of the UK Companies Act
“ subsidiary undertaking ”	has the meaning given in section 1162 of the UK Companies Act
“ UK ” or “ United Kingdom ”	the United Kingdom of Great Britain and Northern Ireland
“ UK Companies Act ”	the UK Companies Act 2006, as amended
“ UK Listing Authority ”	the Financial Services Authority as the competent authority for listing in the United Kingdom
“ uncertificated ” or “ in uncertificated form ”	a share or other security recorded on the relevant register as being held in uncertificated form in CREST and title to which, by virtue of the Regulations, may be transferred by means of CREST
“ U.S. ” or “ United States ”	the United States of America, its territories and possessions, any state of the United States of America and the District of Columbia
“ Voting Record Time ”	6.00 p.m. on the day which is 2 days before the date of the Court Meeting or any adjournment thereof (as the case may be)
“ Warrants ”	any warrants issued by the Climate Exchange Group or to be issued by it pursuant to any contractual arrangement in existence (without amendment) at 30 April 2010, which entitle the holder of those warrants to subscribe for shares in Climate Exchange

“Wider Climate Exchange Group”

Climate Exchange and its subsidiary undertakings and any other undertaking, body corporate, partnership, joint venture or person in which Climate Exchange and/or such entities (aggregating their interests) has or together have a direct or indirect interest of more than 10 per cent. of the voting or equity share capital or the equivalent

“Wider ICE Group”

ICE and its subsidiary undertakings and any other undertaking, body corporate, partnership, joint venture or person in which ICE and/or such entities (aggregating their interests) has or together have a direct or indirect interest of more than 10 per cent. of the voting or equity share capital or the equivalent

PART TEN: NOTICE OF COURT MEETING

IN THE HIGH COURT OF JUSTICE OF THE ISLE OF MAN
CIVIL DIVISION
CHANCERY PROCEDURE

Serial No. CHP 10/0076

IN THE MATTER OF CLIMATE EXCHANGE PLC

and

IN THE MATTER OF THE ISLE OF MAN COMPANIES ACT 1931

NOTICE IS HEREBY GIVEN that, by an order dated 25 May 2010 made in the above matters, the High Court of Justice of the Isle of Man (the “ **Court** ”) has directed a meeting to be convened of the holders of Scheme Shares (as defined in the Scheme of Arrangement referred to below) for the purpose of considering and, if thought fit, approving (with or without modification) a scheme of arrangement (the “ **Scheme of Arrangement** ”) proposed to be made between Climate Exchange plc (the “ **Company** ”) and the holders of Scheme Shares and that such meeting will be held at One Bunhill Row, London EC1Y 8YY on 2 July 2010 at 9.30 a.m. at which place and time all holders of Scheme Shares are requested to attend.

At the said meeting the following resolution will be proposed:

“THAT the scheme of arrangement (the “ **Scheme of Arrangement** ”) between the Company and the holders of Scheme Shares, a print of which has been produced to this meeting and for the purposes of identification signed by the chairman hereof, in its original form or with or subject to any modification, addition or condition approved or imposed by the Court, be approved and the directors of the Company be authorised to take all such action as they may consider necessary or appropriate for carrying the Scheme of Arrangement into effect.”

The Scheme of Arrangement must be approved by a majority in number representing three fourths in value of the Scheme Shares held by the holders of Scheme Shares present and voting, either in person or by proxy, at the meeting. Voting on the resolution will be by poll, which may be conducted as the chairman of the meeting shall determine. For the meeting to be properly convened, a quorum of two persons entitled to vote must be present.

A holder of Scheme Shares shall, for the purposes of determining the number of holders of Scheme Shares who have voted in favour of and against the Scheme of Arrangement, always be treated as one holder. Therefore, where a holder of Scheme Shares votes his or her shares (in person or by proxy) partly in favour of and partly against the Scheme of Arrangement, whether that holder of Scheme Shares has voted in favour of or against the Scheme of Arrangement shall be determined by reference to whether the majority of the votes cast by that holder were in favour of or against the Scheme of Arrangement. The total value of votes placed by a holder of Scheme Shares at the meeting (either in person or by proxy) shall not exceed the total number of Scheme Shares registered in the holder’s name.

A copy of the said Scheme of Arrangement and a copy of an explanatory statement relating thereto is incorporated in the document of which this notice forms part.

Holders of Scheme Shares may vote in person at the meeting or they may appoint another person as their proxy to attend, speak and vote in their stead. A proxy need not be a member of the Company. A holder of Scheme Shares may appoint more than one proxy in relation to the meeting provided that each proxy is appointed to exercise the rights attached to a different share or shares held by that holder. A blue form of proxy for use at the meeting is enclosed with this notice. Climate Exchange Shareholders with Scheme Shares held through CREST may also appoint a proxy or proxies using CREST by following the instructions set out on pages 15 to 17 of this document. Completion and return of a form of proxy, or the appointment of proxies through CREST, will not preclude a holder of Scheme Shares from attending and voting in person at the meeting, or any adjournment thereof.

In the case of joint holders of Scheme Shares the vote of the senior member who tenders a vote, whether in person or by proxy, will be accepted to the exclusion of the votes of the other joint holder(s) and for this purpose seniority will be determined by the order in which the names stand in the register of members of the Company in respect of the relevant joint holding.

It is requested that forms appointing proxies (together with any power of attorney or other authority under which they are signed, or a notarially certified copy of such power of attorney) be lodged with Computershare Investor Services (Jersey) Limited, Queensway House, Hilgrove Street, St Helier, Jersey JE1 1ES, not later than 48 hours before the start of the meeting but, if forms are not so lodged, they may be handed to the chairman before the start of the meeting.

Entitlement to attend and vote at the meeting and the number of votes which may be cast thereat will be determined by reference to the register of members of the Company at 6.00 p.m. on the day that is 2 days before the meeting or any adjourned meeting (as the case may be).

By the said order, the Court has appointed Neil Eckert, or failing him, Matthew Whittell, to act as chairman of the meeting and has directed the chairman to report the result of the meeting to the Court.

The said Scheme of Arrangement will be subject to the subsequent sanction of the Court.

Dated 28 May 2010

Cains Advocates Limited
15-19 Athol Street
Douglas
Isle of Man IM1 1LB

Advocates for the Company

PART ELEVEN: NOTICE OF EXTRAORDINARY GENERAL MEETING

CLIMATE EXCHANGE PLC

Notice is hereby given that an extraordinary general meeting of Climate Exchange plc (the “**Company**”) will be held at 9.45 a.m. on 2 July 2010 at One Bunhill Row, London EC1Y 8YY (or as soon thereafter as the meeting of the holders of Scheme Shares (as defined in the Scheme as referred to in paragraph (a) of the resolution set out below) convened for 9.30 a.m. on the same day and at the same place, by an order of the High Court of Justice of the Isle of Man, shall have concluded or been adjourned) for the purpose of considering and, if thought fit, passing the following resolution, which will be proposed as a special resolution.

SPECIAL RESOLUTION

THAT:

for the purpose of giving effect to the scheme of arrangement (the “**Scheme**”), between the Company and the holders of Scheme Shares (as defined in the Scheme), a copy of which has been produced to this meeting and for the purposes of identification signed by the chairman hereof, in its original form or subject to any modification(s), addition(s), or condition(s) approved or imposed by the High Court of Justice of the Isle of Man (“**Court**”), with effect from the passing of this resolution, the articles of association of the Company be altered by the adoption and inclusion of the following new article 173:

“Shares not subject to Scheme of Arrangement

- (a) In this Article, references to the “Scheme” are to the Scheme of Arrangement between the Company and the holders of Scheme Shares (as defined in the Scheme) dated 28 May 2010 (with or subject to any modification, addition or condition approved or imposed by the Court) under section 152 of the CA 1931 and terms defined in the Scheme shall have the same meanings in this article.
- (b) If the Company issues any Ordinary Shares (other than to Aether Ios Limited, any subsidiary of Aether Ios Limited, or any nominee of Aether Ios Limited (each a “Bidco Company”)) on or after the date of the adoption of this Article and prior to 6.00 p.m. on the date of the hearing to sanction the Scheme (the “Hearing Date”) such Ordinary Shares shall be issued subject to the terms of the Scheme and the holder or holders of such Ordinary Shares shall be bound by the Scheme accordingly.
- (c) If any Ordinary Shares are issued to any person (a “new member”) at or after 6.00 p.m. on the Hearing Date they will, provided that the Scheme has become effective and that Aether Ios Limited is a member of the Company, be immediately transferred to Aether Ios Limited or its nominee(s) (unless such Ordinary Shares are issued to a Bidco Company) in consideration of and conditional on the payment to the new member of the same cash consideration per Ordinary Share as would have been payable to a holder of the Scheme Shares under the Scheme.
- (d) To give effect to any such transfer required by this Article 173, the Company may appoint any person to execute a form of transfer on behalf of the new member in favour of Aether Ios Limited or its nominee(s). Pending the registration of Aether Ios Limited or

its nominee(s) as the holder of any share to be transferred pursuant to this Article 173, Aether Ios Limited shall be empowered to appoint a person nominated by the directors to act as attorney on behalf of each holder of any such share in accordance with such directions as Aether Ios Limited may give in relation to any dealings with or disposal of such share (or any interest therein), exercising any rights attached thereto or receiving any distribution or other benefit accruing or payable in respect thereof and the registered holder of such share shall exercise all rights attaching thereto in accordance with the directions of Aether Ios Limited but not otherwise.”

28 May 2010

By Order of the Board
Philip Scales
Company Secretary

Registered Office:

IOMA House
Hope Street
Douglas
Isle of Man
IM1 1AP

Registered in Isle of Man No. 109015C

Notes:

1. Only holders of ordinary shares of £0.01 in the capital of the Company are entitled to attend and vote at this meeting and may appoint a proxy to attend, speak and vote instead of them. A member may appoint more than one proxy in relation to the extraordinary general meeting provided that each proxy is entitled to exercise the rights attaching to a different share or shares held by that member. A proxy need not be a member of the Company.
2. A yellow form of proxy is enclosed for use at this meeting. To be valid, completed forms of proxy must be returned so as to arrive at the offices of the Company's receiving agent, Computershare Investor Services (Jersey) Limited, Queensway House, Hilgrove Street, St Helier, Jersey JE1 1ES, not later than 9.45 a.m. on 30 June 2010, or if the meeting is adjourned, at least 48 hours before the start of the adjourned meeting. Forms of proxy may also be sent by facsimile transmission to Computershare Investor Services (Jersey) Limited on 0870 873 5851 (from within the British Isles) or +44 870 873 5851 (from outside the British Isles). Members with shares held through CREST may also appoint a proxy or proxies using CREST by following the instructions set out on pages 15 to 17 of this document.
3. Completion and return of a form of proxy, or the appointment of proxies through CREST, will not preclude a holder of ordinary shares from attending and voting in person at the meeting, or any adjournment thereof.
4. Entitlement to attend and vote at the meeting and the number of votes which may be cast thereat will be determined by reference to the register of members of the Company at 6.00 p.m. on 30 June 2010 (or in the event that the meeting is adjourned, by reference to the register of members at 6.00 p.m. on the day that is 2 days before the adjourned meeting). Changes to entries on the register of members after that time (or in the event that the meeting is adjourned, on the register of members at 6.00 p.m. on the day that is 2 days before the adjourned meeting) shall be disregarded in determining the rights of any person to attend and vote at the meeting.
5. In the case of joint holders of ordinary shares the vote of the senior member who tenders a vote, whether in person or by proxy, will be accepted to the exclusion of the other joint holder(s) and for this purpose seniority will be determined by the order in which the names stand in the register of members of the Company in respect of the relevant joint holding.

CERTIFICATIONS

I, Jeffrey C. Sprecher, certify that:

1. I have reviewed this Quarterly Report on Form 10-Q of IntercontinentalExchange, Inc.;
2. Based on my knowledge, this report does not contain any untrue statement of a material fact or omit to state a material fact necessary to make the statements made, in light of the circumstances under which such statements were made, not misleading with respect to the period covered by this report;
3. Based on my knowledge, the financial statements, and other financial information included in this report, fairly present in all material respects the financial condition, results of operations and cash flows of the registrant as of, and for, the periods presented in this report;
4. The registrant's other certifying officer and I are responsible for establishing and maintaining disclosure controls and procedures (as defined in Exchange Act Rules 13a-15(e) and 15d-15(e)) and internal control over financial reporting (as defined in Exchange Act Rules 13a-15(f) and 15d-15(f)) for the registrant and have:
 - (a) Designed such disclosure controls and procedures, or caused such disclosure controls and procedures to be designed under our supervision, to ensure that material information relating to the registrant, including its consolidated subsidiaries, is made known to us by others within those entities, particularly during the period in which this report is being prepared;
 - (b) Designed such internal control over financial reporting, or caused such internal control over financial reporting to be designed under our supervision, to provide reasonable assurance regarding the reliability of financial reporting and the preparation of financial statements for external purposes in accordance with generally accepted accounting principles;
 - (c) Evaluated the effectiveness of the registrant's disclosure controls and procedures and presented in this report our conclusions about the effectiveness of the disclosure controls and procedures, as of the end of the period covered by this report based on such evaluation; and
 - (d) Disclosed in this report any change in the registrant's internal control over financial reporting that occurred during the registrant's most recent fiscal quarter (the registrant's fourth fiscal quarter in the case of an annual report) that has materially affected, or is reasonably likely to materially affect, the registrant's internal control over financial reporting; and
5. The registrant's other certifying officer and I have disclosed, based on our most recent evaluation of internal control over financial reporting, to the registrant's auditors and the audit committee of the registrant's board of directors (or persons performing the equivalent functions):
 - (a) All significant deficiencies and material weaknesses in the design or operation of internal control over financial reporting which are reasonably likely to adversely affect the registrant's ability to record, process, summarize and report financial information; and
 - (b) Any fraud, whether or not material, that involves management or other employees who have a significant role in the registrant's internal control over financial reporting.

Date: August 4, 2010

/s/ Jeffrey C. Sprecher

Jeffrey C. Sprecher
Chairman and Chief Executive Officer

CERTIFICATIONS

I, Scott A. Hill, certify that:

1. I have reviewed this Quarterly Report on Form 10-Q of IntercontinentalExchange, Inc.;
2. Based on my knowledge, this report does not contain any untrue statement of a material fact or omit to state a material fact necessary to make the statements made, in light of the circumstances under which such statements were made, not misleading with respect to the period covered by this report;
3. Based on my knowledge, the financial statements, and other financial information included in this report, fairly present in all material respects the financial condition, results of operations and cash flows of the registrant as of, and for, the periods presented in this report;
4. The registrant's other certifying officer and I are responsible for establishing and maintaining disclosure controls and procedures (as defined in Exchange Act Rules 13a-15(e) and 15d-15(e)) and internal control over financial reporting (as defined in Exchange Act Rules 13a-15(f) and 15d-15(f)) for the registrant and have:
 - (a) Designed such disclosure controls and procedures, or caused such disclosure controls and procedures to be designed under our supervision, to ensure that material information relating to the registrant, including its consolidated subsidiaries, is made known to us by others within those entities, particularly during the period in which this report is being prepared;
 - (b) Designed such internal control over financial reporting, or caused such internal control over financial reporting to be designed under our supervision, to provide reasonable assurance regarding the reliability of financial reporting and the preparation of financial statements for external purposes in accordance with generally accepted accounting principles;
 - (c) Evaluated the effectiveness of the registrant's disclosure controls and procedures and presented in this report our conclusions about the effectiveness of the disclosure controls and procedures, as of the end of the period covered by this report based on such evaluation; and
 - (d) Disclosed in this report any change in the registrant's internal control over financial reporting that occurred during the registrant's most recent fiscal quarter (the registrant's fourth fiscal quarter in the case of an annual report) that has materially affected, or is reasonably likely to materially affect, the registrant's internal control over financial reporting; and
5. The registrant's other certifying officer and I have disclosed, based on our most recent evaluation of internal control over financial reporting, to the registrant's auditors and the audit committee of the registrant's board of directors (or persons performing the equivalent functions):
 - (a) All significant deficiencies and material weaknesses in the design or operation of internal control over financial reporting which are reasonably likely to adversely affect the registrant's ability to record, process, summarize and report financial information; and
 - (b) Any fraud, whether or not material, that involves management or other employees who have a significant role in the registrant's internal control over financial reporting.

Date: August 4, 2010

/s/ Scott A. Hill
Scott A. Hill
Senior Vice President and
Chief Financial Officer

**CERTIFICATION PURSUANT TO
18 U.S.C. SECTION 1350,
AS ADOPTED PURSUANT TO
SECTION 906 OF THE SARBANES-OXLEY ACT OF 2002**

In connection with the Quarterly Report of IntercontinentalExchange, Inc. (the "Company") on Form 10-Q for the period ended June 30, 2010 as filed with the Securities and Exchange Commission on the date hereof (the "Report"), I, Jeffrey C. Sprecher, Chairman and Chief Executive Officer of the Company, certify, pursuant to 18 U.S.C. § 1350, as adopted pursuant to § 906 of the Sarbanes-Oxley Act of 2002, that, to the best of my knowledge:

- (1) The Report fully complies with the requirements of Section 13(a) or 15(d) of the Securities Exchange Act of 1934; and
- (2) The information contained in the Report fairly presents, in all material respects, the financial condition and results of operations of the Company.

/s/ Jeffrey C. Sprecher

Jeffrey C. Sprecher
Chairman and Chief Executive Officer

Date: August 4, 2010

**CERTIFICATION PURSUANT TO
18 U.S.C. SECTION 1350,
AS ADOPTED PURSUANT TO
SECTION 906 OF THE SARBANES-OXLEY ACT OF 2002**

In connection with the Quarterly Report of IntercontinentalExchange, Inc. (the "Company") on Form 10-Q for the period ended June 30, 2010 as filed with the Securities and Exchange Commission on the date hereof (the "Report"), I, Scott A. Hill, Senior Vice President and Chief Financial Officer of the Company, certify, pursuant to 18 U.S.C. § 1350, as adopted pursuant to § 906 of the Sarbanes-Oxley Act of 2002, that, to the best of my knowledge:

- (1) The Report fully complies with the requirements of Section 13(a) or 15(d) of the Securities Exchange Act of 1934; and
- (2) The information contained in the Report fairly presents, in all material respects, the financial condition and results of operations of the Company.

/s/ Scott A. Hill

Scott A. Hill
Senior Vice President and
Chief Financial Officer

Date: August 4, 2010